ASSOCIATION AGREEMENT

between the European Union and the European Atomic Energy Community and their Member States, of the one part, and the Republic of Moldova, of the other part

PREAMBLE

THE KINGDOM OF BELGIUM,

THE REPUBLIC OF BULGARIA,

THE CZECH REPUBLIC,

THE KINGDOM OF DENMARK,

THE FEDERAL REPUBLIC OF GERMANY,

THE REPUBLIC OF ESTONIA,

IRELAND,

THE HELLENIC REPUBLIC,

THE KINGDOM OF SPAIN,

THE FRENCH REPUBLIC,

THE REPUBLIC OF CROATIA,

THE ITALIAN REPUBLIC,

THE REPUBLIC OF CYPRUS,

THE REPUBLIC OF LATVIA,

THE REPUBLIC OF LITHUANIA,

THE GRAND DUCHY OF LUXEMBOURG,

HUNGARY,

THE REPUBLIC OF MALTA,

THE KINGDOM OF THE NETHERLANDS,

THE REPUBLIC OF AUSTRIA,

THE REPUBLIC OF POLAND,

THE PORTUGUESE REPUBLIC,

ROMANIA,

THE REPUBLIC OF SLOVENIA,

THE SLOVAK REPUBLIC,

THE REPUBLIC OF FINLAND,

THE KINGDOM OF SWEDEN,

THE UNITED KINGDOM OF GREAT BRITAIN AND NORTHERN IRELAND,

Contracting Parties to the Treaty on European Union and the Treaty on the Functioning of the European Union, hereinafter referred to as 'the Member States',

THE EUROPEAN UNION, hereinafter referred to as 'the Union' or 'the EU' and

THE EUROPEAN ATOMIC ENERGY COMMUNITY, hereinafter referred to as 'the Euratom'

of the one part, and

THE REPUBLIC OF MOLDOVA

of the other part,

hereafter jointly referred to as 'the Parties',

CONSIDERING the common values and strong links of the Parties, established in the past through the Partnership and Cooperation Agreement between the European Communities and their Member States, of the one part, and the Republic of Moldova, of the other part, and being developed within the framework of the European Neighbourhood Policy and the Eastern Partnership, and recognising the common desire of the Parties to further develop, strengthen and extend their relations;

ACKNOWLEDGING the European aspirations and the European choice of the Republic of Moldova;

RECOGNISING that the common values on which the EU is built — namely democracy, respect for human rights and fundamental freedoms, and the rule of law — lie also at the heart of political association and economic integration as envisaged in this Agreement;

TAKING into account that this Agreement will not prejudice, and leaves open, the way for future progressive developments in EU-Republic of Moldova relations;

ACKNOWLEDGING that the Republic of Moldova as a European country shares a common history and common values with the Member States and is committed to implementing and promoting those values, which for the Republic of Moldova inspire its European choice;

RECOGNISING the importance of the EU-Republic of Moldova European Neighbourhood Policy Action Plan of February 2005 in strengthening EU-Republic of Moldova relations and in helping to move the reform and approximation process in the Republic of Moldova forward, thus contributing to gradual economic integration and deepening of political association;

COMMITTED to strengthening respect for fundamental freedoms, human rights, including the rights of persons belonging to minorities, democratic principles, the rule of law, and good governance;

RECALLING in particular their will to promote human rights, democracy and the rule of law, including by cooperating to that end within the framework of the Council of Europe;

WILLING to contribute to the political and socioeconomic development of the Republic of Moldova, through wide-ranging cooperation in a broad spectrum of areas of common interest, including in the field of good governance, freedom, security and justice, trade integration and enhanced economic cooperation, employment and social policy, financial management, public administration and civil service reform, civil society participation, institution building, reduction of poverty, and sustainable development;

COMMITTED to all the principles and provisions of the Charter of the United Nations, the Organisation for Security and Cooperation in Europe (OSCE), in particular of the Helsinki Final Act of 1975 of the Conference on Security and Cooperation in Europe and the concluding documents of the Madrid and Vienna Conferences of 1991 and 1992 respectively, and the Charter of Paris for a New Europe of 1990, as well as the United Nations Universal Declaration of Human Rights of 1948 and the European Convention for the Protection of Human Rights and Fundamental Freedoms of 1950;

RECALLING their will to promote international peace and security as well as engaging in effective multilateralism and the peaceful settlement of disputes, in particular by cooperating to that end within the framework of the United Nations (UN) and the OSCE;

RECOGNISING the importance of the active participation of the Republic of Moldova in regional cooperation formats;

DESIROUS to further develop regular political dialogue on bilateral and international issues of mutual interest, including regional aspects, taking into account the Common Foreign and Security Policy (CFSP) of the EU, including the Common Security and Defence Policy (CSDP);

TAKING ACCOUNT of the EU's willingness to support the international effort to strengthen the sovereignty and territorial integrity of the Republic of Moldova and to contribute to the reintegration of the country;

RECOGNISING the importance of the commitment of the Republic of Moldova to a viable settlement of the Transnistrian conflict, and the EU's commitment to support post-conflict rehabilitation;

COMMITTED to preventing and combating all forms of organised crime, trafficking in human beings and corruption, and to stepping up cooperation in the fight against terrorism;

COMMITTED to deepening their dialogue and cooperation on mobility, migration, asylum and border management in the spirit of the EU external migration policy framework aiming at cooperation on legal migration, including circular migration and tackling illegal migration, as well as ensuring the efficient implementation of the Agreement between the European Community and the Republic of Moldova on the readmission of persons residing without authorisation;

RECOGNISING the gradual steps being taken towards a visa-free regime for the citizens of the Republic of Moldova in due course, provided that the conditions for well-managed and secure mobility are in place;

CONFIRMING that the provisions of this Agreement that fall within the scope of Title V of Part Three of the Treaty on the Functioning of the European Union bind the United Kingdom and Ireland as separate Contracting Parties, and not as part of the EU, unless the EU together with the United Kingdom and/or Ireland have jointly notified the Republic of Moldova that the United Kingdom or Ireland is bound as part of the EU in accordance with Protocol No 21 on the position of the United Kingdom and Ireland in respect of the Area of Freedom, Security and Justice, annexed to the Treaty on European Union and to the Treaty on the Functioning of the European Union. If the United Kingdom and/or Ireland ceases to be bound as part of the EU in accordance with Article 4a of that Protocol, the EU together with the United Kingdom and/or Ireland shall immediately inform the Republic of Moldova of any change in their position, in which case they shall remain bound by the provisions of this Agreement in their own right. The same applies to Denmark, in accordance with Protocol No 22 on the position of Denmark, annexed to those Treaties;

COMMITTED to the principles of free market economy and confirming the readiness of the EU to contribute to the economic reforms in the Republic of Moldova;

COMMITTED to respecting environmental needs, including transboundary cooperation on, and implementation of, multilateral international agreements, and to respecting the principles of sustainable development;

DESIROUS to achieve gradual economic integration in the EU internal market as stipulated in this Agreement, inter alia, through a Deep and Comprehensive Free Trade Area (DCFTA), as an integral part of this Agreement;

WILLING to create a Deep and Comprehensive Free Trade Area, which will provide for far-reaching regulatory approximation and market access liberalisation, in compliance with the rights and obligations arising out of the World Trade Organisation (WTO) membership of the Parties and the transparent application of those rights and obligations;

BELIEVING that this Agreement will create a new climate for economic relations between the Parties and above all for the development of trade and investment, and will stimulate competition, which are factors crucial to economic restructuring and modernisation;

COMMITTED to enhancing the security of energy supply, facilitating the development of appropriate infrastructure, increasing market integration and regulatory approximation towards key elements of the EU *acquis*, and promoting energy efficiency and the use of renewable energy sources;

ACKNOWLEDGING the need for enhanced energy cooperation, and the commitment of the Parties to implement the Treaty establishing the Energy Community ('the Energy Community Treaty');

WILLING to improve the level of public health safety and protection of human health as a precondition for sustainable development and economic growth;

COMMITTED to enhancing people-to-people contacts, including through cooperation and exchanges in the fields of research and development, education and culture;

COMMITTED to promoting cross-border and inter-regional cooperation, in the spirit of good neighbourly relations;

RECOGNISING the commitment of the Republic of Moldova to progressively approximate its legislation in the relevant sectors with that of the EU, and to implement it effectively;

RECOGNISING the commitment of the Republic of Moldova to develop its administrative and institutional infrastructure to the extent necessary to enforce this Agreement;

TAKING account of the willingness of the EU to provide support for the implementation of reforms, and to use all available instruments of cooperation and technical, financial and economic assistance in that endeavour,

HAVE AGREED AS FOLLOWS:

Article 1

Objectives

1. An association is hereby established between the Union and its Member States, of the one part, and the Republic of Moldova, of the other part.

2. The aims of that association are:

(a) to promote political association and economic integration between the Parties based on common values and close links, including by increasing the Republic of Moldova's participation in EU policies, programmes and agencies;

(b) to strengthen the framework for enhanced political dialogue in all areas of mutual interest, providing for the development of close political relations between the Parties;

(c) to contribute to the strengthening of democracy and to political, economic and institutional stability in the Republic of Moldova;

(d) to promote, preserve and strengthen peace and stability in the regional and international dimensions, including through joining efforts to eliminate sources of tension, enhancing border security, promoting cross-border cooperation and good neighbourly relations;

(e) to support and enhance cooperation in the area of freedom, security and justice with the aim of reinforcing the rule of law and respect for human rights and fundamental freedoms as well as in the area of mobility and people-to-people contacts;

(f) to support the efforts of the Republic of Moldova to develop its economic potential via international cooperation, also through the approximation of its legislation to that of the EU;

(g) to establish conditions for enhanced economic and trade relations leading towards the Republic of Moldova's gradual integration in the EU internal market as stipulated in this Agreement, including by setting up a Deep and Comprehensive Free Trade Area, which will provide for far-reaching regulatory approximation and market access liberalisation, in compliance with the rights and obligations arising out of WTO membership and the transparent application of those rights and obligations; and

(h) to establish conditions for increasingly close cooperation in other areas of mutual interest.

TITLE I

GENERAL PRINCIPLES

Article 2

1. Respect for the democratic principles, human rights and fundamental freedoms, as proclaimed in the Universal Declaration of Human Rights and as defined in the European Convention for the Protection of Human Rights and Fundamental Freedoms, the Helsinki Final Act of 1975 of the Conference on Security and Cooperation in Europe, and the Charter of Paris for a New Europe of 1990, shall form the basis of the domestic and external policies of the Parties and constitute an essential element of this Agreement. Countering the proliferation of weapons of mass destruction, related materials and their means of delivery also constitutes an essential element of this Agreement.

2. The Parties reiterate their commitment to the principles of a free market economy, sustainable development and effective multilateralism.

3. The Parties reaffirm their respect for the principles of the rule of law and good governance, as well as their international obligations, notably under the UN, the Council of Europe and the OSCE.

4. The Parties commit themselves to foster cooperation and good neighbourly relations, including cooperation on the development of projects of common interest, notably those related to preventing and combating corruption, criminal activities, organised or otherwise, including those of transnational character, and terrorism. That commitment constitutes a key factor in the development of the relations and cooperation between the Parties and contributes to regional peace and stability.

TITLE II

POLITICAL DIALOGUE AND REFORM, COOPERATION IN THE FIELD OF FOREIGN AND SECURITY POLICY

Article 3

Aims of political dialogue

1. Political dialogue on all areas of mutual interest, including foreign and security matters as well as domestic reform, shall be further developed and strengthened between the Parties. That will increase the effectiveness of political cooperation and promote convergence on foreign and security matters.

2. The aims of political dialogue shall be:

(a) to deepen political association and increase political and security policy convergence and effectiveness;

(b) to promote international stability and security based on effective multilateralism;

(c) to strengthen cooperation and dialogue between the Parties on international security and crisis management, particularly in order to address global and regional challenges and key threats;

(d) to foster result-oriented and practical cooperation between the Parties for achieving peace, security and stability on the European continent;

(e) to strengthen respect for democratic principles, the rule of law and good governance, human rights and fundamental freedoms, including the rights of persons belonging to minorities, and to contribute to consolidating domestic political reforms;

(f) to develop dialogue and to deepen cooperation of the Parties in the field of security and defence; and

(g) to respect and promote the principles of sovereignty and territorial integrity, inviolability of borders and independence.

Article 4

Domestic reform

The Parties shall cooperate on the following areas:

(a) developing, consolidating and increasing the stability and effectiveness of democratic institutions and the rule of law;

(b) ensuring respect for human rights and fundamental freedoms;

(c) making further progress on judicial and legal reform, so as to secure the independence of the judiciary, strengthen its administrative capacity and guarantee impartiality and effectiveness of law enforcement bodies;

(d) further pursuing the public administration reform and building an accountable, efficient, transparent and professional civil service; and

(e) ensuring effectiveness in the fight against corruption, particularly in view of enhancing international cooperation on combating corruption, and ensuring effective implementation of relevant international legal instruments, such as the United Nations Convention Against Corruption of 2003.

Article 5

Foreign and security policy

1. The Parties shall intensify their dialogue and cooperation and promote gradual convergence in the area of foreign and security policy, including the Common Security and Defence Policy (CSDP), and shall address in particular issues of conflict prevention and crisis management, regional stability, disarmament, non-proliferation, arms control and export control. Cooperation shall be based on common values and mutual interests, and shall aim at increasing policy convergence and effectiveness, making use of bilateral, international and regional fora.

2. The Parties reaffirm their commitment to the principles of respect for sovereignty and territorial integrity, inviolability of borders and independence, as established in the Charter of the United Nations and the Helsinki Final Act of 1975 of the Conference on Security and Cooperation in Europe, and their commitment to promote those principles in their bilateral and multilateral relations.

Article 6

International Criminal Court

1. The Parties reaffirm that the most serious crimes of concern to the international community as a whole must not go unpunished and that their effective prosecution must be ensured by taking measures at the national and international level, including the International Criminal Court (ICC).

2. The Parties consider that the establishment and effective functioning of the ICC constitutes an important development for international peace and justice. The Parties agree to support the ICC by implementing the Rome Statute of the International Criminal Court and its related instruments, giving due regard to preserving its integrity.

Article 7

Conflict prevention and crisis management

The Parties shall enhance practical cooperation in conflict prevention and crisis management, in particular with a view to the possible participation of the Republic of Moldova in EU-led civilian and military crisis management operations as well as relevant exercises and training, on a case-by-case basis and following a possible invitation by the EU.

Article 8

Regional stability

1. The Parties shall intensify their joint efforts to promote stability, security and democratic development in the region and, in particular, shall work together for the peaceful settlement of regional conflicts.

2. The Parties reiterate their commitment to a sustainable solution to the Transnistrian issue, in full respect of the sovereignty and territorial integrity of the Republic of Moldova, as well as to facilitating jointly post-conflict rehabilitation. Pending its resolution and without prejudice to the established negotiating format, the Transnistrian issue will constitute one of the central subjects on the agenda of political dialogue and cooperation between the Parties, as well as in the dialogue and cooperation with other interested international actors.

3. Those efforts shall follow commonly shared principles of maintaining international peace and security as established by the Charter of the United Nations, the Helsinki Final Act of 1975 of the Conference on Security and Cooperation in Europe and other relevant multilateral documents.

Article 9

Weapons of mass destruction

1. The Parties consider that the proliferation of weapons of mass destruction (WMD) and their means of delivery, both to state and non-state actors, represents one of the most serious threats to international peace and stability. The Parties therefore agree to cooperate and contribute to countering the proliferation of WMD and their means of delivery through full compliance with, and national implementation of, their existing obligations under international disarmament and non-proliferation treaties and agreements, and other relevant international obligations. The Parties agree that this provision constitutes an essential element of this Agreement.

2. The Parties furthermore agree to cooperate and to contribute to countering the proliferation of WMD and their means of delivery by:

(a) taking steps to ratify, or accede to, as appropriate, and fully implement all other relevant international instruments; and

(b) establishing an effective system of national export controls, controlling the export as well as transit of WMD-related goods, including a WMD end-use control on dual-use technologies, and containing effective sanctions for breaches of export controls.

3. The Parties agree to establish a regular political dialogue that will accompany and consolidate those elements.

Article 10

Small arms and light weapons and conventional arms export control

1. The Parties recognise that the illicit manufacture, transfer and circulation of small arms and light weapons (SALW), including their ammunition, and their excessive accumulation, poor management, inadequately secured stockpiles and uncontrolled spread continue to pose a serious threat to peace and international security.

2. The Parties agree to observe and fully implement their respective obligations to deal with the illicit trade in SALW, including their ammunition, under existing international agreements and UN Security Council resolutions, as well as their commitments within the framework of other international instruments applicable in that area, such as the UN Programme of Action to prevent, combat and eradicate the illicit trade in SALW in all its aspects.

3. The Parties shall undertake to cooperate and to ensure coordination, complementarity and synergy in their efforts to deal with the illicit trade in SALW, including their ammunition, and the destruction of excessive stockpiles, at global, regional, sub-regional and national level.

4. Furthermore, the Parties agree to continue to cooperate in the area of conventional arms export control, in the light of the Council Common Position 2008/944/CFSP of 8 December 2008 defining common rules governing control of exports of military technology and equipment.

5. The Parties agree to establish a regular political dialogue that will accompany and consolidate those undertakings.

Article 11

International cooperation in the fight against terrorism

1. The Parties agree to work together at bilateral, regional and international level to prevent and combat terrorism in accordance with international law, relevant UN resolutions, international human rights standards, and refugee and humanitarian law.

2. To that effect, they shall in particular cooperate so as to deepen international consensus on the fight against terrorism, including on the legal definition of terrorist acts and by working towards an agreement on the Comprehensive Convention on International Terrorism.

3. The Parties shall, in the framework of the full implementation of UN Security Council Resolution 1373 (2001) and other relevant UN instruments and of applicable international conventions and instruments, exchange information on terrorist organisations and groups and their activities and support networks in accordance with international law and the legislation of the Parties.

TITLE III

FREEDOM, SECURITY AND JUSTICE

Article 12

Rule of law

1. In their cooperation in the area of freedom, security and justice the Parties shall attach particular importance to the promotion of the rule of law, including the independence of the judiciary, access to justice, and the right to a fair trial.

2. The Parties will cooperate fully on the effective functioning of institutions in the areas of law enforcement and the administration of justice.

3. Respect for human rights and fundamental freedoms will guide all cooperation on freedom, security and justice.

Article 13

Protection of personal data

1. The Parties agree to cooperate in order to ensure a high level of protection of personal data in accordance with EU, Council of Europe and international legal instruments and standards.

2. Any processing of personal data shall be subject to the legal provisions referred to in Annex I to this Agreement. The transfer of personal data between the Parties shall only take place if such transfer is necessary for the implementation, by the competent authorities of the Parties, of this or other agreements concluded between the Parties.

Article 14

Cooperation on migration, asylum and border management

1. The Parties reaffirm the importance of a joint management of migration flows between their territories and shall strengthen the existing comprehensive dialogue on all migration-related issues, including legal migration, international protection, illegal migration, smuggling and trafficking in human beings.

2. Cooperation will be based on a specific needs assessment, conducted in mutual consultation between the Parties, and implemented in accordance with their relevant legislation in force. It will, in particular, focus on:

(a) the root causes and the consequences of migration;

(b) the development and implementation of national legislation and practices as regards international protection, with a view to satisfying the provisions of the Geneva Convention relating to the Status of Refugees of 1951 and of the Protocol relating to the Status of Refugees of 1967 and of other relevant international instruments, and to ensuring the respect of the principle of 'non-refoulement';

(c) the admission rules and rights and status of persons admitted, fair treatment and integration of lawfully residing non-nationals, education and training, and measures against racism and xenophobia;

(d) the establishment of an effective and preventive policy against illegal immigration, smuggling of migrants and trafficking in human beings, including the issue of how to combat networks of smugglers and traffickers and how to protect the victims of such trafficking;

(e) the promotion and facilitation of the return of illegal migrants; and

(f) in the area of border management and document security, on issues of organisation, training, best practices and other operational measures as well as strengthening cooperation between the European Agency for the Management of Operational Cooperation at the External Borders of the Member States of the European Union (Frontex) and the Border Guard Service of the Republic of Moldova.

3. Cooperation may also facilitate circular migration for the benefit of development.

Article 15

Movement of persons

1. The Parties will ensure the full implementation of:

(a) the Agreement between the European Community and the Republic of Moldova on the readmission of persons residing without authorisation, which entered into force on 1 January 2008; and

(b) the Agreement between the European Community and the Republic of Moldova on the facilitation of the issuance of visas, which entered into force on 1 January 2008, as amended on 27 June 2012.

2. The Parties shall endeavour to enhance mobility of citizens and shall take gradual steps towards the shared objective of a visa-free regime in due course, provided that the conditions for well-managed and secure mobility, set out in the Action Plan on Visa Liberalisation, are in place.

Article 16

Preventing and combating organised crime, corruption and other illegal activities

1. The Parties shall cooperate on preventing and combating all forms of criminal and illegal activities, organised or otherwise, including those of a transnational character, such as:

(a) smuggling and trafficking in human beings;

(b) smuggling and trafficking in goods, including in small arms and illicit drugs;

(c) illegal economic and financial activities such as counterfeiting, fiscal fraud and public procurement fraud;

(d) fraud, as referred to in Title VI (Financial Assistance, and Anti-Fraud and Control Provisions) of this Agreement, in projects funded by international donors;

(e) active and passive corruption, both in the private and public sector, including the abuse of functions and trading in influence;

(f) forging documents and submitting false statements; and

(g) cyber crime.

2. The Parties shall enhance bilateral, regional and international cooperation among law enforcement bodies, including strengthening cooperation between the European Police Office (Europol) and the relevant authorities of the Republic of Moldova. The Parties are committed to implementing effectively the relevant international standards, and in particular those enshrined in the United Nations Convention against Transnational Organised Crime (UNTOC) of 2000 and its three Protocols, the United Nations Convention against Corruption of 2003, and relevant Council of Europe instruments on preventing and combating corruption.

Article 17

Tackling illicit drugs

1. Within their respective powers and competencies, the Parties shall cooperate to ensure a balanced and integrated approach towards drug issues. Drug policies and actions shall be aimed at reinforcing structures for tackling illicit drugs, reducing the supply of, trafficking in and the demand for illicit drugs, coping with the health and social consequences of drug abuse, as well as at a more effective prevention of diversion of chemical precursors used for the illicit manufacture of narcotic drugs and psychotropic substances.

2. The Parties shall agree on the necessary methods of cooperation to attain those objectives. Actions shall be based on commonly agreed principles along the lines of the relevant international conventions, the EU Drugs Strategy (2013-20), the Political Declaration on the guiding principles of drug demand reduction, approved by the United Nations General Assembly Twentieth Special Session on Drugs in June 1998.

Article 18

Money laundering and financing of terrorism

1. The Parties shall cooperate in order to prevent the use of their financial and relevant non-financial systems to launder the proceeds of criminal activities, as well as for the purpose of financing of terrorism. That cooperation extends to the recovery of assets or funds derived from the proceeds of crime.

2. Cooperation in this area shall allow exchanges of relevant information within the framework of respective legislations and the adoption of appropriate standards to combat money laundering and financing of terrorism, equivalent to those adopted by relevant international bodies active in this area, such as the Financial Action Task Force on Money Laundering (FATF).

Article 19

Combating terrorism

The Parties agree to cooperate in the prevention and suppression of acts of terrorism in full respect for the rule of law, international human rights, and refugee and humanitarian law and in accordance with the UN Global Counter-Terrorism Strategy of 2006 as well as their respective laws and regulations. They shall do so, in particular in the framework of the full implementation of UN Security Council Resolutions 1267 (1999), 1373 (2001), 1540 (2004) and 1904 (2009) and other relevant UN instruments, and applicable international conventions and instruments:

(a) by exchanging information on terrorist groups and their support networks in accordance with international and national law;

(b) by exchanging views on terrorism trends and on means and methods of combating terrorism, including in technical areas and training, and by exchanging experiences in respect of the prevention of terrorism; and

(c) by sharing best practices in the area of protection of human rights in the fight against terrorism.

Article 20

Legal cooperation

1. The Parties agree to develop judicial cooperation in civil and commercial matters as regards the negotiation, ratification and implementation of multilateral conventions on civil judicial cooperation and, in particular, the conventions of the Hague Conference on Private International Law in the field of international legal cooperation and litigation as well as the protection of children.

2. As regards judicial cooperation in criminal matters, the Parties will seek to enhance cooperation on mutual legal assistance. That would include, where appropriate, accession to, and implementation of, the relevant international instruments of the UN and the Council of Europe and closer cooperation with Eurojust.

TITLE IV

ECONOMIC AND OTHER SECTORAL COOPERATION

CHAPTER 1

Public administration reform

Article 21

Cooperation shall focus on the development of efficient and accountable public administration in the Republic of Moldova, with the aim of supporting implementation of the rule of law, ensuring that state institutions work for the benefit of the entire population of the Republic of Moldova, and promoting the smooth development of relations between the Republic of Moldova and its partners. Particular attention will be given to the modernisation and development of executive functions, with the goal of providing quality services to the citizens of the Republic of Moldova.

Article 22

Cooperation shall cover the following areas:

(a) the institutional and functional development of public authorities, in order to increase the efficiency of their activity and to ensure an efficient, participatory and transparent decision-making and strategic planning process;

(b) modernisation of public services, including the introduction and implementation of e-Governance, with a view to increasing the efficiency of service delivery to citizens and reducing the costs of doing business;

(c) creation of a professional civil service based on the principle of managerial accountability and effective delegation of authority, as well as fair and transparent recruitment, training, assessment and remuneration;

(d) effective and professional human resource management and career development; and

(e) the promotion of ethical values in the civil service.

Article 23

Cooperation shall cover all levels of public administration, including local administration.

CHAPTER 2

Economic dialogue

Article 24

1. The EU and the Republic of Moldova shall facilitate the process of economic reform by improving the understanding of the fundamentals of their respective economies. Cooperation between the Parties shall aim to promote economic policies pertinent to functioning market economies as well as the formulation and implementation of those economic policies.

2. The Republic of Moldova shall strive to establish a functioning market economy and to gradually approximate its policies to those of the EU, in accordance with the guiding principles of sound macroeconomic and fiscal policies, including central bank independence and price stability, sound public finances and a sustainable balance of payments.

Article 25

1. To those ends, the Parties agree to cooperate in the following areas:

(a) exchange of information on macroeconomic policies and structural reforms as well as on macroeconomic performance and prospects, and on strategies for economic development;

(b) joint analysis of economic issues of mutual interest, including economic policy measures and the instruments for implementing them, such as methods for economic forecasting and elaboration of strategic policy documents, with a view to strengthening the policy-making of the Republic of Moldova in line with EU principles and practices; and

(c) exchange of expertise in the macroeconomic and macrofinancial sphere, including public finances, financial sector developments and regulation, monetary and exchange rate policies and frameworks, external financial assistance, and economic statistics.

2. Cooperation will also include exchange of information concerning the principles and functioning of the European economic and monetary union.

Article 26

A regular dialogue will take place on the issues covered by this Chapter.

CHAPTER 3

Company law, accounting and auditing and corporate governance

Article 27

1. Recognising the importance of an effective set of rules and practices in the areas of company law and corporate governance, as well as in accounting and auditing, for the creation of a fully-functioning market economy and for fostering trade, the Parties agree to cooperate:

(a) on the protection of shareholders, creditors and other stakeholders in line with EU rules in this area;

(b) on the introduction of relevant international standards at national level and gradual approximation of the rules of the Republic of Moldova with those of the EU in the field of accounting and auditing; and

(c) on further development of corporate governance policy in line with international standards, as well as gradual approximation of the rules of the Republic of Moldova with the EU rules and recommendations in this area.

2. The relevant EU rules and recommendations are listed in Annex II to this Agreement.

Article 28

The Parties will aim at sharing information and expertise on both existing systems and relevant new developments in those areas. In addition, the Parties will seek to improve information exchange between the business registers of Member States and the national register of companies of the Republic of Moldova.

Article 29

A regular dialogue will take place on the issues covered by this Chapter.

Article 30

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex II to this Agreement according to the provisions of that Annex.

CHAPTER 4

Employment, social policy and equal opportunities

Article 31

The Parties shall strengthen their dialogue and cooperation on promoting the International Labour Organisation (ILO) Decent Work Agenda, employment policy, health and safety at work, social dialogue, social protection, social inclusion, gender equality and anti-discrimination, and social rights, and thereby contribute to the promotion of more and better jobs, poverty reduction, enhanced social cohesion, sustainable development and improved quality of life.

Article 32

Cooperation, based on exchange of information and best practices, may cover a selected number of issues to be identified among the following areas:

(a) poverty reduction and the enhancement of social cohesion;

(b) employment policy, aiming at more and better jobs with decent working conditions, including with a view to reducing the informal economy and informal employment;

(c) promoting active labour market measures and efficient employment services to modernise the labour markets and to adapt to labour market needs;

(d) fostering more inclusive labour markets and social safety systems that integrate disadvantaged people, including people with disabilities and people from minority groups;

(e) efficient management of labour migration, aiming at strengthening its positive impact on development;

(f) equal opportunities, aiming at enhancing gender equality and ensuring equal opportunities between women and men, as well as combating discrimination on all grounds;

(g) social policy, aiming at enhancing the level of social protection, including social assistance and social insurance, and modernising social protection systems, in terms of quality, accessibility and financial sustainability;

(h) enhancing the participation of social partners and promoting social dialogue, including through strengthening the capacity of all relevant stakeholders; and

(i) promoting health and safety at work.

Article 33

The Parties shall encourage the involvement of all relevant stakeholders, including civil society organisations and in particular social partners, in policy development and reforms in the Republic of Moldova and in the cooperation between the Parties under this Agreement.

Article 34

The Parties shall aim at enhancing cooperation on employment and social policy matters in all relevant regional, multilateral and international fora and organisations.

Article 35

The Parties shall promote corporate social responsibility and accountability and encourage responsible business practices, such as those promoted by the UN Global Compact and the ILO tripartite declaration of principles concerning multinational enterprises and social policy.

Article 36

A regular dialogue will take place on the issues covered by this Chapter.

Article 37

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex III to this Agreement according to the provisions of that Annex.

CHAPTER 5

Consumer protection

Article 38

The Parties shall cooperate in order to ensure a high level of consumer protection and to achieve compatibility between their systems of consumer protection.

Article 39

In order to achieve those objectives, the cooperation may comprise, when appropriate:

(a) aiming at the approximation of consumer legislation, based on the priorities in Annex IV to this Agreement, while avoiding barriers to trade for ensuring consumers' real choices;

(b) promoting exchange of information on consumer protection systems, including consumer legislation and its enforcement, consumer product safety, including market surveillance, consumer information systems and tools, consumer education, empowerment and consumer redress, and sales and service contracts concluded between traders and consumers;

(c) promoting training activities for administration officials and other consumer interest representatives; and

(d) encouraging the development of independent consumer associations, including non-governmental consumer organisations (NGOs), and contacts between consumer representatives, as well as collaboration between authorities and NGOs in the field of consumer protection.

Article 40

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex IV to this Agreement according to the provisions of that Annex.

CHAPTER 6

Statistics

Article 41

The Parties shall develop and strengthen their cooperation on statistical issues, thereby contributing to the long-term objective of providing timely, internationally comparable and reliable statistical data. It is expected that a sustainable, efficient and professionally independent national statistical system shall produce information relevant for citizens, businesses and decision makers in the EU and in the Republic of Moldova, enabling them to take informed decisions on that basis. The national statistical system should respect the UN Fundamental Principles of Official Statistics, taking into account the EU *acquis* in statistics, including the European Statistics Code of Practice, in order to align the national statistical system with the European norms and standards.

Article 42

Cooperation shall aim at:

(a) further strengthening the capacity of the national statistical system, focusing on the sound legal basis, production of adequate data and metadata, dissemination policy and user- friendliness, taking into account various groups of users, including public and private sectors, the academic community and other users;

(b) progressive alignment of the statistical system of the Republic of Moldova with the European Statistical System;

(c) fine-tuning of data provision to the EU, taking into account the application of relevant international and European methodologies, including classifications;

(d) enhancing the professional and management capacity of the national statistical staff to facilitate the application of EU statistical standards and to contribute to the development of the statistical system of the Republic of Moldova;

(e) exchanging experience between the Parties on the development of statistical know-how; and

(f) promoting total quality management of all statistical production processes and dissemination.

Article 43

The Parties shall cooperate within the framework of the European Statistical System in which Eurostat is the European statistical authority. The cooperation shall include a focus on:

(a) demographic statistics, including censuses, and social statistics;

(b) agricultural statistics, including agricultural censuses and environment statistics;

(c) business statistics, including business registers and use of administrative sources for statistical purposes;

(d) macroeconomic statistics, including national accounts, foreign trade statistics, and foreign direct investment statistics;

(e) energy statistics, including balances;

(f) regional statistics; and

(g) horizontal activities, including statistical classifications, quality management, training, dissemination and use of modern information technologies.

Article 44

The Parties shall, inter alia, exchange information and expertise and shall develop their cooperation, taking into account the already accumulated experience in the reform of the statistical system launched within the framework of various assistance programmes. Efforts shall be directed towards further alignment with the EU *acquis* in statistics, on the basis of the national strategy for the development of the statistical system of the Republic of Moldova, and taking into account the development of the European Statistical System. The emphasis in the statistical data production process shall be the further development of sample surveys and usage of administrative records, while taking into account the need to reduce the response burden. The data shall be relevant for the designing and monitoring of policies in key areas of social and economic life.

Article 45

A regular dialogue shall take place on the issues covered by this Chapter. To the extent possible, the activities undertaken within the European Statistical System, including training, should be open for the participation of the Republic of Moldova.

Article 46

1. The Parties undertake to establish and revise on a periodic basis a programme of gradual approximation of the legislation of the Republic of Moldova to the EU *acquis* in the field of statistics.

2. The EU *acquis* in the field of statistics is set out in the annually updated Statistical Requirements Compendium, which is considered by the Parties as annexed to this Agreement (Annex V).

CHAPTER 7

Management of public finances: budget policy, internal control, financial inspection and external audit

Article 47

Cooperation in the field covered by this Chapter will focus on the implementation of international standards as well as EU good practice in this field, which will contribute to the development of a modern public finance management system in the Republic of Moldova, compatible with basic EU and international principles of transparency, accountability, economy, efficiency and effectiveness.

Article 48

Budget and accounting systems

The Parties shall cooperate in relation to:

(a) improvement and systematisation of regulatory documents on the budgetary, treasury, accounting and reporting systems and their harmonisation on the basis of international standards, respecting also good practice in the EU public sector;

(b) continuous development of multi-annual budget planning and the alignment to EU good practice;

(c) studying the practices of the European countries in inter-budget relations, in order to improve this field in the Republic of Moldova;

(d) fostering approximation of procurement procedures with existing practices in the EU; and

(e) exchange of information, experiences and good practice, including through personnel exchange and joint training in this field.

Article 49

Internal control, financial inspection and external audit

The Parties shall also cooperate in relation to:

(a) further improvement of the internal control system (including a functionally independent internal audit function) in state and local authorities by means of harmonisation with generally accepted international standards and methodologies and EU good practice;

(b) the development of an adequate financial inspection system that will complement but not duplicate the internal audit function and will ensure adequate control coverage of government income and expenditure during a transitional period and thereafter;

(c) effective cooperation between the actors involved in financial management and control, audit and inspection with the actors for budget, treasury and accounting to foster the development of governance;

(d) strengthening the competences of the Central Harmonisation Unit for the Public Internal Financial Control (PIFC);

(e) the implementation of internationally accepted external audit standards by the International Organisation of Supreme Audit Institutions (INTOSAI); and

(f) exchange of information, experiences and good practice through, inter alia, personnel exchange and joint training in this field.

Article 50

Fight against fraud and corruption

The Parties shall also cooperate in relation to:

(a) exchanging information, experience and good practice;

(b) improving methods to combat and prevent fraud and corruption in the areas covered by this Chapter, including co-operation between relevant administrative bodies; and

(c) ensuring effective cooperation with the relevant EU institutions and bodies, in the case of on-the-spot checks, inspections and audits related to the management and control of EU funds, according to relevant rules and procedures.

Article 51

A regular dialogue will take place on the issues covered by this Chapter.

CHAPTER 8

Taxation

Article 52

The Parties shall cooperate to enhance good governance in the tax area, with a view to the further improvement of economic relations, trade, investment and fair competition.

Article 53

With reference to Article 52 of this Agreement, the Parties recognise and commit themselves to implement the principles of good governance in the tax area, i.e. the principles of transparency, exchange of information and fair tax competition, as subscribed to by Member States at EU level. To that effect, without prejudice to EU and Member State competences, the Parties will improve international cooperation in the tax area, facilitate the collection of legitimate tax revenues, and develop measures for the effective implementation of the above mentioned principles.

Article 54

The Parties shall enhance and strengthen their cooperation aimed at the improvement and development of the Republic of Moldova's tax system and administration, including the enhancement of collection and control capacity, with a specific focus on Value Added Tax (VAT) refund procedures, to avoid accumulation of arrears, ensure effective tax collection and reinforce the fight against tax fraud and tax avoidance. The Parties shall strive to enhance cooperation and sharing of experiences in combating tax fraud, and in particular carousel fraud.

Article 55

The Parties shall develop their cooperation and harmonise policies in counteracting and fighting fraud and the smuggling of excisable products. That cooperation will include, inter alia, the gradual approximation of excise rates on tobacco products, as far as possible, taking into account the constraints of the regional context, including through a dialogue at regional level and in line with the World Health Organisation Framework Convention on Tobacco Control of 2003 (WHO FCTC). To that end, the Parties will strive to strengthen their cooperation within the regional context.

Article 56

A regular dialogue will take place on the issues covered by this Chapter.

Article 57

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex VI to this Agreement according to the provisions of that Annex.

CHAPTER 9

Financial services

Article 58

Recognising the relevance of an effective set of rules and practices in the areas of financial services to establish a fully-functioning market economy and in order to foster trade exchanges among the Parties, the Parties agree to cooperate in the area of financial services in line with the following objectives:

(a) supporting the process of adapting financial services regulation to the needs of an open market economy;

(b) ensuring effective and adequate protection of investors and other consumers of financial services;

(c) ensuring the stability and integrity of the financial system of the Republic of Moldova in its entirety;

(d) promoting cooperation between different actors of the financial system, including regulators and supervisors; and

(e) ensuring independent and effective supervision.

Article 59

1. The Parties shall encourage cooperation between relevant regulatory and supervisory authorities, including information exchange, sharing of expertise on financial markets and other such measures.

2. Special attention shall be paid to the development of administrative capacity of such authorities, including through personnel exchange and joint training.

Article 60

A regular dialogue will take place on the issues covered by this Chapter.

Article 61

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex XXVIII-A to this Agreement, according to the provisions of that Annex.

CHAPTER 10

Industrial and enterprise policy

Article 62

The Parties shall develop and strengthen their cooperation on industrial and enterprise policy, thereby improving the business environment for all economic operators, but with particular emphasis on small and medium-sized enterprises (SMEs). Enhanced cooperation should improve the administrative and regulatory framework for both EU businesses and businesses of the Republic of Moldova operating in the EU and in the Republic of Moldova, and should be based on the EU's SME and industrial policies, taking into account internationally recognised principles and practices in this field.

Article 63

To those ends, the Parties shall cooperate in order to:

(a) implement strategies for SME development, based on the principles of the Small Business Act for Europe, and monitoring of the implementation process through regular reporting and dialogue. That cooperation will also include a focus on micro enterprises, which are extremely important for both the economies of the EU and of the Republic of Moldova;

(b) create better framework conditions, via the exchange of information and good practice, thereby contributing to improving competitiveness. That cooperation will include the management of structural changes (restructuring), the development of public-private partnerships, and environmental and energy issues, such as energy efficiency and cleaner production;

(c) simplify and rationalise regulations and regulatory practice, with specific focus on exchange of good practice on regulatory techniques, including the EU's principles;

(d) encourage the development of innovation policy, via the exchange of information and good practice regarding the commercialisation of research and development (including support instruments for technology-based business start-ups), cluster development and access to finance;

(e) encourage greater contacts between EU businesses and businesses of the Republic of Moldova and between those businesses and the authorities of the EU and the Republic of Moldova;

(f) support the establishment of export promotion activities in the Republic of Moldova; and

(g) facilitate the modernisation and restructuring of the industry of the Republic of Moldova in certain sectors.

Article 64

A regular dialogue will take place on the issues covered by this Chapter. That will also involve representatives of EU businesses and businesses of the Republic of Moldova.

CHAPTER 11

Mining and raw materials

Article 65

The Parties shall develop and strengthen cooperation covering mining industries and trade in raw materials, with the objectives of promoting mutual understanding, improvement of the business environment, information exchange and cooperation on non-energy issues, relating in particular to the mining of metallic ores and industrial minerals.

Article 66

To that end, the Parties shall cooperate in the following areas:

(a) exchange of information by the Parties on developments in their mining and raw material sectors;

(b) exchange of information on matters related to trade in raw materials, with the aim of promoting bilateral exchanges;

(c) exchange of information and best practices in relation to sustainable development aspects of the mining industries; and

(d) exchange of information and best practices in relation to training, skills and safety in the mining industries.

CHAPTER 12

Agriculture and rural development

Article 67

The Parties shall cooperate to promote agricultural and rural development, in particular through progressive convergence of policies and legislation.

Article 68

Cooperation between the Parties in the field of agriculture and rural development shall cover, inter alia, the following areas:

(a) facilitating the mutual understanding of agricultural and rural development policies;

(b) enhancing the administrative capacities at central and local level in the planning, evaluation and implementation of policies in accordance with EU regulations and best practices;

(c) promoting the modernisation and the sustainability of agricultural production;

(d) sharing knowledge and best practices of rural development policies to promote economic well-being for rural communities;

(e) improving the competitiveness of the agricultural sector and the efficiency and transparency of the markets;

(f) promoting quality policies and their control mechanisms, in particular geographical indications and organic farming;

(g) disseminating knowledge and promoting extension services to agricultural producers; and

(h) enhancing the harmonisation of issues dealt within the framework of international organisations of which the Parties are members.

Article 69

A regular dialogue will take place on the issues covered by this Chapter.

Article 70

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex VII to this Agreement according to the provisions of that Annex.

CHAPTER 13

Fisheries & maritime policy

Section 1

Fisheries policy

Article 71

The Parties shall develop and strengthen their cooperation on issues covering fisheries and maritime governance, thereby developing closer bilateral and multilateral cooperation in the fisheries sector. The Parties shall also encourage an integrated approach to fisheries issues and promote sustainable fisheries development.

Article 72

The Parties shall take joint actions, exchange information and provide support to each other in order to promote:

(a) good governance and best practices in fisheries management with a view to ensuring conservation and management of fish stocks in a sustainable manner and based on the ecosystem approach;

(b) responsible fishing and fisheries management consistent with the principles of sustainable development, so as to conserve fish stocks and ecosystems in a healthy state; and

(c) cooperation through appropriate regional organisations responsible for management and conservation of living aquatic resources.

Article 73

The Parties will support initiatives, such as mutual exchange of experience and providing support, in order to ensure the implementation of a sustainable fisheries policy, including:

(a) management of fisheries and aquaculture resources;

(b) inspection and control of fishing activities, as well as development of corresponding administrative and judicial structures capable of applying appropriate measures;

(c) collection of catch, landing, biological and economic data;

(d) improving the efficiency of the markets, in particular by promoting producer organisations, providing information to consumers, and through marketing standards and traceability; and

(e) development of a structural policy for the fisheries sector, with particular attention to the sustainable development of fisheries areas which are defined as an area with lake shore or including ponds or a river estuary and with a significant level of employment in the fisheries sector.

Section 2

Maritime policy

Article 74

Taking into account their cooperation in the spheres of fisheries, transport, environment and other sea-related policies, the Parties shall also develop cooperation and mutual support, when appropriate, on maritime issues, in particular by actively supporting an integrated approach to maritime affairs and good governance in the Black Sea in the relevant international maritime fora.

Article 75

A regular dialogue will take place on the issues covered by this Chapter.

CHAPTER 14

Energy cooperation

Article 76

The Parties agree to continue their current cooperation on energy matters on the basis of the principles of partnership, mutual interest, transparency and predictability. The cooperation should aim at energy efficiency, market integration and regulatory convergence in the energy sector, taking into account the need to ensure competitiveness and access to secure, environmentally sustainable and affordable energy, including through the provisions of the Energy Community Treaty.

Article 77

The cooperation shall cover, among others, the following areas and objectives:

(a) energy strategies and policies;

(b) the development of competitive, transparent and non-discriminatory energy markets in accordance with EU standards, including obligations under the Energy Community Treaty, through regulatory reforms and through the participation in regional energy cooperation;

(c) development of an attractive and stable investment climate by addressing institutional, legal, fiscal and other conditions;

(d) energy infrastructure, including projects of common interest, in order to diversify energy sources, suppliers and transportation routes in an efficient economic and environmentally sound manner, inter alia, through the facilitation of loan and grant funded investments;

(e) enhancement and strengthening of long-term stability and security of energy supply and trade, transit and transport on a mutually beneficial and non-discriminatory basis in accordance with EU and international rules;

(f) promotion of energy efficiency and energy saving, inter alia, concerning energy performance of buildings, and the development and support of renewable energies in an economic and environmentally sound manner;

(g) reduction of emissions of greenhouse gases, including through energy efficiency and renewable energy projects;

(h) scientific and technical cooperation and exchange of information for the development and improvement of technologies in energy production, transportation, supply and end use, with particular attention to energy efficient and environmentally friendly technologies; and

(i) cooperation may be pursued in the areas of nuclear safety, security and radiation protection, in accordance with the principles and standards of the International Atomic Energy Agency (IAEA) and the relevant international treaties and conventions concluded within the framework of the IAEA, as well as in accordance with the Treaty establishing the European Atomic Energy Community, where applicable.

Article 78

A regular dialogue will take place on the issues covered by this Chapter.

Article 79

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex VIII to this Agreement according to the provisions of that Annex.

CHAPTER 15

Transport

Article 80

The Parties shall:

(a) expand and strengthen their transport cooperation in order to contribute to the development of sustainable transport systems;

(b) promote efficient, safe and secure transport operations as well as intermodality and interoperability of transport systems; and

(c) endeavour to enhance the main transport links between their territories.

Article 81

That cooperation shall cover, among others, the following areas:

(a) development of a sustainable national transport policy covering all modes of transport, particularly with a view to ensuring efficient, safe and secure transport systems and promoting the integration of considerations in the sphere of transport into other policy areas;

(b) development of sector strategies in light of the national transport policy (including legal requirements for the upgrading of technical equipment and transport fleets to meet highest international standards) for road, rail, inland waterway, aviation, and intermodality, including timetables and milestones for implementation, administrative responsibilities as well as financing plans;

(c) improvement of the infrastructure policy in order to better identify and evaluate infrastructure projects in the various modes of transport;

(d) development of funding strategies focusing on maintenance, capacity constraints and missing link infrastructure as well as activating and promoting the participation of the private sector in transport projects;

(e) accession to relevant international transport organisations and agreements, including procedures for ensuring strict implementation and effective enforcement of international transport agreements and conventions;

(f) scientific and technical cooperation and exchange of information for the development and improvement of technologies in transport, such as intelligent transport systems; and

(g) promotion of the use of intelligent transport systems and information technology in managing and operating all modes of transport as well as supporting intermodality and cooperation in the use of space systems and commercial applications facilitating transport.

Article 82

1. Cooperation shall also aim at improving the movement of passengers and goods, increasing fluidity of transport flows between the Republic of Moldova, the EU and third countries in the region, by removing administrative, technical and other obstacles, improving transport networks and upgrading the infrastructure in particular on the main axes connecting the Parties. That cooperation shall include actions to facilitate border crossings.

2. Cooperation shall include information exchange and joint activities:

(a) at regional level, in particular taking into consideration and integrating progress achieved under various regional transport cooperation arrangements such as the Transport Corridor Europe-Caucasus-Asia (TRACECA), transport cooperation within the framework of the Eastern Partnership and other transport initiatives; and

(b) at international level, including with regard to international transport organisations and international agreements and conventions ratified by the Parties, and in the framework of the various transport agencies of the EU.

Article 83

A regular dialogue will take place on the issues covered by this Chapter.

Article 84

The Parties will cooperate on improving transport connections according to the provisions referred to in Annex IX to this Agreement.

Article 85

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex X and in Annex XXVIII-D to this Agreement, according to the provisions of those Annexes.

CHAPTER 16

Environment

Article 86

The Parties shall develop and strengthen their cooperation on environmental issues, thereby contributing to the long-term objective of sustainable development and greening the economy. It is expected that enhanced environment protection will bring benefits to citizens and businesses in the EU and in the Republic of Moldova, including through improved public health, preserved natural resources, increased economic and environmental efficiency, integration of the environment into other policy areas, as well as the use of modern, cleaner technologies contributing to more sustainable production patterns. Cooperation shall be conducted considering the interests of the Parties on the basis of equality and mutual benefit, as well as taking into account the interdependence existing between the Parties in the field of environment protection, and multilateral agreements in that field.

Article 87

Cooperation shall aim at preserving, protecting, improving, and rehabilitating the quality of the environment, protecting human health, sustainable utilisation of natural resources and promoting measures at international level to deal with regional or global environmental problems, including in the areas of:

(a) environmental governance and horizontal issues, including Environmental Impact Assessment and Strategic Environmental Assessment, education and training, environmental liability, combating environmental crime, transboundary cooperation, access to environmental information, decision-making processes and effective administrative and judicial review procedures;

(b) air quality;

(c) water quality and resource management, including flood risk management, water scarcity and droughts;

(d) waste and resource management and shipment of waste;

(e) nature protection, including conservation and protection of biological and landscape diversity;

(f) industrial pollution and industrial hazards;

(g) chemicals;

(h) noise pollution;

(i) soil protection;

(j) urban and rural environment;

(k) environmental fees and taxes;

(l) monitoring and environmental information systems;

(m) inspection and enforcement; and

(n) eco-innovation including best available technologies.

Article 88

The Parties shall, inter alia:

(a) exchange information and expertise;

(b) implement joint research activities and exchange of information on cleaner technologies;

(c) plan the handling of industrial hazards and accidents;

(d) implement joint activities at regional and international level, including with regard to multilateral environment agreements ratified by the Parties, and joint activities in the framework of relevant agencies, as appropriate.

The Parties shall pay special attention to transboundary issues and regional cooperation.

Article 89

The cooperation shall cover, inter alia, the following objectives:

(a) development of an overall strategy on the environment, covering planned institutional reforms (with timetables) for ensuring implementation and enforcement of environmental legislation; division of competence for the environmental administration at national, regional and municipal levels; procedures for decision making and the implementation of decisions; procedures for the promotion of the integration of the environment into other policy areas; promotion of green economy measures and eco-innovation, identification of the necessary human and financial resources and a review mechanism; and

(b) development of sector strategies on air quality; water quality and resource management; waste and resource management; biodiversity and nature protection; industrial pollution and industrial hazards and chemicals, noise pollution, soil protection, urban and rural environment, eco-innovation including clearly defined timetables and milestones for implementation, administrative responsibilities, as well as financing strategies for investments for infrastructure and technology.

Article 90

A regular dialogue will take place on the issues covered by this Chapter.

Article 91

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex XI to this Agreement according to the provisions of that Annex.

CHAPTER 17

Climate action

Article 92

The Parties shall develop and strengthen their cooperation to combat climate change. Cooperation shall be conducted considering the interests of the Parties on the basis of equality and mutual benefit and taking into account the interdependence existing between bilateral and multilateral commitments in this field.

Article 93

Cooperation shall promote measures at domestic, regional and international level, including in the areas of:

(a) mitigation of climate change;

(b) adaptation to climate change;

(c) carbon trading;

(d) research, development, demonstration, deployment and diffusion of safe and sustainable low-carbon and adaptation technologies;

(e) mainstreaming of climate considerations into sector policies; and

(f) awareness raising, education and training.

Article 94

The Parties shall, inter alia:

(a) exchange information and expertise;

(b) implement joint research activities and exchanges of information on cleaner technologies;

(c) implement joint activities at regional and international level, including with regard to multilateral environment agreements ratified by the Parties, and joint activities in the framework of relevant agencies, as appropriate.

The Parties shall pay special attention to transboundary issues and regional cooperation.

Article 95

The cooperation shall cover, among others, the development and implementation of:

(a) an overall climate strategy and action plan for the long-term mitigation of and adaptation to climate change;

(b) vulnerability and adaptation assessments;

(c) a National Strategy for Adaptation to Climate Change;

(d) a low-carbon development strategy;

(e) long-term measures to reduce emissions of greenhouse gases;

(f) measures to prepare for carbon trading;

(g) measures to promote technology transfer on the basis of a technology needs assessment;

(h) measures to mainstream climate considerations into sector policies; and

(i) measures related to ozone-depleting substances.

Article 96

A regular dialogue will take place on the issues covered by this Chapter.

Article 97

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex XII to this Agreement according to the provisions of that Annex.

CHAPTER 18

Information society

Article 98

The Parties shall strengthen cooperation on the development of the Information Society to benefit citizens and businesses through the widespread availability of Information and Communication Technology (ICT) and through better quality of services at affordable prices. That cooperation should aim at facilitating access to electronic communications markets, encouraging competition and investment in the sector, and promoting the development of public services online.

Article 99

Cooperation may cover the following subjects:

(a) exchange of information and best practices on the implementation of national Information Society strategies, including, inter alia, initiatives aiming at promoting broadband access, improving network security and developing public services online;

(b) exchange of information, best practices and experience to promote the development of a comprehensive regulatory framework for electronic communications, and in particular to strengthen the administrative capacity of the national administration in Information and Communication Technologies, as well as of the independent regulator, to foster a better use of spectrum resources and to promote interoperability of networks in the Republic of Moldova and with the EU;

(c) encouraging and promoting the implementation of ICT tools for a better governance, e-learning and research, public healthcare, digitisation of cultural heritage, development of e — content and electronic commerce; and

(d) enhancing the level of security of personal data and the protection of privacy in electronic communications.

Article 100

The Parties shall promote cooperation between EU regulators and the national regulatory authorities of the Republic of Moldova in the field of electronic communications. The Parties shall also consider cooperation in other relevant areas, including through regional initiatives.

Article 101

A regular dialogue will take place on the issues covered by this Chapter.

Article 102

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex XXVIII-B to this Agreement, according to the provisions of that Annex.

CHAPTER 19

Tourism

Article 103

The Parties shall cooperate in the field of tourism, with the aim of strengthening the development of a competitive and sustainable tourism industry as a generator of economic growth, empowerment, employment and foreign exchange.

Article 104

Cooperation at bilateral, regional and European level would be based on the following principles:

(a) respect for the integrity and interests of local communities, particularly in rural areas;

(b) the importance of cultural heritage; and

(c) positive interaction between tourism and environmental preservation.

Article 105

Cooperation shall focus on the following topics:

(a) exchange of information, best practices, experience and 'know-how' transfer, including on innovative technologies;

(b) establishment of a strategic partnership between public, private and community interests in order to ensure the sustainable development of tourism;

(c) promotion and development of tourism products and markets, infrastructure, human resources and institutional structures as well as the identification and elimination of barriers to travel services;

(d) development and implementation of efficient policies and strategies including appropriate legal, administrative and financial aspects;

(e) tourism training and capacity building in order to improve service standards; and

(f) development and promotion of community-based tourism.

Article 106

A regular dialogue will take place on the issues covered by this Chapter.

CHAPTER 20

Regional development, cross-border and regional level cooperation

Article 107

1. The Parties shall promote mutual understanding and bilateral cooperation in the field of regional policy, including methods of formulation and implementation of regional policies, multi-level governance and partnership, with special emphasis on the development of disadvantaged areas and territorial cooperation, with the objective of establishing channels of communication and enhancing exchange of information and experience between national, regional and local authorities, socioeconomic actors and civil society.

2. In particular the Parties shall cooperate with a view to aligning the practice of the Republic of Moldova with the following principles:

(a) decentralisation of the decision-making process, from the central level to the level of regional communities;

(b) consolidation of the partnership between all the parties involved in regional development; and

(c) co-financing through the financial contribution of the Parties involved in the implementation of regional development programmes and projects.

Article 108

1. The Parties shall support and strengthen the involvement of local and regional level authorities in cross-border and regional cooperation and the related management structures, enhance cooperation through the establishment of an enabling legislative framework, sustain and develop capacity building measures and promote the strengthening of cross-border and regional economic and business networks.

2. The Parties will cooperate to consolidate the institutional and operational capacities of national and regional institutions in the fields of regional development and land use planning by, inter alia:

(a) improving the mechanism of vertical and horizontal interaction of central and local public administration in the process of development and implementation of regional policies;

(b) developing the capacity of local public authorities to promote cross-border cooperation in compliance with EU regulations and practices; and

(c) sharing knowledge, information and best practices on regional development policies to promote economic well-being for local communities and the uniform development of the regions.

Article 109

1. The Parties shall strengthen and encourage development of cross-border and regional elements of, inter alia, transport, energy, communication networks, culture, education, tourism, health and other areas covered by this Agreement which have a bearing on cross-border and regional cooperation.

2. The Parties shall intensify cooperation between their regions in the form of transnational and cross-border programmes, encouraging the participation of regions of the Republic of Moldova in European regional structures and organisations and promoting their economic and institutional development by implementing projects of common interest.

Those activities will take place in the context of:

(a) continuing territorial cooperation with European regions, including through trans-national and cross-border co-operation programmes;

(b) cooperation within the framework of the Eastern Partnership, with EU bodies, including the Committee of the Regions, and participation in various European regional projects and initiatives; and

(c) cooperation with, inter alia, the European Economic and Social Committee, the European Association of Development Agencies (EURADA) and the European Spatial Planning Observation Network (ESPON).

Article 110

1. The Parties shall intensify and ensure better coordination and cooperation between the countries and regions within the EU Strategy for the Danube Region, focusing, inter alia, on improving transport and energy connections, environment, economic and social development and security which will contribute to faster road and rail transportation, cheaper and more secure energy, a better environment with cleaner water, protected biodiversity, and more efficient cross-border flood prevention.

2. The Parties shall increase the cross-border cooperation aiming at restoring the navigation on Prut river which will lead to flood prevention in the basin of the river, improving the water quality and agricultural irrigation, intensifying economic activities, promoting tourism and cultural activities and contributing to capacity building.

Article 111

The Parties shall facilitate the movement of citizens of the EU and of the Republic of Moldova who are called upon to cross the border on a frequent basis and over short distances.

Article 112

A regular dialogue will take place on the issues covered by this Chapter.

CHAPTER 21

Public health

Article 113

The Parties agree to develop their cooperation in the field of public health, with a view to raising the level of public health safety and protection of human health as a precondition for sustainable development and economic growth.

Article 114

The cooperation shall cover, in particular, the following areas:

(a) strengthening of the public health system of the Republic of Moldova, in particular through implementing health sector reform, ensuring high-quality primary healthcare, and improving health governance and healthcare financing;

(b) epidemiological surveillance and control of communicable diseases, such as HIV/AIDS, viral hepatitis and tuberculosis, as well as increased preparedness for public health threats and emergencies;

(c) prevention and control of non-communicable diseases, mainly through exchange of information and best practices, promoting healthy lifestyles and addressing major health determinants, such as nutrition and addiction to alcohol, drugs and tobacco;

(d) quality and safety of substances of human origin;

(e) health information and knowledge; and

(f) full and timely implementation of international health agreements, in particular the International Health Regulations and the World Health Organisation Framework Convention on Tobacco Control of 2003.

Article 115

The cooperation shall enable:

(a) the progressive integration of the Republic of Moldova into the EU's health related networks; and

(b) the progressive enhancement of interaction between the Republic of Moldova and the European Centre for Disease Prevention and Control.

Article 116

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex XIII to this Agreement according to the provisions of that Annex.

CHAPTER 22

Civil protection

Article 117

The Parties shall develop and strengthen their cooperation on natural and man-made disasters. Cooperation shall be conducted considering the interests of the Parties on the basis of equality and mutual benefit, as well as taking into account the interdependence existing between the Parties and multilateral activities in the field of civil protection.

Article 118

Cooperation shall aim at improving the prevention of, preparation for and response to natural and man-made disasters.

Article 119

The Parties shall, inter alia, exchange information and expertise and implement joint activities at national, regional and international level. Cooperation shall include the implementation of specific agreements and administrative arrangements in this field, concluded between the Parties according to the respective powers and competences of the EU and its Member States and in accordance with the legal procedures of the Parties.

Article 120

The cooperation shall cover, amongst others, the following objectives:

(a) facilitating mutual assistance in case of emergencies;

(b) exchanging on a 24-hour basis early warnings and updated information on large scale emergencies affecting the EU or the Republic of Moldova, including requests for and offers of assistance;

(c) assessment of the environmental impact of disasters;

(d) inviting experts to specific technical workshops and symposia on civil protection issues;

(e) inviting, on a case by case basis, observers to specific exercises and trainings organised by the EU and/or the Republic of Moldova; and

(f) strengthening cooperation on the most effective use of available civil protection capabilities.

Article 121

A regular dialogue will take place on the issues covered by this Chapter.

CHAPTER 23

Cooperation on education, training, multilingualism, youth and sport

Article 122

The Parties shall cooperate to promote lifelong learning and encourage cooperation and transparency at all levels of education and training, with a special focus on higher education.

Article 123

That cooperation shall focus, inter alia, on the following areas:

(a) promoting lifelong learning, which is a key to growth and jobs and can allow citizens to participate fully in society;

(b) modernising education and training systems, enhancing quality, relevance and access;

(c) promoting convergence in higher education, deriving from the Bologna process and the EU higher education modernisation agenda;

(d) reinforcing international academic cooperation and participation in EU cooperation programmes, increasing student and teacher mobility;

(e) establishing a national qualification framework to improve the transparency and recognition of qualifications and competences; and

(f) promoting the aims set in the Copenhagen process on enhanced European cooperation in vocational education and training.

Article 124

The Parties shall promote cooperation and exchanges in areas of mutual interest, such as linguistic diversity and lifelong language learning, through an exchange of information and best practices.

Article 125

The Parties agree to cooperate in the field of youth to:

(a) reinforce cooperation and exchanges in the field of youth policy and non-formal education for young people and youth workers;

(b) facilitate active participation of all young people in society;

(c) support young people and youth workers' mobility as a means to promote intercultural dialogue and the acquisition of knowledge, skills and competences outside the formal educational systems, including through volunteering; and

(d) promote cooperation between youth organisations to support civil society.

Article 126

The Parties shall promote cooperation in the field of sport and physical activity through the exchange of information and good practices in order to promote a healthy lifestyle, the social and educational values of sport and good governance in sport within the societies of the EU and the Republic of Moldova.

CHAPTER 24

Cooperation in research, technological development and demonstration

Article 127

The Parties shall promote cooperation in all areas of civil scientific research and technological development and demonstration (RTD) on the basis of mutual benefit and subject to appropriate and effective protection of intellectual property rights.

Article 128

Cooperation in RTD shall cover:

(a) policy dialogue and the exchange of scientific and technological information;

(b) facilitating adequate access to the respective programmes of the Parties;

(c) increasing research capacity and the participation of research entities of the Republic of Moldova in the research framework programmes of the EU;

(d) the promotion of joint projects for research in all areas of RTD;

(e) training activities and mobility programmes for scientists, researchers and other research staff engaged in RTD activities on both sides;

(f) facilitating, within the framework of applicable legislation, the free movement of research workers participating in the activities covered by this Agreement and the cross-border movement of goods intended for use in such activities; and

(g) other forms of cooperation in RTD (including through regional approaches and initiatives), on the basis of the Parties' mutual agreement.

Article 129

In carrying out cooperation activities in RTD, synergies should be sought with activities funded by the Science and Technology Centre (STCU) and other activities carried out within the framework of financial cooperation between the EU and the Republic of Moldova.

CHAPTER 25

Cooperation on culture, audio-visual policy and media

Article 130

The Parties will promote cultural cooperation in accordance with the principles enshrined in the United Nations Educational, Scientific and Cultural Organisation (Unesco) Convention on the Protection and Promotion of the Diversity of Cultural Expressions of 2005. The Parties will seek a regular policy dialogue in areas of mutual interest, including the development of cultural industries in the EU and the Republic of Moldova. Cooperation between the Parties will foster intercultural dialogue, including through the participation of the culture sector and civil society of the EU and of the Republic of Moldova.

Article 131

1. The Parties shall develop a regular dialogue and cooperate to promote the audiovisual industry in Europe and encourage co-production in the fields of cinema and television.

2. Cooperation could include, inter alia, the issue of the training of journalists and other media professionals, as well as support to the media, so as to reinforce their independence, professionalism and links with EU media in compliance with European standards, including standards of the Council of Europe and the 2005 Unesco Convention on the Protection and Promotion of the Diversity of Cultural Expressions.

Article 132

The Parties shall concentrate their cooperation on a number of fields:

(a) cultural cooperation and cultural exchanges, as well as the mobility of art and artists;

(b) intercultural dialogue;

(c) policy dialogue on cultural policy and audiovisual policy;

(d) cooperation in international fora such as Unesco and the Council of Europe, in order to, inter alia, develop cultural diversity and preserve and valorise cultural and historical heritage; and

(e) cooperation in the field of media.

Article 133

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex XIV to this Agreement according to the provisions of that Annex.

CHAPTER 26

Civil society cooperation

Article 134

The Parties shall establish a dialogue on civil society cooperation, with the following objectives:

(a) to strengthen contacts and the exchange of information and experience between all sectors of civil society in the EU and in the Republic of Moldova;

(b) to ensure a better knowledge and understanding of the Republic of Moldova, including its history and culture, in the EU and in particular among civil society organisations based in the Member States, thus allowing for a better awareness of the opportunities and challenges for future relations; and

(c) to ensure, reciprocally, a better knowledge and understanding of the EU in the Republic of Moldova and in particular among civil society organisations of the Republic of Moldova, with a non-exclusive focus on the values on which the EU is founded, its policies and its functioning.

Article 135

The Parties shall promote dialogue and cooperation between civil society stakeholders from both sides as an integral part of the relations between the EU and the Republic of Moldova. The aims of such a dialogue and such cooperation are:

(a) to ensure the involvement of civil society in EU-Republic of Moldova relations, in particular in the implementation of this Agreement;

(b) to enhance civil society participation in the public decision-making process, particularly by establishing an open, transparent and regular dialogue between the public institutions and representative associations and civil society;

(c) to facilitate a process of institution-building and consolidation of civil society organisations in various ways, including advocacy support, informal and formal networking, mutual visits and workshops, in particular with a view to improving the legal framework for civil society; and

(d) to enable civil society representatives from each side to become acquainted with the processes of consultation and dialogue between civil and social partners on the other side, in particular with a view to further integrating civil society in the public policy-making process in the Republic of Moldova.

Article 136

A regular dialogue will take place between the Parties on the issues covered by this Chapter.

CHAPTER 27

Cooperation in the protection and promotion of the rights of the child

Article 137

The Parties agree to cooperate in ensuring the promotion of the rights of the child according to international laws and standards, in particular the United Nations Convention on the Rights of the Child of 1989, taking into account the priorities identified in the specific context of the Republic of Moldova, in particular for vulnerable groups.

Article 138

Such cooperation shall include, in particular:

(a) the prevention and combating of all forms of exploitation (including child labour), abuse, negligence and violence against children, including by developing and strengthening the legal and institutional framework as well as through awareness-raising campaigns in that domain;

(b) the improvement of the system of identification and assistance of children in vulnerable situations, including increased participation by children in decision-making processes and the implementation of efficient mechanisms to handle individual complaints made by children;

(c) exchange of information and best practices on the alleviation of poverty among children, including on measures to focus social policies on children's wellbeing, and to promote and facilitate children's access to education;

(d) the implementation of measures aimed at promoting children's rights within the family and institutions, and strengthening the capacity of parents and carers in order to ensure child development; and

(e) accession to, ratification and implementation of the relevant international documents, including those developed within the United Nations, the Council of Europe and the Hague Conference on Private International Law, with the purpose of promoting and protecting of children's rights in line with the highest standards in the field.

Article 139

A regular dialogue will take place on the issues covered by this Chapter.

CHAPTER 28

Participation in Union agencies and programmes

Article 140

The Republic of Moldova shall be allowed to participate in all agencies of the Union open to the participation of the Republic of Moldova in accordance with the relevant provisions establishing those agencies. The Republic of Moldova shall enter into separate agreements with the EU to enable its participation in each such agency, including the amount of financial contribution.

Article 141

The Republic of Moldova shall be allowed to participate in all current and future programmes of the Union open to the participation of the Republic of Moldova in accordance with the relevant provisions establishing those programmes. The participation of the Republic of Moldova in the programmes of the Union shall be in accordance with the provisions laid down in Protocol I to this Agreement on a Framework Agreement between the European Union and the Republic of Moldova on the General Principles for the Participation of the Republic of Moldova in Union Programmes.

Article 142

The Parties will conduct a regular dialogue on the participation of the Republic of Moldova in Union programmes and agencies. In particular, the EU shall inform the Republic of Moldova in the case of establishment of new Union agencies and programmes, as well as regarding changes in terms of participation in Union programmes and agencies, referred to in Articles 140 and 141 of this Agreement.

TITLE V

TRADE AND TRADE-RELATED MATTERS

CHAPTER 1

National treatment and market access for goods

Section 1

Common provisions

Article 143

Objective

The Parties shall progressively establish a free trade area over a transitional period of a maximum of 10 years starting from the entry into force of this Agreement, in accordance with the provisions of this Agreement and in accordance with Article XXIV of the General Agreement on Tariffs and Trade 1994 (GATT 1994).

Article 144

Scope and coverage

1. The provisions of this Chapter shall apply to trade in goods ([1]) between the Parties.

2. For the purposes of this Chapter, 'originating' means qualifying under the rules of origin set out in Protocol II to this Agreement.

Section 2

Elimination of customs duties, fees and other charges

Article 145

Definition of customs duties

For the purposes of this Chapter, a 'customs duty' includes any duty or charge of any kind imposed on, or in connection with, the import or export of a good, including any form of surtax or surcharge imposed on, or in connection with, such import or export. A 'customs duty' does not include any of the following:

(a) a charge equivalent to an internal tax imposed in accordance with Article 152 of this Agreement;

(b) duties imposed in accordance with Chapter 2 (Trade Remedies) of Title V (Trade and Trade-related Matters) of this Agreement; or

(c) fees or other charges imposed in accordance with Article 151 of this Agreement.

Article 146

Classification of goods

The classification of goods in trade between the Parties shall be that set out in accordance with the Harmonised Commodity Description and Coding System of 1983 (HS) in the Republic of Moldova's tariff nomenclature based on HS 2007 and the Union's tariff nomenclature based on HS 2012 and in subsequent amendments to those nomenclatures.

Article 147

Elimination of customs duties on imports

1. Each Party shall reduce or eliminate customs duties on goods originating in the other Party in accordance with Annex XV to this Agreement.

2. For each good the base rate of customs duties to which the successive reductions and eliminations are to be applied under paragraph 1 of this Article are specified in Annex XV to this Agreement.

3. If, at any moment following the date of entry into force of this Agreement, a Party reduces its applied most-favoured-nation (MFN) customs duty rate, such duty rate shall apply as base rate if and for as long as it is lower than the customs duty rate calculated in accordance with Annex XV to this Agreement.

4. After the entry into force of this Agreement, the Parties may agree to consider accelerating and broadening the scope of the elimination of customs duties on trade between the Parties. A decision of the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, on the acceleration or elimination of a customs duty on a good shall supersede any duty rate or staging category determined pursuant to Annex XV to this Agreement.

5. During the third year after the entry into force of this Agreement, the Parties shall assess the situation, taking account of the pattern of trade in agricultural products between the Parties, the particular sensitivities of such products and the development of agricultural policy on both sides.

6. The Parties shall examine, in the Association Committee in Trade configuration, on an appropriate reciprocal basis, the opportunities for granting each other further concessions with a view to improving liberalisation of trade in agricultural products, in particular those subject to tariff-rate quotas (TRQs).

([1]) For the purposes of this Agreement, 'goods' means products as understood in GATT 1994 unless otherwise provided in this Agreement.

Article 148

Anti-circumvention mechanism for agricultural products and processed agricultural products

1. The products listed in Annex XV-C to this Agreement are subject to the anti-circumvention mechanism. The average annual volume of imports from the Republic of Moldova into the Union for each category of those products is provided in Annex XV-C to this Agreement.

2. When the volume of imports of one or more categories of products referred to in paragraph 1 of this Article reaches 70 % of the volume indicated in Annex XV-C in any given year starting on 1 January, the Union shall notify the Republic of Moldova about the volume of imports of the product(s) concerned. Following that notification and within 14 calendar days from the date on which the volume of imports of one or more categories of products referred to in paragraph 1 of this Article reaches 80 % of the volume indicated in Annex XV-C to this Agreement, the Republic of Moldova shall provide the Union with a sound justification for the increase of imports. If those imports reach 100 % of the volume indicated in Annex XV-C to this Agreement, and in the absence of a sound justification by the Republic of Moldova, the Union may temporarily suspend the preferential treatment for the products concerned.

The suspension shall be applicable for a period of six months and shall take effect on the date of publication of the decision to suspend preferential treatment in the *Official Journal of the European Union*.

3. All temporary suspensions adopted pursuant to paragraph 2 shall be notified by the Union to the Republic of Moldova without undue delay.

4. A temporary suspension may be lifted before the expiry of six months from its entry into force by the Union if the Republic of Moldova provides evidence within the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, that the volume of the relevant category of products imported in excess of the volume referred to in Annex XV-C to this Agreement results from a change in the level of production and export capacity of the Republic of Moldova for the product(s) concerned.

5. Annex XV-C to this Agreement may be amended and the volume modified by mutual consent of the Union and the Republic of Moldova in the Association Committee in Trade configuration at the request of the Republic of Moldova, in order to reflect changes in the level of production and export capacity of the Republic of Moldova for the product(s) concerned.

Article 149

Standstill

Neither Party may increase any existing customs duty, or adopt any new customs duty, on a good originating in the other Party. That shall not preclude either Party from:

(a) raising a customs duty to the level established in Annex XV following a unilateral reduction; or

(b) maintaining or increasing a customs duty as authorized by the Dispute Settlement Body (DSB) of the WTO.

Article 150

Customs duties on exports

Neither Party shall adopt or maintain any duty or tax, other than internal charges applied in accordance with Article 152 of this Agreement, on or in connection with the export of goods to the territory of the other Party.

Article 151

Fees and other charges

Each Party shall ensure, in accordance with Article VIII of GATT 1994 and the interpretative notes thereon, that all fees and charges of whatever character other than customs duties or other measures referred to in Article 147 of this Agreement, imposed on, or in connection with, the import or export of goods are limited in amount to the approximate cost of services rendered and do not represent an indirect protection of domestic goods or a taxation of imports or exports for fiscal purposes.

Section 3

Non-tariff measures

Article 152

National treatment

Each Party shall accord national treatment to the goods of the other Party in accordance with Article III of GATT 1994, including the interpretative notes thereon. To that end, Article III of GATT 1994 and the interpretative notes thereon are incorporated into this Agreement and made an integral part thereof.

Article 153

Import and export restrictions

Neither Party shall adopt or maintain any prohibition or restriction on the import of any good of the other Party or on the export or sale for export of any good destined for the territory of the other Party, except as otherwise provided in this Agreement or in accordance with Article XI of GATT 1994 and the interpretative notes thereon. To that end, Article XI of GATT 1994 and the interpretative notes thereon are incorporated into this Agreement and made an integral part thereof.

Section 4

Specific provisions related to goods

Article 154

General exceptions

1. Nothing in this Chapter shall be construed to prevent the adoption or enforcement by any Party of measures in accordance with Articles XX and XXI of GATT 1994 and any relevant interpretative notes to those Articles under GATT 1994, which are hereby incorporated into this Agreement and made an integral part thereof.

2. The Parties understand that before taking any measures for which justification could be sought under subparagraphs (i) and (j) of Article XX of GATT 1994, the Party intending to take the measures shall provide the other Party with all relevant information and seek a solution acceptable to the Parties. If no agreement is reached within 30 days of providing such information, the Party may apply measures under this paragraph on the good concerned. Where exceptional and critical circumstances require immediate action and make prior information or examination impossible, the Party intending to take the measures may apply forthwith the precautionary measures necessary to deal with the situation and shall inform the other Party immediately thereof.

Section 5

Administrative cooperation and coordination with other countries

Article 155

Special provisions on administrative cooperation

1. The Parties agree that administrative cooperation and assistance are essential for the implementation and the control of the preferential treatment granted under this Chapter and underline their commitment to combat irregularities and fraud in customs and related matters.

2. Where a Party has made a finding, on the basis of objective information, of a failure of the other Party to provide administrative cooperation or assistance and/or of irregularities or fraud under this Chapter, the Party concerned may temporarily suspend the relevant preferential treatment of the product(s) concerned in accordance with this Article and, in particular, the procedure provided for under paragraph 5.

3. For the purposes of this Article, failure to provide administrative cooperation or assistance shall mean, inter alia:

(a) a repeated failure to respect the obligations to verify the originating status of the good(s) concerned;

(b) a repeated refusal or undue delay in carrying out and/or communicating the results of a subsequent verification of the proof of origin;

(c) repeated refusal or undue delay in obtaining authorisation to conduct enquiry visits to determine the authenticity of documents or accuracy of information relevant to the granting of the preferential treatment in question.

4. For the purposes of this Article a finding of irregularities or fraud may be made, inter alia, where there is a rapid increase, without satisfactory explanation, in the volume of imports of goods exceeding the usual level of production and export capacity of the other Party that is linked to objective information concerning irregularities or fraud.

5. The application of a temporary suspension shall be subject to the following conditions:

(a) the Party which has made a finding, on the basis of objective information, of a failure to provide administrative co-operation or assistance and/or of irregularities or fraud shall, without undue delay, notify the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, of its finding together with the objective information and enter into consultations within that Committee, on the basis of all relevant information and objective findings, with a view to reaching a solution acceptable to both Parties;

(b) where the Parties have entered into consultations within the aforementioned Committee and have failed to agree on an acceptable solution within three months following the notification, the Party concerned may temporarily suspend the relevant preferential treatment of the good(s) concerned. A temporary suspension shall be notified to the Association Committee in Trade configuration without undue delay;

(c) temporary suspensions under this Article shall be limited to what is necessary to protect the financial interests of the Party concerned. They shall not exceed a period of six months, which may be renewed if at the date of expiry nothing has changed with respect to the conditions that gave rise to the initial suspension. They shall be subject to periodic consultations within the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, in particular with a view to their termination as soon as the conditions for their application no longer apply.

6. Each Party shall publish all notices to importers concerning any notification referred to in paragraph 5(a), any decision referred to in paragraph 5(b), and any extension or termination as referred to in paragraph 5(c), according to its internal procedures.

Article 156

Management of administrative errors

In case of an error by the competent authorities in the proper management of the preferential system at export, and in particular in the application of the provisions of Protocol II to this Agreement concerning the definition of originating products and methods of administrative cooperation, where that error leads to consequences in terms of import duties, the Party facing such consequences may request that the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, examines the possibility of adopting all appropriate measures with a view to resolving the situation.

Article 157

Agreements with other countries

1. This Agreement shall not preclude the maintenance or establishment of customs unions, other free trade areas or arrangements for frontier traffic except in so far as they conflict with the trade arrangements provided for in this Agreement.

2. Consultations between the Parties shall take place within the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, concerning agreements establishing customs unions, other free trade areas or arrangements for frontier traffic and, where requested, on other major issues related to their respective trade policies with third countries. In particular, in the event of a third country acceding to the EU, such consultations shall take place so as to ensure that account is taken of the mutual interests of the Union and the Republic of Moldova as stated in this Agreement.

CHAPTER 2

Trade remedies

Section 1

Global safeguard measures

Article 158

General provisions

1. The Parties confirm their rights and obligations under Article XIX of GATT 1994 and the Agreement on Safeguards contained in Annex 1A to the Agreement Establishing the World Trade Organisation ('WTO Agreement') ('Agreement on Safeguards') and Article 5 of the Agreement on Agriculture, contained in Annex 1A to the WTO Agreement ('Agreement on Agriculture').

2. The preferential rules of origin established under Chapter 1 (National Treatment and Market Access for Goods) of Title V (Trade and Trade-related Matters) of this Agreement shall not apply to this Section.

3. The provisions of this Section shall not be subject to Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement.

Article 159

Transparency

1. The Party initiating a safeguard investigation shall notify the other Party of such initiation, provided the latter has a substantial economic interest.

2. Notwithstanding Article 158 of this Agreement, at the request of the other Party, the Party initiating a safeguard investigation and intending to apply safeguard measures shall provide immediately *ad hoc* written notification of all the pertinent information leading to the initiation of a safeguard investigation and the imposition of safeguard measures, including, where relevant, information on the initiation of a safeguard investigation, on the provisional findings and on the final findings of the investigation, as well as offer the possibility for consultations to the other Party.

3. For the purposes of this Article, a Party shall be considered as having a substantial economic interest when it is among the five largest suppliers of the imported product during the most recent three-year period, measured in terms of either absolute volume or value.

Article 160

Application of measures

1. When imposing safeguard measures, the Parties shall endeavour to impose them in a way that affects their bilateral trade the least.

2. For the purposes of paragraph 1, if a Party considers that the legal requirements for the imposition of definitive safeguard measures are met and intends to apply such measures, that Party shall notify the other Party and give the latter the possibility to hold bilateral consultations. If no satisfactory solution has been reached within 30 days of the notification, the importing Party may take the appropriate measures to remedy the problem.

Section 2

Anti-dumping and countervailing measures

Article 161

General provisions

1. The Parties confirm their rights and obligations under Article VI of GATT 1994, the Agreement on Implementation of Article VI of GATT 1994, contained in Annex 1A to the WTO Agreement ('Anti-Dumping Agreement'), and the Agreement on Subsidies and Countervailing Measures, contained in Annex 1A to the WTO Agreement ('SCM Agreement').

2. The preferential rules of origin established under Chapter 1 (National Treatment and Market Access for Goods) of Title V (Trade and Trade-related Matters) of this Agreement shall not apply to this Section.

3. The provisions of this Section shall not be subject to Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement.

Article 162

Transparency

1. The Parties agree that antidumping and countervailing measures should be used in full compliance with the requirements of the Anti-Dumping Agreement and the SCM Agreement, respectively, and should be based on a fair and transparent system.

2. The Parties shall ensure, immediately after the imposition of provisional measures and before the final determination is made, full and meaningful disclosure of all essential facts and considerations which form the basis for the decision to apply measures, without prejudice to Article 6(5) of the Anti-Dumping Agreement and Article 12(4) of the SCM Agreement. Disclosures shall be made in writing and allow interested parties sufficient time to make their comments.

3. Provided it does not unnecessarily delay the conduct of the investigation, each interested party shall be granted the possibility to be heard in order to express its views during anti-dumping and anti-subsidy investigations.

Article 163

Consideration of public interest

Anti-dumping or countervailing measures may not be applied by a Party where, on the basis of the information made available during the investigation, it can clearly be concluded that it is not in the public interest to apply such measures. The public interest determination shall be based on an appreciation of all the various interests taken as a whole, including the interests of the domestic industry, users, consumers and importers to the extent that they have provided relevant information to the investigating authorities.

Article 164

Lesser duty rule

Should a Party decide to impose a provisional or a definitive anti-dumping or countervailing duty, the amount of such duty shall not exceed the margin of dumping or the total amount of countervailable subsidies, but it should be less than the margin of dumping or the total amount of countervailable subsidies if such a lesser duty would be adequate to remove the injury to the domestic industry.

Section 3

Bilateral safeguard measures

Article 165

Application of a bilateral safeguard measure

1. If, as a result of the reduction or elimination of a customs duty under this Agreement, goods originating in a Party are being imported into the territory of the other Party in such increased quantities, in absolute terms or relative to domestic production, and under such conditions as to cause or threaten to cause serious injury to the domestic industry producing like or directly competitive goods, the importing Party may adopt the measures provided for in paragraph 2 in accordance with the conditions and procedures laid down in this Section.

2. The importing Party may take a bilateral safeguard measure which:

(a) suspends further reduction of the rate of customs duty on the good concerned provided for under this Agreement; or

(b) increases the rate of customs duty on the good to a level which does not exceed the lesser of:

(i) the MFN applied rate of customs duty on the good in effect at the time the measure is taken; or

(ii) the base rate of customs duty specified in the Schedules included in Annex XV pursuant to Article 147 of this Agreement.

Article 166

Conditions and limitations

1. A Party shall notify the other Party in writing of the initiation of an investigation described in paragraph 2 and consult with the other Party, as far in advance of applying a bilateral safeguard measure as practicable, with a view to reviewing the information arising from the investigation and exchanging views on the measure.

2. A Party shall apply a bilateral safeguard measure only following an investigation by its competent authorities in accordance with Articles 3 and 4.2(c) of the Agreement on Safeguards. To that end, Articles 3 and 4.2(c) of the Agreement on Safeguards are incorporated into this Agreement and made part thereof, *mutatis mutandis*.

3. When conducting the investigation described in paragraph 2 of this Article, the Party shall comply with the requirements of Article 4.2(a) of the Agreement on Safeguards. To that end, Article 4.2(a) of the Agreement on Safeguards is incorporated into this Agreement and made part thereof, *mutatis mutandis*.

4. Each Party shall ensure that its competent authorities complete any investigation described in paragraph 2 within one year of the date of its initiation.

5. Neither Party may apply a bilateral safeguard measure:

(a) except to the extent, and for such time, as may be necessary to prevent or remedy serious injury and to facilitate the adjustment of the domestic industry;

(b) for a period exceeding two years. However, that period may be extended by up to two years if the competent authorities of the importing Party determine, in accordance with the procedures specified in this Article, that the measure continues to be necessary to prevent or remedy serious injury and to facilitate the adjustment of the domestic industry and that there is evidence that the industry is adjusting, provided that the total period of application of a safeguard measure, including the period of initial application and any extension thereof, shall not exceed four years;

(c) beyond the expiration of the transitional period; or

(d) with respect to the same product, at the same time as a measure under Article XIX of GATT 1994 and the Agreement on Safeguards is applied.

6. When a Party terminates a bilateral safeguard measure, the rate of customs duty shall be the rate that, according to its Schedule included in Annex XV to this Agreement, would have been in effect but for the measure.

Article 167

Provisional measures

In critical circumstances where delay would cause damage that would be difficult to repair, a Party may apply a bilateral safeguard measure on a provisional basis pursuant to a preliminary determination that there is clear evidence that the imports of a good originating in the other Party have increased as the result of the reduction or elimination of a customs duty under this Agreement, and such imports cause serious injury, or a threat thereof, to the domestic industry. The duration of any provisional measure shall not exceed 200 days, during which time the Party shall comply with the requirements of Articles 166(2) and 166(3) of this Agreement. The Party shall promptly refund any duty paid in excess of the customs duty set out in Annex XV to this Agreement if the investigation described in Article 166(2) of this Agreement does not result in a finding that the requirements of Article 165 of this Agreement have been met. The duration of any provisional measure shall be counted as part of the period prescribed in Article 166(5)(b) of this Agreement.

Article 168

Compensation

1. A Party applying a bilateral safeguard measure shall consult with the other Party in order to arrive at a mutually agreed appropriate trade-liberalising compensation in the form of concessions having substantially equivalent trade effects or equivalent to the value of the additional duties expected to result from the safeguard measure. The Party shall provide an opportunity for such consultations no later than 30 days after the application of the bilateral safeguard measure.

2. If the consultations under paragraph 1 do not result in an agreement on trade-liberalising compensation within 30 days after the consultations begin, the Party whose goods are subject to the safeguard measure may suspend the application of substantially equivalent concessions to the Party applying the safeguard measure.

3. The right of suspension referred to in paragraph 2 shall not be exercised for the first 24 months during which a bilateral safeguard measure is in effect, provided that the safeguard measure conforms to the provisions of this Agreement.

Article 169

Definitions

For the purposes of this Section:

(a) 'serious injury' and 'threat of serious injury' shall be understood in accordance with Article 4.1(a) and (b) of the Agreement on Safeguards. To that end, Article 4.1(a) and (b) of the Agreement on Safeguards is incorporated into this Agreement and made part thereof, *mutatis mutandis*; and

(b) transitional period means a period of 10 years from the date of entry into force of this Agreement.

CHAPTER 3

Technical barriers to trade, standardisation, metrology, accreditation and conformity assessment

Article 170

Scope and definitions

1. This Chapter applies to the preparation, adoption and application of standards, technical regulations, and conformity assessment procedures as defined in the Agreement on Technical Barriers to Trade, contained in Annex 1A to the WTO Agreement ('TBT Agreement'), that may affect trade in goods between the Parties.

2. Notwithstanding paragraph 1 of this Article, this Chapter does not apply to sanitary and phytosanitary measures as defined in Annex A to the Agreement on the Application of Sanitary and Phytosanitary Measures, contained in Annex 1A to the WTO Agreement ('SPS Agreement'), nor to purchasing specifications prepared by public authorities for their own production or consumption requirements.

3. For the purposes of this Chapter, the definitions of Annex 1 to the TBT Agreement shall apply.

Article 171

Affirmation of the TBT Agreement

The Parties affirm their existing rights and obligations with respect to each other under the TBT Agreement which is hereby incorporated into this Agreement and made part thereof.

Article 172

Technical cooperation

1. The Parties shall strengthen their cooperation in the field of standards, technical regulations, metrology, market surveillance, accreditation and conformity assessment systems with a view to increasing the mutual understanding of their respective systems and facilitating access to their respective markets. To that end, they may establish regulatory dialogues at both horizontal and sectoral levels.

2. In their cooperation, the Parties shall seek to identify, develop and promote trade facilitating initiatives which may include, but are not limited to:

(a) reinforcing regulatory cooperation through the exchange of data and experience and through scientific and technical cooperation, with a view to improving the quality of their technical regulations, standards, market surveillance, conformity assessment and accreditation, and making efficient use of regulatory resources;

(b) promoting and encouraging cooperation between their respective organisations, public or private, responsible for metrology, standardisation, market surveillance, conformity assessment and accreditation;

(c) fostering the development of the quality infrastructure for standardisation, metrology, accreditation, conformity assessment and the market surveillance system in the Republic of Moldova;

(d) promoting the participation of the Republic of Moldova in the work of related European organisations;

(e) seeking solutions to technical barriers to trade that may arise; and

(f) coordinating their positions in international trade and regulatory organisations such as the WTO and the United Nations Economic Commission for Europe (UNECE).

Article 173

Approximation of technical regulations, standards, and conformity assessment

1. The Republic of Moldova shall take the necessary measures in order to gradually achieve conformity with the Union's technical regulations, standards, metrology, accreditation, conformity assessment, corresponding systems and market surveillance system, and undertakes to follow the principles and the practice laid down in the relevant Union *acquis*.

2. With a view to reaching the objectives set out in paragraph 1, the Republic of Moldova shall:

(a) progressively incorporate the relevant Union *acquis* into its legislation in accordance with the provisions of Annex XVI to this Agreement; and

(b) carry out the administrative and institutional reforms that are necessary to provide the effective and transparent system that is required for the implementation of this Chapter.

3. The Republic of Moldova shall refrain from amending its horizontal and sectoral legislation, except for aligning such legislation progressively with the corresponding Union *acquis* and for maintaining such alignment, and it shall notify the Union of changes to its domestic legislation.

4. The Republic of Moldova shall ensure the participation of its relevant national bodies in European and international organisations for standardisation, legal and fundamental metrology, and conformity assessment, including accreditation, in accordance with the respective areas of activity of those bodies and the membership status available to them.

5. With a view to integrating its standardisation system, the Republic of Moldova shall:

(a) progressively transpose the corpus of European Standards (EN) as national standards, including the harmonised European standards, the voluntary use of which shall give a presumption of conformity with Union legislation transposed into the legislation of the Republic of Moldova;

(b) simultaneously with such transposition, withdraw conflicting national standards; and

(c) progressively fulfil the conditions for full membership of the European Standards Organisations.

6. After the entry into force of this Agreement, the Republic of Moldova shall provide the Union with reports on the measures taken in accordance with Annex XVI to this Agreement once a year. Where actions listed in Annex XVI to this Agreement have not been executed by the time set therein, the Republic of Moldova shall indicate a new schedule for the completion of such actions. Annex XVI to this Agreement may be adapted by the Parties.

Article 174

Agreement on Conformity Assessment and Acceptance of Industrial Products (ACAA)

1. The Parties shall ultimately agree to add an Agreement on Conformity Assessment and Acceptance of Industrial Products (ACAA) as a Protocol to this Agreement, covering sectors from the list in Annex XVI to this Agreement that are considered to be aligned after they have been agreed upon, following verification by the Union, that the relevant sectoral and horizontal legislation, institutions and standards of the Republic of Moldova have been fully aligned with those of the Union. It is intended to ultimately extend the ACAA to cover all the sectors listed in Annex XVI to this Agreement.

2. The ACAA will provide that trade between the Parties in products in the sectors that it covers shall take place under the same conditions as those applying to trade in such products between the Member States.

Article 175

Marking and labelling

1. Without prejudice to Articles 173 and 174 of this Agreement, and with respect to technical regulations relating to labelling or marking requirements, the Parties reaffirm the principles of Chapter 2.2 of the TBT Agreement that such requirements are not prepared, adopted or applied with a view to or with the effect of creating unnecessary obstacles to international trade. For that purpose, such labelling or marking requirements shall not be more trade-restrictive than necessary to fulfil a legitimate objective, taking account of the risks that non-fulfilment would create.

2. Regarding obligatory marking or labelling in particular, the Parties agree that:

(a) they will endeavour to minimise their needs for marking or labelling, except as required for the adoption of the Union *acquis* in this area and for the protection of health, safety or the environment, or for other reasonable public policy purposes; and

(b) they retain the right to require the information on the label or marking to be in a specified language.

CHAPTER 4

Sanitary and phytosanitary measures

Article 176

Objective

1. The objective of this Chapter is to facilitate trade in commodities covered by sanitary and phytosanitary measures (SPS measures) between the Parties, whilst safeguarding human, animal or plant life or health, by:

(a) ensuring full transparency as regards measures applicable to trade, listed in Annex XVII to this Agreement;

(b) approximating the regulatory system of the Republic of Moldova to that of the Union;

(c) recognising the animal and plant health status of the Parties and applying the principle of regionalisation;

(d) establishing a mechanism for the recognition of equivalence of measures, maintained by a Party and listed in Annex XVII to this Agreement;

(e) continuing to implement the SPS Agreement;

(f) establishing mechanisms and procedures for trade facilitation; and

(g) improving communication and cooperation between the Parties on measures listed in Annex XVII to this Agreement.

2. This Chapter aims at reaching a common understanding between the Parties concerning animal welfare standards.

Article 177

Multilateral obligations

The Parties re-affirm their rights and obligations under the WTO Agreements, and in particular the SPS Agreement.

Article 178

Scope

This Chapter shall apply to all sanitary and phytosanitary measures of a Party that may, directly or indirectly, affect trade between the Parties, including all measures listed in Annex XVII to this Agreement.

Article 179

Definitions

For the purposes of this Chapter, the following definitions shall apply:

(1) 'sanitary and phytosanitary measures' (SPS measures) means measures, as defined in paragraph 1 of Annex A to the SPS Agreement;

(2) 'animals' means animals, as defined in the Terrestrial Animal Health Code or the Aquatic Animal Health Code of the World Organisation for Animal Health (OIE);

(3) 'animal products' means products of animal origin, including aquatic animal products, as defined in the Aquatic Animal Health Code of the OIE;

(4) 'animal by-products not intended for human consumption' means animal products as listed in Part 2 (II) of Annex XVII-A to this Agreement;

(5) 'plants' means living plants and specified living parts thereof, including seeds:

(a) fruit, in the botanical sense, other than those preserved by deep freezing;

(b) vegetables, other than those preserved by deep freezing;

(c) tubers, corms, bulbs, rhizomes;

(d) cut flowers;

(e) branches with foliage;

(f) cut trees retaining foliage;

(g) plant tissue cultures;

(h) leaves, foliage;

(i) live pollen; and

(j) bud-wood, cuttings, scions;

(6) 'plant products' means products of plant origin, unprocessed or having undergone simple preparation insofar as they are not plants, set out in Part 3 of Annex XVII-A to this Agreement;

(7) 'seeds' means seeds in the botanical sense, intended for planting;

(8) 'pests' or 'harmful organisms' means any species, strain or biotype of plant, animal or pathogenic agent injurious to plants or plant products;

(9) 'protected zone' for a specified regulated harmful organism means an officially defined geographical area in the Union in which that organism is not established in spite of favourable conditions and its presence in other parts of the Union;

(10) 'animal disease' means a clinical or pathological manifestation in animals of an infection;

(11) 'aquaculture disease' means clinical or non-clinical infection with one or more of the aetiological agents of the diseases referred to in the Aquatic Animal Health Code of the OIE;

(12) 'infection in animals' means the situation where animals maintain an infectious agent with or without the presence of clinical or pathological manifestation of an infection;

(13) 'animal welfare standards' means standards for the protection of animals, developed and applied by the Parties and, as appropriate, in line with the OIE standards;

(14) 'appropriate level' of sanitary and phytosanitary protection means the appropriate level of sanitary and phytosanitary protection as defined in paragraph 5 of Annex A to the SPS Agreement;

(15) 'region' means, with regard to animal health, a zone or a region as defined in the Terrestrial Animal Health Code of the OIE and, with regard, to aquaculture a zone as defined in the Aquatic Animal Health Code of the OIE. For the Union the term 'territory' or 'country' means the territory of the Union;

(16) 'pest free area' (PFA) means an area in which a specific pest does not occur as demonstrated by scientific evidence and in which, where appropriate, that condition is being officially maintained;

(17) 'regionalisation' means the concept of regionalisation as described in Article 6 of the SPS Agreement;

(18) 'consignment' means a number of live animals or quantity of animal products of the same type, covered by the same certificate or document, conveyed by the same means of transport, consigned by a single consignor and originating in the same exporting Party or region(s) of the Party. A consignment of animals may be composed of one or more lots. A consignment of animal products may be composed of one or more commodities or lots;

(19) 'consignment of plants or plant products' means a quantity of plants, plant products and/or other objects being moved from a Party to another Party and covered, when required, by a single phytosanitary certificate. A consignment may be composed of one or more commodities or lots;

(20) 'lot' means a number or units of a single commodity, identifiable by its homogeneity of composition and origin, and forming part of a consignment;

(21) 'equivalence for trade purposes' (equivalence) means the situation where the importing Party shall accept the measures listed in Annex XVII to this Agreement of the exporting Party as equivalent, even if those measures differ from its own, if the exporting party objectively demonstrates to the importing Party that its measures achieve the importing Party's appropriate level of sanitary and phytosanitary protection or acceptable level of risk;

(22) 'sector' means the production and trade structure for a product or category of products in a Party;

(23) 'sub-sector' means a well-defined and controlled part of a sector;

(24) 'commodity' means the products or objects being moved for trade purpose, including those referred to in points 2 to 7;

(25) 'specific import authorisation' means a formal prior authorisation by the competent authorities of the importing Party addressed to an individual importer as a condition for import of a single consignment or multiple consignments of a commodity from the exporting Party, within the scope of this Chapter;

(26) 'working days' means week days except Sunday, Saturday and public holidays in one of the Parties;

(27) 'inspection' means the examination of any aspect of feed, food, animal health and animal welfare in order to verify that such aspect(s) comply with the legal requirements of feed and food law and animal health and animal welfare rules;

(28) 'plant health inspection' means official visual examination of plants, plant products or other regulated objects to determine if pests are present and/or to determine compliance with phytosanitary regulations;

(29) 'verification' means checking, by examination and consideration of objective evidence, whether specified requirements have been fulfilled.

Article 180

Competent authorities

The Parties shall inform each other about the structure, organisation and division of competences of their competent authorities during the first meeting of the Sanitary and Phytosanitary Sub-Committee (SPS Sub-Committee) referred to in Article 191 of this Agreement. The Parties shall inform each other of any change of the structure, organisation and division of competences, including of the contact points, concerning such competent authorities.

Article 181

Gradual approximation

1. The Republic of Moldova shall gradually approximate its sanitary and phytosanitary and animal welfare law to that of the Union as set out in Annex XXIV to this Agreement.

2. The Parties shall cooperate on gradual approximation and capacity-building.

3. The SPS Sub-Committee shall regularly monitor the implementation of the approximation process set out in Annex XXIV to this Agreement in order to provide necessary recommendations on approximation.

4. No later than three months after the entry into force of this Agreement, the Republic of Moldova shall submit a list of the EU sanitary and phytosanitary, animal welfare and other legislative measures which the Republic of Moldova will approximate. The list shall be divided into priority areas that relate to the measures, defined in Annex XVII to this Agreement, specifying the commodity or the group of commodities covered by the approximated measures. That approximation list shall serve as a reference document for the implementation of this Chapter.

5. The approximation list and the principles for the evaluation of the progress in the approximation process will be added to Annex XXIV to this Agreement and will be based on the technical and financial resources of the Republic of Moldova.

Article 182

Recognition for trade purposes of animal health and pest status and regional conditions

Recognition of status for animal diseases, infections in animals or pests

1. As regards animal diseases and infections in animals (including zoonosis), the following shall apply:

(a) the importing Party shall recognise for trade purposes the animal health status of the exporting Party or its regions determined in accordance with the procedure set out in Annex XIX Part A to this Agreement, with respect to animal diseases specified in Annex XVIII-A to this Agreement;

(b) where a Party considers that it has, for its territory or a region within its territory, a special status with respect to a specific animal disease other than a disease listed in in Annex XVIII-A to this Agreement, it may request recognition of that status in accordance with the procedure laid down in Annex XIX Part C to this Agreement. The importing Party may request guarantees in respect of imports of live animals and animal products, which are appropriate to the agreed status of the Parties;

(c) the Parties recognise as the basis for trade between them the status of the territories or the regions, or the status in a sector or a sub-sector of the Parties related to the prevalence or the incidence of an animal disease other than a disease listed in Annex XVIII-A to this Agreement, or related to infections in animals and/or the associated risk, as appropriate, as determined by the OIE. The importing Party may request guarantees in respect of imports of live animals and animal products, which are appropriate to the defined status in accordance with the recommendations of the OIE; and

(d) without prejudice to Articles 184, 186 and 190 of this Agreement, and unless the importing Party raises an explicit objection and requests supporting or additional information, consultations and/or verification, each Party shall take without undue delay the necessary legislative and administrative measures to allow trade on the basis of points (a), (b) and (c) of this paragraph.

2. As regards pests, the following shall apply:

(a) the Parties recognise for trade purposes the pest status in respect of pests specified in Annex XVIII-B to this Agreement as determined in Annex XIX-B to this Agreement; and

(b) without prejudice to Articles 184, 186 and 190 of this Agreement, and unless the importing Party raises an explicit objection and requests supporting or additional information, consultations and/or verification, each Party shall take without undue delay the necessary legislative and administrative measures to allow trade on the basis of point (a) of this paragraph.

Recognition of regionalisation/zoning, pest free areas (PFAs) and protected zones (PZs)

3. The Parties recognise the concept of regionalisation and PFAs, as specified in the International Plant Protection Convention (IPPC) of 1997 and the International Standards for Phytosanitary Measures (ISPMs) of the Food and Agriculture Organisation of the United Nations (FAO), and of protected zones, as defined in Council Directive 2000/29/EC of 8 May 2000 on protective measures against the introduction into the Community of organisms harmful to plants or plant products and against their spread within the Community, which they agree to apply to trade between them.

4. The Parties agree that regionalisation decisions for animal and fish diseases listed in Annex XVIII-A to this Agreement and for pests listed in Annex XVIII-B to this Agreement shall be taken in accordance with the provisions of Annex XIX Part A and B to this Agreement.

5. As regards animal diseases in accordance with the provisions of Article 184 of this Agreement, the exporting Party seeking recognition of its regionalisation decision by the importing Party shall notify its measures with full explanations and supporting data for its determinations and decisions. Without prejudice to Article 185 of this Agreement, and unless the importing Party raises an explicit objection and requests additional information, consultations and/or verification within 15 working days following receipt of the notification, the regionalisation decision so notified shall be deemed accepted.

The consultations referred to in the first subparagraph of this paragraph shall take place in accordance with Article 185(3) of this Agreement. The importing Party shall assess the additional information within 15 working days following receipt of the additional information. The verification referred to in the first subparagraph of this paragraph shall be carried out in accordance with Article 188 of this Agreement within 25 working days following receipt of the request for verification.

6. As regards pests, each Party shall ensure that trade in plants, plant products and other objects takes account, as appropriate, of the pest status in an area recognised as a protected zone or as a PFA by the other Party. A Party seeking recognition of its PFA by the other Party shall notify its measures and, upon request, provide full explanation and supporting data for its establishment and maintenance, as guided by the FAO or IPPC, including ISPMs. Without prejudice to Article 190 of this Agreement, and unless a Party raises an explicit objection and requests additional information, consultations and/or verification within three months following the notification, the regionalisation decision for PFA so notified shall be deemed accepted.

The consultations referred to in the first subparagraph of this paragraph shall take place in accordance with Article 185(3) of this Agreement. The importing Party shall assess the additional information within three months following receipt of the additional information. The verification referred to in the first subparagraph of this paragraph shall be carried out in accordance with Article 188 of this Agreement within 12 months following receipt of the request for verification, taking into account the biology of the pest and the crop concerned.

7. After finalisation of the procedures referred to in paragraphs 4 to 6 of this Article, and without prejudice to Article 190 of this Agreement, each Party shall take, without undue delay, the necessary legislative and administrative measures to allow trade on that basis.

Compartmentalisation

8. The Parties commit to engaging in further discussions with a view to implementing the principle of compartmentalisation.

Article 183

Recognition of equivalence

1. Equivalence may be recognised in relation to:

(a) an individual measure;

(b) a group of measures; or

(c) a system applicable to a sector, sub-sector, commodities or a group of commodities.

2. With regard to recognition of equivalence, the Parties shall follow the process set out in paragraph 3. That process shall include an objective demonstration of equivalence by the exporting Party and an objective assessment of the request by the importing Party. That assessment may include inspections or verifications.

3. Upon request of the exporting Party concerning recognition of equivalence as set out in paragraph 1 of this Article, the Parties shall without delay and no later than three months following the receipt of such request by the importing Party, initiate the consultation process which includes the steps set out in Annex XXI to this Agreement. In case of multiple requests from the exporting Party, the Parties, upon request of the importing Party, shall agree within the SPS Sub-Committee referred to in Article 191 of this Agreement on a time schedule during which they shall initiate and conduct the process referred to in this paragraph.

4. The Republic of Moldova shall notify the Union as soon as approximation is achieved as a result of the monitoring provided for in Article 181(3) of this Agreement. That notification shall be considered to be a request of the Republic of Moldova to initiate the process for recognition of equivalence of the measures concerned, as set out in paragraph 3 of this Article.

5. Unless otherwise agreed, the importing Party shall finalise the process for recognition of equivalence referred to in paragraph 3 of this Article within 12 months after the receipt of the request of the exporting Party, including a dossier demonstrating the equivalence. That time-limit may be extended with regard to seasonal crops when it is justifiable to delay the assessment to permit verification during a suitable period of growth of a crop.

6. The importing Party determines equivalence as regards plants, plant products and other objects in accordance with the relevant ISPMs.

7. The importing Party may withdraw or suspend equivalence on the basis of any amendment by one of the Parties of measures affecting equivalence, provided that the following procedure is followed:

(a) in accordance with the provisions of Article 184(2) of this Agreement, the exporting Party shall inform the importing Party of any proposal for amendment of its measures for which equivalence of measures is recognised and the likely effect of the proposed measures on the equivalence which has been recognised. Within one month following the receipt of that information, the importing Party shall inform the exporting Party whether or not equivalence would continue to be recognised on the basis of the proposed measures;

(b) in accordance with the provisions of Article 184(2) of this Agreement, the importing Party shall inform the exporting Party of any proposal for amendment of its measures on which recognition of equivalence has been based and the likely effect of the proposed measures on the equivalence which has been recognised. Should the importing Party not continue to recognise equivalence, the Parties may agree on the conditions to re-initiate the process referred to in paragraph 3 of this Article on the basis of the proposed measures.

8. The recognition, suspension or withdrawal of equivalence rests solely with the importing Party acting in accordance with its administrative and legislative framework. That Party shall provide to the exporting Party, in writing, a full explanation and supporting data used for the determinations and decisions covered by this Article. In case of non-recognition, suspension or withdrawal of equivalence, the importing Party shall indicate to the exporting Party the required conditions on the basis of which the process referred to in paragraph 3 may be reinitiated.

9. Without prejudice to Article 190 of this Agreement, the importing Party may not withdraw or suspend equivalence before the proposed new measures of either Party enter into force.

10. In case equivalence is formally recognised by the importing Party, on the basis of the consultation process as set out in Annex XXI to this Agreement, the SPS Sub-Committee shall, in accordance with the procedure set out in Article 191(5) of this Agreement, endorse the recognition of equivalence in trade between the Parties. That endorsement decision may also provide for the reduction of physical checks at the frontiers, simplification of certificates and pre-listing procedures for the establishments, as applicable.

The status of the equivalence shall be listed in Annex XXV to this Agreement.

Article 184

Transparency and exchange of information

1. Without prejudice to Article 185 of this Agreement, the Parties shall cooperate to enhance mutual understanding of the other Party's official control structure and mechanisms tasked with the application of the measures listed in Annex XVII to this Agreement and of the effectiveness of such a structure and mechanism. That can be achieved, amongst others, through reports of international audits when they are made public by the Parties. The Parties can exchange information on the results of such audits or other information, as appropriate.

2. In the framework of approximation of legislation as referred to in Article 181 of this Agreement or of recognition of equivalence as referred to in Article 183 of this Agreement, the Parties shall keep each other informed of legislative and procedural changes adopted in the concerned areas.

3. In that context, the Union shall inform the Republic of Moldova well in advance of changes to Union legislation to allow the Republic of Moldova to consider modification of its legislation accordingly.

The necessary level of cooperation should be reached in order to facilitate transmission of legislative documents upon request of one of the Parties.

To that effect, each Party shall notify, without delay, the other Party of its contact points, including any changes to those contact points.

Article 185

Notification, consultation and facilitation of communication

1. Each Party shall notify the other Party in writing within two working days of any serious or significant human, animal or plant health risk, including any food control emergencies or situations where there is a clearly identified risk of serious health effects associated with the consumption of animal or plant products, in particular:

(a) any measures affecting the regionalisation decisions referred to in Article 182 of this Agreement;

(b) the presence or evolution of any animal disease listed in Annex XVIII-A to this Agreement or of the regulated pests listed in Annex XVIII-B to this Agreement;

(c) findings of epidemiological importance or important associated risks with respect to animal diseases and pests which are not listed in Annexes XVIII-A and XVIII-B to this Agreement or which are new animal diseases or pests; and

(d) any additional measures beyond the basic requirements to their respective measures taken by the Parties to control or eradicate animal diseases or pests or protect public or plant health and any changes in prophylactic policies, including vaccination policies.

2. Notifications shall be made in writing to the contact points referred to in Article 184(3) of this Agreement.

Notification in writing means notification by mail, fax or e-mail. Notifications shall only be sent between the contact points referred to in Article 184(3) of this Agreement.

3. Where a Party has serious concerns regarding a risk to human, animal or plant health, consultations regarding the situation shall, upon request of that Party, take place as soon as possible and, in any case, within 15 working days of that request. In such situations, each Party shall endeavour to provide all the information necessary to avoid a disruption in trade, and to reach a mutually acceptable solution consistent with the protection of human, animal or plant health.

4. Upon request of a Party, consultations regarding animal welfare shall take place as soon as possible and, in any case, within 20 working days from the date of notification. In such situations, each Party shall endeavour to provide all the requested information.

5. Upon request of a Party, consultations as referred to in paragraphs 3 and 4 of this Article shall be held by video or audio conference. The requesting Party shall ensure the preparation of the minutes of the consultation, which shall be formally approved by the Parties. For the purposes of that approval, the provisions of Article 184(3) of this Agreement shall apply.

6. The Republic of Moldova will develop and implement a national Rapid Alert System for Food and Feed (NRASFF) and National Early Warning Mechanism (NEWM) compatible with those of the EU. After the Republic of Moldova implements the necessary legislation in this field and creates conditions for the proper functioning of the NRASFF and the NEWM on the spot, and within an appropriate period of time to be agreed between the Parties, the NRASFF and the NEWM will be connected to the corresponding EU systems.

Article 186

Trade conditions

1. General import conditions:

(a) The Parties agree to subject imports of any commodity covered by Annexes XVII-A and XVII-C(2) and (3) to this Agreement to general import conditions. Without prejudice to the decisions taken in accordance with Article 182 of this Agreement, the import conditions of the importing Party shall be applicable to the total territory of the exporting Party. Upon entry into force of this Agreement and in accordance with the provisions of Article 184 of this Agreement, the importing Party shall inform the exporting Party of its sanitary and/or phytosanitary import requirements for commodities referred to in Annexes XVII-A and XVII-C to this Agreement. That information shall include, as appropriate, the models for the official certificates or declarations or commercial documents, as prescribed by the importing Party.

(b) (i) Any amendment or proposed amendment of the conditions referred to in paragraph 1(a) of this Article shall comply with the relevant notification procedures of the SPS Agreement whether or not they refer to measures covered by the SPS Agreement.

(ii) Without prejudice to the provisions of Article 190 of this Agreement, the importing Party shall take into account the transport time between the Parties to establish the date of entry into force of the amended conditions referred to in paragraph 1(a) of this Article; and

(iii) If the importing Party fails to comply with those notification requirements, it shall continue to accept the certificate or the attestation guaranteeing the previously applicable conditions until 30 days after the amended import conditions enter into force.

2. Import conditions after recognition of equivalence:

(a) Within 90 days following the date of adoption of the decision on recognition of equivalence, the Parties shall take the necessary legislative and administrative measures to implement the recognition of equivalence in order to allow, on that basis, trade between them of the commodities referred to in Annexes XVII-A and XVII-C(2) and (3) to this Agreement. For those commodities, the model for the official certificate or official document required by the importing Party may, then, be replaced by a certificate drawn up as provided for in Annex XXIII-B to this Agreement.

(b) For commodities in sectors or sub-sectors for which not all measures are recognised as equivalent, trade shall continue on the basis of compliance with the conditions referred to in paragraph 1(a) of this Article. Upon request of the exporting Party, the provisions of paragraph 5 of this Article shall apply.

3. From the date of entry into force of this Agreement, the commodities referred to in Annexes XVII-A and XVII-C(2) to this Agreement shall not be subject to a specific import authorisation.

4. For conditions affecting trade of the commodities referred to in paragraph 1(a) of this Article, upon request of the exporting Party, the Parties shall enter into consultations within the SPS Sub-Committee in accordance with the provisions of Article 191 of this Agreement, in order to agree on alternative or additional import conditions of the importing Party. Such alternative or additional import conditions may, when appropriate, be based on measures of the exporting Party recognised as equivalent by the importing Party. If agreed, the importing Party shall within 90 days take the necessary legislative and/or administrative measures to allow import on the basis of the agreed import conditions.

5. List of establishments, conditional approval:

(a) For the import of animal products referred to in Part 2 of Annex XVII-A to this Agreement, upon request of the exporting Party accompanied by the appropriate guarantees, the importing Party shall provisionally approve the processing establishments referred to in paragraph 2 of Annex XX to this Agreement which are situated in the territory of the exporting Party, without prior inspection of individual establishments. Such approval shall be consistent with the conditions and provisions set out in Annex XX to this Agreement. Except when additional information is requested, the importing Party shall take the necessary legislative and/or administrative measures to allow import on that basis within one month following the date of receipt of the request and the relevant guarantees by the importing Party.

The initial list of establishments shall be approved in accordance with the provisions of Annex XX to this Agreement.

(b) For the import of animal products referred to in paragraph 2(a) of this Article, the exporting Party shall inform the importing Party of its list of establishments meeting the importing Party's requirements.

6. Upon request of a Party, the other Party shall provide the explanation and the supporting data for the determinations and decisions covered by this Article.

Article 187

Certification procedure

1. For the purposes of certification procedures and issuing of certificates and official documents, the Parties agree on the principles set out in Annex XXIII to this Agreement.

2. The SPS Sub-Committee referred to in Article 191 of this Agreement may agree on the rules to be followed in the case of electronic certification, withdrawal or replacement of certificates.

3. In the framework of approximated legislation as referred to in Article 181 of this Agreement, the Parties shall agree on common models of certificates, where applicable.

Article 188

Verification

1. In order to maintain confidence in the effective implementation of the provisions of this Chapter each Party has the right:

(a) to carry out verification of all or part of the inspection and certification system of the other Party's authorities, and/or of other measures, where applicable, in accordance with the relevant international standards, guidelines and recommendations of Codex Alimentarius, OIE and IPPC; and

(b) to receive information from the other Party about its control system and be informed of the results of the controls carried out under that system.

2. Either Party may share the results of the verifications referred to in paragraph 1(a) with third parties and make the results publicly available as may be required by provisions applicable to either Party. Confidentiality provisions applicable to either Party shall be respected in such sharing and/or publication of results, where appropriate.

3. If the importing Party decides to carry out a verification visit to the exporting Party, the importing Party shall notify the exporting Party of that verification visit at least three months before the verification visit is to be carried out, except in emergency cases or if the Parties agree otherwise. Any modification to that visit shall be agreed by the Parties.

4. The costs incurred in undertaking a verification of all or part of the other Party's competent authorities' inspection and certification systems, or other measures, where applicable, shall be borne by the Party carrying out the verification or the inspection.

5. The draft written communication of verifications shall be forwarded to the exporting Party within three months after the end of verification. The exporting Party shall have 45 working days to comment on the draft written communication. Comments made by the exporting Party shall be attached to and, where appropriate, included in the final outcome. However, where a significant human, animal or plant health risk has been identified during the verification, the exporting Party shall be informed as quickly as possible and in any case within 10 working days following the end of the verification.

6. For clarity the results of a verification may contribute to the procedures referred to in Articles 181, 183 and 189 of this Agreement conducted by the Parties or one of the Parties.

Article 189

Import checks and inspection fees

1. The Parties agree that import checks by the importing Party of consignments from the exporting Party shall respect the principles set out in Annex XXII Part A to this Agreement. The results of those checks may contribute to the verification process referred to in Article 188 of this Agreement.

2. The frequencies of physical import checks applied by each Party are set out in Annex XXII Part B to this Agreement. A Party may amend those frequencies, within its competence and in accordance with its internal legislation, as a result of progress made in accordance with Articles 181, 183 and 186 of this Agreement, or as a result of verifications, consultations or other measures provided for in this Agreement. The SPS Sub-Committee referred to Article 191 of this Agreement shall accordingly modify Annex XXII Part B to this Agreement by decision.

3. Inspection fees may only cover the costs incurred by the competent authority for performing import checks. The fee shall be calculated on the same basis as the fees charged for the inspection of similar domestic products.

4. The importing Party shall upon request of the exporting Party inform the exporting Party of any amendment, including the reasons for such an amendment, concerning the measures affecting import checks and inspection fees, and of any significant changes in the administrative conduct for such checks.

5. The Parties may agree on the conditions to approve, as from a date to be determined by the SPS Sub-Committee referred to in Article 191 of this Agreement, each other's controls as referred to in Article 188(1)(b) of this Agreement with a view to adapting and reciprocally reducing, where applicable, the frequency of physical import checks for the commodities referred to in Article 186(2)(a) of this Agreement.

From that date onwards, the Parties may reciprocally approve each other's controls for certain commodities and consequently reduce or replace the import checks for those commodities.

Article 190

Safeguard measures

1. Should the exporting Party take within its territory measures to control any cause likely to constitute a serious hazard or risk to human, animal or plant health, the exporting Party, without prejudice to the provisions of paragraph 2, shall take equivalent measures to prevent the introduction of the hazard or risk into the territory of the importing Party.

2. On grounds of serious human, animal or plant health, the importing Party may take provisional measures necessary for the protection of human, animal or plant health. For consignments en route between the Parties, the importing Party shall consider the most suitable and proportionate solution in order to avoid unnecessary disruptions to trade.

3. The Party adopting measures under paragraph 2 of this Article shall inform the other Party no later than one working day following the date of the adoption of the measures. Upon request of either Party, and in accordance with the provisions of Article 185(3) of this Agreement, the Parties shall hold consultations regarding the situation within 15 working days of the notification. The Parties shall take due account of any information provided through such consultations and shall endeavour to avoid unnecessary disruption to trade, taking into account, where applicable, the outcome of the consultations provided for in Article 185(3) of this Agreement.

Article 191

Sanitary and Phytosanitary Sub-Committee

1. The Sanitary and Phytosanitary Sub-Committee ('the SPS Sub-Committee') is hereby established. It shall meet within three months, after the entry into force of this Agreement, upon request of either Party, or at least once every year. Subject to agreement by the Parties, a meeting of the SPS Sub-Committee may be held by video or audio-conference. The SPS Sub-Committee may also address issues out of session, by correspondence.

2. The SPS Sub-Committee shall have the following functions:

(a) to consider any matter relating to this Chapter;

(b) to monitor the implementation of this Chapter and examine all matters which may arise in relation to its implementation;

(c) to review Annexes XVII to XXV to this Agreement, notably in the light of progress made under the consultations and procedures provided for under this Chapter;

(d) to modify, by means of a decision, Annexes XVII to XXV to this Agreement in the light of the review provided for in point (c) of this paragraph, or as otherwise provided in this Chapter; and

(e) to give opinions and make recommendations to other bodies as defined in Title VII (Institutional, General and Final Provisions) of this Agreement in the light of the review provided for in point (c) of this paragraph.

3. The Parties agree to establish technical working groups, when appropriate, consisting of expert-level representatives of the Parties, which shall identify and address technical and scientific issues arising from the application of this Chapter. When additional expertise is required, the Parties may establish *ad hoc* groups, including scientific and expert groups. Membership of such *ad hoc* groups need not be restricted to representatives of the Parties.

4. The SPS Sub-Committee shall regularly inform, by means of a report, the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, on its activities and the decisions taken within its competence.

5. The SPS Sub-Committee shall adopt its working procedures at its first meeting.

6. Any decision, recommendation, report or other action by the SPS Sub-Committee or any group established by the SPS Sub-Committee shall be adopted by consensus between the Parties.

CHAPTER 5

Customs and trade facilitation

Article 192

Objectives

1. The Parties acknowledge the importance of customs and trade facilitation in the evolving bilateral trade environment. The Parties agree to reinforce cooperation in this area with a view to ensuring that the relevant legislation and procedures, as well as the administrative capacity of the relevant administrations, fulfil the objectives of effective control and support facilitation of legitimate trade, as a matter of principle.

2. The Parties recognise that utmost importance shall be given to legitimate public policy objectives, including trade facilitation, security and prevention of fraud, and a balanced approach to them.

Article 193

Legislation and procedures

1. The Parties agree that their respective trade and customs legislation, as a matter of principle, shall be stable and comprehensive, and that the provisions and the procedures shall be proportionate, transparent, predictable, non-discriminatory, impartial and applied uniformly and effectively and shall inter alia:

(a) protect and facilitate legitimate trade through effective enforcement of, and compliance with, legislative requirements;

(b) avoid unnecessary or discriminatory burdens on economic operators, prevent fraud and provide further facilitation for economic operators having a high level of compliance;

(c) apply a Single Administrative Document (SAD) for the purposes of customs declarations;

(d) take measures which lead to greater efficiency, transparency and simplification of customs procedures and practices at the border;

(e) apply modern customs techniques, including risk assessment, post clearance controls and company audit methods, in order to simplify and facilitate the entry and the release of goods;

(f) aim at reducing costs and increasing predictability for economic operators, including small and medium-sized enterprises;

(g) without prejudice to the application of objective risk-assessment criteria, ensure the non-discriminatory administration of requirements and procedures applicable to imports, exports and goods in transit;

(h) apply the international instruments applicable in the field of customs and trade, including those developed by the World Customs Organisation (WCO) (the Framework of Standards to Secure and Facilitate Global Trade), the WTO (the Agreement on Customs Valuation), the Istanbul Convention on Temporary Admission of 1990, the International Convention on the Harmonised Commodity Description and Coding System of 1983, the UN TIR Convention of 1975, the 1982 International Convention on the Harmonisation of Frontier Controls of Goods, as well as European Commission guidelines such as the customs blueprints;

(i) take the necessary measures to reflect and implement the provisions of the Revised Kyoto Convention on the Simplification and Harmonisation of Customs Procedures of 1973;

(j) provide for advance binding rulings on tariff classification and rules of origin. The Parties ensure that a ruling may be revoked or annulled only after notification to the affected operator and without retroactive effect, unless the rulings have been made on the basis of incorrect or incomplete information;

(k) introduce and apply simplified procedures for authorised traders according to objective and non-discriminatory criteria;

(l) set rules that ensure that any penalties imposed for the breaches of customs regulations or procedural requirements be proportionate and non-discriminatory and that their application does not result in unwarranted and unjustified delays; and

(m) apply transparent, non-discriminatory and proportionate rules in respect of the licensing of customs brokers.

2. In order to improve working methods, as well as to ensure non-discrimination, transparency, efficiency, integrity and accountability of operations, the Parties shall:

(a) take further steps towards the reduction, the simplification and the standardisation of data and documentation required by customs and other authorities;

(b) simplify requirements and formalities, wherever possible, with respect to the rapid release and clearance of goods;

(c) provide effective, prompt and non-discriminatory procedures guaranteeing the right of appeal against customs and other authorities' administrative actions, rulings and decisions affecting the goods submitted to customs. Such procedures for appeal shall be easily accessible, including to small or medium-sized enterprises, and any costs shall be reasonable and commensurate with the costs incurred by the authorities to ensure the right of appeal;

(d) take steps to ensure that where a disputed administrative action, ruling or decision is the subject of an appeal, goods should normally be released and duty payments may be left pending, subject to any safeguard measures judged necessary. Where required, the release of the goods should be subject to the provision of a guarantee, such as a surety or a deposit; and

(e) ensure that the highest standards of integrity be maintained, in particular at the border, through the application of measures reflecting the principles of the relevant international conventions and instruments in this field, in particular the WCO Revised Arusha Declaration of 2003 and the European Commission blueprint of 2007.

3. The Parties will not apply:

(a) any requirements for the mandatory use of customs brokers; and

(b) any requirements for the mandatory use of pre-shipment or destination inspections.

4. For the purposes of this Agreement, the transit rules and definitions set out in the WTO provisions, in particular Article V of GATT 1994, and related provisions, including any clarifications and amendments resulting from the Doha Round negotiations on trade facilitation, shall apply. Those provisions also apply when the transit of goods begins or ends in the territory of a Party (inland transit).

The Parties shall pursue the progressive interconnectivity of their respective customs transit systems, with a view to the future accession of the Republic of Moldova to the Convention on a common transit procedure of 1987.

The Parties shall ensure cooperation and coordination between all authorities concerned in their territories in order to facilitate traffic in transit. Parties shall also promote cooperation between the authorities and the private sector in relation to transit.

Article 194

Relations with the business community

The Parties agree:

(a) to ensure that their respective legislation and procedures are transparent and publicly available, as far as possible through electronic means, and contain a justification for their adoption. There should be a reasonable time period between the publication of new or amended provisions and their entry into force;

(b) on the need for timely and regular consultations with trade representatives on legislative proposals and procedures related to customs and trade issues. To that end, appropriate and regular consultation mechanisms between the administration and the business community shall be established by each Party;

(c) to make publicly available, as far as possible through electronic means, relevant notices of an administrative nature, including authorities' requirements and entry or exit procedures, hours of operation and operating procedures for customs offices at ports and border crossing points, and points of contact for information enquiries;

(d) to foster cooperation between operators and relevant administrations using non-arbitrary and publicly accessible procedures such as Memoranda of Understanding, based, in particular, on those promulgated by the WCO; and

(e) to ensure that their respective customs and customs-related requirements and procedures continue to meet the legitimate needs of the trading community, follow best practices, and remain the least trade-restrictive possible.

Article 195

Fees and charges

1. As of 1 January of the year following the entry into force of this Agreement, the Parties shall prohibit administrative fees having an equivalent effect to import or export duties and charges.

2. With regard to all fees and charges of whatever character imposed by the customs authorities of each Party, including fees and charges for tasks undertaken on behalf of the said authorities, upon or in connection with import or export and without prejudice to the relevant Articles in Chapter 1 (National Treatment and Market Access for Goods) of Title V (Trade and Trade-related Matters) of this Agreement, the Parties agree that:

(a) fees and charges may only be imposed for services provided at the request of the declarant outside normal working conditions, hours of operation and in places other than those referred to in the customs regulations, as well as for any formality related to such services and required for undertaking such import or export;

(b) fees and charges shall not exceed the cost of the service provided;

(c) fees and charges shall not be calculated on an *ad valorem* basis;

(d) the information on the fees and charges shall be published via an officially designated medium and, where feasible and possible, on an official website. That information shall include the reason for the fee or charge for the service provided, the responsible authority, the fees and charges that will be applied, and when and how payment is to be made; and

(e) new or amended fees and charges shall not be imposed until information on them is published and made readily available.

Article 196

Customs valuation

1. The provisions of the Agreement on the Implementation of Article VII of GATT 1994 contained in Annex 1A to the WTO Agreement, including any subsequent amendments, shall govern the customs valuation of goods in the trade between the Parties. Those provisions are hereby incorporated into this Agreement and made part thereof. Minimum customs values shall not be used.

2. The Parties shall cooperate with a view to reaching a common approach to issues relating to customs valuation.

Article 197

Customs cooperation

The Parties shall strengthen cooperation in the area of customs to ensure implementation of the objectives of this Chapter in order to further trade facilitation, while ensuring effective control, security and prevention of fraud. To that end, the Parties will use, where appropriate, the European Commission Customs Blueprints of 2007 as a benchmarking tool.

In order to ensure compliance with the provisions of this Chapter the Parties shall, inter alia:

(a) exchange information concerning customs legislation and procedures;

(b) develop joint initiatives relating to import, export and transit procedures, as well as work towards ensuring that an effective service is provided to the business community;

(c) cooperate on the automation of customs and other trade procedures;

(d) exchange, where appropriate, information and data subject to respect of the confidentiality of data and standards and regulations on protection of personal data;

(e) cooperate in preventing and combating illicit cross-border traffic in goods, including in tobacco products;

(f) exchange information or enter into consultations with a view to establishing, where possible, common positions in international organisations in the field of customs such as the WTO, the WCO, the UN, the United Nations Conference on Trade and Development (Unctad) and the UNECE;

(g) cooperate in the planning and delivery of technical assistance, notably to facilitate customs and trade facilitation reforms in line with the relevant provisions of this Agreement;

(h) exchange best practices in customs operations, in particular on intellectual property rights enforcement, especially in relation to counterfeit products;

(i) promote coordination between all border authorities of the Parties to facilitate the border crossing process and enhance control, taking into account joint border controls, where feasible and appropriate; and

(j) establish, where relevant and appropriate, mutual recognition of trade partnership programmes and customs controls, including equivalent trade facilitation measures.

Article 198

Mutual administrative assistance in customs matters

Without prejudice to other forms of cooperation envisaged in this Agreement, in particular in Article 197 of this Agreement, the Parties shall provide each other with mutual administrative assistance in customs matters in accordance with the provisions of Protocol III on Mutual Administrative Assistance in Customs Matters to this Agreement.

Article 199

Technical assistance and capacity building

The Parties shall cooperate with a view to providing technical assistance and capacity building for the implementation of trade facilitation and customs reforms.

Article 200

Customs Sub-Committee

1. The Customs Sub-Committee is hereby established. It shall report to the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement.

2. The function of the Sub-Committee shall include regular consultations and monitoring of the implementation and the administration of this Chapter, including the matters of customs cooperation, cross-border customs cooperation and management, technical assistance, rules of origin, trade facilitation, as well as mutual administrative assistance in customs matters.

3. The Customs Sub-Committee shall inter-alia:

(a) see to the proper functioning of this Chapter and of Protocols II and III to this Agreement;

(b) adopt practical arrangements, measures and decisions to implement this Chapter and Protocols II and III to this Agreement, including on exchange of information and data, mutual recognition of customs controls and trade partnership programmes, and mutually agreed benefits;

(c) exchange views on any points of common interest, including future measures and the resources needed for their implementation and application;

(d) make recommendations where appropriate; and

(e) adopt its internal rules of procedure.

Article 201

Approximation of customs legislation

Gradual approximation to the Union's customs law and certain international law shall be carried out as set out in Annex XXVI to this Agreement.

CHAPTER 6

Establishment, trade in services and electronic commerce

Section 1

General provisions

Article 202

Objective, scope and coverage

1. The Parties, reaffirming their respective commitments under the WTO Agreement, hereby lay down the necessary arrangements for the progressive reciprocal liberalisation of establishment and trade in services and for cooperation on electronic commerce.

2. Government procurement is covered in Chapter 8 (Public Procurement) of Title V (Trade and Trade-related Matters) of this Agreement. Nothing in this Chapter shall be construed to impose any obligation with respect to government procurement.

3. Subsidies are covered in Chapter 10 (Competition) of Title V (Trade and Trade-related Matters) of this Agreement. The provisions of this Chapter shall not apply to subsidies granted by the Parties.

4. In accordance with the provisions of this Chapter, each Party retains the right to regulate and to introduce new regulations to meet legitimate policy objectives.

5. This Chapter shall not apply to measures affecting natural persons seeking access to the employment market of a Party, nor shall it apply to measures regarding citizenship, residence or employment on a permanent basis.

6. Nothing in this Chapter shall prevent a Party from applying measures to regulate the entry of natural persons into, or their temporary stay in, its territory, including those measures necessary to protect the integrity of, and to ensure the orderly movement of natural persons across its borders, provided that those measures are not applied in such a manner as to nullify or impair the benefits accruing to any Party under the terms of a specific commitment in this Chapter and Annexes XXVII and XXVIII to this Agreement ([1]).

Article 203

Definitions

For the purposes of this Chapter:

(1) 'measure' means any measure by a Party, whether in the form of a law, regulation, rule, procedure, decision, administrative action, or any other form;

(2) 'measures adopted or maintained by a Party' means measures taken by:

(a) central, regional or local governments and authorities; and

(b) non-governmental bodies in the exercise of powers delegated by central, regional or local governments or authorities;

(3) 'natural person of a Party' means a national of an EU Member State or a national of the Republic of Moldova according to respective legislation;

(4) 'juridical person' means any legal entity duly constituted or otherwise organised under applicable law, whether for profit or otherwise, and whether privately-owned or governmentally-owned, including any corporation, trust, partnership, joint venture, sole proprietorship or association;

([1]) The sole fact of requiring a visa for natural persons of certain countries and not for those of others shall not be regarded as nullifying or impairing benefits under a specific commitment.

(5) 'juridical person of the Union' or 'juridical person of the Republic of Moldova' means a juridical person as defined in point 4 set up in accordance with the law of a Member State or of the Republic of Moldova, respectively, and having its registered office, central administration, or principal place of business in the territory to which the Treaty on the Functioning of the European Union applies ([1]) or in the territory of the Republic of Moldova, respectively.

Should that juridical person have only its registered office or central administration in the territory to which the Treaty on the Functioning of the European Union applies or in the territory of the Republic of Moldova, respectively, it shall not be considered as a juridical person of the Union or a juridical person of the Republic of Moldova respectively, unless its operations possess a real and continuous link with the economy of the Union or of the Republic of Moldova, respectively.

Notwithstanding the preceding paragraph, shipping companies established outside the Union or the Republic of Moldova and controlled by nationals of a Member State or of the Republic of Moldova, respectively, shall also be beneficiaries of the provisions of this Agreement if their vessels are registered in accordance with their respective legislation in that Member State or in the Republic of Moldova and fly the flag of a Member State or of the Republic of Moldova;

(6) 'subsidiary' of a juridical person of a Party means a legal person which is effectively controlled by another juridical person of that Party ([2]);

(7) 'branch' of a juridical person means a place of business not having legal personality which has the appearance of permanency, such as the extension of a parent body, has a management structure and is materially equipped to negotiate business with third parties so that the latter, although knowing that there will if necessary be a legal link with the parent body, the head office of which is abroad, do not have to deal directly with such parent body but may transact business at the place of business constituting the extension;

(8) 'establishment' means:

(a) as regards juridical persons of the Union or of the Republic of Moldova, the right to take up and pursue economic activities by means of setting up, including the acquisition of, a juridical person and/or to create a branch or a representative office in the Union or in the Republic of Moldova respectively;

(b) as regards natural persons, the right of natural persons of the Union or of the Republic of Moldova to take up and pursue economic activities as self-employed persons and to set up undertakings, in particular companies, which they effectively control;

(9) 'economic activities' shall include activities of an industrial, commercial and professional character and activities of craftsmen and do not include activities performed in the exercise of governmental authority;

(10) 'operations' means the pursuit of economic activities;

(11) 'services' includes any service in any sector except services supplied in the exercise of governmental authority;

(12) 'services and other activities performed in the exercise of governmental authority' means services or activities which are performed neither on a commercial basis nor in competition with one or more economic operators;

(13) 'cross-border supply of services' means the supply of a service:

(a) from the territory of a Party into the territory of the other Party (Mode 1); or

(b) in the territory of a Party to the service consumer of the other Party (Mode 2);

(14) 'service supplier' of a Party means any natural or juridical person of a Party that seeks to supply or supplies a service;

(15) 'entrepreneur' means any natural or juridical person of a Party that seeks to perform or performs an economic activity through setting up an establishment.

([1]) For greater certainty, that territory shall include the exclusive economic zone and continental shelf, as provided in the United Nations Convention on the Law of the Sea (UNCLOS).

([2]) A juridical person is controlled by another juridical person if the latter has the power to name a majority of its directors or otherwise to legally direct its actions.

Section 2

Establishment

Article 204

Scope

This Section applies to measures adopted or maintained by the Parties affecting establishment in all economic activities with the exception of:

(a) mining, manufacturing and processing ([1]) of nuclear materials;

(b) production of, or trade in, arms, munitions and war materiel;

(c) audiovisual services;

(d) national maritime cabotage ([2]); and

(e) domestic and international air transport services ([3]), whether scheduled or non-scheduled, and services directly related to the exercise of traffic rights, other than:

(i) aircraft repair and maintenance services during which an aircraft is withdrawn from service;

(ii) the selling and marketing of air transport services;

(iii) computer reservation system (CRS) services;

(iv) ground-handling services;

(v) airport operation services.

Article 205

National treatment and most-favoured-nation treatment

1. Subject to reservations listed in Annex XXVII-E to this Agreement, the Republic of Moldova shall grant, upon entry into force of this Agreement:

(a) as regards the establishment of subsidiaries, branches and representative offices of juridical persons of the Union, treatment no less favourable than that accorded by the Republic of Moldova to its own juridical persons, their branches and representative offices, or to subsidiaries, branches and representative offices of any third country's juridical persons, whichever is better;

(b) as regards the operation of subsidiaries, branches and representative offices of juridical persons of the Union in the Republic of Moldova, once established, treatment no less favourable than that accorded by the Republic of Moldova to its own juridical persons, their branches and representative offices, or to subsidiaries, branches and representative offices of any third country's juridical persons, whichever is better. ([4])

2. Subject to reservations listed in Annex XXVII-A to this Agreement, the Union shall grant, upon entry into force of this Agreement:

a) as regards the establishment of subsidiaries, branches and representative offices of juridical persons of the Republic of Moldova, treatment no less favourable than that accorded by the Union to its own juridical persons, their branches and representative offices, or to subsidiaries, branches and representative offices of any third country's juridical persons, whichever is better;

([1]) For greater certainty, processing of nuclear materials includes all the activities contained in UN ISIC Rev.3.1 code 2330.

([2]) Without prejudice to the scope of activities which may be considered as cabotage under the relevant domestic legislation, national maritime cabotage under this chapter covers transportation of passengers or goods between a port or point located in a Member State or in the Republic of Moldova and another port or point located in a Member State or in the Republic of Moldova, including on its continental shelf, as provided in the UNCLOS, and traffic originating and terminating in the same port or point located in a Member State or in the Republic of Moldova.

([3]) The conditions of mutual market access in air transport shall be dealt with by the Agreement between the EU and its Member States and the Republic of Moldova on the establishment of a Common Aviation Area.

([4]) This obligation does not extend to the investment protection provisions not covered by this Chapter, including provisions relating to investor-state dispute settlement procedures, as found in other agreements.

(b) as regards the operation of subsidiaries, branches and representative offices of juridical persons of the Republic of Moldova in the Union, once established, treatment no less favourable than that accorded by the Union to its own juridical persons, their branches and representative offices, or to subsidiaries, branches and representative offices of any third country's juridical persons, whichever is better. ([1])

3. Subject to reservations listed in Annexes XXVII-A and XXVII-E to this Agreement, the Parties shall not adopt any new regulations or measures which introduce discrimination as regards the establishment of juridical persons of the Union or of the Republic of Moldova on their territory or in respect of their operation, once established, by comparison with their own juridical persons.

Article 206

Review

1. With a view to progressively liberalising the establishment conditions, the Parties shall regularly review the establishment legal framework ([2]) and the establishment environment, consistent with their commitments in international agreements.

2. In the context of the review referred to in paragraph 1, the Parties shall assess any obstacles to establishment that have been encountered. With a view to deepening the provisions of this Chapter, the Parties shall find appropriate ways to address such obstacles, which could include further negotiations, including with respect to investment protection and to investor-to-state dispute settlement procedures.

Article 207

Other agreements

Nothing in this Chapter shall be construed to limit the rights of entrepreneurs of the Parties to benefit from any more favourable treatment provided for in any existing or future international agreement relating to investment to which a Member State and the Republic of Moldova are parties.

Article 208

Standard of treatment for branches and representative offices

1. The provisions of Article 205 of this Agreement do not preclude the application by a Party of particular rules concerning the establishment and operation in its territory of branches and representative offices of juridical persons of another Party not incorporated in the territory of the first Party, which are justified by legal or technical differences between such branches and representative offices as compared to branches and representative offices of juridical persons incorporated in its territory or, as regards financial services, for prudential reasons.

2. The difference in treatment shall not go beyond what is strictly necessary as a result of such legal or technical differences or, as regards financial services, for prudential reasons.

Section 3

Cross-border supply of services

Article 209

Scope

This Section applies to measures of the Parties affecting the cross-border supply of all services sectors with the exception of:

(a) audiovisual services;

([1]) This obligation does not extend to the investment protection provisions not covered by this Chapter, including provisions relating to investor-state dispute settlement procedures, as found in other agreements.
([2]) This includes this Chapter and Annexes XXVII-A and XXVII-E to this Agreement.

(b) national maritime cabotage ([1]); and

(c) domestic and international air transport services ([2]), whether scheduled or non-scheduled, and services directly related to the exercise of traffic rights other than:

(i) aircraft repair and maintenance services during which an aircraft is withdrawn from service;

(ii) the selling and marketing of air transport services;

(iii) computer reservation system (CRS) services;

(iv) ground-handling services;

(v) airport operation services.

Article 210

Market access

1. With respect to market access through the cross-border supply of services, each Party shall accord services and service suppliers of the other Party a treatment not less favourable than that provided for in the specific commitments contained in Annexes XXVII-B and XXVII-F to this Agreement.

2. In sectors where market access commitments are undertaken, the measures which a Party shall not maintain or adopt, either on the basis of a regional subdivision or on the basis of its entire territory, unless otherwise specified in Annexes XXVII-B and XXVII-F to this Agreement, are defined as:

(a) limitations on the number of services suppliers whether in the form of numerical quotas, monopolies, exclusive service suppliers or the requirement of an economic needs test;

(b) limitations on the total value of service transactions or assets in the form of numerical quotas or the requirement of an economic needs test;

(c) limitations on the total number of service operations or on the total quantity of service output expressed in the terms of designated numerical units in the form of quotas or the requirement of an economic needs test.

Article 211

National treatment

1. In the sectors where market access commitments are inscribed in Annexes XXVII-B and XXVII-F to this Agreement, and subject to any conditions and qualifications set out therein, each Party shall grant to services and service suppliers of the other Party, in respect of all measures affecting the cross-border supply of services, treatment no less favourable than that it accords to its own like services and services suppliers.

2. A Party may meet the requirement provided for in paragraph 1 by according to services and service suppliers of the other Party either formally identical treatment or formally different treatment to that which it accords to its own like services and service suppliers.

3. Formally identical or formally different treatment shall be considered to be less favourable if it modifies the conditions of competition in favour of services or service suppliers of the Party compared to like services or service suppliers of the other Party.

4. Specific commitments entered into under this Article shall not be construed to require any Party to compensate for inherent competitive disadvantages which result from the foreign character of the relevant services or services suppliers.

([1]) Without prejudice to the scope of activities which may be considered as cabotage under the relevant domestic legislation, national maritime cabotage under this Chapter covers transportation of passengers or goods between a port or point located in a Member State or in the Republic of Moldova and another port or point located in a Member State or in the Republic of Moldova, including on its continental shelf, as provided in the UNCLOS, and traffic originating and terminating in the same port or point located in a Member State or in the Republic of Moldova.

([2]) The conditions of mutual market access in air transport shall be dealt with by the Agreement between the EU and its Member States and the Republic of Moldova on the establishment of a Common Aviation Area.

Article 212

Lists of commitments

1. The sectors liberalised by each of the Parties pursuant to this Section and, by means of reservations, the market access and national treatment limitations applicable to services and services suppliers of the other Party in those sectors are set out in lists of commitments included in Annexes XXVII-B and XXVII-F to this Agreement.

2. Without prejudice to Parties' rights and obligations as they exist or may arise under the European Convention on Transfrontier Television and the European Convention on Cinematographic Co-production, lists of commitments in Annexes XXVII-B and XXVII-F to this Agreement do not include commitments on audiovisual services.

Article 213

Review

With a view to the progressive liberalisation of the cross-border supply of services between the Parties, the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, shall regularly review the list of commitments referred to in Article 212 of this Agreement. This review shall take into account, inter alia, the process of gradual approximation, referred to in Articles 230, 240, 249 and 253 of this Agreement, and its impact on the elimination of remaining obstacles to cross-border supply of services between the Parties.

Section 4

Temporary presence of natural persons for business purposes

Article 214

Scope and definitions

1. This Section applies to measures of the Parties concerning the entry and temporary stay in their territories of key personnel, graduate trainees and business sellers, contractual service suppliers and independent professionals, without prejudice to Article 202(5) of this Agreement.

2. For the purposes of this Section:

(a) 'key personnel' means natural persons employed within a juridical person of one Party other than a non-profit organisation ([1]) and who are responsible for the setting up or the proper control, administration and operation of an establishment. 'Key personnel' comprises 'business visitors' for establishment purposes and 'intra-corporate transferees':

(i) 'business visitors' for establishment purposes means natural persons working in a senior position who are responsible for setting up an establishment. They do not offer or provide services or engage in any economic activity other than that required for establishment purposes. They do not receive remuneration from a source located within the host Party;

(ii) 'intra-corporate transferees' means natural persons who have been employed by a juridical person or have been partners in it for at least one year and who are temporarily transferred to an establishment that may be a subsidiary, branch or head company of the enterprise/juridical person in the territory of the other Party. The natural person concerned shall belong to one of the following categories:

(1) managers: persons working in a senior position within a juridical person, who primarily direct the management of the establishment, receiving general supervision or direction principally from the board of directors or from stockholders of the business or their equivalent, including at least:

— directing the establishment or a department or sub-division thereof;

([1]) The reference to 'other than a non-profit organisation' only applies for Belgium, Czech Republic, Denmark, Germany, Estonia, Ireland, Greece, Spain, France, Italy, Cyprus, Latvia, Lithuania, Luxembourg, Malta, Netherlands, Austria, Portugal, Slovenia, Finland and United Kingdom.

— supervising and controlling the work of other supervisory, professional or managerial employees; and

— having the authority personally to recruit and dismiss or recommend recruiting, dismissing or other personnel actions;

(2) specialists: persons working within a juridical person who possess uncommon knowledge essential to the establishment's production, research equipment, techniques, processes, procedures or management. In assessing such knowledge, account will be taken not only of knowledge specific to the establishment, but also of whether the person has a high level of qualification referring to a type of work or trade requiring specific technical knowledge, including membership of an accredited profession;

(b) 'graduate trainees' means natural persons who have been employed by a juridical person of one Party or its branch for at least one year, possess a university degree and are temporarily transferred to an establishment of the juridical person in the territory of the other Party, for career development purposes or to obtain training in business techniques or methods ([1]);

(c) 'business sellers' ([2]) means natural persons who are representatives of a services or goods supplier of one Party seeking entry and temporary stay in the territory of the other Party for the purpose of negotiating the sale of services or goods, or entering into agreements to sell services or goods for that supplier. They do not engage in making direct sales to the general public and do not receive remuneration from a source located within the host Party, nor are they commission agents;

(d) 'contractual services suppliers' means natural persons employed by a juridical person of one Party which itself is not an agency for placement and supply services of personnel nor acting through such an agency, has no establishment in the territory of the other Party and has concluded a bona fide contract to supply services with a final consumer in the latter Party, requiring the presence on a temporary basis of its employees in that Party, in order to fulfil the contract to provide services ([3]);

(e) 'independent professionals' means natural persons engaged in the supply of a service and established as self-employed in the territory of a Party who have no establishment in the territory of the other Party and who have concluded a bona fide contract (other than through an agency for placement and supply services of personnel) to supply services with a final consumer in the latter Party, requiring their presence on a temporary basis in that Party in order to fulfil the contract to provide services ([4]);

(f) 'qualifications' means diplomas, certificates and other evidence (of formal qualification) issued by an authority designated pursuant to legislative, regulatory or administrative provisions and certifying successful completion of professional training.

Article 215

Key personnel and graduate trainees

1. For every sector committed in accordance with Section 2 (Establishment) of this Chapter and subject to any reservations listed in Annexes XXVII-A and XXVII-E or in Annexes XXVII-C and XXVII-G to this Agreement, each Party shall allow entrepreneurs of the other Party to employ in their establishment natural persons of that other Party provided that such employees are key personnel or graduate trainees as defined in Article 214 of this Agreement. The temporary entry and temporary stay of key personnel and graduate trainees shall be for a period of up to three years for intra-corporate transferees, 90 days in any 12 month period for business visitors for establishment purposes, and one year for graduate trainees.

2. For every sector committed in accordance with Section 2 (Establishment) of this Chapter, the measures which a Party shall not maintain or adopt either on the basis of a regional subdivision or on the basis of its entire territory, unless otherwise specified in Annexes XXVII-C and XXVII-G to this Agreement, are defined as limitations on the total number of natural persons that an entrepreneur may employ as key personnel and graduate trainees in a specific sector, in the form of numerical quotas or of a requirement of an economic needs test, and as discriminatory limitations.

([1]) The recipient establishment may be required to submit a training programme covering the duration of the stay for prior approval, demonstrating that the purpose of the stay is for training. For Czech Republic, Germany, Spain, France, Hungary and Austria, training is required to be linked to the university degree which has been obtained.
([2]) United Kingdom: The category of business sellers is only recognised for services sellers.
([3]) The service contract referred to under points (d) and (e) shall comply with the requirements of the laws, and regulations and requirements of the Party where the contract is executed.
([4]) The service contract referred to under points (d) and (e) shall comply with the requirements of the laws, and regulations and requirements of the Party where the contract is executed.

Article 216

Business sellers

For every sector committed in accordance with Section 2 (Establishment) or Section 3 (Cross-border Supply of Services) of this Chapter and subject to any reservations listed in Annexes XXVII-A and XXVII-E, and XXVII-B and XXVII-F to this Agreement, each Party shall allow the entry and temporary stay of business sellers for a period of up to 90 days in any 12 month period.

Article 217

Contractual service suppliers

1. The Parties reaffirm their respective obligations arising from their commitments under the General Agreement on Trade in Services (GATS) as regards the entry and temporary stay of contractual services suppliers.

In accordance with Annexes XXVII-D and XXVII-H to this Agreement, each Party shall allow the supply of services into their territory by contractual services suppliers of the other Party, subject to the conditions specified in paragraph 3 of this Article.

2. The commitments undertaken by the Parties are subject to the following conditions:

(a) the natural persons must be engaged in the supply of a service on a temporary basis as employees of a juridical person, which has obtained a service contract not exceeding 12 months;

(b) the natural persons entering the other Party should be offering such services as employees of the juridical person supplying the services for at least the year immediately preceding the date of submission of an application for entry into the other Party. In addition, the natural persons shall possess, at the date of submission of an application for entry into the other Party, at least three years professional experience [1] in the sector of activity which is the subject of the contract;

(c) the natural persons entering the other Party shall possess:

  (i) a university degree or a qualification demonstrating knowledge of an equivalent level [2]; and

  (ii) professional qualifications where this is required to exercise an activity pursuant to the laws, regulations or legal requirements of the Party where the service is supplied;

(d) the natural person shall not receive remuneration for the provision of services in the territory of the other Party other than the remuneration paid by the juridical person employing the natural person;

(e) the entry and temporary stay of natural persons within the Party concerned shall be for a cumulative period of not more than six months or, in the case of Luxembourg, 25 weeks in any 12 month period or for the duration of the contract, whichever is less;

(f) access accorded under the provisions of this Article relates only to the service activity which is the subject of the contract and does not confer entitlement to exercise the professional title of the Party where the service is provided; and

(g) the number of persons covered by the service contract shall not be larger than necessary to fulfil the contract, as it may be requested by the laws, regulations or other legal requirements of the Party where the service is supplied.

Article 218

Independent professionals

1. In accordance with Annexes XXVII-D and XXVII-H to this Agreement, the Parties shall allow the supply of services into their territory by independent professionals of the other Party, subject to the conditions specified in paragraph 2 of this Article.

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[1] Obtained after having reached the age of majority.

[2] Where the degree or qualification has not been obtained in the Party where the service is supplied, that Party may evaluate whether this is equivalent to a university degree required in its territory.

2. The commitments undertaken by the Parties are subject to the following conditions:

(a) the natural persons must be engaged in the supply of a service on a temporary basis as self-employed persons established in the other Party and must have obtained a service contract for a period not exceeding 12 months;

(b) the natural persons entering the other Party must possess, at the date of submission of an application for entry into the other Party, at least six years professional experience in the sector of activity which is the subject of the contract;

(c) the natural persons entering the other Party must possess:

(i) a university degree or a qualification demonstrating knowledge of an equivalent level ([1]); and

(ii) professional qualifications where this is required to exercise an activity pursuant to the law, regulations or other legal requirements of the Party where the service is supplied;

(d) the entry and temporary stay of natural persons within the Party concerned shall be for a cumulative period of not more than six months or, in the case of Luxembourg, twenty-five weeks in any 12 month period or for the duration of the contract, whichever is less; and

(e) access accorded under the provisions of this Article relates only to the service activity which is the subject of the contract and does not confer entitlement to exercise the professional title of the Party where the service is provided.

Section 5

Regulatory framework

Sub-section 1

Domestic regulation

Article 219

Scope and Definitions

1. The following disciplines apply to measures by the Parties relating to licencing requirements and procedures, qualification requirements and procedures that affect:

(a) cross-border supply of services;

(b) establishment in their territory of juridical and natural persons defined in Article 203(8) of this Agreement;

(c) temporary stay in their territory of categories of natural persons as defined in Article 214(2)(a) to (e) of this Agreement.

2. In the case of cross-border supply of services, those disciplines shall only apply to sectors for which the Party has undertaken specific commitments and to the extent that those specific commitments apply. In the case of establishment, those disciplines shall not apply to sectors to the extent that a reservation is listed in accordance with Annexes XXVII-A and XXVII-E to this Agreement. In the case of temporary stay of natural persons, those disciplines shall not apply to sectors to the extent that a reservation is listed in accordance with Annexes XXVII-C and XXVII-D and XXVII-G and XXVII-H to this Agreement.

3. Those disciplines do not apply to measures to the extent that they constitute limitations subject to scheduling.

4. For the purposes of this Section:

(a) 'licencing requirements' means substantive requirements, other than qualification requirements, with which a natural or a juridical person is required to comply in order to obtain, amend or renew authorisation to carry out the activities as defined in paragraph 1(a) to (c);

(b) 'licencing procedures' means administrative or procedural rules that a natural or a juridical person, seeking authorisation to carry out the activities as defined in paragraph 1(a) to (c), including the amendment or renewal of a licence, is required to adhere to in order to demonstrate compliance with licencing requirements;

([1]) Where the degree or qualification has not been obtained in the Party where the service is supplied, that Party may evaluate whether this is equivalent to a university degree required in its territory.

(c) 'qualification requirements' means substantive requirements relating to the competence of a natural person to supply a service, and which are required to be demonstrated for the purpose of obtaining authorisation to supply a service;

(d) 'qualification procedures' means administrative or procedural rules that a natural person must adhere to in order to demonstrate compliance with qualification requirements, for the purpose of obtaining authorisation to supply a service; and

(e) 'competent authority' means any central, regional or local government or authority or non-governmental body in the exercise of powers delegated by central, regional or local governments or authorities, which takes a decision concerning the authorisation to supply a service, including through establishment or concerning the authorisation to establish in an economic activity other than services.

Article 220

Conditions for licencing and qualification

1. Each Party shall ensure that measures relating to licencing requirements and procedures, qualification requirements and procedures are based on criteria which preclude the competent authorities from exercising their power of assessment in an arbitrary manner.

2. The criteria referred to in paragraph 1 shall be:

(a) proportionate to a public policy objective;

(b) clear and unambiguous;

(c) objective;

(d) pre-established;

(e) made public in advance; and

(f) transparent and accessible.

3. An authorisation or a licence shall be granted as soon as it is established, in the light of an appropriate examination, that the conditions for obtaining an authorisation or licence have been met.

4. Each Party shall maintain or institute judicial, arbitral or administrative tribunals or procedures which provide, at the request of an affected entrepreneur or service supplier, for a prompt review of, and where justified, appropriate remedies for, administrative decisions affecting establishment, cross-border supply of services or temporary presence of natural persons for business purposes. Where such procedures are not independent of the agency entrusted with the administrative decision concerned, each Party shall ensure that the procedures in fact provide for an objective and impartial review.

5. Where the number of licences available for a given activity is limited because of the scarcity of available natural resources or technical capacity, each Party shall apply a selection procedure to potential candidates which provides full guarantees of impartiality and transparency, including, in particular, adequate publicity about the launch, conduct and completion of the procedure.

6. Subject to the provisions of this Article, in establishing the rules for the selection procedure, each Party may take into account public policy objectives, including considerations of health, safety, the protection of the environment and the preservation of cultural heritage.

Article 221

Licencing and qualification procedures

1. Licencing and qualification procedures and formalities shall be clear, made public in advance and be such as to provide the applicants with a guarantee that their application will be dealt with objectively and impartially.

2. Licencing and qualification procedures and formalities shall be as simple as possible and shall not unduly complicate or delay the provision of the service. Any licencing fees ([1]) which the applicants may incur from their application should be reasonable and proportionate to the cost of the authorisation procedures in question.

3. Each party shall ensure that the decisions of and the procedures used by the competent authority in the licencing or authorisation process are impartial with respect to all applicants. The competent authority should reach its decision in an independent manner and not be accountable to any supplier of the services for which the licence or authorisation is required.

4. Where specific time periods for applications exist, an applicant shall be allowed a reasonable period for the submission of an application. The competent authority shall initiate the processing of an application without undue delay. Where possible, applications should be accepted in electronic format under the same conditions of authenticity as paper submissions.

5. Each Party shall ensure that the processing of an application, including reaching a final decision, is completed within a reasonable timeframe from the submission of a complete application. Each Party shall endeavour to establish the normal timeframe for processing of an application.

6. The competent authority shall, within a reasonable period of time after receipt of an application which it considers incomplete, inform the applicant, to the extent feasible, identify the additional information required to complete the application, and provide the opportunity to correct deficiencies.

7. Authenticated copies should be accepted, where possible, in place of original documents.

8. If an application is rejected by the competent authority, the applicant shall be informed in writing and without undue delay. In principle, the applicant shall, upon request, also be informed of the reasons for rejection of the application and of the timeframe for an appeal against the decision.

9. Each Party shall ensure that a licence or an authorisation, once granted, enters into effect without undue delay in accordance with the terms and conditions specified therein.

Sub-section 2

Provisions of general application

Article 222

Mutual recognition

1. Nothing in this Chapter shall prevent a Party from requiring that natural persons possess the necessary qualifications and/or professional experience specified in the territory where the service is supplied, for the sector of activity concerned.

2. Each Party shall encourage the relevant professional bodies to provide recommendations on mutual recognition to the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, for the purpose of the fulfilment, in whole or in part, by entrepreneurs and service suppliers of the criteria applied by each Party for the authorisation, licensing, operation and certification of entrepreneurs and service suppliers and, in particular, professional services.

3. On receipt of a recommendation referred to in paragraph 2, the Association Committee in Trade configuration shall, within a reasonable time, review that recommendation with a view to determining whether it is consistent with this Agreement and, on the basis of the information in the recommendation, assess in particular:

(a) the extent to which the standards and criteria applied by each Party for the authorisation, licences, operation and certification of services providers and entrepreneurs are converging; and

(b) the potential economic value of a Mutual Recognition Agreement.

([1]) Licencing fees do not include payments for auction, tendering or other non-discriminatory means of awarding concessions, or mandated contributions to universal service provision.

4. Where those requirements are satisfied, the Association Committee in Trade configuration shall establish the necessary steps to negotiate. Thereafter, the Parties shall engage into negotiations, through their competent authorities, of a Mutual Recognition Agreement.

5. Any Mutual Recognition Agreement referred to in paragraph 4 of this Article shall be in accordance with the relevant provisions of the WTO Agreement and, in particular, with Article VII of GATS.

Article 223

Transparency and disclosure of confidential information

1. Each Party shall respond promptly to all requests by the other Party for specific information on any of its measures of general application or international agreements which pertain to or affect this Agreement. Each Party shall also establish one or more enquiry points to provide specific information to entrepreneurs and services suppliers of the other Party, upon request, on all such matters. The Parties shall notify each other their enquiry points within three months after the entry into force of this Agreement. Enquiry points need not be depositories of laws and regulations.

2. Nothing in this Agreement shall require any Party to provide confidential information, the disclosure of which would impede law enforcement or otherwise be contrary to the public interest or prejudice legitimate commercial interests of particular enterprises, public or private.

Sub-section 3

Computer services

Article 224

Understanding on computer services

1. To the extent that trade in computer services is liberalised in accordance with Section 2 (Establishment), Section 3 (Cross-border Supply of Services) and Section 4 (Temporary Presence of Natural Persons for Business Purposes) of this Chapter, the Parties shall comply with the provisions of this Article.

2. CPC ([1]) 84, the UN code used for describing computer and related services, covers the basic functions used to provide all computer and related services:

(a) computer programmes defined as the sets of instructions required to make computers work and communicate (including their development and implementation);

(b) data processing and storage; and

(c) related services, such as consultancy and training services for staff of clients.

Technological developments have led to the increased offering of those services as a bundle or package of related services that can include some or all of those basic functions. For example, services such as web or domain hosting, data mining services and grid computing each consist of a combination of basic computer services functions.

3. Computer and related services, regardless of whether they are delivered via a network, including the internet, include all services that provide:

(a) consulting, strategy, analysis, planning, specification, design, development, installation, implementation, integration, testing, debugging, updating, support, technical assistance, or management of or for computers or computer systems;

([1]) CPC means the Central Products Classification as set out in Statistical Office of the UN, Statistical Papers, Series M, No 77, CPC prov, 1991.

(b) computer programmes, defined as the sets of instructions required to make computers work and communicate (in and of themselves), and consulting, strategy, analysis, planning, specification, design, development, installation, implementation, integration, testing, debugging, updating, adaptation, maintenance, support, technical assistance, management or use of or for computer programmes;

(c) data processing, data storage, data hosting or database services;

(d) maintenance and repair services for office machinery and equipment, including computers; or

(e) training services for staff of clients, related to computer programmes, computers or computer systems, and not elsewhere classified.

4. Computer and related services enable the provision of other services (e.g. banking) by both electronic and other means. However, there is an important distinction between the enabling service (e.g. web-hosting or application hosting) and the content or core service that is being delivered electronically (e.g. banking). In such cases, the content or core service is not covered by CPC 84.

Sub-section 4

Postal and courier services

Article 225

Scope and definitions

1. This Sub-Section sets out the principles of the regulatory framework for all postal and courier service liberalised in accordance with Section 2 (Establishment), Section 3 (Cross-border Supply of Services) and Section 4 (Temporary Presence of Natural Persons for Business Purposes) of this Chapter.

2. For the purposes of this Sub-Section and of Section 2 (Establishment), Section 3 (Cross-border Supply of Services) and Section 4 (Temporary Presence of Natural Persons for Business Purposes) of this Chapter:

(a) a 'licence' means an authorisation, granted to an individual supplier by a regulatory authority, which is required before supplying a given service;

(b) 'universal service' means the permanent provision of a postal service of specified quality at all points in the territory of a Party at affordable prices for all users.

Article 226

Prevention of anti-competitive practices in the postal and courier sector

Appropriate measures shall be maintained or introduced for the purpose of preventing suppliers who, alone or together, have the ability to affect materially the terms of participation (having regard to price and supply) in the relevant market for postal and courier services as a result of use of their position in the market, from engaging in or continuing anti-competitive practices.

Article 227

Universal service

Each Party has the right to define the kind of universal service obligation it wishes to maintain. Such obligations will not be regarded as anti-competitive *per se*, provided they are administered in a transparent, non-discriminatory and competitively neutral manner and are not more burdensome than necessary for the kind of universal service defined by the Party.

Article 228

Licences

1. A licence may only be required for services which are within the scope of the universal service.

2. Where a licence is required, the following shall be made publicly available:

(a) all the licensing criteria and the period of time normally required to reach a decision concerning an application for a licence; and

(b) the terms and conditions of licences.

3. The reasons for the denial of a licence shall be made known to the applicant upon request. An appeal procedure through an independent body will be established by each Party. Such a procedure will be transparent, non-discriminatory, and based on objective criteria.

Article 229

Independence of the regulatory body

The regulatory body shall be legally separate from, and not accountable to, any supplier of postal and courier services. The decisions of and the procedures used by the regulatory body shall be impartial with respect to all market participants.

Article 230

Gradual approximation

Each Party recognises the importance of the gradual approximation of the Republic of Moldova's existing and future legislation to the list of the Union *acquis* set out in Annex XXVIII-C to this Agreement.

Sub-section 5

Electronic communication networks and services

Article 231

Scope and definitions

1. This Sub-Section sets out the principles of the regulatory framework for all electronic communication services liberalised pursuant to Section 2 (Establishment), Section 3 (Cross-border Supply of Services), and Section 4 (Temporary Presence of Natural Persons for Business Purposes) of this Chapter.

2. For the purposes of this Sub-Section and Section 2 (Establishment), Section 3 (Cross-border Supply of Services), and Section 4 (Temporary Presence of Natural Persons for Business Purposes) of this Chapter:

(a) 'electronic communication services' means all services which consist wholly or mainly in the conveyance of signals on electronic communication networks, including telecommunication services and transmission services in networks used for broadcasting. Those services exclude services providing, or exercising editorial control over, content transmitted using electronic communication networks and services;

(b) 'public communication network' means an electronic communication network used wholly or mainly for the provision of publicly available electronic communication services;

(c) 'electronic communication network' means transmission systems and, where applicable, switching or routing equipment and other resources which permit the conveyance of signals by wire, by radio or by optical or other electromagnetic means, including satellite networks, fixed (circuit- and packet-switched, including internet) and mobile terrestrial networks, electricity cable systems, to the extent that they are used for the purpose of transmitting signals, networks used for radio and television broadcasting, and cable television networks, irrespective of the type of information conveyed;

(d) a 'regulatory authority' in the electronic communication sector means the body or bodies charged with the regulation of electronic communication referred to in this Chapter;

(e) a services supplier shall be deemed to have 'significant market power' if, either individually or jointly with others, it enjoys a position equivalent to dominance, that is, a position of economic strength affording it the power to behave to an appreciable extent independently of competitors, customers and ultimately consumers;

(f) 'interconnection' means the physical and logical linking of public communication networks used by the same or a different supplier in order to allow the users of one services supplier to communicate with users of the same or another services supplier, or to access services provided by another services supplier. Services may be provided by the Parties involved or other parties who have access to the network. Interconnection is a specific type of access implemented between public network operators;

(g) 'universal service' means the set of services of specified quality that is made available to all users in the territory of a Party regardless of their geographical location and at an affordable price. Its scope and implementation are decided by each Party;

(h) 'access' means the making available of facilities and/or services to another services supplier under defined conditions, on either an exclusive or non-exclusive basis, for the purpose of providing electronic communication services. It covers, inter alia, access to network elements and associated facilities, which may involve the connection of equipment, by fixed or non-fixed means (this includes, in particular, access to the local loop and to facilities and services necessary to provide services over the local loop); access to physical infrastructure including buildings, ducts, and masts; access to relevant software systems including operational support systems; access to numbering translation or systems offering equivalent functionality; access to fixed and mobile networks, in particular for roaming; access to conditional access systems for digital televisions services; and access to virtual network services;

(i) 'end-user' means a user not providing public communication networks or publicly available electronic communication services;

(j) 'local loop' means the physical circuit connecting the network termination point at the subscriber's premises to the main distribution frame or equivalent facility in the fixed public communication network.

Article 232

Regulatory authority

1. Each Party shall ensure that regulatory authorities for electronic communication services shall be legally distinct and functionally independent from any supplier of electronic communication services. If a Party retains ownership or control of a supplier providing electronic communication networks or services, such Party shall ensure the effective structural separation of the regulatory function from activities associated with ownership or control.

2. Each Party shall ensure that the regulatory authority shall be sufficiently empowered to regulate the sector. The tasks to be undertaken by a regulatory authority shall be made public in an easily accessible and clear form, in particular where those tasks are assigned to more than one body.

3. Each Party shall ensure that the decisions of and the procedures used by the regulatory authorities are impartial with respect to all market participants and transparent.

4. The regulatory authority shall have the power to carry out an analysis of relevant product and service markets susceptible to an *ex ante* regulation. Where the regulatory authority is required to determine under Article 234 of this Agreement whether to impose, maintain, amend or withdraw obligations it shall determine on the basis of a market analysis whether the relevant market is effectively competitive.

5. Where the regulatory authority determines that a relevant market is not effectively competitive, it shall identify and designate services suppliers with significant market power on that market and shall impose, maintain or amend specific regulatory obligations referred to in Article 234 of this Agreement, as appropriate. Where the regulatory authority concludes that the market is effectively competitive it shall not impose or maintain any of the regulatory obligations referred to in Article 234 of this Agreement.

6. Each Party shall ensure that a services supplier affected by the decision of a regulatory authority shall have a right to appeal against that decision to an appeal body that is independent of the parties involved in the decision. Each Party

shall ensure that the merits of the case are duly taken into account. Pending the outcome of any such appeal, the decision of the regulatory authority shall stand, unless the appeal body decides otherwise. Where the appeal body is not judicial in character, written reasons for its decision shall always be given and its decisions shall also be subject to review by an impartial and independent judicial authority. Decisions taken by appeal bodies shall be effectively enforced.

7. Each Party shall ensure that where the regulatory authorities intend to take measures related to any of the provisions of this Sub-Section and which have a significant impact to the relevant market, they give the interested parties the opportunity to comment on the draft measure within a reasonable period of time. Regulatory authorities shall publish their consultation procedures. The results of the consultation procedure shall be made publicly available except in the case of confidential information.

8. Each Party shall ensure that suppliers providing electronic communication networks and services provide all the information, including financial information, necessary for regulatory authorities to ensure conformity with the provisions of this Sub-Section or decisions made in accordance with this Sub-Section. Those suppliers shall provide that information promptly, on request and in accordance with the timelines and level of detail required by the regulatory authority. The information requested by the regulatory authority shall be proportionate to the performance of that task. The regulatory authority shall give the reasons justifying its request for information.

Article 233

Authorisation to provide electronic communication services

1. Each Party shall ensure that the provision of services shall, as much as possible, be authorised following mere notification.

2. Each Party shall ensure that a licence can be required to address issues of attributions of numbers and frequencies. The terms and conditions for such licences shall be made publicly available.

3. Each Party shall ensure that where a licence is required:

(a) all the licensing criteria and a reasonable period of time normally required to reach a decision concerning an application for a licence shall be made publicly available;

(b) the reasons for the denial of a licence shall be made known in writing to the applicant upon request;

(c) the applicant shall be able to seek recourse before an appeal body in case a licence is unduly denied; and

(d) licence fees [1] required by any Party for granting a licence shall not exceed the administrative costs normally incurred in the management, control and enforcement of the applicable licences. Licence fees for the use of radio spectrum and numbering resources are not subject to the requirements of this paragraph.

Article 234

Access and interconnection

1. Each Party shall ensure that any services suppliers authorised to provide electronic communication services shall have the right and obligation to negotiate access and interconnection with suppliers of publicly available electronic communication networks and services. Access and interconnection should, in principle, be agreed on the basis of commercial negotiation between the services suppliers concerned.

2. Each Party shall ensure that services suppliers that acquire information from another supplier during the process of negotiating interconnection arrangements use that information solely for the purpose for which it was supplied and respect at all times the confidentiality of information transmitted or stored.

3. Each Party shall ensure that upon the finding in accordance with Article 232 of this Agreement that a relevant market is not effectively competitive, the regulatory authority shall have the power to impose on the supplier designated as having significant market power one or more of the following obligations in relation to interconnection and/or access:

(a) obligation on non-discrimination to ensure that the operator applies equivalent conditions in equivalent circumstances to other suppliers providing equivalent services, and provides services and information to others under the same conditions and of the same quality as it provides for its own services or those of its subsidiaries or partners;

[1] Licence fees do not include payments for auction, tendering or other non-discriminatory means of awarding concessions, or mandated contributions to universal service provision.

(b) obligation of a vertically integrated company to make transparent its wholesale prices and its internal transfer prices, where there is a requirement for non-discrimination or for prevention of unfair cross-subsidy. The regulatory authority may specify the format and accounting methodology to be used;

(c) obligations to meet reasonable requests for access to, and use of, specific network elements and associated facilities, including unbundled access to the local loop, inter alia, in situations where the regulatory authority considers that denial of access or unreasonable terms and conditions having a similar effect would hinder the emergence of a sustainable competitive market at the retail level or would not be in the end user's interest.

Regulatory authorities may attach conditions covering fairness, reasonableness and timeliness to the obligations included under this point;

(d) to provide specified services on a wholesale basis for resale by third parties; to grant open access to technical interfaces, protocols or other key technologies that are indispensable for the interoperability of services or virtual network services; to provide co-location or other forms of facility sharing, including duct, building or mast sharing; to provide specified services needed to ensure interoperability of end-to-end services to users, including facilities for intelligent network services; to provide access to operational support systems or similar software systems necessary to ensure fair competition in the provision of services; and to interconnect networks or network facilities.

Regulatory authorities may attach conditions covering fairness, reasonableness and timeliness to the obligations included under this point;

(e) obligations relating to cost recovery and price controls, including obligations for cost orientation of prices and obligations concerning cost accounting systems, for the provision of specific types of interconnection and/or access, in situations where a market analysis indicates that a lack of effective competition means that the operator concerned might sustain prices at an excessively high level, or apply a price squeeze, to the detriment of end-users.

Regulatory authorities shall take into account the investment made by the operator and allow him a reasonable rate of return on adequate capital employed, taking into account the risks involved;

(f) to publish the specific obligations imposed on services suppliers by the regulatory authority identifying the specific product/service and geographical markets. Up-to-date information, provided that it is not confidential and it does not comprise business secrets is made publicly available in a manner that guarantees all interested parties easy access to that information;

(g) obligations for transparency requiring operators to make public specified information; in particular, where an operator has obligations of non-discrimination, the regulatory authority may require that operator to publish a reference offer, which shall be sufficiently unbundled to ensure that services suppliers are not required to pay for facilities which are not necessary for the service requested, giving a description of the relevant offerings broken down into components according to market needs, and the associated terms and conditions, including prices.

4. Each Party shall ensure that a service supplier requesting interconnection with a supplier designated as having significant market power shall have recourse, either at any time or after a reasonable period of time which has been made publicly known, to an independent domestic body, which may be a regulatory body as referred to in Article 231(2)(d) of this Agreement to resolve disputes regarding terms and conditions for interconnection and/or access.

Article 235

Scarce resources

1. Each Party shall ensure that any procedures for the allocation and use of scarce resources, including frequencies, numbers and rights of way, shall be carried out in an objective, proportionate, timely, transparent and non-discriminatory manner. The current state of allocated frequency bands shall be made publicly available, but detailed identification of frequencies allocated for specific government uses is not required.

2. Each Party shall ensure the effective management of radio frequencies for electronic communication services in their territory with a view to ensuring effective and efficient use of the spectrum. Where demand for specific frequencies exceeds their availability, appropriate and transparent procedures shall be followed for the assignment of those frequencies in order to optimise their use and facilitate the development of competition.

3. Each Party shall ensure that the assignment of national numbering resources and the management of the national numbering plans are entrusted to the regulatory authority.

4. Where public or local authorities retain ownership or control of suppliers operating public communication networks and/or services, effective structural separation needs to be ensured between the function responsible for granting the rights of way from activities associated with ownership or control.

Article 236

Universal service

1. Each Party has the right to define the kind of universal service obligations it wishes to maintain.

2. Such obligations will not be regarded as anti-competitive *per se*, provided they are administered in a transparent, objective and non-discriminatory way. The administration of such obligations shall also be neutral with respect to competition and shall not be more burdensome than necessary for the kind of universal service defined by the Party.

3. Each Party shall ensure that all suppliers are eligible to ensure universal service and no services supplier is excluded *a priori*. The designation shall be made through an efficient, transparent, objective and non-discriminatory mechanism. Where necessary, each Party shall assess whether the provision of universal service represents an unfair burden on organisation(s) designated to provide universal service. Where justified on the basis of such calculation, and taking into account the market benefit, if any, which accrues to an organisation that offers universal service, regulatory authorities shall determine whether a mechanism is required to compensate the services supplier(s) concerned or to share the net cost of universal service obligations.

4. Each Party shall ensure that:

(a) directories of all subscribers are available to users, whether printed or electronic, or both, and are updated on a regular basis, and at least once a year; and

(b) organisations that provide the services referred to in point (a) apply the principle of non-discrimination to the treatment of information that has been provided to them by other organisations.

Article 237

Cross-border provision of electronic communication services

Neither Party may require a service supplier of the other Party to set up an establishment, to establish any form of presence, or to be resident in its territory as a condition for the cross-border supply of a service.

Article 238

Confidentiality of information

Each Party shall ensure the confidentiality of electronic communications and related traffic data by means of a public communication network and publicly available electronic communication services without restricting trade in services.

Article 239

Disputes between services suppliers

1. Each Party shall ensure that in the event of a dispute arising between suppliers of electronic communication networks or services in connection with rights and obligations referred to in this Chapter, the regulatory authority concerned shall, at the request of either party, issue a binding decision to resolve the dispute in the shortest possible timeframe and in any case within four months.

2. The decision of the regulatory authority shall be made available to the public, having regard to the requirements of business confidentiality. The service suppliers concerned shall be given a full statement of the reasons on which it is based.

3. When such a dispute concerns the cross-border provision of services, the regulatory authorities concerned shall coordinate their efforts in order to bring about a resolution of the dispute.

Article 240

Gradual approximation

Each Party recognises the importance of the gradual approximation of the Republic of Moldova's existing and future legislation to the list of the Union *acquis* set out in Annex XXVIII-B to this Agreement.

Sub-section 6

Financial services

Article 241

Scope and definition

1. This section sets out the principles of the regulatory framework for all financial services liberalised pursuant to Section 2 (Establishment), Section 3 (Cross-border Supply of Services) and Section 4 (Temporary Presence of Natural Persons for Business Purposes) of this Chapter.

2. For the purposes of this Sub-Section and of Section 2 (Establishment), Section 3 (Cross-border Supply of Services) and Section 4 (Temporary Presence of Natural Persons for Business Purposes) of this Chapter:

(a) 'financial service' means any service of a financial nature offered by a financial service supplier of a Party. Financial services comprise the following activities:

(i) insurance and insurance-related services:

(1) direct insurance (including co-insurance):

(a) life;

(b) non-life;

(2) reinsurance and retrocession;

(3) insurance inter-mediation, such as brokerage and agency; and

(4) services auxiliary to insurance, such as consultancy, actuarial, risk assessment and claim settlement services;

(ii) banking and other financial services (excluding insurance):

(1) acceptance of deposits and other repayable funds from the public;

(2) lending of all types, including consumer credit, mortgage credit, factoring and financing of commercial transaction;

(3) financial leasing;

(4) all payment and money transmission services, including credit, charge and debit cards, travellers cheques and bankers drafts;

(5) guarantees and commitments;

(6) trading for own account or for account of customers, whether on an exchange, in an over-the-counter market or otherwise, the following:

(a) money market instruments (including cheques, bills, certificates of deposits);

(b) foreign exchange;

(c) derivative products including, but not limited to, futures and options;

(d) exchange rate and interest rate instruments, including products such as swaps and forward rate agreements;

(e) transferable securities;

(f) other negotiable instruments and financial assets, including bullion;

(7) participation in issues of all kinds of securities, including underwriting and placement as agent (whether publicly or privately) and provision of services related to such issues;

(8) money broking;

(9) asset management, such as cash or portfolio management, all forms of collective investment management, pension fund management, custodial, depository and trust services;

(10) settlement and clearing services for financial assets, including securities, derivative products, and other negotiable instruments;

(11) provision and transfer of financial information, and financial data processing and related software;

(12) advisory, intermediation and other auxiliary financial services on all the activities listed in points (1) to (11), including credit reference and analysis, investment and portfolio research and advice, advice on acquisitions and on corporate restructuring and strategy;

(b) 'financial service supplier' means any natural or juridical person of a Party that seeks to provide or provides financial services. The term 'financial service supplier' does not include a public entity;

(c) 'public entity' means:

(i) a government, a central bank or a monetary and financial authority, of a Party, or an entity owned or controlled by a Party, that is principally engaged in carrying out governmental functions or activities for governmental purposes, not including an entity principally engaged in supplying financial services on commercial terms; or

(ii) a private entity, performing functions normally performed by a central bank or monetary and financial authority, when exercising those functions;

(d) 'new financial service' means a service of a financial nature, including services related to existing and new products or the manner in which a product is delivered, that is not supplied by any financial service supplier in the territory of a Party but which is supplied in the territory of the other Party.

Article 242

Prudential carve-out

1. Each Party may adopt or maintain measures for prudential reasons, such as:

(a) the protection of investors, depositors, policy-holders or persons to whom a fiduciary duty is owed by a financial service supplier; and

(b) ensuring the integrity and stability of a Party's financial system.

2. Those measures shall not be more burdensome than necessary to achieve their aim, and shall not discriminate against financial service suppliers of the other Party in comparison to its own like financial service suppliers.

3. Nothing in this Agreement shall be construed to require a Party to disclose information relating to the affairs and accounts of individual consumers or any confidential or proprietary information in the possession of public entities.

Article 243

Effective and transparent regulation

1. Each Party shall make its best endeavours to provide in advance to all interested persons any measure of general application that the Party proposes to adopt in order to allow an opportunity for such persons to comment on the measure. Such measure shall be provided:

(a) by means of an official publication; or

(b) in other written or electronic form.

2. Each Party shall make available to interested persons its requirements for completing applications relating to the supply of financial services.

On the request of an applicant, the concerned Party shall inform the applicant of the status of its application. If the concerned Party requires additional information from the applicant, it shall notify the applicant without undue delay.

3. Each Party shall make its best endeavours to ensure that internationally agreed standards for regulation and supervision in the financial services sector and for the fight against tax evasion and avoidance are implemented and applied in its territory. Such internationally agreed standards are, inter alia, the 'Core Principles for Effective Banking Supervision' of the Basel Committee on Banking Supervision, the International Association of Insurance Supervisors' 'Insurance Core Principles', the International Organisation of Securities Commissions' 'Objectives and Principles of Securities Regulation', the 'Agreement on Exchange of Information on Tax Matters' of the Organisation for Economic Cooperation and Development (OECD), the G20 'Statement on Transparency and Exchange of Information for Tax Purposes' and the Financial Action Task Force's 'Forty Recommendations' on money laundering and 'Nine Special Recommendations' on terrorist financing.

The Parties also take note of the 'Ten Key Principles for Information Exchange', promulgated by the G7 Finance Ministers, and will take all steps necessary to try to apply them in their bilateral contacts.

Article 244

New financial services

Each Party shall permit a financial service supplier of the other Party to provide any new financial service of a type similar to those services that the Party would permit its own financial service suppliers to provide under its domestic law in like circumstances. A Party may determine the juridical form through which the service may be provided and may require authorisation for the provision of the service. Where such authorisation is required, a decision shall be made within a reasonable time and the authorisation may only be refused for prudential reasons.

Article 245

Data processing

1. Each Party shall permit a financial service supplier of the other Party to transfer information in electronic or other form, into and out of its territory, for data processing where such processing is required in the ordinary course of business of such financial service supplier.

2. Each Party shall adopt adequate safeguards for the protection of privacy and fundamental rights and freedoms of individuals, in particular with regard to the transfer of personal data.

Article 246

Specific exceptions

1. Nothing in this Chapter shall be construed to prevent a Party, including its public entities, from exclusively conducting or providing in its territory activities or services forming part of a public retirement plan or statutory system of social security, except when those activities may be carried out, as provided by the Party's domestic regulation, by financial service suppliers in competition with public entities or private institutions.

2. Nothing in this Agreement applies to activities conducted by a central bank or monetary authority or by any other public entity in pursuit of monetary or exchange rate policies.

3. Nothing in this Chapter shall be construed to prevent a Party, including its public entities, from exclusively conducting or providing in its territory activities or services for the account, or with the guarantee, or using the financial resources, of the Party or its public entities.

Article 247

Self-regulatory organisations

When a Party requires membership or participation in, or access to, any self-regulatory body, securities or futures exchange or market, clearing agency, or any other organisation or association, in order for financial service suppliers of the other Party to supply financial services on an equal basis with financial service suppliers of the Party, or when the Party provides such entities, directly or indirectly, with privileges or advantages in supplying financial services, the Party shall ensure observance of the obligations of Article 205(1) and Article 211 of this Agreement.

Article 248

Clearing and payment systems

Under the terms and conditions that accord national treatment, each Party shall grant to financial service suppliers of the other Party established in its territory access to payment and clearing systems operated by public entities, and to official funding and refinancing facilities available in the normal course of ordinary business. This Article does not confer access to the Party's lender to last resort facilities.

Article 249

Gradual approximation

Each Party recognises the importance of the gradual approximation of the Republic of Moldova's existing and future legislation to the international best practice standards listed under Article 243(3) of this Agreement as well as to the list of the Union *acquis* set out in Annex XXVIII-A to this Agreement.

Sub-section 7

Transport services

Article 250

Scope

This Section sets out the principles regarding the liberalisation of international transport services pursuant to Section 2 (Establishment), Section 3 (Cross-border Supply of Services) and Section 4 (Temporary Presence of Natural Persons for Business Purposes) of this Chapter.

Article 251

International maritime transport

1. For the purposes of this Sub-Section and Section 2 (Establishment), Section 3 (Cross-border supply of services) and Section 4 (Temporary presence of natural persons for business purposes) of this Chapter:

(a) 'international maritime transport' includes door to door and multi-modal transport operations, which is the carriage of goods using more than one mode of transport, involving a sea-leg, under a single transport document, and to that effect the right to directly contract with providers of other modes of transport;

(b) 'maritime cargo handling services' means activities exercised by stevedore companies, including terminal operators, but not including the direct activities of dockers, when that workforce is organised independently of the stevedoring or terminal operator companies. The activities covered include the organisation and supervision of:

(i) the loading/discharging of cargo to/from a ship;

(ii) the lashing/unlashing of cargo; and

(iii) the reception/delivery and safekeeping of cargoes before shipment or after discharge;

(c) 'customs clearance services' (alternatively 'customs house brokers' services') means activities consisting in carrying out on behalf of another Party customs formalities concerning import, export or through transport of cargoes, whether that service is the main activity of the service provider or a usual complement of its main activity;

(d) 'container station and depot services' means activities consisting in storing containers, whether in port areas or inland, with a view to their stuffing/stripping, repairing and making them available for shipments;

(e) 'maritime agency services' means activities consisting in representing, within a given geographic area, as an agent the business interests of one or more shipping lines or shipping companies, for the following purposes:

(i) marketing and sales of maritime transport and related services, from quotation to invoicing, and issuance of bills of lading on behalf of the companies, acquisition and resale of the necessary related services, preparation of documentation, and provision of business information;

(ii) acting on behalf of the companies organising the call of the ship or taking over cargoes when required;

(f) 'freight forwarding services' means the activity consisting of organising and monitoring shipment operations on behalf of shippers, through the acquisition of transport and related services, preparation of documentation and provision of business information;

(g) 'feeder services' means the pre- and onward transportation of international cargoes by sea, notably containerised, between ports located in a Party.

2. As regards international maritime transport, each Party agrees to ensure effective application of the principle of unrestricted access to cargoes on a commercial basis, the freedom to provide international maritime services, as well as national treatment in the framework of the provision of such services.

In view of the existing levels of liberalisation between the Parties in international maritime transport:

(a) each Party shall apply effectively the principle of unrestricted access to the international maritime markets and trades on a commercial and non-discriminatory basis;

(b) each Party shall grant to ships flying the flag of the other Party, or operated by service suppliers of the other Party, treatment no less favourable than that accorded to its own ships or those of any third country, whichever is the better, with regard to, inter alia, access to ports, the use of infrastructure and services of ports, and the use of maritime auxiliary services, as well as related fees and charges, customs facilities and the assignment of berths and facilities for loading and unloading.

3. In applying those principles, the Parties shall:

(a) not introduce cargo-sharing arrangements in future agreements with third countries concerning maritime transport services, including dry and liquid bulk and liner trade, and terminate, within a reasonable period of time, such cargo-sharing arrangements in case they exist in previous agreements; and

(b) upon the entry into force of this Agreement, abolish and abstain from introducing any unilateral measures and administrative, technical and other obstacles which could constitute a disguised restriction or have discriminatory effects on the free supply of services in international maritime transport.

4. Each Party shall permit international maritime transport service suppliers of the other Party to have an establishment in its territory under conditions of establishment and operation no less favourable than those accorded to its own service suppliers or those of any third country, whichever are the better.

5. Each Party shall make available to maritime transport service suppliers of the other Party on reasonable and non-discriminatory terms and conditions the following services at the port: pilotage, towing and tug assistance, provisioning, fuelling and watering, garbage collecting and ballast waste disposal, port captain's services, navigation aids, shore-based operational services essential to ship operations, including communications, water and electrical supplies, emergency repair facilities, anchorage, berth and berthing services.

6. Each Party shall permit the movement of equipment such as empty containers, not being carried as cargo against payment, between ports of a Member State or between ports of the Republic of Moldova.

7. Each Party, subject to the authorisation of the competent authority, shall permit international maritime transport service suppliers of the other Party to provide feeder services between their national ports.

Article 252

Air transport

A progressive liberalisation of air transport between the Parties, adapted to their reciprocal commercial needs and the conditions of mutual market access, is dealt with by the Common Aviation Area Agreement between the EU and its Member States and the Republic of Moldova.

Article 253

Gradual approximation

Each Party recognises the importance of the gradual approximation of the Republic of Moldova's existing and future legislation to the list of the Union *acquis* set out in Annex XXVIII-D to this Agreement.

Section 6

Electronic commerce

Sub-section 1

General provisions

Article 254

Objective and principles

1. The Parties, recognising that electronic commerce increases trade opportunities in many sectors, agree to promote the development of electronic commerce between them, in particular by cooperating on the issues raised by electronic commerce under the provisions of this Chapter.

2. The Parties agree that the development of electronic commerce must be fully compatible with the highest international standards of data protection, in order to ensure the confidence of users of electronic commerce.

3. The Parties agree that electronic transmissions shall be considered as the provision of services, within the meaning of Section 3 (Cross-border Supply of Services) of this Chapter, which cannot be subject to customs duties.

Article 255

Cooperation in electronic commerce

1. The Parties shall maintain a dialogue on regulatory issues raised by electronic commerce, which will address, inter alia, the following issues:

(a) the recognition of certificates of electronic signatures issued to the public and the facilitation of cross-border certification services;

(b) the liability of intermediary service providers with respect to the transmission or storage of information;

(c) the treatment of unsolicited electronic commercial communications;

(d) the protection of consumers in the ambit of electronic commerce; and

(e) any other issue relevant for the development of electronic commerce.

2. Such cooperation can take the form of exchange of information on the Parties' respective legislation on those issues as well as on the implementation of such legislation.

Sub-section 2

Liability of intermediary service providers

Article 256

Use of intermediaries' services

1. The Parties recognise that the services of intermediaries can be used by third parties for infringing activities and shall provide the measures set out in this Sub-Section in respect of intermediary service providers.

2. For the purposes of Article 257 of this Agreement, 'service provider' means a provider of transmission, routing, or connections for digital online communication between or among points specified by the user, of material of the user's choice without modifying its content. For the purposes of Articles 258 and 259 of this Agreement, 'service provider' means a provider or operator of facilities for online services or network access.

Article 257

Liability of intermediary service providers: 'mere conduit'

1. Where an information society service is provided that consists of the transmission in a communication network of information provided by a recipient of the service, or the provision of access to a communication network, each Party shall ensure that the service provider is not liable for the information transmitted, on condition that the provider:

(a) does not initiate the transmission;

(b) does not select the receiver of the transmission; and

(c) does not select or modify the information contained in the transmission.

2. The acts of transmission and of provision of access referred to in paragraph 1 include the automatic, intermediate and transient storage of the information transmitted in so far as it takes place for the sole purpose of carrying out the transmission in the communication network, and provided that the information is not stored for any period longer than is reasonably necessary for the transmission.

3. This Article shall not affect the possibility for a court or administrative authority, in accordance with the Parties' legal systems, of requiring the service provider to terminate or prevent an infringement.

Article 258

Liability of intermediary service providers: 'caching'

1. Where an information society service is provided that consists of the transmission in a communication network of information provided by a recipient of the service, each Party shall ensure that the service provider is not liable for the automatic, intermediate and temporary storage of that information, performed for the sole purpose of making more efficient the onward transmission of the information to other recipients of the service upon their request, on condition that:

(a) the provider does not modify the information;

(b) the provider complies with conditions on access to the information;

(c) the provider complies with rules regarding the updating of the information, specified in a manner widely recognised and used by industry;

(d) the provider does not interfere with the lawful use of technology, widely recognised and used by industry, to obtain data on the use of the information; and

(e) the provider acts expeditiously to remove or to disable access to the information it has stored upon obtaining actual knowledge of the fact that the information at the initial source of the transmission has been removed from the network, or access to it has been disabled, or that a court or an administrative authority has ordered such removal or disablement.

2. This Article shall not affect the possibility for a court or administrative authority, in accordance with the Parties' legal systems, of requiring the service provider to terminate or prevent an infringement.

Article 259

Liability of intermediary service providers: 'hosting'

1. Where an information society service is provided that consists of the storage of information provided by a recipient of the service, each Party shall ensure that the service provider is not liable for the information stored at the request of a recipient of the service, on condition that:

(a) the provider does not have actual knowledge of illegal activity or information and, as regards claims for damages, is not aware of facts or circumstances from which the illegal activity or information is apparent; or

(b) the provider, upon obtaining such knowledge or awareness, acts expeditiously to remove or to disable access to the information.

2. Paragraph 1 shall not apply when the recipient of the service is acting under the authority or the control of the provider.

3. This Article shall not affect the possibility for a court or administrative authority, in accordance with the Parties' legal systems, of requiring the service provider to terminate or prevent an infringement, nor does it affect the possibility for the Parties of establishing procedures governing the removal or disabling of access to information.

Article 260

No general obligation to monitor

1. The Parties shall not impose a general obligation on providers, when providing the services covered by Articles 257, 258 and 259 of this Agreement, to monitor the information which they transmit or store, nor shall they impose a general obligation to actively seek facts or circumstances indicating illegal activity.

2. A Party may establish obligations for information society service providers to promptly inform the competent public authorities of alleged illegal activities undertaken or information provided by recipients of their service or obligations to communicate to the competent authorities, at their request, information enabling the identification of recipients of their service with whom they have storage agreements.

Section 7

Exceptions

Article 261

General exceptions

1. Without prejudice to general exceptions set in Articles 446 of this Agreement, the provisions of this Chapter and of Annexes XXVII-A and XXVII-E, XXVII-B and XXVII-F, XXVII-C and XXVII-G, XXVII-D and XXVII-H to this Agreement are subject to the exceptions provided for in this Article.

2. Subject to the requirement that such measures are not applied in a manner which would constitute a means of arbitrary or unjustifiable discrimination between countries where like conditions prevail, or a disguised restriction on establishment or cross-border supply of services, nothing in this Chapter shall be construed to prevent the adoption or enforcement by any Party of measures:

(a) necessary to protect public security or public morals or to maintain public order;

(b) necessary to protect human, animal or plant life or health;

(c) relating to the conservation of exhaustible natural resources if such measures are applied in conjunction with restrictions on domestic entrepreneurs or on the domestic supply or consumption of services;

(d) necessary for the protection of national treasures of artistic, historic or archaeological value;

(e) necessary to secure compliance with laws or regulations which are not inconsistent with the provisions of this Chapter, including those relating to:

  (i) the prevention of deceptive and fraudulent practices or dealing with the effects of a default on contracts;

  (ii) the protection of the privacy of individuals in relation to the processing and dissemination of personal data and the protection of confidentiality of individual records and accounts;

  (iii) safety;

(f) inconsistent with Articles 205(1) and 211 of this Agreement, provided that the difference in treatment is aimed at ensuring the effective or equitable imposition or collection of direct taxes in respect of economic activities, entrepreneurs or services suppliers of the other Party ([1]).

3. The provisions of this Chapter and of Annexes XXVII-A and XXVII-E, XXVII-B and XXVII-F, XXVII-C and XXVII-G, XXVII-D and XXVII-H to this Agreement shall not apply to the Parties' respective social security systems or to activities in the territory of each Party which are connected, even occasionally, with the exercise of official authority.

Article 262

Taxation measures

The most-favoured-nation treatment granted in accordance with the provisions of this Chapter shall not apply to the tax treatment that Parties are providing or will provide in future on the basis of agreements between the Parties designed to avoid double taxation.

([1]) Measures that are aimed at ensuring the equitable or effective imposition or collection of direct taxes include measures taken by a Party under its taxation system which:
(a) apply to non-resident entrepreneurs and services suppliers in recognition of the fact that the tax obligation of non-residents is determined with respect to taxable items sourced or located in the Party's territory;
(b) apply to non-residents in order to ensure the imposition or collection of taxes in the Party's territory;
(c) apply to non-residents or residents in order to prevent the avoidance or evasion of taxes, including compliance measures;
(d) apply to consumers of services supplied in or from the territory of another Party in order to ensure the imposition or collection of taxes on such consumers derived from sources in the Party's territory;
(e) distinguish entrepreneurs and service suppliers subject to tax on worldwide taxable items from other entrepreneurs and service suppliers, in recognition of the difference in the nature of the tax base between them; or
(f) determine, allocate or apportion income, profit, gain, loss, deduction or credit of resident persons or branches, or between related persons or branches of the same person, in order to safeguard the Party's tax base.
Tax terms or concepts referred to in point (f) of this paragraph and in this footnote are determined according to tax definitions and concepts, or equivalent or similar definitions and concepts, under the domestic law of the Party taking the measure.

Article 263

Security exceptions

Nothing in this Agreement shall be construed to:

(a) require any Party to furnish any information, the disclosure of which it considers contrary to its essential security interests;

(b) prevent any Party from taking any action which it considers necessary for the protection of its essential security interests:

(i) connected with the production of, or trade, in arms, munitions or war materiel;

(ii) relating to economic activities carried out directly or indirectly for the purpose of provisioning a military establishment;

(iii) relating to fissionable and fusionable materials or the materials from which they are derived; or

(iv) taken in time of war or other emergency in international relations; or

(c) prevent any Party from taking any action in pursuance of obligations it has accepted for the purpose of maintaining international peace and security.

CHAPTER 7

Current payments and movement of capital

Article 264

Current payments

The Parties undertake to authorise, in freely convertible currency, in accordance with the provisions of Article VIII of the Agreement of the International Monetary Fund, any payments and transfers on the current account of balance of payments between the Parties.

Article 265

Capital movements

1. With regard to transactions on the capital and financial account of balance of payments, from the entry into force of this Agreement, the Parties shall ensure the free movement of capital relating to direct investments, including the acquisition of real estate, made in accordance with the laws of the host country, investments made in accordance with the provisions of Chapter 6 (Establishment, Trade in Services and Electronic Commerce) of Title V (Trade and Trade-related Matters) of this Agreement, and the liquidation or repatriation of invested capital and of any profit stemming therefrom.

2. With regard to transactions on the capital and financial account of balance of payments other than the transactions listed in paragraph 1, from the entry into force of this Agreement, each Party shall ensure, without prejudice to other provisions of this Agreement,

(a) the free movement of capital relating to credits for commercial transactions or for the provision of services in which a resident of one of the Parties is participating; and

(b) the free movement of capital relating to portfolio investments, financial loans and credits by the investors of the other Party.

Article 266

Safeguard measures

Where, in exceptional circumstances, payments or movements of capital cause, or threaten to cause, serious difficulties for the operation of exchange rate policy or monetary policy, including serious balance of payments difficulties, in one

or more Member States or in the Republic of Moldova, the Parties concerned may take safeguard measures for a period not exceeding six months if such measures are strictly necessary. The Party adopting the safeguard measure shall inform the other Party forthwith of the adoption of any safeguard measure and, as soon as possible, of a time schedule for its removal.

Article 267

Facilitation and evolution provisions

1. The Parties shall consult with a view to facilitating the movement of capital between the Parties in order to promote the objectives of this Agreement.

2. During the first four years following the date of entry into force of this Agreement, the Parties shall take measures permitting the creation of the necessary conditions for further gradual application of the Union rules on the free movement of capital.

3. By the end of the fifth year following the date of entry into force of this Agreement, the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, shall review the measures taken and determine the modalities for further liberalisation.

CHAPTER 8

Public procurement

Article 268

Objectives

1. The Parties recognise the contribution of transparent, non-discriminatory, competitive and open tendering to sustainable economic development and set as their objective the effective, reciprocal and gradual opening of their respective procurement markets.

2. This Chapter envisages mutual access to public procurement markets on the basis of the principle of national treatment at national, regional and local level for public contracts and concessions in the public sector as well as in the utilities sector. It provides for a gradual approximation of the public procurement legislation in the Republic of Moldova with the Union *acquis* on public procurement, accompanied with an institutional reform and the creation of an efficient public procurement system based on the principles governing public procurement in the Union and the terms and definitions set out in Directive 2004/18/EC of the European Parliament and of the Council of 31 March 2004 on the coordination of procedures for the award of public works contracts, public supply contracts and public service contracts and Directive 2004/17/EC of the European Parliament and of the Council of 31 March 2004 coordinating the procurement procedures of entities operating in the water, energy, transport and postal services sectors.

Article 269

Scope

1. This Chapter applies to works, supplies and services public contracts, as well as works, supplies and service contracts in the utilities sectors and works and services concessions.

2. This Chapter applies to any contracting authority and any contracting entity which meets the definitions of the Union *acquis* on public procurement (hereinafter referred to as the 'contracting entities'). It also covers bodies governed by public law and public undertakings in the field of utilities, such as state-owned enterprises carrying out the relevant activities, and private undertakings operating on the basis of special and exclusive rights in the field of utilities.

3. This Chapter applies to contracts above value thresholds set out in Annex XXIX-A to this Agreement.

4. The calculation of the estimated value of a public contract shall be based on the total amount payable, net of taxes on value added. When applying those thresholds, the Republic of Moldova will calculate and convert contract values into its national currency, using the conversion rate of its National Bank.

5. Value thresholds shall be revised regularly every two years, beginning in the year of entry into force of this Agreement, based on the average daily value of the euro, expressed in Special Drawing Rights, over the 24 month period terminating on the last day of August preceding the revision, with effect from January 1. The value of the thresholds thus revised shall, where necessary, be rounded down to nearest thousand euro. The revision of the thresholds shall be adopted by decision of the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement.

Article 270

Institutional background

1. Each Party shall establish or maintain an appropriate institutional framework and mechanisms necessary for the proper functioning of the public procurement system and the implementation of the provisions of this Chapter.

2. In the framework of institutional reform, the Republic of Moldova shall designate in particular:

(a) an executive body responsible for economic policy at central government level tasked with guaranteeing a coherent policy in all areas related to public procurement. Such a body shall facilitate and coordinate the implementation of this Chapter and guide the process of gradual approximation to the Union *acquis*; and

(b) an impartial and independent body tasked with the review of decisions taken by contracting authorities or entities during the award of contracts. In that context, 'independent' means that that body shall be a public authority which is separate from all contracting entities and economic operators. There shall be a possibility to subject the decisions taken by that body to judicial review.

3. Each Party shall ensure that decisions taken by the authorities responsible for the review of complaints by economic operators concerning infringements of domestic law shall be effectively enforced.

Article 271

Basic standards regulating the award of contracts

1. No later than nine months from the entry into force of this Agreement, the Parties shall comply with a set of basic standards for the award of all contracts as stipulated in paragraphs 2 to 15. Those basic standards derive directly from the rules and principles of public procurement, as regulated in the Union *acquis* on public procurement, including the principles of non-discrimination, equal treatment, transparency and proportionality.

Publication

2. Each Party shall ensure that all intended procurements are published in an appropriate medium in a manner that is sufficient to:

(a) enable the market to be opened up to competition; and

(b) allow any interested economic operator to have appropriate access to information regarding the intended procurement prior to the award of the contract and to express its interest in obtaining the contract.

3. The publication shall be appropriate to the economic interest of the contract to economic operators.

4. The publication shall contain at least the essential details of the contract to be awarded, the criteria for qualitative selection, the award method, the contract award criteria and any other additional information that the economic operators reasonably need to decide on whether to express their interest in obtaining the contract.

Award of contracts

5. All contracts shall be awarded through transparent and impartial award procedures that prevent corrupt practices. That impartiality shall be ensured in particular through the non-discriminatory description of the subject matter of the contract, equal access for all economic operators, appropriate time-limits and a transparent and objective approach.

6. When describing the characteristics of the required work, supply or service, the contracting entities shall use general descriptions of performance and functions and international, European or national standards.

7. The description of the characteristics required of a work, supply or service shall not refer to a specific make or source, or a particular process, or to trademarks, patents, types or a specific origin or production unless such a reference is justified by the subject matter of the contract and accompanied by the words 'or equivalent'. Preference shall be given to the use of general descriptions of performance or functions.

8. Contracting entities shall not impose conditions resulting in direct or indirect discrimination against the economic operators of the other Party, such as the requirement that economic operators interested in the contract are required to be established in the same country, region or territory as the contracting entity.

Notwithstanding the first subparagraph, in cases where it is justified by the specific circumstances of the contract, the successful applicant may be required to establish certain business infrastructure at the place of performance.

9. The time-limits for expression of interest and for submission of offers shall be sufficiently long to allow economic operators from the other Party to make a meaningful assessment of the tender and prepare their offer.

10. All participants are required to know the applicable rules, selection criteria and award criteria in advance. Those rules must apply equally to all participants.

11. Contracting entities may invite a limited number of applicants to submit an offer, provided that:

(a) it is done in a transparent and non-discriminatory manner; and

(b) the selection is based only on objective factors such as the experience of the applicants in the sector concerned, the size and infrastructure of their businesses or their technical and professional abilities.

In inviting a limited number of applicants to submit an offer, account shall be taken of the need to ensure adequate competition.

12. Contracting entities may use negotiated procedures only in exceptional and defined cases when the use of such a procedure effectively does not distort competition.

13. Contracting entities may use qualification systems only under the condition that the list of qualified operators is compiled by means of a sufficiently advertised, transparent and open procedure. Contracts falling within the scope of such a system shall be awarded also on a non-discriminatory basis.

14. Each Party shall ensure that contracts are awarded in a transparent manner to the applicant who has submitted the economically most advantageous offer or the offer with the lowest price, based on the tender criteria and the procedural rules established and communicated in advance. The final decisions shall be communicated to all applicants without undue delay. Upon request of an unsuccessful applicant, reasons must be provided in sufficient detail to allow the review of such a decision.

Judicial protection

15. Each Party shall ensure that any person having or having had an interest in obtaining a particular contract and who has been, or risks being, harmed by an alleged infringement is entitled to effective, impartial judicial protection against any decision of the contracting entity related to the award of that contract. The decisions taken in the course and at the end of such review procedure shall be made public in a manner that is sufficient to inform all interested economic operators.

Article 272

Planning of gradual approximation

1. Prior to the commencement of gradual approximation, the Republic of Moldova shall submit to the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, a comprehensive roadmap for the implementation of this Chapter with time schedules and milestones which shall include all reforms in terms of approximation to the Union *acquis* and institutional capacity building. This roadmap shall comply with the phases and time schedules set out in Annex XXIX-B to this Agreement.

2. The roadmap shall cover all aspects of the reform and the general legal framework for the implementation of public procurement activities, in particular, approximation for public contracts, contracts in the utilities sector, works concessions and review procedures, and strengthening of the administrative capacity at all levels, including review bodies and enforcement mechanisms.

3. Following a favourable opinion by the Association Committee in Trade configuration, the roadmap shall be considered as the reference document for the implementation of this Chapter. The Union shall make its best efforts in assisting the Republic of Moldova in the implementation of the roadmap.

Article 273

Gradual approximation

1. The Republic of Moldova shall ensure that its existing and future legislation on public procurement will be gradually made compatible with the Union *acquis* on public procurement.

2. Approximation to the Union *acquis* shall be carried out in consecutive phases as set out in the schedule in Annex XXIX-B to this Agreement and further specified in Annexes XXIX-C to XXIX-F, XXIX-H, XXIX-I, and XXIX-K thereof. Annexes XXIX-G and XXIX-J to this Agreement identify non-mandatory elements that need not be approximated, whereas Annexes XXIX-L to XXIX-O to this Agreement identify elements of the Union *acquis* that remain outside the scope of approximation. In that process, due account shall be taken of the corresponding case law of the Court of Justice of the European Union and the implementing measures adopted by the European Commission, as well as, should it become necessary, of any modifications of the Union *acquis* occurring in the meantime. The implementation of each phase shall be evaluated by the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, and, following a positive assessment by that Committee, it shall be linked to the reciprocal granting of market access as set out in Annex XXIX-B to this Agreement. The European Commission shall notify without undue delay the Republic of Moldova of any modifications to the Union *acquis*. It shall provide appropriate advice and technical assistance for the purpose of implementing such modifications.

3. The Association Committee in Trade configuration shall only proceed to the evaluation of a next phase once the measures to implement the previous phase have been carried out and approved according to the modalities set out in paragraph 2.

4. Each Party shall ensure that those aspects and areas of public procurement which are not covered by this Article comply with the principles of transparency, non-discrimination and equal treatment as set out under Article 271 of this Agreement.

Article 274

Market access

1. The Parties agree that the effective and reciprocal opening of their respective markets shall be attained gradually and simultaneously. During the process of approximation, the extent of the market access mutually granted shall be linked to the progress made in that process as stipulated in Annex XXIX-B to this Agreement.

2. The decision to proceed to a further phase of market opening shall be made on the basis of an assessment of the quality of the legislation adopted as well as its practical implementation. Such assessment shall be carried out regularly by the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement.

3. In so far as a Party has, according to Annex XXIX-B to this Agreement, opened its procurement market to the other Party:

(a) the Union shall grant access to contract award procedures to companies of the Republic of Moldova, whether established or not in the Union, pursuant to Union public procurement rules under treatment no less favourable than that accorded to Union companies;

(b) the Republic of Moldova shall grant access to contract award procedures for Union companies, whether established or not in the Republic of Moldova, pursuant to national procurement rules under treatment no less favourable than that accorded to companies of the Republic of Moldova.

4. After the implementation of the last phase in the process of approximation, the Parties will examine the possibility to grant mutual market access with regard to procurements below the value thresholds set out in Annex XXIX-A to this Agreement.

5. Finland reserves its position with regard to the Åland Islands.

Article 275

Information

1. Each Party shall ensure that contracting entities and economic operators are appropriately informed about public procurement procedures, including through the publication of all relevant legislation and administrative rulings.

2. Each Party shall ensure the effective dissemination of information on tendering opportunities.

Article 276

Cooperation

1. The Parties shall enhance their cooperation through exchanges of experience and information relating to their best practices and regulatory frameworks.

2. The Union shall facilitate the implementation of this Chapter, including through technical assistance where appropriate. In line with the provisions in Title VI (Financial Assistance, and Anti-Fraud and Control Provisions) of this Agreement, specific decisions on financial assistance shall be taken through the relevant Union funding mechanisms and instruments.

3. An indicative list of issues for cooperation is included in Annex XXIX-P to this Agreement.

CHAPTER 9

Intellectual property rights

Section 1

General provisions and principles

Article 277

Objectives

The objectives of this Chapter are to:

(a) facilitate the production and commercialisation of innovative and creative products between the Parties; and

(b) achieve an adequate and effective level of protection and enforcement of intellectual property rights.

Article 278

Nature and scope of obligations

1. The Parties shall ensure the adequate and effective implementation of the international agreements dealing with intellectual property to which they are parties, including the WTO Agreement on Trade-Related Aspects of Intellectual Property Rights ('the TRIPS Agreement'). The provisions of this Chapter shall complement and further specify the rights and obligations between the Parties under the TRIPS Agreement and other international agreements in the field of intellectual property.

2. For the purposes of this Agreement, the expression 'intellectual property' refers at least to all categories of intellectual property covered by Articles 280 to 317 of this Agreement.

3. Protection of intellectual property includes protection against unfair competition as referred to in Article 10*bis* of the Paris Convention for the Protection of Industrial Property of 1967 ('the Paris Convention').

Article 279

Exhaustion

Each Party shall provide for a regime of domestic or regional exhaustion of intellectual property rights.

Section 2

Standards concerning intellectual property rights

Sub-section 1

Copyright and related rights

Article 280

Protection granted

The Parties shall comply with the rights and obligations set out in the following international agreements:

(a) the Berne Convention for the Protection of Literary and Artistic Works ('the Berne Convention');

(b) the International Convention for the Protection of Performers, Producers of Phonograms and Broadcasting Organisations of 1961;

(c) the TRIPS Agreement;

(d) the WIPO Copyright Treaty; and

(e) the WIPO Performances and Phonograms Treaty.

Article 281

Authors

Each Party shall provide for authors the exclusive right to authorise or prohibit:

(a) the direct or indirect, temporary or permanent, reproduction by any means and in any form, in whole or in part, of their works;

(b) any form of distribution to the public by sale or otherwise of the original of their works or of copies thereof; and

(c) any communication to the public of their works, by wire or wireless means, including the making available to the public of their works in such a way that members of the public may access them from a place and at a time individually chosen by them.

Article 282

Performers

Each Party shall provide for performers the exclusive right to:

(a) authorise or prohibit the fixation ([1]) of their performances;

(b) authorise or prohibit the direct or indirect, temporary or permanent, reproduction by any means and in any form, in whole or in part, of fixations of their performances;

(c) make available to the public, by sale or otherwise, fixations of their performances;

(d) authorise or prohibit the making available to the public, by wire or wireless means, in such a way that members of the public may access them from a place and at a time individually chosen by them, of fixations of their performances;

(e) authorise or prohibit the broadcasting by wireless means and the communication to the public of their performances, except where the performance is itself already a broadcast performance or is made from a fixation.

Article 283

Producers of phonograms

Each Party shall provide for phonogram producers the exclusive right to:

(a) authorise or prohibit the direct or indirect, temporary or permanent, reproduction by any means and in any form, in whole or in part, of their phonograms;

(b) make available to the public, by sale or otherwise, their phonograms, including copies thereof; and

(c) authorise or prohibit the making available of their phonograms to the public, by wire or wireless means, in such a way that members of the public may access them from a place and at a time individually chosen by them.

Article 284

Broadcasting organisations

Each Party shall provide for broadcasting organisations the exclusive right to authorise or prohibit:

(a) the fixation of their broadcasts;

(b) the reproduction of fixations of their broadcasts;

(c) the making available to the public, by wire or wireless means, of fixations of their broadcasts; and

(d) the rebroadcasting of their broadcasts by wireless means, as well as the communication to the public of their broadcasts if such communication is made in places accessible to the public against payment of an entrance fee.

Article 285

Broadcasting and communication to the public

1. Each Party shall provide a right in order to ensure that a single equitable remuneration is paid by the user, if a phonogram published for commercial purposes, or a reproduction of such phonogram, is used for broadcasting by wireless means or for any communication to the public, and to ensure that that remuneration is shared between the relevant performers and phonogram producers.

2. Each Party may, in the absence of agreement between the performers and phonogram producers, lay down the conditions as to the sharing of that remuneration between them.

([1]) For the purposes of this Chapter 'fixation' means the embodiment of sounds or images, or of the representations thereof, from which they can be perceived, reproduced or communicated through a device.

Article 286

Term of protection

1. The rights of an author of a literary or artistic work within the meaning of Article 2 of the Berne Convention shall run for the life of the author and for 70 years after his/her death, irrespective of the date when the work is lawfully made available to the public.

2. The term of protection of a musical composition with words shall expire 70 years after the death of the last of the following persons to survive, whether or not those persons are designated as co-authors: the author of the lyrics and the composer of the musical composition, provided that both contributions were specifically created for the respective musical composition with words.

3. The rights of performers shall expire no less than 50 years after the date of the performance. However;

(a) if a fixation of the performance, other than in a phonogram, is lawfully published or lawfully communicated to the public within that period, the rights shall expire 50 years from the date of the first such publication or the first such communication to the public, whichever is the earlier;

(b) if a fixation of the performance in a phonogram is lawfully published or lawfully communicated to the public within that period, the rights shall expire 70 years from the date of the first such publication or the first such communication to the public, whichever is the earlier.

4. The rights of producers of phonograms shall expire no less than 50 years after the fixation is made. However;

(a) if a phonogram has been lawfully published within that period, the said rights shall expire no less than 70 years from the date of the first lawful publication. If no lawful publication has taken place within the period mentioned in the first sentence, and if the phonogram has been lawfully communicated to the public within that period, the said rights shall expire not less than 70 years from the date of the first lawful communication to the public;

(b) if 50 years after a phonogram is lawfully published or communicated to the public, the phonogram producer does not offer copies of the phonogram for sale in sufficient quantity, or does not make it available to the public, the performer may terminate the contract by which he/she has transferred or assigned his/her rights in the fixation of his/her performance to a phonogram producer.

5. The rights of broadcasting organisations shall expire no less than 50 years after the first transmission of a broadcast, whether that broadcast is transmitted by wire or wireless means, including by cable or satellite.

6. The terms laid down in this Article shall be calculated from the first of January of the year following the event which gives rise to them.

Article 287

Protection of technological measures

1. Each Party shall provide adequate legal protection against the circumvention of any effective technological measures, which the person concerned carries out in the knowledge, or with reasonable grounds to know, that he/she is pursuing that objective.

2. Each Party shall provide adequate legal protection against the manufacture, import, distribution, sale, rental, advertisement for sale or rental, or possession for commercial purposes of devices, products or components, or the provision of services which:

(a) are promoted, advertised or marketed for the purpose of circumvention of any effective technological measures;

(b) have only a limited commercially significant purpose or use other than to circumvent any effective technological measures; or

(c) are primarily designed, produced, adapted or performed for the purpose of enabling or facilitating the circumvention of any effective technological measures.

3. For the purposes of this Agreement, the expression 'technological measures' means any technology, device or component that, in the normal course of its operation, is designed to prevent or restrict acts, in respect of works or other protected subject matter, which are not authorised by the right holder of any copyright or related right as provided for by domestic law. Technological measures shall be deemed 'effective' where the use of a work or other protected subject matter is controlled by the right holders through the application of an access control or protection process, such as encryption, scrambling or other transformation of the work or other subject matter or a copy control mechanism, which achieves the protection objective.

Article 288

Protection of rights management information

1. Each Party shall provide adequate legal protection against any person performing without authority any of the following acts:

(a) the removal or alteration of any electronic rights-management information;

(b) the distribution, importation for distribution, broadcasting, communication or making available to the public of works or other subject matter protected under this Agreement from which electronic rights-management information has been removed or altered without authority,

if that person knows, or has reasonable grounds to know, that by so doing he/she is inducing, enabling, facilitating or concealing an infringement of any copyright or any related rights as provided by domestic law.

2. For the purposes of this Chapter, the expression 'rights-management information' means any information provided by right holders which identifies the work or other subject matter that is the object of protection under this Chapter, the author or any other right holder, or information about the terms and conditions of use of the work or other subject matter, and any numbers or codes that represent such information. Paragraph 1 shall apply when any of those items of information is associated with a copy of, or appears in connection with the communication to the public of, a work or other subject matter that is the object of protection under this Chapter.

Article 289

Exceptions and limitations

1. In accordance with the conventions and international agreements to which they are parties, each Party may provide for limitations or exceptions to the rights set out in Articles 281 to 286 of this Agreement only in certain special cases which do not conflict with a normal exploitation of the protected subject matter and which do not unreasonably prejudice the legitimate interests of the right holders.

2. Each Party shall provide that temporary acts of reproduction referred to in Articles 282 to 285 of this Agreement, which are transient or incidental, which are an integral and essential part of a technological process and the sole purpose of which is to enable:

(a) a transmission in a network between third parties by an intermediary; or

(b) a lawful use of a work or other protected subject matter to be made, and which have no independent economic significance, shall be exempted from the reproduction right provided for in Articles 282 to 285 of this Agreement.

Article 290

Artists' resale right in works of art

1. Each Party shall provide, for the benefit of the author of an original work of art, a resale right, to be defined as an inalienable right which cannot be waived, even in advance, to receive a royalty based on the sale price obtained for any resale of the work, subsequent to the first transfer of the work by the author.

2. The right referred to in paragraph 1 shall apply to all acts of resale involving as sellers, buyers or intermediaries art market professionals, such as salesrooms, art galleries and, in general, any dealers in works of art.

3. Each Party may provide that the right referred to in paragraph 1 shall not apply to acts of resale where the seller has acquired the work directly from the author less than three years before that resale and where the resale price does not exceed a certain minimum amount.

4. The royalty shall be payable by the seller. Each Party may provide that one of the natural or legal persons referred to in paragraph 2, other than the seller, shall alone be liable or shall share liability with the seller for payment of the royalty.

5. The protection provided may be claimed to the extent permitted by the Party where that protection is claimed. The procedure for collection and the amounts shall be matters for determination by domestic law.

Article 291

Cooperation on collective management of rights

The Parties shall endeavour to promote dialogue and cooperation between their respective collective management societies for the purpose of promoting the availability of works and other protected subject matter and the transfer of royalties for the use of such works or other protected subject matter.

Sub-section 2

Trademarks

Article 292

International agreements

The Parties shall:

(a) comply with the Protocol Relating to the Madrid Agreement Concerning the International Registration of Marks, the WIPO Trademark Law Treaty and the Nice Agreement Concerning the International Classification of Goods and Services for the Purposes of the Registration of Marks; and

(b) make all reasonable efforts to accede to the Singapore Treaty on the Law of Trademarks.

Article 293

Registration procedure

1. Each Party shall provide for a system for the registration of trademarks in which each final negative decision taken by the relevant trademark administration shall be communicated to the applicant in writing and shall be duly reasoned.

2. Each Party shall provide for the possibility to oppose applications to register trademarks. Such opposition proceedings shall be adversarial.

3. The Parties shall provide a publicly available electronic database of applications and registrations of trademarks.

Article 294

Well-known trademarks

For the purpose of giving effect to Article 6*bis* of the Paris Convention and Article 16(2) and (3) of the TRIPS Agreement on the protection of well-known trademarks, the Parties shall apply the Joint Recommendation Concerning Provisions on the Protection of Well-Known Marks adopted by the Assembly of the Paris Union for the Protection of Industrial Property and the General Assembly of the World Intellectual Property Organisation (WIPO) at the Thirty-Fourth Series of Meetings of the Assemblies of the Member States of WIPO (September 1999).

Article 295

Exceptions to the rights conferred by a trademark

Each Party shall provide for limited exceptions to the rights conferred by a trademark, such as the fair use of descriptive terms, the protection of geographical indications as provided for in Article 303 of this Agreement, or other limited exceptions that take account of the legitimate interests of the owner of the trademark and of third parties.

Sub-section 3

Geographical indications

Article 296

Scope

1. This Sub-Section applies to the recognition and protection of geographical indications which are originating in the territories of the Parties.

2. In order for a geographical indication of a Party to be protected by the other Party, it shall cover products within the scope of the legislation of that Party referred to in Article 297 of this Agreement.

3. 'Geographical indication' means an indication as defined in Article 22(1) of the TRIPS Agreement, which also includes 'designations of origin'.

Article 297

Established geographical indications

1. Having examined the legislation of the Republic of Moldova on the protection of geographical indications listed in Part A of Annex XXX-A of this Agreement, the Union concludes that that legislation meets the elements laid down in Part C of Annex XXX-A to this Agreement.

2. Having examined the legislation of the Union on the protection of geographical indications listed in Part B of Annex XXX-A to this Agreement, the Republic of Moldova concludes that that legislation meets the elements laid down in Part C of Annex XXX-A to this Agreement.

3. The Government of the Republic of Moldova, after having completed an objection procedure in accordance with the criteria set out in Annex XXX-B to this Agreement, and after having examined the geographical indications for agricultural products and foodstuffs of the Union listed in Annex XXX-C to this Agreement and the geographical indications for wines, aromatised wines and spirit drinks of the Union listed in Annex XXX-D to this Agreement, which have been registered by the Union under the legislation referred to in paragraph 2 of this Article, shall protect those geographical indications according to the level of protection laid down in this Sub-Section.

4. The Union, after having completed an objection procedure in accordance with the criteria set out in Annex XXX-B to this Agreement and after having examined the geographical indications for agricultural products and foodstuffs of the Republic of Moldova listed in Annex XXX-C to this Agreement and the geographical indications for wines, aromatised wines and spirit drinks of the Republic of Moldova listed in Annex XXX-D to this Agreement, which have been registered by the Republic of Moldova under the legislation referred to in paragraph 1 of this Article, shall protect those geographical indications according to the level of protection laid down in this Sub-Section.

5. The decisions of the Joint Committee set up by Article 11 of the Agreement between the European Union and the Republic of Moldova on the protection of geographical indications of agricultural products and foodstuffs concerning the amendment of Annexes III and IV to that Agreement, which are taken before the entry into force of this Agreement, shall be deemed to be decisions of the Geographical Indications Sub-Committee, and the geographical indications added to Annexes III and IV to that Agreement shall be deemed to be part of Annexes XXX-C and XXX-D to this Agreement. Accordingly, the Parties shall protect those geographical indications as established geographical indications under this Agreement.

Article 298

Addition of new geographical indications

1. The Parties agree on the possibility to add new geographical indications to be protected in Annexes XXX-C and XXX-D to this Agreement in accordance with the procedure set out in Article 306(3) of this Agreement after having completed the objection procedure and after having examined the geographical indications as referred to in Article 297(3) and 297(4) of this Agreement to the satisfaction of both Parties.

2. A Party shall not be required to protect as a geographical indication a name that conflicts with the name of a plant variety, including a wine grape variety, or an animal breed and as a result is likely to mislead the consumer as to the true origin of the product.

Article 299

Scope of protection of geographical indications

1. The geographical indications listed in Annexes XXX-C and XXX-D to this Agreement, as well as those added pursuant to Article 298 of this Agreement, shall be protected against:

(a) any direct or indirect commercial use of a protected name:

(i) for comparable products not compliant with the product specification of the protected name; or

(ii) in so far as such use exploits the reputation of a geographical indication;

(b) any misuse, imitation or evocation ([1]), even if the true origin of the product is indicated or if the protected name is translated, transcribed, transliterated or accompanied by an expression such as 'style', 'type', 'method', 'as produced in', 'imitation', 'flavour', 'like' or similar;

(c) any other false or misleading indication as to the provenance, origin, nature or essential qualities of the product, on the inner or outer packaging, advertising material or documents relating to the product concerned, and the packing of the product in a container liable to convey a false impression as to its origin; and

(d) any other practice liable to mislead the consumer as to the true origin of the product.

2. If geographical indications are wholly or partially homonymous, protection shall be granted to each indication provided that it has been used in good faith and with due regard for local and traditional usage and the actual risk of confusion. Without prejudice to Article 23 of the TRIPS Agreement, the Parties shall mutually decide the practical conditions of use under which the homonymous geographical indications will be differentiated from each other, taking into account the need to ensure equitable treatment of the producers concerned and that consumers are not misled. A homonymous name which misleads the consumer into believing that products come from another territory shall not be registered even if the name is accurate as far as the actual territory, region or place of origin of the product in question is concerned.

3. Where a Party, in the context of negotiations with a third country, proposes to protect a geographical indication of that third country, and the name is homonymous with a geographical indication of the other Party, the latter shall be consulted and given the opportunity to comment before the name is protected.

4. Nothing in this Sub-Section shall oblige a Party to protect a geographical indication of the other Party which is not or ceases to be protected in its country of origin. The Parties shall notify each other if a geographical indication ceases to be protected in its country of origin.

5. The provisions of this Sub-Section shall in no way prejudice the right of any person to use, in the course of trade, that person's name or the name of that person's predecessor in business, except where that name is used in such a manner as to mislead consumers.

Article 300

Right of use of geographical indications

1. A name protected under this Sub-Section may be used by any operator marketing, producing, processing or preparing agricultural products, foodstuffs, wines, aromatised wines or spirit drinks conforming to the corresponding product specification.

2. Once a geographical indication is protected under this Sub-Section, the use of such protected name shall not be subject to any registration of users or further charges.

([1]) The term 'evocation' means, in particular, the use in any way for products falling under heading 20.09 of the HS, although only in so far as those products are referred to as wines falling under heading 22.04, aromatised wines falling under heading 22.05 and spirit drinks falling under heading 22.08 of that system.

Article 301

Enforcement of protection

The Parties shall enforce the protection provided for in Articles 297 to 300 of this Agreement by appropriate administrative actions or legal proceedings, as appropriate, including at the customs border (export and import), in order to prevent and stop any unlawful use of the protected geographical indications. They shall also enforce such protection at the request of an interested party.

Article 302

Implementation of complementary actions

Without prejudice to the Republic of Moldova's previous commitments to grant protection for the Union geographical indications derived from international agreements on the protection of geographical indications and the enforcement thereof, including the commitments undertaken in the Lisbon Agreement for the Protection of Appellations of Origin and their International Registration, and in accordance with Article 301 of this Agreement, the Republic of Moldova shall benefit from a transitional period of five years from 1 April 2013 to put in place all complementary actions necessary to stop any unlawful use of the protected geographical indications, in particular the measures at the customs border.

Article 303

Relationship with trademarks

1. The Parties shall refuse to register or shall invalidate, *ex officio* or at the request of any interested party in accordance with the legislation of each Party, a trademark that corresponds to any of the situations referred to in Article 299(1) of this Agreement in relation to a protected geographical indication for like products, provided an application to register the trademark is submitted after the date of application for protection of the geographical indication in the territory concerned.

2. For geographical indications referred to in Article 297 of this Agreement, the date of application for protection shall be 1 April 2013.

3. For geographical indications referred to in Article 298 of this Agreement, the date of application for protection shall be the date of the transmission of a request to the other Party to protect a geographical indication.

4. For geographical indications referred to in Article 298 of this Agreement, the Parties shall have no obligation to protect a geographical indication where, in the light of a reputed or well-known trademark, protection is liable to mislead consumers as to the true identity of the product.

5. Without prejudice to paragraph 4 of this Article, the Parties shall protect geographical indications also where a prior trademark exists. A prior trademark shall mean a trademark, the use of which corresponds to one of the situations referred to in Article 299(1) of this Agreement, which has been applied for, registered or established by use, if that possibility is provided for by the legislation concerned, in the territory of one of the Parties before the date on which the application for protection of the geographical indication is submitted by the other Party under this Sub-Section. Such trademark may continue to be used and renewed notwithstanding the protection of the geographical indication, provided that no grounds for the trademark's invalidity or revocation exist in the legislation on trademarks of the Parties.

Article 304

General rules

1. This Sub-Section shall apply without prejudice to the rights and obligations of the Parties under the WTO Agreement.

2. Notwithstanding Article 302 of this Agreement, the import, export and marketing of any product referred to in Articles 297 and 298 of this Agreement shall be conducted in compliance with the laws and regulations applying in the territory of the importing Party.

3. Any matter arising from technical specifications of registered names shall be dealt with in the Geographical Indications Sub-Committee established pursuant to Article 306 of this Agreement.

4. Geographical indications protected under this Sub-Section may only be cancelled by the Party in which the product originates.

5. A product specification referred to in this Sub-Section shall be that approved, including any amendments also approved, by the authorities of the Party in the territory of which the product originates.

Article 305

Cooperation and transparency

1. The Parties shall, either directly or through the Geographical Indications Sub-Committee established pursuant to Article 306 of this Agreement, maintain contact on all matters relating to the implementation and the functioning of this Sub-Section. In particular, a Party may request from the other Party information relating to product specifications and their modification, and contact points for control provisions.

2. Each Party may make publicly available the product specifications or a summary thereof and contact points for control provisions corresponding to geographical indications of the other Party protected pursuant to this Article.

Article 306

Geographical Indications Sub-Committee

1. The Geographical Indications Sub-Committee is hereby established.

2. The Geographical Indications Sub-Committee shall consist of representatives of the Parties with the purpose of monitoring the development of this Sub-Section and of intensifying their cooperation and dialogue on geographical indications. It shall report to the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement.

3. The Geographical Indications Sub-Committee adopts its decisions by consensus. It shall determine its own rules of procedure. It shall meet at least once a year and at the request of either of the Parties, alternatively in the EU and in the Republic of Moldova, at a time and place and in a manner (which may include videoconference) mutually determined by the Parties, but no later than 90 days after the request.

4. The Geographical Indications Sub-Committee shall also see to the proper functioning of this Sub-Section and may consider any matter related to its implementation and operation. In particular, it shall be responsible for:

(a) amending Part A and Part B of Annex XXX-A to this Agreement as regards the references to the law applicable in the Parties;

(b) amending Annexes XXX-C and XXX-D to this Agreement as regards geographical indications;

(c) exchanging information on legislative and policy developments on geographical indications and any other matter of mutual interest in the area of geographical indications;

(d) exchanging information on geographical indications for the purpose of considering their protection in accordance with this Sub-Section; and

(e) monitoring the latest developments regarding the enforcement of the protection of the geographical indications listed in Annexes XXX-C and XXX-D to this Agreement.

Sub-section 4

Designs

Article 307

International agreements

The Parties shall comply with the Geneva Act of the Hague Agreement Concerning the International Registration of Industrial Designs of 1999.

Article 308

Protection of registered designs

1. Each Party shall provide for the protection of independently created designs that are new and original ([1]). That protection shall be provided by registration, which shall confer an exclusive right upon the holders of a registered design in accordance with the provisions of this Article.

2. A design applied to or incorporated in a product which constitutes a component part of a complex product shall only be considered to be new and original:

(a) if the component part, once it has been incorporated into the complex product, remains visible during normal use of the product; and

(b) to the extent that those visible features of the component part fulfil in themselves the requirements as to novelty and originality.

3. The expression 'normal use' in paragraph 2(a) shall mean use by the end user, excluding maintenance, servicing or repair work.

4. The holder of a registered design shall have the right to prevent third parties not having the owner's consent from, at a minimum, making, offering for sale, selling, importing, exporting, stocking or using a product bearing or embodying the protected design when such acts are undertaken for commercial purposes, unduly prejudice the normal exploitation of the design, or are not compatible with fair trade practices.

5. The duration of protection available shall amount to 25 years from the date of filing of the application for registration.

Article 309

Protection conferred to unregistered designs

1. Each Party shall provide the legal means to prevent the use of unregistered designs, only if the contested use results from copying the unregistered appearance of the product. For the purposes of this Article, the term 'use' includes the offering for sale, putting on the market, importing or exporting the product.

2. The duration of protection available for unregistered designs shall amount to at least three years from the date on which the design was made available to the public in one of the Parties.

Article 310

Exceptions and exclusions

1. Each Party may provide limited exceptions to the protection of designs, provided that such exceptions do not unreasonably conflict with the normal exploitation of protected designs and do not unreasonably prejudice the legitimate interests of the owner of the protected design, taking account of the legitimate interests of third parties.

([1]) For the purposes of this Article, a Party may consider that a design having individual character is original.

2. Design protection shall not extend to designs dictated essentially by technical or functional considerations. In particular a design right shall not subsist in features of appearance of a product which are required to be reproduced in their exact form and dimensions in order to permit the product in which the design is incorporated or to which it is applied to be mechanically connected to or placed in, around or against another product so that either product may perform its function.

Article 311

Relationship to copyright

A design shall also be eligible for protection under the copyright law of a Party as from the date on which the design was created or fixed in any form. The extent to which, and the conditions under which, such a protection is conferred, including the level of originality required, shall be determined by each Party.

Sub-section 5

Patents

Article 312

International agreements

The Parties shall adhere to the provisions of the WIPO Patent Cooperation Treaty and shall make all reasonable efforts to comply with the WIPO Patent Law Treaty.

Article 313

Patents and public health

1. The Parties recognise the importance of the Declaration of the Ministerial Conference of the WTO on the TRIPS Agreement and Public Health, adopted on 14 November 2001. In interpreting and implementing the rights and obligations under this Chapter, the Parties shall ensure consistency with that Declaration.

2. The Parties shall respect the Decision of the WTO General Council of 30 August 2003 on paragraph 6 of the declaration referred to in paragraph 1 of this Article and shall contribute to its implementation.

Article 314

Supplementary protection certificate

1. The Parties recognise that medicinal and plant protection products protected by a patent may be subject to an administrative authorisation procedure before being put on their market. They recognise that the period that elapses between the filing of the application for a patent and the first authorisation to place the product on their respective market, as defined for that purpose by domestic law, may shorten the period of effective protection under the patent.

2. Each Party shall provide for a further period of protection for a medicinal or plant protection product which is protected by a patent and which has been subject to an administrative authorisation procedure, that period being equal to the period referred to in the second sentence of paragraph 1, reduced by a period of five years.

3. Notwithstanding paragraph 2, the duration of the further period of protection may not exceed five years.

4. In the case of medicinal products for which paediatric studies have been carried out, and provided that results of those studies are reflected in the product information, the Parties shall provide for a further six months extension of the period of protection referred to in paragraph 2.

Article 315

Protection of data submitted to obtain an authorisation to put a medicinal product on the market

1. Each Party shall implement a comprehensive system to guarantee the confidentiality, non-disclosure and non-reliance of data submitted for the purpose of obtaining an authorisation to put a medicinal product on the market. ([1])

2. Each Party shall ensure that any required information that is submitted to obtain an authorisation to put a medicinal product on the market remains undisclosed to third parties and benefits from protection against unfair commercial use.

To that end,

(a) during a period of at least five years, starting from the date of the grant of a marketing authorisation in the Party concerned, no person or entity, whether public or private, other than the person or entity who submitted such undisclosed data, shall be allowed to rely directly or indirectly on such data, without the explicit consent of the person or entity who submitted that data, in support of an application for the authorisation to put a medicinal product on the market;

(b) during a period of at least seven years, starting from the date of the grant of a marketing authorisation in the Party concerned, a marketing authorisation for any subsequent application shall not be granted, unless the subsequent applicant submits his/her own data, or data used with authorisation of the holder of the first authorisation, meeting the same requirements as in the case of the first authorisation. Products registered without submission of such data shall be removed from the market until the requirements are met.

3. The seven-year period referred to in paragraph 2(b) shall be extended to a maximum of eight years if, during the first five years after obtaining the initial authorisation, the holder obtains an authorisation for one or more new therapeutic indications considered to be of significant clinical benefit in comparison with existing therapies.

4. The provisions of this Article shall not have retroactive effect. They shall not affect the marketing of medicinal products authorised before the entry into force of this Agreement.

5. The Republic of Moldova undertakes to align its legislation concerning data protection for medicinal products with that of the Union at a date to be decided by the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement.

Article 316

Data protection on plant protection products

1. Each Party shall determine safety and efficacy requirements before authorising the placing on the market of plant protection products.

2. Each Party shall assign a temporary data protection right to the owner of a test or study report submitted for the first time to obtain a marketing authorisation for a plant protection product.

During the period of validity of the data protection right, the test or study report shall not be used for the benefit of any other person aiming to obtain a marketing authorisation for a plant protection product, except when the explicit consent of the owner is provided.

3. The test or study report shall fulfil the following conditions:

(a) that it is necessary for the authorisation or for an amendment of an authorisation in order to allow the use on other crops; and

(b) that it is certified as compliant with the principles of good laboratory practice or of good experimental practice.

([1]) For the purposes of this Article 'medicinal products' means:
(i) any substance or combination of substances presented for treating or preventing disease in human beings; or
(ii) any substance or combination of substances which may be administered to human beings with a view to making a medical diagnosis or to restoring, correcting or modifying physiological functions in human beings.
Medicinal products include, for example, chemical medicinal products, biological medicinal products (e.g. vaccines, (anti)toxins) including medicinal products derived from human blood or human plasma, advanced therapy medicinal products (e.g. gene therapy medicinal products and cell therapy medicinal products), herbal medicinal products, and radiopharmaceuticals.

4. The period of data protection shall be at least 10 years from the first authorisation in the Party concerned. In case of low risk plant protection products, the period may be extended to 13 years.

5. The periods referred to in paragraph 4 shall be extended by three months for each extension of authorisation for minor uses ([1]) if the applications for such authorisations are made by the holder of the authorisation at the latest five years after the date of the first authorisation. The total period of data protection may in no case exceed 13 years. For low risk plant protection products the total period of data protection may in no case exceed 15 years.

6. A test or study report shall also be protected if it was necessary for the renewal or review of an authorisation. In those cases, the period for data protection shall be 30 months.

Article 317

Plant varieties

The Parties shall protect plant varieties rights, in accordance with the International Convention for the Protection of New Varieties of Plants including the optional exception to the breeder's right as referred to in Article 15(2) of the said Convention, and shall cooperate to promote and enforce those rights.

Section 3

Enforcement of intellectual property rights

Article 318

General obligations

1. The Parties reaffirm their commitments under the TRIPS Agreement, in particular Part III thereof, and shall provide for the complementary measures, procedures and remedies set forth in this Section necessary to ensure the enforcement of intellectual property rights ([2]).

2. Those complementary measures, procedures and remedies shall be fair and equitable, and shall not be unnecessarily complicated or costly, or entail unreasonable time-limits or unwarranted delays.

3. Those complementary measures and remedies shall also be effective, proportionate and dissuasive and shall be applied in such a manner as to avoid the creation of barriers to legitimate trade and to provide for safeguards against their abuse.

Article 319

Entitled applicants

Each Party shall recognise as persons entitled to seek application of the measures, procedures and remedies referred to in this Section and in Part III of the TRIPS Agreement:

(a) the holders of intellectual property rights in accordance with the provisions of the applicable law;

(b) all other persons authorised to use those rights, in particular licensees, in so far as permitted by and in accordance with the provisions of the applicable law;

([1]) For the purposes of this Article, the expression 'minor use' means use of a plant protection product in a Party on plants or plant products which are not widely grown in that Party or which are widely grown to meet an exceptional plant protection need.

([2]) For the purposes of this Sub-Section the notion of 'intellectual property rights' includes at least the following rights: copyright; rights related to copyright; *sui generis* right of a database maker; rights of the creator of the topographies of a semi-conductor product; trademark rights; design rights; patent rights, including rights derived from supplementary protection certificates; geographical indications; utility model rights; plant variety rights; and trade names in so far as these are protected as exclusive rights by domestic law.

(c) intellectual property collective rights management bodies which are regularly recognised as having a right to represent holders of intellectual property rights, in so far as permitted by and in accordance with the provisions of the applicable law; and

(d) professional defence bodies which are regularly recognised as having a right to represent holders of intellectual property rights, in so far as permitted by and in accordance with the provisions of the applicable law.

Sub-section 1

Civil enforcement

Article 320

Measures for preserving evidence

1. Each Party shall ensure that, even before the commencement of proceedings on the merits of the case, the competent judicial authorities may, on application by a party who has presented reasonably available evidence to support his/her claims that his/her intellectual property right has been infringed or is about to be infringed, order prompt and effective provisional measures to preserve relevant evidence in respect of the alleged infringement, subject to the protection of confidential information.

2. Such measures may include the detailed description, with or without the taking of samples, or the physical seizure of the alleged infringing goods, and, in appropriate cases, the materials and implements used in the production and/or distribution of those goods and the documents relating thereto. Those measures shall be taken, if necessary, without the other party being heard, in particular where any delay is likely to cause irreparable harm to the right holder or where there is a demonstrable risk of evidence being destroyed.

Article 321

Right of information

1. Each Party shall ensure that, in the context of proceedings concerning an infringement of an intellectual property right and in response to a justified and proportionate request of the claimant, the competent judicial authorities may order that information on the origin and distribution networks of the goods or services which infringe an intellectual property right be provided by the infringer and/or any other person who:

(a) was found in possession of the infringing goods on a commercial scale;

(b) was found to be using the infringing services on a commercial scale;

(c) was found to be providing on a commercial scale services used in infringing activities;

(d) was indicated by the person referred to in point (a), (b) or (c) as being involved in the production, manufacture or distribution of the goods or the provision of the services.

2. The information referred to in paragraph 1 shall, as appropriate, comprise:

(a) the names and addresses of the producers, manufacturers, distributors, suppliers and other previous holders of the goods or services, as well as the intended wholesalers and retailers;

(b) information on the quantities produced, manufactured, delivered, received or ordered, as well as the price obtained for the goods or services in question.

3. Paragraphs 1 and 2 shall apply without prejudice to other statutory provisions which:

(a) grant the right holder rights to receive fuller information;

(b) govern the use in civil or criminal proceedings of the information communicated pursuant to this Article;

(c) govern responsibility for misuse of the right of information;

(d) afford an opportunity for refusing to provide information which would force the person referred to in paragraph 1 to admit to his/her own participation or that of his/her close relatives in an infringement of an intellectual property right; or

(e) govern the protection of confidentiality of information sources or the processing of personal data.

Article 322

Provisional and precautionary measures

1. Each Party shall ensure that the judicial authorities may, at the request of the applicant, issue against the alleged infringer an interlocutory injunction intended to prevent any imminent infringement of an intellectual property right, or to forbid, on a provisional basis and subject, where appropriate, to a recurring penalty payment where provided for by domestic law, the continuation of the alleged infringements of that right, or to make such continuation subject to the lodging of guarantees intended to ensure the compensation of the right holder. An interlocutory injunction may also be issued, under the same conditions, against an intermediary whose services are being used by a third party to infringe an intellectual property right.

2. An interlocutory injunction may also be issued to order the seizure or delivery of goods suspected of infringing an intellectual property right, so as to prevent their entry into or movement within the channels of commerce.

3. In the case of an alleged infringement committed on a commercial scale, the Parties shall ensure that, if the applicant demonstrates circumstances likely to endanger the recovery of damages, the judicial authorities may order the precautionary seizure of the movable and immovable property of the alleged infringer, including the blocking of his/her bank accounts and other assets. To that end, the competent authorities may order the communication of bank, financial or commercial documents, or appropriate access to the relevant information.

Article 323

Corrective measures

1. Each Party shall ensure that the competent judicial authorities may order, at the request of the applicant and without prejudice to any damages due to the right holder by reason of the infringement, and without compensation of any sort, at least the definitive removal from the channels of commerce, or the destruction, of goods that they have found to be infringing an intellectual property right. If appropriate, the competent judicial authorities may also order the destruction of materials and implements predominantly used in the creation or manufacture of those goods.

2. The Parties' judicial authorities shall have the power to order that those measures shall be carried out at the expense of the infringer, unless particular reasons are invoked for not doing so.

Article 324

Injunctions

Each Party shall ensure that, where a judicial decision has been taken, finding an infringement of an intellectual property right, the judicial authorities may issue against the infringer, as well as against an intermediary whose services are used by a third party to infringe an intellectual property right, an injunction aimed at prohibiting the continuation of the infringement.

Article 325

Alternative measures

The Parties may provide that, in appropriate cases and at the request of the person liable to be subject to the measures provided for in Article 323 and/or Article 324 of this Agreement, the competent judicial authorities may order pecuniary compensation to be paid to the injured party instead of applying the measures provided for in those two Articles if that person acted unintentionally and without negligence, if execution of the measures in question would cause him/her disproportionate harm and if pecuniary compensation to the injured party appears reasonably satisfactory.

Article 326

Damages

1. Each Party shall ensure that the judicial authorities, on application of the injured party, order the infringer who knowingly, or with reasonable grounds to know, engaged in an infringing activity, to pay the right-holder damages appropriate to the actual prejudice suffered by him/her as a result of the infringement. When the judicial authorities set the amount of damages:

(a) they shall take into account all appropriate aspects, such as the negative economic consequences, including lost profits, which the injured party has suffered, any unfair profits made by the infringer and, in appropriate cases, elements other than economic factors, such as the moral prejudice caused to the right holder by the infringement; or

(b) as an alternative to point (a), they may, in appropriate cases, set the amount of damages as a lump sum on the basis of elements such as, at least, the amount of royalties or fees which would have been due if the infringer had requested authorisation to use the intellectual property right in question.

2. Where the infringer did not knowingly, or with reasonable grounds to know, engage in the infringing activity, the Parties may lay down that the judicial authorities may order in favour of the injured party the recovery of profits or the payment of damages which may be pre-established.

Article 327

Legal costs

Each Party shall ensure that reasonable and proportionate legal costs and other expenses incurred by the successful party shall, as a general rule, be borne by the unsuccessful party, unless equity does not allow this.

Article 328

Publication of judicial decisions

Each Party shall ensure that, in legal proceedings instituted for infringement of an intellectual property right, the judicial authorities may order, at the request of the applicant and at the expense of the infringer, appropriate measures for the dissemination of the information concerning the decision, including displaying the decision and publishing it in full or in part.

Article 329

Presumption of authorship or ownership

For the purposes of applying the measures, procedures and remedies provided for in this Section:

(a) for the author of a literary or artistic work, in the absence of proof to the contrary, to be regarded as such, and consequently to be entitled to institute infringement proceedings, it shall be sufficient for his/her name to appear on the work in the usual manner;

(b) point (a) shall apply *mutatis mutandis* to the holders of rights related to copyright with regard to their protected subject matter.

Sub-section 2

Other provisions

Article 330

Border measures

1. Each Party shall, unless otherwise provided for in this Sub-Section, adopt procedures to enable a right holder, who has valid grounds for suspecting that the importation, exportation, re-exportation, entry or exit of the customs territory,

placement under a suspensive procedure or placement under a free zone or a free warehouse of goods infringing an intellectual property right ([1]) may take place, to lodge an application in writing with the competent authorities, whether administrative or judicial, for the suspension by the customs authorities of the release or detention of such goods.

2. Each Party shall provide that when the customs authorities, in the course of their actions and before an application has been lodged by a right holder or granted, have sufficient grounds for suspecting that goods infringe an intellectual property right, they may suspend the release of the goods or detain them in order to enable the right holder to submit an application for action in accordance with paragraph 1.

3. Any rights or obligations concerning the importer which are established in domestic law for the implementation of this Article and of Section 4 of Part III of the TRIPS Agreement shall be also applicable to the exporter or to the holder of the goods.

4. Each Party shall provide that its competent authorities require a right holder who requests the procedures described in paragraph 1 to provide adequate evidence to satisfy the competent authorities that, under the law of the Party providing the procedures, there is a *prima facie* infringement of the right holder's intellectual property right, and to supply sufficient information that may reasonably be expected to be within the right holder's knowledge to make the suspect goods reasonably recognisable by the competent authorities. The requirement to provide sufficient information shall not unreasonably deter recourse to the procedures described in paragraph 1.

5. With a view to establishing whether an intellectual property right has been infringed, the customs office shall inform the right holder, at his/her request and if known, of the names and addresses of the consignee, the consignor or the holder of the goods and the origin and provenance of goods suspected of infringing an intellectual property right.

The customs office shall also give the applicant the opportunity to inspect goods whose release has been suspended or which have been detained. When examining goods, the customs office may take samples and hand them over or send them to the right holder, at his/her request, strictly for the purposes of analysis and to facilitate the subsequent procedure.

6. The customs authorities shall be active in targeting and identifying shipments containing goods suspected of infringing an intellectual property right on the basis of risk analysis techniques. They shall set up systems for close cooperation with right holders, including effective mechanisms to collect information for the risk analysis.

7. The Parties agree to cooperate with a view to eliminating international trade in goods infringing intellectual property rights. In particular, for that purpose, they shall, where appropriate, exchange information and arrange for cooperation between their competent authorities with regard to trade in goods infringing intellectual property rights.

8. For goods in transit through the territory of a Party destined for the territory of the other Party, the former Party shall provide information to the latter Party to enable effective enforcement against shipments of goods suspected of infringing an intellectual property right.

9. Without prejudice to other forms of cooperation, Protocol III on Mutual Administrative Assistance in Customs Matters will be applicable with regard to paragraphs 7 and 8 of this Article with respect to breaches of customs legislation related to intellectual property rights.

([1]) For the purposes of this Article, 'goods infringing an intellectual property right' means:

(a) 'counterfeit goods', namely:
   (i) goods, including packaging, bearing without authorisation a trademark identical to the trademark duly registered in respect of the same type of goods, or which cannot be distinguished in its essential aspects from such a trademark, and which thereby infringes the trademark holder's rights;
   (ii) any trademark symbol such as a logo, label, sticker, brochure, instructions for use or guarantee document, even if presented separately, on the same conditions as the goods referred to in point (i);
   (iii) packaging materials bearing the trademark of counterfeit goods, presented separately, on the same conditions as the goods referred to in point (i);

(b) 'pirated goods', namely goods which are or contain copies made without the consent of the right-holder or of a person duly authorised by the holder in the country of production, and which are made directly or indirectly from an article, where the making of that copy would have constituted an infringement of a copyright or related right or design right under the law of the country of importation, regardless of whether it is registered in domestic law;

(c) goods which, according to the law of the Party in which the application for customs action is made, infringe a patent, a plant variety right, or a geographical indication.

10. The Customs Sub-Committee referred to in Article 200 of this Agreement shall act as the responsible Committee to ensure the proper functioning and implementation of this Article.

Article 331

Codes of conduct

The Parties shall encourage:

a) the development by trade or professional associations or organisations of codes of conduct aimed at contributing towards the enforcement of intellectual property rights; and

b) the submission to the competent authorities of the Parties of draft codes of conduct and of any evaluations of the application of those codes of conduct.

Article 332

Cooperation

1. The Parties agree to cooperate with a view to supporting implementation of the commitments and obligations undertaken under this Chapter.

2. Subject to the provisions of Title VI (Financial Assistance, and Anti-Fraud and Control Provisions) of this Agreement, areas of cooperation include, but are not limited to, the following activities:

(a) exchange of information on the legal framework concerning intellectual property rights and relevant rules of protection and enforcement; exchange of experiences on legislative progress in those areas;

(b) exchange of experiences and information on enforcement of intellectual property rights;

(c) exchange of experiences on central and sub-central enforcement by customs, police, administrative and judiciary bodies; coordination to prevent exports of counterfeit goods, including with other countries;

(d) capacity-building; exchange and training of personnel;

(e) promotion and dissemination of information on intellectual property rights in, inter alia, business circles and civil society; public awareness of consumers and right holders;

(f) enhancement of institutional cooperation, for example between intellectual property offices;

(g) active promotion of awareness and education of the general public on policies concerning intellectual property rights; formulation of effective strategies to identify key audiences, and the creation of communication programmes to increase consumer and media awareness on the impact of intellectual property violations, including the risk to health and safety and the connection to organised crime.

CHAPTER 10

Competition

Section 1

Antitrust and mergers

Article 333

Definitions

For the purposes of this Section:

(1) 'competition authority' means for the Union, the European Commission, and for the Republic of Moldova, the Competition Council;

(2) 'competition laws' means:

(a) for the Union, Articles 101, 102 and 106 of the Treaty on the Functioning of the European Union, Council Regulation (EC) No 139/2004 of 20 January 2004 on the control of concentrations between undertakings (the EC Merger Regulation), and their implementing regulations or amendments;

(b) for the Republic of Moldova, Competition Law No 183 of 11 July 2012 and its implementing regulations or amendments; and

(c) any changes that the instruments referred to in points (a) and (b) may undergo after the entry into force of this Agreement.

Article 334

Principles

The Parties recognise the importance of free and undistorted competition in their trade relations. The Parties acknowledge that anti-competitive business practices have the potential to distort the proper functioning of markets and undermine the benefits of trade liberalisation.

Article 335

Implementation

1. Each Party shall maintain in its respective territory comprehensive competition laws which effectively address anti-competitive agreements, concerted practices and anti-competitive unilateral conduct of undertakings with dominant market power and provide effective control of concentrations.

2. Each Party shall maintain an operationally independent authority with adequate human and financial resources in order to effectively enforce the competition laws referred to in Article 333(2).

3. The Parties recognise the importance of applying their respective competition laws in a transparent and non-discriminatory manner, respecting the principles of procedural fairness and rights of defence of the undertakings concerned.

Article 336

State monopolies, public undertakings and undertakings entrusted with special or exclusive rights

1. Nothing in this Chapter prevents a Party from designating or maintaining state monopolies or public undertakings or entrusting undertakings with special or exclusive rights according to their respective laws.

2. With regard to state monopolies of a commercial character, public undertakings and undertakings entrusted with special or exclusive rights, each Party shall ensure that such undertakings are subject to the competition laws referred to in Article 333(2), in so far as the application of those laws does not obstruct the performance, in law or in fact, of the particular tasks of public interest assigned to the undertakings in question.

Article 337

Cooperation and exchange of information

1. The Parties recognise the importance of cooperation and coordination between their respective competition authorities to enhance effective competition law enforcement, and to fulfil the objectives of this Agreement through the promotion of competition and the curtailment of anti-competitive business conduct or anti-competitive transactions.

2. To that end, each competition authority may inform the other competition authority of its willingness to cooperate with respect to the enforcement activity of any of the Parties. Neither Party shall be prevented from taking autonomous decisions on the matters subject to the cooperation.

3. With a view to facilitating the effective enforcement of their respective competition laws, the competition authorities may exchange non-confidential information. All exchange of information shall be subject to the standards of confidentiality applicable in each Party. Whenever the Parties exchange information under this Article, they shall take into account the limitations imposed by the requirements of professional and business secrecy in their respective jurisdictions.

Article 338

Dispute settlement

The provisions on the dispute settlement mechanism in Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement shall not apply to this Section.

Section 2

State aid

Article 339

General principles and scope

1. State aid granted by the Union or the Republic of Moldova, or through the resources of one of the Parties, in any form whatsoever, which distorts or threatens to distort competition by favouring certain undertakings or the production of certain goods and services and which affects trade between the Parties, shall be incompatible with this Agreement.

2. This Chapter shall not apply to state aid related to fisheries, products covered by Annex 1 to the Agreement on Agriculture or other aids covered by the Agreement on Agriculture.

Article 340

Assessment of state aid

1. State aid shall be assessed on the basis of the criteria arising from the application of the competition rules applicable in the EU, in particular Article 107 of the Treaty on the Functioning of the European Union and interpretative instruments adopted by the EU institutions, including the relevant jurisprudence of the Court of Justice of the European Union.

2. The obligations deriving from this Article shall apply within five years from the date of entry into force of this Agreement.

Article 341

State aid legislation and authority

1. The Parties shall adopt or maintain, as appropriate, legislation for the control of state aid. They shall also establish or maintain, as appropriate, an operationally independent authority entrusted with the powers necessary for the control of state aid. That authority shall have, inter alia, the powers to authorise state aid schemes and individual state aid measures, as well as the powers to order the recovery of state aid that has been unlawfully granted.

2. The obligations deriving from this Article shall be fulfilled within two years from the date of entry into force of this Agreement.

3. Any state aid schemes instituted before the establishment of the state aid authority shall be aligned within a period of eight years from the date of entry into force of this Agreement. Without prejudice to other Chapters of this Agreement, the alignment period shall be extended for a maximum period of up to 10 years from the date of entry into force of this Agreement with regard to state aid schemes instituted under the Law of the Republic of Moldova on Free Economic Zones No 440-XV of 27 July 2001.

Article 342

Transparency

1. Each Party shall ensure transparency in the area of state aid. To that end, each Party shall, as of 1 January 2016, report every two years to the other Party, following the methodology and the presentation of the EU annual survey on state aid. That report is deemed to have been provided if the relevant information is made available by the Parties or on their behalf on a publicly accessible website.

2. Whenever a Party considers its trade relations to be affected by an individual case of state aid granted by the other Party, the Party concerned may request the other Party to provide information on the individual case of state aid.

Article 343

Confidentiality

When exchanging information under this Chapter, the Parties shall take into account the limitations imposed by the requirements of professional and business secrecy.

Article 344

Review clause

The Parties shall keep under constant review the matters to which reference is made in this Chapter. Each Party may refer such matters to the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement. The Parties agree to review progress in implementing this Chapter every two years after the entry into force of this Agreement, unless both Parties agree otherwise.

CHAPTER 11

Trade-related energy

Article 345

Definitions

For the purposes of this Chapter:

(1) 'energy goods' means crude oil (HS code 27.09), natural gas (HS code 27.11) and electrical energy (HS code 27.16);

(2) 'fixed infrastructure' means any transmission or distribution network, liquefied natural gas facility or storage facility, as defined in Directive 2003/55/EC of the European Parliament and of the Council of 26 June 2003 concerning common rules for the internal market in natural gas and in Directive 2003/54/EC of the European Parliament and of the Council of 26 June 2003 concerning common rules for the internal market in electricity;

(3) 'transport' means transmission and distribution, as defined in Directive 2003/54/EC and Directive 2003/55/EC, and the carriage or conveyance of oil through pipelines;

(4) 'unauthorised taking' means any activity consisting of the unlawful taking of energy goods from fixed infrastructure.

Article 346

Domestic regulated prices

1. In accordance with the Protocol concerning the Accession of the Republic of Moldova to the Energy Community the price for the supply of gas and electricity for non-household customers shall be determined solely by supply and demand.

2. By way of derogation from paragraph 1, a Party may impose in the general economic interest ([1]) an obligation on undertakings which relates to the price of supply of natural gas and electricity (hereinafter referred to as 'regulated price'). In case non-household customers are not able to agree with a supplier on a price for electricity or natural gas that is lower than or equal to the regulated price for natural gas or electricity, non-household customers shall have the right to enter into a contract for the supply of electricity or natural gas with a supplier against the regulated price applicable. In any case, the non-household customers shall be free to negotiate and sign a contract with any alternative supplier.

3. The Party imposing an obligation in accordance with paragraph 2 shall ensure that the obligation is clearly defined, transparent, proportionate, non-discriminatory, verifiable and of limited duration. When imposing any such obligation, the Party shall also guarantee equality of access for other undertakings to consumers.

4. Where the price at which natural gas and electricity are sold on the domestic market is regulated by a Party, that Party shall ensure that the methodology underlying the calculation of the regulated price is published prior to the entry into force of the regulated price.

Article 347

Prohibition of dual pricing

1. Without prejudice to the possibility of imposing regulated prices consistently with paragraphs 2 and 3 of Article 346 of this Agreement, a Party, or a regulatory authority of a Party, shall not adopt or maintain a measure resulting in a higher price for exports of energy goods to the other Party than the price charged for such goods when intended for domestic consumption.

2. The exporting Party shall upon request of the other Party provide evidence that a different price for the same energy goods sold on the domestic market and for export does not result from a measure prohibited by paragraph 1.

Article 348

Transit

The Parties shall take any necessary measures to facilitate transit, consistent with the principle of freedom of transit, and in accordance with Articles V.1, V.2, V.4 and V.5 of GATT 1994 and Articles 7.1 and 7.3 of the Energy Charter Treaty, which are incorporated into this Agreement and made part thereof.

Article 349

Transport

As regards transport of electricity and gas, in particular third party access to fixed infrastructure, the Parties shall adapt their legislation, as referred to in Annex VIII to this Agreement and in the Energy Community Treaty, in order to ensure that the tariffs, which shall be published prior to their entry into force, the capacity allocation procedures and all other conditions are objective, reasonable and transparent and that they do not discriminate on the basis of origin, ownership or destination of the electricity or gas.

Article 350

Unauthorised taking of goods in transit

Each Party shall take all necessary measures to prohibit and address any unauthorised taking of energy goods in transit through its territory by any entity subject to that Party's control or jurisdiction.

([1]) The expression 'general economic interest' shall be interpreted in the same way as in Article 106 of the Treaty on the Functioning of the European Union and in particular in accordance with the case law of the Court of Justice of the European Union.

Article 351

Uninterrupted transit

1. A Party shall not interfere with the transit of energy goods through its territory, except where such interference is specifically provided for in a contract or other agreement governing such transit.

2. In the event of a dispute over any matter involving the Parties or one or more entities subject to the control or jurisdiction of one of the Parties, a Party through the territory of which energy goods transit shall not, prior to the conclusion of a dispute resolution procedure under the relevant contract or agreement or of an emergency procedure under Annex XXXI to this Agreement or under Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement, interrupt or reduce such transit, or permit any entity subject to its control or jurisdiction, including a state trading enterprise, to interrupt or reduce such transit, except under the circumstances provided in paragraph 1 of this Article.

3. A Party shall not be held liable for an interruption or reduction of transit pursuant to this Article where that Party is unable to supply or to transit energy goods as a result of actions attributable to a third country or an entity under the control or jurisdiction of a third country.

Article 352

Transit obligation for operators

Each Party shall ensure that fixed infrastructure operators take any necessary measures to:

(a) minimise the risk of accidental interruption or reduction of transit; and

(b) expeditiously restore the normal operation of such transit, which has been accidentally interrupted or reduced.

Article 353

Regulatory authority for electricity and natural gas

1. In accordance with Directive 2003/55/EC and Directive 2003/54/EC, a regulatory authority in the field of natural gas and electricity shall be legally distinct and functionally independent from any other public or private entity, and shall be sufficiently empowered to ensure effective competition and the efficient functioning of the market.

2. The decisions of a regulatory authority and the procedures used by it shall be impartial with respect to all market participants.

3. An operator affected by a decision of a regulatory authority shall have the right to appeal against that decision to an appeal body that is independent of the parties involved. Where the appeal body is not judicial in character, written reasons for its decision shall always be given and its decisions shall also be subject to review by an impartial and independent judicial authority. Decisions taken by appeal bodies shall be effectively enforced.

Article 354

Relationship with the Energy Community Treaty

1. In the event of a conflict between the provisions of this Chapter and the provisions of the Energy Community Treaty or the provisions of the Union legislation made applicable under the Energy Community Treaty, the provisions of the Energy Community Treaty or the provisions of the Union legislation made applicable under the Energy Community Treaty shall prevail to the extent of such conflict.

2. In implementing this Chapter, preference shall be given to the adoption of legislation or other acts which are consistent with the Energy Community Treaty or are based on the legislation applicable in the Union. In the event of a dispute as regards this Chapter, legislation or other acts which meet those criteria shall be presumed to conform to this Chapter. In assessing whether the legislation or other acts meet those criteria, any relevant decision taken under Article 91 of the Energy Community Treaty shall be taken into account.

3. Neither Party shall utilise the dispute settlement provisions of this Agreement in order to allege a violation of the provisions of the Energy Community Treaty.

CHAPTER 12

Transparency

Article 355

Definitions

For the purposes of this Chapter:

(1) 'measures of general application' includes laws, regulations, judicial decisions, procedures and administrative rulings of general application and any other general or abstract act, interpretation or other requirement that may have an impact on any matter covered by Title V (Trade and Trade-related Matters) of this Agreement. It does not include a ruling that applies to a particular person;

(2) 'interested person' means any natural or legal person that may be subject to any rights or obligations under measures of general application, within the meaning of Title V (Trade and Trade-related Matters) of this Agreement.

Article 356

Objective and scope

Recognising the impact which the regulatory environment may have on trade and investment between the Parties, the Parties shall provide a predictable regulatory environment for economic operators and efficient procedures, taking due account of the requirements of legal certainty and proportionality.

Article 357

Publication

1. Each Party shall ensure that measures of general application:

(a) are promptly and readily available via an officially designated medium and, where feasible, electronic means, in such a manner as to enable any person to become acquainted with them;

(b) provide an explanation of the objective of, and the rationale for, such measures; and

(c) allow for sufficient time between publication and entry into force of such measure except in duly justified cases.

2. Each Party shall:

(a) endeavour to publish at an appropriate early stage any proposal to adopt or to amend any measure of general application, including an explanation of the objective of, and rationale for, the proposal;

(b) provide reasonable opportunities for interested persons to comment on such proposal, allowing, in particular, for sufficient time for such opportunities; and

(c) endeavour to take into account the comments received from interested persons with respect to such proposal.

Article 358

Enquiries and contact points

1. In order to facilitate the communication between the Parties on any matter covered by Title V (Trade and Trade-related Matters) of this Agreement, each Party shall designate a contact point acting as a coordinator.

2. Each Party shall maintain or establish appropriate mechanisms for responding to enquiries from any person regarding any measure of general application which is proposed or in force, and its application. Enquiries may be addressed through the contact point established under paragraph 1 or through any other mechanism, as appropriate.

3. The Parties recognise that any response provided for in paragraph 2 may not be definitive or legally binding but for information purposes only, unless otherwise provided in their respective laws and regulations.

4. Upon request of a Party, the other Party shall promptly provide information and respond to questions pertaining to any measure of general application or any proposal to adopt or to amend any measure of general application that the requesting Party considers might affect the operation of Title V (Trade and Trade-related Matters) of this Agreement, regardless of whether the requesting Party has been previously notified of that measure.

Article 359

Administration of measures of general application

Each Party shall administer in an objective, impartial and reasonable manner all measures of general application. To that end, each Party, in applying such measures to particular persons, goods or services of the other Party in specific cases, shall:

(a) endeavour to provide interested persons, that are directly affected by a proceeding, with reasonable notice, in accordance with its procedures, when a proceeding is initiated, including a description of the nature of the proceeding, a statement of the legal authority under which the proceeding is initiated, and a general description of any issues in controversy;

(b) afford such interested persons a reasonable opportunity to present facts and arguments in support of their positions prior to any final administrative action, when the time, the nature of the proceeding, and the public interest permit; and

(c) ensure that its procedures are based on and carried out in accordance with its law.

Article 360

Review and appeal

1. Each Party shall establish or maintain judicial, arbitral or administrative tribunals or procedures for the purpose of the prompt review and, where warranted, the correction of administrative action relating to matters covered by Title V (Trade and Trade-related Matters) of this Agreement. Such tribunals or procedures shall be impartial and independent of the office or authority entrusted with administrative enforcement, and those responsible for them shall not have any substantial interest in the outcome of the matter.

2. Each Party shall ensure that, in any such tribunals or procedures, the parties to the proceeding are provided with the right to:

(a) a reasonable opportunity to support or defend their respective positions; and

(b) a decision based on the evidence and the submissions of record or, where required by the Party's law, the record compiled by the administrative authority.

3. Each Party shall ensure that, subject to appeal or further review as provided in its law, such decision shall be implemented by, and shall govern the practice of, the office or the competent authority with respect to the administrative action at issue.

Article 361

Regulatory quality and performance and good administrative behaviour

1. The Parties agree to cooperate in promoting regulatory quality and performance, including through the exchange of information and best practices on their respective regulatory policies and regulatory impact assessments.

2. The Parties subscribe to the principles of good administrative behaviour ([1]), and agree to cooperate in promoting them, including through the exchange of information and best practices.

([1]) As expressed in the Council of Europe's *Recommendation of the Committee of Ministers to Member States on good administration*, CM/Rec (2007)7 of 20 June 2007.

Article 362

Specific rules

The provisions of this Chapter shall apply without prejudice to any specific rules on transparency established in other Chapters of Title V (Trade and Trade-related Matters) of this Agreement.

CHAPTER 13

Trade and sustainable development

Article 363

Context and objectives

1. The Parties recall the Agenda 21 of the United Nations Conference on Environment and Development of 1992, the ILO Declaration on Fundamental Principles and Rights at Work of 1998, the Johannesburg Plan of Implementation on Sustainable Development of 2002, the Ministerial Declaration of the United Nations Economic and Social Council on Generating Full and Productive Employment and Decent Work for All of 2006, and the ILO Declaration on Social Justice for a Fair Globalisation of 2008. The Parties reaffirm their commitment to promote the development of international trade, in such a way as to contribute to the objective of sustainable development, for the welfare of present and future generations, and to ensure that that objective is integrated and reflected at every level of their trade relationship.

2. The Parties reaffirm their commitment to pursue sustainable development and recognise that economic development, social development and environmental protection are its interdependent and mutually reinforcing pillars. They underline the benefit of considering trade-related labour [1] and environmental issues as part of a global approach to trade and sustainable development.

Article 364

Right to regulate and levels of protection

1. The Parties recognise the right of each Party to determine its sustainable development policies and priorities, to establish its own levels of domestic environmental and labour protection, and to adopt or modify accordingly its relevant law and policies, consistently with their commitment to the internationally recognised standards and agreements referred to in Articles 365 and 366 of this Agreement.

2. In that context, each Party shall strive to ensure that its law and policies provide for and encourage high levels of environmental and labour protection and shall strive to continue to improve those law and policies and the underlying levels of protection.

Article 365

Multilateral labour standards and agreements

1. The Parties recognise full and productive employment and decent work for all as key elements for managing globalisation, and reaffirm their commitment to promote the development of international trade in a way that is conducive to full and productive employment and decent work for all. In that context, the Parties commit to consulting and cooperating, as appropriate, on trade-related labour issues of mutual interest.

2. In accordance with their obligations as members of the ILO and the ILO Declaration on Fundamental Principles and Rights at Work and its Follow-up of 1998, the Parties commit to respecting, promoting and realising in their law and practice and in their whole territory the internationally recognised core labour standards, as embodied in the fundamental ILO conventions, and in particular:

(a) the freedom of association and the effective recognition of the right to collective bargaining;

(b) the elimination of all forms of forced or compulsory labour;

[1] When 'labour' is referred to in this Chapter, it includes the issues relevant to the strategic objectives of the ILO, through which the Decent Work Agenda is expressed, as agreed on in the ILO Declaration on Social Justice for a Fair Globalisation of 2008.

(c) the effective abolition of child labour; and

(d) the elimination of discrimination in respect of employment and occupation.

3. The Parties reaffirm their commitment to effectively implement in their law and in practice the fundamental, the priority and other ILO conventions ratified by the Member States and the Republic of Moldova, respectively.

4. The Parties will also consider the ratification of the remaining priority and other conventions that are classified as up-to-date by the ILO. In that context, the Parties shall regularly exchange information on their respective situation and advancement in the ratification process.

5. The Parties recognise that the violation of fundamental principles and rights at work cannot be invoked or otherwise used as a legitimate comparative advantage and that labour standards should not be used for protectionist trade purposes.

Article 366

Multilateral environmental governance and agreements

1. The Parties recognise the value of international environmental governance and agreements as a response of the international community to global or regional environmental problems, and stress the need to enhance the mutual supportiveness between trade and environmental policies. In that context, the Parties commit to consulting and cooperating, as appropriate, with respect to negotiations on trade-related environmental issues and with respect to other trade-related environmental matters of mutual interest.

2. The Parties reaffirm their commitment to effectively implement in their law and in practice the multilateral environmental agreements (MEAs) to which they are party.

3. The Parties shall regularly exchange information on their respective situation and advancements as regards ratifications of MEAs or amendments to such agreements.

4. The Parties reaffirm their commitment to reaching the ultimate objective of the United Nations Framework Convention on Climate Change (UNFCCC) and its Kyoto Protocol. They commit to cooperating on the development of the future international climate change framework under the UNFCCC and its related agreements and decisions.

5. Nothing in this Agreement shall prevent the Parties from adopting or maintaining measures to implement the MEAs to which they are party, provided that such measures are not applied in a manner that would constitute a means of arbitrary or unjustifiable discrimination between the Parties or a disguised restriction on trade.

Article 367

Trade and investment promoting sustainable development

The Parties reconfirm their commitment to enhance the contribution of trade to the goal of sustainable development in its economic, social and environmental dimensions. Accordingly, the Parties:

(a) recognise the beneficial role that core labour standards and decent work can have on economic efficiency, innovation and productivity, and shall seek greater policy coherence between trade policies, on the one hand, and labour policies, on the other;

(b) shall strive to facilitate and promote trade and investment in environmental goods and services, including through addressing related non-tariff barriers;

(c) shall strive to facilitate the removal of obstacles to trade or investment concerning goods and services of particular relevance to climate change mitigation, such as sustainable renewable energy and energy efficient products and services, including through the adoption of policy frameworks conducive to the deployment of best available technologies and through the promotion of standards that respond to environmental and economic needs and minimise technical obstacles to trade;

(d) agree to promote trade in goods that contribute to enhanced social conditions and environmentally sound practices, including goods that are the subject of voluntary sustainability assurance schemes such as fair and ethical trade schemes, eco-labels, and certification schemes for natural resource-based products;

(e) agree to promote corporate social responsibility, including through the exchange of information and best practices. In that regard, the Parties refer to the relevant internationally recognised principles and guidelines, such as the OECD Guidelines for Multinational Enterprises, the United Nations Global Compact, and the ILO Tripartite Declaration of Principles concerning Multinational Enterprises and Social Policy.

Article 368

Biological diversity

1. The Parties recognise the importance of ensuring the conservation and the sustainable use of biological diversity as a key element for the achievement of sustainable development, and reaffirm their commitment to conserve and sustainably use biological diversity, in accordance with the Convention on Biological Diversity and other relevant international instruments to which they are party.

2. To that end, the Parties commit to:

(a) promoting trade in natural resource-based products obtained through a sustainable use of biological resources and contributing to the conservation of biodiversity;

(b) exchanging information on actions on trade in natural resource-based products aimed at halting the loss of biological diversity and reducing pressures on biodiversity and, where relevant, cooperating to maximise the impact and to ensure the mutual supportiveness of their respective policies;

(c) promoting the listing of species under the Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES) where the conservation status of those species is considered at risk; and

(d) cooperating at the regional and global levels with the aim of promoting the conservation and the sustainable use of biological diversity in natural or agricultural ecosystems, including endangered species, their habitat, specially protected natural areas and genetic diversity, the restoration of ecosystems, and the elimination or the reduction of negative environmental impacts resulting from the use of living and non-living natural resources or of ecosystems.

Article 369

Sustainable management of forests and trade in forest products

1. The Parties recognise the importance of ensuring the conservation and the sustainable management of forests and of forests' contribution to the Parties' economic, environmental and social objectives.

2. To that end, the Parties commit to:

(a) promoting trade in forest products derived from sustainably managed forests, harvested in accordance with the domestic legislation of the country of harvest. Actions, in that regard, may include the conclusion of a Forest Law Enforcement Governance and Trade Voluntary Partnership Agreement;

(b) exchanging information on measures to promote the consumption of timber and timber products from sustainably managed forests and, where relevant, cooperate in the development of such measures;

(c) adopting measures to promote the conservation of forest cover and to combat illegal logging and related trade, including with respect to third countries, as appropriate;

(d) exchanging information on actions for improving forest governance and, where relevant, cooperating to maximise the impact and ensure the mutual supportiveness of their respective policies aiming at excluding illegally harvested timber and timber products from trade flows;

(e) promoting the listing of timber species under CITES where the conservation status of that species is considered at risk; and

(f) cooperating at the regional and global level with the aim of promoting the conservation of forest cover and the sustainable management of all types of forests, with use of certification promoting responsible management of the forests.

Article 370

Trade in fish products

Taking into account the importance of ensuring responsible management of fish stocks in a sustainable manner as well as promoting good governance in trade, the Parties commit to:

(a) promoting best practices in fisheries management with a view to ensuring the conservation and the management of fish stocks in a sustainable manner, and based on the ecosystem approach;

(b) taking effective measures to monitor and control fishing activities;

(c) ensuring full compliance with applicable conservation and control measures, adopted by Regional Fisheries Management Organisations as well as cooperating with and within Regional Fisheries Management Organisations as widely as possible; and

(d) cooperating in the fight against illegal, unreported and unregulated (IUU) fishing and fishing related activities with comprehensive, effective and transparent measures. The Parties shall also implement policies and measures to exclude IUU products from trade flows and their markets.

Article 371

Upholding levels of protection

1. The Parties recognise that it is inappropriate to encourage trade or investment by lowering the levels of protection afforded in domestic environmental or labour law.

2. A Party shall not waive or derogate from, or offer to waive or derogate from, its environmental or labour law as an encouragement for trade or the establishment, the acquisition, the expansion or the retention of an investment of an investor in its territory.

3. A Party shall not, through a sustained or recurring course of action or inaction, fail to effectively enforce its environmental and labour law, as an encouragement for trade or investment.

Article 372

Scientific information

When preparing and implementing measures aimed at protecting the environment or labour conditions that may affect trade or investment, the Parties shall take account of available scientific and technical information, and relevant international standards, guidelines or recommendations if they exist, including the precautionary principle.

Article 373

Transparency

Each Party, in accordance with its domestic law and Chapter 12 (Transparency) of Title V (Trade and Trade-related Matters) of this Agreement, shall ensure that any measure aimed at protecting the environment or labour conditions that may affect trade or investment is developed, introduced and implemented in a transparent manner, with due notice and public consultation, and with appropriate and timely communication to, and consultation of, non-state actors.

Article 374

Review of sustainability impacts

The Parties commit to reviewing, monitoring and assessing the impact of the implementation of Title V (Trade and Trade-related Matters) of this Agreement on sustainable development through their respective participative processes and institutions, as well as those set up under this Agreement, for instance through trade-related sustainability impact assessments.

Article 375

Working together on trade and sustainable development

The Parties recognise the importance of working together on trade-related aspects of environmental and labour policies in order to achieve the objectives of Title V (Trade and Trade-related Matters) of this Agreement. They may cooperate in, inter alia, the following areas:

(a) labour or environmental aspects of trade and sustainable development in international fora, including in particular the WTO, the ILO, UNEP, and MEAs;

(b) methodologies and indicators for trade sustainability impact assessments;

(c) the impact of labour and environment regulations, norms and standards on trade and investment, as well as the impact of trade and investment rules on labour and environmental law, including on the development of labour and environmental regulations and policy;

(d) the positive and negative impacts of Title V (Trade and Trade-related Matters) of this Agreement on sustainable development and ways to enhance, prevent or mitigate them, respectively, also taking into account the sustainability impact assessments carried out by either or both Parties;

(e) promoting the ratification and the effective implementation of fundamental, priority and other up-to-date ILO conventions and MEAs of relevance in a trade context;

(f) promoting private and public certification, traceability and labelling schemes, including eco-labelling;

(g) promoting corporate social responsibility, for instance through actions concerning awareness raising, adherence, implementation and follow-up of internationally recognised guidelines and principles;

(h) trade-related aspects of the ILO Decent Work Agenda, including on the interlink between trade and full and productive employment, labour market adjustment, core labour standards, labour statistics, human resources development and lifelong learning, social protection and social inclusion, social dialogue and gender equality;

(i) trade-related aspects of MEAs, including customs cooperation;

(j) trade-related aspects of the current and future international climate change regime, including means to promote low-carbon technologies and energy efficiency;

(k) trade-related measures to promote the conservation and the sustainable use of biological diversity;

(l) trade-related measures to tackle deforestation, including by addressing problems regarding illegal logging; and

(m) trade-related measures to promote sustainable fishing practices and trade in sustainably managed fish products.

Article 376

Institutional and overseeing mechanisms

1. Each Party shall designate an office within its administration that shall serve as the contact point with the other Party for the purposes of implementing this Chapter.

2. The Trade and Sustainable Development Sub-Committee is hereby established. It shall report on its activities to the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement. It shall comprise senior officials from within the administrations of each Party.

3. The Trade and Sustainable Development Sub-Committee shall meet within the first year after the date of entry into force of this Agreement, and thereafter as necessary, to oversee the implementation of this Chapter, including cooperative activities undertaken under Article 375 of this Agreement. That Sub-Committee shall establish its own rules of procedure.

4. Each Party shall convene new, or consult existing, domestic advisory group(s) on sustainable development with the task of advising on issues relating to this Chapter. Such group(s) may submit views or recommendations on the implementation of this Chapter, including on its (their) own initiative.

5. The domestic advisory group(s) shall comprise independent representative organisations of civil society in a balanced representation of economic, social, and environmental stakeholders, including, among others, employers' and workers' organisations, non-governmental organisations, business groups, as well as other relevant stakeholders.

Article 377

Joint civil society dialogue forum

1. The Parties shall facilitate a joint forum with civil society organisations established in their territories, including members of their domestic advisory group(s) and the public at large, to conduct a dialogue on sustainable development aspects of this Agreement. The Parties shall promote a balanced representation of relevant interests, including independent representative organisations of employers, workers, environmental interests and business groups, as well as other relevant stakeholders, as appropriate.

2. The joint civil society dialogue forum shall be convened once a year unless otherwise agreed by the Parties. The Parties shall agree on the operation of the joint civil society dialogue forum no later than one year after the entry into force of this Agreement.

3. The Parties shall present an update on the implementation of this Chapter to the joint civil society dialogue forum. The views and the opinions of the joint civil society dialogue forum shall be submitted to the Parties and shall be made publicly available.

Article 378

Government consultations

1. For any matter arising under this Chapter the Parties shall only have recourse to the procedures established under this Article and Article 379 of this Agreement.

2. A Party may request consultations with the other Party regarding any matter arising under this Chapter by delivering a written request to the contact point of the other Party. The request shall present the matter clearly, identifying the problem at issue and providing a brief summary of the claims under this Chapter. Consultations shall start promptly after a Party delivers a request for consultations.

3. The Parties shall make every attempt to arrive at a mutually satisfactory resolution of the matter. The Parties shall take into account the activities of the ILO or relevant multilateral environmental organisations or bodies so as to promote greater cooperation and coherence between the work of the Parties and those organisations. Where relevant, the Parties may seek advice from those organisations or bodies, or any person or body they deem appropriate, in order to fully examine the matter.

4. If a Party considers that the matter needs further discussion, that Party may request that the Trade and Sustainable Development Sub-Committee be convened to consider the matter by delivering a written request to the contact point of the other Party. That Sub-Committee shall convene promptly and endeavour to agree on a resolution of the matter.

5. Where appropriate, that Sub-Committee may seek the advice of the domestic advisory group(s) of either Party or both Parties or other expert assistance.

6. Any resolution reached by the consulting Parties on the matter shall be made publicly available.

Article 379

Panel of Experts

1. Each Party may, 90 days after the delivery of a request for consultations under Article 378(2) of this Agreement, request that a Panel of Experts be convened to examine a matter that has not been satisfactorily addressed through government consultations.

2. The provisions of Sub-Section 1 and Sub-Section 3 of Section 3, and of Article 406 of Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement, as well as the Rules of Procedure in Annex XXXIII to this Agreement and the Code of Conduct for Arbitrators and Mediators ('Code of Conduct') set out in Annex XXXIV to this Agreement, shall apply, except as otherwise provided in this Article.

3. At its first meeting after the entry into force of this Agreement, the Trade and Sustainable Development Sub-Committee shall establish a list of at least 15 individuals who are willing and able to serve as experts in Panel procedures. Each Party shall propose at least five individuals to serve as experts. The Parties shall also select at least five individuals who are not nationals of either Party who may serve as chairperson to the Panel of Experts. The Trade and Sustainable Development Sub-Committee shall ensure that the list is always maintained at that level.

4. The list referred to in paragraph 3 shall comprise individuals with specialised knowledge or expertise in law, labour or environmental issues addressed in this Chapter, or the resolution of disputes arising under international agreements. They shall be independent, serve in their individual capacities and not take instructions from any organisation or government with regard to issues related to the matter at stake, or be affiliated with the government of any Party, and shall comply with the Code of Conduct set out in Annex XXXIV to this Agreement.

5. For matters arising under this Chapter, the Panel of Experts shall be composed of experts from the list referred to in paragraph 3 of this Article, in accordance with Article 385 of this Agreement and rule 8 of the Rules of Procedure set out in Annex XXXIII to this Agreement.

6. The Panel of Experts may seek information and advice from either Party, the domestic advisory group(s) or any other source it deems appropriate. In matters related to the respect of multilateral agreements as set out in Articles 365 and 366 of this Agreement, the Panel of Experts should seek information and advice from the ILO or MEA bodies.

7. The Panel of Experts shall issue its report to the Parties, in accordance with the relevant procedures set out in Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement. That report shall set out the findings of facts, the applicability of the relevant provisions and the basic rationale behind any findings and recommendations that it makes. The Parties shall make the report publicly available within 15 days of its issuance.

8. The Parties shall discuss appropriate measures to be implemented, taking into account the Panel of Experts' report and recommendations. The Party concerned shall inform its advisory group(s) and the other Party of its decisions on any action or measure to be implemented no later than three months after the public release of the report. The follow-up to the report and the recommendations of the Panel of Experts shall be monitored by the Trade and Sustainable Development Sub-Committee. The advisory bodies and the Joint Civil Society Dialogue Forum may submit observations to the Trade and Sustainable Development Sub-Committee in that regard.

CHAPTER 14

Dispute settlement

Section 1

Objective and scope

Article 380

Objective

The objective of this Chapter is to establish an effective and efficient mechanism for avoiding and settling any dispute between the Parties concerning the interpretation and application of Title V (Trade and Trade-related Matters) of this Agreement with a view to arriving, where possible, at a mutually agreed solution.

Article 381

Scope of application

This Chapter shall apply with respect to any dispute concerning the interpretation and application of the provisions of Title V (Trade and Trade-related Matters) of this Agreement, except as otherwise provided.

Section 2

Consultations and mediation

Article 382

Consultations

1. The Parties shall endeavour to resolve any dispute referred to in Article 381 of this Agreement by entering into consultations in good faith with the aim of reaching a mutually agreed solution.

2. A Party shall seek consultations by means of a written request to the other Party, copied to the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, giving reasons for the request, including by identifying the measure at issue and the provisions referred to in Article 381 of this Agreement that it considers applicable.

3. Consultations shall be held within 30 days of the date of receipt of the request and take place, unless the Parties agree otherwise, in the territory of the Party to which the request is made. The consultations shall be deemed concluded within 30 days of the date of receipt of the request, unless both Parties agree to continue consultations. Consultations, in particular all information disclosed and positions taken by the Parties during the consultations, shall be confidential, and without prejudice to the rights of either Party in any further proceedings.

4. Consultations on matters of urgency, including those regarding perishable goods or seasonal goods or services, shall be held within 15 days of the date of receipt of the request by the requested Party, and shall be deemed concluded within those 15 days unless both Parties agree to continue consultations.

5. If the Party to which the request is made does not respond to the request for consultations within 10 days of the date of its receipt, or if consultations are not held within the timeframes laid down in paragraph 3 or in paragraph 4 of this Article, respectively, or if the Parties agree not to have consultations, or if consultations have been concluded and no mutually agreed solution has been reached, the Party that sought consultations may have recourse to Article 384 of this Agreement.

6. During the consultations each Party shall deliver sufficient factual information, so as to allow a complete examination of the manner in which the measure at issue could affect the operation and the application of this Agreement.

7. Where consultations concern the transport of energy goods through networks and one Party views the resolution of the dispute as urgent because of an interruption, in full or in part, of transport of natural gas, oil or electricity between the Parties, the consultations shall be held within three days of the date of submission of the request, and shall be deemed concluded three days after the date of submission of the request unless both Parties agree to continue consultations.

Article 383

Mediation

Any Party may request the other Party to enter into a mediation procedure with respect to any measure adversely affecting trade or investment between the Parties pursuant to Annex XXXII to this Agreement.

Section 3

Dispute settlement procedures

Sub-section 1

Arbitration procedure

Article 384

Initiation of the arbitration procedure

1. Where the Parties have failed to resolve the dispute by recourse to consultations as provided for in Article 382 of this Agreement, the Party that sought consultations may request the establishment of an arbitration panel in accordance with this Article.

2. The request for the establishment of an arbitration panel shall be made in writing to the other Party and the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement. The complaining Party shall identify in its request the measure at issue, and it shall explain how such measure is inconsistent with the provisions referred to in Article 381 of this Agreement in a manner sufficient to present the legal basis for the complaint clearly.

Article 385

Establishment of the arbitration panel

1. An arbitration panel shall be composed of three arbitrators.

2. Within 10 days of the date of receipt by the Party complained against of the request for the establishment of an arbitration panel, the Parties shall consult in order to reach an agreement on the composition of the arbitration panel.

3. In the event that the Parties are unable to agree on the composition of the arbitration panel within the time frame laid down in paragraph 2 of this Article, each Party may appoint an arbitrator from its sub-list established under Article 404 of this Agreement within five days from the expiry of the timeframe established in paragraph 2 of this Article. If any of the Parties fails to appoint the arbitrator, the arbitrator shall, upon request of the other Party, be selected by lot by the chair of the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, or the chair's delegate, from the sub-list of that Party contained in the list established under Article 404 of this Agreement.

4. Unless the Parties reach an agreement concerning the chairperson of the arbitration panel within the timeframe established in paragraph 2 of this Article, the chair of the Association Committee in Trade configuration or the chair's delegate shall, upon request of any of the Parties, select by lot the chairperson of the arbitration panel from the sub-list of chairpersons contained in the list established under Article 404 of this Agreement.

5. The chair of the Association Committee in Trade configuration or the chair's delegate shall select the arbitrators within five days of the request by either Party referred to in paragraphs 3 and 4.

6. The date of establishment of the arbitration panel shall be the date on which the last of the three selected arbitrators accepts the appointment according to the Rules of Procedure in Annex XXXIII to this Agreement.

7. Should any of the lists provided for in Article 404 of this Agreement not be established or not contain sufficient names at the time a request is made pursuant to paragraphs 3 and 4 of this Article, the arbitrators shall be drawn by lot from the individuals who have been formally proposed by one or both of the Parties.

8. Unless the Parties agree otherwise, in respect of a dispute concerning Chapter 11 (Trade-related Energy) of Title V (Trade and Trade-related Matters) of this Agreement which a Party considers to be urgent because of an interruption, in full or in part, of any transport of natural gas, oil, or electricity or a threat thereof between the Parties, the second sentence of paragraph 3 and paragraph 4 shall apply without recourse to paragraph 2, and the period referred to in paragraph 5 shall be of two days.

Article 386

Preliminary ruling on urgency

If a Party so requests, the arbitration panel shall, within 10 days of its establishment, give a preliminary ruling on whether it deems the case to be urgent.

Article 387

Arbitration panel report

1. The arbitration panel shall notify an interim report to the Parties setting out the findings of fact, the applicability of relevant provisions and the basic rationale behind any findings and recommendations that it makes, not later than 90 days after the date of establishment of the arbitration panel. Where it considers that that deadline cannot be met, the chairperson of the arbitration panel shall notify the Parties and the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, in writing, stating the reasons for the delay and the date on which the arbitration panel plans to notify its interim report. Under no circumstances should the interim report be notified later than 120 days after the date of establishment of the arbitration panel.

2. A Party may submit a written request to the arbitration panel to review precise aspects of the interim report within 14 days of its notification.

3. In cases of urgency, including those involving perishable goods or seasonal goods or services, the arbitration panel shall make every effort to notify its interim report within 45 days and, in any case, no later than 60 days after the date of establishment of the arbitration panel. A Party may submit a written request to the arbitration panel to review precise aspects of the interim report, within 7 days of the notification of the interim report.

4. After considering any written comments by the Parties on the interim report, the arbitration panel may modify its report and make any further examination it considers appropriate. The findings of the final panel ruling shall include a sufficient discussion of the arguments made at the interim review stage, and shall answer clearly to the questions and observations of the Parties.

5. In respect of a dispute concerning Chapter 11 (Trade-related Energy) of Title V (Trade and Trade-related Matters) of this Agreement which a Party considers to be urgent because of an interruption, in full or in part, of any transport of natural gas, oil or electricity or a threat thereof between the Parties, the interim report shall be notified 20 days after the date of establishment of the arbitration panel, and any request pursuant to paragraph 2 of this Article shall be made within five days of the notification of the written report. The arbitration panel may also decide to dispense with the interim report.

Article 388

Conciliation for urgent energy disputes

1. In respect of a dispute concerning Chapter 11 (Trade-related Energy) of Title V (Trade and Trade-related Matters) of this Agreement which a Party considers to be urgent because of an interruption, in full or in part, of any transport of natural gas, oil, or electricity or a threat thereof between the Parties, either Party may request the chairperson of the arbitration panel to act as a conciliator concerning any matter related to the dispute by making a request to the arbitration panel.

2. The conciliator shall seek an agreed resolution of the dispute or seek to agree a procedure to achieve such resolution. If within 15 days of his/her appointment he/she has failed to secure such agreement, he/she shall recommend a resolution to the dispute or a procedure to achieve such resolution and shall decide on the terms and conditions to be observed from a date which he/she shall specify until the dispute is resolved.

3. The Parties and the entities under their control or jurisdiction shall respect recommendations made under paragraph 2 on the terms and conditions for three months following the conciliator's decision or until resolution of the dispute, whichever is earlier.

4. The conciliator shall respect the Code of Conduct set out in Annex XXXIV to this Agreement.

Article 389

Notification of the ruling of the arbitration panel

1. The arbitration panel shall notify its final ruling to the Parties and to the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, within 120 days from the date of establishment of the arbitration panel. Where it considers that that deadline cannot be met, the chairperson of the arbitration panel shall notify the Parties and the Association Committee in Trade configuration in writing, stating the reasons for the delay and the date on which the arbitration panel plans to notify its ruling. Under no circumstances should the ruling be notified later than 150 days after the date of establishment of the arbitration panel.

2. In cases of urgency, including those involving perishable goods or seasonal goods or services, the arbitration panel shall make every effort to notify its ruling within 60 days from the date of its establishment. Under no circumstances should the ruling be notified later than 75 days after the date of its establishment.

3. In respect of a dispute concerning Chapter 11 (Trade-related Energy) of Title V (Trade and Trade-related Matters) of this Agreement which a Party considers to be urgent because of an interruption, in full or in part, of any transport of natural gas, oil or electricity or a threat thereof between the Parties, the arbitration panel shall notify its ruling within 40 days from the date of its establishment.

Sub-section 2

Compliance

Article 390

Compliance with the arbitration panel ruling

The Party complained against shall take any measure necessary to comply promptly and in good faith with the arbitration panel ruling.

Article 391

Reasonable period of time for compliance

1. If immediate compliance is not possible, the Parties shall endeavour to agree on the period of time to comply with the ruling. In such a case, the Party complained against shall, no later than 30 days after the receipt of the notification of the arbitration panel ruling to the Parties, notify the complaining Party and the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, of the time it will require for compliance ('reasonable period of time') and provide reasons for the proposed reasonable period of time.

2. If there is disagreement between the Parties on the reasonable period of time to comply with the arbitration panel ruling, the complaining Party shall, within 20 days of the receipt of the notification made under paragraph 1 by the Party complained against, request in writing the original arbitration panel to determine the length of the reasonable period of time. Such request shall be notified simultaneously to the other Party and to the Association Committee in Trade configuration. The original arbitration panel shall notify its ruling to the Parties and to the Association Committee in Trade configuration within 20 days from the date of submission of the request.

3. The Party complained against shall inform the complaining Party in writing of its progress to comply with the arbitration panel ruling at least 30 days before the expiry of the reasonable period of time.

4. The reasonable period of time may be extended by mutual agreement of the Parties.

Article 392

Review of any measure taken to comply with the arbitration panel ruling

1. The Party complained against shall notify the complaining Party and the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, before the end of the reasonable period of time of any measure that it has taken to comply with the arbitration panel ruling.

2. In the event that there is disagreement between the Parties concerning the existence or the consistency of any measure taken to comply as notified in paragraph 1 with the provisions referred to in Article 381 of this Agreement, the complaining Party may request in writing the original arbitration panel to rule on the matter. Such request shall identify the specific measure at issue and explain how such measure is inconsistent with the provisions referred to in Article 381 of this Agreement, in a manner sufficient to present the legal basis for the complaint clearly. The original arbitration panel shall notify its ruling to the Parties and to the Association Committee in Trade configuration within 45 days of the date of submission of the request.

Article 393

Temporary remedies in case of non-compliance

1. If the Party complained against fails to notify any measure taken to comply with the arbitration panel ruling before the expiry of the reasonable period of time, or if the arbitration panel rules that no measure taken to comply exists or

that the measure notified under Article 392(1) of this Agreement is inconsistent with that Party's obligations under the provisions referred to in Article 381 of this Agreement, the Party complained against shall, if so requested by the complaining Party and after consultations with that Party, present an offer for temporary compensation.

2. If the complaining Party decides not to request an offer for temporary compensation under paragraph 1 of this Article, or, in case such request is made but no agreement on compensation is reached within 30 days from the end of the reasonable period of time or of the notification of the arbitration panel ruling under Article 392 of this Agreement that no measure taken to comply exists or that a measure taken to comply is inconsistent with the provisions referred to in Article 381 of this Agreement, the complaining Party shall be entitled, upon notification to the other Party and to the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, to suspend obligations arising from any provision referred to in Article 381 of this Agreement at a level equivalent to the nullification or impairment caused by the violation. The notification shall specify the level of suspension of obligations. The complaining Party may implement the suspension at any moment after the expiry of 10 days after the date of receipt of the notification by the Party complained against, unless the Party complained against has requested arbitration under paragraph 3 of this Article.

3. If the Party complained against considers that the level of suspension is not equivalent to the nullification or impairment caused by the violation, it may request in writing the original arbitration panel to rule on the matter. Such request shall be notified to the complaining Party and to the Association Committee in Trade configuration before the expiry of the ten day period referred to in paragraph 2. The original arbitration panel shall notify its ruling on the level of the suspension of obligations to the Parties and to the Association Committee in Trade configuration within 30 days of the date of submission of the request. Obligations shall not be suspended until the original arbitration panel has notified its ruling, and any suspension shall be consistent with the arbitration panel ruling.

4. The suspension of obligations and the compensation foreseen in this Article shall be temporary and shall not be applied after:

(a) the Parties have reached a mutually agreed solution pursuant to Article 398 of this Agreement;

(b) the Parties have agreed that the measure notified under Article 392(1) of this Agreement brings the Party complained against in conformity with the provisions referred to in Article 381 of this Agreement; or

(c) any measure found to be inconsistent with the provisions referred to in Article 381 of this Agreement has been withdrawn or amended so as to bring it in conformity with those provisions, as ruled under Article 392(1) of this Agreement.

Article 394

Remedies for urgent energy disputes

1. In respect of a dispute concerning Chapter 11 (Trade-related Energy) of Title V (Trade and Trade-related Matters) of this Agreement which a Party considers to be urgent because of an interruption, in full or in part, of any transport of natural gas, oil, or electricity or a threat thereof between the Parties, the provisions of this Article on remedies shall apply.

2. By way of derogation from Articles 391, 392, and 393 of this Agreement, the complaining Party may suspend obligations arising under Title V (Trade and Trade-related Matters) of this Agreement to a level equivalent to the nullification or impairment caused by the Party failing to bring itself into compliance with the arbitration panel ruling within 15 days of its notification. That suspension may take effect immediately. Such suspension may be maintained as long as the Party complained against has not complied with the arbitration panel ruling.

3. Should the Party complained against dispute the existence of a failure to comply or the level of suspension due to the failure to comply, it may initiate proceedings under Articles 393(3) and 395 of this Agreement which shall be examined expeditiously. The complaining Party shall be required to remove or adjust the suspension only after the arbitration panel has ruled on the matter, and may maintain the suspension pending the proceedings.

Article 395

Review of any measure taken to comply after the adoption of temporary remedies for non-compliance

1. The Party complained against shall notify the complaining Party and the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, of the measure it has taken to comply with the ruling of the

arbitration panel following the suspension of concessions or following the application of temporary compensation, as the case may be. With the exception of cases under paragraph 2 of this Article, the complaining Party shall terminate the suspension of concessions within 30 days from the receipt of the notification. In cases where compensation has been applied, and with the exception of cases under paragraph 2, the Party complained against may terminate the application of such compensation within 30 days from its notification that it has complied with the ruling of the arbitration panel.

2. If the Parties do not reach an agreement on whether the notified measure brings the Party complained against in conformity with the provisions referred to in Article 381 of this Agreement within 30 days of the date of receipt of the notification, the complaining Party shall request in writing the original arbitration panel to rule on the matter. Such a request shall be notified simultaneously to the other Party and to the Association Committee in Trade configuration. The arbitration panel ruling shall be notified to the Parties and to the Association Committee in Trade configuration within 45 days of the date of submission of the request. If the arbitration panel rules that the measure taken to comply is in accordance with the provisions referred to in Article 381 of this Agreement, the suspension of obligations or compensation, as the case may be, shall be terminated. Where relevant, the complaining Party shall adapt the level of suspension of concessions to the level determined by the arbitration panel.

Sub-section 3

Common provisions

Article 396

Replacement of arbitrators

If in an arbitration proceeding under this Chapter, the original arbitration panel, or some of its members, are unable to participate, withdraw, or need to be replaced because they do not comply with the requirements of the Code of Conduct set out in Annex XXXIV to this Agreement, the procedure set out in Article 385 of this Agreement shall apply. The time-limit for the notification of the arbitration panel ruling shall be extended for the time necessary for the appointment of a new arbitrator but for no more than 20 days.

Article 397

Suspension and termination of arbitration and compliance procedures

The arbitration panel shall, at the written request of the Parties, suspend its work at any time for a period agreed by the Parties not exceeding 12 consecutive months. The arbitration panel shall resume its work before the end of that period at the written request of the Parties or at the end of that period at the written request of any Party. The requesting Party shall inform the Chairperson of the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, and the other Party, accordingly. If a Party does not request the resumption of the arbitration panel's work at the expiry of the agreed suspension period, the procedure shall be terminated. The suspension and termination of the arbitration panel's work are without prejudice to the rights of either Party in another proceeding subject to Article 405 of this Agreement.

Article 398

Mutually agreed solution

The Parties may reach a mutually agreed solution to a dispute under this Chapter at any time. They shall jointly notify the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, and the chairperson of the arbitration panel, where applicable, of any such solution. If the solution requires approval pursuant to the relevant domestic procedures of either Party, the notification shall refer to this requirement, and the dispute settlement procedure shall be suspended. If such approval is not required, or if the completion of any such domestic procedures is notified, the dispute settlement procedure shall be terminated.

Article 399

Rules of procedure

1. Dispute settlement procedures under this Chapter shall be governed by the Rules of Procedure set out in Annex XXXIII to this Agreement and by the Code of Conduct set out in Annex XXXIV to this Agreement.

2. Any hearing of the arbitration panel shall be open to the public unless provided otherwise in the Rules of Procedure.

Article 400

Information and technical advice

At the request of a Party, or upon its own initiative, the arbitration panel may obtain any information it deems appropriate for the arbitration panel proceeding from any source, including the Parties involved in the dispute. The arbitration panel also has the right to seek the opinion of experts, as it deems appropriate. The arbitration panel shall consult the Parties before choosing such experts. Natural or legal persons established in the territory of a Party may submit *amicus curiae* briefs to the arbitration panel in accordance with the Rules of Procedure. Any information obtained under this Article shall be disclosed to each of the Parties and submitted for their comments.

Article 401

Rules of interpretation

The arbitration panel shall interpret the provisions referred to in Article 381 of this Agreement in accordance with customary rules of interpretation of public international law, including those codified in the Vienna Convention of 1969 on the Law of Treaties. The arbitration panel shall also take into account relevant interpretations established in reports of panels and of the Appellate Body adopted by the WTO Dispute Settlement Body (DSB). The rulings of the arbitration panel cannot add to or diminish the rights and obligations of the Parties provided under this Agreement.

Article 402

Decisions and rulings of the arbitration panel

1. The arbitration panel shall make every effort to take any decision by consensus. Where, nevertheless, a decision cannot be arrived at by consensus, the matter at issue shall be decided by majority vote. However, in no case shall dissenting opinions of arbitrators be disclosed.

2. The rulings of the arbitration panel shall be unconditionally accepted by the Parties. They shall not create any rights or obligations for natural or legal persons. The rulings shall set out the findings of fact, the applicability of the relevant provisions referred to in Article 381 of this Agreement, and the basic rationale behind any findings and conclusions that they make. The Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, shall make the rulings of the arbitration panel publicly available in their entirety within 10 days of their notification, unless it decides not to do so in order to ensure the confidentiality of business confidential information.

Article 403

Referrals to the Court of Justice of the European Union

1. The procedures set out in this Article shall apply to disputes concerning the interpretation and application of a provision of this Agreement relating to gradual approximation contained in Chapter 3 (Technical Barriers to Trade), Chapter 4 (Sanitary and Phytosanitary Measures), Chapter 5 (Customs and Trade Facilitation), Chapter 6 (Establishment, Trade in Services and Electronic Commerce), Chapter 8 (Public Procurement) or Chapter 10 (Competition) of Title V (Trade and Trade-related Matters) of this Agreement, or which otherwise imposes upon a Party an obligation defined by reference to a provision of Union law.

2. Where a dispute raises a question of interpretation of a provision of Union law referred to in paragraph 1, the arbitration panel shall not decide the question, but request the Court of Justice of the European Union to give a ruling on the question. In such cases, the deadlines applying to the rulings of the arbitration panel shall be suspended until the Court of Justice of the European Union has given its ruling. The ruling of the Court of Justice of the European Union shall be binding on the arbitration panel.

Section 4

General provisions

Article 404

Lists of arbitrators

1. The Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, shall, no later than six months after the entry into force of this Agreement, establish a list of at least 15 individuals who are willing and able to serve as arbitrators. The list shall be composed of three sub-lists: one sub-list for each Party and one sub-list of individuals that are not nationals of either Party and who may serve as chairperson to the arbitration panel. Each sub-list shall include at least five individuals. The Association Committee in Trade configuration shall ensure that the list is always maintained at that level.

2. Arbitrators shall have specialised knowledge and experience of law and international trade. They shall be independent, serve in their individual capacities and not take instructions from any organisation or government, or be affiliated with the government of any of the Parties, and shall comply with the Code of Conduct set out in Annex XXXIV to this Agreement.

3. The Association Committee in Trade configuration may establish additional lists of 12 individuals with knowledge and experience in specific sectors covered by this Agreement. Subject to the agreement of the Parties, such additional lists shall be used to compose the arbitration panel in accordance with the procedure set out in Article 385 of this Agreement.

Article 405

Relation with WTO obligations

1. Recourse to the dispute settlement provisions of this Chapter shall be without prejudice to any action in the WTO framework, including dispute settlement proceedings.

2. However, a Party shall not, for any particular measure, seek redress for a substantially equivalent obligation under both this Agreement and the WTO Agreement in both fora. In such case, once a dispute settlement proceeding has been initiated, the Party shall not bring a claim seeking redress for the breach of the substantially equivalent obligation under the other Agreement to the other forum, unless the forum selected first fails for procedural or jurisdictional reasons to make findings on the claim seeking redress of that obligation.

3. For the purposes of paragraph 2 of this Article:

(a) dispute settlement proceedings under the WTO Agreement are deemed to be initiated by a Party's request for the establishment of a panel under Article 6 of the Understanding on Rules and Procedures Governing the Settlement of Disputes of the WTO; and

(b) dispute settlement proceedings under this Chapter are deemed to be initiated by a Party's request for the establishment of an arbitration panel under Article 384 of this Agreement.

4. Nothing in this Agreement shall preclude a Party from implementing the suspension of obligations authorised by the DSB. The WTO Agreement shall not be invoked to preclude a Party from suspending obligations under this Chapter.

Article 406

Time-limits

1. All time-limits laid down in this Chapter, including the limits for the arbitration panels to notify their rulings, shall be counted in calendar days from the day following the act or the fact to which they refer, unless otherwise specified.

2. Any time-limit referred to in this Chapter may be modified by mutual agreement of the Parties to the dispute. The arbitration panel may at any time propose to the Parties to modify any time-limit referred to in this Chapter, stating the reasons for the proposal.

CHAPTER 15

General provisions on approximation under Title V

Article 407

Progress in approximation in trade-related areas

1. For the purposes of facilitating the assessment of the approximation, referred to in Articles 451 and 452 of this Agreement, of the law of the Republic of Moldova to Union law in the trade-related areas of Title V (Trade and Trade-related Matters), the Parties shall regularly, and at least once a year, discuss the progress in approximation according to the agreed timeframes provided for in Chapters 3, 4, 5, 6, 8 and 10 of Title V (Trade and Trade-related Matters) of this Agreement in the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, or one of its Sub-Committees established under this Agreement.

2. Upon request by the Union, and for the purposes of such discussion, the Republic of Moldova shall submit to the Association Committee in Trade configuration or one of its Sub-Committees, as appropriate, information in writing on progress in approximation and on the effective implementation and enforcement of approximated domestic law, in relation to the relevant Chapters of Title V (Trade and Trade-related Matters) of this Agreement.

3. The Republic of Moldova shall inform the Union when it considers that it has completed the approximation provided for in any of the Chapters referred to in paragraph 1.

Article 408

Repeal of inconsistent domestic law

As part of the approximation, the Republic of Moldova shall withdraw provisions of its domestic law or abolish domestic practices that are inconsistent with Union law or with its domestic law approximated to the Union law in the trade-related areas of Title V (Trade and Trade-related Matters) of this Agreement.

Article 409

Assessment of approximation in trade-related areas

1. The assessment of approximation by the Union referred to in Title V (Trade and Trade-related Matters) of this Agreement shall start after the Republic of Moldova has informed the Union pursuant to Article 407(3) of this Agreement, unless otherwise provided for in Chapters 4 and 8 of Title V (Trade and Trade-related Matters) of this Agreement.

2. The Union shall assess whether the legislation of the Republic of Moldova has been approximated to Union law and whether it is implemented and enforced effectively. The Republic of Moldova shall provide the Union with all necessary information to enable such assessment, in a language to be mutually agreed.

3. The assessment by the Union pursuant to paragraph 2 shall take into account the existence and operation of relevant infrastructure, bodies and procedures in the Republic of Moldova necessary for the effective implementation and enforcement of the legislation of the Republic of Moldova.

4. The assessment by the Union pursuant to paragraph 2 shall take account of the existence of any domestic provisions or practices that are inconsistent with Union law or with the domestic law approximated to the Union law in the trade-related areas of Title V (Trade and Trade-related Matters) of this Agreement.

5. The Union shall inform the Republic of Moldova within 12 months from the start of the assessment referred to in paragraph 1 about the results of its assessment, unless otherwise provided. The Parties shall discuss the assessment in the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, or its relevant Sub-Committees, in accordance with Article 452 of this Agreement, unless otherwise provided.

Article 410

Developments relevant to approximation

1. The Republic of Moldova shall ensure the effective implementation of the approximated domestic law and undertake any action necessary to reflect the developments in Union law in its domestic law in the trade-related areas of Title V (Trade and Trade-related Matters) of this Agreement.

2. The Republic of Moldova shall refrain from any action that would undermine the objective or the outcome of approximation under Title V (Trade and Trade-related Matters) of this Agreement.

3. The Union shall inform the Republic of Moldova about any final European Commission proposals to adopt or amend Union law relevant to approximation obligations incumbent on the Republic of Moldova under Title V (Trade and Trade-related Matters) of this Agreement.

4. The Republic of Moldova shall inform the Union of legislative proposals and measures, including domestic practices, which may affect the fulfilment of its obligations under Title V (Trade and Trade-related Matters) of this Agreement.

5. Upon request, the Parties shall discuss the impact of any proposals or actions referred to in paragraphs 3 and 4 of this Article on the legislation of the Republic of Moldova or on the compliance with the obligations under Title V (Trade and Trade-related Matters) of this Agreement.

6. If, after an assessment has been made under Article 409 of this Agreement, the Republic of Moldova modifies its domestic law to take account of changes in Chapters 3, 4, 5, 6, 8 and 10 of Title V (Trade and Trade-related Matters) of this Agreement, a new assessment by the Union shall be conducted pursuant to Article 409 of this Agreement. If the Republic of Moldova takes any other action that could have an effect on the implementation and enforcement of the approximated domestic law, a new assessment by the Union may be conducted pursuant to Article 409 of this Agreement.

7. If the circumstances so require, particular benefits, accorded by the Union on the basis of an assessment that the legislation of the Republic of Moldova has been approximated to Union law and implemented and enforced effectively, may be temporarily suspended in accordance with paragraph 8, if the Republic of Moldova does not approximate its domestic law to take account of changes to Title V (Trade and Trade-related Matters) of this Agreement, if the assessment referred to in paragraph 6 shows that the legislation of the Republic of Moldova is no longer approximated to the Union law, or if the Association Council established by Article 434 of this Agreement fails to take a decision to update Title V (Trade and Trade-related Matters) of this Agreement in accordance with developments in Union law.

8. If the Union intends to implement any such suspension, it shall promptly notify the Republic of Moldova. The Republic of Moldova may refer the matter to the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, within one month from the notification, providing a statement of reasons in writing. The Association Committee in Trade configuration shall discuss the matter within three months from the referral. If the matter is not referred to the Association Committee in Trade configuration, or if it cannot be resolved by that Committee within three months from the referral, the Union may implement the suspension of benefits. The suspension shall be promptly lifted, if the Association Committee in Trade configuration subsequently resolves the matter.

Article 411

Exchange of information

The exchange of information in relation to approximation under Title V (Trade and Trade-related Matters) shall take place through the contact points established in Article 358(1) of this Agreement.

Article 412

General provision

1. The Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, shall adopt procedures to facilitate the assessment of the approximation and to ensure the effective exchange of information pertaining to approximation, including the form, content and language of the exchanged information.

2. Any reference to a specific Union act in Title V (Trade and Trade-related Matters) of this Agreement covers amendments, supplements and replacement measures published in the *Official Journal of the European Union* before 29 November 2013.

3. The provisions in Chapters 3, 4, 5, 6, 8 and 10 of Title V (Trade and Trade-related Matters) of this Agreement shall prevail over the provisions set out in this Chapter to the extent that there is a conflict.

4. Claims of a violation of the provisions of this Chapter shall not be pursued under Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement.

TITLE VI

FINANCIAL ASSISTANCE, AND ANTI-FRAUD AND CONTROL PROVISIONS

CHAPTER 1

Financial assistance

Article 413

The Republic of Moldova shall benefit from financial assistance through the relevant EU funding mechanisms and instruments. The Republic of Moldova may also benefit from loans by the European Investment Bank (EIB), the European Bank for Reconstruction and Development (EBRD) and other international financial institutions. The financial assistance will contribute to achieving the objectives of this Agreement and will be provided in accordance with this Chapter.

Article 414

The main principles of financial assistance shall be set out in the relevant Regulations on EU Financial Instruments.

Article 415

The priority areas of the EU financial assistance agreed by the Parties shall be laid down in annual action programmes based on multi-annual frameworks which reflect agreed policy priorities. The amounts of assistance established in those programmes shall take into account the Republic of Moldova's needs, sector capacities and progress with reforms, particularly in areas covered by this Agreement.

Article 416

In order to permit optimum use of the resources available, the Parties shall endeavour to ensure that EU assistance is implemented in close cooperation and coordination with other donor countries, donor organisations and international financial institutions, and in line with international principles of aid effectiveness.

Article 417

The fundamental legal, administrative and technical basis of financial assistance shall be established within the framework of relevant agreements between the Parties.

Article 418

The Association Council shall be informed of the progress and implementation of financial assistance and its impact upon pursuing the objectives of this Agreement. To that end, the relevant bodies of the Parties shall provide appropriate monitoring and evaluation information on a mutual and permanent basis.

Article 419

The Parties shall implement assistance in accordance with the principles of sound financial management and cooperate in the protection of the financial interests of the EU and of the Republic of Moldova in accordance with Chapter 2 (Anti-Fraud and Control Provisions) of this Title.

CHAPTER 2

Anti-fraud and control provisions

Article 420

Definitions

For the purposes of this Chapter, the definitions set out in Protocol IV of this Agreement shall apply.

Article 421

Scope

This Chapter shall be applicable to any further agreement or financing instrument to be concluded between the Parties, and any other EU financing instrument to which the Republic of Moldova may be associated, without prejudice to any other additional clauses covering audits, on-the-spot checks, inspections, controls, and anti-fraud measures, including those conducted by the European Anti-Fraud Office (OLAF) and the European Court of Auditors (ECA).

Article 422

Measures to prevent and fight fraud, corruption and any other illegal activities

The Parties shall take effective measures to prevent and fight fraud, corruption and any other illegal activities, inter alia, by means of mutual administrative assistance and mutual legal assistance in the fields covered by this Agreement.

Article 423

Exchange of information and further cooperation at operational level

1. For the purposes of proper implementation of this Chapter, the competent EU authorities and the competent authorities of the Republic of Moldova shall regularly exchange information and, at the request of one of the Parties, conduct consultations.

2. OLAF may agree with its counterparts of the Republic of Moldova on further cooperation in the field of anti-fraud, including operational arrangements with the authorities of the Republic of Moldova.

3. For the transfer and processing of personal data, Article 13 of Title III (Freedom, Security and Justice) of this Agreement shall apply.

Article 424

Prevention of irregularities, fraud and corruption

1. The authorities of the Republic of Moldova shall check regularly that the operations financed with EU funds have been properly implemented. They shall take any appropriate measure to prevent and remedy irregularities and fraud.

2. The authorities of the Republic of Moldova shall take any appropriate measure to prevent and remedy any active or passive corruption practices and exclude conflict of interest at any stage of the procedures related to the implementation of EU funds.

3. The authorities of the Republic of Moldova shall inform the European Commission of any prevention measure taken.

4. The European Commission shall be entitled to obtain evidence in accordance with Article 56 of Council Regulation (EC, Euratom) No 1605/2002 of 25 June 2002 on the Financial Regulation applicable to the general budget of the European Communities.

5. The European Commission shall also be entitled to obtain evidence that procedures on procurement and grants satisfy the principles of transparency, equal treatment and non-discrimination, prevent any conflict of interest, offer guarantees equivalent to internationally accepted standards and ensure compliance with the provisions of sound financial management.

6. To that end, the competent authorities of the Republic of Moldova shall provide the European Commission with any information related to the implementation of EU funds and shall inform it without delay of any substantial change in their procedures or systems.

Article 425

Investigation and prosecution

The authorities of the Republic of Moldova shall ensure investigation and prosecution of suspected and actual cases of fraud, corruption or any other irregularity, including conflict of interest, following national or EU controls. Where appropriate, OLAF may assist the competent authorities of the Republic of Moldova in that task.

Article 426

Communication of fraud, corruption and irregularities

1. The authorities of the Republic of Moldova shall transmit to the European Commission without delay any information which has come to their notice on suspected or actual cases of fraud, corruption or any other irregularity, including conflict of interest, in connection with the implementation of EU funds. In case of suspicion of fraud or corruption, OLAF shall also be informed.

2. The authorities of the Republic of Moldova shall also report on all measures taken in connection with facts communicated under this Article. Should there be no suspected or actual cases of fraud, corruption, or any other irregularity to report, the authorities of the Republic of Moldova shall inform the European Commission following the end of each calendar year.

Article 427

Audits

1. The European Commission and the ECA are entitled to examine whether all expenditure related to the implementation of EU funds has been incurred in a lawful and regular manner and whether the financial management has been sound.

2. Audits shall be carried out on the basis both of commitments undertaken and payments made. They shall be based on records and, if necessary, performed on-the-spot on the premises of any entity which manages or takes part in the implementation of EU funds. The audits may be carried out before the closure of the accounts for the financial year in question and for a period of five years from the date of payment of the balance.

3. European Commission inspectors or other persons mandated by the European Commission or the ECA may conduct documentary or on-the-spot checks and audits on the premises of any entity which manages or takes part in the implementation of EU funds and of their subcontractors in the Republic of Moldova.

4. The European Commission or other persons mandated by the European Commission or the ECA shall have appropriate access to sites, works and documents and to all the information required in order to carry out such audits, including in electronic form. That right of access should be communicated to all public institutions of the Republic of Moldova and shall be stated explicitly in the contracts concluded to implement the instruments referred to in this Agreement.

5. The checks and audits referred to in this Article are applicable to all contractors and subcontractors who have received EU funds directly or indirectly. In the performance of their tasks, the ECA and the audit bodies of the Republic of Moldova shall cooperate in a spirit of trust while maintaining their independence.

Article 428

On-the-spot checks

1. Within the framework of this Agreement, OLAF shall be authorised to carry out on-the-spot checks and inspections in order to protect the EU's financial interests against fraud and other irregularities in accordance with the provisions of Council Regulation (EC, Euratom) No 2185/96 of 11 November 1996 concerning on-the-spot checks and inspections carried out by the Commission in order to protect the European Communities' financial interests against fraud and other irregularities.

2. On-the-spot checks and inspections shall be prepared and conducted by OLAF in close cooperation with the competent authorities of the Republic of Moldova.

3. The authorities of the Republic of Moldova shall be notified in good time of the object, purpose and legal basis of the checks and inspections, so that they can provide all the requisite help. To that end, the officials of the competent authorities of the Republic of Moldova may participate in the on-the-spot checks and inspections.

4. If the authorities of the Republic of Moldova concerned express their interest, the on-the-spot checks and inspections may be carried out jointly by OLAF and them.

5. Where an economic operator resists an on-the-spot check or inspection, the authorities of the Republic of Moldova shall give OLAF the assistance it needs to allow it to discharge its duty in carrying out an on-the-spot check or inspection.

Article 429

Administrative measures and penalties

Administrative measures and penalties may be imposed by the European Commission in accordance with Regulations (EC, Euratom) No 1605/2002 and (EC, Euratom) No 2342/2002 of 23 December 2002 and with Council Regulation (EC, Euratom) No 2988/95 of 18 December 1995 on the protection of the European Communities financial interests.

Article 430

Recovery

1. The authorities of the Republic of Moldova shall take any appropriate measure to recover EU funds unduly paid.

2. Where the authorities of the Republic of Moldova are entrusted with the implementation of EU funds the European Commission is entitled to recover EU funds unduly paid, in particular through financial corrections. The European Commission shall take into account the measures taken by the authorities of the Republic of Moldova to prevent the loss of the EU funds concerned.

3. The European Commission shall consult with the Republic of Moldova on the matter before taking any decision on recovery. Disputes on recovery will be discussed in the Association Council.

4. Where the European Commission implements EU funds directly or indirectly by entrusting budget implementation tasks to third parties, a decision taken by the European Commission within the scope of this Title of this Agreement which imposes a pecuniary obligation on persons other than States, shall be enforceable in the Republic of Moldova in accordance with the following principles:

(a) enforcement shall be governed by the rules of civil procedure in force in the Republic of Moldova. The order for the enforcement of the decision shall be appended to it, without any formality other than verification of the authenticity of the decision, by the national authority which the government of the Republic of Moldova shall designate for that purpose and shall make known to the European Commission and to the Court of Justice of the European Union;

(b) when the formalities referred to in point (a) have been completed on application by the Party concerned, the latter may proceed to enforcement in accordance with the legislation of the Republic of Moldova, by bringing the matter directly before the competent authority;

(c) enforcement may be suspended only by a decision of the Court of Justice of the European Union. However, the courts of the Republic of Moldova concerned shall have jurisdiction over complaints that enforcement is being carried out in an irregular manner.

5. The enforcement order shall be issued, without any further control other than verification of the authenticity of the act, by the authorities designated by the government of the Republic of Moldova. Enforcement shall take place in accordance with the rules of procedure of the Republic of Moldova. The legality of the enforcement decision shall be subject to control by the Court of Justice of the European Union.

6. Judgments given by the Court of Justice of the European Union pursuant to an arbitration clause in a contract within the scope of this Chapter shall be enforceable on the same terms.

Article 431

Confidentiality

Information communicated or acquired in any form under this Chapter shall be covered by professional secrecy and protected in the same way as similar information is protected by the law of the Republic of Moldova and by the corresponding provisions applicable to the EU institutions. Such information may not be communicated to persons, other than those in the EU institutions, in the Member States or in the Republic of Moldova, whose functions require them to know it, nor may it be used for purposes other than to ensure effective protection of the Parties' financial interests.

Article 432

Approximation of legislation

The Republic of Moldova shall carry out approximation of its legislation to the EU acts and international instruments referred to in Annex XXXV to this Agreement according to the provisions of that Annex.

TITLE VII

INSTITUTIONAL, GENERAL AND FINAL PROVISIONS

CHAPTER 1

Institutional framework

Article 433

Political and policy dialogue, including on issues related to sectoral cooperation between the Parties, may take place at any level. Periodic high-level policy dialogue shall take place within the Association Council established by Article 434 of this Agreement and within the framework of regular meetings between representatives of the Parties at ministerial level by mutual agreement.

Article 434

1. An Association Council is hereby established. It shall supervise and monitor the application and implementation of this Agreement and periodically review the functioning of this Agreement in the light of its objectives.

2. The Association Council shall meet at ministerial level and at regular intervals, at least once a year, and when circumstances require. The Association Council may meet in any configuration, by mutual agreement.

3. In addition to supervising and monitoring the application and implementation of this Agreement, the Association Council shall examine any major issues arising within the framework of this Agreement, and any other bilateral or international issues of mutual interest.

Article 435

1. The Association Council shall consist of members of the Council of the European Union and members of the European Commission, on the one hand, and of members of the Government of the Republic of Moldova, on the other.

2. The Association Council shall establish its own rules of procedure.

3. The Association Council shall be chaired in turn by a representative of the Union and a representative of the Republic of Moldova.

4. Where appropriate, and by mutual agreement, representatives of other bodies may take part as observers in the work of the Association Council.

Article 436

1. For the purpose of attaining the objectives of this Agreement, the Association Council shall have the power to take decisions within the scope of this Agreement. Such decisions shall be binding upon the Parties, which shall take appropriate measures, including, if necessary, action of bodies established under this Agreement, to implement the decisions taken. The Association Council may also make recommendations. It shall adopt its decisions and recommendations by agreement between the Parties following completion of the respective internal procedures.

2. In line with the objective of gradual approximation of the legislation of the Republic of Moldova to that of the Union, as laid down in this Agreement, the Association Council will be a forum for exchange of information on the legislation of the EU and of the Republic of Moldova, both under preparation and in force, and on implementation, enforcement and compliance measures.

3. In accordance with paragraph 1 of this Article, the Association Council shall have the power to update or amend the Annexes to this Agreement without prejudice to any specific provisions under Title V (Trade and Trade-related Matters) of this Agreement.

Article 437

1. An Association Committee is hereby established. It shall assist the Association Council in the performance of its duties.

2. The Association Committee shall be composed of representatives of the Parties, in principle, at senior civil servant level.

3. The Association Committee shall be chaired in turn by a representative of the Union and a representative of the Republic of Moldova.

Article 438

1. The Association Council shall determine in its rules of procedure the duties and functioning of the Association Committee, whose responsibilities shall include the preparation of meetings of the Association Council. The Association Committee shall meet at least once a year.

2. The Association Council may delegate to the Association Committee any of its powers, including the power to take binding decisions.

3. The Association Committee shall have the power to adopt decisions in the cases provided for in this Agreement and in areas in which the Association Council has delegated powers to it. Those decisions shall be binding upon the Parties, which shall take appropriate measures to implement them. The Association Committee shall adopt its decisions by agreement between the Parties.

4. The Association Committee shall meet in a specific configuration to address all issues related to Title V (Trade and Trade-related Matters) of this Agreement. The Association Committee shall meet in that configuration at least once a year.

Article 439

1. The Association Committee shall be assisted by sub-committees established under this Agreement.

2. The Association Council may decide to set up any special committee or body in specific areas necessary for the implementation of this Agreement, and shall determine the composition, duties and functioning of such special committees or bodies. In addition, such special committees or bodies may hold discussions on any matter that they consider relevant without prejudice to any of the specific provisions of Title V (Trade and Trade-related Matters) of this Agreement.

3. The Association Committee may also create sub-committees, including to take stock of progress achieved in the regular dialogues referred to in this Agreement.

4. The sub-committees shall have the powers to take decisions in the cases provided for in this Agreement. They shall report on their activities to the Association Committee regularly, as required.

5. The sub-committees established under Title V (Trade and Trade-related Matters) of this Agreement shall inform the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, of the date and agenda of their meetings sufficiently in advance of their meetings. They shall report on their activities at each regular meeting of the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement.

6. The existence of any of the sub-committees shall not prevent either Party from bringing any matter directly to the Association Committee, including in Trade configuration, as set out in Article 438(4) of this Agreement.

Article 440

1. A Parliamentary Association Committee is hereby established. It shall consist of Members of the European Parliament, on the one hand, and of Members of the Parliament of the Republic of Moldova, on the other, and shall be a forum for them to meet and exchange views. It shall meet at intervals which it shall itself determine.

2. The Parliamentary Association Committee shall establish its own rules of procedure.

3. The Parliamentary Association Committee shall be chaired in turn by a representative of the European Parliament and a representative of the Parliament of the Republic of Moldova respectively, in accordance with the provisions to be laid down in its rules of procedure.

Article 441

1. The Parliamentary Association Committee may request relevant information regarding the implementation of this Agreement from the Association Council, which shall then supply the Parliamentary Association Committee with the requested information.

2. The Parliamentary Association Committee shall be informed of the decisions and recommendations of the Association Council.

3. The Parliamentary Association Committee may make recommendations to the Association Council.

4. The Parliamentary Association Committee may create Parliamentary Association sub-committees.

Article 442

1. The Parties shall also promote regular meetings of representatives of their civil societies, in order to keep them informed of, and gather their input for, the implementation of this Agreement.

2. A Civil Society Platform is hereby established. It shall consist of representatives of civil society, on the side of the EU, including Members of the European Economic and Social Committee, and representatives of civil society on the side of the Republic of Moldova, and shall be a forum for them to meet and exchange views. It shall meet at intervals which it shall itself determine.

3. The Civil Society Platform shall establish its own rules of procedure.

4. The Civil Society Platform shall be chaired in turn by a representative of the European Economic and Social Committee and representatives of civil society on the side of the Republic of Moldova respectively, in accordance with the provisions to be laid down in its rules of procedure.

Article 443

1. The Civil Society Platform shall be informed of the decisions and recommendations of the Association Council.

2. The Civil Society Platform may make recommendations to the Association Council.

3. The Association Committee and Parliamentary Association Committee shall organise regular contacts with representatives of the Civil Society Platform in order to obtain their views on the attainment of the objectives of this Agreement.

CHAPTER 2

General and final provisions

Article 444

Access to courts and administrative organs

Within the scope of this Agreement, each Party undertakes to ensure that natural and legal persons of the other Party have access, that is free of discrimination in relation to its own nationals, to its competent courts and administrative organs in order to defend their individual and property rights.

Article 445

Access to official documents

The provisions of this Agreement shall be without prejudice to the application of the relevant internal laws and regulations of the Parties regarding public access to official documents.

Article 446

Security exceptions

Nothing in this Agreement shall prevent a Party from taking any measures:

(a) which it considers necessary to prevent the disclosure of information contrary to its essential security interests;

(b) which relate to the production of, or trade in, arms, munitions or war materiel or to research, development or production indispensable for defence purposes, provided that such measures do not impair the conditions of competition in respect of products not intended for specifically military purposes; and

(c) which it considers essential to its own security, in the event of serious internal disturbances affecting the maintenance of law and order, in time of war or serious international tension constituting threat of war, or in order to carry out obligations it has accepted for the purpose of maintaining peace and international security.

Article 447

Non-discrimination

1. In the fields covered by this Agreement and without prejudice to any special provisions contained therein:

(a) the arrangements applied by the Republic of Moldova in respect of the Union or the Member States shall not give rise to any discrimination between the Member States, their nationals, companies or firms; and

(b) the arrangements applied by the Union or the Member States in respect of the Republic of Moldova shall not give rise to any discrimination between nationals, companies or firms of the Republic of Moldova.

2. The provisions of paragraph 1 shall be without prejudice to the right of the Parties to apply the relevant provisions of their fiscal legislation to taxpayers who are not in identical situations as regards their place of residence.

Article 448

Gradual approximation

The Republic of Moldova shall carry out gradual approximation of its legislation to EU law and international instruments as referred to in the Annexes to this Agreement, based on commitments identified in this Agreement, and according to the provisions of those Annexes. This provision shall be without prejudice to any specific provisions and obligations on approximation under Title V (Trade and Trade-related Matters) of this Agreement.

Article 449

Dynamic approximation

In line with the goal of gradual approximation by the Republic of Moldova of its legislation to EU law, and in particular as regards the commitments identified in Titles III, IV, V and VI of this Agreement, and according to the provisions of the Annexes to this Agreement, the Association Council shall periodically revise and update those Annexes, including to take into account the evolution of EU law, as defined in this Agreement. This provision shall be without prejudice to any specific provisions under Title V (Trade and Trade-related Matters) of this Agreement.

Article 450

Monitoring

Monitoring shall mean the continuous appraisal of progress in implementing and enforcing measures covered by this Agreement. The Parties will cooperate in order to facilitate the monitoring process in the framework of the institutional bodies established by this Agreement.

Article 451

Assessment of approximation

1. The EU shall assess the approximation of the law of the Republic of Moldova to EU law, as defined in this Agreement. This includes aspects of implementation and enforcement. Those assessments may be conducted by the EU individually, by the EU in agreement with the Republic of Moldova, or jointly by the Parties. To facilitate the assessment process, the Republic of Moldova shall report to the EU on progress in approximation, where appropriate before the end of the transitional periods set out in this Agreement in relation to EU legal acts. The reporting and assessment process, including modalities and frequency of assessments, will take into account specific modalities laid down in this Agreement or decisions by the institutional bodies established by this Agreement.

2. Assessment of approximation may include on-the-spot missions, with the participation of EU institutions, bodies and agencies, non-governmental bodies, supervisory authorities, independent experts and others, as necessary.

Article 452

Results of monitoring, including assessments of approximation

1. The results of monitoring activities, including the assessments of approximation as set out in Article 451 of this Agreement, shall be discussed in all relevant bodies established under this Agreement. Such bodies may adopt joint recommendations, agreed unanimously, which shall be submitted to the Association Council.

2. If the Parties agree that necessary measures covered by Title V (Trade and Trade-related Matters) of this Agreement have been implemented and are being enforced, the Association Council, under the powers conferred on it by Article 436 of this Agreement, shall agree on further market opening as defined in Title V (Trade and Trade-related Matters) of this Agreement.

3. A joint recommendation as referred to in paragraph 1 of this Article, submitted to the Association Council, or the failure to reach such a recommendation, shall not be subject to dispute settlement as defined in Title V (Trade and Trade-related Matters) of this Agreement. A decision taken by the relevant body established under this Agreement, or failure to take such a decision, shall not be subject to dispute settlement as defined in Title V (Trade and Trade-related Matters) of this Agreement.

Article 453

Fulfilment of obligations

1. The Parties shall take any general or specific measures required to fulfil their obligations under this Agreement. They shall ensure that the objectives set out in this Agreement are attained.

2. The Parties agree to consult promptly through appropriate channels at the request of either Party, to discuss any matter concerning the interpretation, implementation, or good faith application of this Agreement and other relevant aspects of the relations between the Parties.

3. The Parties shall refer to the Association Council any dispute related to the interpretation, implementation, or good faith application of this Agreement in accordance with Article 454 of this Agreement. The Association Council may settle a dispute by means of a binding decision.

Article 454

Dispute settlement

1. When a dispute arises between the Parties concerning the interpretation, implementation, or good faith application of this Agreement, any Party shall submit to the other Party and the Association Council a formal request that the matter in dispute be resolved. By way of derogation, disputes concerning the interpretation, implementation, or good faith application of Title V (Trade and Trade-related Matters) shall be exclusively governed by Chapter 14 (Dispute Settlement) of that Title.

2. The Parties shall endeavour to resolve the dispute by entering into good faith consultations within the Association Council and other relevant bodies referred to in Articles 437 and 439 of this Agreement, with the aim of reaching a mutually acceptable solution in the shortest time possible.

3. The Parties shall provide the Association Council and other relevant bodies with all information required for a thorough examination of the situation.

4. As long as a dispute is not resolved, it shall be discussed at every meeting of the Association Council. A dispute shall be deemed to be resolved when the Association Council has taken a binding decision to settle the matter as provided for in paragraph 3 of Article 453 of this Agreement, or when it has declared that the dispute has ended. Consultations on a dispute can also be held at any meeting of the Association Committee or any other relevant body referred to in Article 439 of this Agreement, as agreed between the Parties or at the request of either of the Parties. Consultations may also be held in writing.

5. All information disclosed during the consultations shall remain confidential.

Article 455

Appropriate measures in case of non-fulfilment of obligations

1. A Party may take appropriate measures if the matter at issue is not resolved within three months of the date of notification of a formal request for dispute settlement according to Article 454 of this Agreement and if the complaining Party continues to consider that the other Party has failed to fulfil an obligation under this Agreement. The requirement for a three-month consultation period shall not apply to exceptional cases set out in paragraph 3 of this Article.

2. In the selection of appropriate measures, priority shall be given to those which least disturb the functioning of this Agreement. Except in the cases described in paragraph 3 of this Article, such measures may not include the suspension of any rights or obligations provided for under provisions of this Agreement set out in Title V (Trade and Trade-related Matters). The measures taken under paragraph 1 of this Article shall be notified immediately to the Association Council and shall be the subject of consultations in accordance with paragraph 2 of Article 453, and of dispute settlement in accordance with paragraph 3 of Article 453 and Article 454 of this Agreement.

3. The exceptions referred to in paragraphs 1 and 2 shall concern:

(a) denunciation of this Agreement not sanctioned by the general rules of international law; or

(b) violation by the other Party of any of the essential elements of this Agreement, referred to in Article 2 of Title I (General Principles) of this Agreement.

Article 456

Relation to other agreements

1. The Partnership and Cooperation Agreement between the European Communities and their Member States, of the one part, and the Republic of Moldova, of the other part, signed in Luxembourg on 28 November 1994 and which entered into force on 1 July 1998, is hereby repealed.

2. This Agreement replaces the agreement referred to in paragraph 1. References to that agreement in all other agreements between the Parties shall be construed as references to this Agreement.

3. This Agreement replaces the Agreement between the European Union and the Republic of Moldova on the protection of geographical indications of agricultural products and foodstuffs, signed on 26 June 2012 in Brussels and which entered into force on 1 April 2013.

Article 457

1. This Agreement shall not, until equivalent rights for individuals and economic operators have been achieved under this Agreement, affect rights ensured to them through existing agreements binding one or more Member States, on the one hand, and the Republic of Moldova, on the other hand.

2. Existing agreements relating to specific areas of cooperation falling within the scope of this Agreement shall be considered part of the overall bilateral relations as governed by this Agreement and as forming part of a common institutional framework.

Article 458

1. The Parties may complement this Agreement by concluding specific agreements in any area falling within its scope. Such agreements shall be an integral part of the overall bilateral relations as governed by this Agreement and shall form part of a common institutional framework.

2. Without prejudice to the relevant provisions of the Treaty on European Union and the Treaty on the Functioning of the European Union, neither this Agreement nor action taken hereunder shall in any way affect the powers of the Member States to undertake bilateral cooperation activities with the Republic of Moldova or to conclude, where appropriate, new cooperation agreements with the Republic of Moldova.

Article 459

Annexes and Protocols

The Annexes and Protocols to this Agreement shall form an integral part of this Agreement.

Article 460

Duration

1. This Agreement is concluded for an unlimited period.

2. Either Party may denounce this Agreement by notifying the other Party. This Agreement shall terminate six months from the date of receipt of such notification.

Article 461

Definition of the Parties

For the purposes of this Agreement, the term 'the Parties' means the EU, or its Member States, or the EU and its Member States, in accordance with their respective powers as derived from the Treaty on European Union and the Treaty on the Functioning of the European Union, and, where relevant, it also means Euratom, in accordance with its powers under the Treaty establishing the European Atomic Energy Community, of the one part, and the Republic of Moldova, of the other part.

Article 462

Territorial application

1. This Agreement shall apply, of the one part, to the territories in which the Treaty on European Union, the Treaty on the Functioning of the European Union and the Treaty establishing the European Atomic Energy Community are applied and under the conditions laid down in those Treaties, and, without prejudice to paragraph 2 of this Article, of the other part, to the territory of the Republic of Moldova.

2. The application of this Agreement, or of Title V (Trade and Trade-related Matters) thereof, in relation to those areas of the Republic of Moldova over which the Government of the Republic of Moldova does not exercise effective control, shall commence once the Republic of Moldova ensures the full implementation and enforcement of this Agreement, or of Title V (Trade and Trade-related Matters) thereof, respectively, on its entire territory.

3. The Association Council shall adopt a decision on when the full implementation and enforcement of this Agreement, or of Title V (Trade and Trade-related Matters) thereof, on the entire territory of the Republic of Moldova is ensured.

4. Should a Party consider that the full implementation and enforcement of this Agreement, or of Title V (Trade and Trade-related Matters) thereof, is no longer ensured in the areas of the Republic of Moldova referred to in paragraph 2 of this Article, that Party may request the Association Council to reconsider the continued application of this Agreement, or of Title V (Trade and Trade-related Matters) thereof, respectively, in relation to the areas concerned. The Association Council shall examine the situation and adopt a decision on the continued application of this Agreement, or of Title V (Trade and Trade-related Matters) thereof, within three months of the request. If the Association Council does not adopt a decision within three months of the request, the application of this Agreement, or of Title V (Trade and Trade-related Matters) thereof, shall be suspended in relation to the areas concerned until the Association Council adopts a decision.

5. Decisions of the Association Council under this Article on the application of Title V (Trade and Trade-related Matters) of this Agreement shall cover the entirety of that Title and cannot cover only parts thereof.

Article 463

Depositary of this Agreement

The General Secretariat of the Council of the European Union shall be the depositary of this Agreement.

Article 464

Entry into force and provisional application

1. The Parties shall ratify or approve this Agreement in accordance with their internal procedures. The instruments of ratification or approval shall be deposited with the General Secretariat of the Council of the European Union.

2. This Agreement shall enter into force on the first day of the second month following the date of the deposit of the last instrument of ratification or approval.

3. Notwithstanding paragraph 2 of this Article, the Union and the Republic of Moldova agree to provisionally apply this Agreement in part, as specified by the Union, as set out in paragraph 4 of this Article, and in accordance with their respective internal procedures and legislation, as applicable.

4. The provisional application shall be effective from the first day of the second month following the date of receipt by the depositary of this Agreement of the following:

(a) the Union's notification on the completion of the procedures necessary for this purpose, indicating the parts of the Agreement that shall be provisionally applied; and

(b) the Republic of Moldova's notification of the completion of the procedures necessary for the provisional application of this Agreement.

5. For the purposes of the relevant provisions of this Agreement, including its respective Annexes and Protocols, as laid down in Article 459, any reference in such provisions to the 'date of entry into force of this Agreement' shall be understood to the 'date from which this Agreement is provisionally applied' in accordance with paragraph 3 of this Article.

6. During the period of provisional application, in so far as the provisions of the Partnership and Cooperation Agreement between the European Communities and their Member States, of the one part, and the Republic of Moldova, of the other part, signed in Luxembourg on 28 November 1994 and which entered into force on 1 July 1998, are not covered by the provisional application of this Agreement, those provisions shall continue to apply.

7. Either Party may give written notification to the depositary of this Agreement of its intention to terminate the provisional application of this Agreement. Termination of provisional application shall take effect six months after receipt of the notification by the depositary of this Agreement.

Article 465

Authentic texts

This Agreement shall be drawn up in duplicate in the Bulgarian, Croatian, Czech, Danish, Dutch, English, Estonian, Finnish, French, German, Greek, Hungarian, Italian, Latvian, Lithuanian, Maltese, Polish, Portuguese, Romanian, Slovak, Slovenian, Spanish and Swedish languages, each text being equally authentic.

IN WITNESS WHEREOF, the undersigned Plenipotentiaries, duly empowered to this effect, have signed this Agreement.

Voor het Koninkrijk België
Pour le Royaume de Belgique
Für das Königreich Belgien



Deze handtekening verbindt eveneens de Vlaamse Gemeenschap, de Franse Gemeenschap, de Duitstalige Gemeenschap, het Vlaamse Gewest, het Waalse Gewest en het Brussels Hoofdstedelijk Gewest.

Cette signature engage également la Communauté française, la Communauté flamande, la Communauté germanophone, la Région wallonne, la Région flamande et la Région de Bruxelles-Capitale.

Diese Unterschrift bindet zugleich die Deutschsprachige Gemeinschaft, die Flämische Gemeinschaft, die Französische Gemeinschaft, die Wallonische Region, die Flämische Region und die Region Brüssel-Hauptstadt.

За Република България



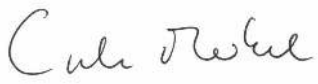
Za Českou republiku



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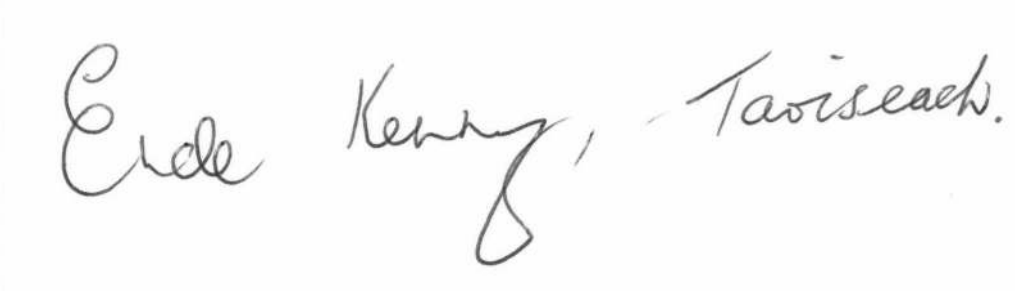
Für die Bundesrepublik Deutschland



Eesti Vabariigi nimel



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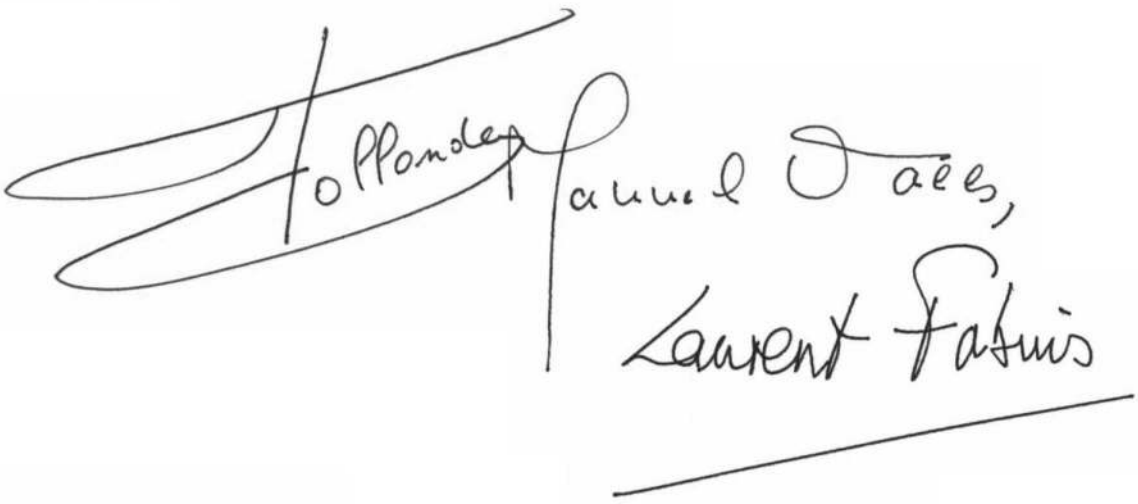
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Por el Reino de España



Pour la République française



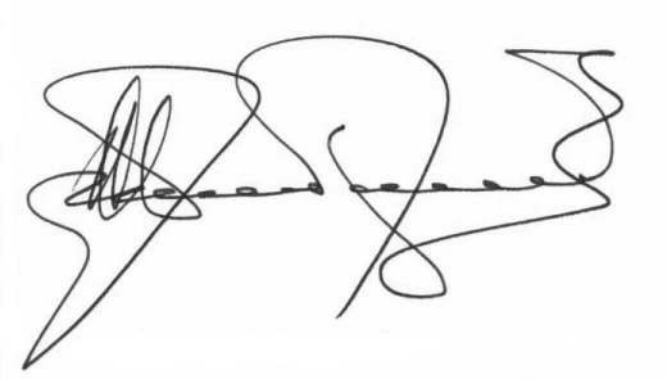
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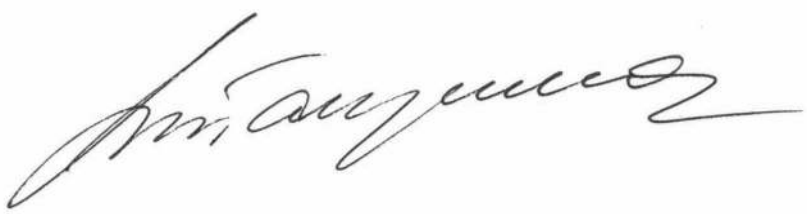
Per la Repubblica italiana



Για την Κυπριακή Δημοκρατία



Latvijas Republikas vārdā –



Lietuvos Respublikos vardu



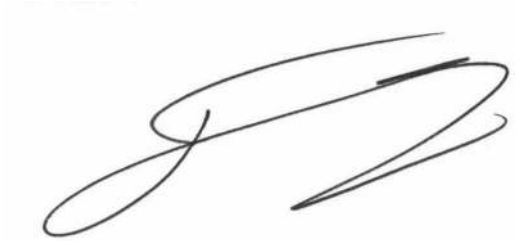
Pour le Grand-Duché de Luxembourg



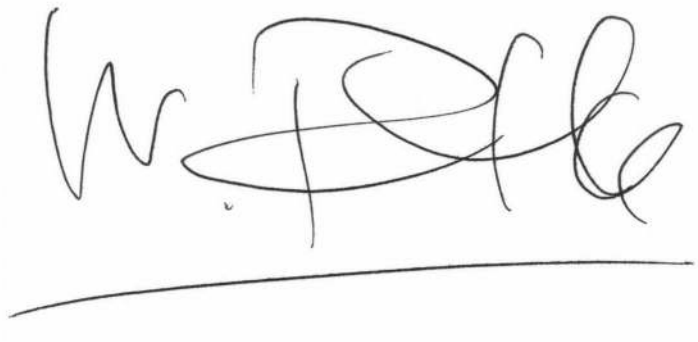
Magyarország részéről



Ghar-Repubblika ta' Malta



Voor het Koninkrijk der Nederlanden



Für die Republik Österreich



W imieniu Rzeczypospolitej Polskiej



Pela República Portuguesa



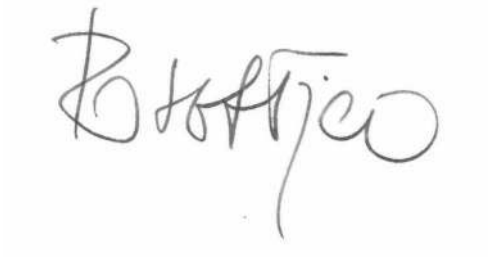
Pentru România



Za Republiko Slovenijo



Za Slovenskú republiku



Suomen tasavallan puolesta
För Republiken Finland



För Konungariket Sverige



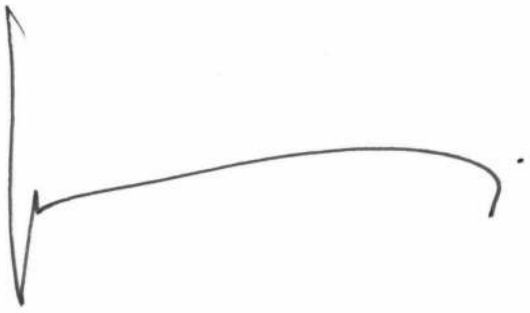
For the United Kingdom of Great Britain and Northern Ireland



За Европейския съюз
Por la Unión Europea
Za Evropskou unii
For Den Europæiske Union
Für die Europäische Union
Euroopa Liidu nimel
Για την Ευρωπαϊκή Ένωση
For the European Union
Pour l'Union européenne
Za Europsku uniju
Per l'Unione europea
Eiropas Savienības vārdā –
Europos Sąjungos vardu
Az Európai Unió részéről
Għall-Unjoni Ewropea
Voor de Europese Unie
W imieniu Unii Europejskiej
Pela União Europeia
Pentru Uniunea Europeană
Za Európsku úniu
Za Evropsko unijo
Euroopan unionin puolesta
För Europeiska unionen



За Европейската общност за атомна енергия
Por la Comunidad Europea de la Energía Atómica
Za Evropské společenství pro atomovou energii
For Det Europæiske Atomenergifællesskab
Für die Europäische Atomgemeinschaft
Euroopa Aatomienergiaühenduse nimel
Για την Ευρωπαϊκή Κοινότητα Ατομικής Ενέργειας
For the European Atomic Energy Community
Pour la Communauté européenne de l'énergie atomique
Za Europsku zajednicu za atomsku energiju
Per la Comunità europea dell'energia atomica
Eiropas Atomenerģijas Kopienas vārdā –
Europos atominės energijos bendrijos vardu
Az Európai Atomenergia-közösség részéről
F'isem il-Komunità Ewropea tal-Enerġija Atomika
Voor de Europese Gemeenschap voor Atoomenergie
W imieniu Europejskiej Wspólnoty Energii Atomowej
Pela Comunidade Europeia da Energia Atómica
Pentru Comunitatea Europeană a Energiei Atomice
Za Európske spoločenstvo pre atómovú energiu
Za Evropsko skupnost za atomsko energtjo
Euroopan atomienergiajärjestön puolesta
För Europeiska atomenergigemenskapen



Pentru Republica Moldova



ANNEX I

TO TITLE III (FREEDOM, SECURITY AND JUSTICE)

Directive 2006/24/EC of the European Parliament and of the Council of 15 March 2006 on the retention of data generated or processed in connection with the provision of publicly available electronic communications services or of public communications networks

Commitments and Principles on personal data protection

1. The Parties shall, in the context of the implementation of this or other Agreements, ensure a legal level of data protection which at least corresponds to that set out in Directive 95/46/EC of 24 October 1995 on the protection of individuals with regard to the processing of personal data and on the free movement of such data, Council Framework Decision 2008/977/JHA of 27 November 2008 on the protection of personal data processed in the framework of police and judicial cooperation in criminal matters, as well as the Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data, signed on 28 January 1981 (ETS No 108) and its Additional Protocol, regarding Supervisory Authorities and Transborder Data Flows, signed on 8 November 2001 (ETS No 181). Where relevant, the Parties shall take into account Recommendation No. R (87) 15 of 17 September 1987 of the Committee of Ministers of the Council of Europe Regulating the Use of Personal Data in the Police Sector.

2. In addition the following principles shall apply:

   (a) both the transferring authority and the receiving authority shall take every reasonable step to ensure, as appropriate, the rectification, erasure or blocking of personal data where the processing does not comply with the provisions of Article 13 of this Agreement, in particular because those data are not adequate, relevant, or accurate, or because they are excessive in relation to the purpose of processing. This includes the notification of any rectification, erasure or blocking to the other Party;

   (b) upon request, the receiving authority shall inform the transferring authority of the use of the transferred data and of the results obtained therefrom;

   (c) personal data may only be transferred to the competent authorities. Further transfer to other authorities requires the prior authorisation of the transferring authority;

   (d) the transferring and the receiving authorities are under an obligation to make a written record of the communication and receipt of personal data.

ANNEX II

TO CHAPTER 3 (COMPANY LAW, ACCOUNTING AND AUDITING AND CORPORATE GOVERNANCE) OF TITLE IV

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Company Law

Directive 2009/101/EC of the European Parliament and of the Council of 16 September 2009 on coordination of safeguards which, for the protection of the interests of members and third parties, are required by Member States of companies within the meaning of the second paragraph of Article 48 of the Treaty, with a view to making such safeguards equivalent

Timetable: that Directive's provisions shall be implemented within 2 years of the entry into force of this Agreement.

Second Council Directive 77/91/EEC of 13 December 1976 on coordination of safeguards which, for the protection of the interests of members and others, are required by Member States of companies within the meaning of the second paragraph of Article 58 of the Treaty, in respect of the formation of public limited liability companies and the maintenance and alteration of their capital, with a view to making such safeguards equivalent, as amended by Directives 92/101/EEC, 2006/68/EC and 2009/109/EC

Timetable: the provisions of Directive 77/91/EEC shall be implemented within 2 years of the entry into force of this Agreement.

Third Council Directive 78/855/EEC of 9 October 1978 based on Article 54(3)(g) of the Treaty concerning mergers of public limited liability companies, as amended by Directives 2007/63/EC and 2009/109/EC

Timetable: the provisions of Directive 78/855/EEC shall be implemented within 3 years of the entry into force of this Agreement.

Sixth Council Directive 82/891/EEC of 17 December 1982 based on Article 54(3)(g) of the Treaty, concerning the division of public limited liability companies, as amended by Directives 2007/63/EC and 2009/109/EC

Timetable: the provisions of Directive 82/891/EEC shall be implemented within 3 years of the entry into force of this Agreement.

Eleventh Council Directive 89/666/EEC of 21 December 1989 concerning disclosure requirements in respect of branches opened in a Member State by certain types of company governed by the law of another State

Timetable: that Directive's provisions shall be implemented within 2 years of the entry into force of this Agreement.

Directive 2009/102/EC of the European Parliament and of the Council of 16 September 2009 in the area of company law on single-member private limited liability companies

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Directive 2004/25/EC of the European Parliament and of the Council of 21 April 2004 on takeover bids

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Directive 2007/36/EC of the European Parliament and of the Council of 11 July 2007 on the exercise of certain rights of shareholders in listed companies

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Accounting and Auditing

Fourth Council Directive 78/660/EEC of 25 July 1978 based on Article 54(3)(g) of the Treaty on the annual accounts of certain types of companies

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Seventh Council Directive 83/349/EEC of 13 June 1983 based on the Article 54(3)(g) of the Treaty on consolidated accounts

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Regulation (EC) No 1606/2002 of the European Parliament and of the Council of 19 July 2002 on the application of international accounting standards

Timetable: that Regulation's provisions shall be implemented within 2 years of the entry into force of this Agreement.

Directive 2006/43/EC of the European Parliament and of the Council of 17 May 2006 on statutory audits of annual accounts and consolidated accounts

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Commission Recommendation of 6 May 2008 on external quality assurance for statutory auditors and audit firms auditing public interest entities (2008/362/EC)

Timetable: not applicable

Commission Recommendation of 5 June 2008 concerning the limitation of the civil liability of statutory auditors and audit firms (2008/473/EC)

Timetable: not applicable

Corporate Governance

OECD Principles on Corporate Governance

Timetable: not applicable

Commission Recommendation of 14 December 2004 fostering an appropriate regime for the remuneration of directors of listed companies (2004/913/EC)

Timetable: not applicable

Commission Recommendation of 15 February 2005 on the role of non-executive or supervisory directors of listed companies and on the committees of the (supervisory) board (2005/162/EC)

Timetable: not applicable

Commission Recommendation of 30 April 2009 on remuneration in the financial services sector (2009/384/EC)

Timetable: not applicable

Commission Recommendation of 30 April 2009 complementing Recommendations 2004/913/EC and 2005/162/EC as regards the regime for the remuneration of directors of listed companies (2009/385/EC)

Timetable: not applicable

ANNEX III

TO CHAPTER 4 (EMPLOYMENT, SOCIAL POLICY AND EQUAL OPPORTUNITIES) OF TITLE IV

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Labour Law

Council Directive 91/533/EEC of 14 October 1991 on an employer's obligation to inform employees of the conditions applicable to the contract or employment relationship

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 1999/70/EC of 28 June 1999 concerning the framework agreement on fixed-term work concluded by ETUC, UNICE and CEEP

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 97/81/EC of 15 December 1997 concerning the Framework Agreement on part-time work concluded by UNICE, CEEP and the ETUC — Annex: Framework agreement on part-time work

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Council Directive 91/383/EEC of 25 June 1991 supplementing the measures to encourage improvements in the safety and health at work of workers with a fixed-duration employment relationship or a temporary employment relationship

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Council Directive 98/59/EC of 20 July 1998 on the approximation of the laws of the Member States relating to collective redundancies

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 2001/23/EC of 12 March 2001 on the approximation of the laws of the Member States relating to the safeguarding of employees' rights in the event of transfers of undertakings, businesses or parts of undertakings or businesses

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Directive 2002/14/EC of the European Parliament and of the Council of 11 March 2002 establishing a general framework for informing and consulting employees in the European Community — Joint declaration of the European Parliament, the Council and the Commission on employee representation

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Directive 2003/88/EC of the European Parliament and of the Council of 4 November 2003 concerning certain aspects of the organisation of working time

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Anti-discrimination and gender equality

Council Directive 2000/43/EC of 29 June 2000 implementing the principle of equal treatment between persons irrespective of racial or ethnic origin

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 2000/78/EC of 27 November 2000 establishing a general framework for equal treatment in employment and occupation

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Directive 2006/54/EC of the European Parliament and of the Council of 5 July 2006 on the implementation of the principle of equal opportunities and equal treatment of men and women in matters of employment and occupation

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Council Directive 2004/113/EC of 13 December 2004 implementing the principle of equal treatment between men and women in the access to and supply of goods and services

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Council Directive 92/85/EEC of 19 October 1992 on the introduction of measures to encourage improvements in the safety and health at work of pregnant workers and workers who have recently given birth or are breastfeeding (tenth individual Directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 92/85/EEC shall be implemented within 3 years of the entry into force of this Agreement.

Council Directive 79/7/EEC of 19 December 1978 on the progressive implementation of the principle of equal treatment for men and women in matters of social security

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Health and Safety at Work

Directive 89/391/EEC of 12 June 1989 on the introduction of measures to encourage improvements in the safety and health of workers at work

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Council Directive 89/654/EEC of 30 November 1989 concerning the minimum safety and health requirements for the workplace (first individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: For new workplaces, the provisions of Directive 89/654/EEC shall be implemented within 3 years of the entry into force of this Agreement, including minimum safety and health requirements laid down in Annex II to that Directive. For workplaces already in use at the moment of entry into force of this Agreement, that Directive's provisions shall be implemented within 6 years of the entry into force of this Agreement, including minimum safety and health requirements laid down in Annex II to that Directive.

Directive 2009/104/EC of the European Parliament and of the Council of 16 September 2009 concerning the minimum safety and health requirements for the use of work equipment by workers at work (second individual Directive within the meaning of Article 16(1) of Directive 89/391/EEC

Timetable: For new work equipment, the provisions of Directive 2009/104/EC shall be implemented within 3 years of the entry into force of this Agreement, including the minimum requirements laid down in Annex I to that Directive.

For work equipment already in use at the moment of entry into force of this Agreement, that Directive's provisions shall be implemented within 7 years of the entry into force of this Agreement, including the minimum requirements laid down in Annex I to that Directive.

Council Directive 89/656/EEC of 30 November 1989 on the minimum health and safety requirements for the use by workers of personal protective equipment at the workplace (third individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 89/656/EEC shall be implemented within 7 years of the entry into force of this Agreement.

Council Directive 92/57/EEC of 24 June 1992 on the implementation of minimum safety and health requirements at temporary or mobile construction sites (eighth individual Directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 92/57/EEC shall be implemented within 7 years of the entry into force of this Agreement.

Directive 2009/148/EC of the European Parliament and of the Council of 30 November 2009 on the protection of workers from the risks related to exposure to asbestos at work

Timetable: that Directive's provisions shall be implemented within 7 years of the entry into force of this Agreement.

Directive 2004/37/EC of the European Parliament and of the Council of 29 April 2004 on the protection of workers from the risks related to exposure to carcinogens or mutagens at work (sixth individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 2004/37/EC shall be implemented within 7 years of the entry into force of this Agreement.

Directive 2000/54/EC of the European Parliament and of the Council of 18 September 2000 on the protection of workers from risks related to exposure to biological agents at work (seventh individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 2000/54/EC shall be implemented within 7 years of the entry into force of this Agreement.

Council Directive 90/270/EEC of 29 May 1990 on the minimum safety and health requirements for work with display screen equipment (fifth individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 90/270/EEC shall be implemented within 7 years of the entry into force of this Agreement.

Council Directive 92/58/EEC of 24 June 1992 on the minimum requirements for the provision of safety and/or health signs at work (ninth individual Directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 92/58/EEC shall be implemented within 7 years of the entry into force of this Agreement.

Council Directive 92/91/EEC of 3 November 1992 concerning the minimum requirements for improving the safety and health protection of workers in the mineral-extracting industries through drilling (eleventh individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: For new workplaces, the provisions of Directive 92/91/EEC shall be implemented within 7 years of the entry into force of this Agreement. For workplaces already in use at the moment of entry into force of this Agreement, that Directive's provisions shall be implemented within 12 years of the entry into force of this Agreement, including minimum safety and health requirements laid down in the Annex to that Directive.

Council Directive 92/104/EEC of 3 December 1992 on the minimum requirements for improving the safety and health protection of workers in surface and underground mineral-extracting industries (twelfth individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: For new workplaces, the provisions of Directive 92/104/EEC shall be implemented within 7 years of the entry into force of this Agreement. For workplaces already in use at the moment of entry into force of this Agreement, that Directive's provisions shall be implemented within 16 years of the entry into force of this Agreement, including minimum safety and health requirements laid down in the Annex to that Directive.

Council Directive 98/24/EC of 7 April 1998 on the protection of the health and safety of workers from the risks related to chemical agents at work (fourteenth individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 98/24/EC shall be implemented within 10 years of the entry into force of this Agreement.

Directive 1999/92/EC of the European Parliament and of the Council of 16 December 1999 on minimum requirements for improving the safety and health protection of workers potentially at risk from explosive atmospheres (15th individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 1999/92/EC shall be implemented within 10 years of the entry into force of this Agreement.

Directive 2002/44/EC of the European Parliament and of the Council of 25 June 2002 on the minimum health and safety requirements regarding the exposure of workers to the risk arising from physical agents (vibration) (sixteenth individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 2002/44/EC shall be implemented within 10 years of the entry into force of this Agreement.

Directive 2003/10/EC of the European Parliament and of the Council of 6 February 2003 on the minimum health and safety requirements regarding the exposure of workers to the risk arising from physical agents (noise) (seventeenth individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 2003/10/EC shall be implemented within 10 years of the entry into force of this Agreement.

Directive 2004/40/EC of the European Parliament and of the Council of 29 April 2004 on the minimum health and safety requirements regarding the exposure of workers to the risks arising from physical agents (electromagnetic fields) (18th individual Directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 2004/40/EC shall be implemented within 10 years of the entry into force of this Agreement.

Directive 2006/25/EC of the European Parliament and of the Council of 5 April 2006 on the minimum health and safety requirements regarding the exposure of workers to risks arising from physical agents (artificial optical radiation) (19th individual Directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 2006/25/EC shall be implemented within 10 years of the entry into force of this Agreement.

Council Directive 93/103/EC of 23 November 1993 concerning the minimum safety and health requirements for work on board fishing vessels (thirteenth individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 93/103/EC shall be implemented within 10 years of the entry into force of this Agreement.

Council Directive 92/29/EEC of 31 March 1992 on the minimum safety and health requirements for improved medical treatment on board vessels

Timetable: that Directive's provisions shall be implemented within 10 years of the entry into force of this Agreement.

Council Directive 90/269/EEC of 29 May 1990 on the minimum health and safety requirements for the manual handling of loads where there is a risk particularly of back injury to workers (fourth individual directive within the meaning of Article 16(1) of Directive 89/391/EEC)

Timetable: the provisions of Directive 90/269/EEC shall be implemented within 10 years of the entry into force of this Agreement.

Commission Directive 91/322/EEC of 29 May 1991 on establishing indicative limit values by implementing Council Directive 80/1107/EEC on the protection of workers from the risks related to exposure to chemical, physical and biological agents at work

Timetable: the provisions of Directive 91/322/EEC shall be implemented within 10 years of the entry into force of this Agreement.

Commission Directive 2000/39/EC of 8 June 2000 establishing a first list of indicative occupational exposure limit values in implementation of Council Directive 98/24/EC on the protection of the health and safety of workers from the risks related to chemical agents at work

Timetable: the provisions of Directive 2000/39/EC shall be implemented within 10 years of the entry into force of this Agreement.

Commission Directive 2006/15/EC of 7 February 2006 establishing a second list of indicative occupational exposure limit values in implementation of Council Directive 98/24/EC

Timetable: the provisions of Directive 2006/15/EC shall be implemented within 10 years of the entry into force of this Agreement.

Commission Directive 2009/161/EU of 17 December 2009 establishing a third list of indicative occupational exposure limit values in implementation of Council Directive 98/24/EC

Timetable: the provisions of Directive 2009/161/EU shall be implemented within 10 years of the entry into force of this Agreement.

ANNEX IV

TO CHAPTER 5 (CONSUMER PROTECTION) OF TITLE IV

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Product Safety

Directive 2001/95/EC of the European Parliament and of the Council of 3 December 2001 on general product safety

Timetable: that Directive's provisions shall be implemented within 2 years of the entry into force of this Agreement.

Council Directive 87/357/EEC of 25 June 1987 on the approximation of the laws of the Member States concerning products which, appearing to be other than they are, endanger the health or safety of consumers

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Commission Decision 2009/251/EC of 17 March 2009 requiring Member States to ensure that products containing the biocide dimethylfumarate are not placed or made available on the market

Timetable: that Decision's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Commission Decision 2006/502/EC of 11 May 2006 requiring Member States to take measures to ensure that only lighters which are child-resistant are placed on the market and to prohibit the placing on the market of novelty lighters

Timetable: that Decision's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Marketing

Directive 98/6/EC of the European Parliament and of the Council of 16 February 1998 on consumer protection in the indication of the prices of products offered to consumers

Timetable: that Directive's provisions shall be implemented within 1 years of the entry into force of this Agreement.

Directive 2005/29/EC of the European Parliament and of the Council of 11 May 2005 concerning unfair business-to-consumer commercial practices in the internal market ('Unfair Commercial Practices Directive')

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Contract Law

Directive 1999/44/EC of the European Parliament and of the Council of 25 May 1999 on certain aspects of the sale of consumer goods and associated guarantees

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 93/13/EEC of 5 April 1993 on unfair terms in consumer contracts

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Directive 97/7/EC of the European Parliament and of the Council of 20 May 1997 on the protection of consumers in respect of distance contracts

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 85/577/EEC of 20 December 1985 to protect the consumer in respect of contracts negotiated away from business premises

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 90/314/EEC of 13 June 1990 on package travel, package holidays and package tours

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Directive 2008/122/EC of the European Parliament and of Council of 14 January 2009 on the protection of consumers in respect of certain aspects of timeshare, long-term holiday product, resale and exchange contracts

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Financial Services

Directive 2002/65/EC of the European Parliament and of the Council of 23 September 2002 concerning the distance marketing of consumer financial services

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Consumer credit

Directive 2008/48/EC of the European Parliament and of the Council of 23 April 2008 on credit agreements for consumers

Timetable: that Directive's provisions shall be implemented within 2 years of the entry into force of this Agreement.

Redress

Commission Recommendation of 30 March 1998 on the principles applicable to the bodies responsible for out-of-court settlement of consumer disputes (98/257/EC)

Timetable: not applicable

Commission Recommendation of 4 April 2001 on the principles for out-of-court bodies involved in the consensual resolution of consumer disputes (2001/310/EC)

Timetable: not applicable

Enforcement

Directive 98/27/EC of the European Parliament and of the Council of 19 May 1998 on injunctions for the protection of consumers' interests

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Consumer protection cooperation (Regulation)

Regulation (EC) No 2006/2004 of the European Parliament and of the Council of 27 October 2004 on cooperation between national authorities responsible for the enforcement of consumer protection laws (the Regulation on consumer protection cooperation)

Timetable: that Regulation's provisions shall be implemented within 4 years of the entry into force of this Agreement.

ANNEX V

TO CHAPTER 6 (STATISTICS) OF TITLE IV

The EU *acquis* in the field of statistics as mentioned in Article 46 of Chapter 6 (Statistics), Title IV (Economic and Other Sectoral Cooperation) of this Agreement is set out in the annually updated Statistical Requirements Compendium, which is considered by the Parties as annexed to this Agreement.

The latest available version of the Statistical Requirements Compendium can be found on the website of the Statistical Office of the European Union (Eurostat) in an electronic form http://epp.eurostat.ec.europa.eu

ANNEX VI

TO CHAPTER 8 (TAXATION) OF TITLE IV

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Indirect taxation

Council Directive 2006/112/EC of 28 November 2006 on the common system of value added tax

The following provisions of that Directive shall apply:

— Subject matter and scope (Title I, Articles 1, 2(1)(a), 2(1)(c), 2(1)(d))

— Taxable persons (Title III, Articles 9(1), and 10-13)

— Taxable transactions (Title IV, Articles 14-16, 18, 19, 24-30)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— Place of taxable transactions (Title V, Articles 31-32)

Timetable: those provisions of that Directive shall be implemented upon the entry into force of this Agreement.

— Place of taxable transactions (Title V, Articles 36(1), 38, 39, 43-49, 53-56, 58-61)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— Chargeable event and chargeability of VAT (Title VI, Articles 62-66, 70, 71)

Timetable: those provisions of that Directive shall be implemented upon the entry into force of this Agreement.

— Taxable amount (Title VII, Articles 72-82, 85-92)

Timetable: those provisions of the Directive shall be implemented upon the entry into force of this Agreement.

— Rates (Title VIII, Articles 93-99,102, 103)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— Exemptions (Title IX, Articles 131-137, 143, 144, 146(1)(a, c, d, e), 146(2), 147, 148, 150(2), 151-161, 163)

Timetable: Without prejudice to other chapters in this Agreement, for all exemptions in the scope of Council Directive 2006/112/EC related to goods and services in free zones, the provisions of that Directive shall be implemented within 10 years of the entry into force of this Agreement.

For all other exemptions, those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— Deductions (Title X, Articles 167-169, 173-192)

Timetable: For all deductions for taxable persons referring to legal entities, the provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement. For all other deductions, the provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— Obligations of taxable persons and certain non-taxable persons (Title XI, Articles 193, 194, 198, 199, 201-208, 211, 212, 213(1), 214(1)(a), 214(2), 215, 217-236, 238-242, 244, 246-248, 250-252, 255, 256, 260, 261, 271-273)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— Special schemes (Title XII, Articles 281-292, 295-344, 346-356)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— Miscellaneous (Title XIV, Article 401)

Timetable: those provisions of that Directive shall be implemented upon the entry into force of this Agreement.

Council Directive 2007/74/EC of 20 December 2007 on the exemption from value added tax and excise duty of goods imported by persons travelling from third countries

The following provisions of that Directive shall apply:

— Section 3 on quantitative limits

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

Tobacco

Council Directive 2011/64/EU of 21 June 2011 on the structure and rates of excise duty applied on manufactured tobacco

Timetable: that Directive's provisions shall be implemented within 2 years of the entry into force of this Agreement with the exception of Articles 7(2), 8, 9, 10, 11, 12, 14(1), 14(2), 14(4), 18 and 19 of that Directive which shall be implemented by 2025. The Association Council will decide on a different timeline for implementation should the regional context so require.

Alcohol

Council Directive 92/83/EEC of 19 October 1992 on the harmonisation of the structures of excise duties on alcohol and alcoholic beverages

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Energy

Council Directive 2003/96/EC of 27 October 2003 restructuring the Community framework for the taxation of energy products and electricity

Timetable: For all provisions related to rates that Directive shall be implemented within 10 years of the entry into force of this Agreement. All other provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 2008/118/EC of 16 December 2008 concerning the general arrangements for excise duty

The following provisions of that Directive shall apply:

— Article 1 of that Directive

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— Thirteenth Council Directive 86/560/EEC of 17 November 1986 on the harmonization of the laws of the Member States relating to turnover taxes — arrangements for the refund of value added tax to taxable persons not established in Community territory

Timetable: For taxable persons referring to legal entities, that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement. All other provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

ANNEX VII

TO CHAPTER 12 (AGRICULTURE AND RURAL DEVELOPMENT) OF TITLE IV

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Quality Policy

Council Regulation (EC) No 510/2006 of 20 March 2006 on the protection of geographical indications and designations of origin for agricultural products and foodstuffs.

Timetable: that Regulation's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Commission Regulation (EC) No 1898/2006 of 14 December 2006 laying down detailed rules of implementation of Council Regulation (EC) No 510/2006 on the protection of geographical indications and designations of origin for agricultural products and foodstuffs

Timetable: the provisions of Regulation (EC) No 1898/2006 shall be implemented within 4 years of the entry into force of this Agreement.

Regulation (EC) No 110/2008 of the European Parliament and of the Council of 15 January 2008 on the definition, description, presentation, labelling and the protection of geographical indications of spirit drinks

Timetable: that Regulation's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Council Regulation (EC) No 1234/2007 of 22 October 2007 establishing a common organisation of agricultural markets and on specific provisions for certain agricultural products (Single CMO Regulation), the part related to wine geographical indication in Chapter I of Title II of Part II

Timetable: that Regulation's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Commission Regulation (EC) No 555/2008 of 27 June 2008 laying down detailed rules for implementing Council Regulation (EC) No 479/2008, as regard support programmes, trade with third countries, production potential and on controls in the wine sector, namely, Title V 'Controls in the wine sector'

Timetable: the provisions of Regulation (EC) No 555/2008 shall be implemented within 4 years of the entry into force of this Agreement.

Council Regulation (EC) No 509/2006 of 20 March 2006 on agricultural products and foodstuffs as traditional specialities guaranteed

Timetable: that Regulation's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Commission Regulation (EC) No 1216/2007 of 18 October 2007 laying down detailed rules for the implementation of Council Regulation (EC) No 509/2006 on agricultural products and foodstuffs as traditional specialities guaranteed

Timetable: the provisions of Regulation (EC) No 1216/2007 shall be implemented within 4 years of the entry into force of this Agreement.

Organic farming

Council Regulation (EC) No 834/2007 of 28 June 2007 on organic production and labelling of organic products

Timetable: that Regulation's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Commission Regulation (EC) No 889/2008 of 5 September 2008 laying down detailed rules for the implementation of Council Regulation (EC) No 834/2007 on organic production and labelling of organic products with regard to organic production, labelling and control

Timetable: the provisions of Regulation (EC) No 889/2008 shall be implemented within 4 years of the entry into force of this Agreement.

Commission Regulation (EC) No 1235/2008 of 8 December 2008 laying down detailed rules for implementation of Council Regulation (EC) No 834/2007 as regards the arrangements for imports of organic products from third countries

Timetable: the provisions of Regulation (EC) No 1235/2008 shall be implemented within 4 years of the entry into force of this Agreement.

Marketing standards for plants, seeds of plants, products derived from plants, fruits and vegetables

Council Regulation (EC) No 1234/2007 of 22 October 2007 establishing a common organisation of agricultural markets and on specific provisions for certain agricultural products (Single CMO Regulation)

The following provisions of that Regulation shall apply:

— for horizontal issues: Article 113, Annex I, Annex III and Annex IV;

— for seeds for sowing: Article 157;

— for sugar: point B of Annex IV;

— for cereals/rice: point A of Annex IV;

— for row tobacco: Articles 123, 124, 126; it should be noted that Article 104 is not applicable for this Agreement;

— for hops: Article 117, point (g) of the first subparagraph of Article 121, Article 158; it should be noted that Article 185 is not applicable for this Agreement;

— for edible oils/olive oil: Article 118, Annex XVI;

— for live plants, fresh cut flowers and fresh foliage: Part XIII of Annex I;

— for fruits and vegetables: Article 113a

Timetable: those provisions of that Regulation shall be implemented within 5 years of the entry into force of this Agreement.

Commission Regulation (EC) No 1295/2008 of 18 December 2008 on the importation of hops from third countries

Timetable: that Regulation's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 66/401/EEC of 14 June 1966 on the marketing of fodder plant seed

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 66/402/EEC of 14 June 1966 on the marketing of cereal seed

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 68/193/EEC of 9 April 1968 on the marketing of material for the vegetative propagation of the vine

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 2008/72/EC of 15 July 2008 on the marketing of vegetable propagating and planting material, other than seed

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 92/34/EEC of 28 April 1992 on the marketing of fruit plant propagating material and fruit plants intended for fruit production

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 98/56/EC of 20 July 1998 on the marketing of propagating material of ornamental plants

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 1999/105/EC of 22 December 1999 on the marketing of forest reproductive material

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 2001/111/EC of 20 December 2001 relating to certain sugars intended for human consumption

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Commission Regulation (EEC) No 2568/91 of 11 July 1991 on the characteristics of olive oil and olive-residue oil and on the relevant methods of analysis

Timetable: that Regulation's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 76/621/EEC of 20 July 1976 relating to the fixing of the maximum level of erucic acid in oils and fats intended as such for human consumption and in foodstuffs containing added oils or fats

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 2002/53/EC of 13 June 2002 on the common catalogue of varieties of agricultural plant species

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 2002/54/EC of 13 June 2002 on the marketing of beet seed

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 2002/55/EC of 13 June 2002 on the marketing of vegetable seed

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 2002/56/EC of 13 June 2002 on the marketing of seed potatoes

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 2002/57/EC of 13 June 2002 on the marketing of seed of oil and fibre plants

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Commission Regulation (EC) No 1019/2002 of 13 June 2002 on marketing standards for olive oil

Timetable: that Regulation's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Commission Regulation (EEC) No 2568/91 of 11 July 1991 on the characteristics of olive oil and olive-residue oil and on the relevant methods of analysis

Timetable: that Regulation's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Directive 2000/36/EC of the European Parliament and of the Council of 23 June 2000 relating to cocoa and chocolate products intended for human consumption

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 2001/113/EC of 20 December 2001 relating to fruit jams, jellies and marmalades and sweetened chestnut purée intended for human consumption

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Directive 1999/4/EC of the European Parliament and of the Council of 22 February 1999 relating to coffee extracts and chicory extracts

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 2001/112/EC of 20 December 2001 relating to fruit juices and certain similar products intended for human consumption

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Commission Regulation (EC) No 1580/2007 of 21 December 2007 laying down implementing rules of Council Regulations (EC) No 2200/96, (EC) No 2201/96 and (EC) No 1182/2007 in the fruit and vegetable sector

All provisions of Regulation (EC) No 1580/2007 shall be applicable, including the annexes, with the exception of Title III and Title IV of that Regulation

Timetable: that Regulation's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Marketing standards for live animals and animal products

Regulation (EC) No 1760/2000 of the European Parliament and of the Council of 17 July 2000 establishing a system for the identification and registration of bovine animals and regarding the labelling of beef and beef products

Timetable: that Regulation's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Commission Regulation (EC) No 1825/2000 of 25 August 2000 laying down detailed rules for the application of Regulation (EC) No 1760/2000 of the European Parliament and of the Council as regards the labelling of beef and beef products

Timetable: the provisions of Regulation (EC) No 1825/2000 shall be implemented within 5 years of the entry into force of this Agreement.

Council Regulation (EC) No 1234/2007 of 22 October 2007 establishing a common organisation of agricultural markets and on specific provisions for certain agricultural products (Single CMO Regulation)

The following provisions of that Regulation shall apply:

— for horizontal issues: Article 113, Annex I, Annex III and Annex IV;

— for poultry and eggs: Parts A, B and C of Annex XIV: all Articles;

— for veal: Article 113b, Annex XIa: all Articles;

— for adult bovines, pigs and sheep: Annex V;

— for milk and milk products: Articles 114 and 115 with the Annexes, Annex XII: all Articles, Annex XIII: all Articles, Annex XV: all Articles

Timetable: those provisions of that Regulation shall be implemented within 5 years of the entry into force of this Agreement.

Commission Regulation (EC) No 566/2008 of 18 June 2008 laying down detailed rules for the application of Council Regulation (EC) No 1234/2007 as regards the marketing of the meat of bovine animals aged 12 months or less

Timetable: the provisions of Regulation (EC) No 566/2008 shall be implemented within 5 years of the entry into force of this Agreement.

Commission Regulation (EC) No 589/2008 of 23 June 2008 laying down detailed rules for implementing Council Regulation (EC) No 1234/2007 as regards marketing standards for eggs

All provisions of Regulation (EC) No 589/2008 shall apply, with the exception of Articles 33-35, Annex III and Annex V of that Regulation

Timetable: that Regulation's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Commission Regulation (EC) No 1249/2008 of 10 December 2008 laying down detailed rules on the implementation of the Community scale for the classification of beef, pig and sheep carcasses and the reporting of prices thereof

All provisions of that Regulation shall apply, with the exception of Article 18, Article 26, Article 35 and Article 37 of that Regulation

Timetable: that Regulation's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Commission Regulation (EC) No 617/2008 of 27 June 2008 laying down detailed rules for implementing Regulation (EC) No 1234/2007 as regards marketing standards for eggs for hatching and farmyard poultry chicks

Timetable: the provisions of Regulation (EC) No 617/2008 shall be implemented within 4 years of the entry into force of this Agreement.

Commission Regulation (EC) No 445/2007 of 23 April 2007 laying down certain detailed rules for the application of Council Regulation (EC) No 2991/94 laying down standards for spreadable fats and of Council Regulation (EEC) No 1898/87 on the protection of designations used in the marketing of milk and milk products)

Timetable: the provisions of Regulation (EC) No 445/2007 shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 2001/114/EC of 20 December 2001 relating to certain partly or wholly dehydrated preserved milk for human consumption

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Commission Regulation (EC) No 273/2008 of 5 March 2008 laying down detailed rules for the application of Council Regulation (EC) No 1255/1999 as regards methods for the analysis and quality evaluation of milk and milk products

Timetable: the provisions of Regulation (EC) No 273/2008 shall be implemented within 4 years of the entry into force of this Agreement.

Commission Regulation (EC) No 543/2008 of 16 June 2008 laying down detailed rules for the application of Council Regulation (EC) No 1234/2007 as regards the marketing standards for poultry meat

Timetable: the provisions of Regulation (EC) No 543/2008 shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 2001/110/EC of 20 December 2001 relating to honey

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

ANNEX VIII

TO CHAPTER 14 (ENERGY COOPERATION) OF TITLE IV

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Timelines related to provisions of this Annex which were already established by the Parties in the framework of other agreements will apply as set out in the appropriate agreements.

Electricity

Directive 2009/72/EC of the European Parliament and of the Council of 13 July 2009 concerning common rules for the internal market in electricity

Timetable: that Directive's provisions shall be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

Regulation (EC) No 714/2009 of the European Parliament and of the Council of 13 July 2009 on conditions for access to the network for cross-border exchanges in electricity

Timetable: that Regulation's provisions shall be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

Directive 2005/89/EC of the European Parliament and of the Council of 18 January 2006 concerning measures to safeguard security of electricity supply and infrastructure investment

Timetable: that Directive's provisions shall be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

Gas

Directive 2009/73/EC of the European Parliament and of the Council of 13 July 2009 concerning common rules for the internal market in natural gas

Timetable: that Directive's provisions shall be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

Regulation (EC) No 715/2009 of the European Parliament and of the Council of 13 July 2009 on conditions of access to the natural gas transmission networks

Timetable: that Regulation's provisions shall be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

Regulation (EU) No 994/2010 of the European Parliament and of the Council of 20 October 2010 concerning measures to safeguard security of gas supply

Timetable: that Regulation's provisions shall be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

Oil

Council Directive 2009/119/EC of 14 September 2009 imposing an obligation on Member States to maintain minimum stocks of crude oil and/or petroleum products

Timetable: that Directive's provisions shall be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

Infrastructure

Council Regulation (EU, Euratom) No 617/2010 of 24 June 2010 concerning the notification to the Commission of investment projects in energy infrastructure within the European Union

Timetable: that Regulation's provisions shall be implemented within 3 years of the entry in to force of this Agreement.

Prospection and exploration of hydrocarbons

Directive 94/22/EC of the European Parliament and of the Council of 30 May 1994 on the conditions for granting and using authorisations for the prospection, exploration and production of hydrocarbons

Timetable: that Directive's provisions shall be implemented within 3 years of the entry in to force of this Agreement.

Energy Efficiency

Directive 2004/8/EC of the European Parliament and of the Council of 11 February 2004 on the promotion of cogeneration based on a useful heat demand in the internal energy market

Timetable: that Directive's provisions shall be implemented within 3 years of the entry in to force of this Agreement.

Commission Decision of 19 November 2008 establishing detailed guidelines for the implementation and application of Annex II to Directive 2004/8/EC of the European Parliament and of the Council (2008/952/EC)

Timetable: that Decision's provisions shall be implemented within 3 years of the entry in to force of this Agreement.

Commission Decision of 21 December 2006 establishing harmonised efficiency reference values for separate production of electricity and heat in application of Directive 2004/8/EC of the European Parliament and of the Council (2007/74/EC)

Timetable: that Decision's provisions shall be implemented within 3 years of the entry in to force of this Agreement.

Directive 2010/31/EU of the European Parliament and of the Council of 19 May 2010 on the energy performance of buildings

Timetable: that Directive's provisions shall be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

Directive 2009/33/EC of the European Parliament and of the Council of 23 April 2009 on the promotion of clean and energy-efficient road transport vehicles

Timetable: that Directive's provisions shall be implemented within 3 years of the entry in to force of this Agreement.

Directive 2009/125/EC of the European Parliament and of the Council of 21 October 2009 on establishing a framework for the setting eco-design requirements for energy-related products

Timetable: that Directive's provisions shall be implemented within 3 years of the entry in to force of this Agreement.

Implementing Directives/Regulations:

— Commission Regulation (EC) No 278/2009 of 6 April 2009 implementing Directive 2005/32/EC of the European Parliament and of the Council with regard to eco-design requirements for no-load condition electric power consumption and average active efficiency of external power supplies

— Commission Regulation (EU) No 347/2010 of 21 April 2010 amending Commission Regulation (EC) No 245/2009 as regards the ecodesign requirements for fluorescent lamps without integrated ballast, for high intensity discharge lamps, and for ballasts and luminaires able to operate such lamps

— Commission Regulation (EC) No 245/2009 of 18 March 2009 implementing Directive 2005/32/EC of the European Parliament and of the Council with regard to eco-design requirements for fluorescent lamps without integrated ballast, for high intensity discharge lamps, and for ballasts and luminaires able to operate such lamps

— Commission Regulation (EC) No 244/2009 of 18 March 2009 implementing Directive 2005/32/EC of the European Parliament and of the Council with regard to eco-design requirements for non-directional household lamps

— Commission Regulation (EC) No 107/2009 of 4 February 2009 implementing Directive 2005/32/EC of the European Parliament and of the Council with regard to eco-design requirements for simple set-top boxes

— Commission Regulation (EC) No 1275/2008 of 17 December 2008 implementing Directive 2005/32/EC of the European Parliament and of the Council with regard to eco-design requirements for standby and off mode electric power consumption of electrical and electronic household and office equipment

— Commission Regulation (EC) No 641/2009 of 22 July 2009 implementing Directive 2005/32/EC of the European Parliament and of the Council with regard to ecodesign requirements for glandless standalone circulators and glandless circulators integrated in products

— Commission Regulation (EC) No 640/2009 of 22 July 2009 implementing Directive 2005/32/EC of the European Parliament and of the Council with regard to ecodesign requirements for electric motors

— Commission Regulation (EC) No 643/2009 of 22 July 2009 implementing Directive 2005/32/EC of the European Parliament and of the Council with regard to ecodesign requirements for household refrigerating appliances

— Commission Regulation (EC) No 642/2009 of 22 July 2009 implementing Directive 2005/32/EC of the European Parliament and of the Council with regard to ecodesign requirements for televisions

— Council Directive 92/42/EEC of 21 May 1992 on efficiency requirements for new hot-water boilers fired with liquid or gaseous fuels

Timetable: the provisions in the framework Directive as well as in the relevant existing implementing measures shall be implemented within 3 years of the entry into force of this Agreement.

Directive 2010/30/EU of the European Parliament and of the Council of 19 May 2010 on the indication by labelling and standard product information of the consumption of energy and other resources by energy-related products

Timetable: to be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

Implementing Directives/Regulations:

— Commission Directive 2003/66/EC of 3 July 2003 amending Directive 94/2/EC implementing Council Directive 92/75/EEC with regard to energy labelling of household electric refrigerators, freezers and their combinations

— Commission Directive 2002/40/EC of 8 May 2002 implementing Council Directive 92/75/EEC with regard to energy labelling of household electric ovens

— Commission Directive 2002/31/EC of 22 March 2002 implementing Council Directive 92/75/EEC with regard to energy labelling of household air-conditioners

— Commission Directive 1999/9/EC of 26 February 1999 amending Directive 97/17/EC implementing Council Directive 92/75/EEC with regard to energy labelling of household dishwashers

— Commission Directive 98/11/EC of 27 January 1998 implementing Council Directive 92/75/EEC with regard to energy labelling of household lamps

— Commission Directive 97/17/EC of 16 April 1997 implementing Council Directive 92/75/EEC with regard to energy labelling of household dishwashers

— Commission Directive 96/89/EC of 17 December 1996 amending Directive 95/12/EC implementing Council Directive 92/75/EEC with regard to energy labelling of household washing machines

— Commission Directive 96/60/EC of 19 September 1996 implementing Council Directive 92/75/EEC with regard to energy labelling of household combined washer-driers

— Commission Directive 95/13/EC of 23 May 1995 implementing Council Directive 92/75/EEC with regard to energy labelling of household electric tumble driers

— Commission Directive 95/12/EC of 23 May 1995 implementing Council Directive 92/75/EEC with regard to energy labelling of household washing machines

— Commission Directive 94/2/EC of 21 January 1994 implementing Council Directive 92/75/EEC with regard to energy labelling of household electric refrigerators, freezers and their combinations

— Council Directive 92/75/EEC of 22 September 1992 on the indication by labelling and standard product information of the consumption of energy and other resources by household appliances

Timetable: the provisions in the framework Directive as well as in the relevant existing implementing measures shall be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

Regulation (EC) No 106/2008 of the European Parliament and of the Council of 15 January 2008 on a Community energy-efficiency labelling programme for office equipment

Timetable: that Regulation's provisions shall be implemented within 3 years of the entry in to force of this Agreement.

Council Decision No 2006/1005/EC of 18 December 2006 concerning conclusion of the Agreement between the Government of the United States of America and the European Community on the coordination of energy-efficiency labelling programmes for office equipment

Timetable: that Decision's provisions shall be implemented within 3 years of the entry in to force of this Agreement.

Regulation (EC) No 1222/2009 of the European Parliament and of the Council of 25 November 2009 on the labelling of tyres with respect to fuel efficiency and other essential parameters

Timetable: that Regulation's provisions shall be implemented within 3 years of the entry in to force of this Agreement.

Renewable energy

Directive 2009/28/EC of the European Parliament and of the Council of 23 April 2009 on the promotion of the use of energy from renewable energy sources

Timetable: that Directive's provisions shall be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

ANNEX IX

TO CHAPTER 15 (TRANSPORT) OF TITLE IV

1. The Parties have decided to cooperate on the development of the strategic transport network for the territory of the Republic of Moldova. The indicative map of the strategic transport network proposed by the Republic of Moldova is included in this Annex (see point 6 of this Annex).

2. In this context, the Parties recognise the importance of implementation of the main priority measures of the transport infrastructure investment strategy within the Republic of Moldova, aimed at rehabilitating and extending the internationally important rail and road links crossing the territory of the Republic of Moldova, starting with National roads M3 Chisinau — Giurgiulesti and M14 Brest — Briceni — Tiraspol — Odessa, as well as at upgrading and modernising the rail connections with the neighbouring countries used for international and transit traffic.

3. The Parties recognise the importance of improving transport connections by making them smoother, safer and more reliable. This is to the mutual benefit of the EU and the Republic of Moldova. The Parties will cooperate in order to develop further transport connections in particular through:

   (a) policy cooperation, improved administrative procedures at the border crossings and removal of bottlenecks in infrastructure;

   (b) transport cooperation in the framework of the Eastern Partnership;

   (c) cooperation with International Financial Institutions that can contribute to improved transport;

   (d) the further development of a coordination mechanism and information system within the Republic of Moldova to ensure effectiveness and transparency of infrastructure planning, including traffic management systems, charging and financing;

   (e) the adoption of border crossing facilitation actions, in line with the provisions of Chapter 5 (Customs and Trade Facilitation) of Title V (Trade and Trade-related Matters) of this Agreement, that aims to improve the functioning of the transport network in order to increase the fluidity of the transport flows between the EU, the Republic of Moldova and the regional partners;

   (f) the exchange of best practices on financing options of projects (both infrastructure and horizontal measures), including public-private partnerships, relevant legislation and user charging;

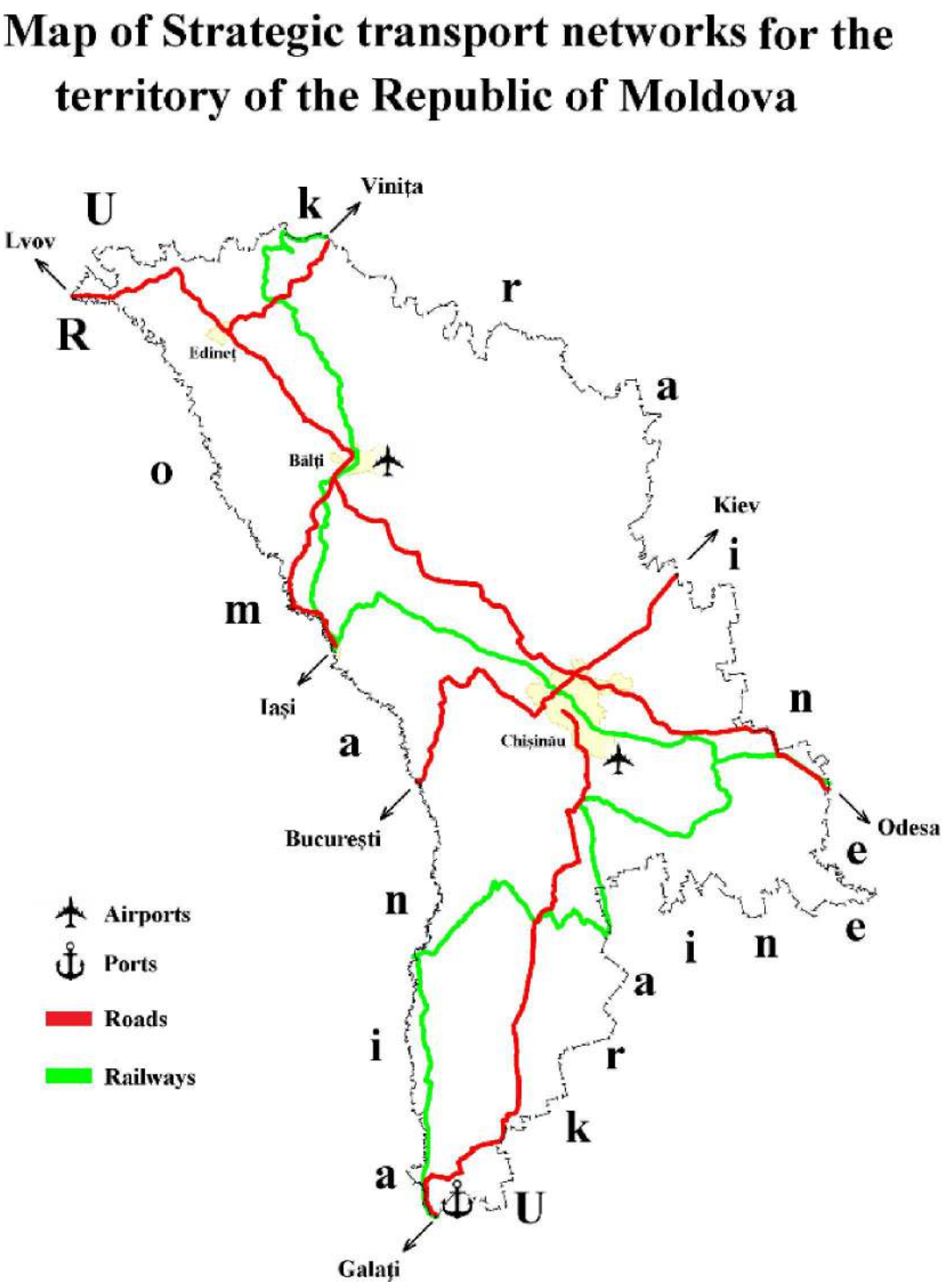
   (g) taking into account, where relevant, the environmental provisions as set out in Chapter 16 (Environment) of Title IV (Economic and Other Sectoral Cooperation) of this Agreement, in particular the Strategic Impact Assessment, Environmental Impact Assessment, and nature-related and air quality-related EU legislation;

   (h) the development of efficient traffic management systems, such as the European Rail Traffic Management System (ERTMS), at regional level ensuring cost effectiveness, interoperability and high quality.

4. The Parties will cooperate in order to connect the Republic of Moldova's strategic transport network to the TEN-T network as well as to networks of the region.

5. The Parties will seek to identify projects of mutual interest located on the strategic transport network of the Republic of Moldova.

6. Map (Map of strategic transport networks for the territory of the Republic of Moldova):



ANNEX X

TO CHAPTER 15 (TRANSPORT) OF TITLE IV

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Road transport

Technical conditions

Council Directive 92/6/EEC of 10 February 1992 on the installation and use of speed limitation devices for certain categories of motor vehicles in the Community

Timetable: For all vehicles engaged in international transport, that Directive's provisions shall be implemented within 1 year of the entry into force of this Agreement.

For all vehicles engaged in national transport already registered at the moment of entry into force of this Agreement, that Directive's provisions shall be implemented within 8 years of the entry into force of this Agreement.

For all vehicles which are registered for the first time, that Directive's provisions shall be implemented within 1 year after the entry into force of this Agreement.

Council Directive 96/53/EC of 25 July 1996 laying down for certain road vehicles circulating within the Community the maximum authorized dimensions in national and international traffic and the maximum authorized weights in international traffic

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Directive 2009/40/EC of the European Parliament and of the Council of 6 May 2009 on roadworthiness tests for motor vehicles and their trailers

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Safety conditions

Council Directive 91/439/EEC of 29 July 1991 on driving licences

The following provisions of that Directive shall apply:

— Introduction of the driving licence categories (Article 3);

— Conditions for issuing the driving licence (Articles 4, 5, 6 and 7);

— Requirements for driving tests (Annexes II and III)

to be replaced at the latest on 19 January 2013 by the relevant provisions of Directive 2006/126/EC of the European Parliament and of the Council of 20 December 2006 on driving licences

Timetable: those provisions of that Directive shall be implemented upon entry into force of this Agreement.

Directive 2008/68/EC of the European Parliament and of the Council of 24 September 2008 on the inland transport of dangerous goods

Timetable: For all vehicles engaged in international transport, that Directive's provisions shall be implemented upon entry into force of this Agreement.

For all vehicles engaged in national transport already registered at the moment of entry into force of this Agreement, that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Social conditions

Regulation (EC) No 561/2006 of the European Parliament and of the Council of 15 March 2006 on the harmonisation of certain social legislation relating to road transport

Timetable: For all vehicles engaged in international transport, that Regulation's provisions shall be implemented upon entry into force of this Agreement. For all vehicles engaged in national transport already registered at the moment of entry into force of this Agreement, that Regulation's provisions, with the exception of Article 27 relating to digital tachographs, shall be implemented within 3 years of the entry into force of this Agreement. The provisions set out in Article 27 relating to digital tachographs shall be implemented within 8 years of the entry into force of this Agreement.

Directive 2006/22/EC of the European Parliament and of the Council of 15 March 2006 on minimum conditions for the implementation of Council Regulations (EEC) No 3820/85 and (EEC) No 3821/85 concerning social legislation relating to road transport activities

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Regulation (EC) No 1071/2009 of the European Parliament and of the Council of 21 October 2009 establishing common rules concerning the conditions to be complied with to pursue the occupation of road transport operator

The following provisions of that Regulation shall apply:

— Articles 3, 4, 5, 6, 7 (without the monetary value of the financial standing), 8, 10, 11, 12, 13, 14, 15 and Annex I of that Regulation

Timetable: those provisions of that Regulation shall be implemented within 2 years of the entry into force of this Agreement.

Directive 2002/15/EC of the European Parliament and of the Council of 11 March 2002 on the organisation of the working time of persons performing mobile road transport activities

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Directive 2003/59/EC of the European Parliament and of the Council of 15 July 2003 on the initial qualification and periodic training of drivers of certain road vehicles for the carriage of goods or passengers

Timetable: that Directive's provisions shall be implemented within 2 years of the entry into force of this Agreement.

Fiscal conditions

Directive 1999/62/EC of the European Parliament and of the Council of 17 June 1999 on the charging of heavy goods vehicles for the use of certain infrastructures

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Railway transport

Market and infrastructure access

Council Directive 91/440/EEC of 29 July 1991 on the development of the Community's railways

The following provisions of that Directive shall apply:

— Introduction of management independence and improvement of the financial situation (Articles 2, 3, 4, 5 and 9);

— Separation between infrastructure management and transport operations (Articles 6, 7 and 8)

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

Council Directive 95/18/EC of 19 June 1995 on the licensing of railway undertakings

The following provisions of that Directive shall apply:

— Introduction of licenses under the conditions listed in Articles 1, 2, 3, 4 (except for Article 4(5)), 5, 6, 7, 8, 9, 10, 11, 12, 13 and 15 of that Directive

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

Directive 2001/14/EC of the European Parliament and of the Council of 26 February 2001 on the allocation of railway infrastructure capacity and the levying of charges for the use of railway infrastructure and safety certification

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Regulation (EU) No 913/2010 of the European Parliament and of the Council of 22 September 2010 concerning a European rail network for competitive freight

Timetable: that Regulation's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Technical and safety conditions, interoperability

Directive 2004/49/EC of the European Parliament and of the Council of 29 April 2004 on safety on the Community's railways (Railway Safety Directive)

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Directive 2007/59/EC of the European Parliament and of the Council of 23 October 2007 on the certification of train drivers operating locomotives and trains on the railway system in the Community

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Directive 2008/57/EC of the European Parliament and of the Council of 17 June 2008 on the interoperability of the rail system within the Community

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Directive 2008/68/EC of the European Parliament and of the Council of 24 September 2008 on the inland transport of dangerous goods

Timetable: For all vehicles engaged in international transport, that Directive's provisions shall be implemented upon entry into force of this Agreement. For all vehicles engaged in national transport already registered at the moment of entry into force of this Agreement, that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Combined Transport

Council Directive 92/106/EEC of 7 December 1992 on the establishment of common rules for certain types of combined transport of goods between Member States

Timetable: that Directive's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Other aspects

Regulation (EC) No 1370/2007 of the European Parliament and of the Council of 23 October 2007 on public passenger transport services by rail and by road

Timetable: that Regulation's provisions shall be implemented within 6 years of the entry into force of this Agreement.

Regulation (EC) No 1371/2007 of the European Parliament and of the Council of 23 October 2007 on rail passengers' rights and obligations

Timetable: that Regulation's provisions shall be implemented within 4 years of the entry into force of this Agreement.

Air transport

The comprehensive Common Aviation Area Agreement between the European Union and its Member States and the Republic of Moldova, signed on 26 June 2012 in Brussels, which contains the list and timetable for the implementation of relevant EU *acquis* in the area of aviation.

Inland waterway transport

Functioning of the market

Council Directive 96/75/EC of 19 November 1996 on the systems of chartering and pricing in national and international inland waterway transport in the Community

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Access to the profession

Council Directive 87/540/EEC of 9 November 1987 on access to the occupation of carrier of goods by waterway in national and international transport and on the mutual recognition of diplomas, certificates and other evidence of formal qualifications for this occupation

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Council Directive 96/50/EC of 23 July 1996 on the harmonization of the conditions for obtaining national boatmasters' certificates for the carriage of goods and passengers by inland waterway in the Community

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Safety

Directive 2006/87/EC of the European Parliament and of the Council of 12 December 2006 laying down technical requirements for inland waterway vessels

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Directive 2008/68/EC of the European Parliament and of the Council of 24 September 2008 on the inland transport of dangerous goods

Timetable: For all vehicles engaged in international transport, that Directive's provisions shall be implemented upon entry into force of this Agreement. For all vehicles engaged in national transport already registered at the moment of entry into force of this Agreement, that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

River Information Services

Directive 2005/44/EC of the European Parliament and of the Council of 7 September 2005 on harmonised river information services (RIS) on inland waterways in the Community

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

ANNEX XI

TO CHAPTER 16 (ENVIRONMENT)

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Timelines related to provisions of this Annex which were already established by the Parties in the framework of other agreements will apply as set out in the appropriate agreements.

Environmental governance and integration of environment into other policy areas

Directive 2011/92/EU of the European Parliament and of the Council of 13 December 2011 on the assessment of the effects of certain public and private projects on the environment

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— establishment of requirements that Annex I projects to be subject to environmental impact assessment and of a procedure to decide which Annex II projects require EIA (Article 4)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— determination of the scope of the information to be provided by the developer (Article 5)

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— establishment of a procedure for consultation with environmental authorities and a public consultation procedure (Article 6)

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— establishment of arrangements with neighbouring countries for exchange of information and consultation (Article 7)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— establishment of measures for notifying the public of the outcome of decisions on applications for development consent (Article 9)

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— establishment of effective, not prohibitively expensive and timely review procedures at administrative and judicial level involving the public and NGOs (Article 11)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

Directive 2001/42/EC of the European Parliament and of the Council of 27 June 2001 on the assessment of the effects of certain plans and programmes on the environment

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— establishment of a procedure to decide which plans or programmes require strategic environmental assessment and of requirements that plans or programmes for which strategic environmental assessment is mandatory are subject to such an assessment (Article 3)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— establishment of a procedure for consultation with environmental authorities and a public consultation procedure (Article 6)

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— establishment of arrangements with neighbouring countries for exchange of information and consultation (Article 7)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

Directive 2003/4/EC of the European Parliament and of the Council of 28 January 2003 on public access to environmental information

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— setting up of practical arrangements under which environmental information is made available to the public and the applicable exceptions (Articles 3 and 4)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— ensuring that public authorities make environmental information available to the public (Article 3(1))

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— establishment of procedures to review of decisions not to supply environmental information or to supply only partial information (Article 6)

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— establishment of a system for disseminating environmental information to the public (Article 7)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

Directive 2003/35/EC of the European Parliament and of the Council of 26 May 2003 providing for public participation in respect of the drawing up of certain plans and programmes relating to the environment

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— establishment of a mechanism for providing the public with information (Articles 2(2)(a) and 2(2)(d))

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— establishment of a mechanism for public consultation (Articles 2(2)(b) and 2(3))

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— establishment of a mechanism for public comments and opinions to be taken into account in the decision-making process (Article 2(2)(c))

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— guaranteeing effective, timely and not prohibitively expensive access to justice at administrative and judicial level as regards the substantive or procedural legality of decisions, acts or omissions by public authorities in these procedures for the public concerned, including NGOs (Articles 3(7) and 4(4), EIA and IPPC (IED))

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

Air Quality

Directive 2008/50/EC of the European Parliament and of the Council of 21 May 2008 on ambient air quality and cleaner air for Europe

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities (Article 3)

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— establishment and classification of zones and agglomerations (Article 4)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— establishment of an assessment regime with appropriate criteria for assessing ambient air quality in relation to air pollutants (Articles 5, 6 and 9)

Timetable: those provisions of that Directive shall be implemented within 9 years of the entry into force of this Agreement.

— establishment of air quality plans for zones and agglomerations where levels of pollutants exceed limit value/target value (Article 23)

Timetable: those provisions of that Directive shall be implemented within 9 years of the entry into force of this Agreement.

— establishment of short-term action plans for zones and agglomerations in which there is a risk that alert thresholds will be exceeded (Article 24)

Timetable: those provisions of that Directive shall be implemented within 9 years of the entry into force of this Agreement.

— establishment of a system to provide information to the public (Article 26)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

Directive 2004/107/EC of the European Parliament and of the Council of 15 December 2004 relating to arsenic, cadmium, mercury, nickel and polycyclic aromatic hydrocarbons in ambient air

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— establishment and classification of zones and agglomerations (Article 3)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— establishment of an assessment regime with appropriate criteria for assessing ambient air quality in relation to air pollutants (Article 4)

Timetable: those provisions of that Directive shall be implemented within 9 years of the entry into force of this Agreement.

— taking measures in order to maintain/improve air quality in respect of the relevant pollutants (Article 3)

Timetable: those provisions of that Directive shall be implemented within 9 years of the entry into force of this Agreement.

— establishment of a system to provide information to the public (Article 7)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 1999/32/EC of 26 April 1999 relating to a reduction of sulphur content of certain liquid fuels

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

— establishment of an effective sampling system and appropriate analytical methods of analysis (Article 6)

— prohibition of use of heavy fuel oil and gas oil with a sulphur content greater than established limit values (Articles 3(1) and 4(1))

— application of limit values for the sulphur content of marine fuels (Articles 4a and 4b)

Timetable: to be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

Council Directive 94/63/EC of 20 December 1994 on the control of volatile organic compound (VOC) emissions resulting from the storage of petrol and its distribution from terminals to service stations as amended by Regulation (EC) No 1882/2003

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— identifying all terminals for storing and loading petrol (Article 2)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— establishment of technical measures to reduce loss of petrol from storage installations at terminals and service stations and during loading/unloading mobile containers at terminals (Articles 3, 4 and 6 and Annex III)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— requiring all road tanker loading gantries and mobile containers to meet the requirements (Articles 4 and 5)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

Directive 2004/42/EC of the European Parliament and of the Council of 21 April 2004 on the limitation of emissions of volatile organic compounds due to the use of organic solvents in certain paints and varnishes and vehicle refinishing products

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— setting up maximum VOC content limit values for paints and varnishes (Article 3 and Annex II, phase II)

Timetable: those provisions of that Directive shall be implemented within 10 years of the entry into force of this Agreement.

— establishment of requirements ensuring labelling of products placed on the market and placing on the market of products complying with relevant requirements (Articles 3 and 4)

Timetable: those provisions of that Directive shall be implemented within 10 years of the entry into force of this Agreement.

Directive 2001/81/EC of the European Parliament and of the Council of 23 October 2001 on national emission ceilings for certain atmospheric pollutants

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authorities to fulfil the requirement of reporting of emission inventories and reporting under the directive

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— development of national programmes to meet national ceilings

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— meeting all other obligations, including national emission ceilings

Within 10 years of the entry into force of this Agreement, national emission ceilings shall apply as established in the original 1999 Gothenburg Protocol to Abate Acidification, Eutrophication and Ground-level Ozone. Furthermore, within that period the Republic of Moldova shall endeavour to ratify the Gothenburg Protocol, including the amendments adopted in 2012.

Water Quality and resource management

Directive 2000/60/EC of the European Parliament and of the Council of 23 October 2000 establishing a framework for Community action in the field of water policy as amended by Decision No 2455/2001/EC

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— identification of river basin districts and establishment of administrative arrangements for international rivers, lakes and coastal waters (Article 3)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— analysis of the characteristics of river basin districts (Article 5)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— establishment of programmes for monitoring water quality (Article 8)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— preparation of river basin management plans, consultations with the public and publication of these plans (Articles 13 and 14)

Timetable: those provisions of that Directive shall be implemented within 8 years of the entry into force of this Agreement.

Directive 2007/60/EC of the European Parliament and of the Council of 23 October 2007 on the assessment and management of flood risks

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— undertaking preliminary flood assessment (Articles 4 and 5)

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— preparation of flood hazards maps and flood risks maps (Article 6)

Timetable: those provisions of that Directive shall be implemented within 7 years of the entry into force of this Agreement.

— establishment of flood risk management plans (Article 7)

Timetable: those provisions of that Directive shall be implemented within 8 years of the entry into force of this Agreement.

Council Directive 91/271/EEC of 21 May 1991 concerning urban waste-water treatment as amended by Directive 98/15/EC and Regulation (EC) No 1882/2003

The following provisions of Directive 91/271/EEC shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— assessment of the status of urban waste water collection and treatment

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— identification of sensitive areas and agglomerations (Article 5 and Annex II)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— preparation of technical and investment programme for the implementation of the urban waste water treatment requirements (Article 17)

Timetable: those provisions of that Directive shall be implemented within 8 years of the entry into force of this Agreement.

Council Directive 98/83/EC of 3 November 1998 on the quality of water intended for human consumption as amended by Regulation (EC) No 1882/2003

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— establishment of standards for drinking water (Articles 4 and 5)

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— establishment of a monitoring system (Articles 6 and 7)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— establishment of a mechanism to provide information to consumers (Article 13)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

Council Directive 91/676/EEC of 12 December 1991 concerning the protection of waters against pollution caused by nitrates from agricultural sources as amended by Regulation (EC) No 1882/2003

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

establishment of monitoring programmes (Article 6)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

identification of polluted waters or waters at risk and designation of nitrate vulnerable zones (Article 3)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— establishment of action plans and codes of good agricultural practices for nitrate vulnerable zones (Articles 4 and 5)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

Waste and Resource Management

Directive 2008/98/EC of the European Parliament and of the Council of 19 November 2008 on waste

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— preparation of waste management plans in line with the five-step waste hierarchy and of waste prevention programmes (Chapter V)

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— establishment of full cost recovery mechanism in accordance with the polluter pays principle and extended producer responsibility principle (Article 14)

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— establishment of a permitting system for establishments/undertakings carrying out disposal or recovery operations, with specific obligations for the management of hazardous wastes (Chapter IV)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— establishment of a register of waste collection and transport establishments and undertakings (Chapter IV)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 1999/31/EC of 26 April 1999 on the landfill of waste as amended by Regulation (EC) No 1882/2003

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— classification of landfill sites (Article 4)

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— preparation of a national strategy reducing the amount of biodegradable municipal waste going to landfill (Article 5)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— establishment of an application and permit system and of waste acceptance procedures (Articles 5-7, 11, 12 and 14)

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— establishment of control and monitoring procedures in the operation phase of landfills and of closure and after-care procedures for landfills to be disaffected (Articles 12 and 13)

Timetable: those provisions of that Directive shall be implemented within 7 years of the entry into force of this Agreement.

— establishment of conditioning plans for existing landfill sites (Article 14)

Timetable: those provisions of that Directive shall be implemented within 7 years of the entry into force of this Agreement.

— establishment of a costing mechanism (Article 10)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— ensuring the relevant waste is subject to treatment before landfilling (Article 6)

Timetable: those provisions of that Directive shall be implemented within 7 years of the entry into force of this Agreement.

Directive 2006/21/EC of the European Parliament and of the Council of 15 March 2006 on the management of waste from extractive industries

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— establishment of a system to ensure that operators draw up waste management plans (identification and classification of waste facilities; characterisation of the waste) (Articles 4 and 9)

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— establishment of a permit system, of financial guarantees and of an inspection system (Articles 7, 14 and 17)

Timetable: v provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— establishment of procedures for the management and monitoring of excavation voids (Article 10)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— establishment of closure and after-closure procedures for mining waste facilities (Article 12)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— drawing up an inventory of closed mining waste facilities (Article 20)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

Nature protection

Directive 2009/147/EC of the European Parliament and of the Council of 30 November 2009 on the conservation of wild birds

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 2 years of the entry into force of this Agreement.

— assessment of bird species requiring special conservation measures and regularly occurring migratory species

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— identification and designation of special protection areas for bird species (Article 4(1))

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— establishment of special conservation measures to protect regularly occurring migratory species (Article 4(2))

Timetable: to be implemented according to the timeline agreed within the framework of the Energy Community Treaty.

— establishment of a general system of protection for all wild bird species of which the hunted species are a special subset and prohibition of certain types of capture/killing (Articles 5, 6, 7, 8, 9(1) and 9(2))

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

Council Directive 92/43/EEC of 21 May 1992 on the conservation of natural habitats and of wild fauna and flora as amended by Directives 97/62/EC and 2006/105/EC and Regulation (EC) No 1882/2003

The following provisions of Directive 92/43/EEC shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— preparation of inventory of sites, designation of these sites and establish priorities for their management (including completion of the inventory of potential Emerald sites and establishment of protection and management measures for these sites) (Article 4)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— establishment of measures required for the protection of such sites (Article 6)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

— establishment of a system to monitor conservation status of habitats and species (Article 11)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— establishment of a strict species protection regime for species listed in Annex IV of that Directive as relevant for the Republic of Moldova (Article 12)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— establishment of a mechanism to promote education and general information to the public (Article 22)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

Industrial pollution and industrial hazards

Directive 2010/75/EU of the European Parliament and of the Council of 24 November 2010 on industrial emissions (integrated pollution prevention and control)

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— identification of installations that require a permit (Annex I)

Timetable: those provisions of that Directive shall be implemented within 3 years of the entry into force of this Agreement.

— implementation of BAT taking into account the BAT conclusions of the BREFs (Articles 14(3-6) and 15(2-4))

Timetable: those provisions of that Directive shall be implemented within 10 years of the entry into force of this Agreement.

— establishment of an integrated permit system (Articles 4 – 6, 12, 21 and 24 and Annex IV)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

— establishment and implementation of a compliance monitoring mechanism (Articles 8, 14(1)(d) and 23(1))

Timetable: those provisions of that Directive shall be implemented within 8 years of the entry into force of this Agreement.

— establishment of emission limit values for combustion plants (Article 30 and Annex V)

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— preparation of a transitional national plan to reduce total annual emissions from existing plants (optional to setting emission limit values for existing plants) (Article 32)

Timetable: those provisions of that Directive shall be implemented within 6 years of the entry into force of this Agreement.

Council Directive 96/82/EC of 9 December 1996 on the control of major accident hazards involving dangerous substances as amended by Directive 2003/105/EC and Regulation (EC) No 1882/2003

The following provisions of Directive 96/82/EC shall apply:

— adoption of national legislation and designation of competent authority/authorities

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— establishment of effective coordination mechanisms between relevant authorities

Timetable: those provisions of that Directive shall be implemented within 4 years of the entry into force of this Agreement.

— establishment of systems for receiving notifications with information about relevant Seveso establishments and for reporting on major accidents (Articles 6, 14, and 15)

Timetable: those provisions of that Directive shall be implemented within 7 years of the entry into force of this Agreement.

Chemicals

Regulation (EC) No 689/2008 of the European Parliament and of the Council of 17 June 2008 concerning the export and import of dangerous chemicals

The following provisions of that Regulation shall apply:

— implementation of the export notification procedure (Article 7)

Timetable: those provisions of that Regulation shall be implemented within 3 years of the entry into force of this Agreement.

— implementation of procedures for handling of export notifications received from other countries (Article 8)

Timetable: those provisions of that Regulation shall be implemented within 2 years of the entry into force of this Agreement.

— setting up of procedures for drafting and submission of notifications of final regulatory action (Article 10)

Timetable: those provisions of that Regulation shall be implemented within 2 years of the entry into force of this Agreement.

— setting up of procedures for drafting and submission of import decisions (Article 12)

Timetable: those provisions of that Regulation shall be implemented within 2 years of the entry into force of this Agreement.

— implementation of the PIC procedure for the export of certain chemicals, in particular those listed in Annex III to the Rotterdam Convention on the Prior Informed Consent Procedure for Certain Hazardous Chemicals and Pesticides in International Trade (Article 13)

Timetable: those provisions of that Regulation shall be implemented within 3 years of the entry into force of this Agreement.

— implementation of the labelling and packaging requirements for exported chemicals (Article 16)

Timetable: those provisions of that Regulation shall be implemented within 3 years of the entry into force of this Agreement.

— designation of national authorities that control the import and export of chemicals (Article 17)

Timetable: those provisions of that Regulation shall be implemented within 2 years of the entry into force of this Agreement.

Regulation (EC) No 1272/2008 of the European Parliament and of the Council of 16 December 2008 on classification, labelling and packaging of substances and mixtures

The following provisions of that Regulation shall apply:

— designation of competent authority/authorities (Article 43)

Timetable: those provisions of that Regulation shall be implemented within 4 years of the entry into force of this Agreement.

— implementation of classification, labelling and packaging of substances and mixtures (Article 4)

Timetable: those provisions of that Regulation shall be implemented within 7 years of the entry into force of this Agreement.

Regulation (EC) No 1907/2006 of the European Parliament and the Council of 18 December 2006 concerning the Registration, Evaluation, Authorisation and Restriction of Chemicals (REACH) and establishing a European Chemicals Agency

The following provisions of that Regulation shall apply:

— designation of competent authority/authorities, enforcement authorities and setting up the official system of monitoring and control (Articles 121 and 125)

Timetable: those provisions of that Regulation shall be implemented within 4 years of the entry into force of this Agreement.

— Adoption for national provisions for penalties applicable for infringements of national laws concerning chemicals (Article 126)

Timetable: those provisions of that Regulation shall be implemented within 5 years of the entry into force of this Agreement.

— Adoption of national provisions setting up national system of Registration of chemical substances and mixtures (Title II, Articles 5, 6, 7 and 14)

Timetable: those provisions of that Regulation shall be implemented within 4 years of the entry into force of this Agreement.

— Adoption of national provisions concerning the Information in the supply chain on chemical substances and mixtures and downstream user obligations (Title IV and V, Articles 31 and 37)

Timetable: those provisions of that Regulation shall be implemented within 4 years of the entry into force of this Agreement.

— Adoption of national provisions adopting the list of Restrictions as specified in Annex XVII to REACH (Title VIII, Article 67)

Timetable: those provisions of that Regulation shall be implemented within 4 years of the entry into force of this Agreement.

ANNEX XII

TO CHAPTER 17 (CLIMATE ACTION) OF TITLE IV

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Climate change and protection of the ozone layer

Directive 2003/87/EC of the European Parliament and of the Council of 13 October 2003 establishing a scheme for greenhouse gas emission allowance trading within the Community:

The following provisions of that Directive shall apply:

— establishment of a system for identifying relevant installations and for identifying greenhouse gases (Annexes I and II)

— establishment of monitoring, reporting, verification and enforcement systems and public consultations procedures (Articles 9, 14 – 17, 19 and 21)

Timetable: those provisions of that Directive shall be implemented within 8 years of the entry into force of this Agreement.

Regulation (EC) No 842/2006 of the European Parliament and of the Council of 17 May 2006 on certain fluorinated greenhouse gases:

The following provisions of that Regulation shall apply:

— adoption of national legislation and designation of competent authority/authorities

— establishment/adaptation of national training and certification requirements for relevant personnel and companies (Article 5)

— establishment of reporting systems for acquiring emission data from the relevant sectors (Article 6)

— establishment of enforcement system (Article 13)

Timetable: those provisions of that Regulation shall be implemented within 4 years of the entry into force of this Agreement.

Regulation (EC) No 1005/2009 of the European Parliament and of the Council of 16 September 2009 on substances that deplete the ozone layer:

The following provisions of that Regulation shall apply:

— adoption of national legislation and designation of competent authority/authorities

— establishment of a ban on the production of controlled substances, except for specific uses and, until 2019, of hydrochlorofluorocarbons (HCFC) (Article 4)

— establishment of a ban on the placing on the market and use of controlled substances, except for reclaimed HCFC which might be used as refrigerant until 2015 (Articles 5 and 11)

— definition of the conditions for the production, placing on the market and use of controlled substances for exempted uses (as feedstock, process agents, for essential laboratory and analytical uses, critical uses of halons) and individual derogations, including emergency uses of methyl bromide (Chapter III)

— establishment of a licensing system for the import and export of controlled substances for exempted uses (Chapter IV) and reporting obligations for Member States and undertakings (Articles 26 and 27)

— establishment of obligations to recover, recycle, reclaim and destruct used controlled substances (Article 22)

— establishment of procedures for monitoring and inspecting leakages of controlled substances (Article 23)

Timetable: those provisions of that Regulation shall be implemented within 5 years of the entry into force of this Agreement.

Directive 98/70/EC of the European Parliament and of the Council of 13 October 1998 relating to the quality of petrol and diesel fuels and

The following provisions of that Directive shall apply:

— adoption of national legislation and designation of competent authority/authorities

— carrying out an assessment of national fuel consumption

— establishment of a system for monitoring fuel quality (Article 8)

— prohibition of marketing of leaded petrol (Article 3(1))

— permitting the marketing of unleaded petrol, diesel fuel and gas oils intended for non-road mobile machinery and agricultural and forestry tractors only if these meet relevant requirements (Articles 3 and 4)

— establishment of a regulatory system to cover exceptional circumstances and of a system to collect national fuel quality data (Articles 7 and 8)

Timetable: those provisions of that Directive shall be implemented within 5 years of the entry into force of this Agreement.

ANNEX XIII

TO CHAPTER 21 (PUBLIC HEALTH) OF TITLE IV

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Tobacco

Directive 2001/37/EC of the European Parliament and of the Council of 5 June 2001 on the approximation of the laws, regulations and administrative provisions of the Member States concerning the manufacture, presentation and sale of tobacco products

Timetable: that Directive's provisions shall be implemented within 7 years of the entry into force of this Agreement.

Directive 2003/33/EC of the European Parliament and of the Council of 26 May 2003 on the approximation of the laws, regulations and administrative provisions of the Member States relating to the advertising and sponsorship of tobacco products

Timetable: that Directive's provisions shall be implemented within 3 years of the entry into force of this Agreement.

Council Recommendation 2003/54/EC of 2 December 2002 on the prevention of smoking and on initiatives to improve tobacco control

Timetable: not applicable

Council Recommendation of 30 November 2009 on smoke-free environments (2009/C 296/02)

Timetable: not applicable

Communicable diseases

Decision No 2119/98/EC of the European Parliament and of the Council of 24 September 1998 setting up a network for the epidemiological surveillance and control of communicable diseases in the Community

Timetable: that Decision's provisions shall be implemented within 7 years of the entry into force of this Agreement.

Commission Decision No 2000/96/EC of 22 December 1999 on the communicable diseases to be progressively covered by the Community network under Decision No 2119/98/EC of the European Parliament and of the Council

Timetable: the provisions of Decision No 2000/96/EC shall be implemented within 7 years of the entry into force of this Agreement.

Commission Decision No 2002/253/EC of 19 March 2002 laying down case definitions for reporting communicable diseases to the Community network under Decision No 2119/98/EC of the European Parliament and of the Council

Timetable: the provisions of Decision No 2002/253/EC shall be implemented within 7 years of the entry into force of this Agreement.

Commission Decision 2000/57/EC of 22 December 1999 on the early warning and response system for the prevention and control of communicable diseases under Decision No 2119/98/EC of the European Parliament and of the Council

Timetable: the provisions of Decision 2000/57/EC shall be implemented within 7 years of the entry into force of this Agreement.

Blood

Directive 2002/98/EC of the European Parliament and of the Council of 27 January 2003 setting standards of quality and safety for the collection, testing, processing, storage and distribution of human blood and blood components

Timetable: that Directive's provisions shall be implemented within 5 years of the entry into force of this Agreement.

Commission Directive 2004/33/EC of 22 March 2004 implementing Directive 2002/98/EC of the European Parliament and of the Council as regards certain technical requirements for blood and blood components

Timetable: the provisions of Directive 2004/33/EC shall be implemented within 5 years of the entry into force of this Agreement.

Commission Directive 2005/62/EC of 30 September 2005 implementing Directive 2002/98/EC of the European Parliament and of the Council as regards Community standards and specifications relating to a quality system for blood establishments

Timetable: the provisions of Directive 2005/62/EC shall be implemented within 5 years of the entry into force of this Agreement.

Commission Directive 2005/61/EC of 30 September 2005 implementing Directive 2002/98/EC of the European Parliament and of the Council as regards traceability requirements and notification of serious adverse reactions and events

Timetable: the provisions of Directive 2005/61/EC shall be implemented within 5 years of the entry into force of this Agreement.

Organs, tissues and cells

Directive 2004/23/EC of the European Parliament and of the Council of 31 March 2004 on setting standards of quality and safety for the donation, procurement, testing, processing, preservation, storage and distribution of human tissues and cells

Timetable: that Directive's provisions shall be implemented within 7 years of the entry into force of this Agreement.

Commission Directive 2006/17/EC of 8 February 2006 implementing Directive 2004/23/EC of the European Parliament and of the Council as regards certain technical requirements for the donation, procurement and testing of human tissues and cells

Timetable: the provisions of Directive 2006/17/EC shall be implemented within 7 years of the entry into force of this Agreement.

Commission Directive 2006/86/EC of 24 October 2006 implementing Directive 2004/23/EC of the European Parliament and of the Council as regards traceability requirements, notification of serious adverse reactions and events and certain technical requirements for the coding, processing, preservation, storage and distribution of human tissues and cells

Timetable: the provisions of Directive 2006/86/EC shall be implemented within 7 years of the entry into force of this Agreement.

Directive 2010/53/EU of the European Parliament and of the Council of 7 July 2010 on standards of quality and safety of human organs intended for transplantation

Timetable: that Directive's provisions shall be implemented within 7 years of the entry into force of this Agreement.

Mental health — Drug dependence

Council Recommendation 2003/488/EC of 18 June 2003 on the prevention and reduction of health-related harm associated with drug dependence

Timetable: not applicable

Alcohol

Council Recommendation 2001/458/EC of 5 June 2001 on the drinking of alcohol by young people, in particular children and adolescents

Timetable: not applicable

Cancer

Council Recommendation 2003/878/EC of 2 December 2003 on cancer screening

Timetable: not applicable

Prevention of injury and promotion of safety

Council Recommendation (2007/C 164/01) of 31 May 2007 on the prevention of injury and the promotion of safety

Timetable: not applicable

ANNEX XIV

TO CHAPTER 25 (COOPERATION ON CULTURE, AUDIOVISUAL POLICY AND MEDIA) OF TITLE IV

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Directive 2007/65/EC of the European Parliament and of the Council of 11 December 2007 amending Council Directive 89/552/EEC on the coordination of certain provisions laid down by law, regulation or administrative action in Member States concerning the pursuit of television broadcasting activities

Timetable: the provisions of Directive 2007/65/EC shall be implemented within 2 years of the entry into force of this Agreement.

2005 Unesco Convention on the Protection and Promotion of the Diversity of Cultural Expressions

Timetable: not applicable

ANNEX XV

ELIMINATION OF CUSTOMS DUTIES

1. The Parties shall eliminate all customs duties on goods originating in the other Party as from the date of entry into force of this Agreement except as provided in paragraphs 2, 3 and 4 and without prejudice to paragraph 5 of this Annex.
2. Products listed in Annex XV-A shall be imported into the Union free of customs duties within the limits of the tariff quotas set out in that Annex. The most-favoured-nation (MFN) customs duty rate shall apply to imports exceeding the tariff-rate quota limit.
3. Products listed in Annex XV-B shall be subject to an import duty into the EU with exemption of the *ad valorem* component of that import duty.
4. The elimination of certain customs duties by the Republic of Moldova as set out in Annex XV-D shall take place in accordance with the following modalities:
   (a) the customs duties for the items in staging category '5' in the Republic of Moldova's Schedule shall be eliminated in 6 equal stages, starting on the date of entry into force of this Agreement, with the following reductions taking place on 1 January of the next 5 years following the date of entry into force of this Agreement;
   (b) the customs duties for the items in staging category '3' in the Republic of Moldova's Schedule shall be eliminated in 4 equal stages starting on the date of entry into force of this Agreement, with the following reductions taking place on 1 January of the next 3 years following the date of the entry into force of this Agreement;
   (c) the customs duties for the items in staging category '10-A' in the Republic of Moldova's Schedule shall be eliminated in 10 equal annual stages starting on 1 January of the year following the date of entry into force of this Agreement;
   (d) the customs duties for the items in staging category '5-A' in the Republic of Moldova's Schedule shall be eliminated in 5 equal annual stages starting on 1 January of the year following the date of entry into force of this Agreement;
   (e) the customs duties for the items in staging category '3-A' in the Republic of Moldova's Schedule shall be eliminated in 3 equal annual stages starting on 1 January of the year following the date of entry into force of this Agreement;
   (f) the elimination of customs duties for products in staging category '10-S' (products subject to a 5-year standstill) shall start on 1 January of the fifth year following the entry into force of this Agreement.
5. The import of products originating in the Republic of Moldova listed in Annex XV-C shall be subject to the Union anti-circumvention mechanism set out in Article 148 of this Agreement.

ANNEX XV-A

PRODUCTS SUBJECT TO ANNUAL DUTY-FREE TARIFF-RATE QUOTAS (UNION)

Order No	CN code 2012	Product description	Volume (tonnes)	Rate of duty
1	0702 00 00	Tomatoes, fresh or chilled	2 000	free
2	0703 20 00	Garlic, fresh or chilled	220	free
3	0806 10 10	Table grapes, fresh	10 000	free
4	0808 10 80	Apples, fresh (excl. cider apples, in bulk, from 16 September to 15 December)	40 000	free
5	0809 40 05	Plums, fresh	10 000	free
6	2009 61 10	Grape juice, incl. grape must, unfermented, Brix value <= 30 at 20 °C, value of > EUR 18 per 100 kg, whether or not containing added sugar or other sweetening matter (excl. containing spirit)	500	free
	2009 69 19	Grape juice, incl. grape must, unfermented, Brix value > 67 at 20 °C, value of > EUR 22 per 100 kg, whether or not containing added sugar or other sweetening matter (excl. containing spirit)		
	2009 69 51	Concentrated grape juice, incl. grape must, unfermented, Brix value > 30 but <= 67 at 20 °C, value of > EUR 18 per 100 kg, whether or not containing added sugar or other sweetening matter (excl. containing spirit)		
	2009 69 59	Grape juice, incl. grape must, unfermented, Brix value > 30 but <= 67 at 20 °C, value of > EUR 18 per 100 kg, whether or not containing added sugar or other sweetening matter (excl. concentrated or containing spirit)		

ANNEX XV-B

PRODUCTS SUBJECT TO ENTRY PRICE [1]

for which the *ad valorem* component of the import duty is exempted (UNION)

CN code 2012	Product description
0707 00 05	Cucumbers, fresh or chilled
0709 91 00	Globe artichokes, fresh or chilled
0709 93 10	Courgettes, fresh or chilled
0805 10 20	Sweet oranges, fresh
0805 20 10	Clementines
0805 20 30	Monreales and satsumas
0805 20 50	Mandarins and wilkings
0805 20 70	Tangerines
0805 20 90	Tangelos, ortaniques, malaquinas and similar citrus hybrids (excl. clementines, monreales, satsumas, mandarins, wilkings and tangerines)
0805 50 10	Lemons 'Citrus limon, Citrus limonum'
0808 30 90	Pears (excl. perry pears in bulk from 1 August to 31 December)
0809 10 00	Apricots, fresh
0809 21 00	Sour cherries 'Prunus cerasus', fresh
0809 29 00	Cherries (excl. sour cherries), fresh
0809 30 10	Nectarines, fresh
0809 30 90	Peaches (excl. nectarines), fresh
2204 30 92	Grape must, unfermented, concentrated within the meaning of Additional Note 7 to chapter 22, of a density <= 1,33 g/cm³ at 20 °C and of an actual alcoholic strength <= 1 % vol but > 0,5 % vol (excl. grape must whose fermentation has been arrested by the addition of alcohol)
2204 30 94	Grape must, unfermented, non-concentrated, of a density <= 1,33 g/cm³ at 20 °C and of an actual alcoholic strength <= 1 % vol but > 0,5 % vol (excl. grape must whose fermentation has been arrested by the addition of alcohol)
2204 30 96	Grape must, unfermented, concentrated within the meaning of Additional Note 7 to chapter 22, of a density > 1,33 g/cm³ at 20 °C and of an actual alcoholic strength <= 1 % vol but > 0,5 % vol (excl. grape must whose fermentation has been arrested by the addition of alcohol)
2204 30 98	Grape must, unfermented, non-concentrated, of a density > 1,33 g/cm³ at 20 °C and of an actual alcoholic strength <= 1 % vol but > 0,5 % vol (excl. grape must whose fermentation has been arrested by the addition of alcohol)

[1] See Annex 2 to the Commission Implementing Regulation (EU) No 927/2012 of 9 October 2012 amending Annex I to Council Regulation (EEC) No 2658/87 on the tariff and statistical nomenclature and on the Common Customs Tariff.

ANNEX XV-C

PRODUCTS SUBJECT TO ANTI-CIRCUMVENTION MECHANISM (UNION)

Product category	CN code 2012	Product description	Trigger volume (tonnes)
Agricultural products			
1 **Pig meat**	0203 11 10	Fresh or chilled domestic swine carcases and half-carcases	**4 500**
	0203 12 11	Fresh or chilled with bone in, domestic swine hams and cuts thereof	
	0203 12 19	Fresh or chilled with bone in, domestic swine shoulders and cuts thereof	
	0203 19 11	Fresh or chilled fore-ends and cuts thereof of domestic swine	
	0203 19 13	Fresh or chilled loins and cuts thereof of domestic swine	
	0203 19 15	Fresh or chilled bellies 'streaky' and cuts thereof of domestic swine	
	0203 19 55	Fresh or chilled boneless meat of domestic swine (excl. bellies and cuts thereof)	
	0203 19 59	Fresh or chilled meat of domestic swine, with bone in (excl. carcases and half-carcases, hams, shoulders and cuts thereof, and fore-ends, loins, bellies and cuts thereof)	
	0203 21 10	Frozen domestic swine carcases and half-carcases	
	0203 22 11	Frozen hams and cuts thereof of domestic swine, with bone in	
	0203 22 19	Frozen shoulders and cuts thereof of domestic swine, with bone in	
	0203 29 11	Frozen fore-ends and cuts thereof of domestic swine	
	0203 29 13	Frozen loins and cuts thereof of domestic swine, with bone in	
	0203 29 15	Frozen bellies 'streaky' and cuts thereof of domestic swine	
	0203 29 55	Frozen boneless meat of domestic swine (excl. bellies and cuts thereof)	
	0203 29 59	Frozen meat of domestic swine, with bone in (excl. fore-ends, loins, bellies and cuts thereof)	
2 **Poultry meat**	0207 11 30	Fresh or chilled, plucked and drawn fowls of species Gallus domesticus, without heads and feet but with necks, hearts, livers and gizzards, known as '70 % chickens'	**600**

Product category	CN code 2012	Product description	Trigger volume (tonnes)
	0207 11 90	Fresh or chilled, plucked and drawn fowls of species Gallus domesticus, without heads, feet, necks, hearts, livers and gizzards, known as '65 % chickens', and other forms of fresh or chilled fowl, not cut in pieces (excl. '83 % and 70 % chickens')	
	0207 12 10	Frozen fowls of species Gallus domesticus, plucked and drawn, without heads and feet but with necks, hearts, livers and gizzards, known as '70 % chickens'	
	0207 12 90	Frozen fowls of species Gallus domesticus, plucked and drawn, without heads, feet, necks, hearts, livers and gizzards, known as '65 % chickens', and other forms of fowl, not cut in pieces (excl. '70 % chickens')	
	0207 13 10	Fresh or chilled boneless cuts of fowls of the species Gallus domesticus	
	0207 13 20	Fresh or chilled halves or quarters of fowls of the species Gallus domesticus	
	0207 13 30	Fresh or chilled whole wings, with or without tips, of fowls of the species Gallus domesticus	
	0207 13 50	Fresh or chilled breasts and cuts thereof of fowls of the species Gallus domesticus, with bone in	
	0207 13 60	Fresh or chilled legs and cuts thereof of fowls of the species Gallus domesticus, with bone in	
	0207 13 99	Fresh or chilled edible offal of fowls of the species Gallus domesticus (excl. livers)	
	0207 14 10	Frozen boneless cuts of fowls of the species Gallus domesticus	
	0207 14 20	Frozen halves or quarters of fowls of the species Gallus domesticus	
	0207 14 30	Frozen whole wings, with or without tips, of fowls of the species Gallus domesticus	
	0207 14 50	Frozen breasts and cuts thereof of fowls of the species Gallus domesticus, with bone in	
	0207 14 60	Frozen legs and cuts thereof of fowls of the species Gallus domesticus, with bone in	
	0207 14 99	Frozen edible offal of fowls of the species Gallus domesticus (excl. livers)	
	0207 24 10	Fresh or chilled, plucked and drawn turkeys of the species domesticus, without heads and feet but with necks, hearts, livers and gizzards, known as '80 % turkeys'	

Product category	CN code 2012	Product description	Trigger volume (tonnes)
	0207 24 90	Fresh or chilled, plucked and drawn turkeys of the species domesticus, without heads, feet, necks, hearts, livers and gizzards, known as '73 % turkeys', and other forms of fresh or chilled turkeys, not cut in pieces (excl. '80 % turkeys')	
	0207 25 10	Frozen turkeys of the species domesticus, plucked and drawn, without heads and feet but with necks, hearts, livers and gizzards, known as '80 % turkeys'	
	0207 25 90	Frozen turkeys of the species domesticus, plucked and drawn, without heads, feet, necks, hearts, livers and gizzards, known as '73 % turkeys', and other forms of turkeys, not cut in pieces (excl. '80 % turkeys')	
	0207 26 10	Fresh or chilled boneless cuts of turkeys of the species domesticus	
	0207 26 20	Fresh or chilled halves or quarters of turkeys of the species domesticus	
	0207 26 30	Fresh or chilled whole wings, with or without tips, of turkeys of the species domesticus	
	0207 26 50	Fresh or chilled breasts and cuts thereof of turkeys of the species domesticus, with bone in	
	0207 26 60	Fresh or chilled drumsticks and cuts thereof of turkeys of the species domesticus, with bone in	
	0207 26 70	Fresh or chilled legs and cuts thereof of turkeys of the species domesticus, with bone in (excl. drumsticks)	
	0207 26 80	Fresh or chilled cuts of turkeys of the species domesticus, with bone in (excl. halves or quarters, whole wings, with or without tips, backs, necks, backs with necks attached, rumps and wingtips, breasts, legs and cuts thereof)	
	0207 26 99	Fresh or chilled edible offal of turkeys of the species domesticus (excl. livers)	
	0207 27 10	Frozen boneless cuts of turkeys of the species domesticus	
	0207 27 20	Frozen halves and quarters of turkeys of the species domesticus	
	0207 27 30	Frozen whole wings, with or without tips, of turkeys of the species domesticus	
	0207 27 50	Frozen breasts and cuts thereof of turkeys of the species domesticus, with bone in	

Product category	CN code 2012	Product description	Trigger volume (tonnes)
	0207 27 60	Frozen drumsticks and cuts thereof of turkeys of the species domesticus, with bone in	
	0207 27 70	Frozen legs and cuts thereof of turkeys of the species domesticus, with bone in (excl. drumsticks)	
	0207 27 80	Frozen cuts of turkeys of the species domesticus, with bone in (excl. halves or quarters, whole wings, with or without tips, backs, necks, backs with necks attached, rumps and wing-tips, breasts, legs and cuts thereof)	
	0207 27 99	Frozen edible offal of turkeys of the species domesticus (excl. livers)	
	0207 41 30	Fresh or chilled domestic ducks, not cut in pieces, plucked and drawn, without heads and feet but with necks, hearts, livers and gizzard '70 % ducks'	
	0207 41 80	Fresh or chilled domestic ducks, not cut in pieces, plucked and drawn, without heads and feet and without necks, hearts, livers and gizzards, '63 % ducks' or otherwise presented	
	0207 42 30	Frozen domestic ducks, not cut in pieces, plucked and drawn, without heads and feet but with necks, hearts, livers and gizzards '70 % ducks'	
	0207 42 80	Frozen domestic ducks, not cut in pieces, plucked and drawn, without heads and feet and without necks, hearts, livers and gizzards, '63 % ducks' or otherwise presented	
	0207 44 10	Fresh or chilled cuts of domestic ducks, boneless	
	0207 44 21	Fresh or chilled halves or quarters of domestic ducks	
	0207 44 31	Fresh or chilled whole wings of domestic ducks	
	0207 44 41	Fresh or chilled backs, necks, backs with necks attached, rumps and wing-tips of domestic ducks	
	0207 44 51	Fresh or chilled breasts and cuts thereof, of domestic ducks, with bone in	
	0207 44 61	Fresh or chilled legs and cuts thereof, of domestic ducks, with bone in	
	0207 44 71	Fresh or chilled paletots of domestic ducks, with bone in	
	0207 44 81	Fresh or chilled cuts of domestic ducks, with bone in, n.e.s.	
	0207 44 99	Fresh or chilled edible offal of domestic ducks (excl. livers)	

Product category	CN code 2012	Product description	Trigger volume (tonnes)
	0207 45 10	Frozen cuts of domestic ducks, boneless	
	0207 45 21	Frozen halves or quarters of domestic ducks	
	0207 45 31	Frozen whole wings of domestic ducks	
	0207 45 41	Frozen backs, necks, backs with necks attached, rumps and wing-tips of domestic ducks	
	0207 45 51	Frozen breasts and cuts thereof, of domestic ducks, with bone in	
	0207 45 61	Frozen legs and cuts thereof, of domestic ducks, with bone in	
	0207 45 81	Frozen cuts of domestic ducks, with bone in, n.e.s.	
	0207 45 99	Frozen edible offal of domestic ducks (excl. livers)	
	0207 51 10	Fresh or chilled domestic geese, not cut in pieces, plucked, bled, not drawn, with heads and feet '82 % geese'	
	0207 51 90	Fresh or chilled domestic geese, not cut in pieces, plucked and drawn, without heads and feet, with or without hearts and gizzards, '75 % geese' or otherwise presented	
	0207 52 90	Frozen domestic geese, not cut in pieces, plucked and drawn, without heads and feet, with or without hearts and gizzards, '75 % geese' or otherwise presented	
	0207 54 10	Fresh or chilled cuts of domestic geese, boneless	
	0207 54 21	Fresh or chilled halves or quarters of domestic geese	
	0207 54 31	Fresh or chilled whole wings of domestic geese	
	0207 54 41	Fresh or chilled backs, necks, backs with necks attached, rumps and wing-tips of domestic geese	
	0207 54 51	Fresh or chilled breasts and cuts thereof, of domestic geese, with bone in	
	0207 54 61	Fresh or chilled legs and cuts thereof, of domestic geese, with bone in	
	0207 54 71	Fresh or chilled paletots of domestic geese, with bone in	
	0207 54 81	Fresh or chilled cuts of domestic geese, with bone in, n.e.s.	

Product category	CN code 2012	Product description	Trigger volume (tonnes)
	0207 54 99	Fresh or chilled edible offal of domestic geese (excl. livers)	
	0207 55 10	Frozen cuts of domestic geese, boneless	
	0207 55 21	Frozen halves or quarters of domestic geese	
	0207 55 31	Frozen whole wings of domestic geese	
	0207 55 41	Frozen backs, necks, backs with necks attached, rumps and wing-tips of domestic geese	
	0207 55 51	Frozen breasts and cuts thereof, of domestic geese, with bone in	
	0207 55 61	Frozen legs and cuts thereof, of domestic geese, with bone in	
	0207 55 81	Frozen cuts of domestic geese, with bone in, n.e.s.	
	0207 55 99	Frozen edible offal of domestic geese (excl. livers)	
	0207 60 05	Fresh, chilled or frozen domestic guinea fowls, not cut in pieces	
	0207 60 10	Fresh, chilled or frozen cuts of domestic guinea fowls, boneless	
	0207 60 31	Fresh, chilled or frozen whole wings of domestic guinea fowls	
	0207 60 41	Fresh, chilled or frozen backs, necks, backs with necks attached, rumps and wing-tips of domestic guinea fowls	
	0207 60 51	Fresh, chilled or frozen breasts and cuts thereof, of domestic guinea fowls, with bone in	
	0207 60 61	Fresh, chilled or frozen legs and cuts thereof, of domestic guinea fowls, with bone in	
	0207 60 81	Fresh, chilled or frozen cuts of domestic guinea fowls, with bone in, n.e.s.	
	0207 60 99	Fresh, chilled or frozen edible offal of domestic guinea fowls (excl. livers)	
	1602 32 11	Uncooked, prepared or preserved meat or meat offal of fowls of the species Gallus domesticus containing >= 57 % meat or offal of poultry (excl. sausages and similar products, and preparations of liver)	

Product category	CN code 2012	Product description	Trigger volume (tonnes)
	1602 32 30	Prepared or preserved meat or meat offal of fowls of the species Gallus domesticus containing >= 25 % but < 57 % of poultry meat or offal (excl. sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weights of <=250 g, preparations of liver and meat extracts)	
	1602 32 90	Prepared or preserved meat or meat offal of fowls of the species Gallus domesticus (excl. that containing >= 25 % meat or offal of poultry, meat or offal of turkeys or guinea fowl, sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts and juices)	
3 **Dairy products**	0402 10 11	Milk and cream in solid forms, of a fat content by weight of <= 1,5 %, unsweetened, in immediate packings of <= 2,5 kg	**1 700**
	0402 10 19	Milk and cream in solid forms, of a fat content by weight of <= 1,5 %, unsweetened, in immediate packings of > 2,5 kg	
	0402 10 91	Milk and cream in solid forms, of a fat content by weight of <= 1,5 %, sweetened, in immediate packings of <= 2,5 kg	
	0402 10 99	Milk and cream in solid forms, of a fat content by weight of <= 1,5 %, sweetened, in immediate packings of > 2,5 kg	
	0405 10 11	Natural butter of a fat content, by weight, of >= 80 % but <= 85 %, in immediate packings of a net content of <= 1 kg (excl. dehydrated butter and ghee)	
	0405 10 19	Natural butter of a fat content, by weight, of >= 80 % but <= 85 % (excl. in immediate packings of a net content of <= 1 kg, and dehydrated butter and ghee)	
	0405 10 30	Recombined butter of a fat content, by weight, of >= 80 % but <= 85 % (excl. dehydrated butter and ghee)	
	0405 10 50	Whey butter of a fat content, by weight, of >= 80 % but <= 85 % (excl. dehydrated butter and ghee)	
	0405 10 90	Butter of a fat content, by weight, of > 85 % but <= 95 % (excl. dehydrated butter and ghee)	
4 **Eggs in shell**	0407 21 00	Fresh eggs of domestic fowls, in shell (excl. fertilised for incubation)	**7 000** [1]
	0407 29 10	Fresh poultry eggs, in shell (excl. of fowls, and fertilised for incubation)	

Product category	CN code 2012	Product description	Trigger volume (tonnes)
	0407 29 90	Fresh birds' eggs, in shell (excl. of poultry, and fertilised for incubation)	
	0407 90 10	Poultry eggs, in shell, preserved or cooked	
5 **Eggs and albumins**	0408 91 80	Dried birds' eggs, not in shell, whether or not containing added sugar or other sweetening matter, suitable for human consumption (excl. egg yolks)	**400**
	0408 99 80	Birds' eggs, not in shell, fresh, cooked by steaming or by boiling in water, moulded, frozen or otherwise preserved, whether or not containing added sugar or other sweetening matter, suitable for human consumption (excl. dried and egg yolks)	
6 **Wheat, flour and pellets**	1001 91 90	Wheat seed for sowing (excl. durum, common wheat and spelt)	**75 000**
	1001 99 00	Wheat and meslin (excl. seed for sowing, and durum wheat)	
7 **Barley, flour and pellets**	1003 90 00	Barley (excl. seed for sowing)	**70 000**
8 **Maize, flour and pellets**	1005 90 00	Maize (excl. seed for sowing)	**130 000**
9 **Sugars**	1701 99 10	White sugar, containing in dry state>= 99,5 % sucrose (excl. flavoured or coloured)	**37 400**
		Processed agricultural products	
10 **Cereal processed**	1904 30 00	Bulgur wheat in the form of worked grains, obtained by cooking hard wheat grains	**2 500**
	2207 10 00	Undenatured ethyl alcohol, of actual alcoholic strength of >= 80 %	
	2207 20 00	Denatured ethyl alcohol and other spirits of any strength	
	2208 90 91	Undenatured ethyl alcohol, of an alcoholic strength of < 80 % vol, in containers holding <= 2 l	
	2208 90 99	Undenatured ethyl alcohol, of an alcoholic strength of < 80 % vol, in containers holding > 2 l	
	2905 43 00	Mannitol	
	2905 44 11	D-glucitol 'sorbitol', in aqueous solution containing <= 2 % by weight of d-mannitol, calculated on the d-glucitol content	
	2905 44 19	D-glucitol 'sorbitol' in aqueous solution (excl. containing <= 2 % by weight of d-mannitol, calculated on the d-glucitol content)	

Product category	CN code 2012	Product description	Trigger volume (tonnes)
	2905 44 91	D-glucitol 'sorbitol', containing <= 2 % by weight of d-mannitol, calculated on the d-glucitol content (excl. in aqueous solution)	
	2905 44 99	D-glucitol 'sorbitol' (excl. in aqueous solution and containing <= 2 % by weight of d-mannitol, calculated on the d-glucitol content)	
	3505 10 10	Dextrins	
	3505 10 50	Starches, etherified or esterified (excl. dextrins)	
	3505 10 90	Modified starches (excl. etherified starches, esterified starches and dextrins)	
	3505 20 30	Glues containing >= 25 % but < 55 % starches, dextrins or other modified starches by weight (excl. those put up for retail sale and weighing net <= 1 kg)	
	3505 20 50	Glues containing >= 55 % but < 80 % starches, dextrins or other modified starches by weight (excl. those put up for retail sale and weighing net <= 1 kg)	
	3505 20 90	Glues containing >= 80 % starches, dextrins or other modified starches by weight (excl. those put up for retail sale and weighing net <= 1 kg)	
	3809 10 10	Finishing agents, dye carriers to accelerate the dyeing or fixing of dyestuffs and other products and preparations such as dressings and mordants of a kind used in the textile, paper, leather or like industries, n.e.s., with a basis of amylaceous substances, containing < 55 % of these substances by weight	
	3809 10 30	Finishing agents, dye carriers to accelerate the dyeing or fixing of dyestuffs and other products and preparations such as dressings and mordants of a kind used in the textile, paper, leather or like industries, n.e.s., with a basis of amylaceous substances, containing >=55 % to < 70 % of these substances by weight	
	3809 10 50	Finishing agents, dye carriers to accelerate the dyeing or fixing of dyestuffs and other products and preparations such as dressings and mordants of a kind used in the textile, paper, leather or like industries, n.e.s., with a basis of amylaceous substances, containing >=70 % to < 83 % of these substances by weight	
	3809 10 90	Finishing agents, dye carriers to accelerate the dyeing or fixing of dyestuffs and other products and preparations such as dressings and mordants of a kind used in the textile, paper, leather or like industries, n.e.s., with a basis of amylaceous substances, containing >=83 % of these substances by weight	

Product category	CN code 2012	Product description	Trigger volume (tonnes)
	3824 60 11	Sorbitol in aqueous solution, containing <= 2 % by weight of d-mannitol, calculated on the d-glucitol content (excl. dglucitol [sorbitol])	
	3824 60 19	Sorbitol in aqueous solution, containing > 2 % by weight of d-mannitol, calculated on the d-glucitol content (excl. dglucitol [sorbitol])	
	3824 60 91	Sorbitol containing <= 2 % by weight of d-mannitol, calculated on the d-glucitol content (excl. sorbitol in aqueous solution and dglucitol [sorbitol])	
	3824 60 99	Sorbitol containing > 2 % by weight of d-mannitol, calculated on the d-glucitol content (excl. sorbitol in aqueous solution and dglucitol [sorbitol])	
11 **Cigarettes**	2402 10 00	Cigars, cheroots and cigarillos containing tobacco	**1 000 or 1 billion pieces** (2)
	2402 20 90	Cigarettes, containing tobacco (excl. containing cloves)	
12 **Dairy processed**	0405 20 10	Dairy spreads of a fat content, by weight, of 39 % or more but less than 60 %	**500**
	0405 20 30	Dairy spreads of a fat content, by weight, of >= 60 % but <= 75 %	
	1806 20 70	Chocolate milk crumb preparations in containers or immediate packings of a content of > 2 kg	
	2106 10 80	Protein concentrates and textured protein substances, containing, by weight, >= 1,5 % milkfat, >= 5 % sucrose or isoglucose, >= 5 % glucose or starch	
	2202 90 99	Other non-alcoholic beverages, not including fruit or vegetable juice of heading 2009, containing by weight 2 % or more of fat obtained from the products of headings 0401 to 0404	
13 **Sugar processed**	1302 20 10	Dry pectic substances, pectinates and pectates in powder form	**4 200**
	1302 20 90	Liquid pectic substances, pectinates and pectates	
	1702 50 00	Chemically pure fructose in solid form	
	1702 90 10	Chemically pure maltose, in solid form	
	1704 90 99	Pastes, marzipan, nougat and other prepared sugar confectionery, not containing cocoa (excl. chewing gum, white chocolate, throat pastilles and cough drops, gum and jelly confectionery incl. fruit pastes in the form of sugar confectionery, boiled sweets, toffees, caramels and similar sweets, compressed tablets, and pastes incl. marzipan in immediate packings of >=1 kg)	

Product category	CN code 2012	Product description	Trigger volume (tonnes)
	1806 10 30	Sweetened cocoa powder, containing >= 65 % but < 80 % sucrose, incl. inverted sugar expressed as sucrose or isoglucose expressed as sucrose	
	1806 10 90	Sweetened cocoa powder, containing >= 80 % sucrose, incl. inverted sugar expressed as sucrose or isoglucose expressed as sucrose	
	1806 20 95	Chocolate and other food preparations containing cocoa, in blocks, slabs or bars weighing > 2 kg or in liquid, paste, powder, granular or other bulk form, in containers or immediate packings of a content > 2 kg, containing < 18 % by weight of cocoa butter	
	1901 90 99	Food preparations of flour, groats, meal, starch or malt extract, not containing cocoa or containing cocoa in a proportion by weight of < 40 %, calculated on a totally defatted basis, and food preparations of milk, cream, butter milk, sour milk, sour cream	
	2101 12 98	Preparations with a basis of coffee	
	2101 20 98	Preparations with a basis of tea or maté	
	2106 90 98	Food preparations, n.e.s., containing, by weight, >= 1,5 % milkfat, >= 5 % sucrose or isoglucose, >= 5 % glucose or >= 5 % starch	
	3302 10 29	Preparations based on odoriferous substances, containing all flavouring agents characterizing a beverage, containing, by weight, >= 1,5 % milkfat, >= 5 % sucrose or isoglucose, >= 5 % glucose or >= 5 % starch, of a kind used in the drink industries (excl. of an actual alcoholic strength of > 0,5 % vol)	
14 **Sweet corn**	0710 40 00	Sweet corn, uncooked or cooked by steaming or by boiling in water, frozen	**1 500**
	0711 90 30	Sweet corn provisionally preserved, e.g. by sulphur dioxide gas, in brine, in sulphur water or in other preservative solutions, but unsuitable in that state for immediate consumption	
	2001 90 30	Sweet corn 'Zea mays var. saccharata', prepared or preserved by vinegar or acetic acid	
	2004 90 10	Sweet corn 'Zea mays var. saccharata', prepared or preserved otherwise than by vinegar or acetic acid, frozen	
	2005 80 00	Sweet corn 'Zea mays var. saccharata', prepared or preserved otherwise than by vinegar or acetic acid (excl. frozen)	

(1) 140 mln × 50 gr = 7 000 t
(2) Provided that 1 piece weighs approximately 1 g.

ANNEX XV-D

SCHEDULE OF CONCESSIONS (REPUBLIC OF MOLDOVA)

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0203 11 10	Fresh or chilled domestic swine carcases and half-carcases	20 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 12 11	Fresh or chilled with bone in, domestic swine hams and cuts thereof	20 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 12 19	Fresh or chilled with bone in, domestic swine shoulders and cuts thereof	20 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 19 11	Fresh or chilled fore-ends and cuts thereof of domestic swine	20 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 19 13	Fresh or chilled loins and cuts thereof of domestic swine	20 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 19 15	Fresh or chilled bellies 'streaky' and cuts thereof of domestic swine	20 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 19 55	Fresh or chilled boneless meat of domestic swine (excl. bellies and cuts thereof)	20 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 19 59	Fresh or chilled meat of domestic swine, with bone in (excl. carcases and half-carcases, hams, shoulders and cuts thereof, and fore-ends, loins, bellies and cuts thereof)	20 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 21 10	Frozen domestic swine carcases and half-carcases	20 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 22 11	Frozen hams and cuts thereof of domestic swine, with bone in	20 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 22 19	Frozen shoulders and cuts thereof of domestic swine, with bone in	20 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 29 11	Frozen fore-ends and cuts thereof of domestic swine	10 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 29 13	Frozen loins and cuts thereof of domestic swine, with bone in	10 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 29 15	Frozen bellies 'streaky' and cuts thereof of domestic swine	10 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 29 55	Frozen boneless meat of domestic swine (excl. bellies and cuts thereof)	10 % + 200 EUR/t	TRQ 1 (4 000 t)
0203 29 59	Frozen boneless meat of domestic swine, with bone in (excl. carcases and half-carcases, hams, shoulders and cuts thereof, and fore-ends, loins, bellies and cuts thereof)	10 % + 200 EUR/t	TRQ 1 (4 000 t)

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0206 30 00	Fresh or chilled edible offal of swine	15	10-S
0206 41 00	Frozen edible livers of swine	15	10-S
0206 49 20	Frozen edible offal of domestic swine (excl. livers)	15	10-S
0207 11 10	Fresh or chilled, plucked and gutted fowls of species Gallus domesticus, with heads and feet, known as '83 % chickens'	20 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 11 30	Fresh or chilled, plucked and drawn fowls of species Gallus domesticus, without heads and feet but with necks, hearts, livers and gizzards, known as '70 % chickens'	20 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 11 90	Fresh or chilled, plucked and drawn fowls of species Gallus domesticus, without heads, feet, necks, hearts, livers and gizzards, known as '65 % chickens', and other forms of fresh or chilled fowl, not cut in pieces (excl. '83 % and 70 % chickens')	20 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 12 10	Frozen fowls of species Gallus domesticus, plucked and drawn, without heads and feet but with necks, hearts, livers and gizzards, known as '70 % chickens'	15 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 12 90	Frozen fowls of species Gallus domesticus, plucked and drawn, without heads, feet, necks, hearts, livers and gizzards, known as '65 % chickens', and other forms of fowl, not cut in pieces (excl. '70 % chickens')	15 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 13 10	Fresh or chilled boneless cuts of fowls of the species Gallus domesticus	20 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 13 20	Fresh or chilled halves or quarters of fowls of the species Gallus domesticus	20 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 13 30	Fresh or chilled whole wings, with or without tips, of fowls of the species Gallus domesticus	20 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 13 50	Fresh or chilled breasts and cuts thereof of fowls of the species Gallus domesticus, with bone in	20 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 13 60	Fresh or chilled legs and cuts thereof of fowls of the species Gallus domesticus, with bone in	20 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 13 99	Fresh or chilled edible offal of fowls of the species Gallus domesticus (excl. livers)	20 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 14 10	Frozen boneless cuts of fowls of the species Gallus domesticus	15 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 14 20	Frozen halves or quarters of fowls of the species Gallus domesticus	15 % + 100 EUR/t	TRQ 2 (4 000 t)

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0207 14 30	Frozen whole wings, with or without tips, of fowls of the species Gallus domesticus	15 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 14 40	Frozen backs, necks, backs with necks attached, rumps and wing-tips of fowls of the species Gallus domesticus	15 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 14 50	Frozen breasts and cuts thereof of fowls of the species Gallus domesticus, with bone in	15 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 14 60	Frozen legs and cuts thereof of fowls of the species Gallus domesticus, with bone in	15 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 14 70	Frozen cuts of fowls of the species Gallus domesticus, with bone in (excl. halves or quarters, whole wings, with or without tips, backs, necks, backs with necks attached, rumps and wing-tips, breasts, legs and cuts thereof)	15 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 14 91	Frozen edible livers of fowls of the species Gallus domesticus	15 % + 100 EUR/t	TRQ 2 (4 000 t)
0207 14 99	Frozen edible offal of fowls of the species Gallus domesticus (excl. livers)	15 % + 100 EUR/t	TRQ 2 (4 000 t)
0210 99 41	Edible domestic swine livers, salted, in brine, dried or smoked	15	10-A
0210 99 49	Edible domestic swine offal, salted, in brine, dried or smoked (excl. livers)	15	10-A
0401 10 10	Milk and cream of a fat content by weight of <= 1 %, in immediate packings of <= 2 l, not concentrated nor containing added sugar or other sweetening matter	15	TRQ 3 (1 000 t)
0401 10 90	Milk and cream of a fat content by weight of <= 1 %, not concentrated nor containing added sugar or other sweetening matter (excl. in immediate packings of <= 2 l)	15	TRQ 3 (1 000 t)
0401 20 11	Milk and cream of a fat content by weight of <= 3 % but > 1 %, in immediate packings of <= 2 l, not concentrated nor containing added sugar or other sweetening matter	15	TRQ 3 (1 000 t)
0401 20 19	Milk and cream of a fat content by weight of <= 3 % but > 1 %, not concentrated nor containing added sugar or other sweetening matter (excl. in immediate packings of <= 2 l)	15	TRQ 3 (1 000 t)
0401 20 91	Milk and cream of a fat content by weight of > 3 % but <= 6 %, in immediate packings of <= 2 l, not concentrated nor containing added sugar or other sweetening matter	15	TRQ 3 (1 000 t)

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0401 20 99	Milk and cream of a fat content by weight of > 3 % but <= 6 %, not concentrated nor containing added sugar or other sweetening matter (excl. in immediate packings of <= 2 l)	15	TRQ 3 (1 000 t)
0401 30 11	Milk and cream of a fat content by weight of <= 21 % but > 6 %, in immediate packings of <= 2 l, not concentrated nor containing added sugar or other sweetening matter	15	TRQ 3 (1 000 t)
0401 30 19	Milk and cream of a fat content by weight of <= 21 % but > 6 %, not concentrated nor containing added sugar or other sweetening matter (excl. in immediate packings of <= 2 l)	15	TRQ 3 (1 000 t)
0401 30 31	Milk and cream of a fat content by weight of > 21 % but <= 45 %, in immediate packings of <= 2 l, not concentrated nor containing added sugar or other sweetening matter	15	TRQ 3 (1 000 t)
0401 30 39	Milk and cream of a fat content by weight of > 21 % but <= 45 %, not concentrated nor containing added sugar or other sweetening matter (excl. in immediate packings of <= 2 l)	15	TRQ 3 (1 000 t)
0401 30 91	Milk and cream of a fat content by weight of > 45 %, in immediate packings of <= 2 l, not concentrated nor containing added sugar or other sweetening matter	15	TRQ 3 (1 000 t)
0401 30 99	Milk and cream of a fat content by weight of > 45 %, not concentrated nor containing added sugar or other sweetening matter (excl. in immediate packings of <= 2 l)	15	TRQ 3 (1 000 t)
0402 10 11	Milk and cream in solid forms, of a fat content by weight of <= 1,5 %, unsweetened, in immediate packings of <= 2,5 kg	10	10-A
0402 10 19	Milk and cream in solid forms, of a fat content by weight of <= 1,5 %, unsweetened, in immediate packings of > 2,5 kg	10	10-A
0402 10 91	Milk and cream in solid forms, of a fat content by weight of <= 1,5 %, sweetened, in immediate packings of <= 2,5 kg	10	10-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0402 10 99	Milk and cream in solid forms, of a fat content by weight of <= 1,5 %, sweetened, in immediate packings of > 2,5 kg	10	10-A
0402 21 11	Milk and cream in solid forms, of a fat content by weight of > 1,5 %, unsweetened, in immediate packings of <= 2,5 kg	10	10-A
0402 21 17	Milk and cream in solid forms, of a fat content by weight of <= 11 % but > 1,5 %, unsweetened, in immediate packings of > 2,5 kg or put up otherwise	10	10-A
0402 21 19	Milk and cream in solid forms, of a fat content by weight of > 11 % but <= 27 %, unsweetened, in immediate packings of > 2,5 kg or put up otherwise	10	10-A
0402 21 91	Milk and cream in solid forms, of a fat content by weight of > 27 %, unsweetened, in immediate packings of <= 2,5 kg	10	10-A
0402 21 99	Milk and cream in solid forms, of a fat content by weight of > 27 %, unsweetened, in immediate packings of > 2,5 kg	10	10-A
0402 29 15	Milk and cream in solid forms, of a fat content by weight of <= 27 % but > 1,5 %, sweetened, in immediate packings of <= 2,5 kg (excl. for infants in hermetically sealed containers of <= 500 g)	10	10-A
0402 29 19	Milk and cream in solid forms, of a fat content by weight of <= 27 % but > 1,5 %, sweetened, in immediate packings of > 2,5 kg	10	10-A
0402 29 91	Milk and cream in solid forms, of a fat content by weight of > 27 %, sweetened, in immediate packings of <= 2,5 kg	10	10-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0402 29 99	Milk and cream in solid forms, of a fat content by weight of > 27 %, sweetened, in immediate packings of > 2,5 kg	10	10-A
0402 91 11	Milk and cream, concentrated, of a fat content by weight of <= 8 %, unsweetened, in immediate packings of <= 2,5 kg (excl. in solid forms)	10	10-A
0402 91 19	Milk and cream, concentrated, of a fat content by weight of <= 8 %, unsweetened, in immediate packings of > 2,5 kg (excl. in solid forms)	10	10-A
0402 91 31	Milk and cream, concentrated, of a fat content by weight of > 8 %, but <= 10 %, unsweetened, in immediate packings of <= 2,5 kg (excl. in solid forms)	10	10-A
0402 91 39	Milk and cream, concentrated, of a fat content by weight of > 8 %, but <= 10 %, unsweetened, in immediate packings of > 2,5 kg (excl. in solid forms)	10	10-A
0402 91 51	Milk and cream, concentrated, of a fat content by weight of > 10 % but <= 45 %, unsweetened, in immediate packings of <= 2,5 kg (excl. in solid forms)	10	10-A
0402 91 59	Milk and cream, concentrated, of a fat content by weight of > 10 % but <= 45 %, unsweetened, in immediate packings of > 2,5 kg (excl. in solid forms)	10	10-A
0402 91 91	Milk and cream, concentrated, of a fat content by weight of > 45 %, unsweetened, in immediate packings of <= 2,5 kg (excl. in solid forms)	10	10-A
0402 91 99	Milk and cream, concentrated, of a fat content by weight of > 45 %, unsweetened, in immediate packings of > 2,5 kg (excl. in solid forms)	10	10-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0402 99 11	Milk and cream, concentrated, of a fat content by weight of <= 9,5 %, sweetened, in immediate packings of <= 2,5 kg (excl. in solid forms)	10	10-A
0402 99 19	Milk and cream, concentrated, of a fat content by weight of <= 9,5 %, sweetened, in immediate packings of > 2,5 kg (excl. in solid forms)	10	10-A
0402 99 31	Milk and cream, concentrated, of a fat content by weight of > 9,5 % but <= 45 %, sweetened, in immediate packings of <= 2,5 kg (excl. in solid forms)	10	10-A
0402 99 39	Milk and cream, concentrated, of a fat content by weight of > 9,5 % but <= 45 %, sweetened, in immediate packings of > 2,5 kg (excl. in solid forms)	10	10-A
0402 99 91	Milk and cream, concentrated, of a fat content by weight of > 45 %, sweetened, in immediate packings of <= 2,5 kg (excl. in solid forms)	10	10-A
0402 99 99	Milk and cream, concentrated, of a fat content by weight of > 45 %, sweetened, in immediate packings of > 2,5 kg (excl. in solid forms)	10	10-A
0405 10 11	Natural butter of a fat content, by weight, of >= 80 % but <= 85 %, in immediate packings of a net content of <= 1 kg (excl. dehydrated butter and ghee)	15 % + 500 EUR/t	TRQ 3 (1 000 t)
0405 10 19	Natural butter of a fat content, by weight, of >= 80 % but <= 85 % (excl. in immediate packings of a net content of <= 1 kg, and dehydrated butter and ghee)	15 % + 500 EUR/t	TRQ 3 (1 000 t)
0405 10 30	Recombined butter of a fat content, by weight, of >= 80 % but <= 85 % (excl. dehydrated butter and ghee)	15 % + 500 EUR/t	TRQ 3 (1 000 t)
0405 10 50	Whey butter of a fat content, by weight, of >= 80 % but <= 85 % (excl. dehydrated butter and ghee)	15 % + 500 EUR/t	TRQ 3 (1 000 t)
0405 10 90	Butter of a fat content, by weight, of > 85 % but <= 95 % (excl. dehydrated butter and ghee)	15 % + 500 EUR/t	TRQ 3 (1 000 t)

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0405 20 10	Dairy spreads of a fat content, by weight, of >= 39 % but < 60 %	20 % + 500 EUR/t	TRQ 3 (1 000 t)
0405 20 30	Dairy spreads of a fat content, by weight, of >= 60 % but <= 75 %	20 % + 500 EUR/t	TRQ 3 (1 000 t)
0405 20 90	Dairy spreads of a fat content, by weight, of > 75 % but < 80 %	20 % + 500 EUR/t	TRQ 3 (1 000 t)
0405 90 10	Fats and oils derived from milk, of a fat content, by weight, of >= 99,3 % and of a water content, by weight, of <= 0,5 %	20 % + 500 EUR/t	TRQ 3 (1 000 t)
0405 90 90	Fats and oils derived from milk, dehydrated butter and ghee (excl. of a fat content, by weight, of >= 99,3 % and a water content, by weight, of <= 0,5 %, and natural butter, recombined butter and whey butter)	20 % + 500 EUR/t	TRQ 3 (1 000 t)
0406 10 20	Fresh cheese 'unripened or uncured cheese', incl. whey cheese and curd of a fat content, by weight, of <= 40 %	10	5-A
0406 10 80	Fresh cheese 'unripened or uncured cheese', incl. whey cheese and curd of a fat content, by weight, of > 40 %	10	5-A
0406 20 90	Grated or powdered cheese (excl. glarus herb cheese, known as Schabziger)	10	5-A
0406 30 10	Processed cheese, not grated or powdered, in the manufacture of which no cheeses other than Emmentaler, Gruyère and Appenzell have been used and which May contain, as an addition, Glarus herb cheese 'known as Schabziger'; put up for retail sale, of a fat content by weight in the dry matter of <= 56 %	10	3-A
0406 30 31	Processed cheese, not grated or powdered, of a fat content, by weight, of <= 36 % and of a fat content, by weight, in the dry matter of <= 48 % (excl. processed cheese mixtures made from Emmentaler, Gruyère and Appenzell, with or without the addition of Glarus herb cheese known as Schabziger, put up for retail sale)	10	3-A
0406 30 39	Processed cheese, not grated or powdered, of a fat content, by weight, of <= 36 % and of a fat content, by weight, in the dry matter of > 48 % (excl. processed cheese mixtures made from Emmentaler, Gruyère and Appenzell, with or without the addition of Glarus herb cheese known as Schabziger, put up for retail sale, of a fat content by weight in the dry matter of <= 56 %)	10	3-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0406 30 90	Processed cheese, not grated or powdered, of a fat content, by weight, of > 36 % (excl. processed cheese mixtures made from Emmentaler, Gruyère and Appenzell, with or without the addition of Glarus herb cheese known as Schabziger, put up for retail sale, of a fat content by weight in the dry matter of <= 56 %)	10	3-A
0406 90 01	Cheese for processing (excl. fresh cheese, incl. whey cheese, curd, processed cheese, blue-veined cheese and other cheese containing veins produced by 'Penicillium roqueforti', and grated or powdered cheese):	10	5-A
0406 90 13	Emmentaler (excl. grated or powdered and that for processing)	10	5-A
0406 90 21	Cheddar (excl. grated or powdered and for processing)	10	5-A
0406 90 23	Edam (excl. grated or powdered and for processing)	10	5-A
0406 90 25	Tilsit (excl. grated or powdered and for processing)	10	5-A
0406 90 27	Butterkäse (excl. grated or powdered and for processing)	10	5-A
0406 90 29	Kashkaval (excl. grated or powdered and for processing)	10	5-A
0406 90 50	Sheep's or buffalo milk cheese, in containers containing brine, or in sheepskin or goatskin bottles (excl. feta)	10	5-A
0406 90 69	Cheese of a fat content by weight of <= 40 % and a water content, by weight, of non-fatty matter of <= 47 %, n.e.s.	10	5-A
0406 90 78	Gouda, of a fat content by weight of <= 40 % and a water content, by weight, of non-fatty matter of > 47 % but <= 72 % (excl. grated or powdered and for processing)	10	5-A
0406 90 86	Cheese, of a fat content by weight of <= 40 % and a water content, by weight, of non-fatty matter of > 47 % but <= 72 %, n.e.s.	10	5-A
0406 90 87	Cheese, of a fat content by weight of <= 40 % and a water content, by weight, of non-fatty matter of > 52 % but <= 62 %, n.e.s.	10	5-A
0406 90 88	Cheese, of a fat content by weight of <= 40 % and a water content, by weight, of non-fatty matter of > 62 % but <= 72 %, n.e.s.	10	5-A
0406 90 93	Cheese, of a fat content by weight of <= 40 % and a water content, by weight, of non-fatty matter of > 72 %, n.e.s.	10	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0406 90 99	Cheese of a fat content by weight of > 40 %, n.e.s.	10	5-A
0702 00 00	Tomatoes, fresh or chilled	from 1 January to 15 March — 10; from 1 April to 31 October — 20; from 16 November to 31 December — 10	5-A
0703 10 19	Onions, fresh or chilled (excl. sets)	15	5-A
0704 10 00	Fresh or chilled cauliflowers and headed broccoli	15	5-A
0704 90 10	White and red cabbages, fresh or chilled	15	5-A
0706 10 00	Fresh or chilled carrots and turnips	15	5-A
0706 90 10	Fresh or chilled celeriac 'rooted celery or German celery'	15	5-A
0706 90 90	Fresh or chilled salad beetroot, salsify, radishes and similar edible roots (excl. carrots, turnips, celeriac and horse-radish)	15	5-A
0707 00 05	Cucumbers, fresh or chilled	from 1 January to 15 March — 10; from 1 April to 31 October — 15; from 16 November to 31 December — 10	5-A
0708 10 00	Fresh or chilled peas 'Pisum sativum', shelled or unshelled	15	5-A
0708 20 00	Fresh or chilled beans 'Vigna spp., Phaseolus spp.', shelled or unshelled	15	5-A
0708 90 00	Fresh or chilled leguminous vegetables, shelled or unshelled (excl. peas 'Pisum sativum' and beans 'Vigna spp., Phaseolus spp.')	15	5-A
0709 30 00	Fresh or chilled aubergines 'eggplants'	15	5-A
0709 51 00	Fresh or chilled mushrooms of the genus 'Agaricus'	15	5-A
0709 60 10	Fresh or chilled sweet peppers	15	5-A
0709 90 70	Fresh or chilled courgettes	15	5-A
0806 10 10	Fresh table grapes	from 1 January to 14 July — 10; from 15 July to 20 November — 15; from 21 November to 31 December — 10	10-S

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0808 10 80	Fresh apples (excl. cider apples, in bulk, from 16 September to 15 December)	from 1 January to 30 June — 10; from 1 July to 31 July — 20; from 1 August to 31 December — 10	10-S
0809 20 05	Fresh sour cherries 'Prunus cerasus'	from 1 January to 20 May — 10; from 21 May to 10 August — 20; from 11 August to 31 December — 10	5-A
0809 20 95	Fresh cherries (excl. sour cherries 'Prunus cerasus')	from 1 January to 20 May — 10; from 21 May to 10 August — 20; from 11 August to 31 December — 10	10-A
0809 30 10	Fresh nectarines	from 1 January to 10 June — 10; from 11 June to 30 September — 20; from 1 October to 31 December — 10	5-A
0809 30 90	Fresh peaches (excl. nectarines)	from 1 January to 10 June — 10; from 11 June to 30 September — 20; from 1 October to 31 December — 10	10-S
0809 40 05	Fresh plums	from 1 January to 10 June — 10; from 11 June to 30 September — 20; from 1 October to 31 December — 10	10-S
0810 10 00	Fresh strawberries	from 1 January to 30 April — 10; from 1 May to 31 July — 20; from 1 August to 31 December — 10	5-A
0810 90 50	Fresh black currants	10	5-A
0810 90 60	Fresh red currants	10	5-A
0810 90 70	Fresh white currants and gooseberries	10	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
0811 10 90	Strawberries, uncooked or cooked by steaming or boiling in water, unsweetened, frozen	15	5-A
0811 20 31	Raspberries, uncooked or cooked by steaming or boiling in water, frozen, unsweetened	15	5-A
0811 20 39	Black currants, uncooked or cooked by steaming or boiling in water, frozen, unsweetened	15	5-A
0811 20 51	Red currants, uncooked or cooked by steaming or boiling in water, frozen, unsweetened	15	5-A
0811 20 59	Blackberries and mulberries, uncooked or cooked by steaming or boiling in water, frozen, unsweetened	15	5-A
0811 20 90	Loganberries, white currants and gooseberries, uncooked or cooked by steaming or boiling in water, frozen, unsweetened	15	5-A
0811 90 75	Sour cherries 'Prunus cerasus', whether or not boiled or steamed, frozen, not containing sugar or other sweetening matter	15	5-A
1601 00 10	Liver sausages and similar products and food preparations based thereon	15	TRQ 4 (1 700 t)
1601 00 91	Uncooked sausages of meat, offal or blood (excl. liver)	15	TRQ 4 (1 700 t)
1601 00 99	Sausages and similar products of meat, offal or blood and food preparations based thereon (excl. liver sausages and uncooked sausages)	15	TRQ 4 (1 700 t)
1602 31 11	Preparations containing exclusively uncooked turkey meat (excl. sausages and similar products)	20	10-A
1602 31 19	Meat or offal of turkeys 'poultry', prepared or preserved, containing >= 57 % by weight of meat or offal of poultry (excl. containing exclusively uncooked turkey meat, sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts)	20	10-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
1602 31 30	Meat or offal of turkeys 'poultry', prepared or preserved, containing >= 25 % but < 57 % by weight of meat or offal of poultry (excl. sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts)	20	10-A
1602 31 90	Meat or offal of turkeys 'poultry', prepared or preserved (excl. containing >= 25 % of meat or offal of poultry, sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts and juices)	20	10-A
1602 32 11	Uncooked, prepared or preserved meat or meat offal of fowls of the species Gallus domesticus containing >= 57 % meat or offal of poultry (excl. sausages and similar products, and preparations of liver)	20	TRQ 4 (1 700 t)
1602 32 19	Cooked, prepared or preserved meat or meat offal of fowls of the species Gallus domesticus containing >= 57 % meat or offal of poultry (excl. sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts)	20	TRQ 4 (1 700 t)
1602 32 30	Prepared or preserved meat or meat offal of fowls of the species Gallus domesticus containing >= 25 % but < 57 % of poultry meat or offal (excl. of turkeys and guinea fowl, sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts)	20	TRQ 4 (1 700 t)
1602 32 90	Prepared or preserved meat or meat offal of fowls of the species Gallus domesticus (excl. that containing >= 25 % meat or offal of poultry, meat or offal of turkeys or guinea fowl, sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts and juices)	20	TRQ 4 (1 700 t)

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
1602 39 21	Uncooked, prepared or preserved meat or meat offal of ducks, geese and guinea fowl of the species domesticus, containing >= 57 % meat or offal of poultry (excl. sausages and similar products, and preparations of liver)	20	10-A
1602 39 29	Cooked, prepared or preserved meat or meat offal of ducks, geese and guinea fowl of the species domesticus, containing >= 57 % meat or offal of poultry (excl. sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts)	20	10-A
1602 39 40	Prepared or preserved meat or meat offal of ducks, geese and guinea fowl of the species domesticus, containing >= 25 % but < 57 % meat or offal of poultry (excl. sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts)	20	10-A
1602 39 80	Prepared or preserved meat or meat offal of ducks, geese and guinea fowl of the species domesticus (excl. that containing >= 25 % meat or offal of poultry, and sausages and similar products, homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts and juices)	20	10-A
1602 41 10	Hams and cuts thereof, of domestic swine, prepared or preserved	20	TRQ 4 (1 700 t)
1602 42 10	Prepared or preserved shoulders and cuts thereof, of domestic swine	20	TRQ 4 (1 700 t)
1602 49 11	Prepared or preserved domestic swine loins and parts thereof, incl. mixtures of loins or hams (excl. collars)	15	TRQ 4 (1 700 t)
1602 49 13	Prepared or preserved domestic swine collars and parts thereof, incl. mixtures of collars and shoulders	15	TRQ 4 (1 700 t)
1602 49 15	Prepared or preserved mixtures of domestic swine hams, shoulders, loins, collars and parts thereof (excl. mixtures of only loins and hams or only collars and shoulders)	15	TRQ 4 (1 700 t)

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
1602 49 19	Meat or offal, incl. mixtures, of domestic swine, prepared or preserved, containing, by weight, >= 80 % of meat or offal of any kind, incl. pork fat and fats of any kind or origin (excl. hams, shoulders, loins, collars and parts thereof, sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of livers and meat extracts)	15	TRQ 4 (1 700 t)
1602 49 30	Prepared or preserved meat, offal and mixtures, of domestic swine, containing >= 40 % but < 80 % meat or offal of any kind and fats of any kind (excl. sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts)	15	TRQ 4 (1 700 t)
1602 49 50	Prepared or preserved meat, offal and mixtures of domestic swine containing < 40 % meat or offal of any kind and fats of any kind (excl. sausages and similar products, homogenised preparations for put up retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts and juices)	15	TRQ 4 (1 700 t)
1602 50 10	Prepared or preserved meat or offal of bovine animals, uncooked, incl. mixtures of cooked meat or offal and uncooked meat or offal (excl. sausages and similar products, and preparations of liver)	15	10-S
1602 50 31	Corned beef, in airtight containers	15	10-A
1602 50 39	Prepared or preserved meat or offal of bovine animals (excl. corned beef),in airtight containers (excl. uncooked; mixtures of cooked meat or offal and uncooked meat or offal)	15	10-S
1602 50 80	Prepared or preserved meat or offal of bovine animals (excl. corned beef), not in airtight containers (excl. uncooked; mixtures of cooked meat or offal and uncooked meat or offal)	15	10-S

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
1602 90 51	Prepared or preserved meat or meat offal containing meat or offal of domestic swine (excl. of poultry, bovine animals, reindeer, game or rabbits, sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts)	15	TRQ 4 (1 700 t)
1602 90 61	Prepared or preserved meat or meat offal, uncooked, containing meat or offal of bovines, incl. mixtures of cooked or uncooked meat and cooked or uncooked offal (excl. of poultry, domestic swine, reindeer, game or rabbits, sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, and preparations of liver)	15	10-A
1602 90 69	Prepared or preserved meat or meat offal, cooked, containing meat or offal of bovine animals (excl. of poultry, domestic swine, game or rabbits, sausages and similar products, finely homogenised preparations put up for retail sale as infant food or for dietetic purposes, in containers of a net weight of <= 250 g, preparations of liver and meat extracts and juices)	15	10-A
1701 11 10	Raw cane sugar, for refining (excl. added flavouring or colouring)	75	TRQ 5 (5 400 t)
1701 11 90	Raw cane sugar (excl. for refining and added flavouring or colouring)	75	TRQ 5 (5 400 t)
1701 12 10	Raw beet sugar, for refining (excl. added flavouring or colouring)	75	TRQ 5 (5 400 t)
1701 12 90	Raw beet sugar (excl. for refining and added flavouring or colouring)	75	TRQ 5 (5 400 t)
1701 91 00	Refined cane or beet sugar, containing added flavouring or colouring, in solid form	75	TRQ 5 (5 400 t)
1701 99 10	White sugar, containing in dry state>= 99,5 % sucrose (excl. flavoured or coloured)	75	TRQ 5 (5 400 t)
1701 99 90	Cane or beet sugar and chemically pure sucrose, in solid form (excl. cane and beet sugar containing added flavouring or colouring, raw sugar and white sugar)	75	TRQ 5 (5 400 t)

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
1702 30 10	Isoglucose in the solid form, not containing fructose or containing in the dry state < 20 % by weight of fructose	75	TRQ 6 (640 t)
1702 30 51	Glucose and glucose syrup, in the form of white crystalline powder, whether or not agglomerated, not containing fructose or containing in the dry state less than 20 % by weight of fructose and containing in the dry state 99 % or more by weight of glucose (excl. isoglucose)	75	TRQ 6 (640 t)
1702 30 59	Glucose and glucose syrup, not containing fructose or containing in the dry state less than 20 % by weight of fructose and containing in the dry state 99 % or more by weight of glucose (excl. isoglucose and glucose and glucose syrup in the form of white crystalline powder, whether or not agglomerated)	75	TRQ 6 (640 t)
1702 30 91	Glucose and glucose syrup, in the form of white crystalline powder, whether or not agglomerated, not containing fructose or containing in the dry state less than 20 % by weight of fructose and containing in the dry state less than 99 % by weight of glucose (excl. isoglucose)	75	TRQ 6 (640 t)
1702 30 99	Glucose in solid form and glucose syrup, not containing added flavouring or colouring matter and not containing fructose or containing in the dry state < 20 % by weight of fructose and < 99 % by weight of glucose (excl. isoglucose and glucose dextrose in the form of white crystalline powder, whether or not agglomerated)	75	TRQ 6 (640 t)
1702 40 10	Isoglucose in solid form, containing in the dry state >= 20 % and < 50 % by weight of fructose (excl. invert sugar)	75	TRQ 6 (640 t)
1702 40 90	Glucose in solid form and glucose syrup, not containing added flavouring or colouring matter, and containing in the dry state >= 20 % and < 50 % by weight of fructose (excl. isoglucose and invert sugar)	75	TRQ 6 (640 t)
1702 50 00	Chemically pure fructose in solid form	75	TRQ 6 (640 t)
1702 60 10	Isoglucose in solid form, containing in the dry state > 50 % by weight of fructose (excl. chemically pure fructose and invert sugar)	75	TRQ 6 (640 t)
1702 60 95	Fructose in solid form and fructose syrup not containing added flavouring or colouring matter and containing in the dry state > 50 % by weight of fructose (excl. isoglucose, inulin syrup, chemically pure fructose and invert sugar)	75	TRQ 6 (640 t)
1702 90 10	Chemically pure maltose, in solid form	75	TRQ 6 (640 t)
1702 90 30	Isoglucose in solid form, containing in the dry state 50 % by weight of fructose, obtained from glucose polymers	75	TRQ 6 (640 t)

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
1702 90 60	Artificial honey, mixed or not mixed with natural honey	75	TRQ 6 (640 t)
1702 90 71	Sugar and molasses, caramelised, containing in the dry state >= 50 % by weight of sucrose	75	TRQ 6 (640 t)
1702 90 75	Sugar and molasses, caramelised, containing in the dry state < 50 % by weight of sucrose, in powder form, whether or not agglomerated	75	TRQ 6 (640 t)
1702 90 79	Sugar and molasses, caramelised, containing in the dry state < 50 % by weight of sucrose (excl. sugar and molasses in powder form, whether or not agglomerated)	75	TRQ 6 (640 t)
1702 90 99	Sugars in solid form, incl. invert sugar, and sugar and sugar syrup blends containing in the dry state 50 % by weight of fructose, not containing added flavouring or colouring matter (excl. cane or beet sugar, chemically pure sucrose and maltose, lactose, maple sugar, glucose, fructose, maltodextrine, and syrups thereof, isoglucose, inulin syrup, artificial honey and caramel)	75	TRQ 6 (640 t)
1902 11 00	Uncooked pasta, not stuffed or otherwise prepared, containing eggs	10	3-A
1902 19 90	Uncooked pasta, not stuffed or otherwise prepared, containing common wheat flour or meal but no eggs	10	5-A
1904 10 10	Prepared foods obtained by swelling or roasting cereals or cereal products based on maize	15	5-A
1904 10 90	Prepared foods obtained by swelling or roasting cereals or cereal products (excl. based on maize or rice)	15	3-A
1904 20 10	Preparations of the muesli type based on unroasted cereal flakes	15	3-A
1904 20 91	Prepared foods obtained from unroasted cereal flakes or from mixtures of unroasted cereal flakes and roasted cereal flakes or swelled cereals, obtained from maize (excl. preparations of the muesli type on the basis of unroasted cereal flakes)	15	3-A
1904 20 99	Prepared foods obtained from unroasted cereal flakes or from mixtures of unroasted and roasted cereal flakes or swelled cereals (excl. obtained from maize or rice and preparations of the muesli type based on unroasted cereal flakes)	15	3-A
1905 10 00	Crisp bread	15	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
1905 31 99	Sweet biscuits, whether or not containing cocoa, containing < 8 % milkfats (excl. coated or covered with chocolate or cocoa preparations and sandwich biscuits)	15	5-A
1905 32 11	Waffles and wafers, whether or not containing cocoa, coated or covered with chocolate or cocoa preparations, in immediate packings of <= 85 g (excl. of a water content, by weight, of > 10 %)	15	3-A
1905 32 99	Waffles and wafers, whether or not containing cocoa, whether or not filled (excl. coated or covered with chocolate or cocoa preparations, salted and those with water content of > 10 %)	15	5-A
1905 40 10	Rusks	15	5-A
1905 90 30	Bread, not containing added honey, eggs, cheese or fruit, whether or not containing in the dry state <= 5 % by weight of either sugars or fats	10	5-A
1905 90 45	Biscuits (excl. sweet biscuits)	10	5-A
1905 90 55	Extruded or expanded products, savoury or salted (excl. crisp bread, rusks, toasted bread, similar toasted products and waffles and wafers)	10	5-A
1905 90 60	Fruit tarts, currant bread, panettone, meringues, Christmas stollen, croissants and other bakers' wares with added sweetener (excl. crisp bread, gingerbread and the like, sweet biscuits, waffles and wafers, and rusks)	10	5-A
1905 90 90	Pizzas, quiches and other unsweetened bakers' wares (excl. crisp bread, gingerbread and the like, sweet biscuits, waffles and wafers, rusks and similar toasted products, bread, communion wafers, empty cachets for pharmaceutical use, sealing wafers, rice paper and similar products)	10	3-A
2001 90 70	Sweet peppers, prepared or preserved by vinegar or acetic acid	20	3-A
2002 10 10	Peeled tomatoes, whole or in pieces, prepared or preserved otherwise than by vinegar or acetic acid	20	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2002 10 90	Unpeeled tomatoes, whole or in pieces, prepared or preserved otherwise than by vinegar or acetic acid	20	5-A
2002 90 11	Tomatoes, prepared or preserved otherwise than by vinegar or acetic acid, with dry matter content of < 12 %, in immediate packings of a net content of > 1 kg (excl. tomatoes whole or in pieces)	20	5-A
2002 90 19	Tomatoes, prepared or preserved otherwise than by vinegar or acetic acid, with dry matter content of < 12 %, in immediate packings of a net content of <= 1 kg (excl. tomatoes whole or in pieces)	20	5-A
2002 90 31	Tomatoes, prepared or preserved otherwise than by vinegar or acetic acid, with dry matter content of >= 12 % but <= 30 %, in immediate packings of a net content of > 1 kg (excl. tomatoes whole or in pieces)	20	3-A
2002 90 39	Tomatoes, prepared or preserved otherwise than by vinegar or acetic acid, with dry matter content of >= 12 % but < 30 %, in immediate packings of a net content of <= 1 kg (excl. tomatoes whole or in pieces)	20	3-A
2002 90 91	Tomatoes, prepared or preserved otherwise than by vinegar or acetic acid, with dry matter content of > 30 %, in immediate packings of a net content of > 1 kg (excl. tomatoes whole or in pieces)	20	3-A
2002 90 99	Tomatoes, prepared or preserved otherwise than by vinegar or acetic acid, with dry matter content of > 30 %, in immediate packings of a net content of <= 1 kg (excl. tomatoes whole or in pieces)	20	3-A
2004 90 50	Peas 'Pisum sativum' and immature beans 'Phaseolus spp.', prepared or preserved otherwise than by vinegar or acetic acid, frozen	10	3-A
2005 40 00	Peas 'Pisum Sativum', prepared or preserved otherwise than by vinegar or acetic acid (excl. frozen)	25	5-A
2005 51 00	Shelled beans 'Vigna spp., Phaseolus spp.', prepared or preserved otherwise than by vinegar or acetic acid (excl. frozen)	15	5-A
2005 80 00	Sweetcorn 'Zea Mays var. Saccharata', prepared or preserved otherwise than by vinegar or acetic acid (excl. frozen)	10	3-A
2005 99 50	Mixtures of vegetables, prepared or preserved otherwise than by vinegar or acetic acid, not frozen	15	3-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2005 99 90	Vegetables, prepared or preserved otherwise than by vinegar or acetic acid, not frozen (excl. preserved by sugar, homogenised vegetables of subheading 2005.10, and tomatoes, mushrooms, truffles, potatoes, sauerkraut, peas 'Pisum sativum', beans 'Vigna spp., Phaseolus spp.' asparagus, olives, sweetcorn 'Zea Mays var. Saccharata', bamboo shoots, fruit of the genus Capsicum hot to the taste, capers, artichokes, carrots and mixtures of vegetables)	15	3-A
2007 99 10	Plum purée and paste, obtained by cooking, with sugar content of > 30 % by weight, in packings of > 100 kg, for industrial processing	10	5-A
2007 99 31	Cherry jams, jellies, marmalades, purées or pastes, obtained by cooking, with sugar content of > 30 % by weight (excl. homogenised preparations of subheading 2007.10)	10	5-A
2007 99 33	Strawberry jams, jellies, marmalades, purées or pastes, obtained by cooking, with sugar content of > 30 % (excl. homogenised preparations of subheading 2007.10)	10	5-A
2007 99 35	Raspberry jams, jellies, marmalades, purées or pastes, obtained by cooking, with sugar content of > 30 % by weight (excl. homogenised preparations of subheading 2007.10)	10	5-A
2009 50 10	Tomato juice of a dry extract content < 7 % by weight, containing added sugar, unfermented (excl. containing added spirit)	15	5-A
2009 50 90	Tomato juice of a dry extract content < 7 % by weight, unfermented (excl. containing added sugar or spirit)	15	5-A
2009 69 11	Grape juice, incl. grape must, unfermented, Brix value > 67 at 20 °C, value of <= 22 EUR per 100 kg, whether or not containing added sugar or other sweetening matter (excl. containing spirit)	15	5-A
2009 69 19	Grape juice, incl. grape must, unfermented, Brix value > 67 at 20 °C, value of > 22 EUR per 100 kg, whether or not containing added sugar or other sweetening matter (excl. containing spirit)	15	5-A
2009 69 51	Concentrated grape juice, incl. grape must, unfermented, Brix value > 30 but <= 67 at 20 °C, value of > 18 EUR per 100 kg, whether or not containing added sugar or other sweetening matter (excl. containing spirit)	15	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2009 69 59	Grape juice, incl. grape must, unfermented, Brix value > 30 but <= 67 at 20 °C, value of > 18 EUR per 100 kg, whether or not containing added sugar or other sweetening matter (excl. concentrated or containing spirit)	15	5-A
2009 69 71	Concentrated grape juice, incl. grape must, unfermented, Brix value > 30 but <= 67 at 20 °C, value of <= 18 EUR per 100 kg, containing > 30 % added sugar (excl. containing spirit)	15	5-A
2009 69 79	Grape juice, incl. grape must, unfermented, Brix value > 30 but <= 67 at 20 °C, value of <= 18 EUR per 100 kg, containing > 30 % added sugar (excl. concentrated or containing spirit)	15	5-A
2009 69 90	Grape juice, incl. grape must, unfermented, Brix value > 30 but <= 67 at 20 °C, value of <= 18 EUR per 100 kg, whether or not containing added sugar or other sweetening matter (excl. containing > 30 % added sugar or containing spirit)	15	5-A
2009 71 10	Apple juice, unfermented, Brix value <= 20 at 20 °C, value of > 18 EUR per 100 kg, containing added sugar (excl. containing spirit)	15	5-A
2009 71 91	Apple juice, unfermented, Brix value <= 20 at 20 °C, value of <= 18 EUR per 100 kg and containing added sugar (excl. containing spirit)	15	5-A
2009 79 19	Apple juice, unfermented, Brix value > 67 at 20 °C, value of > 22 EUR per 100 kg, whether or not containing added sugar or other sweetening matter (excl. containing spirit)	15	5-A
2009 79 93	Apple juice, unfermented, Brix value > 20 but <= 67 at 20 °C, value of <= 18 EUR per 100 kg, containing <= 30 % added sugar (excl. containing spirit)	15	5-A
2009 80 96	Cherry juice, unfermented, Brix value <= 67 at 20 °C (excl. containing added sugar or containing spirit)	10	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2009 80 99	Juice of fruit or vegetables, unfermented, Brix value <= 67 at 20 °C (excl. containing added sugar or containing spirit, mixtures, and juice of citrus fruit, guavas, mangoes, mangosteens, papaws 'papayas', tamarinds, cashew apples, lychees, jackfruit, sapodillo plums, passion fruit, carambola, pitahaya, pineapples, tomatoes, grapes, incl. grape must, apples, pears, cherries and of the fruit of the species Vaccinium macrocarpon)	10	5-A
2009 90 51	Mixtures of fruit juices, incl. grape must, and vegetable juices, unfermented, Brix value <= 67 at 20 °C, value of > 30 EUR per 100 kg, containing added sugar (excl. containing spirit and mixtures of apple and pear or citrus and pineapple juices)	15	3-A
2009 90 59	Mixtures of fruit juices, incl. grape must, and vegetable juices, unfermented, Brix value <= 67 at 20 °C, value of > 30 EUR per 100 kg (excl. containing added sugar or containing spirit and mixtures of apple and pear or citrus and pineapple juices)	15	5-A
2204 10 19	Sparkling wine of fresh grapes of actual alcoholic strength of >= 8,5 % vol (excl. champagne)	0,5 EUR/l	5-A
2204 10 91	Asti spumante of actual alcoholic strength of < 8,5 % vol	0,5 EUR/l	5-A
2204 10 99	Sparkling wine of fresh grapes and of actual alcoholic strength of < 8,5 % vol (excl. Asti spumante)	0,5 EUR/l	5-A
2204 21 10	Wine of fresh grapes, incl. fortified wines, in bottles with 'mushrooms' stoppers held in place by ties or fastenings, holding <= 2 l; wine otherwise put up with an excess pressure due to carbon dioxide in solution of >= 1 bar but < 3 bar measured at 20 °C, in containers holding <= 2 l (excl. sparkling wine)	0,5 EUR/l	5-A
2204 21 11	Quality white wines produced in Alsace, in containers holding <= 2 l and of an actual alcoholic strength of by volume of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 12	Quality white wines produced in Bordeaux, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 13	Quality white wines produced in Burgundy, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2204 21 17	Quality white wines produced in Val de Loire, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 18	Quality white wines produced in Mosel-Saar-Ruwer, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 19	Quality white wines produced in Pfalz, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 22	Quality white wines produced in Rheinhessen, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 23	Quality white wines produced in Tokaj 'e.g. Aszu, Szamorodni, Máslás, Fordítás', in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 24	Quality white wines produced in Lazio [Latium], in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 26	Quality white wines produced in Toscana [Tuscany], in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 27	Quality white wines produced in Trentino, Alto Adige and Friuli, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 28	Quality white wines produced in Veneto, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 32	Quality white wines of the 'vinho verde' category, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 34	Quality white wines produced in Penedés, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2204 21 36	Quality white wines produced in Rioja, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 37	Quality white wines produced in Valencia, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 38	Quality white wines produced in specified regions, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than Alsace, Bordeaux, Burgundy, Val de Loire, Mosel-Saar-Ruwer, Pfalz, Rheinhessen, Tokaj, Lazio, Toscana, Trentino, Alto Adige, Friuli, Veneto, vinho verde, Penedés, Rioja, Valencia, sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 42	Quality wines produced in Bordeaux, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 43	Quality wines produced in Burgundy, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 44	Quality wines produced in Beaujolais, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 46	Quality wines produced in Côtes-du-Rhône, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 47	Quality wines produced in Languedoc-Roussillon, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 48	Quality wines produced in Val de Loire, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 62	Quality wines produced in Piemonte [Piedmont], in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2204 21 66	Quality wines produced in Toscana [Tuscany], in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 67	Quality wines produced in Trentino and Alto Adige, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 68	Quality wines produced in Veneto, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 69	Quality wines produced in Dao, Bairrada and Douro, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 71	Quality wines produced in Navarra, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 74	Quality wines produced in Penedés, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 76	Quality wines produced in Rioja, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 77	Quality wines produced in Valdepeñas, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 78	Quality wines produced in specified regions, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than Bordeaux, Burgundy, Beaujolais, Côtes-du-Rhône, Languedoc-Roussillon, Val de Loire, Piemonte, Toscana, Trentino, Alto Adige, Veneto, Dao, Bairrada, Douro, Navarra, Penedés, Rioja, Valdepeñas, sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 79	White wine of fresh grapes, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and quality wines produced in specified regions)	0,5 EUR/l	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2204 21 80	Wine of fresh grapes, including fortified wines; grape must other than that of heading 2009, with fermentation prevented or arrested by the addition of alcohol, in containers holding <= 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine, quality wines produced in specified regions and white wine)	0,5 EUR/l	5-A
2204 21 81	Quality white wines produced in Tokaj 'e.g. Aszu, Szamorodni, Máslás, Fordítás', in containers holding <= 2 l and of an actual alcoholic strength of > 13 % vol to 15 % vol	0,5 EUR/l	5-A
2204 21 82	Quality white wines produced in specified regions, in containers holding <= 2 l and of an actual alcoholic strength of > 13 % vol to 15 % vol (other than Tokaj, sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 21 83	Quality wines produced in specified regions, in containers holding <= 2 l and of an actual alcoholic strength of > 13 % vol to 15 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 21 84	White wine of fresh grapes, in containers holding <= 2 l and of an actual alcoholic strength of > 13 % vol to 15 % vol (other than sparkling wine, semi-sparkling wine and quality wines produced in specified regions)	0,5 EUR/l	5-A
2204 21 85	Wine of fresh grapes, incl. fortified wine and grape must with fermentation arrested or interrupted by the addition of alcohol, in containers holding <= 2 l and of an actual alcoholic strength of > 13 % vol to 15 % vol (other than sparkling wine, semi-sparkling wine, quality wines produced in specified regions and general white wine)	0,5 EUR/l	5-A
2204 21 87	Marsala, in containers holding <= 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A
2204 21 88	Samos and Muscat de Lemnos, in containers holding <= 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A
2204 21 89	Port, in containers holding <= 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A
2204 21 91	Madeira and Setubal muscatel, in containers holding <= 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2204 21 92	Sherry, in containers holding <= 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A
2204 21 93	Tokay *(Aszu and Szamorodni)*, in containers holding <= 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A
2204 21 94	Wine of fresh grapes, incl. fortified wine, in containers holding <= 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol (other than sparkling wine, semi-sparkling wine and Marsala, Samos, Muskat de Limnos, Port, Madeira, Setubal muscatel and Sherry)	0,5 EUR/l	5-A
2204 21 95	Port, in containers holding <= 2 l and of an actual alcoholic strength of > 18 % vol to 22 % vol	0,5 EUR/l	5-A
2204 21 96	Madeira, Sherry and Setubal muscatel, in containers holding <= 2 l and of an actual alcoholic strength of > 18 % vol to 22 % vol	0,5 EUR/l	5-A
2204 21 97	Tokay *(Aszu and Szamorodni)*, in containers holding <= 2 l and of an actual alcoholic strength of > 18 % vol to 22 % vol	0,5 EUR/l	5-A
2204 21 98	Wine of fresh grapes, incl. fortified wine, in containers holding <= 2 l and of an actual alcoholic strength of > 18 % vol to 22 % vol (other than Port, Madeira, Sherry and Setubal muscatel)	0,5 EUR/l	5-A
2204 21 99	Wine of fresh grapes, incl. fortified wine, in containers holding <= 2 l and of an actual alcoholic strength of > 22 % vol	0,5 EUR/l	5-A
2204 29 10	Wine of fresh grapes, incl. fortified wines, in bottles with 'mushroom' stoppers held in place by ties or fastenings, holding > 2 l; wine otherwise put up with an excess pressure due to carbon dioxide in solution of >= 1 bar but < 3 bar measured at 20 °C, in containers holding > 2 l (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 29 11	Quality white wines produced in Tokaj 'e.g. Aszu, Szamorodni, Máslás, Fordítás', in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (excl. sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 29 12	Quality white wines produced in Bordeaux, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2204 29 13	Quality white wines produced in Burgundy, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 29 17	Quality white wines produced in Val de Loire, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 29 18	Quality white wines produced in specified regions, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than Tokaj, Bordeaux, Burgundy, Val de Loire, sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 29 42	Quality wines produced in Bordeaux, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 29 43	Quality wines produced in Burgundy, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 29 44	Quality wines produced in Beaujolais, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 29 46	Quality wines produced in Côtes-du-Rhône, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 29 47	Quality wines produced in Languedoc-Roussillon, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 29 48	Quality wines produced in Val de Loire, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 29 58	Quality wines produced in specified regions, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than Bordeaux, Burgundy, Beaujolais, Côtes-du-Rhône, Languedoc-Roussillon, Val de Loire, and sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2204 29 62	White wine produced in Sicily, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and quality wines produced in specified regions)	0,5 EUR/l	5-A
2204 29 64	White wine produced in Veneto, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine and quality wines produced in specified regions)	0,5 EUR/l	5-A
2204 29 65	White wine of fresh grapes, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine, quality wines produced in specified regions and wines produced in Sicily and Veneto)	0,5 EUR/l	5-A
2204 29 71	Wines produced in Puglia [Apulia], in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine, quality wines produced in specified regions and general white wine)	0,5 EUR/l	5-A
2204 29 72	Wines produced in Sicily, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine, quality wines produced in specified regions and general white wine)	0,5 EUR/l	5-A
2204 29 75	Wine of fresh grapes, incl. fortified wine and grape must, with fermentation arrested or interrupted by the addition of alcohol, in containers holding > 2 l and of an actual alcoholic strength of <= 13 % vol (other than sparkling wine, semi-sparkling wine, wines produced in Puglia and Sicily, quality wines produced in specified regions and general white wine)	0,5 EUR/l	5-A
2204 29 77	Quality white wines produced in Tokaj 'e.g. Aszu, Szamorodni, Máslás, Fordítás', in containers holding > 2 l and of an actual alcoholic strength of > 13 % vol to 15 % vol	0,5 EUR/l	5-A
2204 29 78	Quality white wines produced in specified regions, in containers holding > 2 l and of an actual alcoholic strength of > 13 % vol to 15 % vol (other than Tokaj, sparkling wine and semi-sparkling wine)	0,5 EUR/l	5-A
2204 29 82	Quality wines produced in specified regions, in containers holding > 2 l and of an actual alcoholic strength of > 13 % vol to 15 % vol (other than sparkling wine, semi-sparkling wine and general white wine)	0,5 EUR/l	5-A
2204 29 83	White wine of fresh grapes, in containers holding > 2 l and of an actual alcoholic strength of > 13 % vol to 15 % vol (other than quality wines produced in specified regions)	0,5 EUR/l	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2204 29 84	Wine of fresh grapes, incl. fortified wine and grape must with fermentation arrested or interrupted by the addition of alcohol, in containers holding > 2 l and of an actual alcoholic strength of > 13 % vol to 15 % vol (other than sparkling wine, semi-sparkling wine, quality wines produced in specified regions and general white wine)	0,5 EUR/l	5-A
2204 29 87	Marsala, in containers holding > 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A
2204 29 88	Samos and Muscat de Lemnos, in containers holding > 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A
2204 29 89	Port, in containers holding > 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A
2204 29 91	Madeira and Setubal muscatel, in containers holding > 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A
2204 29 92	Sherry, in containers holding > 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A
2204 29 93	Tokay *(Aszu and Szamorodni)*, in containers holding > 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol	0,5 EUR/l	5-A
2204 29 94	Wine of fresh grapes, incl. fortified wine, in containers holding > 2 l and of an actual alcoholic strength of > 15 % vol to 18 % vol (other than sparkling wine, semi-sparkling wine, quality wines produced in specified regions and general white wine, Marsala, Samos, Muscat de Lemnos, Port, Madeira, Setubal muscatel and Sherry)	0,5 EUR/l	5-A
2204 29 95	Port, in containers holding > 2 l and of an actual alcoholic strength of > 18 % vol to 22 % vol	0,5 EUR/l	5-A
2204 29 96	Madeira, Sherry and Setubal muscatel, in containers holding > 2 l and of an actual alcoholic strength of > 18 % vol to 22 % vol	0,5 EUR/l	5-A
2204 29 98	Wine of fresh grapes, incl. fortified wine, in containers holding > 2 l and of an actual alcoholic strength of > 18 % vol to 22 % vol (other than Port, Madeira, Sherry and Setubal muscatel)	0,5 EUR/l	5-A

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
2204 29 99	Wine of fresh grapes, incl. fortified wine, in containers holding > 2 l and of an actual alcoholic strength of > 22 % vol	0,5 EUR/l	5-A
2204 30 10	Grape must, arrested otherwise than by addition of alcohol, of an actual alcoholic strength of > 1 % vol (excl. grape must whose fermentation has been arrested by the addition of alcohol)	0,5 EUR/l	5-A
2204 30 92	Grape must, unfermented, concentrated within the meaning of Additional Note 7 to chapter 22, of a density <= 1,33 g/cm³ at 20 °C and of an actual alcoholic strength <= 1 % vol but > 0,5 % vol (excl. grape must whose fermentation has been arrested by the addition of alcohol)	0,5 EUR/l	5-A
2204 30 94	Grape must, unfermented, non-concentrated, of a density <= 1,33 g/cm³ at 20 °C and of an actual alcoholic strength <= 1 % vol but > 0,5 % vol (excl. grape must whose fermentation has been arrested by the addition of alcohol)	0,5 EUR/l	5-A
2204 30 96	Grape must, unfermented, concentrated within the meaning of Additional Note 7 to chapter 22, of a density > 1,33 g/cm³ at 20 °C and of an actual alcoholic strength <= 1 % vol but > 0,5 % vol (excl. grape must whose fermentation has been arrested by the addition of alcohol)	0,5 EUR/l	5-A
2204 30 98	Grape must, unfermented, non-concentrated, of a density > 1,33 g/cm³ at 20 °C and of an actual alcoholic strength <= 1 % vol but > 0,5 % vol (excl. grape must whose fermentation has been arrested by the addition of alcohol)	0,5 EUR/l	5-A
2208 20 40	Raw distillate, in containers holding > 2 l	0,5 EUR/l	5-A
2208 20 62	Cognac, in containers holding > 2 l	0,5 EUR/l	5-A
2208 20 64	Armagnac, in containers holding > 2 l	0,5 EUR/l	5-A
2208 20 87	Brandy de Jerez in containers holding > 2 l	0,5 EUR/l	5-A
2208 20 89	Spirits obtained by distilling grape wine or grape marc, in containers holding > 2 l (excl. raw distillate, Cognac, Armagnac, Grappa and Brandy de Jerez)	0,5 EUR/l	5-A
2523 10 00	Cement clinkers	10	5
2523 29 00	Portland cement (excl. white, whether or not artificially coloured)	10	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
3917 21 10	Rigid tubes, pipes and hoses, of polymers of ethylene, seamless and of a length > the maximum cross-sectional dimension, whether or not surface-worked, but not otherwise worked	6,5	5
3917 21 90	Rigid tubes, pipes and hoses, of polymers of ethylene (excl. seamless and cut to length only)	6,5	5
3917 22 10	Rigid tubes, pipes and hoses, of polymers of propylene, seamless and of a length > the maximum cross-sectional dimension, whether or not surface-worked, but not otherwise worked	6,5	5
3917 22 90	Rigid tubes, pipes and hoses, of polymers of propylene (excl. seamless and cut to length only)	6,5	5
3917 23 10	Rigid tubes, pipes and hoses, of polymers of vinyl chloride, seamless and of a length > the maximum cross-sectional dimension, whether or not surface-worked, but not otherwise worked	6,5	5
3917 23 90	Rigid tubes, pipes and hoses, of polymers of vinyl chloride (excl. seamless and cut to length only)	6,5	5
3917 31 00	Flexible tubes, pipes and hoses, of plastics, burst pressure >= 27,6 MPa	6,5	5
3917 32 10	Flexible tubes, pipes and hoses, of condensation or rearrangement polymerization products, whether or not chemically modified, not reinforced or otherwise combined with other materials, seamless and of a length > the maximum cross-sectional dimension, whether or not surface-worked, but not otherwise worked	6,5	5
3917 32 31	Flexible tubes, pipes and hoses, of polymers of ethylene, not reinforced or otherwise combined with other materials, seamless and of a length > the maximum cross-sectional dimension, whether or not surface-worked, but not otherwise worked	6,5	5
3917 32 35	Flexible tubes, pipes and hoses, of polymers of vinyl chloride, not reinforced or otherwise combined with other materials, seamless and of a length > the maximum cross-sectional dimension, whether or not surface-worked, but not otherwise worked	6,5	5
3917 32 39	Flexible tubes, pipes and hoses, of addition polymerization products, not reinforced or otherwise combined with other materials, seamless and of a length > the maximum cross-sectional dimension, whether or not surface-worked, but not otherwise worked (excl. those of polymers of ethylene or vinyl chloride)	6,5	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
3917 32 51	Flexible tubes, pipes and hoses, of plastics, not reinforced or otherwise combined with other materials, seamless and of a length > the maximum cross-sectional dimension, whether or not surface-worked, but not otherwise worked (excl. tubes of addition polymerization products, condensation or rearrangement polymerization products, whether or not chemically modified)	6,5	5
3917 32 91	Artificial guts 'sausage casings' (excl. those of hardened protein or cellulose materials)	6,5	5
3917 32 99	Flexible tubes, pipes and hoses of plastics, not reinforced or otherwise combined with other materials, without fittings (excl. seamless and cut to length only and artificial guts)	6,5	5
3917 39 12	Flexible tubes, pipes and hoses of condensation or rearrangement polymerization products, whether or not chemically modified, reinforced or otherwise combined with other materials, seamless and of a length greater than the maximum diameter, whether or not surface-worked but not otherwise worked (excl. tubes with a burst pressure of >= 27,6 MPa)	6,5	3
3917 39 15	Flexible tubes, pipes and hoses, of addition polymerization products, reinforced or otherwise combined with other materials, seamless and of a length > the maximum cross-sectional dimension, whether or not surface-worked, but not otherwise worked (excl. those with a burst pressure of >= 27,6 MPa)	6,5	3
3917 39 19	Flexible tubes, pipes and hoses, of plastics, reinforced or otherwise combined with other materials, seamless and of a length > the maximum cross-sectional dimension, whether or not surface-worked, but not otherwise worked (excl. addition polymerization products, condensation polymerization products and rearrangement polymerization products, and products able to withstand a pressure of >= 27,6 MPa)	6,5	3
3917 39 90	Flexible tubes, pipes and hoses, of plastics, reinforced or otherwise combined with other materials (excl. seamless or cut to length only; tubes with a burst pressure of >= 27,6 MPa)	6,5	3
3917 40 00	Fittings, e.g. joints, elbows, flanges, of plastics, for tubes, pipes and hoses	6,5	3
3922 10 00	Baths, shower-baths, sinks and washbasins, of plastics	6,5	3
3922 20 00	Lavatory seats and covers, of plastics	6,5	3

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
3922 90 00	Bidets, lavatory pans, flushing cisterns and similar sanitary ware, of plastics (excl. baths, shower-baths, sinks, washbasins, lavatory seats and covers)	6,5	3
3923 10 00	Boxes, cases, crates and similar articles for the conveyance or packaging of goods, of plastics	6,5	3
3923 21 00	Sacks and bags, incl. cones, of polymers of ethylene	6,5	3
3923 29 10	Sacks and bags, incl. cones, of 'polyvinyl chloride'	6,5	3
3923 29 90	Sacks and bags, incl. cones, of plastics (excl. those of 'polyvinyl chloride' and polymers of ethylene)	6,5	3
3923 30 10	Carboys, bottles, flasks and similar articles for the conveyance or packaging of goods, of plastics, with a capacity of <= 2 l	6,5	3
3923 30 90	Carboys, bottles, flasks and similar articles for the conveyance or packaging of goods, of plastics, with a capacity of > 2 l	6,5	3
3923 50 90	Stoppers, lids, caps and other closures, of plastics (excl. caps and capsules for bottles)	6,5	3
3923 90 90	Articles for the conveyance or packaging of goods, of plastics (excl. boxes, cases, crates and similar articles; sacks and bags, incl. cones; carboys, bottles, flasks and similar articles; spools, spindles, bobbins and similar supports; stoppers, lids, caps and other closures; plastic netting extruded in tubular form)	6,5	3
3924 10 00	Tableware and kitchenware, of plastics	6,5	3
3924 90 11	Sponges for household or toilet purposes, of regenerated cellulose	6,5	3
3924 90 90	Household articles and toilet articles, of plastics other than regenerated cellulose (excl. tableware, kitchenware, baths, shower-baths, washbasins, bidets, lavatory pans, seats and covers, flushing cisterns and similar sanitary ware)	6,5	3
3925 10 00	Reservoirs, tanks, vats and similar containers, of plastics, with a capacity of > 300 l	6,5	3
3925 20 00	Doors, windows and their frames and thresholds for doors, of plastics	6,5	3
3925 30 00	Shutters, blinds, incl. Venetian blinds, and similar articles and parts thereof, of plastics (excl. fittings and similar articles)	6,5	3

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
3925 90 10	Fittings and mountings intended for permanent installation in or on doors, windows, staircases, walls or other parts of buildings, of plastics	6,5	3
3925 90 20	Trunking, ducting and cable trays for electrical circuits, of plastics	6,5	3
3925 90 80	Builders' ware for the manufacture of flooring, walls, partition walls, ceilings, roofing, etc. guttering and accessories, banisters, fences and the like, fitted shelving for shops, factories, warehouses, storerooms, etc., architectural ornaments such as fluting, vaulting and friezes, of plastics, n.e.s.	6,5	3
3926 20 00	Articles of apparel and clothing accessories produced by the stitching or sticking together of plastic sheeting, incl. gloves, mittens and mitts	6,5	3
3926 90 97	Articles of plastics and articles of other materials of heading 3901 to 3914, n.e.s.	6,5	5
5702 41 10	Axminster carpets of wool or fine animal hair, woven, not tufted or flocked, of pile construction, made up	12	5
5702 41 90	Carpets and other floor coverings, of wool or fine animal hair, woven, not tufted or flocked, of pile construction, made up (excl. Kelem, Schumacks, Karamanie and similar hand-woven rugs, and Axminster carpets)	12	5
5702 42 10	Axminster carpets of man-made textile materials, woven, not tufted or flocked, of pile construction, made up	20	5
5702 42 90	Carpets and other floor coverings, of man-made textile materials, woven, not tufted or flocked, of pile construction, made up (excl. Kelem, Schumacks, Karamanie and similar hand-woven rugs, and Axminster carpets)	20	5
5702 49 00	Carpets and other floor coverings, of vegetable textile materials or coarse animal hair, woven, not tufted or flocked, of pile construction, made up (excl. Kelem, Schumacks, Karamanie and similar hand-woven rugs, and floor coverings of coconut fibres 'coir')	12	5
5703 10 00	Carpets and other floor coverings, of wool or fine animal hair, tufted 'needle punched', whether or not made up	12	5
5703 20 19	Carpets and other floor coverings, of nylon or other polyamides, tufted needle punched, whether or not made up, printed (excl. carpet tiles with an area of <= 0,3 m^2)	12,5	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
5703 20 99	Carpets and other floor coverings, of nylon or other polyamides, tufted needle punched, whether or not made up (excl. printed, and carpet tiles with an area of <= 0,3 m^2)	12,5	5
5703 30 19	Carpets and other floor coverings, of polypropylene, tufted needle punched, whether or not made up (excl. carpet tiles with an area of <= 0,3 m^2)	12,5	5
5704 90 00	Carpets and other floor coverings, of felt, not tufted or flocked, whether or not made up (excl. floor tiles with an area of <= 0,3 m^2)	12	5
5705 00 30	Carpets and other floor coverings, of man-made textile materials, whether or not made up (excl. knotted, woven or tufted 'needle punched', and of felt)	12	5
5705 00 90	Carpets and other floor coverings, of vegetable textile materials or coarse animal hair, whether or not made up (excl. knotted, woven or tufted 'needle punched', and of felt)	12	5
6101 20 90	Men's or boys' anoraks, incl. ski jackets, windcheaters, wind-jackets and similar articles of cotton, knitted or crocheted (excl. suits, ensembles, jackets, blazers, bib and brace overalls and trousers)	12	5
6101 30 90	Men's or boys' anoraks, incl. ski jackets, windcheaters, wind-jackets and similar articles of man-made fibres, knitted or crocheted (excl. suits, ensembles, jackets, blazers, bib and brace overalls and trousers)	12	5
6102 20 90	Women's or girls' anoraks, incl. ski jackets, windcheaters, wind-jackets and similar articles, of cotton, knitted or crocheted (excl. suits, ensembles, jackets, blazers, dresses, skirts, divided skirts, trousers, bib and brace overalls)	12	5
6102 30 90	Women's or girls' anoraks, incl. ski jackets, windcheaters, wind-jackets and similar articles, of man-made fibres, knitted or crocheted (excl. suits, ensembles, jackets, blazers, dresses, skirts, divided skirts, trousers, bib and brace overalls)	12	5
6103 32 00	Men's or boys' jackets and blazers of cotton, knitted or crocheted (excl. wind-jackets and similar articles)	12	5
6103 33 00	Men's or boys' jackets and blazers of synthetic fibres, knitted or crocheted (excl. wind-jackets and similar articles)	12	5
6103 42 00	Men's or boys' trousers, bib and brace overalls, breeches and shorts of cotton, knitted or crocheted (excl. swimwear and underpants)	12	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6103 43 00	Men's or boys' trousers, bib and brace overalls, breeches and shorts of synthetic fibres, knitted or crocheted (excl. swimwear and underpants)	12	5
6104 32 00	Women's or girls' jackets and blazers of cotton, knitted or crocheted (excl. wind-jackets and similar articles)	12	3
6104 33 00	Women's or girls' jackets and blazers of synthetic fibres, knitted or crocheted (excl. wind-jackets and similar articles)	12	3
6104 39 00	Women's or girls' jackets and blazers of textile materials, knitted or crocheted (excl. of wool, fine animal hair, cotton or synthetic fibres, wind-jackets and similar articles)	12	3
6104 42 00	Women's or girls' dresses of cotton, knitted or crocheted (excl. petticoats)	12	5
6104 43 00	Women's or girls' dresses of synthetic fibres, knitted or crocheted (excl. petticoats)	12	5
6104 44 00	Women's or girls' dresses of artificial fibres, knitted or crocheted (excl. petticoats)	12	5
6104 49 00	Women's or girls' dresses of textile materials, knitted or crocheted (excl. of wool, fine animal hair, cotton, man-made fibres and petticoats)	12	5
6104 52 00	Women's or girls' skirts and divided skirts of cotton, knitted or crocheted (excl. petticoats)	12	3
6104 53 00	Women's or girls' skirts and divided skirts of synthetic fibres, knitted or crocheted (excl. petticoats)	12	3
6104 59 00	Women's or girls' skirts and divided skirts of textile materials, knitted or crocheted (excl. of wool, fine animal hair, cotton or synthetic fibres, and petticoats)	12	3
6104 62 00	Women's or girls' trousers, bib and brace overalls, breeches and shorts of cotton, knitted or crocheted (excl. panties and swimwear)	12	3
6104 63 00	Women's or girls' trousers, bib and brace overalls, breeches and shorts of synthetic fibres, knitted or crocheted (excl. panties and swimwear)	12	3
6104 69 00	Women's or girls' trousers, bib and brace overalls, breeches and shorts of textile materials, knitted or crocheted (excl. of wool, fine animal hair, cotton or synthetic fibres, panties and swimwear)	12	3

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6105 10 00	Men's or boys' shirts of cotton, knitted or crocheted (excl. nightshirts, T-shirts, singlets and other vests)	12	5
6105 20 10	Men's or boys' shirts of synthetic fibres, knitted or crocheted (excl. nightshirts, T-shirts, singlets and other vests)	12	5
6106 10 00	Women's or girls' blouses, shirts and shirt-blouses of cotton, knitted or crocheted (excl. T-shirts and vests)	12	5
6106 20 00	Women's or girls' blouses, shirts and shirt-blouses of man-made fibres, knitted or crocheted (excl. T-shirts and vests)	12	5
6107 11 00	Men's or boys' underpants and briefs of cotton, knitted or crocheted	12	5
6107 12 00	Men's or boys' underpants and briefs of man-made fibres, knitted or crocheted	12	5
6107 19 00	Men's or boys' underpants and briefs of other textile materials, knitted or crocheted (excl. of cotton or man-made fibres)	12	5
6107 21 00	Men's or boys' nightshirts and pyjamas of cotton, knitted or crocheted (excl. vests and singlets)	12	5
6107 22 00	Men's or boys' nightshirts and pyjamas of man-made fibres, knitted or crocheted (excl. vests and singlets)	12	5
6108 21 00	Women's or girls' briefs and panties of cotton, knitted or crocheted	12	5
6108 22 00	Women's or girls' briefs and panties of man-made fibres, knitted or crocheted	12	5
6108 29 00	Women's or girls' briefs and panties of textile materials, knitted or crocheted (excl. cotton or man-made fibres)	12	5
6108 31 00	Women's or girls' nightdresses and pyjamas of cotton, knitted or crocheted (excl. T-shirts, vests and négligées)	12	5
6108 32 00	Women's or girls' nightdresses and pyjamas of man-made fibres, knitted or crocheted (excl. T-shirts, vests and négligées)	12	5
6108 91 00	Women's or girls' négligées, bathrobes, dressing gowns, house jackets and similar articles of cotton, knitted or crocheted (excl. vests, slips, petticoats, briefs and panties, nightdresses, pyjamas, brassières, girdles, corsets and similar articles)	12	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6108 92 00	Women's or girls' négligées, bathrobes, dressing gowns, house jackets and similar articles of man-made fibres, knitted or crocheted (excl. vests, slips, petticoats, briefs and panties, nightdresses, pyjamas, brassières, girdles, corsets and similar articles)	12	5
6109 10 00	T-shirts, singlets and other vests of cotton, knitted or crocheted	12	3
6109 90 30	T-shirts, singlets and other vests of man-made fibres, knitted or crocheted	12	3
6109 90 90	T-shirts, singlets and other vests of textile materials, knitted or crocheted (excl. of wool, fine animal hair, cotton or man-made fibres)	12	3
6110 11 10	Jerseys and pullovers containing >= 50 % by weight of wool and weighing >= 600 g/article, knitted or crocheted	12	5
6110 11 30	Men's or boys' jerseys, pullovers, cardigans, waistcoats and similar articles, of wool, knitted or crocheted (excl. jerseys and pullovers containing >= 50 % by weight of wool and weighing >= 600 g/article, and wadded waistcoats)	12	5
6110 11 90	Women's or girls' jerseys, pullovers, cardigans, waistcoats and similar articles, of wool, knitted or crocheted (excl. jerseys and pullovers containing >= 50 % by weight of wool and weighing >= 600 g/article, and wadded waistcoats)	12	5
6110 20 10	Lightweight fine knit roll, polo or turtleneck jumpers and pullovers of cotton, knitted or crocheted	12	3
6110 20 91	Men's or boys' jerseys, pullovers, cardigans, waistcoats and similar articles, of cotton, knitted or crocheted (excl. lightweight fine knit roll, polo or turtleneck jumpers and pullovers and wadded waistcoats)	12	3
6110 20 99	Women's or girls' jerseys, pullovers, cardigans, waistcoats and similar articles, of cotton, knitted or crocheted (excl. lightweight fine knit roll, polo or turtleneck jumpers and pullovers and wadded waistcoats)	12	3
6110 30 10	Lightweight fine knit roll, polo or turtleneck jumpers and pullovers of man-made fibres, knitted or crocheted	12	5
6110 30 91	Men's or boys' jerseys, pullovers, cardigans, waistcoats and similar articles, of man-made fibres, knitted or crocheted (excl. lightweight fine knit roll, polo or turtleneck jumpers and pullovers and wadded waistcoats)	12	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6110 30 99	Women's or girls' jerseys, pullovers, cardigans, waistcoats and similar articles, of man-made fibres, knitted or crocheted (excl. lightweight fine knit roll, polo or turtleneck jumpers and pullovers and wadded waistcoats)	12	5
6115 21 00	Pantyhose and tights of synthetic fibres, knitted or crocheted, measuring per single yarn < 67 decitex (excl. graduated compression hosiery)	12	3
6115 22 00	Pantyhose and tights of synthetic fibres, knitted or crocheted, measuring per single yarn >= 67 decitex (excl. graduated compression hosiery)	12	3
6115 29 00	Pantyhose and tights of textile materials, knitted or crocheted (excl. graduated compression hosiery, those of synthetic fibres and hosiery for babies)	12	3
6115 95 00	Full-length or knee-length stockings, socks and other hosiery, incl. footwear without applied soles, of cotton, knitted or crocheted (excl. graduated compression hosiery, pantyhose and tights, women's full-length or knee-length stockings, measuring per single yarn < 67 decitex, and hosiery for babies)	12	3
6115 96 91	Women's stockings of synthetic fibres, knitted or crocheted (excl. graduated compression hosiery, pantyhose and tights, women's full-length stockings measuring per single yarn < 67 decitex and knee-length stockings)	12	3
6115 96 99	Full-length stockings, socks and other hosiery, incl. footwear without applied soles, of synthetic fibres, knitted or crocheted (excl. graduated compression hosiery, women's pantyhose and tights, full-length or knee-length stockings, and hosiery for babies)	12	3
6115 99 00	Full-length or knee-length stockings, socks and other hosiery, incl. footwear without applied soles, of textile materials, knitted or crocheted (excl. of wool, fine animal hair, cotton or synthetic fibres, graduated compression hosiery, pantyhose and tights, women's full-length or knee-length stockings, measuring per single yarn < 67 decitex, and hosiery for babies)	12	3
6201 11 00	Men's or boys' overcoats, raincoats, car coats, capes, cloaks and similar articles, of wool or fine animal hair (excl. knitted or crocheted)	12	3
6201 12 10	Men's or boys' overcoats, raincoats, car coats, capes, cloaks and similar articles, of cotton, of a weight per garment of <= 1 kg (excl. knitted or crocheted)	12	3

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6201 12 90	Men's or boys' overcoats, raincoats, car coats, capes, cloaks and similar articles, of cotton, of a weight per garment of > 1 kg (excl. knitted or crocheted)	12	3
6201 13 10	Men's or boys' overcoats, raincoats, car coats, capes, cloaks and similar articles, of man-made fibres, of a weight per garment of <= 1 kg (excl. knitted or crocheted)	12	3
6201 13 90	Men's or boys' overcoats, raincoats, car coats, capes, cloaks and similar articles, of man-made fibres, of a weight per garment of > 1 kg (excl. knitted or crocheted)	12	3
6201 19 00	Men's or boys' overcoats, raincoats, car coats, capes, cloaks and similar articles, of textile materials (excl. of wool or fine animal hair, cotton or man-made fibres, knitted or crocheted)	12	3
6201 91 00	Men's or boys' anoraks, incl. ski jackets, windcheaters, wind-jackets and similar articles, of wool or fine animal hair (excl. knitted or crocheted, suits, ensembles, jackets, blazers and trousers)	12	3
6201 92 00	Men's or boys' anoraks, windcheaters, wind jackets and similar articles, of cotton (not knitted or crocheted and excl. suits, ensembles, jackets, blazers, trousers and tops of ski suits)	12	3
6201 93 00	Men's or boys' anoraks, windcheaters, wind jackets and similar articles, of man-made fibres (not knitted or crocheted and excl. suits, ensembles, jackets, blazers, trousers and tops of ski suits)	12	3
6201 99 00	Men's or boys' anoraks, incl. ski jackets, windcheaters, wind-jackets and similar articles of textile materials (excl. of wool, fine animal hair, cotton or man-made fibres, knitted or crocheted, suits, ensembles, jackets, blazers and trousers)	12	3
6202 11 00	Women's or girls' overcoats, raincoats, car coats, capes, cloaks and similar articles, of wool or fine animal hair (excl. knitted or crocheted)	12	3
6202 12 10	Women's or girls' overcoats, raincoats, car coats, capes, cloaks and similar articles, of cotton, of a weight per garment of <= 1 kg (excl. knitted or crocheted)	12	3
6202 12 90	Women's or girls' overcoats, raincoats, car coats, capes, cloaks and similar articles, of cotton, of a weight per garment of > 1 kg (excl. knitted or crocheted)	12	3

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6202 13 10	Women's or girls' overcoats, raincoats, car coats, capes, cloaks and similar articles, of man-made fibres, of a weight per garment of <= 1 kg (excl. knitted or crocheted)	12	3
6202 13 90	Women's or girls' overcoats, raincoats, car coats, capes, cloaks and similar articles, of man-made fibres, of a weight per garment of > 1 kg (excl. knitted or crocheted)	12	3
6202 19 00	Women's or girls' overcoats, raincoats, car coats, capes, cloaks and similar articles, of textile materials (excl. of wool or fine animal hair, cotton or man-made fibres, knitted or crocheted)	12	3
6202 91 00	Women's or girls' anoraks, incl. ski jackets, windcheaters, wind-jackets and similar articles, of wool or fine animal hair (excl. knitted or crocheted, suits, ensembles, jackets, blazers and trousers)	12	3
6202 92 00	Women's or girls' anoraks, windcheaters, wind jackets and similar articles, of cotton (not knitted or crocheted and excl. suits, ensembles, jackets, blazers, trousers and tops of ski suits)	12	3
6202 93 00	Women's or girls' anoraks, windcheaters, wind jackets and similar articles, of man-made fibres (not knitted or crocheted and excl. suits, ensembles, jackets, blazers, trousers and tops of ski suits)	12	3
6202 99 00	Women's or girls' anoraks, incl. ski jackets, windcheaters, wind-jackets and similar articles, of textile materials (excl. of wool, fine animal hair, cotton or man-made fibres, knitted or crocheted, suits, ensembles, jackets, blazers and trousers)	12	3
6203 11 00	Men's or boys' suits of wool or fine animal hair (excl. knitted or crocheted, tracksuits, ski suits and swimwear)	12	3
6203 12 00	Men's or boys' suits of synthetic fibres (excl. knitted or crocheted, tracksuits, ski suits and swimwear)	12	3
6203 19 10	Men's or boys' suits of cotton (excl. knitted or crocheted, tracksuits, ski suits and swimwear)	12	3
6203 19 30	Men's or boys' suits of artificial fibres (excl. knitted or crocheted, tracksuits, ski suits and swimwear)	12	3

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6203 19 90	Men's or boys' suits of textile materials (excl. of wool or fine animal hair, cotton or synthetic fibres, knitted or crocheted, tracksuits, ski suits and swimwear)	12	3
6203 22 10	Men's or boys' industrial and occupational ensembles of cotton (excl. knitted or crocheted)	12	3
6203 31 00	Men's or boys' jackets and blazers of wool or fine animal hair (excl. knitted or crocheted, and wind-jackets and similar articles)	12	3
6203 32 10	Men's or boys' jackets and blazers of cotton, industrial and occupational (excl. knitted or crocheted, and wind-jackets and similar articles)	12	3
6203 32 90	Men's or boys' jackets and blazers of cotton (excl. knitted or crocheted, industrial and occupational, and wind-jackets and similar articles)	12	3
6203 33 10	Men's or boys' jackets and blazers of synthetic fibres, industrial and occupational (excl. knitted or crocheted, and wind-jackets and similar articles)	12	3
6203 33 90	Men's or boys' jackets and blazers of synthetic fibres (excl. knitted or crocheted, industrial and occupational, and wind-jackets and similar articles)	12	3
6203 41 10	Men's or boys' trousers and breeches of wool or fine animal hair (excl. knitted or crocheted, bib and brace overalls and underpants)	12	3
6203 42 11	Men's or boys' industrial and occupational trousers and breeches of cotton (excl. knitted or crocheted and bib and brace overalls)	12	3
6203 42 31	Men's or boys' trousers and breeches of cotton denim (excl. knitted or crocheted, industrial and occupational, bib and brace overalls and underpants)	12	3
6203 42 35	Men's or boys' trousers and breeches of cotton (excl. denim, cut corduroy, knitted or crocheted, industrial and occupational, bib and brace overalls and underpants)	12	3
6203 42 51	Men's or boys' bib and brace overalls, of cotton, industrial and occupational (excl. knitted or crocheted)	12	3
6203 42 59	Men's or boys' bib and brace overalls, of cotton (excl. knitted or crocheted, industrial and occupational)	12	3

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6203 42 90	Men's or boys' shorts of cotton (excl. knitted or crocheted, swimwear and underpants)	12	3
6203 43 11	Men's or boys' trousers and breeches of synthetic fibres, industrial and occupational (excl. knitted or crocheted and bib and brace overalls)	12	3
6203 43 19	Men's or boys' trousers and breeches of synthetic fibres (excl. knitted or crocheted, industrial and occupational, bib and brace overalls and underpants)	12	3
6203 43 31	Men's or boys' bib and brace overalls of synthetic fibres, industrial and occupational (excl. knitted or crocheted)	12	3
6203 43 39	Men's or boys' bib and brace overalls of synthetic fibres (excl. knitted or crocheted, and industrial and occupational)	12	3
6203 43 90	Men's or boys' shorts of synthetic fibres (excl. knitted or crocheted, underpants and swimwear)	12	3
6203 49 11	Men's or boys' trousers and breeches of artificial fibres, industrial and occupational (excl. knitted or crocheted and bib and brace overalls)	12	3
6203 49 19	Men's or boys' trousers and breeches of artificial fibres (excl. knitted or crocheted, industrial and occupational, bib and brace overalls and underpants)	12	3
6203 49 31	Men's or boys' bib and brace overalls of artificial fibres, industrial and occupational (excl. knitted or crocheted)	12	3
6203 49 39	Men's or boys' bib and brace overalls of artificial fibres (excl. knitted or crocheted, industrial and occupational)	12	3
6203 49 50	Men's or boys' shorts of artificial fibres (excl. knitted or crocheted, underpants and swimwear)	12	3
6203 49 90	Men's or boys' trousers, bib and brace overalls, breeches and shorts of textile materials (excl. of wool, fine animal hair, cotton or man-made fibres, knitted or crocheted, underpants and swimwear)	12	3
6204 12 00	Women's or girls' suits of cotton (excl. knitted or crocheted, ski overalls and swimwear)	12	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6204 13 00	Women's or girls' suits of synthetic fibres (excl. knitted or crocheted, ski overalls and swimwear)	12	5
6204 19 10	Women's or girls' suits of artificial fibres (excl. knitted or crocheted, ski overalls and swimwear)	12	5
6204 19 90	Women's or girls' suits of textile materials (excl. of wool, fine animal hair, cotton or man-made fibres, knitted or crocheted, ski overalls and swimwear)	12	5
6204 31 00	Women's or girls' jackets and blazers of wool or fine animal hair (excl. knitted or crocheted, wind-jackets and similar articles)	12	3
6204 32 10	Women's or girls' jackets and blazers of cotton, industrial and occupational (excl. knitted or crocheted, wind-jackets and similar articles)	12	5
6204 32 90	Women's or girls' jackets and blazers of cotton (excl. knitted or crocheted, industrial and occupational, wind-jackets and similar articles)	12	5
6204 33 10	Women's or girls' jackets and blazers of synthetic fibres, industrial and occupational (excl. knitted or crocheted, wind-jackets and similar articles)	12	5
6204 33 90	Women's or girls' jackets and blazers of synthetic fibres (excl. knitted or crocheted, industrial and occupational, wind-jackets and similar articles)	12	5
6204 39 11	Women's or girls' jackets and blazers of artificial fibres, industrial and occupational (excl. knitted or crocheted, wind-jackets and similar articles)	12	5
6204 39 19	Women's or girls' jackets and blazers of artificial fibres (excl. knitted or crocheted, industrial and occupational, wind-jackets and similar articles)	12	5
6204 39 90	Women's or girls' jackets and blazers of textile materials (excl. of wool, fine animal hair, cotton or man-made fibres, knitted or crocheted, wind-jackets and similar articles)	12	5
6204 41 00	Women's or girls' dresses of wool or fine animal hair (excl. knitted or crocheted and petticoats)	12	5
6204 42 00	Women's or girls' dresses of cotton (excl. knitted or crocheted and petticoats)	12	5
6204 43 00	Women's or girls' dresses of synthetic fibres (excl. knitted or crocheted and petticoats)	12	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6204 44 00	Women's or girls' dresses of artificial fibres (excl. knitted or crocheted and petticoats)	12	5
6204 49 00	Women's or girls' dresses of textile materials (excl. of wool, fine animal hair, cotton or man-made fibres, knitted or crocheted and petticoats)	12	5
6204 51 00	Women's or girls' skirts and divided skirts of wool or fine animal hair (excl. knitted or crocheted and petticoats)	12	5
6204 52 00	Women's or girls' skirts and divided skirts of cotton (excl. knitted or crocheted and petticoats)	12	5
6204 53 00	Women's or girls' skirts and divided skirts of synthetic fibres (excl. knitted or crocheted and petticoats)	12	5
6204 59 10	Women's or girls' skirts and divided skirts of artificial fibres (excl. knitted or crocheted and petticoats)	12	5
6204 59 90	Women's or girls' skirts and divided skirts of textile materials (excl. of wool, fine animal hair, cotton or man-made fibres, knitted or crocheted and petticoats)	12	5
6204 61 10	Women's or girls' trousers and breeches of wool or fine animal hair (excl. knitted or crocheted, panties and swimwear)	12	5
6204 61 85	Women's or girls' bib and brace overalls and shorts, of wool or fine animal hair (excl. knitted or crocheted, panties and swimwear)	12	5
6204 62 11	Women's or girls' trousers and breeches of cotton, industrial and occupational (excl. knitted or crocheted and bib and brace overalls)	12	5
6204 62 31	Women's or girls' cotton denim trousers and breeches (excl. industrial and occupational, bib and brace overalls and panties)	12	5
6204 62 39	Women's or girls' trousers and breeches, of cotton (not of cut corduroy, of denim or knitted or crocheted and excl. industrial and occupational clothing, bib and brace overalls, briefs and tracksuit bottoms)	12	5
6204 63 11	Women's or girls' trousers and breeches, of synthetic fibres, industrial and occupational (excl. knitted or crocheted and bib and brace overalls)	12	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6204 63 18	Women's or girls' trousers and breeches, of synthetic fibres (not of cut corduroy, of denim or knitted or crocheted and excl. industrial and occupational clothing, bib and brace overalls, briefs and tracksuit bottoms)	12	5
6204 69 11	Women's or girls' trousers and breeches, of artificial fibres, industrial and occupational (excl. knitted or crocheted, and bib and brace overalls)	12	5
6204 69 18	Women's or girls' trousers and breeches, of artificial fibres (not of cut corduroy, of denim or knitted or crocheted and excl. industrial and occupational clothing, bib and brace overalls, briefs and tracksuit bottoms)	12	5
6204 69 90	Women's or girls' trousers, bib and brace overalls, breeches and shorts of textile materials (excl. of wool, fine animal hair, cotton or man-made fibres, knitted or crocheted, panties and swimwear)	12	5
6205 20 00	Men's or boys' shirts of cotton (excl. knitted or crocheted, nightshirts, singlets and other vests)	12	3
6205 30 00	Men's or boys' shirts of man-made fibres (excl. knitted or crocheted, nightshirts, singlets and other vests)	12	5
6205 90 10	Men's or boys' shirts of flax or ramie (excl. knitted or crocheted, nightshirts, singlets and other vests)	12	5
6205 90 80	Men's or boys' shirts of textile materials (excl. of cotton or man-made fibres, flax or ramie, knitted or crocheted, nightshirts, singlets and other vests)	12	5
6206 10 00	Women's or girls' blouses, shirts and shirt-blouses of silk or silk waste (excl. knitted or crocheted and vests)	12	5
6206 30 00	Women's or girls' blouses, shirts and shirt-blouses of cotton (excl. knitted or crocheted and vests)	12	5
6206 40 00	Women's or girls' blouses, shirts and shirt-blouses of man-made fibres (excl. knitted or crocheted and vests)	12	5
6211 32 10	Men's or boys' industrial and occupational clothing of cotton (excl. knitted or crocheted)	12	5
6211 33 10	Men's or boys' industrial and occupational clothing of man-made fibres (excl. knitted or crocheted)	12	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6212 10 90	Brassieres of all types of textile materials, whether or not elasticated, incl. knitted or crocheted (excl. in a set made up for retail sale containing a brassière and a brief)	12	5
6302 21 00	Printed bed linen of cotton (excl. knitted or crocheted)	12	5
6302 31 00	Bed linen of cotton (excl. printed, knitted or crocheted)	12	5
6302 32 90	Bed linen of man-made fibres (excl. nonwovens, printed, knitted or crocheted)	12	5
6302 51 00	Table linen of cotton (excl. knitted or crocheted)	12	5
6302 53 90	Table linen of man-made fibres (excl. nonwovens, knitted or crocheted)	12	5
6302 60 00	Toilet linen and kitchen linen, of terry towelling or similar terry fabrics of cotton (excl. floor cloths, polishing cloths, dishcloths and dusters)	12	5
6302 91 00	Toilet linen and kitchen linen of cotton (excl. of terry fabrics, floor cloths, polishing cloths, dishcloths and dusters)	12	5
6302 93 90	Toilet linen and kitchen linen of man-made fibres (excl. nonwovens, floor cloths, polishing cloths, dish-cloths and dusters)	12	5
6302 99 90	Toilet linen and kitchen linen of textile materials (excl. of cotton, flax or man-made fibres, floor cloths, polishing cloths, dishcloths and dusters)	12	5
6309 00 00	Worn clothing and clothing accessories, blankets and travelling rugs, household linen and articles for interior furnishing, of all types of textile materials, incl. all types of footwear and headgear, showing signs of appreciable wear and presented in bulk or in bales, sacks or similar packings (excl. carpets, other floor coverings and tapestries)	12,5	5
6402 20 00	Footwear with outer soles and uppers of rubber or plastics, with upper straps or thongs assembled to the sole by means of plugs (excl. toy footwear)	15	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6402 91 10	Footwear covering the ankle, incorporating a protective metal toecap, with outer soles and uppers of rubber or plastics (excl. waterproof footwear of heading 6401, sports footwear and orthopaedic footwear)	15	5
6402 91 90	Footwear covering the ankle, with outer soles and uppers of rubber or plastics (excl. incorporating a protective metal toecap, waterproof footwear of heading 6401, sports footwear, orthopaedic footwear and toy footwear)	15	5
6402 99 05	Footwear incorporating a protective metal toecap, with outer soles and uppers of rubber or plastics (excl. covering the ankle, waterproof footwear of heading 6401, sports footwear and orthopaedic footwear)	15	5
6402 99 10	Footwear with uppers of rubber and outer soles of rubber or plastics (excl. covering the ankle or with upper straps or thongs assembled to the sole by means of plugs, waterproof footwear of heading 6401, sports footwear, orthopaedic footwear and toy footwear)	15	5
6402 99 31	Footwear with uppers of plastic and outer soles of rubber or plastics, with a vamp made of straps or which has one or several pieces cut out, with a maximum sole and heel height of > 3 cm (excl. with upper straps or thongs assembled to the sole by means of plugs)	15	5
6402 99 39	Footwear with uppers of plastic and outer soles of rubber or plastics, with a vamp made of straps or which has one or several pieces cut out, with a maximum sole and heel height of <= 3 cm (excl. with upper straps or thongs assembled to the sole by means of plugs)	15	5
6402 99 50	Slippers and other indoor footwear, with outer sole and upper of rubber or plastics (excl. covering the ankle, footwear with a vamp made of straps or which has one or several pieces cut out, and toy footwear)	15	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6402 99 91	Footwear with uppers of plastics and outer soles of rubber or plastics, with in-soles of a length of < 24 cm (excl. covering the ankle, footwear with a vamp made of straps or which has one or several pieces cut out, footwear incorporating a protective metal toecap, indoor footwear, sports footwear, waterproof footwear of heading 6401, orthopaedic footwear and toy footwear)	15	5
6402 99 93	Footwear non-identifiable as men's or women's footwear, with uppers of plastics, with outer soles of rubber or plastics, with in-soles of length >= 24 cm (excl. footwear covering the ankle, with a vamp made of straps or which has one or more pieces cut out, or incorporating a protective metal toecap, indoor or sports footwear, waterproof footwear in heading 6401, and orthopaedic footwear)	15	5
6402 99 96	Footwear with outer soles of rubber or plastics and uppers of plastics, with in-soles of a length >= 24 cm, for men (excl. footwear covering the ankle, with a vamp made of straps or which has one or more pieces cut out, or incorporating a protective metal toecap, indoor or sports footwear, waterproof footwear in heading 6401, orthopaedic footwear and footwear which cannot be identified as men's or women's)	15	5
6402 99 98	Footwear with outer soles of rubber or of plastics and uppers of plastics, with in-soles of a length of >= 24 cm, for women (excl. footwear covering the ankle, with a vamp made of straps or which has one or more pieces cut out, or incorporating a protective metal toecap, indoor or sports footwear, waterproof footwear in heading 6401, orthopaedic footwear and footwear which cannot be identified as men's or women's)	15	5
6403 59 95	Men's footwear with outer soles and uppers of leather, with in-soles of >= 24 cm in length (excl. covering the ankle, incorporating a protective metal toecap, made on a base or platform of wood, without in-soles, with a vamp or upper made of straps, indoor footwear, sports footwear, and orthopaedic footwear)	15	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6403 59 99	Women's footwear with outer soles and uppers of leather, with in-soles of >= 24 cm in length (excl. covering the ankle, incorporating a protective metal toecap, made on a base or platform of wood, without in-soles, with a vamp or upper made of straps, indoor footwear, sports footwear, and orthopaedic footwear)	15	5
6403 91 16	Men's footwear with outer soles of rubber, plastics or composition leather, with uppers of leather, covering the ankle (but not the calf), with in-soles of a length >= 24 cm (excl. 6403.11-00 to 6403.40.00)	15	5
6403 91 18	Women's footwear with outer soles of rubber, plastics or composition leather, with uppers of leather, covering the ankle (but not the calf), with in-soles of a length >= 24 cm (excl. 6403.11-00 to 6403.40.00)	15	5
6403 91 96	Men's footwear with outer soles of rubber, plastics or composition leather, with uppers of leather, covering the ankle, with in-soles of a length >= 24 cm (excl. 6403.11-00 to 6403.40.00 nor 6403.90-16)	15	5
6403 91 98	Women's footwear with outer soles of rubber, plastics or composition leather, with uppers of leather, covering the ankle, with in-soles of length >= 24 cm (excl. 6403.11-00 to 6403.40.00 nor 6403.91.18)	15	5
6403 99 36	Men's footwear with outer soles of rubber, plastics or composition leather, with uppers of leather (not covering the ankle), with a vamp made of straps or which has one or several pieces cut out, with sole and heel height <= 3 cm, with in-soles of a length >= 24 cm (excl. 6403.11-00 to 6403.40.00)	15	5
6403 99 38	Women's footwear with outer soles of rubber, plastics or composition leather, with uppers of leather (not covering the ankle), with a vamp made of straps or which has one or several pieces cut out, with sole and heel height <= 3 cm, with in-soles of a length >= 24 cm (excl. 6403.11-00 to 6403.40.00)	15	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
6403 99 96	Men's footwear with outer soles of rubber, plastics or composition leather, with uppers of leather (not covering the ankle), with in-soles of a length >= 24 cm (excl. 6403.11-00 to 6403.40.00, 6403.99.11, 6403.99.36, 6403.99.50)	15	5
6403 99 98	Footwear with outer soles of rubber, plastics or composition leather and uppers of leather, with in-soles of a length of >= 24 cm, for women (excl. footwear covering the ankle; with a protective metal toecap; with a main sole of wood, without in-sole; footwear with a vamp made of straps or which has one or more pieces cut out; indoor, sports or orthopaedic footwear; footwear which cannot be identified as men's or women's)	15	5
6404 11 00	Sports footwear, incl. tennis shoes, basketball shoes, gym shoes, training shoes and the like, with outer soles of rubber or plastics and uppers of textile materials	15	5
6404 19 10	Slippers and other indoor footwear, with outer soles of rubber or plastics and uppers of textile materials (excl. tennis shoes, gym shoes, training shoes and the like, and toy footwear)	15	5
6404 19 90	Footwear with outer soles of rubber or plastics and uppers of textile materials (excl. indoor footwear, sports footwear, incl. tennis shoes, basketball shoes, gym shoes, training shoes and the like, and toy footwear)	15	5
6405 20 91	Slippers and other indoor footwear with uppers of textile materials (excl. with outer soles of rubber, plastics, leather or composition leather, and toy footwear)	15	5
6405 20 99	Footwear with uppers of textile materials (excl. with outer soles of rubber, plastics, leather or composition leather, wood or cork, indoor footwear, orthopaedic footwear and toy footwear)	15	5
6405 90 10	Footwear with outer soles of rubber, plastics, leather or composition leather and uppers of materials other than leather, composition leather or textile materials (excl. orthopaedic footwear and toy footwear)	15	5
7010 90 41	Bottles of colourless glass, of a kind used for the commercial conveyance or packing of foodstuffs and beverages, of a nominal capacity of >= 1 l but < 2,5 l	10	5
7010 90 43	Bottles of colourless glass, of a kind used for the commercial conveyance or packing of foodstuffs and beverages, of a nominal capacity of > 0,33 l but < 1 l	10	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
7010 90 51	Bottles of coloured glass, of a kind used for the commercial conveyance or packing of foodstuffs and beverages, of a nominal capacity of >= 1 l but < 2,5 l	10	5
7010 90 53	Bottles of coloured glass, of a kind used for the commercial conveyance or packing of foodstuffs and beverages, of a nominal capacity of > 0,33 l but <= 1 l	10	5
9401 30 10	Swivel seats with variable height adjustments, upholstered, with backrest and fitted with castors or glides (excl. medical, surgical and dental)	10	5
9401 30 90	Swivel seats with variable height adjustments (excl. upholstered, with backrest and fitted with castors or glides, medical, surgical, dental or veterinary, and hairdressers' chairs)	10	5
9401 40 00	Seats, convertible into beds (excl. garden seats and camping equipment, and medical, dental or surgical furniture)	10	5
9401 61 00	Upholstered seats, with wooden frames (excl. convertible into beds)	10	5
9401 69 00	Seats, with wooden frames (excl. upholstered)	10	5
9401 71 00	Upholstered seats, with metal frames (excl. seats for aircraft or motor vehicles, swivel seats with variable height adjustments and medical, dental or surgical furniture)	10	5
9401 79 00	Seats, with metal frames (excl. upholstered, swivel seats with variable height adjustments and medical, dental or surgical furniture)	10	5
9401 80 00	Seats, n.e.s.	10	5
9403 20 80	Metal furniture (excl. for offices, medical, surgical, dental or veterinary furniture, beds and seats)	10	5
9403 30 11	Desks for offices, with wooden frames	10	5
9403 30 19	Wooden furniture for offices, of <= 80 cm in height (excl. desks and seats)	10	5
9403 30 91	Wooden cupboards for offices, of > 80 cm in height	10	5
9403 30 99	Wooden furniture for offices, of > 80 cm in height (excl. cupboards)	10	5
9403 40 10	Fitted kitchen units	10	5

2011 nomenclature of the Republic of Moldova	Description	MFN applied duty	Category
9403 40 90	Wooden furniture of a kind used in kitchens (excl. seats and fitted kitchen units)	10	5
9403 50 00	Wooden furniture for bedrooms (excl. seats)	10	5
9403 60 10	Wooden furniture for dining rooms and living rooms (excl. seats)	10	5
9403 60 30	Wooden furniture for shops (excl. seats)	10	5
9403 60 90	Wooden furniture (excl. for offices or shops, kitchens, dining rooms, living rooms and bedrooms, and seats)	10	5
9403 70 00	Furniture of plastics (excl. medical, dental, surgical or veterinary, and seats)	10	5
9403 89 00	Furniture of cane, osier or similar materials (excl. of bamboo, rattan, metal, wood and plastics, and seats and medical, surgical, dental or veterinary furniture)	10	5
9403 90 30	Parts of furniture, of wood, n.e.s. (excl. seats)	10	5
9403 90 90	Parts of furniture, n.e.s. (excl. of metal or wood, and of seats and medical, surgical, dental or veterinary furniture)	10	5

ANNEX XVI

LIST OF LEGISLATION WITH A TIMETABLE FOR ITS APPROXIMATION [1]

Union legislation	Deadline for approximation
HORIZONTAL LEGISLATIVE FRAMEWORK FOR MARKETING OF PRODUCTS	
Regulation (EC) No 765/2008 of the European Parliament and of the Council of 9 July 2008 setting out the requirements for accreditation and market surveillance relating to the marketing of products Decision No 768/2008/EC of the European Parliament and of the Council of 9 July 2008 on a common framework for the marketing of products	Approximated on the date of entry into force of the Law No 235 of 1 December 2011
Directive 2001/95/EC of the European Parliament and of the Council of 3 December 2001 on general product safety	Review and full approximation: 2014
Council Directive 85/374/EEC of 25 July 1985 on the approximation of the laws, regulations and administrative provisions of the Member States concerning liability for defective products	Approximation: 2012
Regulation (EU) No 1025/2012 of the European Parliament and of the Council of 25 October 2012 on European standardisation	Approximation: 2015
Council Directive 80/181/EEC of 20 December 1979 on the approximation of the laws of the Member States relating to units of measurement as amended by Directive 2009/3/EC of the European Parliament and of the Council	Approximation: 2015
LEGISLATION BASED ON THE PRINCIPLES OF THE NEW APPROACH WHICH PROVIDE FOR CE MARKING	
Directive 2006/95/EC of the European Parliament and of the Council of 12 December 2006 on the harmonisation of the laws of Member States relating to electrical equipment designed for use within certain voltage limits	Review and full approximation: 2015
Directive 2009/105/EC of the European Parliament and of the Council of 16 September 2009 relating to simple pressure vessels	Approximation: 2015
Regulation (EU) No 305/2011 of the European Parliament and of the Council of 9 March 2011 laying down harmonised conditions for the marketing of construction products	Full approximation: 2015
Directive 2004/108/EC of the European Parliament and of the Council of 15 December 2004 on the approximation of the laws of the Member States relating to electromagnetic compatibility	Review and full approximation: 2015
Council Directive 89/686/EEC of 21 December 1989 on the approximation of the laws of the Member States relating to personal protective equipment	Review and full approximation: 2015
Directive 2009/142/EC of the European Parliament and of the Council of 30 November 2009 relating to appliances burning gaseous fuels	Review and full approximation: 2016
Directive 2000/9/EC of the European Parliament and of the Council of 20 March 2000 relating to cableway installations designed to carry persons	Approximation: 2015

[1] For the purposes of this Annex and of Article 173(2) of this Agreement, references to the Union *acquis* or legislation or to specific Union acts shall be understood to cover any past or future revisions of the relevant acts as well as any implementation measures related to those acts.

Union legislation	Deadline for approximation
Directive 94/9/EC of the European Parliament and the Council of 23 March 1994 on the approximation of the laws of the Member States concerning equipment and protective systems intended for use in potentially explosive atmospheres	Review and full approximation: 2015
Council Directive 93/15/EEC of 5 April 1993 on the harmonisation of the provisions relating to the placing on the market and supervision of explosives for civil uses Commission Decision 2004/388/EC of 15 April 2004 on an Intra-Community transfer of explosives document Commission Directive 2008/43/EC of 4 April 2008 setting up, pursuant to Council Directive 93/15/EEC, a system for the identification and traceability of explosives for civil uses	Review and full approximation: 2015
European Parliament and Council Directive 95/16/EC of 29 June 1995 on the approximation of the laws of the Member States relating to lifts	Review and full approximation: 2016
Directive 2006/42/EC of the European Parliament and of the Council of 17 May 2006 on machinery	Approximation: 2015
Directive 2004/22/EC of the European Parliament and of the Council of 31 March 2004 on measuring instruments	Approximation: 2014
Council Directive 93/42/EEC of 14 June 1993 concerning medical devices Council Directive 90/385/EEC of 20 June 1990 on the approximation of the laws of the Member States relating to active implantable medical devices Directive 98/79/EC of the European Parliament and of the Council of 27 October 1998 on *in vitro* diagnostic medical devices	Review and full approximation: 2015
Council Directive 92/42/EEC of 21 May 1992 on efficiency requirements for new hot-water boilers fired with liquid or gaseous fuels	Full approximation: 2017
Directive 2009/23/EC of the European Parliament and of the Council of 23 April 2009 on non-automatic weighing instruments as amended by Regulation (EU) No 1025/2012 of the European Parliament and of the Council in order to align it with the model provisions of Decision 768/2008/EC	Full approximation: 2014
Directive 97/23/EC of the European Parliament and of the Council of 29 May 1997 on the approximation of the laws of the Member States concerning pressure equipment	Review and full approximation: 2017
Directive 1999/5/EC of the European Parliament and of the Council of 9 March 1999 on radio equipment and telecommunications terminal equipment and the mutual recognition of their conformity	Review and full approximation: 18 months after the entry into force of this Agreement
Directive 94/25/EC of the European Parliament and of the Council of 16 June 1994 on the approximation of the laws, regulations and administrative provisions of the Member States relating to recreational craft	Approximation: 2015
Directive 2009/48/EC of the European Parliament and of the Council of 18 June 2009 on the safety of toys	Review and full approximation: 2015
Directive 2007/23/EC of the European Parliament and of the Council of 23 May 2007 on the placing on the market of pyrotechnic articles	Approximation: 2015

Union legislation	Deadline for approximation
DIRECTIVES BASED ON THE PRINCIPLES OF THE NEW APPROACH OR THE GLOBAL APPROACH, BUT WHICH DO NOT PROVIDE FOR CE MARKING	
European Parliament and Council Directive 94/62/EC of 20 December 1994 on packaging and packaging waste	Approximation: 2015
Council Directive 1999/36/EC of 29 April 1999 on transportable pressure equipment	Approximation: 2016
COSMETIC PRODUCTS	
Regulation (EC) No 1223/2009 of the European Parliament and of the Council of 30 November 2009 on cosmetic products	Approximation: 2015
First Commission Directive 80/1335/EEC of 22 December 1980 on the approximation of the laws of the Member States relating to methods of analysis necessary for checking the composition of cosmetic products	Approximation: 2015
Second Commission Directive 82/434/EEC of 14 May 1982 on the approximation of the laws of the Member States relating to methods of analysis necessary for checking the composition of cosmetic products	
Third Commission Directive 83/514/EEC of 27 September 1983 on the approximation of the laws of the Member States relating to methods of analysis necessary for checking the composition of cosmetic products	
Fourth Commission Directive 85/490/EEC of 11 October 1985 on the approximation of the laws of the Member States relating to methods of analysis necessary for checking the composition of cosmetic products	
Fifth Commission Directive 93/73/EEC of 9 September 1993 on the methods of analysis necessary for checking composition of cosmetic products	
Sixth Commission Directive 95/32/EC of 7 July 1995 relating to methods of analysis necessary for checking the composition of cosmetic products	
Seventh Commission Directive 96/45/EC of 2 July 1996 relating to methods of analysis necessary for checking the composition of cosmetic products	
CONSTRUCTION OF MOTOR VEHICLES	
1. **Motor vehicles and their trailers**	
1.1 **Type-approval**	
Directive 2007/46/EC of the European Parliament and of the Council of 5 September 2007 establishing a framework for the approval of motor vehicles and their trailers, and of systems, components and separate technical units intended for such vehicles (Framework Directive)	Approximation: 2016
1.2 **Harmonised technical requirements**	
Regulation (EC) No 78/2009 of the European Parliament and of the Council of 14 January 2009 on the type-approval of motor vehicles with regard to the protection of pedestrians and other vulnerable road users	Approximation: 2017

Union legislation	Deadline for approximation
Regulation (EC) No 79/2009 of the European Parliament and of the Council of 14 January 2009 on type-approval of hydrogen-powered motor vehicles	Approximation: 2017
Regulation (EC) No 595/2009 of the European Parliament and of the Council of 18 June 2009 on type-approval of motor vehicles and engines with respect to emissions from heavy duty vehicles (Euro VI) and on access to vehicle repair and maintenance information	Approximation: 2018
Commission Regulation (EC) No 692/2008 of 18 July 2008 implementing and amending Regulation (EC) No 715/2007 of the European Parliament and of the Council on type-approval of motor vehicles with respect to emissions from light passenger and commercial vehicles (Euro 5 and Euro 6) and on access to vehicle repair and maintenance information	Approximation: 2018
Regulation (EC) No 661/2009 of the European Parliament and of the Council of 13 July 2009 concerning type-approval requirements for the general safety of motor vehicles, their trailers and systems, components and separate technical units intended therefor	Approximation: 2018
Regulation (EC) No 715/2007 of the European Parliament and of the Council of 20 June 2007 on type approval of motor vehicles with respect to emissions from light passenger and commercial vehicles (Euro 5 and Euro 6) and on access to vehicle repair and maintenance information	Approximation: 2018
Directive 2005/64/EC of the European Parliament and of the Council of 26 October 2005 on the type-approval of motor vehicles with regard to their reusability, recyclability and recoverability	Approximation: 2018
Directive 2006/40/EC of the European Parliament and of the Council of 17 May 2006 relating to emissions from air conditioning systems in motor vehicles	Approximation: 2015
2. **Two- or three-wheel motor vehicles**	
2.1 **Type-approval**	
Directive 2002/24/EC of the European Parliament and of the Council of 18 March 2002 relating to the type-approval of two or three-wheel motor vehicles	Approximation: 2015
2.2 **Harmonised technical requirements**	
Council Directive 93/14/EEC of 5 April 1993 on the braking of two- or three-wheel motor vehicles	Approximation: 2017
Directive 2009/80/EC of the European Parliament and of the Council of 13 July 2009 on the identification of controls, tell-tales and indicators for two or three-wheel motor vehicles	Approximation: 2017
Council Directive 93/30/EEC of 14 June 1993 on audible warning devices for two- or three-wheel motor vehicles	Approximation: 2017
Directive 2009/78/EC of the European Parliament and of the Council of 13 July 2009 on stands for two-wheel motor vehicles	Approximation: 2017
Directive 2009/79/EC of the European Parliament and of the Council of 13 July 2009 on passenger hand-holds on two-wheel motor vehicles	Approximation: 2017

Union legislation	Deadline for approximation
Council Directive 93/33/EEC of 14 June 1993 on protective devices intended to prevent the unauthorized use of two or three-wheel motor vehicles	Approximation: 2017
Directive 2009/139/EC of the European Parliament and of the Council of 25 November 2009 on statutory markings for two- or three-wheel motor vehicles	Approximation: 2017
Directive 2009/67/EC of the European Parliament and of the Council of 13 July 2009 on the installation of lighting and light-signalling devices on two or three-wheel motor vehicles	Approximation: 2017
Council Directive 93/93/EEC of 29 October 1993 on the masses and dimensions of two or three-wheel motor vehicles	Approximation: 2017
Directive 2009/62/EC of the European Parliament and of the Council of 13 July 2009 relating to the space for mounting the rear registration plate of two or three-wheel motor vehicles	Approximation: 2017
Directive 95/1/EC of the European Parliament and of the Council of 2 February 1995 on the maximum design speed, maximum torque and maximum net engine power of two or three-wheel motor vehicles	Approximation: 2017
Directive 97/24/EC of the European Parliament and of the Council of 17 June 1997 on certain components and characteristics of two or three-wheel motor vehicles	Approximation: 2017
Directive 2000/7/EC of the European Parliament and of the Council of 20 March 2000 on speedometers for two- or three-wheel motor vehicles	Approximation: 2017
3. **Wheeled agricultural or forestry tractors**	
3.1 **Type-approval**	
Directive 2003/37/EC of the European Parliament and of the Council of 26 May 2003 on type-approval of agricultural or forestry tractors, their trailers and interchangeable towed machinery, together with their systems, components and separate technical units	Approximation: 2016
3.2 **Harmonised technical requirements**	
Directive 2009/63/EC of the European Parliament and of the Council of 13 July 2009 on certain parts and characteristics of wheeled agricultural or forestry tractors	Approximation: 2016
Directive 2009/60/EC of the European Parliament and of the Council of 13 July 2009 on the maximum design speed of and load platforms for wheeled agricultural or forestry tractors	Approximation: 2016
Directive 2009/59/EC of the European Parliament and of the Council of 13 July 2009 on rear-view mirrors for wheeled agricultural or forestry tractors	Approximation: 2016
Directive 2008/2/EC of the European Parliament and of the Council of 15 January 2008 on the field of vision and windscreen wipers for wheeled agricultural or forestry tractors	Approximation: 2016
Directive 2009/66/EC of the European Parliament and of the Council of 13 July 2009 on the steering equipment of wheeled agricultural or forestry tractors	Approximation: 2016
Directive 2009/64/EC of the European Parliament and of the Council of 13 July 2009 on the suppression of radio interference produced by agricultural or forestry tractors (electromagnetic compatibility)	Approximation: 2016

Union legislation	Deadline for approximation
Council Directive 76/432/EEC of 6 April 1976 on the approximation of the laws of the Member States relating to the braking devices of wheeled agricultural or forestry tractors	Approximation: 2016
Council Directive 76/763/EEC of 27 July 1976 on the approximation of the laws of the Member States relating to passenger seats for wheeled agricultural or forestry tractors	Approximation: 2016
Directive 2009/76/EC of the European Parliament and of the Council of 13 July 2009 relating to the driver-perceived noise level of wheeled agricultural or forestry tractors	Approximation: 2016
Directive 2009/57/EC of the European Parliament and of the Council of 13 July 2009 relating to the roll-over protection structures of wheeled agricultural or forestry tractors	Approximation: 2016
Council Directive 77/537/EEC of 28 June 1977 on the approximation of the laws of the Member States relating to the measures to be taken against the emission of pollutants from diesel engines for use in wheeled agricultural or forestry tractors	Approximation: 2016
Council Directive 78/764/EEC of 25 July 1978 on the approximation of the laws of the Member States relating to the driver's seat on wheeled agricultural or forestry tractors	Approximation: 2016
Directive 2009/61/EC of the European Parliament and of the Council of 13 July 2009 relating to the installation of lighting and light-signalling devices on wheeled agricultural and forestry tractors	Approximation: 2016
Directive 2009/68/EC of the European Parliament and of the Council of 13 July 2009 on the component type-approval of lighting and light-signalling devices on wheeled agricultural or forestry tractors	Approximation: 2016
Directive 2009/58/EC of the European Parliament and of the Council of 13 July 2009 on the coupling device and the reverse of wheeled agricultural or forestry tractors	Approximation: 2016
Directive 2009/75/EC of the European Parliament and of the Council of 13 July 2009 on roll-over protection structures of wheeled agricultural or forestry tractors (static testing)	Approximation: 2016
Council Directive 80/720/EEC of 24 June 1980 on the approximation of the laws of the Member States relating to the operating space, access to the driving position and the doors and windows of wheeled agricultural or forestry tractors	Approximation: 2016
Council Directive 86/297/EEC of 26 May 1986 on the approximation of the laws of the Member States relating to power take-offs of wheeled agricultural or forestry tractors and their protection	Approximation: 2016
Council Directive 86/298/EEC of 26 May 1986 on rear-mounted roll-over protection structures of narrow-track wheeled agricultural and forestry tractors	Approximation: 2016
Council Directive 86/415/EEC of 24 July 1986 on the installation, location, operation and identification of the controls of wheeled agricultural or forestry tractors	Approximation: 2016
Council Directive 87/402/EEC of 25 June 1987 on roll-over protection structures mounted in front of the driver's seat on narrow-track wheeled agricultural and forestry tractors	Approximation: 2016

Union legislation	Deadline for approximation
Council Directive 89/173/EEC of 21 December 1988 on the approximation of the laws of the Member States relating to certain components and characteristics of wheeled agricultural or forestry tractors	Approximation: 2016
Directive 2000/25/EC of the European Parliament and of the Council of 22 May 2000 on action to be taken against the emission of gaseous and particulate pollutants by engines intended to power agricultural or forestry tractors	Approximation: 2016
CHEMICALS	
1. **REACH and REACH implementation**	
Regulation (EC) No 1907/2006 of the European Parliament and of the Council of 18 December 2006 concerning the Registration, Evaluation, Authorisation and Restriction of Chemicals (REACH) and establishing a European Chemicals Agency	Approximation: 2013- 2014
Council Regulation (EC) No 440/2008 of 30 May 2008 laying down test methods pursuant to Regulation (EC) No 1907/2006 of the European Parliament and of the Council on the Registration, Evaluation, Authorisation and Restriction of Chemicals (REACH)	Approximation: 2013-2014
2. **Dangerous chemicals**	
Regulation (EC) No 689/2008 of the European Parliament and of the Council of 17 June 2008 concerning the export and import of dangerous chemicals	Approximation: 2016
Council Directive 96/82/EC of 9 December 1996 on the control of major-accident hazards involving dangerous substances	Approximation: 2016
Directive 2011/65/EU of the European Parliament and of the Council of 8 June 2011 on the restriction of the use of certain hazardous substances in electrical and electronic equipment	Approximation: 2014
Directive 2002/96/EC of the European Parliament and of the Council of 27 January 2003 on waste electrical and electronic equipment (WEEE)	Approximation: 2016
Directive 2006/66/EC of the European Parliament and of the Council of 6 September 2006 on batteries and accumulators and waste batteries and accumulators	Approximation: 2013-2014
Council Directive 96/59/EC of 16 September 1996 on the disposal of polychlorinated biphenyls and polychlorinated terphenyls (PCB/PCT)	Approximated in 2009
Regulation (EC) No 850/2004 of the European Parliament and of the Council of 29 April 2004 on persistent organic pollutants	Approximation: 2013-2014
3. **Classification, packaging and labelling**	
Regulation (EC) No 1272/2008 of the European Parliament and of the Council of 16 December 2008 on classification, labelling and packaging of substances and mixtures	Approximation: 2013-2014
4. **Detergents**	
Regulation (EC) No 648/2004 of the European Parliament and of the Council of 31 March 2004 on detergents	Approximation: 2013-2014

Union legislation	Deadline for approximation
5. **Fertilisers**	
Regulation (EC) No 2003/2003 of the European Parliament and of the Council of 13 October 2003 relating to fertilisers	Approximated on 11 June 2013
6. **Drug precursors**	
Regulation (EC) No 273/2004 of the European Parliament and of the Council of 11 February 2004 on drug precursors	Approximation: 2015
7. **Good laboratory practice** **Application of principles and verification for tests on chemicals, inspection and verification of good laboratory practice**	
Directive 2004/10/EC of the European Parliament and of the Council of 11 February 2004 on the harmonisation of laws, regulations and administrative provisions relating to the application of the principles of good laboratory practice and the verification of their applications for tests on chemical substances	Approximation: 2015
Directive 2004/9/EC of the European Parliament and of the Council of 11 February 2004 on the inspection and verification of good laboratory practice (GLP)	Approximation: 2013-2014
PHARMACEUTICALS	
1. **Medicinal products for human use**	
Council Directive 89/105/EEC of 21 December 1988 relating to the transparency of measures regulating the prices of medicinal products for human use and their inclusion in the scope of national health insurance systems	Approximation: 2014
Directive 2001/83/EC of the European Parliament and of the Council of 6 November 2001 on the Community code relating to medicinal products for human use	Transposition: 2015
2. **Medicinal products for veterinary use**	
Directive 2001/82/EC of the European Parliament and of the Council of 6 November 2001 on the Community code relating to veterinary medicinal products	Approximation: 2013
Commission Directive 2006/130/EC of 11 December 2006 implementing Directive 2001/82/EC of the European Parliament and of the Council as regards the establishment of criteria for exempting certain veterinary medicinal products for food-producing animals from the requirement of a veterinary prescription	Approximation: 2014
3. **Miscellaneous**	
Regulation (EU) No 528/2012 of the European Parliament and of the Council of 22 May 2012 concerning the making available on the market and use of biocidal products	Approximation: 2014
Directive 2001/18/EC of the European Parliament and of the Council of 12 March 2001 on the deliberate release into the environment of genetically modified organisms	Approximation: 2015
Directive 2009/35/EC of the European Parliament and of the Council of 23 April 2009 on the colouring matters which may be added to medicinal products	Approximation: 2015

Union legislation	Deadline for approximation
Directive 2009/41/EC of the European Parliament and of the Council of 6 May 2009 on the contained use of genetically modified micro-organisms	Approximation: 2015
Commission Regulation (EC) No 540/95 of 10 March 1995 laying down the arrangements for reporting suspected unexpected adverse reactions which are not serious, whether arising in the Community or in a third country, to medicinal products for human or veterinary use authorized in accordance with the provisions of Council Regulation (EEC) No 2309/93	Approximation: 2015
Commission Regulation (EC) No 1662/95 of 7 July 1995 laying down certain detailed arrangements for implementing the Community decision-making procedures in respect of marketing authorisations for products for human or veterinary use	Approximation: 2015
Commission Regulation (EC) No 2141/96 of 7 November 1996 concerning the examination of an application for the transfer of a marketing authorisation for a medicinal product falling within the scope of Council Regulation (EEC) No 2309/93	Approximation: 2015
Regulation (EC) No 469/2009 of the European Parliament and of the Council of 6 May 2009 concerning the supplementary protection certificate for medicinal products	Approximation: 2015

ANNEX XVII

COVERAGE

ANNEX XVII-A

SPS MEASURES

PART 1

Measures applicable to main live animal categories

I. Equidae (including zebras) or asinine species or the offspring of crossing of those species

II. Bovine animals (including *Bubalus bubalis* and *Bison*)

III. Ovine and caprine animals

IV. Porcine animals

V. Poultry (including fowl, turkeys, guinea fowl, ducks, geese)

VI. Live fish

VII. Crustaceans

VIII. Molluscs

IX. Eggs and gametes of live fish

X. Hatching eggs

XI. Semen-ova-embryos

XII. Other mammals

XIII. Other birds

XIV. Reptiles

XV. Amphibians

XVI. Other vertebrates

XVII. Bees

PART 2

Measures applicable to animal products

I. **Main product categories of animal products for human consumption**

1. Fresh meat of domestic ungulates, poultry and lagomorphs, farm and wild game, including offal

2. Minced meat, meat preparations, mechanically separated meat (MSM), meat products

3. Live bivalve molluscs

4. Fishery products

5. Raw milk, colostrum, dairy products and colostrum-based products

6. Eggs and eggs products

7. Frogs' legs and snails

8. Rendered animal fats and greaves

9. Treated stomachs, bladders and intestines

10. Gelatine, raw material for the production of gelatine for human consumption

11. Collagen

12. Honey and apicultural products

II **Main products' categories of animal by-products:**

In slaughterhouses	Animal by-products to be fed to fur animals
	Animal by-products for the manufacture of pet food
	Blood and blood products from equidae to be used outside the feed chain
	Fresh or chilled hides and skins of ungulates
	Animal by-products for the manufacture of derived products for uses outside the feed chain
In dairy plants	Milk, milk-based products and milk-derived products
	Colostrum and colostrum products
In other facility for the collection or handling of animal by-products (i.e. unprocessed/untreated materials	Blood and blood products from equidae to be used outside the feed chain
	Untreated blood products, excluding of equidae, for derived products for purposes outside the feed chain for farmed animals
	Treated blood products, excluding of equidae, for the manufacture of derived products for purposes outside the feed chain for farmed animals
	Fresh or chilled hides and skins of ungulates
	Pig bristles from third countries or regions thereof that are free from African swine fever
	Bones and bone products (excluding bone meal), horns and horn products (excluding horn meal) and hooves and hoof products (excluding hoof meal) for uses other than as feed material, organic fertilizer or soil improvers
	Horns and horn products, excluding horn meal, and hooves and hoof products, excluding hoof meal, for the production of organic fertilizers or soil improvers
	Gelatine not intended for human consumption to be used by the photographic industry
	Wool and hair
	Treated feathers, parts of feathers and down
In processing plants	Processed animal protein, including mixtures and products other than pet food containing such protein
	Blood products that could be used as feed material
	Treated hides and skins of ungulates
	Treated hides and skins of ruminants and of equidae (21 days)
	Pig bristles from third countries or regions thereof that are not free of African swine fever
	Fish oil to be used as feed material or for purposes outside the feed chain
	Rendered fats to be used as feed materials

	Rendered fats for certain purposes outside the feed chain for farmed animals
	Gelatine or Collagen to be used as feed material or for purposes outside the feed chain
	Hydrolysed protein, Dicalcium phosphate or Tricalcium phosphate to be used as feed material or for purposes outside the feed chain
	Apiculture by-products intended exclusively for use in apiculture
	Fat derivatives to be used outside the feed chain
	Fat derivatives to be used as feed or outside the feed chain
	Egg products that could be used as feed material
In pet food plants (including plants manufacturing dogchews and flavouring innards)	Canned pet food
	Processed pet food other than canned pet food
	Dogchews
	Raw pet food for direct sale
	Flavouring innards for use in the manufacture of pet food
In game trophies plants	Treated game trophies and other preparations of birds and ungulates, being solely bones, horns, hooves, claws, antlers, teeth, hides or skins
	Game trophies or other preparations of birds and ungulates consisting of entire parts not having been treated
In plants or establishments manufacturing intermediate products	Intermediate products
Fertiliser and soil improvers	Processed animal protein including mixtures and products other than pet food containing such protein
	Processed manure, derived products from processed manure and guano from bats
In storage of derived products	All derived products

III. **Pathogenic agents**

PART 3

Plants, plant products and other objects

Plants, plant products and other objects [1] which are potential carriers of pests that, by their nature or that of their processing, may create a risk for the introduction and spread of pests

[1] Packaging, conveyances, containers, soil and growing mediums and any other organisms, object or material capable of harbouring or spreading pests.

PART 4

Measures applicable to food and feed additives

Food:

1. Food additives (all food additives and colours);

2. Processing aids;

3. Food flavourings;

4. Food enzymes.

Feed ([1]):

5. Feed additives;

6. Feed materials;

7. Compound feed and pet food except if covered by Part 2 (II);

8. Undesirable substances in feed.

([1]) Only animal by-products originated from animals or parts of animals, declared as fit for human consumption may enter into the feed chain of farmed animals.

ANNEX XVII-B

ANIMAL WELFARE STANDARDS

Animal welfare standards concerning:

1. stunning and slaughter of animals;
2. transport of animals and related operations;
3. farming animals.

ANNEX XVII-C

OTHER MEASURES COVERED BY CHAPTER 4 OF TITLE V

1. Chemicals originating from the migration of substances from packaging materials;
2. Composite products;
3. Genetically Modified Organisms (GMOs);
4. Growth promoting hormones, thyreostatics, certain hormones and B-agonists.

ANNEX XVII-D

MEASURES TO BE INCLUDED AFTER THE APPROXIMATION OF THE LEGISLATION

1. Chemicals for decontamination of food;
2. Cloning;
3. Irradiation (ionisation).

ANNEX XVIII

LIST OF NOTIFIABLE ANIMAL AND AQUACULTURE DISEASES AND REGULATED PESTS FOR WHICH REGIONAL FREEDOM CAN BE RECOGNISED

ANNEX XVIII-A

ANIMAL AND FISH DISEASES SUBJECT TO NOTIFICATION, FOR WHICH THE STATUS OF THE PARTIES IS RECOGNISED AND FOR WHICH REGIONALISATION DECISIONS MAY BE TAKEN

1. Foot-and-mouth disease
2. Swine vesicular disease
3. Vesicular stomatitis
4. African horse sickness
5. African swine fever
6. Bluetongue
7. Pathogenic Avian influenza
8. Newcastle disease (NCD)
9. Rinderpest
10. Classical swine fever
11. Contagious bovine pleuro-pneumonia
12. Peste des petits ruminants
13. Sheep and goat pox
14. Rift Valley fever
15. Lumpy skin disease
16. Venezuelan equine encephalomyelitis
17. Glanders
18. Dourine
19. Enterovirus encephalomyelitis
20. Infectious haematopoietic necrosis (IHN)
21. Viral haemorrhagic septicaemia (VHS)
22. Infectious Salmon Anaemia (ISA)
23. Bonamia ostreae
24. Marteilia refringens

ANNEX XVIII-B

RECOGNITION OF THE PEST STATUS, PEST FREE AREAS OR PROTECTED ZONES

A. Recognition of pest status

Each Party shall establish and communicate a list of regulated pests based on the following principles:

1. Pests not known to occur within any part of its own territory;
2. Pests known to occur within any part of its own territory and under official control;
3. Pests known to occur within any part of its own territory, under official control and for which pest free areas or protected zones are established.

Any change to the list of pest status shall be immediately notified to the other Party unless otherwise notified to the relevant international organization.

B. Recognition of Pest Free Areas (PFAs) and protected zones

The Parties recognise the protected zones and the concept of PFAs, and its application in respect of relevant ISPMs.

ANNEX XIX

REGIONALISATION/ZONING, PEST-FREE AREAS AND PROTECTED ZONES

A. Animal and aquaculture diseases

1. Animal diseases

The basis for recognition of the animal disease status of the territory or of a region of a Party shall be the Terrestrial Animal Health Code of the OIE. The basis for regionalisation decisions for an animal disease shall be the Terrestrial Animal Health Code of the OIE.

2. Aquaculture diseases

The basis for regionalisation decisions for aquaculture diseases shall be the Aquatic Animal Health Code of the OIE.

B. Pests

The criteria for the establishment of pest free areas or protected zones for certain pests shall comply with the provisions of either:

— the FAO International Standard for Phytosanitary Measures No 4 on Requirements for the establishment of pest free areas and the definitions of the relevant ISPMs, or

— Article 2(1)(h) of Directive 2000/29/EC of 8 May 2000 on protective measures against the introduction into the Community of organisms harmful to plants or plant products and against their spread within the Community

C. Criteria for the recognition of the special status for animal diseases of the territory or a region of a Party

1. Where the importing Party considers that its territory or part of its territory is free from an animal disease other than a disease listed in Annex XVIII-A to this Agreement, it shall present to the exporting Party appropriate supporting documentation, setting out in particular the following criteria:

— the nature of the disease and the history of its occurrence in its territory;

— the results of surveillance testing based on serological, microbiological, pathological or epidemiological investigation and on the fact that the disease must by law be notified to the competent authorities;

— the period over which the surveillance was carried out;

— where applicable, the period during which vaccination against the disease has been prohibited and the geographical area concerned by the prohibition;

— the arrangements for verifying the absence of the disease.

2. The additional guarantees, general or specific, which may be required by the importing Party must not exceed those, which the importing Party implements nationally.

3. The Parties shall notify each other of any change in the criteria specified in paragraph 1 of this point which relate to the disease. The additional guarantees defined in accordance with paragraph 2 of this point may, in the light of such notification, be amended or withdrawn by the SPS Sub-Committee.

ANNEX XX

PROVISIONAL APPROVAL OF ESTABLISHMENTS

Conditions and provisions for provisional approval of establishments

1. Provisional approval of establishments means that for the purpose of import the importing Party approves provisionally the establishments in the exporting Party on the basis of appropriate guarantees provided by that Party without prior inspection by the importing Party of the individual establishments in accordance with the provisions of paragraph 4 of this Annex. The procedure and conditions set out in paragraph 4 of this Annex shall be used for modifying or completing the lists provided for in paragraph 2 of this Annex to take account of new applications and guarantees received. Verification may be part of the procedure, only as regards the initial list of establishments, in accordance with the provisions of paragraph 4(d).

2. The provisional approval shall initially be applied to the following categories of establishments

2.1. Establishments for products of animal origin for human consumption:

— Slaughterhouses for fresh meat of domestic ungulates, poultry, lagomorphs and farm game (Annex XVII-A, Part 1)

— Game handling establishments

— Cutting plants

— Establishments for minced meat, meat preparation, mechanically separated meat and meat products

— Purification centres and dispatched centres for live bivalve molluscs

— Establishments for:

  — eggs products

  — dairy products

  — fishery products

  — treated stomachs, bladders and intestines

  — gelatine and collagen

  — fish oil

— Factory vessels

— Freezer vessels

2.2. Approved or registered establishments producing animal by-products and main categories of animal by-products not for human consumption

Type of approved or registered establishment and plants	Product
Slaughterhouses	Animal by-products to be fed to fur animals
	Animal by-products for the manufacture of pet food
	Blood and blood products from equidae to be used outside the feed chain
	Fresh or chilled hides and skins of ungulates
	Animal by-products for the manufacture of derived products for uses outside the feed chain
Dairy plants	Milk, milk-based products and milk-derived products
	Colostrum and colostrum products

Type of approved or registered establishment and plants	Product
Other facility for the collection or handling of animal by-products (i.e. unprocessed/ untreated materials	Blood and blood products from equidae to be used outside the feed chain
	Untreated blood products, excluding of equidae, for derived products for purposes outside the feed chain for farmed animals
	Treated blood products, excluding of equidae, for the manufacture of derived products for purposes outside the feed chain for farmed animals
	Fresh or chilled hides and skins of ungulates
	Pig bristles from third countries or regions thereof that are free from African swine fever
	Bones and bone products (excluding bone meal), horns and horn products (excluding horn meal) and hooves and hoof products (excluding hoof meal) for uses other than as feed material, organic fertiliser or soil improvers
	Horns and horn products, excluding horn meal, and hooves and hoof products, excluding hoof meal, for the production of organic fertilisers or soil improvers
	Gelatine not intended for human consumption to be used by the photographic industry
	Wool and hair
	Treated feathers, parts of feathers and down
Processing plants	Processed animal protein, including mixtures and products other than pet food containing such protein
	Blood products that could be used as feed material
	Treated hides and skins of ungulates
	Treated hides and skins of ruminants and of equidae (21 days)
	Pig bristles from third countries or regions thereof that are not free of African swine fever
	Fish oil to be used as feed material or for purposes outside the feed chain
	Rendered fats to be used as feed materials
	Rendered fats for certain purposes outside the feed chain for farmed animals
	Gelatine or Collagen to be used as feed material or for purposes outside the feed chain
	Hydrolysed protein, Dicalcium phosphate or Tricalcium phosphate to be used as feed material or for purposes outside the feed chain
	Apiculture by-products intended exclusively for use in apiculture
	Fat derivatives to be used outside the feed chain
	Fat derivatives to be used as feed or outside the feed chain
	Egg products that could be used as feed material

Type of approved or registered establishment and plants	Product
Pet food plants (including plants manufacturing dogchews and flavouring innards)	Canned pet food
	Processed pet food other than canned pet food
	Dogchews
	Raw pet food for direct sale
	Flavouring innards for use in the manufacture of pet food
Game trophies plants	Treated game trophies and other preparations of birds and ungulates, being solely bones, horns, hooves, claws, antlers, teeth, hides or skins
	Game trophies or other preparations of birds and ungulates consisting of entire parts not having been treated
Plants or establishments manufacturing intermediate products	Intermediate products
Fertiliser and soil improvers	Processed animal protein including mixtures and products other than pet food containing such protein
	Processed manure, derived products from processed manure and guano from bats
Storage of derived products	All derived products

3. The importing Party shall draw up lists of provisionally approved establishments as referred to in paragraphs 2.1 and 2.2 and shall make these lists publicly available.

4. Conditions and procedures for provisional approval:

(a) If import of the animal product concerned from the exporting Party has been authorised by the importing Party and the relevant import conditions and certification requirements for the products concerned have been established;

(b) If the competent authority of the exporting Party has provided the importing Party with satisfactory guarantees that the establishments appearing on its list or lists meet the relevant health requirements of the importing Party and has officially approved the establishment appearing on the lists for exportation to the importing Party;

(c) In the event of non-compliance with the said guarantees the competent authority of the exporting Party must have a real power to suspend the activities of exportation to the importing Party from an establishment for which that authority provided guarantees;

(d) Verification in accordance with the provisions of Article 188 of this Agreement by the importing Party may be part of the provisional approval procedure. This verification concerns the structure and the organisation of the competent authority responsible for the approval of the establishment as well as the powers available to that competent authority and the guarantees that it can provide in regard to the implementation of importing Party's rules. The verification may include on the spot inspection of a certain representative number of establishments appearing on the list or lists provided by the exporting Party.

Taking into account the specific structure and division of competence within the Union, such verification in the Union may concern individual Member States.

(e) Based on the results of the verification provided for in point (d) of this paragraph, the importing Party may amend the existing list of establishments.

ANNEX XXI

PROCESS OF RECOGNITION OF EQUIVALENCE

1. Principles

(a) Equivalence can be determined for an individual measure, or a group of measures, or a system related to a certain commodity, or a category of commodities or all of them;

(b) The examination by the importing Party of a request for recognition of equivalence of measures pertaining to a certain commodity of the exporting Party shall not be a reason to disrupt trade or suspend on-going imports from the exporting Party of the commodity in question;

(c) The process of recognition of equivalence of measures is an interactive process between the exporting Party and the importing Party. The process consists of an objective demonstration of equivalence of individual measures by the exporting Party and an objective assessment of the equivalence with a view to the possible recognition of equivalence by the importing Party;

(d) The final recognition of equivalence of the relevant measures of the exporting Party rests solely with the importing Party.

2. Preconditions

(a) The process depends on the health or pest status, the law and the effectiveness of the inspection and control system related to the commodity in the exporting Party. To this end the law in the sector concerned shall be taken into account, as well as the structure of the competent authority of the exporting Party, the command chain, the authority, the operational procedures and resources, and the effectiveness of the competent authorities as regards inspection and control systems, including the level of enforcement related to the commodity and the regularity and the rapidity of information flow to the importing Party in case of identified hazards. This recognition may be supported by documentation, verification and documents, reports and information related to past experiences, assessment and verifications;

(b) The Parties may initiate the process of recognition of equivalence pursuant to Article 183 of this Agreement after the successful completion of the regulatory approximation of a measure, a group of measures or a system included in the approximation list set out in Article 181(4) of this Agreement;

(c) The exporting Party shall only initiate the process when no safeguard measures imposed by the importing Party apply to the exporting Party as regards the commodity.

3. The process

(a) The exporting Party initiates the process by submitting to the importing Party a request for recognition of equivalence of an individual measure or groups of measures or a system for a commodity or a category of commodities in a sector or sub-sector or all of them;

(b) When appropriate, this request includes also the request and the required documentation for approval by the importing Party on the basis of equivalence of any programme or plan of the exporting Party required by the importing Party and/or the status of approximation as laid down in Annex XXIV to this Agreement regarding the measures or systems described in point (a) of this paragraph as a condition for allowing import of that commodity or a category of commodities;

(c) With this request, the exporting Party:

(i) explains the importance for trade of that commodity or a category of commodities;

(ii) identifies the individual measure(s) with which it can comply from all the measures expressed in the import conditions of the importing Party applicable to that commodity or a category of commodities;

(iii) identifies the individual measure(s) for which it seeks equivalence out of the total of the measures expressed in the import conditions of the importing Party, applicable to that commodity or a category of commodities;

(d) In reply to this request the importing Party explains the overall and individual objective and the rationale behind its measure(s), including the identification of the risk;

(e) With this explanation, the importing Party informs the exporting Party on the relationship of its domestic measures and the import conditions for that commodity;

(f) The exporting Party objectively demonstrates to the importing Party that the measures that it has identified are equivalent to the import conditions for that commodity or a category of commodities;

(g) The importing Party objectively assesses the demonstration of equivalence by the exporting Party;

(h) The importing Party concludes whether equivalence is achieved or not;

(i) The importing Party provides to the exporting Party full explanation and supporting data for its determination and decision if so required by the exporting Party;

4. Demonstration of equivalence of measures by the exporting party and assessment of this demonstration by the importing Party

(a) The exporting Party shall objectively demonstrate equivalence for each of the identified measures of the importing Party expressed in its import conditions. When appropriate, equivalence shall objectively be demonstrated for any plan or program required by the importing Party as a condition to allow import (e.g. residue plan);

(b) Objective demonstration and assessment in this context should be based, as far as possible, on:

— internationally recognised standards; and/or standards based on proper scientific evidence; and/or

— risk assessment; and/or

— documents, reports and information related to past experiences, assessments and verifications; and

— legal status or level of administrative status of the measures; and

— level of implementation and enforcement on the basis of in particular:

— corresponding and relevant results of surveillance and monitoring programmes;

— inspection results of the exporting Party;

— results of analysis with recognised analysis methods;

— verification and import check results by the importing Party;

— the performance of the competent authorities of the exporting Party; and

— earlier experiences.

5. Conclusions of the importing Party

In case the importing Party arrives at a negative conclusion, it shall provide the exporting Party with a detailed and reasoned explanation.

6. For plants and plant products, equivalence concerning phytosanitary measures, shall be based on the conditions referred into Article 183(6) of this Agreement.

ANNEX XXII

IMPORT CHECKS AND INSPECTION FEES

A. Principles of import checks

Import checks consist of documentary checks, identity checks and physical checks

As regards animals and animal products, the physical checks and their frequency shall be based on the level of the risk associated with such imports.

In carrying out the checks for plant health purposes, the importing Party shall ensure that the plants, plant products and other objects shall be meticulously inspected on an official basis, either in their entirety or by inspecting a representative sample, in order to make sure, that they are not contaminated by pests.

In the event that the checks reveal non-conformity with the relevant standards and/or requirements, the importing Party shall take official measures proportionate to the risk involved. Wherever possible, the importer or his representative shall be given access to the consignment and the opportunity to provide any relevant information to assist the importing Party in taking a final decision concerning the consignment. Such decision shall be proportional to the level of the risk associated with such imports.

B. Frequencies of physical checks

B.1. Import of animals and animal products to the EU and the Republic of Moldova

Type of frontier check	Frequency rate
1. Documentary checks	100 %
2. Identity checks	100 %
3. Physical checks	
Live animals 100 %	100 %
Category I products Fresh meat including offal, and products of the bovine, ovine, caprine, porcine and equine species defined in Council Directive 64/433/EEC of 26 June 1964 on health conditions for the production and marking of fresh meat, as amended. Fish products in hermetically sealed containers intended to render them stable at ambient temperatures, fresh and frozen fish and dry and/or salted fisheries products Whole eggs Lard and rendered fats Animal casings Hatching eggs	20 %
Category II products Poultry meat and poultry meat products Rabbit meat, game meat (wild/farmed) and products thereof Milk and milk products for human consumption Egg products	50 %

Type of frontier check	Frequency rate
Processed animal protein for human consumption (100 % for the first six bulked consignments, Council Directive 92/118/EEC of 17 December 1992 laying down animal health and public health requirements governing trade in and imports into the Community of products not subject to the said requirements laid down in specific Community rules referred to in Annex A (I) to Directive 89/662/EEC and, as regards pathogens, to Directive 90/425/EEC, as amended). Other fish products than those mentioned under the Commission Decision 2006/766/EC of 6 November 2006 establishing the lists of third countries and territories from which imports of bivalve molluscs, echinoderms, tunicates, marine gastropods and fishery products are permitted, as amended. Bivalve molluscs Honey	
Category III products Semen Embryos Manure Milk and milk products (not for human consumption) Gelatine Frog's legs and snails Bones and bone products Hides and skins Bristles, wool, hair and feathers Horns, horn products, hooves and hoof products Apiculture products Game trophies Processed pet food Raw material for the manufacture of pet food Raw material, blood, blood products, glands and organs for pharmaceutical or technical use Hay and straw Pathogens Processed animal protein (packaged)	Minimum of 1 % Maximum of 10 %
Processed animal protein not for human consumption (bulked)	100 % for the first six consignments (points 10 and 11 of Chapter II of Annex VII to Regulation (EC) No 1774/2002 of the European Parliament and of the Council of 30 October 2002 laying down health rules concerning animal by-products not intended for human consumption, as amended).

B.2. Import of non-animal food to the EU and the Republic of Moldova

— Chilli (*Capsicum annuum*), crushed or ground — ex 0904 20 90 — Chilli products (curry) — 0910 91 05 — *Curcuma longa* (turmeric) — 0910 30 00 (*Food — dried spices*) — Red palm oil — ex 1511 10 90	10 % for Sudan dyes from all third countries

B.3. Import in to the EU and the Republic of Moldova of plants, plant products and other objects

For plants, plant products and other objects listed in Annex V, Part B to Directive 2000/29/EC:

The importing Party carries out checks in order to verify the phytosanitary status of the consignment(s).

A reduced frequency of plant health import checks could be set up for regulated commodities with the exception of plants, plant product and other objects defined accordingly to Commission Regulation (EC) No 1756/2004 of 11 October 2004 specifying the detailed conditions for the evidence and the criteria for the type and level of the reduction of the plant health checks of certain plants, plant products or other objects listed in Part B of Annex V to Directive 2000/29/EC.

ANNEX XXIII

CERTIFICATION

A. Principles of certification

Plants and plant products and other objects:

In respect of certification of plants and plant products and other objects, the competent authorities shall apply the principles laid down in the relevant ISPMs

Animals and animal products:

1. The competent authorities of the Parties shall ensure that certifying officers have a satisfactory knowledge of the veterinary law as regards the animals or animal products to be certified and, in general, are informed about the rules to be followed for drawing up and issuing of the certificates and, if necessary, as to the nature and extent of the enquiries, tests or examinations which should be carried out before certification.

2. Certifying officers must not certify data of which they have no personal knowledge or which cannot be ascertained by them.

3. Certifying officers must not sign blank or incomplete certificates, or certificates relating to animals or animal products, which they have not inspected or which have passed out of their control. Where a certificate is signed on the basis of another certificate or attestation, the certifying officer shall be in possession of the latter document before signing.

4. A certifying officer may certify data which have been:

   (a) ascertained on the basis of paragraphs 1 to 3 of this Annex by another person authorised by the competent authority and acting under the control of the latter authority, provided that the certifying officer can verify the accuracy of the data; or

   (b) obtained, in the context of monitoring programmes, by reference to officially recognized quality assurance schemes or by means of an epidemiological surveillance system where this is authorized under veterinary legislation.

5. The competent authorities of the Parties shall take all necessary steps to ensure the integrity of certification. In particular they shall ensure that certifying officers designated by them:

   (a) have a status which ensures their impartiality and have no direct commercial interest in the animals or products being certified or in the holdings or establishments in which they originate; and

   (b) are fully aware of the significance of the contents of each certificate which they sign.

6. Certificates shall be drawn up in order to ensure that a specific certificate refers to a specific consignment in a language understood by the certifying officer and in at least one of the official languages of the importing Party as set out in part C of this Annex.

   The date of signature of the certificate cannot be after the date of dispatch of the consignment(s).

7. Each competent authority shall be in a position to link a certificate with the relevant certifying officer and ensure that a copy of all certificates issued is available for a period to be determined by that competent authority.

8. Each Party shall introduce the checks and the controls necessary to prevent the issuing of false or misleading certifications and the fraudulent production or use of certificates purported to be issued for the purpose set out in the veterinary law.

9. Without prejudice to any judicial proceedings or penalties, the competent authorities shall carry out investigations or checks and take appropriate measures to penalise any instances of false or misleading certification, which are brought to their attention. Such measures may include the temporary suspension of the certifying officers from their duties until the investigation is over. In particular:

   (a) if in the course of the checks it is found that a certifying officer has knowingly issued a fraudulent certificate, the competent authority shall take all necessary steps to ensure, as far as is possible, that the person concerned cannot repeat the offence;

   (b) if in the course of the checks it is found that an individual or an undertaking has made fraudulent use of or has altered an official certificate, the competent authority shall take all necessary measures to ensure, as far as possible, that the individual or the undertaking cannot repeat the offence. Such measures may include a refusal to issue an official certificate to the person or the undertaking concerned.

B. Certificate referred to in Article 186(2)(a) of this Agreement

The health attestation in the certificate reflects the status of equivalence of the commodity concerned. The health attestation states compliance with the production standards of the exporting Party recognised equivalent by the importing Party.

C. Official languages for certification

1. Import into the EU. Plants, plant products and other objects:

   Certificates shall be drawn up in a language understood by the certifying officer and in at least one of the official languages of the importing Party.

   Animals and animal products:

   The health certificate must be drawn up in at least one of the official languages of the Member State of destination and in one of those of the Member State in which the import checks provided for in Article 189 of this Agreement are carried out.

2. Import into Republic of Moldova

   The health certificate must be drawn up in the official language of the Republic of Moldova.

ANNEX XXIV

APPROXIMATION

ANNEX XXIV-A

PRINCIPLES FOR THE EVALUATION OF PROGRESS IN THE APPROXIMATION PROCESS

PART I

Gradual approximation

1. **General rules**

The sanitary, phytosanitary and animal welfare law of the Republic of Moldova shall be gradually approximated to that of the Union, based on the approximation list of the EU sanitary, phytosanitary and animal welfare law. The list shall be divided into priority areas that relate to measures, as defined in Annex XVII to this Agreement which will be based on the technical and financial resources of the Republic of Moldova. For this reason the Republic of Moldova shall identify its trade priority areas.

The Republic of Moldova shall approximate its domestic rules by either:

(a) implementing and enforcing through the adoption of additional domestic rules or procedures the rules in pertinent basic EU *acquis*; or

(b) by amending relevant domestic rules or procedures to incorporate the rules in relevant basic EU *acquis*.

In either case, the Republic of Moldova shall:

(a) eliminate any domestic laws, regulations, practices or other measures inconsistent with the approximated domestic rules; and

(b) ensure the effective implementation of approximated domestic rules.

The Republic of Moldova shall document such approximation in tables of correspondence according to a model indicating the date on which domestic rules enter into force and the official journal in which the rules were published. The model of the tables of correspondence for the preparation and the evaluation is provided in Part II of this Annex. If the approximation is not complete, reviewers ([1]) shall describe the shortcomings in the column provided for comments.

Irrespective of the priority area identified, the Republic of Moldova shall prepare specific tables of correspondence demonstrating the approximation for other general and specific legislation including in particular the general rules related to:

(a) Control systems

— domestic market;

— imports.

(b) Animal health and welfare

— the identification and the registration of animals and the registration of their movements;

— the control measures for animal diseases;

— domestic trade with live animals, semen, ova and embryos;

— animal welfare on farms, during transport and slaughter.

(c) Food safety

— placing on the market of food and feed;

— labelling, presentation and advertising of food including nutritional and health claims;

— residues controls;

— specific rules for feed.

([1]) Reviewers shall be experts appointed by European Commission.

(d) Animal by-products

(e) Plant health

— harmful organisms;

— plant protection products;

(f) Genetically modified organisms:

— released into the environment;

— genetically modified food and feed.

PART II

Evaluation

1. Procedure and method:

The Republic of Moldova's sanitary, phytosanitary and animal welfare law covered by Chapter 4 of Title V (Trade and Trade-related Matters) shall be gradually approximated by the Republic of Moldova to that of the Union and shall be effectively enforced ([1]).

Tables of correspondence shall be prepared according to the model as laid down in point 2 for each single approximated act and submitted in English for review by the reviewers.

If the result of the evaluation is positive for an individual measure, a group of measures, a system applicable to a sector, sub-sector, a commodity or a group of commodities, the conditions of Article 183(4) of this Agreement shall apply.

2. **Tables of correspondence**

2.1. When preparing tables of correspondence, the following shall be taken into consideration:

The Union acts shall serve as a basis for preparation of a table of correspondence. To this end the version in force at the time of approximation shall be used. The Republic of Moldova shall pay particular attention to precise translation into the national language, as linguistic imprecision can give rise to disputes in particular if they concern the scope of the law ([2]).

2.2. Model of table of correspondence:

TABLE OF CORRESPONDENCE

BETWEEN

Title of the EU act, latest amendments incorporated:

AND

Title of the national text

(Published in)

Date of publication:

Date of implementation:

EU Act	National legislation	Remarks (from the Republic of Moldova)	Reviewer's comments

([1]) For this occasion, it may be supported by the Member States' experts separately or in the margin of the CIB programs (twinning projects, TAIEX etc.).

([2]) To facilitate the approximation process, consolidated versions of certain pieces of EU legislation are available at the EUR-lex web page under: http://eur-lex.europa.eu/homepage.html

Legend:

EU Act: its articles, paragraphs, subparagraphs etc. shall be mentioned with full title and reference ([1]) in the left column of the table of correspondence.

National legislation: the provisions of the national legislation corresponding to the EU provisions of the left column shall be mentioned with their full title and reference. Their content shall be described in the second column in detail.

Remarks from the Republic of Moldova: in this column the Republic of Moldova shall indicate the reference or other provisions associated with this article, paragraphs, subparagraphs etc. especially when the text of the provision is not approximated. The relevant reason for absence of approximation shall be explained.

Reviewer's comments: in case reviewers consider that approximation is not achieved, they shall justify this evaluation and describe relevant shortcomings in this column.

([1]) i.e. as indicated on the EUR-lex web page: http://eur-lex.europa.eu/homepage.html

ANNEX XXIV-B

LIST OF THE EU LEGISLATION TO BE APPROXIMATED TO BY THE REPUBLIC OF MOLDOVA

The approximation list referred to in Article 181(4) of this Agreement will be submitted by the Republic of Moldova within three months after the entry into force of this Agreement.

ANNEX XXV

STATUS OF EQUIVALENCE

[…]

ANNEX XXVI

APPROXIMATION OF CUSTOMS LEGISLATION

Customs Code

Council Regulation (EEC) No 2913/92 of 12 October 1992 establishing the Community Customs Code

Timetable: The approximation with the provisions of the above mentioned Regulation shall be carried out by the Republic of Moldova within three years following the entry into force of this Agreement

Common Transit and SAD

Convention of 20 May 1987 on the simplification of formalities in trade in goods

Convention of 20 May 1987 on a common transit procedure

Timetable: The approximation with the provisions of those Conventions shall be carried out by the Republic of Moldova within three years following the entry into force of this Agreement

Reliefs from customs duty

Council Regulation (EC) No 1186/2009 of 16 November 2009 setting up a Community system of reliefs from customs duty

Timetable: The approximation with Titles I and II of this Regulation shall be carried out by the Republic of Moldova within three years following the entry into force of this Agreement.

IPR protection

Regulation (EU) No 608/2013 of the European Parliament and of the Council of 12 June 2013 concerning customs enforcement of intellectual property rights

Timetable: The approximation with the provisions of that Regulation shall be carried out by the Republic of Moldova within one year following the entry into force of this Agreement.

ANNEX XXVII

LIST OF RESERVATIONS ON ESTABLISHMENT;
LIST OF COMMITMENTS ON CROSS-BORDER SUPPLY OF SERVICES;
LIST OF RESERVATIONS ON KEY PERSONNEL, GRADUATE TRAINEES AND BUSINESS SELLERS;
LIST OF RESERVATIONS ON CONTRACTUAL SERVICES SUPPLIERS AND INDEPENDENT PROFESSIONALS

Union

1. List of reservations on establishment: Annex XXVII-A

2. List of commitments on cross-border supply of services: Annex XXVII-B

3. List of reservations on key personnel, graduate trainees and business sellers: Annex XXVII-C

4. List of reservations on contractual services suppliers and independent professionals: Annex XXVII-D

Republic of Moldova

5. List of reservations on establishment: Annex XXVII-E

6. List of commitments on cross-border supply of services: Annex XXVII-F

7. List of reservations on key personnel, graduate trainees and business sellers: Annex XXVII-G

8. List of reservations on contractual services suppliers and independent professionals: Annex XXVII-H

The following abbreviations are used for the purpose of Annexes XXVII-A, XXVII-B, XXVII-C, XXVII-D:

AT	Austria
BE	Belgium
BG	Bulgaria
CY	Cyprus
CZ	Czech Republic
DE	Germany
DK	Denmark
EU	European Union, including all its Member States
ES	Spain
EE	Estonia
FI	Finland
FR	France
EL	Greece
HR	Croatia
HU	Hungary
IE	Ireland
IT	Italy
LV	Latvia
LT	Lithuania
LU	Luxembourg
MT	Malta
NL	The Netherlands

PL	Poland
PT	Portugal
RO	Romania
SK	Slovak Republic
SI	Slovenia
SE	Sweden
UK	United Kingdom

The following abbreviation is used for the purpose of Annexes XXVII-E, XXVII-F, XXVII-G, XXVII-H:

MD	Republic of Moldova

ANNEX XXVII-A

LIST OF RESERVATIONS ON ESTABLISHMENT (UNION)

1. The list of reservations below indicates the economic activities where reservations to national treatment or most favoured treatment by the Union pursuant to Article 205(2) of this Agreement apply to establishments and investors of the Republic of Moldova.

   The list is composed of the following elements:

   (a) a list of horizontal reservations applying to all sectors or sub-sectors;

   (b) a list of sector or sub-sector specific reservations indicating the sector or sub-sector concerned along with the reservation(s) applying.

   A reservation corresponding to an activity which is not liberalised (Unbound) is expressed as follows: 'No national treatment and most favoured nation treatment obligations'.

   When a reservation under (a) or (b) only includes Member State-specific reservations, Member States not mentioned therein undertake the obligations of 205(2) of this Agreement in the sector concerned without reservations (the absence of Member State-specific reservations in a given sector is without prejudice to horizontal reservations or to sectoral Union-broad reservations that may apply).

2. In accordance with Article 202(3) of this Agreement, the list below does not include measures concerning subsidies granted by the Parties.

3. The rights and obligations arising from the list below shall have no self-executing effect and thus confer no rights directly on natural or juridical persons.

4. In accordance with Article 205 of this Agreement, non-discriminatory requirements, such as those concerning the legal form or the obligation to obtain licences or permits applicable to all providers operating on the territory without distinction based on nationality, residency or equivalent criteria, are not listed in this Annex as they are not prejudiced by the Agreement.

5. Where the Union maintains a reservation that requires that a service supplier be a national, permanent resident or resident of its territory as a condition to the supply of a service in its territory, a reservation listed in Annex XXVII-C to this Agreement shall operate as a reservation with respect to establishment under this Annex, to the extent applicable.

Horizontal reservations

Public utilities

EU: Economic activities considered as public utilities at a national or local level may be subject to public monopolies or to exclusive rights granted to private operators ([1]).

Types of establishment

EU: Treatment accorded to subsidiaries (of companies of the Republic of Moldova) formed in accordance with the law of the Member States and having their registered office, central administration or principal place of business within the Union is not extended to branches or agencies established in the Member States by companies of the Republic of Moldova. ([2])

([1]) Public utilities exist in sectors such as related scientific and technical consulting services, R & D services on social sciences and humanities, technical testing and analysis services, environmental services, health services, transport services and services auxiliary to all modes of transport. Exclusive rights on such services are often granted to private operators, for instance operators with concessions from public authorities, subject to specific service obligations. Given that public utilities often also exist at the sub-central level, detailed and exhaustive sector-specific scheduling is not practical. This reservation does not apply to telecommunications and to computer and related services.

([2]) In accordance with Article 54 of the Treaty on the Functioning of the European Union, these subsidiaries are considered as juridical persons of the Union. To the extent that they have a continuous and effective link with the economy of the Union, they are beneficiaries of the Union's Internal Market, which includes, inter alia, the freedom to establish and to provide services in all Member States.

AT: Managing directors of branches of juridical persons must be resident in Austria; natural persons responsible within a juridical person or a branch for the observance of the Austrian Trade Act must have a domicile in Austria.

EE: At least half of the members of the management board shall have their residence in the Union.

FI: A foreigner carrying on trade as a private entrepreneur and at least one of the partners in a general partnership or of general partners in a limited partnership have to be permanently resident in the European Economic Area (EEA). For all sectors, EEA residency is required for at least one of the ordinary and deputy members of the board of directors and the managing director; however exemptions may be granted to certain companies. If an organisation of the Republic of Moldova intends to carry on business or trade by establishing a branch in Finland, a trade permit is required.

HU: No national treatment and most favoured nation treatment obligations for the acquisition of state owned properties.

IT: Access to industrial, commercial and artisanal activities may be subject to a residence permit.

PL: Investors of the Republic of Moldova can undertake and conduct economic activity only in the form of a limited partnership, limited joint-stock partnership, limited liability company, and joint-stock company (in the case of legal services only in the form of registered partnership and limited partnership).

RO: The sole administrator or the chairman of the board of administration as well as half of the total number of administrators of the commercial companies shall be Romanian citizens unless otherwise stipulated in the company contract or its statutes. The majority of the commercial companies' auditors and their deputies shall be Romanian citizens.

SE: A foreign company, which has not established a legal entity in Sweden or is conducting its business through a commercial agent, shall conduct its commercial operations through a branch, registered in Sweden, with independent management and separate accounts. The managing director of the branch, and the vice-managing director if appointed, must reside in the EEA. A natural person not resident in the EEA, who conducts commercial operations in Sweden, shall appoint and register a resident representative responsible for the operations in Sweden. Separate accounts shall be kept for the operations in Sweden. The competent authority may in individual cases grant exemptions from the branch and residency requirements. Building projects with a duration of less than a year — conducted by a company located or a natural person residing outside the EEA — are exempted from the requirements for establishing a branch or appointing a resident representative. A Swedish limited liability company may be established by a natural person resident within the EEA, by a Swedish juridical person or by a juridical person that has been formed according to the legislation in a state within the EEA and that has its registered office, headquarters or principal place of business within the EEA. A partnership may be a founder, only if all owners with unlimited personal liability are resident within the EEA. Founders outside the EEA may apply for permission from the competent authority. For limited liability companies and cooperative economic associations, at least 50 % of the members of the board of directors, at least 50 % of the deputy board members, the managing director, the vice-managing director, the deputy board members and at least one of the persons authorized to sign for the company, if any, must reside within the EEA. The competent authority may grant exemptions from this requirement. If none of the company's/society's representatives reside in Sweden, the board must appoint and register a person resident in Sweden, who has been authorised to receive services on behalf of the company/society. Corresponding conditions prevail for establishment of all other types of legal entities.

SK: A natural person of the Republic of Moldova whose name is to be registered in the Commercial Register as a person authorised to act on behalf of the entrepreneur is required to submit a residence permit for the Slovak Republic.

Investment

ES: Investment in Spain by foreign governments and foreign public entities (which tends to affect, besides economic, also non-economic interests of the State), directly or through companies or other entities controlled directly or indirectly by foreign governments, needs prior authorisation by the government.

BG: Foreign investors cannot participate in privatisation. Foreign investors and Bulgarian juridical persons with controlling participation of a natural or a juridical person of the Republic of Moldova require permission for a) prospecting, development or extraction of natural resources from the territorial seas, the continental shelf or the exclusive economic zone and b) acquisition of a controlling equity interests in companies engaged in any of the activities specified under 'a)'.

FR: Purchases by natural or juridical persons of the Republic of Moldova exceeding 33,33 % of the shares of capital or voting rights in existing French enterprises, or 20 % in publicly quoted French companies, are subject to the following regulations:

— investments of less than 7,6 million EUR in French enterprises with a turnover not exceeding 76 million EUR are free, after a delay of 15 days following prior notification and verification that these amounts are met;

— after a period of one month following prior notification, authorisation is tacitly granted for other investments unless the Minister of Economic Affairs has, in exceptional circumstances, exercised its right to postpone the investment.

Foreign participation in newly privatised companies may be limited to a variable amount, determined by the government of France on a case by case basis, of the equity offered to the public. For establishing in certain commercial, industrial or artisanal activities, a specific authorisation is needed if the managing director is not a holder of a permanent residence permit.

HU: No national treatment and most favoured nation treatment obligations with regard to participation of natural or juridical persons of the Republic of Moldova in newly privatised companies.

IT: The Government can exercise certain special powers in enterprises operating in the areas of defence and national security (in relation to all juridical persons carrying out activities considered of strategic importance in the areas of defence and national security), and in certain activities of strategic importance in the areas of energy, transport and communications.

PL: Acquisition of real estate, direct and indirect, by foreigners (foreign natural or foreign juridical persons) requires permission. Unbound in relation to acquisition of state-owned property, i.e. the regulations governing the privatizations process.

Real estate

The acquisition of land and real estate is subject to the following limitations ([1]):

AT: The acquisition, purchase as well as rent or lease of real estate by foreign natural persons and juridical persons requires an authorization by the competent regional authorities (Länder) which will consider whether important economic, social or cultural interests are affected or not.

BG: Foreign natural and juridical persons (incl. through a branch) cannot acquire ownership of land. Bulgarian juridical persons with foreign participation cannot acquire ownership of agricultural land. Foreign juridical persons and foreign citizens with permanent residence abroad can acquire ownership of buildings and limited property rights (right to use, right to build, right to raise a superstructure and servitudes) of real estate.

CY: No national treatment and most favoured nation treatment obligations.

CZ: Agricultural and forest land can be acquired only by foreign natural persons having permanent residence in the Czech Republic and enterprises established as juridical persons with permanent residence in the Czech Republic. Specific rules apply to the agricultural and forest land in the state ownership. State agricultural land can be acquired only by Czech nationals, by municipalities and by public universities (for training and research). Juridical persons (regardless of the form or place of residence) can acquire state agriculture land from the state only if a building, which they already own, is built on it or if this land is indispensable for the use of such building. Only municipalities and public universities can acquire state forests.

DK: Limitations on real estate purchase by non-resident physical and legal entities. Limitations on agricultural estate purchased by foreign physical and legal entities.

HU: Subject to the exceptions included in legislation on Arable Land, foreign natural and juridical persons are not allowed to acquire arable land. The purchase of real estate by foreigners is subject to obtaining permission from the country public administration agency competent on the basis of the location of real estate.

EL: According to Law No 1892/90, permission from the Ministry of Defence is needed for acquisition of land in areas near borders. According to administrative practices, permission is easily granted for direct investment.

([1]) As regards services sectors, these limitations do not go beyond the limitations reflected in the existing commitments under GATS.

HR: Unbound in relation to acquisition of real estate by services suppliers not established and incorporated in Croatia. Acquisition of real estate necessary for the supply of services by companies established and incorporated in Croatia as juridical persons is allowed. Acquisition of real estate necessary for the supply of services by branches requires the approval of the Ministry of Justice. Agricultural land cannot be acquired by foreign juridical or natural persons.

IE: Prior written consent of the Land Commission is necessary for the acquisition of any interest in Irish land by domestic or foreign companies or foreign nationals. Where such land is for industrial use (other than agricultural industry), this requirement is waived subject to certification to this effect from the Minister for Enterprise, Trade and Employment. This law does not apply to land within the boundaries of cities and towns.

IT: The purchase of real estate by foreign natural and juridical persons is subject to a condition of reciprocity.

LT: Acquisition into ownership of land, internal waters and forests shall be permitted to foreign natural and juridical persons meeting the criteria of European and transatlantic integration. The land plot acquisition procedure, terms and conditions, as well as restrictions shall be established by the constitutional law.

LV: Limitations on the acquisition of land in rural areas and land in cities or urban areas; land lease not exceeding 99 years permitted.

PL: Acquisition of real estate, direct and indirect, by foreigners (foreign natural or foreign juridical persons) requires permission. Unbound in relation to acquisition of state-owned property, i.e. the regulations governing the privatizations process.

RO: Natural persons not having Romanian citizenship and residence in Romania, as well as juridical persons not having Romanian nationality and their headquarters in Romania, cannot acquire ownership over any kind of land plots, through inter vivos acts.

SI: Branches established in the Republic of Slovenia by foreign persons may only acquire real estate, except land, necessary for the conduct of the economic activities for which they are established.

SK: Agricultural and forest land cannot be acquired by foreign juridical or natural persons. Specific rules apply to certain other real estate categories. Foreign entities may acquire real property through establishment of Slovak legal entities or participation in joint ventures. Acquisition of the land by foreign entities is subject to authorization (for modes 3 and 4).

Sectoral reservations

A: *Agriculture, Hunting, Forestry and Logging*

FR: The establishment of agricultural enterprises by non-EU companies and the acquisition of vineyards by non-EU investors are subject to authorisation.

AT, HR, HU, MT, RO: No national treatment and most favoured nation treatment obligations for agricultural activities.

CY: The participation of investors is allowed only up to 49 %.

IE: Establishment by residents of the Republic of Moldova in flour milling activities is subject to authorisation.

BG: No national treatment and most favoured nation treatment obligations for logging activities.

B: *Fishing and Aquaculture*

EU: Access to and use of the biological resources and fishing grounds situated in the maritime waters coming under the sovereignty or within the jurisdiction of the Member States may be restricted to fishing vessels flying the flag of a EU territory unless otherwise provided for.

SE: A ship shall be deemed Swedish and can carry the Swedish flag if more than half is owned by Swedish citizens or juridical persons. The Government may permit foreign vessels to fly the Swedish flag if their operations are under Swedish control or the owner has permanent residence in Sweden. Vessels which are 50 % owned by EEA nationals or companies having their registered office, central administration or principal place of business in the EEA and whose operation is controlled from Sweden, may also be registered in the Swedish register. A professional fishing license, needed for professional fishing, is only given if the fishing has a connection to the Swedish fishing industry. Connection can for example be landing half the catch during a calendar year (in value) in Sweden, half the fishing trips departs from a Swedish harbour or half of the fishermen in the fleet are domiciled in Sweden. For vessels over five meters, a vessel permit is needed together with the professional fishing license. A permit is granted if, among other things, the vessel is registered in the national registry and the vessel have a real economic connection to Sweden.

UK: No national treatment and most favoured nation obligations for the acquisition of UK flagged vessels, unless the investment is at least 75 % owned by British citizens and/or by companies which are at least 75 % owned by British citizens, in all cases resident and domiciled in the UK. Vessels must be managed, directed and controlled from within the UK.

C: *Mining and quarrying*

EU: No national treatment and most favoured nation treatment obligations for juridical persons controlled ([1]) by natural or juridical persons of a non-EU country which accounts for more than 5 % of the Union's oil or natural gas imports. No national treatment and most favoured nation treatment obligations for direct branching (incorporation is required).

D: *Manufacturing*

EU: No national treatment and most favoured national obligations for juridical persons controlled ([2]) by natural or juridical persons of a non-EU country which accounts for more than 5 % of the Union's oil or natural gas imports. No national treatment and most favoured nation treatment obligations for direct branching (incorporation is required).

HR: Residence requirement for publishing, printing and reproduction of recorded media.

IT: Owners of publishing and printing company and publishers must be citizens of a Member State. Companies must have their headquarters in a Member State.

SE: Owners of periodicals that are printed and published in Sweden, who are natural persons, must reside in Sweden or be citizens of the EEA. Owners of such periodicals who are juridical persons must be established in the EEA. Periodicals that are printed and published in Sweden, and technical recordings must have a responsible editor, who must be domiciled in Sweden.

For production, transmission and distribution on own account of electricity, gas, steam and hot water ([3]) (excluding nuclear based electricity generation)

EU: No national treatment and most favoured nation obligations for production of electricity, transmission and distribution of electricity on own account and manufacture of gas, distribution of gaseous fuels.

For production, transmission and distribution of steam and hot water

EU: No national treatment and most favoured national obligations for juridical persons controlled ([4])by natural or juridical persons of a non-EU country which accounts for more than 5 % of the Union's oil, electricity or natural gas imports. Unbound for direct branching (incorporation is required).

FI: No national treatment and most favoured nation obligations for production, transmission and distribution of steam and hot water.

([1]) A juridical person is controlled by other natural or juridical person(s) if the latter has/have the power to name majority of its directors or otherwise legally direct its actions. In particular, ownership of more than 50 % of the equity interests in a juridical person shall be deemed to constitute control.

([2]) A juridical person is controlled by other natural or juridical person(s) if the latter has/have the power to name a majority of its directors or otherwise legally direct its actions. In particular, ownership of more than 50 % of the equity interests in a juridical person shall be deemed to constitute control.

([3]) The horizontal limitation on public utilities applies.

([4]) A juridical person is controlled by other natural or juridical person(s) if the latter has/have the power to name a majority of its directors or otherwise legally direct its actions. In particular, ownership of more than 50 % of the equity interests in a juridical person shall be deemed to constitute control.

1. *Business services*

Professional services

EU: No national treatment and most favoured nation treatment obligations with respect to legal advisory and legal documentations and certification services provided by legal professionals entrusted with public functions, such as notaries, 'huissiers de justice' or other 'officiers publics et ministériels', and with respect to services provided by bailiffs who are appointed by an official act of government.

EU: Full admission to the Bar required for the practice of domestic (EU and Member State) law, which is subject to a nationality condition and/or residency requirement.

AT: With respect to legal services, foreign lawyers' (who must be fully qualified in their home country) equity participation and shares in the operating result of any law firm may not exceed 25 %. They may not have decisive influence in decision-making. For foreign minority investors, or its qualified personnel, provision of legal services is only authorized in respect of public international law and the law of the jurisdiction where they are qualified to practice as a lawyer; provision of legal services in respect of domestic (EU and Member State) law including representation before courts requires full admission to the bar, which is subject to a nationality condition.

With respect to accounting, bookkeeping, auditing and taxation advisory services, equity participation and voting rights of persons entitled to exercise the profession according to foreign law may not exceed 25 %.

No national treatment and most favoured nation treatment obligations for medical (except for dental services and for psychologists and psychotherapists) and veterinary services.

BG: With respect to legal services, some types of legal form ('advokatsko sadrujue' and 'advokatsko drujestvo') are reserved to lawyers fully admitted to the Bar in the Republic of Bulgaria. For mediation services permanent residence is required. With respect to taxation services EU nationality condition applies. With respect to architectural services, urban planning and landscape architectural services, engineering and integrated engineering services foreign natural and juridical persons, possessing recognized licensed designer competence under their national legislation, may survey and design works in Bulgaria independently only after winning a competitive procedure and when selected as contractors under the terms and according to the procedure established by the Public Procurement Act; for projects of national or regional significance, investors of the Republic of Moldova must act in partnership with or, as subcontractors of, local investors. With respect to urban planning and landscape architectural services, nationality condition applies. No national treatment and most favoured national treatment obligation for midwives services and services provided by nurses, physiotherapists and paramedical personnel.

DK: Foreign auditors may enter into partnerships with Danish State authorized accountants after obtaining permission from the Danish Business Authority.

FI: No national treatment and most favoured nation treatment obligations with respect to services related to publicly or privately funded health and social services (i.e. Medical, including Psychologists, and Dental services; Midwives services; Physiotherapists and Paramedical Personnel).

FI: With respect to auditing services, residency requirement for at least one of the auditors of a Finnish Liability company.

FR: With respect to legal services, some types of legal form ('association d'avocats' and 'société en participation d'avocat') are reserved to lawyers fully admitted to the Bar in France. With respect to architectural services, medical (including psychologists) and dental services, midwife services and services provided by nurses, physiotherapists and paramedical personnel, foreign investors only have access to the legal forms of 'société d'exercice liberal' (sociétés anonymes, sociétés à responsabilité limitée ou sociétés en commandite par actions) and 'société civile professionnelle'. Nationality condition and reciprocity apply with respect to veterinary services.

EL: No national and most favoured nation treatment with respect to dental technicians. EU nationality is required to obtain a licence to be a statutory auditor and in veterinary services.

ES: Statutory auditors and industrial property attorneys are subject to an EU nationality condition.

HR: Unbound except for consultancy on home country, foreign and international law. Representation of parties before courts can be practised only by the members of the Bar Council of Croatia (Croatian title 'odvjetnici'). Citizenship requirement for membership in the Bar Council. In proceedings involving international elements, parties can be represented before arbitration courts — ad hoc courts by lawyers who are members of bar associations of other countries.

Licence is required to provide audit services. Natural and juridical persons may supply architectural and engineering services upon approval of the Croatian Chamber of Architects and Croatian Chamber of Engineers respectively.

HU: Establishment should take the form of partnership with a Hungarian barrister (ügyvéd) or a barrister's office (ügyvédi iroda), or representative office. Residency requirement for non EEA national in veterinary services.

LV: In a commercial company of sworn auditors more than 50 % of the voting capital shares shall be owned by sworn auditors or commercial companies of sworn auditors of the EU or the EEA.

LT: With respect to auditing services, at least 3/4 of shares of an audit company must belong to auditors or auditing companies of EU or EEA.

PL: While other types of legal form are available for EU lawyers, foreign lawyers only have access to the legal forms of registered partnership and limited partnership. EU nationality condition applies to provide veterinary services.

SK: Residency is required to provide architectural, engineering services, veterinary services.

SE: For legal services, admission to the Bar, necessary only for the use of the Swedish title '*advokat*', is subject to a residency requirement. There is a residency requirement for liquidators. The competent authority may grant exemption from this requirement. There are EEA requirements connected to the appointing of a certifier of an economic plan. EEA residency requirement for auditing services.

Research and Development services

EU: For publicly funded Research and Development services, exclusive rights and/or authorisations can only be granted to EU nationals and to EU juridical persons having their headquarters in the EU.

Rental/Leasing without Operators

A: Relating to ships:

LT: Ships must be owned by Lithuanian natural persons or companies established in Lithuania.

SE: In the case of ownership interests in a ship by a natural or juridical person of the Republic of Moldova, proof of dominating Swedish operating influence must be shown to fly the Swedish flag.

B: Relating to aircraft:

EU: With respect to rental and leasing relating to aircraft, although waivers can be granted for short term lease contracts, aircraft must be owned either by natural persons meeting specific nationality criteria or by juridical persons meeting specific criteria regarding ownership of capital and control (including nationality of directors).

Other business services

EU, except HU and SE: No national treatment and most favoured nation treatment obligations for supply services of domestic help personnel, other commercial or industrial workers, nursing, and other personnel. Residency or commercial presence is required and nationality requirements may exist.

EU except BE, DK, EL, ES, FR, HU, IE, IT, LU, NL, SE, UK: Nationality conditions and residency requirement for placement services and supply services of personnel.

EU except AT and SE: For investigation services, no national treatment and most favoured treatment obligations. Residency or commercial presence is required and nationality requirements may exist.

AT: Regarding placement services and labour leasing agencies, an authorization can only be granted to juridical persons having their headquarter in the EEA and members of the management board or managing partners/shareholders entitled to represent the juridical person have to be EEA citizens and have to be domiciled in the EEA.

BE: A company having its head office outside the EEA has to prove that it supplies placement services in its country of origin. With respect to security services, EU citizenship and residence are required for managers.

BG: Nationality is required for activities in aerial photography and for geodesy, cadastral surveying and cartography. No national treatment and most favoured national treatment obligations for placement and supply services of personnel, placement services; supply services of office support personnel; investigation services; security services; technical testing and analysis services; services on contract basis for repair and dismantling of equipment in oil and gas fields. No national treatment and most favoured national treatment obligations for official translation and interpretation.

DE: Nationality condition for sworn interpreters.

DK: With respect to security services, residency requirement and nationality condition for majority of members of the board and for managers. No national treatment and most favoured nation treatment obligations for the supply of airport guard services.

EE: No national treatment and most favoured nation treatment obligations for security services. EU citizenship required for sworn translators.

FI: EEA residency is required for certified translators.

FR: No national treatment obligation and most favoured nation treatment obligations with respect to the attribution of rights in the area of placement services.

FR: Foreign investors are required to have a specific authorisation for exploration and prospection services for scientific and technical consulting services.

HR: No national treatment and most favoured nation treatment obligations for placement services; investigation and security services.

IT: Italian or EU nationality and residency requirement in order to obtain the necessary authorisation to supply security guard services. Owners of publishing and printing company and publishers must be citizens of a Member State. Companies must have their headquarters in a Member State. No national treatment and MFN obligation for collection agency and credit reporting services.

LV: With respect to investigations services, only detective companies whose head and every person who has an office in the administration thereof is a national of the EU or the EEA are entitled to obtain a license. With respect to security services at least half of the equity capital should be possessed by physical and juridical persons of the EU or the EEA to obtain a license.

LT: The activity of security services, may only be undertaken by persons with the citizenship of the EEA country or a NATO country.

PL: With respect to investigation services, the professional license can be granted to a person holding Polish citizenship or to a citizen of another Member State, EEA or Switzerland. With respect to security service, a professional license may be granted only to a person holding Polish citizenship or to a citizen of another Member State, EEA or Switzerland. EU nationality condition for sworn translators. Polish nationality condition to provide aerial photographic services and for the editor-in chief of newspapers and journals.

PT: No national treatment and most favoured nation treatment obligations for investigation services. An EU nationality condition for investors to provide Collection agency services and credit reporting services. Nationality requirement for specialised personnel for security services.

SE: Residency requirement for publisher and owner of publishing and printing companies. Only Sami people may own and exercise reindeer husbandry.

SK: With respect to investigation services and security services, licences may be granted only if there is no security risk and if all managers are citizens of the EU, EEA or Switzerland.

4. *Distribution services*

EU: No national treatment and most favoured nation treatment obligations with respect to distribution of arms, munitions and explosives.

EU: Nationality condition and residency requirement applies in some countries to operate a pharmacy and operate as tobacconists.

FR: No national treatment and most favoured nation treatment obligations with respect to granting of exclusive rights in the areas of tobacco retail.

FI: No national treatment and most favoured nation treatment obligations with respect to distribution of alcohol and pharmaceuticals.

AT: No national treatment and most favoured nation treatment obligations with respect to distribution of pharmaceuticals

BG: No national treatment and most favoured nation treatment obligations with respect to distribution of alcoholic beverages, chemical products, tobacco and tobacco products, pharmaceuticals, medical and orthopaedic goods; weapons, munitions and military equipment; petroleum and petroleum products, gas, precious metals, precious stones.

DE: Only natural persons are permitted to provide retail services of pharmaceuticals and specific medical goods to the public. Residency is required in order to obtain a licence as a pharmacist and/or to open a pharmacy for the retail of pharmaceuticals and certain medical goods to the public. Nationals of other countries or persons who have not passed the German pharmacy exam may only obtain a licence to take over a pharmacy which has already existed during the preceding three years.

HR: No national treatment and most favoured nation treatment obligations with respect to distribution of tobacco products.

6. *Environmental services*

EU: No national treatment and most favoured nation treatment obligations in respect of the provision of services relating to the collection, purification and distribution of water to household, industrial, commercial or other users, including the provision of drinking water, and water management.

7. *Financial services* ([1])

EU: Only firms having their registered office in the Union can act as depositories of the assets of investment funds. The establishment of a specialised management company, having its head office and registered office in the same Member State, is required to perform the activities of management of unit trusts and investment companies.

AT: The licence for a branch office of foreign insurers shall be denied if the foreign insurer does not have a legal form corresponding or comparable to a joint stock company or a mutual insurance association. The management of a branch office must consist of two natural persons resident in Austria.

BG: Pension insurance shall be implemented through participation in incorporated pension insurance companies. Permanent residence in Bulgaria is required for the chairperson of the management board and the chairperson of the board of directors. Before establishing a branch or agency to provide certain classes of insurance, a foreign insurer must have been authorized to operate in the same classes of insurance in its country of origin.

([1]) The horizontal limitation on the difference in treatment between branches and subsidiaries applies. Foreign branches may only receive an authorisation to operate in the territory of a Member State under the conditions provided for in the relevant legislation of that Member State and may therefore be required to satisfy a number of specific prudential requirements.

CY: Only members (brokers) of the Cyprus Stock Exchange can undertake business pertaining to securities brokerage in Cyprus. A brokerage firm may only be registered as a member of the Cyprus Stock Exchange if it has been established and registered in accordance with the Companies Law of Cyprus (no branches).

EL: The right of establishment does not cover the creation of representative offices or other permanent presence of insurance companies, except where such offices are established as agencies, branches or head offices.

ES: Before establishing a branch or agency to provide certain classes of insurance, a foreign insurer must have been authorized to operate in the same classes of insurance in its country of origin.

HU: Branches of foreign institutions are not allowed to provide asset management services for private pension funds or management of venture capital. The board of a financial institution should include at least two members, who are Hungarian citizens, residents in the meaning of the relevant foreign exchange regulations and have permanent residency in Hungary for at least one year.

IE: In the case of collective investment schemes constituted as unit trusts and variable capital companies (other than undertakings for collective investment in transferable securities, UCITS) the trustee/depository and management company is required to be incorporated in Ireland or in another Member State (no branches). In the case of an investment limited partnership, at least one general partner must be incorporated in Ireland. To become a member of a stock exchange in Ireland, an entity must either (a) be authorized in Ireland, which requires that it be incorporated or be a partnership, with a head/registered office in Ireland, or (b) be authorized in another Member State.

PT: Pension fund management may be provided only by specialized companies incorporated in Portugal for that purpose and by insurance companies established in Portugal and authorised to take up the life insurance business or by entities authorised to pension fund management in other Member States.

In order to establish a branch in Portugal, foreign insurance companies need to demonstrate prior operational experience of at least five years. Direct branching is not permitted for insurance intermediation, which is reserved to companies formed in accordance with the law of a Member State.

FI: For insurance companies providing statutory pension insurance: at least one half of the promoters and members of the board of directors and the supervisory board shall have their place of residence in the EU, unless the competent authorities have granted an exemption.

Other insurance companies than those providing statutory pension insurance: residency requirement for at least one member of the board of directors and supervisory board and the managing director.

The general agent of an insurance company of the Republic of Moldova must have his place of residence in Finland, unless the company has its head office in the EU.

Foreign insurers cannot get a licence in Finland as a branch to carry on statutory pension insurance.

For banking services: residency requirement for at least one of the founders, one member of the board of directors and supervisory board, the managing director and the person entitled to sign the name of a credit institution.

IT: In order to be authorized to manage the securities settlement system with an establishment in Italy, a company is required to be incorporated in Italy (no branches). In order to be authorised to manage central securities depository services with an establishment in Italy, companies are required to be incorporated in Italy (no branches). In the case of collective investment schemes other than UCITS harmonized with the legislation of the EU, the trustee/depository is required to be incorporated in Italy or in another Member State and established through a branch in Italy. Management companies of UCITS not harmonized under the legislation of the EU are also required to be incorporated in Italy (no branches). Only banks, insurance companies, investment firms, and companies managing UCITS harmonised under the legislation of the EU, having their legal head office in the EU, as well as UCITS incorporated in Italy may carry out activity of pension fund resources management. In providing the activity of door-to-door selling, intermediaries must utilise authorised financial salesmen listed in the Italian register. Representative offices of foreign intermediaries cannot carry out activities aimed at providing investment services.

LT: For the purpose of asset management, incorporation as a specialized management company (no branches) is required.

Only firms having their registered office or branch in Lithuania can act as depositories of pension funds.

Only banks having their registered office or branch in Lithuania and authorized to provide investment services in a Member State or in a state within the European Economic Area (EEA)may act as the depositaries of the assets of pension funds.

PL: Local incorporation (no branches) required for insurance intermediaries.

SK: Foreign nationals may establish an insurance company in the form of a joint stock company or may conduct insurance business through their subsidiaries with registered office in Slovakia (no branches).

Investment services in Slovakia can be provided by banks, investment companies, investment funds and security dealers which have a legal form of joint-stock company with equity capital according to the law (no branches).

SE: Insurance broking undertakings not incorporated in Sweden may be established only though a branch.

A founder of a savings bank shall be a natural person resident in the Union.

8. *Health, Social and Education services*

EU: No national treatment and most favoured nation treatment obligations with respect to publicly funded health, social and education services.

EU: No national treatment and most favoured nation treatment obligations with respect to privately funded other human health services.

EU: With respect to privately funded education services, nationality conditions may apply for majority of members of the Board.

EU (except for NL, SE and SK): No national treatment and most favoured nation treatment obligations with respect to the provision of privately funded other education services, which means other than those classified as being primary, secondary, higher and adult education services.

BE, CY, CZ, DK, FR, DE, EL, HU, IT, ES, PT, UK: No national treatment and most favoured nation treatment obligations with respect to the provision of privately funded social services other than services relating to convalescent and rest houses and old people's homes.

FI: No national treatment and most favoured nation treatment obligations with respect to privately funded health and social services.

BG: Foreign high schools cannot open their divisions on the territory of the Republic of Bulgaria. Foreign high schools can open faculties, departments, institutes and colleges in Bulgaria only within the structure of the Bulgarian high schools and in cooperation with them.

EL: With respect to higher education services, no national or most favoured nation treatment obligations for establishment of education institutions granting recognized State diplomas. EU nationality condition for owners and majority of members of the Board, teachers in privately founded primary and secondary schools.

HR: No national treatment and most favorable nation treatment obligations with respect to primary education.

SE: reserves the right to adopt and maintain any measure with respect to educational services suppliers that are approved by public authorities to provide education. This reservation applies to publicly funded and privately funded educational services suppliers with some form of State support, inter alia, educational service suppliers recognized by the State, educational services suppliers under State supervision or education which entitles to study support.

UK: No national treatment and most favoured nation treatment obligations with respect to the provision of privately-funded ambulance services or privately-funded residential health services other than hospital services.

9. *Tourism and travel related services*

BG, CY, EL, ES, FR: Nationality condition for tourist guides.

BG: For hotel, restaurant and catering services (excluding catering in air transport services) incorporation is required (no branching).

IT: Tourist guides from non-EU countries need to obtain a specific licence.

10. *Recreational cultural and sporting services*

News and Press Agencies Services

FR: Foreign participation in existing companies publishing publications in the French language may not exceed 20 % of the capital or of the voting rights in the company. With respect to press agencies, national treatment for the establishment of juridical persons is subject to reciprocity.

Sporting and other recreational services

EU: No national treatment and most favoured nation treatment obligations with respect to gambling and betting services. For legal certainty it is clarified that no market access is granted.

AT: With respect to ski schools and mountain guide services, management directors of juridical persons have to be EEA citizens.

Libraries, archives, museums and other cultural services

BE, FR, HR, IT: No national treatment and most favoured nation treatment with respect to libraries, archives, museum and other cultural services.

11. *Transport*

Maritime transport

EU: No national treatment and most favoured treatment obligations for the establishment of a registered company for the purpose of operating a fleet under the national flag of the State of establishment.

FI: For services auxiliary to maritime transport, services can be provided only by ships operating under the Finnish flag.

HR: For services auxiliary to maritime transport foreign juridical person is required to establish a company in Croatia which should be granted a concession by the port authority, following a public tendering procedure. The number of service suppliers may be limited reflecting limitations in port capacity.

Internal Waterways Transport ([1])

EU: No national treatment and most favoured nation treatment obligations with respect to national cabotage transport. Measures based upon existing or future agreements on access to inland waterways (incl. agreements following the Rhine-Main-Danube link) reserve some traffic rights for operators based in the countries concerned and meeting nationality criteria regarding ownership. Subject to regulations implementing the Mannheim Convention on Rhine Shipping.

AT, HU: No national treatment and most favoured nation treatment obligations for the establishment of a registered company for the purpose of operating a fleet under the national flag of the State of establishment.

AT: With respect to internal waterways a concession is only granted to EEA juridical persons and more than 50 % of the capital share, the voting rights and the majority in the governing boards are reserved to EEA citizens.

HR: No national treatment and most favoured nation treatment obligations for internal waterways transport.

([1]) Including Services auxiliary to internal waterways transport.

Air transport services

EU: The conditions of mutual market access in air transport shall be dealt with by the Common Aviation Area Agreement between the European Union and its Member States, of the one part, and the Republic of Moldova, of the other part.

EU: Aircraft used by an air carrier of the EU have to be registered in the Member State licensing the carrier or elsewhere in the EU. With respect to rental of aircraft with crew, aircraft must be owned either by natural persons meeting specific nationality criteria or by juridical persons meeting specific criteria regarding ownership of capital and control. Aircraft must be operated by air carriers owned either by natural persons meeting specific nationality criteria or by juridical persons meeting specific criteria regarding ownership of capital and control.

EU: With respect to computer reservation systems (CRS) services, where air carriers of the Union are not accorded equivalent treatment ([1]) to that provided in the Union by CRS services suppliers outside the Union, or where CRS services suppliers of the European Union are not accorded equivalent treatment to that provided in the Union by non-EU air carriers, measures may be taken to accord equivalent treatment, respectively, to the non-EU air carriers by the CRS services suppliers in the Union, or to the non-EU CRS services suppliers by the air carriers in the Union.

Rail transport

HR: No national treatment and most favoured nation treatment obligations for passenger and freight transportation and for pushing and towing services.

Road transport

EU: Incorporation is required (no branching) for cabotage operations. Residency requirement for the transport manager.

AT: For passenger and freight transportation, exclusive rights and/or authorisations may only be granted to nationals of the Member States and to juridical persons of the Union having their headquarters in the Union.

BG: For passenger and freight transportation, exclusive rights and/or authorisations may only be granted to nationals of the Member States and to juridical persons of the Union having their headquarters in the Union. Incorporation is required. Condition of EU nationality for natural persons.

EL: In order to engage in the occupation of road freight transport operator a Hellenic licence is needed. Licences are granted on non–discriminatory terms. Road freight transport operations established in Greece may only use vehicles that are registered in Greece.

FI: Authorisation is required to provide road transport services, which is not extended to foreign registered vehicles.

FR: Foreign investors are not allowed to provide intercity bussing services.

LV: For passenger and freight transportation services, an authorisation is required, which is not extended to foreign registered vehicles. Established entities are required to use nationally registered vehicles.

RO: In order to obtain a licence, road haulage and road passenger transport operators may only use vehicles that are registered in Romania, owned and used according to the Government Ordinance provisions.

SE: In order to engage in the occupation of road transport operator, a Swedish licence is needed. Criteria for receiving a taxi licence include that the company has appointed a natural person to act as the transport manager (a de facto residency requirement — see the Swedish reservation on types of establishment). Criteria for receiving a licence for other road transport operators require that the company be established in the EU, have an establishment situated in Sweden and have appointed a natural person to act as the transport manager, who must be resident in the EU. Licences are granted on non-discriminatory terms, except that operators of road haulage and road passenger transport services may as a general rule only use vehicles that are registered in the national road traffic registry. If a vehicle is registered abroad,

([1]) Equivalent treatment implies non-discriminatory treatment of Union air carriers and Union CRS services suppliers.

owned by a natural or juridical person whose principal residence is abroad and is brought to Sweden for temporary use, the vehicle may be temporarily used in Sweden. Temporary use is usually defined by the Swedish Transport Agency as meaning not more than one year.

14. *Energy services*

EU: No national treatment and most favoured treatment obligations with respect to juridical persons of Republic of Moldova controlled ([1]) by natural or juridical persons of a country which accounts for more than 5 % of the EU's oil or natural gas imports ([2]), unless the EU provides comprehensive access to this sector to natural or juridical persons of this country, in the context of an economic integration agreement concluded with that country.

EU: No national treatment and most favoured nation treatment obligations for nuclear-based electricity generation and with respect to processing of nuclear fuel.

EU: Certification of a transmission system operator which is controlled by a natural or juridical person or persons from a third country or third countries may be refused where the operator has not demonstrated that granting certification will not put at risk the security of energy supply in a Member State and/or the EU, in accordance with Article 11 of Directive 2009/72/EC of the European Parliament and of the Council of 13 July 2009 concerning common rules for the internal market in electricity and Article 11 of Directive 2009/73/EC of the European Parliament and of the Council of 13 July 2009 concerning common rules for the internal market in natural gas.

AT, BE, BG, CY, CZ, DE, DK, ES, EE, FI, FR, EL, IE, IT, LV, LU, MT, NL, PL, PT, RO, SK, SI, SE, UK: No national treatment and most favoured nation treatment obligations with respect to pipeline transportation of fuels services, other than consultancy services.

BE, LV: No national treatment and most favoured nation treatment obligations with respect to pipeline transportation of natural gas, other than consultancy services.

AT, BE, BG, CY, CZ, DE, DK, ES, EE, FI, FR, EL, IE, HU, IT, LU, LT, MT, NL, PL, PT, RO, SK, SE, UK: No national treatment and most favoured nation treatment obligations with respect to services incidental to energy distribution, other than consultancy services.

SI: No national treatment and most favoured nation treatment obligations with respect to services incidental to energy distribution, other than services incidental to the distribution of gas.

CY: Reserves the right to require reciprocity for licensing in relation to the activities of prospecting, exploration and exploitation of hydrocarbons.

15. *Other services not included elsewhere*

PT: No national treatment and most favoured nation treatment obligations with respect to services related to the sale of equipment or to the assignment of a patent.

SE: No national treatment and most favoured nation treatment obligations with respect to funeral, cremation and undertaking services.

([1]) A juridical person is controlled by other natural or juridical person(s) if the latter has/have the power to name a majority of its directors or otherwise legally direct its actions. In particular, ownership of more than 50 % of the equity interest in a juridical person shall be deemed to constitute control.

([2]) Based on figures published by the Directorate-General in charge of Energy in the latest EU energy statistical pocketbook: crude oil imports expressed in weight, gas imports in calorific value.

ANNEX XXVII-B

LIST OF COMMITMENTS ON CROSS-BORDER SERVICES (UNION)

1. The list of commitments below indicates the economic activities liberalised by the Union pursuant to Article 212 to this Agreement and, by means of reservations, the market access and national treatment limitations that apply to services and service suppliers of the Republic of Moldova in those activities. The lists are composed of the following elements:

   (a) a first column indicating the sector or sub-sector in which the commitment is assumed by the Party, and the scope of liberalisation to which the reservations apply;

   (b) a second column describing the applicable reservations.

   When the column referred to under (b) only includes Member State-specific reservations, Member States not mentioned therein undertake commitments in the sector concerned without reservations (the absence of Member State-specific reservations in a given sector is without prejudice to horizontal reservations or to sectoral Union-broad reservations that may apply).

   Sectors or sub-sectors not mentioned in the list below are not committed.

2. In identifying individual sectors and sub-sectors:

   (a) CPC means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *prov*, 1991;

   (b) CPC ver. 1.0 means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *ver* 1.0, 1998.

3. The list below does not include measures relating to qualification requirements and procedures, technical standards and licensing requirements and procedures when they do not constitute a market access or a national treatment limitation within the meaning of Articles 210 and 211 of this Agreement. Those measures (e.g. need to obtain a license, universal service obligations, need to obtain recognition of qualifications in regulated sectors, need to pass specific examinations, including language examinations, non-discriminatory requirement that certain activities may not be carried out in environmental protected zones or areas of particular historic and artistic interest), even if not listed, apply in any case to investors of the other Party.

4. The list below is without prejudice to the feasibility of Mode 1 in certain services sectors and sub-sectors and without prejudice to the existence of public monopolies and exclusive rights as described in the list of commitments on establishment.

5. In accordance with Article 202(3) of this Agreement, the list below does not include measures concerning subsidies granted by the Parties.

6. The rights and obligations arising from this list of commitments shall have no self-executing effect and thus confer no rights directly to individual natural persons or juridical persons.

7. Mode 1 and Mode 2 refer to the means of the supply of services as described in Article 203(13)(a) and (b) of this Agreement respectively.

Sector or sub-sector	Description of reservations
1. **BUSINESS SERVICES**	
A. Professional Services	
a) Legal Services (CPC 861) ([1]) (excluding legal advisory and legal documentations and certification services provided by professionals entrusted with public functions, such as notaries, *huissiers de justice* or other *officiers publics et ministériels*)	For Modes 1 and 2 **AT, CY, ES, EL, LT, MT:** Full admission to the Bar, required for the practice of domestic (EU and Member State) law, is subject to a nationality condition **BE:** Full admission to the Bar, required for legal representation services, is subject to a nationality condition, coupled with residency requirements. Quotas apply for appearing before the '*Cour de cassation*' in non-criminal cases. **BG:** Foreign lawyers can only provide legal representation services of a national of their home country and subject to reciprocity and cooperation with a Bulgarian lawyer. For legal mediation services permanent residence is required. **FR:** Lawyers' access to the profession of '*avocat auprès de la Cour de Cassation*' et '*avocat auprès du Conseil d'Etat*' is subject to quotas and to a nationality condition **HU:** For foreign lawyers the scope of legal activities is limited to the provision of legal advice. **LV:** Nationality requirement for sworn advocates, to whom legal representation in criminal proceedings is reserved. **DK:** Marketing of legal advice activities is restricted to lawyers with a Danish licence to practice and law firms registered in Denmark. Requirement of a Danish legal examination in order to obtain a Danish licence. **SE:** Admission to the Bar, necessary only for the use of the Swedish title '*advokat*', is subject to a residency requirement. For Mode 1 **HR:** None for consultancy on foreign and international law. Unbound for practicing of Croatian law.
b) 1. Accounting and Bookkeeping Services (CPC 86212 other than 'auditing services', CPC 86213, CPC 86219 and CPC 86220)	For Mode 1 **FR, HU, IT, MT, RO, SI:** Unbound **AT:** Nationality condition for representation before competent authorities For Mode 2 All Member States: None

([1]) Includes legal advisory, legal representational, legal arbitration and conciliation/mediation, and legal documentation and certification services. Provision of legal services is only authorised in respect of public international law, EU law and the law of any jurisdiction where the service supplier or its personnel is qualified to practice as a lawyer, and, like the provision of other services, is subject to licensing requirements and procedures applicable in Member States. For lawyers providing legal services in respect of public international law and foreign law, these may take, inter alia, the form of compliance with local codes of ethics, use of home title (unless recognition with the host title has been obtained) insurance requirements, simple registration with the host country Bar or a simplified admission to the host country Bar through an aptitude test and a legal or professional domicile in the host country. Legal services in respect of EU law shall in principle be carried out by or through a fully qualified lawyer admitted to the Bar in the EU acting personally, and legal services in respect of the law of a Member State shall in principle be carried out by or through a fully qualified lawyer admitted to the Bar in that Member State acting personally. Full admission to the Bar in the relevant Member State might therefore be necessary for representation before courts and other competent authorities in the EU since it involves practice of EU and national procedural law. However, in some Member States, foreign lawyers not fully admitted to the Bar are allowed to represent in civil proceedings a party being a national or belonging to the State in which the lawyer is entitled to practice.

Sector or sub-sector	Description of reservations
b) 2. Auditing services (CPC 86211 and 86212 other than accounting services)	For Mode 1 **BE, BG, CY, DE, ES, FI, FR, EL, HU, IE, IT, LU, MT, NL, PT, RO, SI, UK:** Unbound **AT:** Nationality condition for representation before competent authorities and for performing audits provided for in specific Austrian laws (e.g. joint stock companies law, stock exchange law, banking law, etc.) **HR:** Foreign audit firms may provide audit services on the Croatian territory where they have established a branch, in accordance with the provisions of the Company Act. **SE:** Only auditors approved in Sweden may perform statutory auditing services in certain legal entities, among others in all limited companies, and in relation to natural persons. Only such persons and registered public accounting firms may be shareowners or form partnerships in companies which practice qualified auditing (for official purposes). Residency within the EEA or Switzerland required for approval. The titles of 'approved auditor' and 'authorised auditor' may only be used by auditors approved or authorised in Sweden. Auditors of cooperative economic associations and certain other enterprises who are not certified or approved accountants must be resident within the EEA, unless the Government or a Government authority appointed by the Government in a separate case allows otherwise. For Mode 2 None
c) Taxation Advisory Services (CPC 863) [1]	For Mode 1 **AT:** Nationality condition for representation before competent authorities **CY:** Tax agents must be duly authorized by the Minister of Finance. Authorization is subject to an economic needs test. The criteria used are analogous to those for granting permission for foreign investment (listed in horizontal section), as they apply to this sub-sector, always taking into consideration the employment situation in the sub-sector. **BG, MT, RO, SI:** Unbound For Mode 2 None
d) Architectural services And e) Urban planning and landscape architectural services	For Mode 1 **AT:** Unbound except for planning services. **BE, CY, EL, IT, MT, PL, PT, SI:** Unbound **DE:** Application of the national rules on fees and emoluments for all services which are performed from abroad **HR:** Architectural services: Natural and juridical persons may supply these services upon approval of the Croatian Chamber of Architects. A design or project elaborated abroad must be recognized (validated) by an authorized natural or juridical person in Croatia with regard to its compliance with Croatian Law. Authorisation for recognition (validation) is issued by the Ministry of Construction and Physical Planning. Urban planning: Natural and juridical persons may provide these services after receiving the approval of the Ministry of Construction and Physical Planning.

[1] Does not include legal advisory and legal representational services on tax matters, which are to be found under 1.A.a). Legal services.

Sector or sub-sector	Description of reservations
(CPC 8671 and CPC 8674)	**HU, RO:** Unbound for landscape architectural services For Mode 2 None
f) Engineering services; and g) Integrated engineering services (CPC 8672 and CPC 8673)	For Mode 1 **AT, SI:** Unbound except for pure planning services. **CY, EL, IT, MT, PT:** Unbound **HR:** Natural and juridical persons may supply these services upon approval of the Croatian Chamber of Engineers. A design or project elaborated abroad must be recognized (validated) by an authorized natural or juridical person in Croatia with regard to its compliance with Croatian Law. Authorisation for recognition (validation) is issued by the Ministry of Construction and Physical Planning. For Mode 2 None
h) Medical (including Psychologists), and Dental services (CPC 9312 and part of CPC 85201)	For Mode 1 **AT, BE, BG, CY, DE, DK, EE, ES, FI, FR, EL, IE, IT, LU, MT, NL, PT, RO, SK, UK:** Unbound **HR:** Unbound, except for telemedicine where: None. **SI:** Unbound for social medicine, sanitary, epidemiological, medical/ecological services, the supply of blood, blood preparations and transplants and autopsy. For Mode 2 None
i) Veterinary services (CPC 932)	For Mode 1 **AT, BE, BG, CY, CZ, DE, DK, EE, ES, FR, EL, HU, IE, IT, LV, MT, NL, PT, RO, SI, SK:** Unbound **UK:** Unbound except for veterinary laboratory and technical services supplied to veterinary surgeons, general advice, guidance and information e.g.: nutritional behaviour and pet care. For Mode 2 None
j) 1. Midwives services (part of CPC 93191)	For Mode 1 **AT, BE, BG, CY, CZ, DE, DK, EE, ES, FR, EL, HU, IE, IT, LV, LT, LU, MT, NL, PT, RO, SI, SK, UK:** Unbound
j) 2. Services provided by Nurses, Physiotherapists and Paramedical Personnel (part of CPC 93191)	**FI, PL:** Unbound except for nurses **HR:** Unbound, except for telemedicine: None. For Mode 2 None
k) Retail sales of pharmaceuticals and retail sales of medical and orthopaedical goods	For Mode 1 **AT, BE, BG, CZ, DE, CY, DK, ES, FI, FR, EL, IE, IT, LU, MT, NL, PL, PT, RO, SK, SE, SI, UK:** Unbound

Sector or sub-sector	Description of reservations
(CPC 63211) and other services supplied by pharmacists [1]	**LV, LT:** Unbound except for mail order **HU:** Unbound except for CPC 63211 For Mode 2 None
B. Computer and Related Services (CPC 84)	 For Modes 1 and 2 None
C. Research and Development Services	
a) R & D services on Social Sciences and Humanities (CPC 852 excluding psychologists services) [2] b) R & D services on natural sciences (CPC 851) and c) Interdisciplinary R & D services (CPC 853)	For Modes 1 and 2 **EU:** For publicly funded R & D services, exclusive rights and/or authorisations can only be granted to nationals of the Member States and to juridical persons of the Union having their headquarters in the Union.
D. Real Estate Services [3]	
a) Involving Own or Leased Property (CPC 821)	For Mode 1 **BG, CY, CZ, EE, HU, IE, LV, LT, MT, PL, RO, SK, SI:** Unbound **HR:** Commercial presence required. For Mode 2 None
b) On a Fee or Contract Basis (CPC 822)	For Mode 1 **BG, CY, CZ, EE, HU, IE, LV, LT, MT, PL, RO, SK, SI:** Unbound **HR:** Commercial presence required. For Mode 2 None
E. Rental/Leasing Services without Operators	
a) Relating to Ships (CPC 83103)	For Mode 1 **BG, CY, DE, HU, MT, RO:** Unbound For Mode 2 None

(1) The supply of pharmaceuticals to the general public, like the provision of other services, is subject to licensing and qualification requirements and procedures applicable in Member States. As a general rule, this activity is reserved to pharmacists. In some Member States, only the supply of prescription drugs is reserved to pharmacists.
(2) Part of CPC 85201, which is to be found under 1.A.h. Medical and dental services.
(3) The service involved relates to the profession of real estate agent and does not affect any rights and/or restrictions on natural and juridical persons purchasing real estate.

Sector or sub-sector	Description of reservations
b) Relating to Aircraft (CPC 83104)	For Mode 1 **BG, CY, CZ, HU, LV, MT, PL, RO, SK:** Unbound. For Mode 2 **BG, CY, CZ, LV, MT, PL, RO, SK:** Unbound. AT, BE, DE, DK, ES, EE, FI, FR, EL, HU, IE, IT, LT, LU, NL, PT, SI, SE, UK: Aircraft used by an air carrier of the European Union have to be registered in the Member State licensing the air carrier or elsewhere in the Union. Waivers can be granted for short term lease contracts or under exceptional circumstances.
c) Relating to Other Transport Equipment (CPC 83101, CPC 83102 and CPC 83105)	For Mode 1 **BG, CY, HU, LV, MT, PL, RO, SI:** Unbound For Mode 2 None
d) Relating to Other Machinery and Equipment (CPC 83106, CPC 83107, CPC 83108 and CPC 83109)	For Mode 1 **BG, CY, CZ, HU, MT, PL, RO, SK:** Unbound For Mode 2 None
e) Relating to personal and household goods (CPC 832)	For Modes 1 and 2 **AT, BE, BG, CY, CZ, DE, DK, ES, FI, FR, EL, HU, IE, IT, LU, MT, NL, PL, PT, RO, SI, SE, SK, UK:** Unbound
f) Telecommunications equipment rental (CPC 7541)	For Modes 1 and 2 None.
F. Other Business Services	
a) Advertising (CPC 871)	For Modes 1 and 2 None.
b) Market Research and Opinion Polling (CPC 864)	For Modes 1 and 2 None
c) Management Consulting Services (CPC 865)	For Modes 1 and 2 None.
d) Services Related to Management Consulting (CPC 866)	For Modes 1 and 2 **HU:** Unbound for arbitration and conciliation services (CPC 86602).

Sector or sub-sector	Description of reservations
e) Technical Testing and Analysis Services (CPC 8676)	For Mode 1 **IT:** Unbound for the profession of biologist and chemical analyst **BG, CY, CZ, MT, PL, RO, SK, SE:** Unbound For Mode 2 **CY, CZ, MT, PL, RO, SK, SE:** Unbound
f) Advisory and Consulting services incidental to Agriculture, Hunting and Forestry (part of CPC 881)	For Mode 1 **IT:** Unbound for activities reserved to agronomist and *'periti agrari'* **EE, MT, RO, SI:** Unbound For Mode 2 None
g) Advisory and Consulting Services Relating to Fishing (part of CPC 882)	For Mode 1 **LV, MT, RO, SI:** Unbound For Mode 2 None
h) Advisory and Consulting Services incidental to Manufacturing (part of CPC 884 and part of CPC 885)	For Modes 1 and 2 None.
i) Placement and Supply Services of Personnel	
i) 1. Executive search (CPC 87201)	For Mode 1 **AT, BG, CY, CZ, DE, EE, ES, FI, HR, IE, LV, LT, MT, PL, PT, RO, SK, SI, SE:** Unbound For Mode 2 **AT, BG, CY, CZ, EE, FI, HR, LV, LT, MT, PL, RO, SK, SI:** Unbound.
i) 2. Placement Services (CPC 87202)	For Mode 1 **AT, BE, BG, CY, CZ, DE, DK, EE, ES, EL, FI, FR, HR, IE, IT, LU, LV, LT, MT, NL, PL, PT, RO, SI, SE, SK, UK:** Unbound For Mode 2 **AT, BG, CY, CZ, EE, FI, HR, LV, LT, MT, PL, RO, SI, SK:** Unbound.
i) 3. Supply Services of office support personnel	For Mode 1 **AT, BG, CY, CZ, DE, EE, FI, FR, HR, IT, IE, LV, LT, MT, NL, PL, PT, RO, SE, SK, SI:** Unbound

Sector or sub-sector	Description of reservations
(CPC 87203)	For Mode 2 **AT, BG, CY, CZ, EE, FI, HR, LV, LT, MT, PL, RO, SK, SI:** Unbound
i) 4. Supply services of domestic help personnel, other commercial or industrial workers, nursing and other personnel (CPCs 87204, 87205, 87206, 87209)	For Modes 1 and 2 All Member States except HU: Unbound. **HU:** None.
j) 1. Investigation Services (CPC 87301)	For Modes 1 and 2 **BE, BG, CY, CZ, DE, DK, ES, EE, FI, FR, EL, HR, HU, IE, IT, LV, LT, LU, MT, NL, PL, PT, RO, SK, SI, UK:** Unbound
j) 2. Security Services (CPC 87302, CPC 87303, CPC 87304 and CPC 87305)	For Mode 1 **HU:** Unbound for CPC 87304, CPC 87305 **BE, BG, CY, CZ, ES, EE, FI, FR, HR, IT, LV, LT, MT, PT, PL, RO, SI, SK:** Unbound. For Mode 2 **HU:** Unbound for CPC 87304, CPC 87305 **BG, CY, CZ, EE, HR, LV, LT, MT, PL, RO, SI, SK:** Unbound.
k) Related Scientific and Technical Consulting Services (CPC 8675)	For Mode 1 **BE, BG, CY, DE, DK, ES, FR, EL, IE, IT, LU, MT, NL, PL, PT, RO, SI, UK:** Unbound for exploration services **HR:** None, except that services of basic geological, geodetic and mining research as well as related environmental protection research services on the territory of Croatia can be carried out only jointly with/or through domestic juridical persons. For Mode 2 None
l) 1. Maintenance and repair of vessels (part of CPC 8868)	For Mode 1 For maritime transport vessels: **BE, BG, DE, DK, EL, ES, FI, FR, HR, IE, IT, LU, NL, PT, SI, UK:** Unbound. For internal waterways transport vessels: **EU except EE, HU, LV, PL:** Unbound. For Mode 2 None
l) 2. Maintenance and Repair of Rail Transport Equipment (part of CPC 8868)	For Mode 1 **AT, BE, BG, DE, CY, CZ, DK, ES, FI, FR, EL, HR, IE, IT, LT, LV, LU, MT, NL, PL, PT, RO, SE, SI, SK, UK:** Unbound For Mode 2 None

Sector or sub-sector	Description of reservations
l) 3. Maintenance and Repair of motor vehicles, motorcycles, snowmobiles and road transport Equipment	For Modes 1 and 2
(CPC 6112, CPC 6122, part of CPC 8867 and part of CPC 8868)	None
l) 4. Maintenance and Repair of Aircraft and parts thereof	For Mode 1 **BE, BG, CY, CZ, DE, DK, ES, FI, FR, EL, HR, IE, IT, LT, LU, MT, NL, PT, RO, SK, SI, SE, UK:** Unbound
(part of CPC 8868)	For Mode 2 None
l) 5. Maintenance and Repair services of metal products, of (non office) machinery, of (non transport and non office) equipment and of personal and household goods ([1])	For Modes 1 and 2
(CPC 633, CPC 7545, CPC 8861, CPC 8862, CPC 8864, CPC 8865 and CPC 8866)	None
m) Building-Cleaning Services	For Mode 1
(CPC 874)	**AT, BE, BG, CY, CZ, DE, DK, ES, EE, FI, FR, EL, HR, IE, IT, LU, LV, MT, NL, PL, PT, RO, SI, SE, SK, UK:** Unbound For Mode 2 None.
n) Photographic Services	For Mode 1
(CPC 875)	**BG, EE, MT, PL:** Unbound for the supply of aerial photographic services **HR, LV:** Unbound for specialty photographic services (CPC 87504) For Mode 2 None.
o) Packaging Services	For Modes 1 and 2
(CPC 876)	None
p) Printing and Publishing	For Modes 1 and 2
(CPC 88442)	None
q) Convention Services	For Modes 1 and 2
(part of CPC 87909)	None

([1]) Maintenance and repair services of transport equipment (CPC 6112, 6122, 8867 and CPC 8868) are to be found under l.F. l) 1 to 1.F.l) 4.

Sector or sub-sector	Description of reservations
r) Other	
r) 1. Translation and Interpretation Services	For Mode 1 **PL:** Unbound for services of sworn translators and interpreters **HR:** Unbound for official documents **HU, SK:** Unbound for official translation and interpretation
(CPC 87905)	For Mode 2 None
r) 2. Interior design and other specialty design services	For Mode 1 **DE:** Application of the national rules on fees and emoluments for all services which are performed from abroad **HR:** Unbound.
(CPC 87907)	For Mode 2 None
r) 3. Collection Agency Services	For Modes 1 and 2
(CPC 87902)	**BE, BG, CY, CZ, DE, DK, ES, EE, FI, FR, EL, HR, HU, IE, IT, LT, LU, MT, NL, PL, PT, RO, SK, SI, SE, UK:** Unbound
r) 4. Credit reporting services	For Modes 1 and 2
(CPC 87901)	**BE, BG, CY, CZ, DE, DK, ES, EE, FI, FR, EL, HR, HU, IE, IT, LT, LU, MT, NL, PL, PT, RO, SK, SI, SE, UK:** Unbound
r) 5. Duplicating services	For Mode 1
(CPC 87904) [1]	**AT, BE, BG, CY, CZ, DE, DK, ES, EE, FI, FR, EL, HR, HU, IE, IT, LT, LU, MT, NL, PL, PT, RO, SI, SE, SK, UK:** Unbound For Mode 2 None
r) 6. Telecommunications consulting services	For Modes 1 and 2
(CPC 7544)	None
r) 7. Telephone answering services	For Modes 1 and 2
(CPC 87903)	None

[1] Does not include printing services, which fall under CPC 88442 and are to be found under 1.F p).

Sector or sub-sector	Description of reservations
2. **COMMUNICATION SERVICES**	
A. Postal and Courier Services (Services relating to the handling ([1]) of postal items ([2]) according to the following list of sub-sectors, whether for domestic or foreign destinations:	
(i) Handling of addressed written communications on any kind of physical medium ([3]), including Hybrid mail service and Direct mail,	For Modes 1 and 2
(ii) Handling of addressed parcels and packages ([4]),	None ([5])
(iii) Handling of addressed press products ([6])	
(iv) Handling of items referred to in (i) to (iii) above as registered or insured mail,	
(v) Express delivery services ([7]) for items referred to in (i) to (iii) above,	
(vi) Handling of non-addressed items,	
(vii) Document exchange ([8]) Sub-sectors (i), (iv) and (v) are however excluded when they fall into the scope of the services which may be reserved, which is: for items of correspondence the price of which is less than 5 times the public basic tariff, provided that they weigh less than 350 grams ([9]), plus the registered mail service used in the course of judicial or administrative procedures.)	

([1]) The term 'handling' should be taken to include clearance, sorting, transport and delivery.
([2]) 'Postal item' refers to items handled by any type of commercial operator, whether public or private.
([3]) E.g. letter, postcards.
([4]) Books, catalogues are included hereunder.
([5]) For subsectors i) to iv), individual licences imposing particular universal services obligations and/or financial contribution to a compensation fund may be required.
([6]) Journals, newspapers, periodicals.
([7]) Express delivery services may include, in addition to greater speed and reliability, value added elements such as collection from point of origin, personal delivery to addressee, tracing and tracking, possibility of changing the destination and addressee in transit, confirmation of receipt.
([8]) Provision of means, including the supply of ad hoc premises as well as transportation by a third party, allowing self-delivery by mutual exchange of postal items between users subscribing to this service. Postal item refers to items handled by any type of commercial operator, whether public or private.
([9]) 'Items of correspondence': a communication in written form on any kind of physical medium to be conveyed and delivered at the address indicated by the sender on the item itself or on its wrapping. Books, catalogues, newspapers and periodicals are not regarded as items of correspondence.

Sector or sub-sector	Description of reservations
(part of CPC 751, part of CPC 71235 ([1]) and part of CPC 73210 ([2]))	
B. Telecommunications Services (These services do not cover the economic activity consisting of the provision of content which requires telecommunications services for its transport)	
a) All services consisting of the transmission and reception of signals by any electromagnetic means ([3]), excluding broadcasting ([4])	For Modes 1 and 2 None
b) Satellite broadcast transmission services ([5])	For Modes 1 and 2 **EU:** None except that service providers in this sector may be subject to obligations to safeguard general interest objectives related to the conveyance of content through their network in line with the EU regulatory framework for electronic communications **BE:** Unbound
3. **CONSTRUCTION AND RELATED ENGINEERING SERVICES**	
Construction and related engineering services (CPC 511, CPC 512, CPC 513, CPC 514, CPC 515, CPC 516, CPC 517 and CPC 518)	For Modes 1 and 2 None
4. **DISTRIBUTION SERVICES** (excluding distribution of arms, munitions, explosives and other war material)	
A. Commission Agents' Services	For Modes 1 and 2
a) Commission Agents' Services of motor vehicles, motorcycles and snowmobiles and parts and accessories thereof	**EU except AT, SI, SE, FI:** Unbound for distribution of chemical products, and of precious metals (and stones).
(part of CPC 61111, part of CPC 6113 and part of CPC 6121)	**AT:** Unbound for distribution of pyrotechnical goods, of ignitable articles and blasting devices and of toxic substances.

([1]) Transportation of mail on own account by any land Mode.
([2]) Transportation of mail on own account by air.
([3]) These services do not include on-line information and/or data processing (including transaction processing) (part of CPC 843) which is to be found under 1.B. Computer services.
([4]) Broadcasting is defined as the uninterrupted chain of transmission required for the distribution of TV and radio programme signals to the general public, but does not cover contribution links between operators.
([5]) These services cover the telecommunications service consisting of the transmission and reception of radio and television broadcast by satellite (the uninterrupted chain of transmission via satellite required for the distribution of TV and radio programme signals to the general public). This covers selling use of satellite services, but does not include the selling of television programme packages to households.

Sector or sub-sector	Description of reservations
b) Other Commission Agents' Services	**AT, BG:** Unbound for distribution of products for medical use such as medical and surgical devices, medical substances and objects for medical use. **HR:** Unbound for distribution of tobacco products.
(CPC 621)	For Mode 1
B. Wholesale Trade Services	**AT, BG, FR, PL, RO:** Unbound for distribution of tobacco and tobacco products.
a) Wholesale Trade Services of motor vehicles, motorcycles and snowmobiles and parts and accessories thereof	
(part of CPC 61111, part of CPC 6113 and part of CPC 6121)	**BG, FI, PL, RO:** Unbound for distribution of alcoholic beverages
b) Wholesale Trade Services of telecommunication terminal equipment	**SE:** Unbound for retail distribution of alcoholic beverages
(part of CPC 7542)	**AT, BG, CZ, FI, RO, SK, SI:** Unbound for distribution of pharmaceuticals
c) Other wholesale trade services	**BG, HU, PL:** Unbound for commodity brokers' services.
(CPC 622 excluding wholesale trade services of energy products ([1]))	**FR:** For commission agents' services, unbound for traders and brokers working in 17 markets of national interest on fresh food products. Unbound for wholesale of pharmaceuticals.
C. Retailing Services ([2])	**MT:** Unbound for commission agents' services
Retailing Services of motor vehicles, motorcycles and snowmobiles and parts and accessories thereof	**BE, BG, CY, DE, DK, ES, FR, EL, IE, IT, LU, MT, NL, PL, PT, SK, UK:** For retailing services, unbound except for mail order.
(CPC 61112, part of CPC 6113 and part of CPC 6121)	
Retailing Services of telecommunication terminal equipment	
(part of CPC 7542)	
Food retailing services	
(CPC 631)	
Retailing services of other (non-energy) goods, except retail sales of pharmaceutical, medical and orthopaedic goods ([3])	
(CPC 632 excluding CPC 63211 and 63297)	
D. Franchising	
(CPC 8929)	

([1]) These services, which include CPC 62271, are to be found in ENERGY SERVICES under 18.D.
([2]) Does not include maintenance and repair services, which are to be found in BUSINESS SERVICES under 1.B. and 1.F.l).
([3]) Retail sales of pharmaceutical, medical and orthopaedic goods are to be found under PROFESSIONAL SERVICES in 1.A.k).

Sector or sub-sector	Description of reservations
5. **EDUCATIONAL SERVICES** (only privately-funded services)	
A. Primary Education Services (CPC 921)	For Mode 1 **BG, CY, FI, HR, MT, RO, SE, SI:** Unbound **FR:** Nationality condition. However, foreign nationals can have authorisation from competent authorities to establish and direct an education institution, and to teach. **IT:** Nationality condition for service providers to be authorized to issue State recognized diplomas. For Mode 2 **CY, FI, HR, MT, RO, SE, SI:** Unbound
B. Secondary Education Services (CPC 922)	For Mode 1 **BG, CY, FI,HR, MT, RO, SE:** Unbound **FR:** Nationality condition. However, foreign nationals can have authorisation from competent authorities to establish and direct an education institution, and to teach. **IT:** Nationality condition for service providers to be authorized to issue State recognized diplomas. For Mode 2 **CY, FI, MT, RO, SE:** Unbound For Modes 1 and 2 **LV:** Unbound for education services relating to technical and vocational secondary school-type education services for handicapped students (CPC 9224)
C. Higher Education Services (CPC 923)	For Mode 1 **AT, BG, CY, FI, MT, RO, SE:** Unbound **FR:** Nationality condition. However, foreign nationals can have authorisation from competent authorities to establish and direct an education institution, and to teach. **IT:** Nationality condition for service providers to be authorized to issue State recognized diplomas. For Mode 2 **AT, BG, CY, FI, MT, RO, SE:** Unbound For Modes 1 and 2 **CZ, SK:** Unbound for higher education services, except post-secondary technical and vocational education services (CPC 92310)
D. Adult Education Services (CPC 924)	For Modes 1 and 2 **CY, FI, MT, RO, SE:** Unbound. **AT:** Unbound for adult education services by means of radio or television broadcasting.

Sector or sub-sector	Description of reservations
E. Other education services (CPC 929)	For Modes 1 and 2 **AT, BE, BG, CY, DE, DK, ES, EE, FI, FR, EL, HU, IE, IT, LV, LT, LU, MT, NL, PL, PT, RO, SI, SE, UK:** Unbound. For Mode 1: **HR:** None for correspondence education or education via telecommunication.
6. **ENVIRONMENTAL SERVICES**	
A. Waste Water Services (CPC 9401) ([1])	For Mode 1 **EU, except EE, LT, LV:** Unbound except for consulting services **EE, LT, LV:** None For Mode 2: None
B. Solid/hazardous waste management, excluding cross-border transport of hazardous waste	For Mode 1 **EU, except EE, HU:** Unbound except for consulting services **EE, HU:** None For Mode 2
a) Refuse Disposal Services (CPC 9402)	None
b) Sanitation and Similar Services (CPC 9403)	For Mode 1 **EU, except EE, HU, LT:** Unbound except for consulting services **EE, HU, LT:** None For Mode 2 None
C. Protection of ambient air and climate (CPC 9404) ([2])	For Mode 1 **EU, except EE, FI, LT, PL, RO:** Unbound except for consulting services **EE, FI, LT, PL, RO:** None For Mode 2 None
D. Remediation and clean-up of soil and waters	For Mode 1 **EU, except EE, FI, RO:** Unbound except for consulting services **EE, FI, RO:** None For Mode 2 None

([1]) Corresponds to sewage services.
([2]) Corresponds to Cleaning Services of Exhaust Gases.

Sector or sub-sector	Description of reservations
a) Treatment, remediation of contaminated/polluted soil and water (part of CPC 94060) [1]	
E. Noise and vibration abatement (CPC 9405)	For Mode 1 **EU, except EE, FI, LT, PL, RO:** Unbound except for consulting services **EE, FI, LT, PL, RO:** None For Mode 2 None
F. Protection of biodiversity and landscape a) Nature and landscape protection services (part of CPC 9406)	For Mode 1 **EU, except EE, FI, RO:** Unbound except for consulting services **EE, FI, RO:** None For Mode 2 None
G. Other environmental and ancillary services (CPC 94090)	For Mode 1 **EU, except EE, FI, RO:** Unbound except for consulting services **EE, FI, RO:** None For Mode 2 None
7. **FINANCIAL SERVICES**	
A. Insurance and insurance-related services	For Modes 1 and 2 **AT, BE, CZ, DE, DK, ES, FI, FR, EL, HU, IE, IT, LU, NL, PL, PT, RO, SK, SE, SI, UK:** Unbound for direct insurance services except for insurance of risks relating to: i) Maritime shipping and commercial aviation and space launching and freight (including satellites), with such insurance to cover any or all of the following: the goods being transported, the vehicle transporting the goods and any liability arising therefrom; and ii) goods in international transit. **AT:** Promotional activity and intermediation on behalf of a subsidiary not established in the Union or of a branch not established in Austria (except for reinsurance and retrocession) are prohibited. Compulsory air insurance, except for insurance of international commercial air transport, can be underwritten only by a subsidiary established in the Union or by a branch established in Austria.

[1] Corresponds to parts of Nature and Landscape Protection Services.

Sector or sub-sector	Description of reservations
	DK: Compulsory air transport insurance can be underwritten only by firms established in the Union. No persons or companies (including insurance companies) may for business purposes in Denmark assist in effecting direct insurance for persons resident in Denmark, for Danish ships or for property in Denmark, other than insurance companies licensed by Danish law or by Danish competent authorities. **DE:** Compulsory air insurance policies can be underwritten only by a subsidiary established in the Union or by a branch established in Germany. If a foreign insurance company has established a branch in Germany, it may conclude insurance contracts in Germany relating to international transport only through the branch established in Germany. **FR:** Insurance of risks relating to ground transport may be carried out only by insurance firms established in the Union. **PL:** Unbound for reinsurance and retrocession except for risks relating to goods in international trade. **PT:** Air and maritime transport insurance, covering goods, aircraft, hull and liability can be underwritten only by firms established in the EU; only persons or companies established in the EU may act as intermediaries for such insurance business in Portugal. For Mode 1 **AT, BE, CZ, DE, DK, ES, FI, FR, EL, HU, IE, IT, LU, NL, PT, RO, SK, SE, SI, UK:** Unbound for direct insurance intermediation services except for insurance of risks relating to: i) Maritime shipping and commercial aviation and space launching and freight (including satellites), with such insurance to cover any or all of the following: the goods being transported, the vehicle transporting the goods and any liability arising therefrom; and ii) goods in international transit. **BG:** Unbound for direct insurance, except for services supplied by foreign suppliers to foreign persons in the territory of the Republic of Bulgaria. Transport insurance, covering goods, insurance of vehicles as such and liability insurance regarding risks located in the Republic of Bulgaria may not be underwritten by foreign insurance companies directly. A foreign insurance company may conclude insurance contracts only through a branch. Unbound for deposit insurance and similar compensations schemes, as well as mandatory insurance schemes. **CY, LV, MT:** Unbound for direct insurance services except for insurance of risks relating to: i) Maritime shipping and commercial aviation and space launching and freight (including satellites), with such insurance to cover any or all of the following: the goods being transported, the vehicle transporting the goods and any liability arising herefrom; and ii) goods in international transit.

Sector or sub-sector	Description of reservations
	LT: Unbound for direct insurance services except for insurance of risks relating to: i) Maritime shipping and commercial aviation and space launching and freight (including satellites), with such insurance to cover any or all of the following: the goods being transported, the vehicle transporting the goods and any liability arising therefrom; and ii) goods in international transit, except related to land transport where the risk is located in Lithuania. **BG, LV, LT, PL:** Unbound for insurance intermediation. **ES:** For actuarial services, residence requirement and three-years relevant experience. **FI:** Only insurers having their head-office in the EU or having their branch in Finland may offer direct insurance (including co-insurance) services. The supply of insurance broker services is subject to a permanent place of business in the EU. **HR:** Unbound for direct insurance and direct insurance intermediation services, except a) life insurance: for the supply of life insurance to foreign persons residing in Croatia; b) non-life insurance: for the supply of non-life insurance to foreign persons residing in Croatia other than automobile liability; c) marine, aviation, transport. **HU:** The supply of direct insurance in the territory of Hungary by insurance companies not established in the EU is allowed only through a branch office registered in Hungary. **IT:** Unbound for the actuarial profession. Transport insurance of goods, insurance of vehicles as such and liability insurance regarding risks located in Italy may be underwritten only by insurance companies established in the Union. This reservation does not apply for international transport involving imports into Italy. **SE:** The supply of direct insurance is allowed only through an insurance service supplier authorised in Sweden, provided that the foreign service supplier and the Swedish insurance company belong to the same group of companies or have an agreement of cooperation between them. For Mode 2 **AT, BE, BG, CZ, CY, DE, DK, ES, FI, FR, EL, HU, IE, IT, LU, MT, NL, PL, PT, RO, SK, SE, SI, UK:** Unbound for intermediation **BG:** For direct insurance, Bulgarian natural and juridical persons, as well as foreign persons who conduct business activity in the territory of the Republic of Bulgaria, can conclude insurance contracts only with suppliers with respect to their activity in Bulgaria, which are licensed to conduct insurance activity in Bulgaria. Insurance compensation resulting from these contracts shall be paid in Bulgaria. Unbound for deposit insurance and similar compensations schemes, as well as mandatory insurance schemes.

Sector or sub-sector	Description of reservations
	HR: Unbound for direct insurance and direct insurance intermediation services, except a) life insurance: for the ability of foreign persons residing in Croatia to obtain life insurance; b) non-life insurance: (i) for the ability of foreign persons residing in Croatia to obtain non-life insurance other than automobile liability; (ii) personal or property risk insurance that is not available in the Republic of Croatia; companies purchasing insurance abroad in connection with investment works abroad including the equipment for those works; for ensuring the return of foreign loans (collateral insurance); personal and property insurance of wholly-owned enterprises and joint ventures which perform an economic activity in a foreign country, if it is in accordance with the regulations of that country or it is required by its registration; ships under construction and overhaul if it is stipulated by the contract concluded with the foreign client (buyer); c) marine, aviation, transport. **IT:** Transport insurance of goods, insurance of vehicles as such and liability insurance regarding risks located in Italy may be underwritten only by insurance companies established in the Union. This reservation does not apply for international transport involving imports into Italy.
B. Banking and other financial services (excluding insurance)	For Mode 1 **AT, BE, BG, CZ, DE, DK, ES, FI, FR, EL, HU, IE, IT, LU, NL, PL, PT, SK, SE, UK:** Unbound except for provision of financial information and financial data processing and for advisory and other auxiliary services excluding intermediation. **BE:** Establishment in Belgium is required for the provision of investment advisory services. **BG:** Limitations and conditions relating to the use of telecommunications network may apply. **CY:** Unbound except for trading of transferable securities, for provision of financial information and financial data processing and for advisory and other auxiliary services excluding intermediation. **EE:** For acceptance of deposits, requirement of authorisation by Estonian Financial Supervision Authority and registration under Estonian Law as a joint-stock company, a subsidiary or a branch. The establishment of a specialised management company is required to perform the activities of management of investment funds, and only firms having their registered office in the Union can act as depositories of the assets of investment funds. **HR:** Unbound except for lending, financial leasing, payment and money transmission services, guarantees and commitments, money broking, provision and transfer of financial information and advisory and other axillary financial services excluding intermediation.

Sector or sub-sector	Description of reservations
	LT: The establishment of a specialized management company is required to perform the activities of management of investment funds, and only firms having their registered office or branch in Lithuania can act as depositories of the assets of investment funds. **IE:** The provision of investment services or investment advice requires either (I) authorisation in Ireland, which normally requires that the entity be incorporated or be a partnership or a sole trader, in each case with a head/registered office in Ireland (authorisation may not be required in certain cases, e.g. where a third country service provider has no commercial presence in Ireland and the service is not provided to private individuals), or (II) authorisation in another Member State in accordance with the EU Investment Services Directive. **IT:** Unbound for 'promotori di servizi finanziari' (financial salesmen). **LV:** Unbound except for participation in issues of all kinds of securities, for provision of financial information and financial data processing and for advisory and other auxiliary services excluding intermediation. **LT:** Commercial presence is required for pension fund management. **MT:** Unbound except for acceptance of deposits, for lending of all types, for provision of financial information and financial data processing and for advisory and other auxiliary services excluding intermediation. **PL:** For the provision and transfer of financial information, and financial data processing and related software: Requirement to use the public telecommunication network, or the network of other authorised operator. **RO:** Unbound for financial leasing, for trading of money market instruments, foreign exchange, derivative products, exchange rate and interest rate instruments, transferable securities and other negotiable instruments and financial assets, for participation in issues of all kinds of securities, for asset management and for settlement and clearing services for financial assets. Payments and money transmission services are allowed only through a resident bank. SI: (i) Participation in issues of Treasury bonds, pension fund management: Unbound. (ii) All other sub sectors, except provision and transfer of Financial information, accepting credits (borrowing of all types), and accepting guarantees and commitments from foreign credit institutions by domestic legal entities and sole proprietors, and advisory and other auxiliary financial services: Unbound. Members of the Slovenian Stock Exchange must be incorporated in the Republic of Slovenia or be branches of foreign investment firms or banks. For Mode 2 **BG:** Limitations and conditions relating to the use of telecommunications network may apply. **PL:** For the provision and transfer of financial information, and financial data processing and related software: Requirement to use the public telecommunication network, or the network of another authorised operator.

Sector or sub-sector	Description of reservations
8. **HEALTH SERVICES AND SOCIAL SERVICES** (only privately-funded services)	
A. Hospital Services	For Mode 1
(CPC 9311)	**AT, BE, BG, DE, CY, CZ, DK, ES, EE, FI, FR, EL, IE, IT, LV, LT, MT, LU, NL, PL, PT, RO, SI, SE, SK, UK:** Unbound **HR:** Unbound, except for telemedicine.
C. Residential health facilities other than hospital services	For Mode 2
(CPC 93193)	None
D. Social Services	For Mode 1
(CPC 933)	**AT, BE, BG, CY, CZ, DE, DK, EE, ES, EL, FI, FR, HU, IE, IT, LU, MT, NL, PL, PT, RO, SE, SI, SK, UK:** Unbound For Mode 2 **BE:** Unbound for social services other than convalescent and rest houses and old people's homes
9. **TOURISM AND TRAVEL RELATED SERVICES**	
A. Hotel, Restaurants and Catering	For Mode 1
(CPC 641, CPC 642 and CPC 643)	**AT, BE, BG, CY, CZ, DE, DK, ES, FR, EL, IE, IT, LV, LT, LU, MT, NL, PL, PT, RO, SK, SI, SE, UK:** Unbound except for catering. **HR:** Unbound
excluding catering in air transport services ([1])	For Mode 2 None
B. Travel Agencies and Tour Operators Services	For Mode 1 **BG, HU:** Unbound
(including tour managers)	For Mode 2
(CPC 7471)	None
C. Tourist Guides Services	For Mode 1
(CPC 7472)	**BG, CY, CZ, HU, IT, LT, MT, PL, SK, SI:** Unbound. For Mode 2 None
10. **RECREATIONAL, CULTURAL AND SPORTING SERVICES** (other than audiovisual services)	
A. Entertainment Services (including Theatre, Live Bands, Circus and Discotheque Services)	For Mode 1 **BE, BG, CY, CZ, DE, DK, ES, EE, FI, FR, EL, HR, HU, IE, IT, LV, LT, LU, MT, NL, PL, PT, RO, SK, SI, UK:** Unbound

([1]) Catering in air transport services is to be found in SERVICES AUXILARY TO TRANSPORT SERVICES under 12.D.a) Groundhandling services.

Sector or sub-sector	Description of reservations
(CPC 9619)	For Mode 2 **CY, CZ, FI, HR, MT, PL, RO, SK, SI:** Unbound **BG:** Unbound, except for theatrical producer, singer group, band and orchestra entertainment services (CPC 96191); services provided by authors, composers, sculptors, entertainers and other individual artists (CPC 96192); ancillary theatrical services (CPC 96193) **EE:** Unbound for other entertainment services (CPC 96199), except for cinema theatre services **LT, LV:** Unbound, except for cinema theatre operation services (part of CPC 96199)
B. News and Press Agencies Services (CPC 962)	For Modes 1 and 2 None
C. Libraries, archives museums and other cultural services (CPC 963)	For Mode 1 **BE, BG, CY, CZ, DE, DK, ES, EE, FI, FR, EL, HR, HU, IE, IT, LT, LV, LU, MT, NL, PL, PT, RO, SK, SI, SE, UK:** Unbound For Mode 2 **BE, BG, CY, CZ, DE, DK, ES, FI, FR, EL, HR, HU, IE, IT, LT, LV, LU, MT, NL, PL, PT, RO, SK, SI, SE, UK:** Unbound
D. Sporting services (CPC 9641)	For Modes 1 and 2 **AT:** Unbound for ski school services and mountain guide services. **BG, CZ, LV, MT, PL, RO, SK:** Unbound For Mode 1 **CY, EE, HR:** Unbound
E. Recreation park and beach Services (CPC 96491)	For Modes 1 and 2 None
11. **TRANSPORT SERVICES**	
A. Maritime transport a) International passenger transportation (CPC 7211 less national cabotage transport ([1])) b) International freight transportation (CPC 7212 less national cabotage transport30) ([2])	For Modes 1 and 2 **BG, CY, DE, EE, ES, FR, FI, EL, IT, LT, MT, PT, RO, SI, SE:** Feedering services by authorisation.

([1]) Without prejudice to the scope of activities which may be considered as cabotage under the relevant national legislation, this schedule does not include national cabotage transport, which is assumed to cover transportation of passengers or goods between a port or point located in a Member State of the EU and another port or point located in the same Member State, including on its continental shelf as provided in the UN Convention on the Law of the Sea, and traffic originating and terminating in the same port or point located in a Member State of the EU.

([2]) Includes feedering services and movement of equipment by international maritime transport suppliers between ports located in same State when no revenue is involved.

Sector or sub-sector	Description of reservations
B. Internal Waterways Transport	For Modes 1 and 2
a) Passenger transportation (CPC 7221 less national cabotage transport30)	**EU:** Measures based upon existing or future agreements on access to inland waterways (incl. agreements following the Rhine-Main-Danube link) reserve some traffic rights for operators based in the countries concerned and meeting nationality criteria regarding ownership. Regulations implementing the Mannheim Convention on Rhine Shipping and the Belgrade Convention on Danube Navigation.
b) Freight transportation (CPC 7222 less national cabotage transport30)	**AT:** Registered company or permanent establishment in Austria is required. **BG, CY, EE, FI, HR, HU, LT, MT, RO, SE, SI:** Unbound **CZ, SK:** Unbound for Mode 1 only
C. Rail Transport	For Mode 1
a) Passenger transportation	**EU:** Unbound
(CPC 7111)	For Mode 2
b) Freight transportation	None.
(CPC 7112)	
D. Road Transport	For Mode 1
a) Passenger Transportation	**EU:** Unbound.
(CPC 7121 and CPC 7122)	For Mode 2
b) Freight Transportation	None
(CPC 7123, excluding transportation of mail on own account ([1])).	
E. Pipeline transport of goods other than fuel ([2])	For Mode 1
	EU: Unbound.
(CPC 7139)	For Mode 2
	AT, BE, BG, CY, CZ, DE, DK, ES, EE, FI, FR, EL, IE, IT, LV, LU, MT, NL, PL, PT, RO, SK, SI, SE, UK: Unbound
12. **SERVICES AUXILIARY TO TRANSPORT** ([3])	
A. Services auxiliary to Maritime Transport	
a) Maritime Cargo Handling Services	For Mode 1
b) Storage and warehousing Services (part of CPC 742)	**EU:** Unbound for maritime cargo handling services, pushing and towing services, customs clearance services and for container station and depot services
c) Customs Clearance Services	**AT, BG, CY, CZ, DE, EE, HU, LT, MT, PL, RO, SK, SI, SE:** Unbound for rental of vessels with crew
d) Container Station and Depot Services	

([1]) Part of CPC 71235, which is to be found in COMMUNICATION SERVICES under 2.A. Postal and courier services.
([2]) Pipeline transportation of fuels is to be found in ENERGY SERVICES under 13.B.
([3]) Does not include maintenance and repair services of transport equipment, which are to be found in BUSINESS SERVICES under 1.F.l) 1 to 1.F.l) 4.

Sector or sub-sector	Description of reservations
e) Maritime Agency Services	**BG:** unbound
f) Maritime freight forwarding Services	
g) Rental of Vessels with Crew (CPC 7213)	**AT, BE, BG, CY, CZ, DE, DK, ES, FI, FR, EL, IE, IT, LT, LU, MT, NL, PL, PT, RO, SK, SI, SE, UK:** Unbound for storage and warehousing services **HR:** Unbound except for freight transport agency services
h) Pushing and towing services (CPC 7214)	
i) Supporting services for maritime transport	For Mode 2
(part of CPC 745)	None
j) Other supporting and auxiliary services (part of CPC 749)	
B. Services auxiliary to internal waterways transport	
a) Cargo-handling services (part of CPC 741)	For Modes 1 and 2 **EU:** Measures based upon existing or future agreements on access to inland waterways (incl. agreements following the Rhine-Main-Danube link) reserving some traffic rights for operators based in the countries concerned and meeting nationality criteria regarding ownership. Regulations implementing the Mannheim Convention on Rhine Shipping.
b) Storage and warehouse services (part of CPC 742)	
c) Freight transport agency services (part of CPC 748)	**EU:** Unbound for pushing and towing services, except for CZ, LV, SK for mode 2 only, where: None **HR:** Unbound except for freight transport agency services
d) Rental of Vessels with Crew (CPC 7223)	For Mode 1 **AT, BG, CY, CZ, DE, EE, FI, HU, LV, LT, MT, RO, SK, SI, SE:** Unbound for rental of vessels with crew
e) Pushing and towing services (CPC 7224)	
f) Supporting services for internal waterway transport (part of CPC 745)	
g) Other supporting and auxiliary services (part of CPC 749)	
C. Services auxiliary to rail transport	
a) Cargo-handling services (part of CPC 741)	For Mode 1 **EU:** Unbound for pushing and towing services **HR:** Unbound except for freight transport agency services

Sector or sub-sector	Description of reservations
b) Storage and warehouse services (part of CPC 742) c) Freight transport agency services (part of CPC 748) d) Pushing and towing services (CPC 7113) e) Supporting services for rail transport services (CPC 743) f) Other supporting and auxiliary services (part of CPC 749)	For Mode 2 None
D. Services auxiliary to road transport a) Cargo-handling services (part of CPC 741) b) Storage and warehouse services (part of CPC 742) c) Freight transport agency services (part of CPC 748) d) Rental of Commercial Road Vehicles with Operators (CPC 7124) e) Supporting services for road transport (CPC 744) f) Other supporting and auxiliary services (part of CPC 749)	For Mode 1 **AT, BG, CY, CZ, EE, HU, LV, LT, MT, PL, RO, SK, SI, SE:** Unbound for Rental of Commercial Road Vehicles with Operators **HR:** Unbound except for freight transport agency services and supporting services for road transport that are subject to permit For Mode 2 None
D. Services auxiliary to air transport services	
a) Ground-handling services (including catering services)	For Mode 1 **EU:** Unbound except for catering. For Mode 2 **BG, CY, CZ, HR, HU, MT, PL, RO, SK, SI:** Unbound.

Sector or sub-sector	Description of reservations
b) Storage and warehouse services (part of CPC 742)	For Modes 1 and 2 None.
c) Freight transport agency services (part of CPC 748)	For Modes 1 and 2 None
d) Rental of aircraft with crew (CPC 734)	For Modes 1 and 2 **EU:** Aircraft used by Union air carriers have to be registered in the Member States licensing the air carrier or elsewhere in the Union. To be registered, aircraft may be required to be owned either by natural persons meeting specific nationality criteria or by juridical persons meeting specific criteria regarding ownership of capital and control. By exception, aircraft registered outside EU may be leased by a foreign air carrier to an air carrier of the EU in specific circumstances for the air carrier of the EU's exceptional needs, seasonal capacity needs, or needs to overcome operational difficulties, which cannot reasonably be satisfied through leasing aircraft registered within the EU, and subject to obtaining the approval of a limited duration from the Member State licensing the air carrier of the EU.
e) Sales and Marketing f) Computer Reservations System	For Modes 1 and 2 **EU:** Where air carriers of the EU are not accorded equivalent treatment ([1]) to that provided in the EU by CRS services suppliers outside EU, or where CRS services suppliers of the EU are not accorded equivalent treatment to that provided in the EU by non-EU air carriers, measures may be taken to accord equivalent treatment, respectively, to the non-EU air carriers by the CRS services suppliers in the EU, or to the non-EU CRS services suppliers by the air carriers in the EU.
g) Airport management	For Mode 1 **EU:** Unbound For Mode 2 None
E. Services auxiliary to pipeline transport of goods other than fuel ([2]) a) Storage and warehouse services of goods other than fuel transported by pipelines, (part of CPC 742)	For Mode 1 **AT, BE, BG, CY, CZ, DE, DK, ES, FI, FR, EL, HR, IE, IT, LT, LU, MT, NL, PL, PT, RO, SK, SI, SE, UK:** Unbound For Mode 2 None

13. **OTHER TRANSPORT SERVICES**

Provision of Combined Transport Service	**BE, DE, DK, EL, ES, FI, FR, IE, IT, LU, NL, PT, UK:** None, without prejudice to the limitations inscribed in this List of Commitments affecting any given mode of transport. AT, BG, CY, CZ, EE, HR, HU, LT, LV, MT, PL, RO, SE, SI, SK: Unbound.

([1]) 'Equivalent treatment' implies non-discriminatory treatment of Union air carriers and CRS services suppliers of the Union.
([2]) Services auxiliary to pipeline transportation of fuels are to be found in ENERGY SERVICES under 13.C.

Sector or sub-sector	Description of reservations
14. **ENERGY SERVICES**	
A. Services Incidental to Mining (CPC 883) ([1])	For Modes 1 and 2 None
B. Pipeline Transportation of fuels (CPC 7131)	For Mode 1 **EU:** Unbound. For Mode 2 **AT, BE, BG, CY, CZ, DE, DK, ES, EE, FI, FR, EL, IE, IT, LV, LU, MT, NL, PL, PT, RO, SK, SI, SE, UK:** Unbound
C. Storage and warehouse services of fuels transported through pipelines (part of CPC 742)	For Mode 1: **AT, BE, BG, CY, CZ, DE, DK, ES, FI, FR, EL, HR, IE, IT, LT, LU, MT, NL, PL, PT, RO, SK, SI, SE, UK:** Unbound For Mode 2 None
D. Wholesale trade services of solid, liquid and gaseous fuels and related products (CPC 62271) and wholesale trade services of electricity, steam and hot water	For Mode 1 **EU:** Unbound for wholesale trade services of electricity, steam and hot water For Mode 2 None
E. Retailing Services of motor fuel (CPC 613)	For Mode 1 **EU:** Unbound For Mode 2 None
F. Retail sales of fuel oil, bottled gas, coal and wood (CPC 63297) and retailing services of electricity, (non bottled) gas, steam and hot water	For Mode 1 **EU:** Unbound for retailing services of electricity, (non bottled) gas, steam and hot water **BE, BG, CY, CZ, DE, DK, ES, FR, EL, IE, IT, LU, MT, NL, PL, PT, SK, UK:** For Retail sales of fuel oil, bottled gas, coal and wood, unbound except for mail order where: none. For Mode 2 None
G. Services incidental to energy distribution	For Mode 1 **EU:** Unbound except for consultancy services where: none

([1]) Includes the following service rendered on a fee or contract basis: advisory and consulting services relating to mining, on land site preparation, on land rig installation, drilling, drilling bits services, casing and tubular services, mud engineering and supply, solids control, fishing and down-hole special operations, wellsite geology and drilling control, core taking, well testing, wireline services, supply and operation of completion fluids (brines) supply and installation of completion devices, cementing (pressure pumping), stimulation services (fracturing, acidising and pressure pumping), workover and well repair services, plugging and abandoning of wells.

Sector or sub-sector	Description of reservations
(CPC 887)	For Mode 2 None
15. **OTHER SERVICES NOT INCLUDED ELSEWHERE**	
a) Washing, Cleaning and Dyeing services (CPC 9701)	For Mode 1 **EU:** Unbound For Mode 2 None
b) Hairdressing services (CPC 97021)	For Mode 1 **EU:** Unbound For Mode 2 None.
c) Cosmetic treatment, manicuring and pedicure services (CPC 97022)	For Mode 1 **EU:** Unbound For Mode 2 None
d) Other beauty treatment services n.e.c (CPC 97029)	For Mode 1 **EU:** Unbound For Mode 2 None
e) Spa services and non therapeutical massages, to the extent that they are provided as relaxation physical well-being services and not for medical or rehabilitation purposes ([1]) (CPC ver. 1.0 97230)	For Mode 1 **EU:** Unbound For Mode 2 None
g) Telecommunications connection services (CPC 7543)	For Modes 1 and 2 None

([1]) Therapeutical massages and thermal cure services are to be found under 1.A.h) Medical services, 1.A.j) 2 Services provided by nurses, physiotherapists and para-medical personnel and health services (8.A and 8.C).

ANNEX XXVII-C

LIST OF RESERVATIONS ON KEY PERSONNEL, GRADUATE TRAINEES AND BUSINESS SELLERS (UNION)

1. The list of reservations below indicates the economic activities liberalised pursuant to Sections 2 and 3 of Chapter 6 (Establishment, Trade in Services and Electronic Commerce) of Title V (Trade and Trade-related Matters) of this Agreement for which limitations on key personnel and graduate trainees in accordance with Article 215 and on business sellers in accordance with Article 216 of this Agreement apply and specifies such limitations. The list below is composed of the following elements:

   (a) the first column indicating the sector or sub-sector in which limitations apply; and

   (b) the second column describing the applicable limitations.

   When the column referred to under (b) only includes Member State-specific reservations, Member States not mentioned therein undertake commitments in the sector concerned without reservations (the absence of Member State-specific reservations in a given sector is without prejudice to horizontal reservations or to sectoral Union-broad reservations that may apply).

   The Union does not undertake any commitment for key personnel, graduate trainees and business sellers in economic activities which are not liberalised (remain unbound) pursuant to pursuant to Sections 2 and 3 of Chapter 6 (Establishment, Trade in Services and Electronic Commerce) of Title V (Trade and Trade-related Matters) of this Agreement.

2. In identifying individual sectors and sub-sectors:

   (a) CPC means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *prov,* 1991; and

   (b) CPC ver. 1.0 means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *ver* 1.0, 1998.

3. Commitments on key personnel, graduate trainees, business service sellers and sellers of goods do not apply in cases where the intent or effect of their temporary presence is to interfere with, or otherwise affect the outcome of, any labour/management dispute or negotiation.

4. The list below does not include measures relating to qualification requirements and procedures, technical standards and licensing requirements and procedures when they do not constitute a limitation within the meaning of Articles 215 and 216 of this Agreement. Those measures (e.g. need to obtain a license, need to obtain recognition of qualifications in regulated sectors, need to pass specific examinations, including language examinations), even if not listed below, apply in any case to key personnel, graduate trainees and business sellers of the Republic of Moldova.

5. All other requirements of the laws and regulations of the EU and its Member States regarding entry, stay, work and social security measures shall continue to apply, including regulations concerning period of stay, minimum wages as well as collective wage agreements.

6. In accordance with Article 202(3) of this Agreement, the list below does not include measures concerning subsidies granted by a Party.

7. The list below is without prejudice to the existence of public monopolies and exclusive rights as described in the list of commitments on establishment.

8. In the sectors where economic needs tests are applied, their main criteria will be the assessment of the relevant market situation in the Member State or the region where the service is to be provided, including with respect to the number of, and the impact on, existing services suppliers.

9. The rights and obligations arising from the list below shall have no self-executing effect and thus confer no rights directly on natural or juridical persons.

Sector or sub-sector	Description of reservations
ALL SECTORS	**Scope of intra-corporate transferees** **BG:** The number of intra-corporate transferees is not to exceed 10 % of the average annual number of the citizens of the EU employed by the respective Bulgarian juridical person. Where less than 100 persons are employed, the number of intra-corporate transferees may, subject to authorisation, exceed 10 % of that of the total employees. **HU:** Unbound for a natural person who has been a partner in a juridical person of the Republic of Moldova.
ALL SECTORS	**Graduate trainees** For **AT, CZ, DE, ES, FR, HU**, training must be linked to the university degree which has been obtained. **BG, HU:** Economic needs tests are required for graduate trainees ([1]).
ALL SECTORS	**Managing directors and auditors** **AT:** Managing directors of branches of juridical persons have to be resident in Austria. Natural persons within a juridical person or a branch responsible for the observance of the Austrian Trade Act must have a domicile in Austria. **FI:** A foreigner carrying on trade as a private entrepreneur needs a trade permit and has to be permanently resident in the EEA. For all sectors, EEA residency requirements apply for the managing director; however, exemptions may be granted to certain companies. **FR:** The managing director of an industrial, commercial or artisanal activity, if not a holder of a residency permit, needs a specific authorisation. **RO:** The majority of the commercial companies' auditors and their deputies shall be Romanian citizens. **SE:** The managing director of a juridical person or a branch shall reside in Sweden.
ALL SECTORS	**Recognition** **EU:** EU directives on mutual recognition of diplomas only apply to the citizens of the EU. The right to practise a regulated professional service in one Member State does not grant the right to practise in another Member State ([2]).

([1]) As regards services sectors, these limitations do not go beyond the limitations reflected in the existing GATS commitments.
([2]) In order for non-EU country nationals to obtain EU-wide recognition of their qualifications, a mutual recognition agreement, negotiated within the framework defined in Article 222 of this Agreement, is necessary.

Sector or sub-sector	Description of reservations
6. BUSINESS SERVICES	
A. Professional Services	
a) Legal Services (CPC 861) [1] excluding legal advisory and legal documentations and certification services provided by legal professionals entrusted with public functions, such as notaries, '*huissiers de justice*' or other '*officiers publics et ministériels*'.	**AT, CY, ES, EL, LT, MT, RO, SK:** Full admission to the Bar, required for the practice of domestic (EU and Member State) law, is subject to a nationality condition. For ES, the competent authorities may grant waivers. **BE, FI:** Full admission to the Bar, required for legal representation services, is subject to a nationality condition, coupled with a residency requirement. In BE quotas apply for representation before the '*Cour de cassation*' in non-criminal cases. **BG:** Lawyers of the Republic of Moldova can only provide legal representation services of a national of the Republic of Moldova and subject to reciprocity and cooperation with a Bulgarian lawyer. For legal mediation services, permanent residency is required. **FR:** Lawyers' access to the profession of '*avocat auprès de la Cour de Cassation*' and '*avocat auprès du Conseil d'Etat*' is subject to quotas and to a nationality condition. **HR:** Full admission to the Bar, required for legal representation services, is subject to a nationality condition (Croatian citizenship or citizenship of another Member State). **HU:** Full admission to the Bar is subject to a nationality condition, coupled with a residency requirement. For foreign lawyers the scope of legal activities is limited to the provision of legal advice, which shall take place on the basis of a collaboration contract concluded with a Hungarian attorney or a law firm. **LV:** Nationality requirement for sworn solicitors, to whom legal representation in criminal proceedings is reserved. **DK:** Marketing of legal advice services is restricted to lawyers with a Danish license to practice. Requirement of a Danish legal examination in order to obtain a Danish licence. **LU:** Nationality condition for the supply of legal services in respect of Luxembourg and EU law. **SE:** Admission to the Bar, necessary only for the use of the Swedish title '*advokat*', is subject to a residency requirement.

[1] Includes legal advisory services, legal representational services, legal arbitration and conciliation/mediation services, and legal documentation and certification services.
Provision of legal services is only authorised in respect of public international law, EU law and the law of any jurisdiction where the service supplier or its personnel is qualified to practice as a lawyer, and, like the provision of other services, is subject to licensing requirements and procedures applicable in the Member States. For lawyers providing legal services in respect of public international law and foreign law, these licensing requirements and procedures may take, inter alia, the form of compliance with local codes of ethics, use of home title (unless recognition with the host title has been obtained), insurance requirements, simple registration with the host country Bar or a simplified admission to the host country Bar through an aptitude test and a legal or professional domicile in the host country. Legal services in respect of EU law shall in principle be carried out by or through a fully qualified lawyer admitted to the Bar in a Member State acting personally, and legal services in respect of the law of a Member State shall in principle be carried out by or through a fully qualified lawyer admitted to the Bar in that Member State acting personally. Full admission to the Bar in the relevant Member State might therefore be necessary for representation before courts and other competent authorities in the Union since it involves practice of EU and national procedural law. However, in some Member States, foreign lawyers not fully admitted to the Bar are allowed to represent in civil proceedings a party being a national of or belonging to the State in which the lawyer is entitled to practice.

Sector or sub-sector	Description of reservations
b) 1. Accounting and Bookkeeping Services (CPC 86212 other than 'auditing services', CPC 86213, CPC 86219 and CPC 86220)	**FR:** Provision of accounting and bookkeeping services is conditional on a decision of the Minister of Economics, Finance and Industry, in agreement with the Minister of Foreign Affairs. The requirement of residency cannot exceed 5 years. **IT:** Residency requirement.
b) 2. Auditing services (CPC 86211 and 86212 other than accounting services)	**AT:** Nationality condition for representation before competent authorities and for performing audits provided for in specific Austrian laws (e.g. joint stock companies law, stock exchange law, banking law, etc.). **DK:** Residency requirement. **ES:** Nationality condition for statutory auditors and for administrators, directors and partners of companies other than those covered by the 8th EEC directive on company law. **FI:** Residency requirement for at least one of the auditors of a Finnish Liability company. **EL:** Nationality condition for statutory auditors. **HR:** Only certified auditors holding a licence formally recognised by the Croatian Chamber of Auditors can provide auditing services. **IT:** Residency requirement for individual auditors. **SE:** Only auditors approved in Sweden may perform legal auditing services in certain legal entities, inter alia, in all limited companies. Residency required for approval.
c) Taxation Advisory Services (CPC 863) [1]	**AT:** Nationality condition for representation before competent authorities. **BG, SI:** Nationality condition for specialists. **HU:** Residency requirement.
d) Architectural services and e) Urban planning and landscape architectural services (CPC 8671 and CPC 8674)	**EE:** At least one responsible person (project manager or consultant) must be resident in Estonia. **BG:** Foreign specialists must have experience of at least two years in the field of construction. Nationality condition for urban planning and landscape architectural services. **EL, HU, IT:** Residency requirement. **SK:** Membership in relevant chamber is obligatory; membership in relevant foreign institutions may be recognised. Residency requirement, however exceptions might be considered.
f) Engineering services and g) Integrated engineering services (CPC 8672 and CPC 8673)	**EE:** At least one responsible person (project manager or consultant) must be resident in Estonia. **BG:** Foreign specialists must have experience of at least two years in the field of construction. **HR, IT, SK:** Residency requirement. **EL, HU:** Residency requirement (For CPC 8673 a residency requirement only applies to Graduate Trainees).

[1] Does not include legal advisory and legal representational services on tax matters, which are to be found under 6.A.a) Legal Services.

Sector or sub-sector	Description of reservations
h) Medical (including psychologists) and Dental services (CPC 9312 and part of CPC 85201)	**CZ, IT, SK:** Residency requirement. **CZ, RO, SK:** Authorization by the competent authorities required for foreign natural persons. **BE, LU:** For graduate trainees, authorization by the competent authorities required for foreign natural persons. **BG, MT:** Nationality condition. **DK:** Limited authorization to fulfil a specific function can be given for up to 18 months and requires residency. **FR:** Nationality condition. However, access is possible within annually established quotas. **HR:** All persons providing services directly to patients/treating patients need a licence from the professional chamber. **LV:** Practice of medical profession by foreigners requires the permission from local health authorities, based on economic needs for medical doctors and dentists in a given region. **PL:** Practice of medical profession by foreigners requires the permission. Foreign medical doctors have limited election rights within the professional chambers. **PT:** Residency requirement for psychologists.
i) Veterinary services (CPC 932)	**BG, DE, EL, FR, HR, HU:** Nationality condition. **CZ and SK:** Nationality Requirement and residency requirement. **IT:** Residency requirement. **PL:** Nationality requirement. Foreign persons may apply for permission to practice.
j) 1. Midwives services (part of CPC 93191)	**AT:** In order to establish a professional practice in Austria, the person concerned must have practised the profession in question for at least three years preceding the setting up of that professional practice. **BE, LU:** For graduate trainees, authorization by the competent authorities required for foreign natural persons. **CY, EE, RO, SK:** Authorization by the competent authorities required for foreign natural persons. **FR:** Nationality condition. However, access is possible within annually established quotas. **HR:** All persons providing services directly to patients/treating patients need a licence from the professional chamber. **HU:** Unbound. **IT:** Residency requirement. **LV:** Subject to economic needs, determined by the total number of midwives in the given region, authorized by local health authorities. **PL:** Nationality condition. Foreign persons may apply for permission to practice.

Sector or sub-sector	Description of reservations
j) 2. Services provided by Nurses, Physiotherapists and Paramedical Personnel (part of CPC 93191)	**AT:** Foreign services suppliers are only allowed in the following activities: nurses, physiotherapists, occupational therapists, logotherapists, dieticians and nutritionists. In order to establish a professional practice in Austria, the person concerned must have practised the profession in question for at least three years preceding the setting up of that professional practice. **BE, FR, LU:** For graduate trainees, authorization by the competent authorities required for foreign natural persons. **CY, CZ, EE, RO, SK:** Authorization by the competent authorities required for foreign natural persons. **HR:** All persons providing services directly to patients/treating patients need a licence from the professional chamber. **HU:** A nationality condition. **DK:** Limited authorization to fulfil a specific function can be given for up to 18 months and requires residency. **CY, CZ, EL, IT:** Subject to an economic needs test: decision is subject to regional vacancies and shortages. **LV:** Subject to economic needs determined by the total number of nurses in the given region, authorized by local health authorities.
k) Retail sales of pharmaceuticals and retail sales of medical and orthopaedical goods (CPC 63211) and other services supplied by pharmacists ([1])	**FR:** Nationality condition. However, within established quotas, access for nationals of the Republic of Moldova is possible provided the service provider holds a French degree in pharmacy. **DE, EL, SK:** Nationality condition. **HU:** Nationality condition except for retail sales of pharmaceuticals and retail sales of medical and orthopaedical goods (CPC 63211). **IT, PT:** Residency requirement.
D. Real Estate Services ([2])	
a) Involving Own or Leased Property (CPC 821)	**FR, HU, IT, PT:** Residency requirement. **LV, MT, SI:** Nationality condition.
b) On a Fee or Contract Basis (CPC 822)	**DK:** Residency requirement unless waived by the Danish Business Authority. **FR, HU, IT, PT:** Residency requirement. **LV, MT, SI:** Nationality condition.
E. Rental/Leasing Services without Operators	
e) Relating to personal and household goods (CPC 832)	**EU:** Nationality condition for specialists and for graduate trainees.

([1]) The supply of pharmaceuticals to the general public, like the provision of other services, is subject to licensing and qualification requirements and procedures applicable in the Member States. As a general rule, this activity is reserved to pharmacists. In some Member States, only the supply of prescription drugs is reserved to pharmacists.

([2]) The service involved relates to the profession of real estate agent and does not affect any rights and/or restrictions on natural and juridical persons purchasing real estate.

Sector or sub-sector	Description of reservations
f) Telecommunications equipment rental (CPC 7541)	**EU:** Nationality condition for specialists and for graduate trainees.
F. Other Business Services	
e) Technical Testing and Analysis Services (CPC 8676)	**IT, PT:** Residence requirements for biologists and chemical analysts.
f) Advisory and Consulting services incidental to Agriculture, Hunting and Forestry (part of CPC 881)	**IT:** Residence requirements for agronomists and *'periti agrari.'*
j) 2. Security Services (CPC 87302, CPC 87303, CPC 87304 and CPC 87305)	**BE:** Nationality condition and a residence requirement for management personnel. **BG, CY, CZ, EE, LV, LT, MT, PL, RO, SI, SK:** Nationality condition and a residence requirement. **DK:** Nationality condition and a residence requirement for managers and for airport guard services. **ES, PT:** Nationality condition for specialized personnel. **FR:** Nationality condition for managing directors and directors. **IT:** Italian or EU nationality condition and a residence requirement in order to obtain necessary authorisation for security guard services and the transport of valuables.
k) Related Scientific and Technical Consulting Services (CPC 8675)	**BG:** Nationality condition for specialists. **DE:** Nationality condition for publicly appointed surveyors. **FR:** Nationality condition for 'surveying' operations relating to the establishment of property rights and to land law. **IT, PT:** Residency requirement.
l) 1. Maintenance and repair of vessels (part of CPC 8868)	**MT:** Nationality condition.
l) 2. Maintenance and Repair of Rail Transport Equipment (part of CPC 8868)	**LV:** Nationality condition.
l) 3. Maintenance and Repair of motor vehicles, motorcycles, snowmobiles and road transport Equipment (CPC 6112, CPC 6122, part of CPC 8867 and part of CPC 8868)	**EU:** For maintenance and repair of motor vehicles, motorcycles and snowmobiles, nationality condition for specialists and for graduate trainees.

Sector or sub-sector	Description of reservations
l) 5. Maintenance and Repair services of metal products, of (non office) machinery, of (non transport and non office) equipment and of personal and household goods ([1]) (CPC 633, CPC 7545, CPC 8861, CPC 8862, CPC 8864, CPC 8865 and CPC 8866)	**EU:** Nationality condition for specialists and for graduate trainee, except for: **BE, DE, DK, ES, FR, EL, HU, IE, IT, LU, MT, NL, PL, PT, RO, SE, UK** for CPC 633, 8861, 8866; **BG** for repair services of personal and household goods (excl. Jewellery): CPC 63301, 63302, part of 63303, 63304, 63309; **AT** for CPC 633, 8861-8866; **EE, FI, LV, LT** for CPC 633, 8861-8866; **CZ, SK** for CPC 633, 8861-8865; and **SI** for CPC 633, 8861, 8866.
m) Building-Cleaning Services (CPC 874)	**CY, EE, HR, MT, PL, RO, SI:** Nationality condition for specialists.
n) Photographic Services (CPC 875)	**HR, LV:** Nationality condition for specialty photography services. **PL:** Nationality condition for the supply of aerial photographic services.
p) Printing and Publishing (CPC 88442)	**HR:** Residency requirement for publishers. **SE:** Residency requirement for publishers and owners of publishing and printing companies. **IT:** Owners of publishing and printing company and publishers must be citizens of a Member State.
q) Convention Services (part of CPC 87909)	**SI:** Nationality condition.
r) 1. Translation and Interpretation Services (CPC 87905)	**FI:** Residence requirement for certified translators. **DK:** Residence requirement for authorized public translators and interpreters, unless waived by the Danish Business Authority.
r) 3. Collection Agency Services (CPC 87902)	**BE, EL:** Nationality condition. **IT:** Unbound.
r) 4. Credit reporting services (CPC 87901)	**BE, EL:** Nationality condition. **IT:** Unbound.

([1]) Maintenance and repair services of transport equipment (CPC 6112, 6122, 8867 and CPC 8868) are to be found under 6.F. l) 1. to 6.F.l) 4.
Maintenance and repair services of office machinery and equipment including computers (CPC 845) are to be found under 6.B. Computer and Related Services.

Sector or sub-sector	Description of reservations
r) 5. Duplicating services (CPC 87904) ([1])	**EU:** Nationality condition for specialists and for graduate trainees.
8. CONSTRUCTION AND RELATED ENGINEERING SERVICES (CPC 511, CPC 512, CPC 513, CPC 514, CPC 515, CPC 516, CPC 517 and CPC 518)	**BG:** Foreign specialists must have experience of at least two years in the field of construction.
9. DISTRIBUTION SERVICES (excluding distribution of arms, munitions and war material)	
C. Retailing Services ([2])	
c) Food retailing services (CPC 631)	**FR:** Nationality condition for tobacconists (i.e. buraliste).
10. EDUCATIONAL SERVICES (only privately funded services)	
A. Primary Education Services (CPC 921)	**FR:** Nationality condition. However, nationals of the Republic of Moldova may obtain authorisation from the competent authorities to establish and direct an education institution, and to teach. **IT:** Nationality condition for service providers who are authorised to issue State-recognized diplomas. **EL:** Nationality condition for teachers.
B. Secondary Education Services (CPC 922)	**FR:** Nationality condition. However, nationals of the Republic of Moldova may obtain authorisation from the competent authorities to establish and direct an education institution, and to teach. **IT:** Nationality condition for service providers who are authorised to issue State-recognized diplomas. **EL:** Nationality condition for teachers. **LV:** Nationality condition for technical and vocational secondary school-type education services for handicapped students (CPC 9224).

([1]) Does not include printing services, which fall under CPC 88442 and are to be found under 6.F. p).
([2]) Does not include maintenance and repair services, which are to be found in BUSINESS SERVICES under 6.B. and 6.F.l).
Does not include retailing services of energy products which are to be found in ENERGY SERVICES under 19.E and 19.F.

Sector or sub-sector	Description of reservations
C. Higher Education Services (CPC 923)	**FR:** Nationality condition. However, nationals of the Republic of Moldova may obtain authorisation from the competent authorities to establish and direct an education institution and to teach. **CZ, SK:** Nationality condition for higher education services, except for post-secondary technical and vocational education services (CPC 92310). **IT:** Nationality condition for service providers who are authorised to issue State-recognized diplomas. **DK:** Nationality condition for professors.
12. FINANCIAL SERVICES	
A. Insurance and insurance-related services	**AT:** The management of a branch office must consist of two natural persons resident in Austria. **EE:** For direct insurance, the management body of an insurance joint-stock company with capital participation of a natural or a juridical person of the Republic of Moldova may include nationals of the Republic of Moldova only in proportion to the participation of a natural or a juridical person of the Republic of Moldova and in any event not more than half of the members of the management body. The head of the management of a subsidiary or an independent company must permanently reside in Estonia. **ES:** Residency requirement for the actuarial profession (or alternatively two years of experience) **FI:** The managing directors and at least one auditor of an insurance company shall have their place of residence in the EU, unless the competent authorities have granted an exemption. The general agent of an insurance company of the Republic of Moldova shall have his place of residence in Finland, unless the company has its head office in the EU. **HR:** Residency requirement. **IT:** Residency requirement for the actuarial profession.
B. Banking and other financial services (excluding insurance)	**BG:** Permanent residence in Bulgaria is required for the executive directors and the managerial agent. **FI:** A managing director and at least one auditor of credit institutions shall have their place of residence in the EU, unless the Financial Supervision Authority has granted an exemption. **HR:** Residency requirement. The management board shall direct the business of a credit institution from the territory of the Republic of Croatia. At least one management board member must be fluent in the Croatian language. **IT:** Condition of residency within the territory of a Member State for 'promotori di servizi finanziari' (financial salesmen). **LT:** At least one head of a bank's administration must permanently reside in the Republic of Lithuania. **PL:** Nationality requirement for at least one of the bank executives.

Sector or sub-sector	Description of reservations
13. HEALTH SERVICES AND SOCIAL SERVICES (only privately funded services)	
A. Hospital Services (CPC 9311) B. Ambulance Services (CPC 93192) C. Residential health facilities other than hospital services (CPC 93193) E. Social Services (CPC 933)	**FR:** Authorisation is necessary for the access to management functions. The availability of local managers is taken into consideration for the authorisation. **HR:** all persons providing services directly to patients/treating patients need a licence from the professional chamber. **LV:** Economic needs tests for doctors, dentists, midwives, nurses, physiotherapists and para-medical personnel. **PL:** Practice of medical profession by foreigners requires permission. Foreign medical doctors have limited election rights within the professional chambers.
14. TOURISM AND TRAVEL RELATED SERVICES	
A. Hotel, Restaurants and Catering (CPC 641, CPC 642 and CPC 643) excluding catering in air transport services [1]	**BG:** The number of foreign managers is not to exceed the number of managers who are Bulgarian citizens, in cases where the public (state and/or municipal) share in the equity capital of a Bulgarian company exceeds 50 %. **HR:** Nationality requirement for hospitality and catering services in households and rural homesteads.
B. Travel Agencies and Tour Operators Services (including tour managers) (CPC 7471)	**BG:** The number of foreign managers is not to exceed the number of managers who are Bulgarian citizens, in cases where the public (state and/or municipal) share in the equity capital of a Bulgarian company exceeds 50 %. **HR:** Approval of the Ministry of Tourism for office manager position.
C. Tourist Guides Services (CPC 7472)	**BG, CY, ES, FR, EL, HR, HU, LT, MT, PL, PT, SK:** Nationality condition. **IT:** Tourist guides from non-EU countries need to obtain a specific licence.
15. RECREATIONAL, CULTURAL AND SPORTING SERVICES (other than audiovisual services)	
A. Entertainment Services (including Theatre, Live Bands, Circus and Discotheque Services) (CPC 9619)	**FR:** Authorisation is necessary for the access to management functions. The authorization is subject to a nationality condition when authorisation for more than two years is required.

[1] Catering in air transport services is to be found in SERVICES AUXILARY TO TRANSPORT under 17.E.a) Ground-handling services.

Sector or sub-sector	Description of reservations
16. TRANSPORT SERVICES	
A. Maritime transport	
a) International passenger transportation (CPC 7211 less national cabotage transport). b) International freight transportation (CPC 7212 less national cabotage transport)	**EU:** Nationality condition for ships' crew. **AT:** Nationality condition for the majority of managing directors.
D. Road Transport	
a) Passenger Transportation (CPC 7121 and CPC 7122)	**AT:** Nationality condition for persons and shareholders entitled to represent a juridical person or a partnership. **DK, HR:** Nationality condition and residence requirement for managers. **BG, MT:** Nationality condition.
b) Freight Transportation (CPC 7123, excluding transportation of postal and courier items on own account ([1])).	**AT:** Nationality condition for persons and shareholders entitled to represent a juridical person or a partnership. **BG, MT:** Nationality condition. **HR:** Nationality condition and residency requirement for managers.
E. Pipeline transport of goods other than fuel ([2]) (CPC 7139)	**AT:** Nationality condition for managing directors.
17. SERVICES AUXILIARY TO TRANSPORT ([3])	
A. Services auxiliary to Maritime Transport a) Maritime Cargo Handling Services b) Storage and warehousing Services (part of CPC 742) c) Customs Clearance Services d) Container Station and Depot Services e) Maritime Agency Services	**AT:** Nationality condition for the majority of managing directors. **BG, MT:** Nationality condition. **DK:** Requirement of residence for customs clearance services. **EL:** Nationality condition for customs clearance services.

([1]) Part of CPC 71235, which is to be found in COMMUNICATION SERVICES under 7.A. Postal and Courier Services.
([2]) Pipeline transportation of fuels is to be found in ENERGY SERVICES under 19.B.
([3]) Does not include maintenance and repair services of transport equipment, which are to be found in BUSINESS SERVICES under 6.F.l) 1. to 6.F.l) 4.

Sector or sub-sector	Description of reservations
f) Maritime Freight Forwarding Services g) Rental of Vessels with Crew (CPC 7213) h) Pushing and towing services (CPC 7214) i) Supporting services for maritime transport (part of CPC 745) j) Other supporting and auxiliary services (excluding catering) (part of CPC 749)	
D. Services auxiliary to road transport d) Rental of Commercial Road Vehicles with Operators (CPC 7124)	**AT:** Nationality condition for persons and shareholders entitled to represent a juridical person or a partnership. **BG, MT:** Nationality condition.
F. Services auxiliary to pipeline transport of goods other than fuel [1] a) Storage and warehouse services of goods other than fuel transported by pipelines (part of CPC 742)	**AT:** Nationality condition for managing directors.
19. ENERGY SERVICES	
A. Services Incidental to Mining (CPC 883) [2]	**SK:** Residency requirement.
20. OTHER SERVICES NOT INCLUDED ELSEWHERE	
a) Washing, Cleaning and Dyeing services (CPC 9701)	**EU:** Nationality condition for specialists and for graduate trainees.

[1] Services auxiliary to pipeline transportation of fuels are to be found in ENERGY SERVICES under 19.C.

[2] Includes the following service rendered on a fee or contract basis: advisory and consulting services relating to mining, on-land site preparation, on-land rig installation, drilling, drilling bits services, casing and tubular services, mud engineering and supply, solids control, fishing and downhole special operations, wellsite geology and drilling control, core taking, well testing, wireline services, supply and operation of completion fluids (brines) supply and installation of completion devices, cementing (pressure pumping), stimulation services (fracturing, acidising and pressure pumping), workover and well repair services, plugging and abandoning of wells.
Does not include direct access to or exploitation of natural resources.
Does not include site preparation work for mining of resources other than oil and gas (CPC 5115), which is to be found under 8. CONSTRUCTION AND RELATED ENGINEERING SERVICES.

Sector or sub-sector	Description of reservations
b) Hairdressing services (CPC 97021)	**EU:** Nationality condition for specialists and for graduate trainees.
c) Cosmetic treatment, manicuring and pedicuring services (CPC 97022)	**EU:** Nationality condition for specialists and for graduate trainees.
d) Other beauty treatment services n.e.c (CPC 97029)	**EU:** Nationality condition for specialists and for graduate trainees.
e) Spa services and non therapeutical massages, to the extent that they are provided as relaxation physical well-being services and not for medical or rehabilitation purposes [1] (CPC ver. 1.0 97230)	**EU:** Nationality condition for specialists and for graduate trainees.

[1] Therapeutical massages and thermal cure services are to be found under 6.A.h) Medical and Dental services, 6.A.j) 2. Services provided by Nurses, Physiotherapists and Paramedical personnel, and health services (13.A and 13.C).

ANNEX XXVII-D

LIST OF RESERVATIONS ON CONTRACTUAL SERVICES SUPPLIERS AND INDEPENDENT PROFESSIONALS (UNION)

1. The Parties shall allow the supply of services into their territories by contractual service suppliers and independent professionals of the other Party through the presence of natural persons, in accordance with Articles 217 and 218 of this Agreement, for the economic activities which are listed below, and subject to the relevant limitations.

2. The list is composed of the following elements:

   (a) the first column indicating the sector or sub-sector in which limitations apply; and

   (b) the second column describing the applicable limitations.

   When the column referred to under (b) only includes Member State-specific reservations, Member States not mentioned therein undertake commitments in the sector concerned without reservations (the absence of Member State-specific reservations in a given sector is without prejudice to horizontal reservations or to sectoral Union-broad reservations that may apply).

   The Union does not undertake any commitment for contractual service suppliers and independent professionals for any sector of economic activity other than those which are explicitly listed below.

3. In identifying individual sectors and sub-sectors:

   (a) CPC means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *prov*, 1991; and

   (b) CPC ver. 1.0 means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *ver 1.0*, 1998.

4. Commitments for contractual service suppliers and independent professionals do not apply in cases where the intent or effect of their temporary presence is to interfere with, or otherwise affect the outcome of, any labour/management dispute or negotiation.

5. The list below does not include measures relating to qualification requirements and procedures, technical standards and licensing requirements and procedures when they do not constitute a limitation within the meaning of Articles 217 and 218 of this Agreement. Those measures (e.g. need to obtain a license, need to obtain recognition of qualifications in regulated sectors, need to pass specific examinations, including language examinations, even if not listed below, apply in any case to contractual service suppliers and independent professionals of the Republic of Moldova.

6. All other requirements of the laws and regulations of the EU and its Member States regarding entry, stay, work and social security measures shall continue to apply, including regulations concerning period of stay, minimum wages as well as collective wage agreements.

7. The list below does not include measures concerning subsidies granted by a Party.

8. The list below is without prejudice to the existence of public monopolies or exclusive rights in the relevant sectors, as set out by the Union in Annex XXVII-A to this Agreement.

9. In the sectors where economic needs tests are applied, their main criteria will be the assessment of the relevant market situation in the Member State or the region where the service is to be provided, including with respect to the number of, and the impact on, existing services suppliers.

10. The rights and obligations arising from the list below shall have no self-executing effect and thus confer no rights directly on natural or juridical persons.

The Parties shall allow the supply of services into their territory by contractual services suppliers of the other Party through presence of natural persons, subject to the conditions specified in Article 217(1) of this Agreement, in the following sub-sectors:

1. Legal services in respect of public international law and foreign law (i.e. non-EU law)

2. Accounting and bookkeeping services

3. Taxation advisory services

4. Architectural services, urban planning and landscape architectural services

5. Engineering services, integrated engineering services

6. Computer and related services

7. Research and development services

8. Advertising

9. Management consulting services

10. Services related to management consulting

11. Technical testing and analysis services

12. Related scientific and technical consulting services

13. Maintenance and repair of equipment in the context of an after-sales or after-lease services contract

14. Translation services

15. Site investigation work

16. Environmental services

17. Travel agencies and tour operator services

18. Entertainment services

The Parties shall allow the supply of services into their territory by independent professionals of the other Party through presence of natural persons, subject to the conditions specified in Article 218(2), in the following sub-sectors:

1. Legal services in respect of public international law and foreign law (i.e. non-EU law)

2. Architectural services, urban planning and landscape architecture

3. Engineering and integrated engineering services

4. Computer and related services

5. Management consulting services and services related to management consulting

6. Translation services

Sector or sub-sector	Description of reservations
ALL SECTORS	Recognition **EU:** EU directives on mutual recognition of diplomas only apply to nationals of Member States. The right to practice a regulated professional service in one Member State does not grant the right to practice in another Member State. ([1])
Legal Advisory Services in respect of public international law and foreign law (i.e. non-EU law) (part of CPC 861) ([2])	AT, CY, DE, EE, IE, LU, NL, PL, PT, SE, UK: None. **BE, ES, HR, IT, EL:** Economic needs test for IP. **LV:** Economic needs test for CSS. **BG, CZ, DK, FI, HU, LT, MT, RO, SI, SK:** Economic needs tests.
	DK: Marketing of legal advice activities is restricted to lawyers with a Danish licence to practice. Requirement of a Danish legal examination in order to obtain a Danish licence.
	FR: Full (simplified) admission to the Bar through an aptitude test is required. Lawyers' access to the professions of 'avocat auprès de la Cour de cassation' et 'avocat auprès du Conseil d'Etat' is subject to quotas and to a nationality condition. **HR:** Full admission to the Bar required for legal representation services, is subject to a nationality condition.
Accounting and Bookkeeping Services (CPC 86212 other than 'auditing services', CPC 86213, CPC 86219 and CPC 86220)	**BE, CY, DE, EE, ES, IE, IT, LU, NL, PL, PT, SI, SE, UK:** None. **AT:** The employer must be a member of the relevant professional body in the home country where such body exists. **FR:** Authorisation requirement. Provision of accounting and bookkeeping services is conditional on a decision of the Minister of Economics, Finance and Industry, in agreement with the Minister of Foreign Affairs. **BG, CZ, DK, EL, FI, HU, LT, LV, MT, RO, SK:** Economic needs test. **HR:** Residency requirement.
Taxation Advisory Services (CPC 863) ([3])	**BE, DE, EE, ES, FR, IE, IT, LU, NL, PL, SI, SE, UK:** None. **AT:** The employer must be a member of the relevant professional body in the home country where such body exists; nationality condition for representation before competent authorities. **BG, CZ, DK, EL, FI, HU, LT, LV, MT, RO, SK:** Economic needs test. **CY:** Unbound for the submission of tax returns. **PT:** Unbound. **HR, HU:** Residence requirement.

([1]) In order for third-country nationals to obtain EU-wide recognition of their qualifications, it is necessary that a Mutual Recognition Agreement be negotiated within the framework defined in Article 222 of this Agreement.

([2]) Like the provision of other services, Legal Services are subject to licensing requirements and procedures applicable in Member States. For lawyers providing legal services in respect of public international law and foreign law, these may take, inter alia, the form of compliance with local codes of ethics, use of home title (unless recognition with the host title has been obtained) insurance requirements, simple registration with the host country Bar or a simplified admission to the host country Bar through an aptitude test and a legal or professional domicile in the host country.

([3]) Does not include legal advisory and legal representational services on tax matters, which are to be found under Legal Advisory Services in respect of public international law and foreign law.

Sector or sub-sector	Description of reservations
Architectural services and Urban planning and landscape architectural services (CPC 8671 and CPC 8674)	**EE, EL, FR, IE, LU, MT, NL, PL, PT, SI, SE, UK:** None. **BE, ES, HR, IT:** Economic needs test for IP. **LV:** Economic needs test for CSS. **FI:** The natural person must demonstrate that (s)he possesses special knowledge relevant to the service being supplied. **BG, CY, CZ, DE, FI, HU, LT, RO, SK:** Economic needs test. **AT:** Planning services only, where: Economic needs test. **HR, HU, SK:** Residence requirement.
Engineering services and Integrated engineering services (CPC 8672 and CPC 8673)	**EE, EL, FR, IE, LU, MT, NL, PL, PT, SI, SE, UK:** None. **BE, ES, HR, IT:** Economic needs test for IP. **LV:** Economic needs test for CSS. **FI:** The natural person must demonstrate that (s)he possesses special knowledge relevant to the service being supplied. **BG, CY, CZ, DE, FI, HU, LT, RO, SK:** Economic needs test. **AT:** Planning services only, where: Economic needs test. **HR, HU:** Residence requirement.
Computer and Related Services (CPC 84)	**EE, EL, FR, IE, LU, MT, NL, PL, PT, SI, SE:** None. **ES, IT:** Economic needs test for IP. **LV:** Economic needs test for CSS. **BE:** Economic needs test for IP. **AT, DE, BG, CY, CZ, FI, HU, LT, RO, SK, UK:** Economic needs test. **HR:** Residency requirement for CSS. Unbound for IP.
Research and Development Services (CPC 851, 852 excluding psychologists services ([1]), 853)	**EU, except BE:** A hosting agreement with an approved research organisation is required ([2]). **CZ, DK, SK:** Economic needs test. **BE, UK:** Unbound. **HR:** Residency requirement.
Advertising (CPC 871)	**BE, CY, DE, EE, ES, FR, HR, IE, IT, LU, NL, PL, PT, SI, SE, UK:** None. **AT, BG, CZ, DK, FI, HU, LT, LV, MT, RO, SK:** Economic needs test.
Management Consulting Services (CPC 865)	**DE, EE, EL, FR, IE, LV, LU, MT, NL, PL, PT, SI, SE, UK:** None. **ES, IT:** Economic needs test for IP. **BE, HR:** Economic needs test for IP. **AT, BG, CY, CZ, FI, HU, LT, RO, SK:** Economic needs test.
Services Related to Management Consulting (CPC 866)	**DE, EE, EL, FR, IE, LV, LU, MT, NL, PL, PT, SI, SE, UK:** None. **BE, ES, HR, IT:** Economic needs test for IP. **AT, BG, CY, CZ, FI, LT, RO, SK:** Economic needs test. **HU:** Economic needs test, except for arbitration and conciliation services (CPC 86602), where: Unbound.

([1]) Part of CPC 85201, which is to be found under Medical and dental services.
([2]) For all Member States except DK, the approval of the research organisation and the hosting agreement have to meet the conditions set pursuant to Directive 2005/71/EC.

Sector or sub-sector	Description of reservations
Technical Testing and Analysis Services (CPC 8676)	**BE, DE, EE, EL, ES, FR, HR, IE, IT, LU, NL, PL, SI, SE, UK:** None. **AT, BG, CY, CZ, FI, HU, LT, LV, MT, PT, RO, SK:** Economic needs test.
Related Scientific and Technical Consulting Services (CPC 8675)	BE, EE, EL, ES, HR, IE, IT, LU, NL, PL, SI, SE, UK: None. **AT, CY, CZ, DE, DK, FI, HU, LT, LV, MT, PT, RO, SK:** Economic needs test. **DE:** Unbound for publicly appointed surveyors. **FR:** Unbound for 'surveying' operations relating to the establishment of property rights and to land law where unbound. **BG:** Unbound.
Maintenance and repair of vessels (part of CPC 8868)	**BE, CY, EE, EL, ES, FR, HR, IT, LV, LU, NL, PL, PT, SI, SE:** None. **AT, BG, CZ, DE, DK, FI, HU, IE, LT, MT, RO, SK:** Economic needs test. **UK:** Unbound.
Maintenance and repair of rail transport equipment (part of CPC 8868)	**BE, CY, EE, EL, ES, FR, HR, IT, LV, LU, MT, NL, PL, PT, SI, SE:** None. **AT, BG, CZ, DE, DK, FI, HU, IE, LT, RO, SK:** Economic needs test. **UK:** Unbound.
Maintenance and repair of motor vehicles, motorcycles, snowmobiles and road transport equipment (CPC 6112, CPC 6122, part of CPC 8867 and part of CPC 8868)	**BE, EE, EL, ES, FR, HR, IT, LV, LU, NL, PL, PT, SI, SE:** None. **AT, BG, CY, CZ, DE, DK, FI, HU, IE, LT, MT, RO, SK:** Economic needs test. **UK:** Unbound.
Maintenance and repair of aircraft and parts thereof (part of CPC 8868)	**BE, CY, EE, EL, ES, FR, HR, IT, LV, LU, MT, NL, PL, PT, SI, SE:** None. **AT, BG, CZ, DE, DK, FI, HU, IE, LT, RO, SK:** Economic needs test. UK: Unbound.
Maintenance and repair of metal products, of (non office) machinery, of (non transport and non office) equipment and of personal and household goods ([1]) (CPC 633, CPC 7545, CPC 8861, CPC 8862, CPC 8864, CPC 8865 and CPC 8866)	**BE, EE, EL, ES, FR, HR, IT, LV, LU, MT, NL, PL, PT, SI, SE, UK:** None. **AT, BG, CY, CZ, DE, DK, FI, HU, IE, LT, RO, SK:** Economic needs test.
Translation (CPC 87905, excluding official or certified activities)	DE, EE, FR, LU, MT, NL, PL, PT, SI, SE, UK: None. **BE, ES, IT, EL:** Economic needs test for IP. **CY, LV:** Economic needs test for CSS. **AT, BG, CZ, DK, FI, HU, IE, LT, RO, SK:** Economic needs test. **HR:** Unbound for IP.

([1]) Maintenance and repair services of office machinery and equipment including computers (CPC 845) are to be found under Computer services.

Sector or sub-sector	Description of reservations
Site investigation work (CPC 5111)	**BE, DE, EE, EL, ES, FR, HR, IE, IT, LU, MT, NL, PL, PT, SI, SE, UK:** None. **AT, BG, CY, CZ, FI, HU, LT, LV, RO, SK:** Economic needs test.
Environmental services (CPC 9401 ([1]), CPC 9402, CPC 9403, CPC 9404 ([2]), part of CPC 94060 ([3]), CPC 9405, part of CPC 9406, CPC 9409)	**BE, EE, ES, FR, HR, IE, IT, LU, MT, NL, PL, PT, SI, SE, UK:** None. **AT, BG, CY, CZ, DE, DK, EL, FI, HU, LT, LV, RO, SK:** Economic needs test.
Travel Agencies and Tour Operators Services (including tour managers ([4])) (CPC 7471)	**AT, CZ, DE, EE, ES, FR, IT, LU, NL, PL, SI, SE:** None. **BG, EL, HU, LT, LV, MT, PT, RO, SK:** Economic needs test. **BE, CY, DK, FI, IE:** Unbound, except for tour managers (persons whose function is to accompany a tour group of a minimum of 10 persons, without acting as guides in specific locations). **HR:** Residency requirement. **UK:** Unbound.
Entertainment Services other than audiovisual services (including Theatre, Live Bands, Circus and Discotheque Services) (CPC 9619)	**BG, CZ, DE, DK, EE, EL, ES, FI, HU, IE, IT, LT, LU, LV, MT, NL, PL, PT, RO, SK, SE:** Advanced qualification ([5]) may be required. Economic needs test. **AT:** Advance qualifications and economic needs test except for persons whose main professional activity is in the field of fine arts, deriving the major part of their income from that activity and subject to the condition that such persons shall not exercise any other commercial activity in Austria, where: None. **FR:** Unbound for CSS, except if: — The work permit is delivered for a period not exceeding nine months renewable for the duration of three months. — Economic Need Test — The entertainment enterprise must pay a tax to the Office Français de l'Immigration et de l'Intégration. **CY:** Economic needs test for Live Bands and Discotheque Services. **SI:** Duration of stay limited to 7 days per event. For circus and amusement park services duration of stay is limited to a maximum of 30 days per calendar year. **BE, UK:** Unbound.

([1]) Corresponds to sewage services.
([2]) Corresponds to Cleaning Services of Exhaust Gases.
([3]) Corresponds to parts of Nature and Landscape Protection Services.
([4]) Services suppliers whose function is to accompany a tour group of a minimum of 10 persons, without acting as guides in specific locations.
([5]) Where the qualification has not been obtained in the EU and its Member States, the Member State concerned may evaluate whether this is equivalent to the qualification required in its territory.

ANNEX XXVII-E

LIST OF RESERVATIONS ON ESTABLISHMENT (REPUBLIC OF MOLDOVA)

1. The list below indicates the economic activities where reservations to national treatment or most favoured treatment by the Republic of Moldova pursuant to Article 205(1) of this Agreement apply to establishments and investors of the Union.

   The list is composed of the following elements:

   (a) the first column indicating the sector or subsector in which limitations apply;

   (b) the second column describing the applicable reservations in the sector or subsector indicated in the first column.

2. In identifying individual sectors and sub-sectors:

   (a) CPC means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *prov*, 1991;

   (b) CPC ver. 1.0 means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *ver* 1.0, 1998.

3. In accordance with Article 202(1) of this Agreement, the list below does not include measures concerning subsidies granted by the Parties.

4. In accordance with Article 205 of this Agreement, non-discriminatory requirements, such as those concerning the legal form or the obligation to obtain licences or permits applicable to all providers operating on the territory without distinction based on nationality, residency or equivalent criteria, are not listed in this Annex as they are not prejudiced by the Agreement.

5. The rights and obligations arising from the list below shall have no self-executing effect and thus confer no rights directly on natural or juridical persons.

Sector or sub-sector	Description of reservations
I. HORIZONTAL RESERVATIONS	
	Land
Reservations include all sectors	Land lease not exceeding 99 years permitted. Foreign supplier may purchase land except for agriculture land and forestry land.
I. SPECIFIC RESERVATIONS	
1. BUSINESS SERVICES	
A. Professional Services	
(a) Legal Services:	
— Limited on consultancy on host country law; (CPC 861)	Legal services related to representation in courts and other public authorities can be provided by a legal professional from a EU Member State upon association with a local lawyer or following 1 year internship to get a licence in the Republic of Moldova. Legal advising services, except representation in court and other authorities, can be provided after prior registration in special registry of the Council of Bar Association. Translation and/or interpretation services for the judiciary can be provided after prior recognition of the authorization as a sworn interpreter/translator issued in another state, by the Attestation Commission of the Ministry of Justice. Mediation services can be provided by a person licensed as a mediator in another state after certification by the Mediation Board.

Sector or sub-sector	Description of reservations
	Services of authorized bankruptcy administrator can be provided following one year internship and after passing the exam in the Commission for certification and discipline of the Ministry of Justice.
	Nationality requirement for public notaries and bailiffs.
(h) Private medical and dental services (CPC 9312) (CPC 9312 excluding services provided by the public sector)	Practice of medical profession by foreigners requires the permission from local health authorities, based on economic needs test.
F. Other Business Services	
(k) Placement and supply services of personnel (CPC 872);	Services can only be supplied through juridical persons incorporated in the Republic of Moldova.
(l) Investigation and security (CPC 873);	
2. COMMUNICATION SERVICES	
A. Postal Services	
(a) International postal services, as well as internal postal services related to letters up to 350 grams; (CPC 7511)	Monopoly of the 'Posta Moldova' State Company.
7. FINANCIAL SERVICES	
Banking sector and other financial services (excluding insurance)	
Participation in issues of all kinds of securities, including underwriting and placement as agent (whether publicly or privately) and provision of service related to such issues.	The National Bank of Moldova is a fiscal agency of the Government on the T-bills market.

ANNEX XXVII-F

LIST OF COMMITMENTS ON CROSS-BORDER SERVICES

(REPUBLIC OF MOLDOVA)

1. The list of commitments below indicates the economic activities liberalised by the Republic of Moldova pursuant to Article 212 of this Agreement and, by means of reservations, the market access and national treatment limitations that apply to services and service suppliers of the Union in those activities.

   The list is composed of the following elements:

   (a) the first column indicating the sector or subsector in which the commitment is undertaken;

   (b) the second column describing the applicable reservations in the sector or subsector indicated in the first column;

   Sectors or sub-sectors not mentioned in the list below are not committed.

2. In identifying individual sectors and sub-sectors:

   (a) CPC means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *prov*, 1991;

   (b) CPC ver. 1.0means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *ver* 1.0, 1998.

3. The list below does not include measures relating to qualification requirements and procedures, technical standards and licensing requirements and procedures when they do not constitute a market access or a national treatment limitation within the meaning of Articles 210 and 211 of this Agreement. Those measures (e.g. need to obtain a license, universal service obligations, need to obtain recognition of qualifications in regulated sectors, need to pass specific examinations, including language examinations, non-discriminatory requirement that certain activities may not be carried out in environmental protected zones or areas of particular historic and artistic interest), even if not listed, apply in any case to investors of the other Party.

4. The list below is without prejudice to the feasibility of Mode 1 in certain services sectors and sub-sectors and without prejudice to the existence of public monopolies and exclusive rights as described in the list of commitments on establishment.

5. In accordance with Article 202(3) of this Agreement, the list below does not include measures concerning subsidies granted by the Parties.

6. The rights and obligations arising from this list of commitments shall have no self-executing effect and thus confer no rights directly to individual natural persons or juridical persons.

7. Mode 1 and Mode 2 refer to the means of the supply of services as described in Article 203(13)(a) and (b) of this Agreement respectively.

Sector or sub-sector	Description of reservations
I. SPECIFIC COMMITMENTS	
1. BUSINESS SERVICES	
A. Professional Services	
(a) Legal Services:	
— Except consultancy on home country and international law;	(1) Unbound, except for drafting of legal documents.

Sector or sub-sector	Description of reservations
(CPC 861)	(2) None
— Consultancy on home and third country and international law;	(1) None
(Part of CPC 861)	(2) None
(b) Accounting, auditing and bookkeeping services (CPC 862);	(1) None (2) None
(c) Taxation services (CPC 863); (d) Architectural services; (CPC 8671); (e) Engineering services; (CPC 8672);	
(f) Integrated engineering services (CPC 8673); (g) Urban planning and landscape architectural services (CPC 8674);	
(h) Private medical and dental services (CPC 9312) (CPC 9312 excluding services provided by the public sector)	(1) None (2) Public medical insurance programmes do not cover the cost of medicare supplied abroad.
(i) Veterinary services. (CPC 932)	(1) None (2) None
(j) Services provided by midwives, nurses, physiotherapists and para-medical personnel (CPC 93191 excluding services provided within the public sector)	(1) None (2) Public insurance programs do not cover the cost of foreign medical services consumed abroad.
B. Computer and Related Services	
(a) Consultancy services related to the installation of computer hardware (CPC 841); (b) Software implementation services (CPC 842); (c) Data processing services; (CPC 843); (d) Data base services (CPC 844); (e) Other (CPC 845 + 849).	(1) None (2) None

Sector or sub-sector	Description of reservations
C. Research and Development Services	
(a) Research and development services on natural sciences (CPC 851); (b) Research and development services on social sciences and humanities (CPC 852); (c) Interdisciplinary research and development services (CPC 853).	(1) None (2) None
D. Real Estate Services	
(a) Involving own or leased property (CPC 821); (b) On a fee or contract basis (CPC 822).	(1) None (2) None
E. Rental/leasing Services without Operators	
(a) Relating to ships (CPC 83103); (b) Relating to aircraft (CPC 83104); (c) Relating to other transport equipment (CPC 83101 + 83102 + 83105); (d) Relating to other machinery and equipment (CPC 83106-83109);	(1) None (2) None
(e) Other (CPC 832), including pre-recorded video cassettes and optical discs for use in home entertainment equipment.	
F. Other Business Services	
(a) Advertising services (CPC 871); (b) Market research and public opinion polling services (CPC 864);	(1) None (2) None
(c) Management consulting service (CPC 865); (d) Services related to management consulting (CPC 866); (e) Technical testing and analysis services (CPC 8676); (f) Services incidental to agriculture, hunting and forestry (CPC 881);	

Sector or sub-sector	Description of reservations
(g) Services incidental to fishing (CPC 882); (h) Services incidental to mining (CPC 883 + 5115); (i) Services incidental to manufacturing (CPC 884 + 885); (except for 88442);	
(j) Services incidental to energy distribution (CPC 887);	
(k) Placement and supply services of personnel (CPC 872);	
(l) Investigation and security (CPC 873);	
(m) Related scientific and technical consulting services (CPC 8675); (n) Maintenance and repair of equipment (not including maritime vessels, aircraft or other transport equipment) (CPC 633 + 8861-8866); (o) Building-clearing services (CPC 874);	
(p) Photographic services (CPC 875); (q) Packaging services (CPC 876); (r) Printing, publishing (CPC 88442); (s) Convention services (CPC 87909*); (t) Other (CPC 8790).	
2. COMMUNICATION SERVICES	
A. Postal Services	
(a) International postal services, as well as internal postal services related to letters up to 350 grams (CPC 7511);	(1) Monopoly of the 'Posta Moldova' State Company. (2) None
(b) Postal services related to parcels (CPC 75112);	(1) None (2) None
(c) Post office counter services (CPC 75113).	

Sector or sub-sector	Description of reservations
B. Courier Services (CPC 7512)	(1) None (2) None
C. Telecommunication Services	
(a) Public telephone services; (CPC 7521);	(1) None (2) None
(b) Analogue cellular services (CPC 75213.1);	
(c) Digital cellular services (CPC 75213.2);	
(d) Mobile services (CPC 75213): — paging services, (CPC 75291), — mobile data services;	
(e) Satellite communication;	
(f) Business network services (CPC 7522);	
(g) Packet-switched data transmission services (CPC 75232);	
(h) Circuit-switched data transmission services (CPC 7523*);	
(i) Telegraph and telex services (CPC 7522 and 7523)	
(j) Facsimile services (CPC 7521*+7529*); (k) Private leased circuit services (CPC 7522*+7523*) (l) Electronic mail (CPC 7523*);	
(m) Voice mail (CPC 7523*) (n) On-line information and database retrieval (CPC 7523*); (o) Electronic data interchange (EDI) (CPC 7523*);	

Sector or sub-sector	Description of reservations
(p) Enhance/value-added facsimile services incl. Store and forward, store and retrieve (CPC 7523*);	
(q) Code and protocol conversion (CPC is not available); (r) On-line information and/or data processing (incl. Transaction processing) (CPC 843); (s) Other telecommunications services (CPC 7529); (t) Other (CPC 7549).	
3. CONSTRUCTION AND RELATED ENGINEERING SERVICES	
(a) General construction work for buildings (CPC 512); (b) General construction work for civil engineering (CPC 513);	(1) None (2) None
(c) Installation and assembly work (CPC 514 + 516); (d) Building completion and finishing work (CPC 517); (e) Other (CPC511 + 515 + 518).	
4. DISTRIBUTION SERVICES	
(a) Commission agents' services (CPC 621); (b) Wholesale trade services (CPC 611, 622);	(1) None (2) None
(c) Retailing services (CPC 611 + 613 + 631 + 632 + 633 + 6111 + 6113 + 6121), including audio and video records and tapes and optical discs (CPC 63234); (d) Franchising (CPC 8929); (e) Other distribution services.	
5. EDUCATIONAL SERVICES	
(a) Primary education services (CPC 921); (b) Secondary education services (CPC 922);	(1) None (2) None

Sector or sub-sector	Description of reservations
(c) Higher education services (Part of CPC 923); (d) Adult Education (CPC924); (e) Other educational services (CPC 929).	
6. ENVIRONMENTAL SERVICES	
A. Waste Water Services (CPC 9401) ([1])	(1) None (2) None
B. Solid/hazardous waste management, excluding cross-border transport of hazardous waste	
(a) Refuse Disposal Services (CPC 9402)	
(b) Sanitation and Similar Services (CPC 9403)	
C. Protection of ambient air and climate (CPC 9404) ([2])	
D. Remediation and clean-up of soil and waters	
(a) Treatment, remediation of contaminated/polluted soil and water (part of CPC 94060) ([3])	
E. Noise and vibration abatement (CPC 9405)	
F. Protection of biodiversity and landscape	
(a) Nature and landscape protection services (part of CPC 9406)	
G. Other environmental and ancillary services (CPC 94090)	
7. FINANCIAL SERVICES	
A. Insurance and insurance-related services	
(a) Life, accident and health insurance services; (b) Non-life insurance services (CPC 8129, except marine, aviation and transport insurance);	(1) None (2) None
(c) Marine, aviation and transport insurance; (d) Reinsurance and retrocession; (e) Services auxiliary to insurance (incl. Broking and agency services).	

([1]) Corresponds to sewage services.
([2]) Corresponds to Cleaning Services of Exhaust Gases.
([3]) Corresponds to parts of Nature and Landscape Protection Services.

Sector or sub-sector	Description of reservations
B. Banking sector and other financial services (excluding insurance)	
(a) Acceptance of deposits and other repayable funds from the public; (b) Lending of all types, including consumer credit, mortgage credit, factoring and financing of commercial transactions;	(1) None (2) None
(c) Financial leasing; (d) All payment and money transmission services; (e) Guarantees and commitments;	
(f) Trading for own account or for account of customers, whether on an exchange, in an over-the-counter market or otherwise, the following: — Money market instruments (cheques, bills, certificates of deposits, etc.);	
— foreign exchange; — derivative products including, but not limited to, futures and options; — exchange rate and interest rate instruments, including products such as swaps, forward rate agreements, etc.; — transferable securities;	
— other negotiable instruments and financial assets, including bullion; (g) Money broking; (h) Asset management, such as cash or portfolio management, all forms of collective investment management, pension fund management, custodial, depository and trust services;	
(i) Settlement and clearing services for financial assets, including securities, derivative products, and other negotiable instruments;	
(j) Advisory and other auxiliary financial services on all the activities listed in Article 1B of MNT.TNC/W/50, including credit reference and analysis, investment and portfolio research and advice, and advice on acquisitions and on corporate restructuring and strategy;	
(k) Provisions and transfer of financial information, financial data processing and related software by providers of other financial services;	
(l) Participation in issues of all kinds of securities, including underwriting and placement as agent (whether publicly or privately) and provision of service related to such issues.	

Sector or sub-sector	Description of reservations
8. HOSPITAL AND OTHER HEALTH AND CARE FACILITIES	
(a) Hospital services Private hospital and sanatorium services (CPC 9311 excluding services provided by the public sector); (b) Social services (CPC 933); (c) Other human health services (CPC 9319 other than 93191).	(1) None (2) None
9. TOURISM AND TRAVEL-RELATED SERVICES	
(a) Hotels and Restaurants (Including Catering) (CPC 641-643); (b) Travel Agencies and Tour Operators' Services (CPC 7471);	(1) None (2) None
(c) Tourist guides services (CPC 7472); (d) Other tourism and travel related services.	
10. RECREATIONAL, CULTURAL AND SPORTING SERVICES	
(a) Cinema theatre operation services operation (CPC 96199**) ([1])	(1) Unbound (2) Unbound
(b) Other entertainment services (CPC 96191 + 96194); (c) News Agency Services (CPC 962);	(1) None (2) None
(e) Sporting and other recreational services (CPC 964).	
11. TRANSPORT SERVICES	
(a) Maritime transport services (CPC 7211, 7212, 7213, 8868**, 7214, 745**); (b) Internal waterways transport (CPC 7221, 7222, 7223, 8868**, 7224, 745**);	(1) None (2) None
(c) Air transport services defined in the air transport annex: a) and b) Passenger and freight transportation (CPC 731, 732), c) Rental of vessels with crew (CPC 734),	

([1]) ** Indicates that the service specified constitutes only part of the total range of activities covered by the CPC concordance.

Sector or sub-sector	Description of reservations
d) Maintenance and repair of aircraft (CPC 8868**), e) Selling and marketing of air transport services; (CPC 746*), f) Computer reservation systems; (CPC 746*); g) Airport management h) Ground-handling services (including catering services)	
(d) Space transport (CPC 733);	
(e) Rail transport services (CPC 7111, 7112, 7113, 8868**, 743);	
(f) Road transport services a) Passenger transportation (CPC 7121 + 7122), b) Freight transportation (CPC 7123, for 7123 except cabotage services),	
c) Rental of commercial vehicles with operators (CPC 7124), d) Maintenance and repair of road transport equipment (CPC 6112 + 8867), e) Supporting services for road transport services (CPC 744);	
(g) Pipeline transport (CPC 7131, 7139);	
(h) Services auxiliary to all modes of transport: a) Cargo handling, storage and warehousing services (CPC 741, 742), b) freight transport agency and other supporting and auxiliary transport services (CPC 748, 749).	

ANNEX XXVII-G

LIST OF RESERVATIONS ON KEY PERSONNEL, GRADUATE TRAINEES AND BUSINESS SELLERS (REPUBLIC OF MOLDOVA)

1. The reservations below indicate the economic activities liberalised pursuant to Sections 2 and 3 of Chapter 6 (Establishment, Trade in Services and Electronic Commerce) of Title V (Trade and Trade-related Matters) of this Agreement for which limitations on key personnel and graduate trainees in accordance with Article 215 and on business sellers in accordance with Article 216 of this Agreement apply and specifies such limitations.

   The list below is composed of the following elements:

   (a) the first column indicating the sector or sub-sector in which limitations apply; and

   (b) the second column describing the applicable limitations.

   The Republic of Moldova does not undertake any commitment for key personnel, graduate trainees and business sellers in economic activities which are not liberalised (remain unbound) pursuant to Sections 2 and 3 of Chapter 6 (Establishment, Trade in Services and Electronic Commerce) of Title V (Trade and Trade-related Matters) of this Agreement.

2. In identifying individual sectors and sub-sectors:

   (a) CPCmeans the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *prov*, 1991; and

   (b) CPC ver. 1.0 means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *ver* 1.0, 1998.

3. Commitments on key personnel, graduate trainees, business service sellers and sellers of goods do not apply in cases where the intent or effect of their temporary presence is to interfere with, or otherwise affect the outcome of, any labour/management dispute or negotiation.

4. The list below does not include measures relating to qualification requirements and procedures, technical standards and licensing requirements and procedures when they do not constitute a limitation within the meaning of Articles 215 and 216 of this Agreement. Those measures (e.g. need to obtain a license, need to obtain recognition of qualifications in regulated sectors, need to pass specific examinations, including language examinations), even if not listed below, apply in any case to key personnel, graduate trainees and business sellers of the Union.

5. All other requirements of the laws and regulations of the Republic of Moldova regarding entry, stay, work and social security measures shall continue to apply, including regulations concerning period of stay, minimum wages as well as collective wage agreements.

6. In accordance with Article 202(3) of this Agreement, the list below does not include measures concerning subsidies granted by a Party.

7. The list below is without prejudice to the existence of public monopolies and exclusive rights as described in the list of commitments on establishment.

8. In the sectors where economic needs tests are applied, their main criteria will be the assessment of the relevant market situation in the Republic of Moldova, including with respect to the number of, and the impact on, existing services suppliers.

9. The rights and obligations arising from the list below shall have no self-executing effect and thus confer no rights directly on natural or juridical persons.

Sector or sub-sector	Description of reservations
I. SPECIFIC COMMITMENTS	
1. BUSINESS SERVICES	
A. Professional Services	
(a) Legal Services:	
— Limited on consultancy on host country; (CPC 861)	Legal services related to representation in courts and other public authorities can be provided by a legal professional from a EU Member State upon association with a local lawyer or following 1 year internship to get a licence in the Republic of Moldova. Legal advising services, except representation in court and other authorities, can be provided after prior registration in special registry of the Council of Bar Association. Translation and/or interpretation services for the judiciary can be provided after prior recognition of the authorization as a sworn interpreter/translator issued in another state, by the Attestation Commission of the Ministry of Justice. Mediation services can be provided by a person licensed as a mediator in another state after certification by the Mediation Board. Services of authorized bankruptcy administrator can be provided following one year internship and after passing the exam in the Commission for certification and discipline of the Ministry of Justice. Nationality requirement for public notaries and bailiffs.
(j) Services provided by midviwes, nurses, physiotherapists and para-medical personnel (CPC 93191, excluding services provided within the public sector)	Nationality requirements.

ANNEX XXVII-H

LIST OF RESERVATIONS ON CONTRACTUAL SERVICES SUPPLIERS AND INDEPENDENT PROFESSIONALS (REPUBLIC OF MOLDOVA)

1. The Parties shall allow the supply of services into their territories by contractual service suppliers and independent professionals of the other Party through the presence of natural persons, in accordance with Articles 217 and 218 of this Agreement, for the economic activities which are listed below, and subject to the relevant limitations.

2. The list is composed of the following elements:

   (a) the first column indicating the sector or sub-sector in which limitations apply; and

   (b) the second column describing the applicable limitations.

   The Republic of Moldova does not undertake any commitment for contractual service suppliers and independent professionals for any sector of economic activity other than those which are explicitly listed below.

3. In identifying individual sectors and sub-sectors:

   (a) CPC means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *prov*, 1991; and

   (b) CPC ver. 1.0 means the Central Products Classification as set out in Statistical Office of the United Nations, Statistical Papers, Series M, No 77, CPC *ver* 1.0, 1998.

4. Commitments for contractual service suppliers and independent professionals do not apply in cases where the intent or effect of their temporary presence is to interfere with, or otherwise affect the outcome of, any labour/management dispute or negotiation.

5. The list below does not include measures relating to qualification requirements and procedures, technical standards and licensing requirements and procedures when they do not constitute a limitation within the meaning of Articles 217 and 218 of this Agreement. Those measures (e.g. need to obtain a license, need to obtain recognition of qualifications in regulated sectors, need to pass specific examinations, including language examinations), even if not listed below, apply in any case to contractual service suppliers and independent professionals of the Union.

6. All other requirements of the laws and regulations of the Republic of Moldova regarding entry, stay, work and social security measures shall continue to apply, including regulations concerning period of stay, minimum wages as well as collective wage agreements.

7. The list below does not include measures concerning subsidies granted by a Party.

8. The list below is without prejudice to the existence of public monopolies or exclusive rights in the relevant sectors, as set out by the Republic of Moldova in Annex XXVII-E to this Agreement.

9. The rights and obligations arising from the list below shall have no self-executing effect and thus confer no rights directly on natural or juridical persons.

Sector or sub-sector	Description of reservations
I. SPECIFIC COMMITMENTS	
1. BUSINESS SERVICES	
A. Professional Services	

Sector or sub-sector	Description of reservations
(a) Legal Services:	
— Except consultancy on home country and international law; (CPC 861)	Legal services related to representation in courts and other public authorities can be provided by a legal professional from a EU Member State upon association with a local lawyer or following 1 year internship to get a licence in the Republic of Moldova. Legal advising services, except representation in court and other authorities, can be provided after prior registration in special registry of the Council of Bar Association. Translation and/or interpretation services for the judiciary can be provided after prior recognition of the authorization as a sworn interpreter/translator issued in another state, by the Attestation Commission of the Ministry of Justice. Mediation services can be provided by a person licensed as a mediator in another state after certification by the Mediation Board. Services of authorized bankruptcy administrator can be provided following one year internship and after passing the exam in the Commission for certification and discipline of the Ministry of Justice. Nationality requirement for public notaries and bailiffs.
— Consultancy on home and third country and international law; (Part of CPC 861)	None
(b) Accounting, auditing and bookkeeping services (CPC 862);	None
(c) Taxation services (CPC 863);	
(d) Architectural services; (CPC 8671)	
(e) Engineering services; (CPC 8672)	
(f) Integrated engineering services (CPC 8673)	
(g) Urban planning and landscape architectural services (CPC 8674)	
(h) Private medical and dental services (CPC 9312) (CPC 9312 excluding services provided by the public sector)	
(i) Veterinary services. (CPC 932)	
(j) Services provided by midwives, nurses, physiotherapists and para-medical personnel (CPC 93191 excluding services provided within the public sector)	Nationality requirements.

Sector or sub-sector	Description of reservations
B. Computer and Related Services	
(a) Consultancy services related to the installation of computer hardware; (CPC 841)	None
(b) Software implementation services; (CPC 842)	
(c) Data processing services; (CPC 843)	
(d) Data base services; (CPC 844)	
(e) Other (CPC 845 + 849)	
C. Research and Development Services	
(a) Research and development services on natural sciences (CPC 851);	None
(b) Research and development services on social sciences and humanities (CPC 852);	
(c) Interdisciplinary research and development services (CPC 853).	
D. Real Estate Services	
(a) Involving own or leased property (CPC 821);	None
(b) On a fee or contract basis (CPC 822).	
E. Rental/leasing Services without Operators	
(a) Relating to ships (CPC 83103);	None
(b) Relating to aircraft (CPC 83104);	
(c) Relating to other transport equipment (CPC 83101 + 83102 + 83105);	
(d) Relating to other machinery and equipment (CPC 83106-83109);	
(e) Other (CPC 832), including pre-recorded video cassettes and optical discs for use in home entertainment equipment.	
F. Other Business Services	
(a) Advertising services (CPC 871);	None
(b) Market research and public opinion polling services (CPC 864);	

Sector or sub-sector	Description of reservations
(c) Management consulting service (CPC 865);	
(d) Services related to management consulting (CPC 866);	
(e) Technical testing and analysis services (CPC 8676);	
(f) Services incidental to agriculture, hunting and forestry (CPC 881);	
(g) Services incidental to fishing (CPC 882);	
(h) Services incidental to mining (CPC 883 + 5115);	
(i) Services incidental to manufacturing (CPC 884 + 885); (except for 88442);	
(j) Services incidental to energy distribution (CPC 887);	
(k) Placement and supply services of personnel (CPC 872);	
(l) Investigation and security (CPC 873);	
(m) Related scientific and technical consulting services (CPC 8675);	
(n) Maintenance and repair of equipment (not including maritime vessels, aircraft or other transport equipment) (CPC 633 + 8861-8866);	
(o) Building-clearing services (CPC 874);	
(p) Photographic services (CPC 875);	
(q) Packaging services (CPC 876);	
(r) Printing, publishing (CPC 88442);	
(s) Convention services (CPC 87909*);	
(t) Other (CPC 8790).	
2. COMMUNICATION SERVICES	
A. Postal Services	
(a) International postal services, as well as internal postal services related to letters up to 350 grams; (CPC 7511)	None

Sector or sub-sector	Description of reservations
(b) Postal services related to parcels (CPC 75112);	
(c) Post office counter services (CPC 75113);	
B. Courier Services (CPC 7512)	None
C. Telecommunication Services	
(a) Public telephone services; (CPC 7521);	None
(b) Analogue cellular services (CPC 75213.1);	
(c) Digital cellular services (CPC 75213.2);	
(d) Mobile services (CPC 75213):	
— paging services, (CPC 75291),	
— mobile data services;	
(e) Satellite communication;	
(f) Business network services (CPC 7522);	
(g) Packet-switched data transmission services (CPC 75232);	
(h) Circuit-switched data transmission services (CPC 7523*);	
(i) Telegraph and telex services; (CPC 7522 and 7523)	
(j) Facsimile services; (CPC 7521*+7529*);	
(k) Private leased circuit services; (CPC 7522*+7523*)	
(l) Electronic mail (CPC 7523*);	
(m) Voice mail (CPC 7523*);	
(n) On-line information and database retrieval (CPC 7523*);	
(o) Electronic data interchange (EDI) (CPC 7523*);	
(p) Enhance/value-added facsimile services incl. Store and forward, store and retrieve (CPC 7523*);	

Sector or sub-sector	Description of reservations
(q) Code and protocol conversion (CPC is not available);	
(r) On-line information and/or data processing (incl. Transaction processing) (CPC 843);	
(s) Other telecommunications services (CPC 7529);	
(t) Other (CPC 7549).	
3. CONSTRUCTION AND RELATED ENGINEERING SERVICES	
(a) General construction work for buildings; (CPC 512)	None
(b) General construction work for civil engineering; (CPC 513);	
(c) Installation and assembly work; (CPC 514 + 516);	
(d) Building completion and finishing work (CPC 517);	
(e) Other (CPC511 + 515 + 518).	
4. DISTRIBUTION SERVICES	
(a) Commission agents' services (CPC 621);	None
(b) Wholesale trade services (CPC 611, 622);	
(c) Retailing services (CPC 611 + 631 + 632 + 633 + 6111 + 6113 + 6121), including audio and video records and tapes and optical discs (CPC 63234);	
(d) Franchising (CPC 8929);	
(e) Other distribution services.	
5. EDUCATIONAL SERVICES	
(a) Primary education services (CPC 921);	None
(b) Secondary education services (CPC 922);	
(c) Higher education services (Part of CPC 923);	
(d) Adult Education (CPC924);	
(e) Other educational services (CPC 929).	

Sector or sub-sector	Description of reservations
6. ENVIRONMENTAL SERVICES	
A. Waste Water Services (CPC 9401) ([1])	None
B. Solid/hazardous waste management, excluding cross-border transport of hazardous waste	
(a) Refuse Disposal Services (CPC 9402)	
(b) Sanitation and Similar Services (CPC 9403)	
C. Protection of ambient air and climate (CPC 9404) ([2])	
D. Remediation and clean-up of soil and waters	
(a) Treatment, remediation of contaminated/polluted soil and water (part of CPC 94060) ([3])	
E. Noise and vibration abatement (CPC 9405)	
F. Protection of biodiversity and landscape	
(a) Nature and landscape protection services (part of CPC 9406)	
G. Other environmental and ancillary services (CPC 94090)	
7. FINANCIAL SERVICES	
A. Insurance and insurance-related services	
(a) Life, accident and health insurance services (CPC 8121);	None
(b) Non-life insurance services (CPC 8129, except marine, aviation and transport insurance);	
(c) Marine, aviation and transport insurance (CPC 8129);	
(d) Reinsurance and retrocession (CPC 81299);	
(e) Services auxiliary to insurance (incl. Broking and agency services) (CPC 8140).	

([1]) Corresponds to sewage services.
([2]) Corresponds to Cleaning Services of Exhaust Gases.
([3]) Corresponds to parts of Nature and Landscape Protection Services.

Sector or sub-sector	Description of reservations
B. Banking sector and other financial services (excluding insurance)	
(a) Acceptance of deposits and other repayable funds from the public (CPC 81115-81119);	None
(b) Lending of all types, including consumer credit, mortgage credit, factoring and financing of commercial transactions; (CPC 8113);	
(c) Financial leasing; (8112);	
(d) All payment and money transmission services (CPC 81339*);	
(e) Guarantees and commitments (CPC 81199*);	
(f) Trading for own account or for account of customers, whether on an exchange, in an over-the-counter market or otherwise, the following:	
— Money market instruments (cheques, bills, certificates of deposits, etc.) (81339*),	
— foreign exchange (81333),	
— derivative products including, but not limited to, futures and options (81339*),	
— exchange rate and interest rate instruments, including products such as swaps, forward rate agreements, etc. (81339*),	
— transferable securities; (CPC 81321*),	
— other negotiable instruments and financial assets, including bullion (81339*)	
(g) Money broking (81339*);	
(h) Asset management, such as cash or portfolio management, all forms of collective investment management, pension fund management, custodial, depository and trust services (8119**, 81323*);	
(i) Settlement and clearing services for financial assets, including securities, derivative products, and other negotiable instruments (81339* or 81319*);	

Sector or sub-sector	Description of reservations
(j) Advisory and other auxiliary financial services on all the activities listed in Article 1B of MNT.TNC/W/50, including credit reference and analysis, investment and portfolio research and advice, and advice on acquisitions and on corporate restructuring and strategy (8131 or 8133);	
(k) Provisions and transfer of financial information, financial data processing and related software by providers of other financial services (8131);	
(l) Participation in issues of all kinds of securities, including underwriting and placement as agent (whether publicly or privately) and provision of service related to such issues (8132).	
8. HOSPITAL AND OTHER HEALTH AND CARE FACILITIES	
(a) Hospital services Private hospital and sanatorium services (CPC 9311 excluding services provided by the public sector);	None
(b) Social services (CPC 933);	
(c) Other human health services (CPC 9319 other than 93191).	
9. TOURISM AND TRAVEL-RELATED SERVICES	
(a) Hotels and Restaurants (Including Catering) (CPC 641-643);	None
(b) Travel Agencies and Tour Operators' Services (CPC 7471);	
(c) Tourist guides services (CPC 7472);	
(d) Other tourism and travel related services.	
10. RECREATIONAL, CULTURAL AND SPORTING SERVICES	
(a) Cinema theatre operation services operation (CPC 96199**) ([1]);	None
(b) Other entertainment services (CPC 96191 + 96194);	
(c) News Agency Services (CPC 962);	

([1]) ** Indicates that the service specified constitutes only part of the total range of activities covered by the CPC concordance.

Sector or sub-sector	Description of reservations
(e) Sporting and other recreational services (CPC 964).	
11. TRANSPORT SERVICES	
(a) Maritime transport services (CPC 7211, 7212, 7213, 8868**, 7214, 745**);	None
(b) Internal waterways transport (CPC 7221, 7222, 7223, 8868**, 7224, 745**);	
(c) Air transport services defined in the air transport annex: a) and b) Passenger and freight transportation (CPC 731, 732), c) Rental of vessels with crew (CPC 734), d) Maintenance and repair of aircraft (CPC 8868), e) Selling and marketing of air transport services; (CPC 746*), f) Computer reservation systems; (CPC 746*);	
(d) Space transport (CPC 733);	
(e) Rail transport services (CPC 7111, 7112, 7113, 8868**, 743);	
(f) Road transport services a) Passenger transportation (CPC 7121 + 7122), b) Freight transportation (CPC 7123, for 7123 except cabotage services),	
c) Rental of commercial vehicles with operators (CPC 7124),	
d) Maintenance and repair of road transport equipment (CPC 6112 + 8867),	
e) Supporting services for road transport services (CPC 744);	
(g) Pipeline transport (CPC 7131, 7139);	
(h) Services auxiliary to all modes of transport: a) Cargo handling, storage and warehousing services (CPC 741, 742), b) freight transport agency and other supporting and auxiliary transport services (CPC 748, 749).	

ANNEX XXVIII

APPROXIMATION

ANNEX XXVIII-A

RULES APPLICABLE TO FINANCIAL SERVICES

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Directive 2007/44/EC of the European Parliament and of the Council of 5 September 2007 amending Council Directive 92/49/EEC and Directives 2002/83/EC, 2004/39/EC, 2005/68/EC and 2006/48/EC as regards procedural rules and evaluation criteria for the prudential assessment of acquisitions and increase of holdings in the financial sector

Timetable: the provisions of Directive 2007/44/EC shall be implemented within three years of the entry into force of this Agreement.

Directive 2002/87/EC of the European Parliament and of the Council of 16 December 2002 on the supplementary supervision of credit institutions, insurance undertakings and investment firms in a financial conglomerate

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Directive 2006/48/EC of the European Parliament and of the Council of 14 June 2006 relating to the taking up and pursuit of the business of credit institutions

The Savings and Credit Associations of the Republic of Moldova shall be treated in the same way as the institutions listed in Article 2 of that Directive and accordingly be exempt from the scope of that Directive.

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Commission Directive 2007/18/EC of 27 March 2007 amending Directive 2006/48/EC of the European Parliament and of the Council as regards the exclusion or inclusion of certain institutions from its scope of application and the treatment of exposures to multilateral development banks

Timetable: the provisions of Directive 2007/18/EC shall be implemented upon entry into force of this Agreement.

Directive 2006/49/EC of the European Parliament and of the Council of 14 June 2006 on the capital adequacy of investment firms and credit institutions

Timetable: that Directive's provisions with the exception as set out below shall be implemented within three years of the entry into force of this Agreement.

With regard to institutions other than credit institutions defined in Article 3(1)(a) of that Directive, the provisions related to the level of required initial capital as set out in Articles 5(1), 5(3), 6, 7(a), 7(b), 7(c), 8(a), 8(b), 8(c) and 9 of that Directive shall be implemented within 10 years of the entry into force of this Agreement.

Directive 2009/110/EC of the European Parliament and of the Council of 16 September 2009 on the taking up, pursuit and prudential supervision of the business of electronic money institutions

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Directive 94/19/EC of the European Parliament and of the Council of 30 May 1994 on deposit-guarantee schemes

Timetable: that Directive's provisions with the exception of the provision related to the minimum level of compensation for each depositor set out in Article 7 of that Directive shall be implemented within five years of the entry into force of this Agreement. The provision related to the minimum level of compensation for each depositor set out in Article 7 of that Directive shall be implemented within 10 years of the entry into force of this Agreement.

Council Directive 86/635/EEC of 8 December 1986 on the annual accounts and consolidated accounts of banks and other financial institutions

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Directive 2001/65/EC of the European Parliament and of the Council of 27 September 2001 amending Directives 78/660/EEC, 83/349/EEC and 86/635/EEC as regards the valuation rules for the annual and consolidated accounts of certain types of companies as well as of banks and other financial institutions

Timetable: the provisions of Directive 2001/65/EC shall be implemented within three years of the entry into force of this Agreement.

Directive 2003/51/EC of the European Parliament and of the Council of 18 June 2003 amending Directives 78/660/EEC, 83/349/EEC, 86/635/EEC and 91/674/EEC on the annual and consolidated accounts of certain types of companies, banks and other financial institutions and insurance undertakings

Timetable: the provisions of Directive 2003/51/EC shall be implemented within three years of the entry into force of this Agreement.

Directive 2006/46/EC of the European Parliament and of the Council of 14 June 2006 amending Council Directives 78/660/EEC on the annual accounts of certain types of companies, 83/349/EEC on consolidated accounts, 86/635/EEC on the annual accounts and consolidated accounts of banks and other financial institutions and 91/674/EEC on the annual accounts and consolidated accounts of insurance undertakings

Timetable: the provisions of Directive 2006/46/EC shall be implemented within three years of the entry into force of this Agreement.

Directive 2001/24/EC of the European Parliament and of the Council of 4 April 2001 on the reorganisation and winding up of credit institutions

Timetable: that Directive's provisions shall be implemented upon entry into force of this Agreement.

Directive 2009/138/EC of the European Parliament and of the Council of 25 November 2009 on the taking-up and pursuit of the business of Insurance and Reinsurance (Solvency II)

Timetable: that Directive's provisions shall be implemented within seven years of the entry into force of this Agreement.

Council Directive 91/674/EEC of 19 December 1991 on the annual accounts and consolidated accounts of insurance undertakings

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Commission Recommendation of 18 December 1991 on insurance intermediaries (92/48/EEC)

Timetable: not applicable

Directive 2002/92/EC of the European Parliament and of the Council of 9 December 2002 on insurance mediation

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Directive 2009/103/EC of the European Parliament and of the Council of 16 September 2009 relating to insurance against civil liability in respect of the use of motor vehicles, and the enforcement of the obligation to insure against such liability

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Directive 2003/41/EC of the European Parliament and of the Council of 3 June 2003 on the activities and supervision of institutions for occupational retirement provision

Timetable: that Directive's provisions shall be implemented within five years of the entry into force of this Agreement.

Directive 2004/39/EC of the European Parliament and of the Council of 21 April 2004 on markets in financial instruments

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Commission Directive 2006/73/EC of 10 August 2006 implementing Directive 2004/39/EC of the European Parliament and of the Council as regards organisational requirements and operating conditions for investment firms and defined terms for the purposes of that Directive

Timetable: the provisions of Directive 2006/73/EC shall be implemented within three years of the entry into force of this Agreement.

Commission Regulation (EC) No 1287/2006 of 10 August 2006 implementing Directive 2004/39/EC of the European Parliament and of the Council as regards record-keeping obligations for investment firms, transaction reporting, market transparency, admission of financial instruments to trading, and defined terms for the purposes of that Directive

Timetable: that Regulation's provisions shall be implemented within three years of the entry into force of this Agreement.

Directive 2003/71/EC of the European Parliament and of the Council of 4 November 2003 on the prospectus to be published when securities are offered to the public or admitted to trading

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Commission Regulation (EC) No 809/2004 of 29 April 2004 implementing Directive 2003/71/EC of the European Parliament and of the Council as regards information contained in prospectuses as well as the format, incorporation by reference and publication of such prospectuses and dissemination of advertisements

Timetable: that Regulation's provisions shall be implemented within three years of the entry into force of this Agreement.

Directive 2004/109/EC of the European Parliament and of the Council of 15 December 2004 on the harmonisation of transparency requirements in relation to information about issuers whose securities are admitted to trading on a regulated market

Timetable: that Directive's provisions shall be implemented within four years of the entry into force of this Agreement.

Commission Directive 2007/14/EC of 8 March 2007 laying down detailed rules for the implementation of certain provisions of Directive 2004/109/EC on the harmonisation of transparency requirements in relation to information about issuers whose securities are admitted to trading on a regulated market

Timetable: the provisions of Directive 2007/14/EC shall be implemented within four years of the entry into force of this Agreement.

Directive 97/9/EC of the European Parliament and of the Council of 3 March 1997 on investor-compensation schemes

Timetable: that Directive's provisions with the exception of the provision related to the minimum level of compensation for each investor set out in Article 4 of that Directive shall be implemented within five years of the entry into force of this Agreement.

The provisions of that Directive related to the minimum level of compensation for each investor set out in article 4 of that Directive shall be implemented within 10 years of the entry into force of this Agreement.

Directive 2003/6/EC of the European Parliament and of the Council of 28 January 2003 on insider dealing and market manipulation (market abuse)

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Commission Directive 2004/72/EC of 29 April 2004 implementing Directive 2003/6/EC of the European Parliament and of the Council as regards accepted market practices, the definition of inside information in relation to derivatives on commodities, the drawing up of lists of insiders, the notification of managers' transactions and the notification of suspicious transactions

Timetable: the provisions of Directive 2004/72/EC shall be implemented within three years of the entry into force of this Agreement.

Commission Directive 2003/124/EC of 22 December 2003 implementing Directive 2003/6/EC of the European Parliament and of the Council as regards the definition and public disclosure of inside information and the definition of market manipulation

Timetable: the provisions of Directive 2003/124/EC shall be implemented within three years of the entry into force of this Agreement.

Commission Directive 2003/125/EC of 22 December 2003 implementing Directive 2003/6/EC of the European Parliament and of the Council as regards the fair presentation of investment recommendations and the disclosure of conflicts of interest

Timetable: the provisions of Directive 2003/125/EC shall be implemented within three years of the entry into force of this Agreement.

Commission Regulation (EC) No 2273/2003 of 22 December 2003 implementing Directive 2003/6/EC of the European Parliament and of the Council as regards exemptions for buy-back programmes and stabilisation of financial instruments

Timetable: that Regulation's provisions shall be implemented within three years of the entry into force of this Agreement.

Regulation (EC) No 1060/2009 of the European Parliament and of the Council of 16 September 2009 on Credit Rating Agencies

Timetable: that Regulation's provisions shall be implemented within five years of the entry into force of this Agreement.

Directive of the European Parliament and of the Council No 2009/65/EC on the coordination of laws, regulations and administrative provisions relating to undertakings for collective investment in transferable securities (UCITS)

Timetable: that Directive's provisions shall be implemented within five years of the entry into force of this Agreement.

Commission Directive 2007/16/EC of 19 March 2007 implementing Council Directive 85/611/EEC on the coordination of laws, regulations and administrative provisions relating to undertakings for collective investment in transferable securities (UCITS) as regards the clarification of certain definitions

Timetable: the provisions of Directive 2007/16/EC shall be implemented within three years of the entry into force of this Agreement.

Directive 2002/47/EC of the European Parliament and of the Council of 6 June 2002 on financial collateral arrangements

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Directive 98/26/EC of the European Parliament and of the Council of 19 May 1998 on settlement finality in payment and securities settlement systems

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Directive 2009/44/EC of the European Parliament and the Council of 6 May 2009 amending Directive 98/26/EC on settlement finality in payment and securities settlement systems and Directive 2002/47/EC on financial collateral arrangements as regards linked systems and credit claims

Timetable: the provisions of Directive 2009/44/EC shall be implemented within three years of the entry into force of this Agreement.

Directive 2007/64/EC of the European Parliament and of the Council of 13 November 2007 on payment services in the internal market

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Directive 2005/60/EC of the European Parliament and of the Council of 26 October 2005 on the prevention of the use of the financial system for the purpose of money laundering and terrorist financing

Timetable: that Directive's provisions shall be implemented within one year of the entry into force of this Agreement.

Commission Directive 2006/70/EC of 1 August 2006 laying down implementing measures for Directive 2005/60/EC of the European Parliament and of the Council as regards the definition of politically exposed person and the technical criteria for simplified customer due diligence procedures and for exemption on grounds of a financial activity conducted on an occasional or very limited basis

Timetable: the provisions of Directive 2006/70/EC shall be implemented within one year of the entry into force of this Agreement.

Regulation (EC) No 1781/2006 of the European Parliament and of the Council of 15 November 2006 on information on the payer accompanying transfers of funds

Timetable: that Regulation's provisions shall be implemented within one year of the entry into force of this Agreement.

ANNEX XXVIII-B

RULES APPLICABLE TO TELECOMMUNICATION SERVICES

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Directive 2002/21/EC of the European Parliament and of the Council of 7 March 2002 on a common regulatory framework for electronic communications networks and services (Framework Directive) as amended by Directive 2009/140/EC of the European Parliament and of the Council of 25 November 2009

The following provisions of Directive 2002/21/EC shall apply:

— strengthening the independence and administrative capacity of the national regulator in the field of electronic communications;

— establishing public consultation procedures for new regulatory measures;

— establishing effective mechanisms for appeal against the decisions of the national regulator in the field of electronic communications; and

— defining the relevant product and service markets in the electronic communications sector that are susceptible to *ex ante* regulation and analysing those markets with a view to determining whether significant market power (SMP) exists on them

Timetable: those provisions of that Directive shall be implemented within one and a half years of the entry into force of this Agreement.

Directive 2002/20/EC of the European Parliament and of the Council of 7 March 2002 on the authorisation of electronic communications networks and services (Authorisation Directive) as amended by Directive 2009/140/EC of the European Parliament and of the Council of 25 November 2009

The following provisions of Directive 2002/20/EC shall apply:

— implementing a regulation providing for general authorisations and restricting the need for individual licences to specific, duly justified cases

Timetable: those provisions of that Directive shall be implemented within two years of the entry into force of this Agreement.

Directive 2002/19/EC of the European Parliament and of the Council of 7 March 2002 on access to, and interconnection of, electronic communications networks and associated facilities (Access Directive) as amended by Directive 2009/140/EC of the European Parliament and of the Council of 25 November 2009

Based on the market analysis carried out in accordance with the Framework Directive the national regulator in the field of electronic communications shall impose on operators found to have significant market power (SMP) on the relevant markets appropriate regulatory obligations with regard to:

— access to, and use of, specific network facilities;

— price controls on access and interconnection charges, including obligations for cost-orientation; and

— transparency, non-discrimination and accounting separation

Timetable: those provisions of Directive 2002/19/EC shall be implemented within one and a half years of the entry into force of this Agreement.

Directive 2002/22/EC of the European Parliament and of the Council of 7 March 2002 on universal service and users' rights relating to electronic communications networks and services (Universal Service Directive) as amended by Directive 2009/136/EC of the European Parliament and of the Council of 25 November 2009

The following provisions of Directive 2002/22/EC shall apply:

— implementing regulation on Universal Service obligations (USO), including the establishment of mechanisms for costing and financing; and

— ensuring the respect of users' interests and rights, in particular by introducing number portability and the single European Emergency Call number 112

Timetable: those provisions of that Directive shall be implemented within three years of the entry into force of this Agreement.

Commission Directive 2002/77/EC of 16 September 2002 on competition in the markets for electronic communications networks and services

Timetable: the measures resulting from the operation of that Directive shall be implemented within one and a half years of the entry into force of this Agreement

Directive 2002/58/EC of the European Parliament and of the Council of 12 July 2002 concerning the processing of personal data and the protection of privacy in the electronic communications sector (Directive on privacy and electronic communications) as amended by Directive 2009/136/EC of the European Parliament and of the Council of 25 November 2009

The following provisions of Directive 2002/58/EC shall apply:

— implementing regulation to ensure protection of fundamental rights and freedoms, in particular the right to privacy, with respect to the processing of personal data in the electronic communication sector and ensuring the free movement of such data and of electronic communication equipment and services

Timetable: those provisions of that Directive shall be implemented within three years of the entry into force of this Agreement.

Decision 676/2002/EC of the European Parliament and of the Council of 7 March 2002 on a regulatory framework for radio spectrum policy in the European Community

— adopting a policy and regulation ensuring the harmonised availability and efficient use of the radio spectrum

Timetable: the measures resulting from the operation of that Decision shall be implemented within two years of the entry into force of this Agreement.

Commission Decision 2008/294/EC of 7 April 2008 on harmonised conditions of spectrum use for the operation of mobile communication services on aircraft (MCA services) in the Community

Timetable: the measures resulting from the operation of that Decision shall be implemented within two years of the entry into force of this Agreement.

Directive 1999/5/EC of the European Parliament and of the Council of 9 March 1999 on radio equipment and telecommunications terminal equipment and the mutual recognition of their conformity

Timetable: that Directive's provisions shall be implemented within one and a half years of the entry into force of this Agreement.

Directive 2000/31/EC of the European Parliament and of the Council of 8 June 2000 on certain legal aspects of information society services, in particular electronic commerce, in the Internal Market (Directive on electronic commerce)

The following provisions of that Directive shall apply:

— enhancing development of e-commerce;

— removing barriers to the cross-border provision of information society services;

— providing legal security to providers of information society services; and

— harmonising limitations to liability of service providers acting as intermediaries when providing mere conduit, caching or hosting, stipulating no general obligation to monitor.

Timetable: those provisions of that Directive shall be implemented within three years of the entry into force of this Agreement.

Directive 2003/98/EC of the European Parliament and of the Council of 17 November 2003 on the re-use of public sector information

Timetable: that Directive's provisions shall be implemented within two years of the entry into force of this Agreement.

Directive 1999/93/EC of the European Parliament and of the Council of 13 December 1999 on a Community framework for electronic signatures

The following provisions of that Directive shall apply:

— adopting a policy and legislation to create a framework for the use of electronic signatures ensuring their basic legal recognition and admissibility as evidence in legal proceedings

— establishment of a mandatory supervision system of certification service providers issuing qualified certificates

Timetable: those provisions of that Directive shall be implemented within one year of the entry into force of this Agreement.

ANNEX XXVIII-C

RULES APPLICABLE TO POSTAL AND COURIER SERVICES

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Directive 97/67/EC of 15 December 1997 on common rules for the development of the internal market of Community postal services and the improvement of quality of service

Timetable: that Directive's provisions shall be implemented at the entry into force of this Agreement.

Directive 2002/39/EC of the European Parliament and of the Council of 10 June 2002 amending Directive 97/67/EC with regard to the further opening to competition of Community postal services

Timetable: the provisions of Directive 2002/39/EC shall be implemented within five years of the entry into force of this Agreement.

Directive 2008/6/EC of the European Parliament and of the Council of 20 February 2008 amending Directive 97/67/EC with regard to the full accomplishment of the internal market of Community postal services

Timetable: the provisions of Directive 2008/6/EC shall be implemented within seven years of the entry into force of this Agreement.

ANNEX XXVIII-D

RULES APPLICABLE TO INTERNATIONAL MARITIME TRANSPORT

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Maritime safety — Flag state/classification societies

Directive 2009/15/EC of the European Parliament and of the Council of 23 April 2009 on common rules and standards for ship inspection and survey organisations and for the relevant activities of maritime administrations

Timetable: that Directive's provisions shall be implemented within five years of the entry into force of this Agreement.

Regulation (EC) No 391/2009 of the European Parliament and of the Council of 23 April 2009 on common rules and standards for ship inspection and survey organisations

Timetable: that Regulation's provisions shall be implemented within five years of the entry into force of this Agreement.

Flag State

Directive 2009/21/EC of the European Parliament and of the Council of 23 April 2009 on compliance with flag State requirements

Timetable: that Directive's provisions shall be implemented within five years of the entry into force of this Agreement.

Port State Control

Directive 2009/16/EC of the European Parliament and of the Council of 23 April 2009 on port State control

Timetable: that Directive's provisions shall be implemented within five years of the entry into force of this Agreement.

Vessel Traffic Monitoring

Directive 2002/59/EC of the European Parliament and of the Council of 27 June 2002 establishing a Community vessel traffic monitoring and information system

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Accident Investigation

Council Directive 1999/35/EC of 29 April 1999 on a system of mandatory surveys for the safe operation of regular ro-ro ferry and high-speed passenger craft services

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Liability of carriers of passengers

Regulation (EC) No 392/2009 of the European Parliament and of the Council of 23 April 2009 on the liability of carriers of passengers by sea in the event of accidents.

Timetable: that Regulation's provisions shall be implemented within three years of the entry into force of this Agreement.

Regulation (EC) No 336/2006 of the European Parliament and of the Council of 15 February 2006 on the implementation of the International Safety Management Code within the Community

Timetable: that Regulation's provisions shall be implemented within two years of the entry into force of this Agreement.

Technical and operational rules

Passenger ships

Directive 2009/45/EC of the European Parliament and of the Council of 6 May 2009 on safety rules and standards for passenger ships

Timetable: that Directive's provisions shall be implemented within four years of the entry into force of this Agreement.

Council Directive 1999/35/EC of 29 April 1999 on a system of mandatory surveys for the safe operation of regular ro-ro ferry and high-speed passenger craft services

Timetable: that Directive's provisions shall be implemented within four years of the entry into force of this Agreement.

Directive 2003/25/EC of the European Parliament and of the Council of 14 April 2003 on specific stability requirements for ro-ro passenger ships

Timetable: that Directive's provisions shall be implemented within four years of the entry into force of this Agreement.

Oil tankers

Regulation (EC) No 417/2002 of the European Parliament and of the Council of 18 February 2002 on the accelerated phasing-in of double hull or equivalent design requirements for single hull oil tankers

The timetable of phasing-out single hull tankers will follow the schedule as specified in the MARPOL Convention.

Bulk carriers

Directive 2001/96/EC of the European Parliament and of the Council of 4 December 2001 establishing harmonised requirements and procedures for the safe loading and unloading of bulk carriers

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Crew

Directive 2008/106/EC of the European Parliament and of the Council of 19 November 2008 on the minimum level of training of seafarers

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Environment

Directive 2000/59/EC of the European Parliament and of the Council of 27 November 2000 on port reception facilities for ship-generated waste and cargo residues

Timetable: that Directive's provisions shall be implemented within five years of the entry into force of this Agreement.

Regulation (EC) No 782/2003 of the European Parliament and of the Council of 14 April 2003 on the prohibition of organotin compounds on ships

Timetable: that Regulation's provisions shall be implemented within three years of the entry into force of this Agreement.

Technical conditions

Directive 2010/65/EU of the European Parliament and of the Council of 20 October 2010 on reporting formalities for ships arriving in and/or departing from ports of the Member States of the Community

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Social conditions

Council Directive 92/29/EEC of 31 March 1992 on the minimum safety and health requirements for improved medical treatment on board vessels

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Council Directive 1999/63/EC of 21 June 1999 concerning the Agreement on the organisation of working time of seafarers concluded by the European Community Shipowners' Association (ECSA) and the Federation of Transport Workers' Unions in the European Union (FST) — Annex: European Agreement on the organisation of working time of seafarers

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Directive 1999/95/EC of the European Parliament and of the Council of 13 December 1999 concerning the enforcement of provisions in respect of seafarers' hours of work on board ships calling at Community ports

Timetable: that Directive's provisions shall be implemented within three years of the entry into force of this Agreement.

Maritime security

Directive 2005/65/EC of the European Parliament and of the Council of 26 October 2005 on enhancing port security

Timetable: that Directive's provisions (except those concerning Commission inspections) shall be implemented within two years of the entry into force of this Agreement.

Regulation (EC) No 725/2004 of the European Parliament and of the Council of 31 March 2004 on enhancing ship and port facility security

Timetable: that Regulation's provisions (except those concerning Commission inspections) shall be implemented within two years of the entry into force of this Agreement.

ANNEX XXIX

PUBLIC PROCUREMENT

ANNEX XXIX-A

THRESHOLDS

1. The value thresholds mentioned in Article 269(3) of this Agreement shall be for both Parties:
   (a) EUR 130 000 for public supply and service contracts awarded by central government authorities, except for public service contracts defined in the third indent of Article 7(b) of Directive 2004/18/EC;
   (b) EUR 200 000 for public supply and public service contracts not covered by point (a);
   (c) EUR 5 000 000 for public works contracts and concessions;
   (d) EUR 5 000 000 for works contracts in the utilities sector;
   (e) EUR 400 000 for supply and service contracts in the utilities sector.
2. The value thresholds referred to in paragraph 1 shall be adapted to reflect the thresholds applicable under Commission Regulation (EU) No 1336/2013 of 13 December 2013 amending Directives 2004/17/EC, 2004/18/EC and 2009/81/EC of the European Parliament and of the Council in respect of the application thresholds for the procedures for the awards of contract at the moment of the entry into force of this Agreement.

ANNEX XXIX-B

INDICATIVE TIME SCHEDULE FOR INSTITUTIONAL REFORM, LEGISLATIVE APPROXIMATION AND MARKET ACCESS

Phase		Indicative time schedule	Market access granted to the EU by the Republic of Moldova	Market access granted to the Republic of Moldova by the EU	
1	Implementation of Article 271 of this Agreement Implementation of the Institutional reform set out in Article 270(2) of this Agreement Agreement of the Reform Strategy set out in Article 272 of this Agreement	9 months after the entry into force of this Agreement	Supplies for central government authorities	Supplies for central government authorities	
2	Approximation and implementation of basic elements of Directive 2004/18/EC and of Directive 89/665/EEC	3 years after the entry into force of this Agreement	Supplies for state, regional and local authorities and bodies governed by public law	Supplies for state, regional and local authorities and bodies governed by public law	Annexes XXIX-C and XXIX-D
3	Approximation and implementation of basic elements of Directive 2004/17/EC and of Directive 92/13/EEC	4 years after the entry into force of this Agreement	Supplies for all contracting entities in the utilities sector	Supplies for all contracting entities	Annexes XXIX-E and XXIX-F
4	Approximation and implementation of other elements of Directive 2004/18/EC	6 years after the entry into force of this Agreement	Service and works contracts and concessions for all contracting authorities	Service and works contracts and concessions for all contracting authorities	Annexes XXIX-G, XXIX-H and XXIX-I
5	Approximation and implementation of other elements of Directive 2004/17/EC	8 years after the entry into force of this Agreement	Service and works contracts for all contracting entities in the utilities sector	Service and works contracts for all contracting entities in the utilities sector	Annexes XXIX-J and XXIX-K

ANNEX XXIX-C

BASIC ELEMENTS OF DIRECTIVE 2004/18/EC

of the European Parliament and of the Council of 31 March 2004 on the coordination of procedures for the award of public works contracts, public supply contracts and public service contracts

(Phase 2)

TITLE I	Definitions and general principles
Article 1	Definitions (paragraphs 1, 2, 8, 9, 11(a), 11(b) and 11(d), 12, 13, 14, 15)
Article 2	Principles of awarding contracts
Article 3	Granting of special or exclusive rights: non-discrimination clause
TITLE II	Rules on public contracts
CHAPTER I	General provisions
Article 4	Economic operators
Article 6	Confidentiality
CHAPTER II	Scope
Section 1	Thresholds
Article 8	Contracts subsidised by more than 50 % by contracting authorities
Article 9	Methods for calculating the estimated value of public contracts, framework agreements and dynamic purchasing systems
Section 2	Specific situations
Article 10	Defence procurement
Section 3	Excluded contracts
Article 12	Contracts in the water, energy, transport and postal services sectors (only when basic rules of Directive 2004/17/EC have been approximated)
Article 13	Specific exclusions in the field of telecommunications
Article 14	Secret contracts and contracts requiring special security measures
Article 15	Contracts awarded pursuant to international rules
Article 16	Specific exclusions
Article 18	Service contracts awarded on the basis of an exclusive right
Section 4	Special arrangement
Article 19	Reserved contracts
CHAPTER III	Arrangements for public service contracts
Article 20	Service contracts listed in Annex II A
Article 21	Service contracts listed in Annex II B
Article 22	Mixed contracts including services listed in Annex II A and services listed in Annex II B

CHAPTER IV	Specific rules governing specifications and contract documents
Article 23	Technical specifications
Article 24	Variants
Article 25	Subcontracting
Article 26	Conditions for performance of contracts
Article 27	Obligations relating to taxes, environmental protection, employment protection provisions and working conditions
CHAPTER V	Procedures
Article 28	Use of open, restricted and negotiated procedures and of competitive dialogue
Article 30	Cases justifying use of the negotiated procedure with prior publication of a contract notice
Article 31	Cases justifying use of the negotiated procedure without publication of a contract notice
CHAPTER VI	Rules on advertising and transparency
Section 1	Publication of notices
Article 35	Notices: paragraph 1 *mutatis mutandis*; paragraph 2; paragraph 4 first, third and fourth sub-paragraph
Article 36	Form and manner of publication of notices: paragraph 1; paragraph 7
Section 2	Time limits
Article 38	Time limits for receipt of requests to participate and for receipt of tenders
Article 39	Open procedures: Specifications, additional documents and information
Section 3	Information content and means of transmission
Article 40	Invitations to submit a tender, participate in the dialogue or negotiate
Article 41	Informing candidates and tenderers
Section 4	Communication
Article 42	Rules applicable to communication
CHAPTER VII	Conduct of the procedure
Section 1	General provisions
Article 44	Verification of the suitability and choice of participants and award of contracts
Section 2	Criteria for qualitative selection
Article 45	Personal situation of the candidate or tenderer
Article 46	Suitability to pursue the professional activity
Article 47	Economic and financial standing
Article 48	Technical and/or professional ability

Article 49	Quality assurance standards
Article 50	Environmental management standards
Article 51	Additional documentation and information
Section 3	Award of the contract
Article 53	Contract award criteria
Article 55	Abnormally low tenders
ANNEXES	
Annex I	List of the activities referred to in Article 1(2)(b)
Annex II	Services referred to in Article 1(2)(d)
Annex II A	
Annex II B	
Annex V	List of products referred to in Article 7 with regard to contracts awarded by contracting authorities in the field of defence
Annex VI	Definition of certain technical specifications
Annex VII	Information to be included in notices
Annex VII A	Information to be included in public contract notices
Annex X	Requirements relating to equipment for the electronic receipt of tenders, requests to participate and plans and projects in design contests

ANNEX XXIX-D

BASIC ELEMENTS OF COUNCIL DIRECTIVE 89/665/EEC

of 21 December 1989 on the coordination of the laws, regulations and administrative provisions relating to the application of review procedures to the award of public supply and public works contracts as amended by Directive 2007/66/EC of the European Parliament and of the Council of 11 December 2007 amending Council Directives 89/665/EEC and No 92/13/EEC with regard to improving the effectiveness of review procedures concerning the award of public contracts

(Phase 2)

Article 1	Scope and availability of review procedures
Article 2	Requirements for review procedures
Article 2a	Standstill period
Article 2b	Derogations from the standstill period Point (b) of the first paragraph of Article 2b
Article 2c	Time limits for applying for review
Article 2d	Ineffectiveness Paragraph 1(b) Paragraph 2 and 3
Article 2e	Infringements of this Directive and alternative penalties
Article 2f	Time limits

ANNEX XXIX-E

BASIC ELEMENTS OF DIRECTIVE 2004/17/EC

of the European Parliament and of the Council of 31 March 2004 coordinating the procurement procedures of entities operating in the water, energy, transport and postal services sectors

(Phase 3)

TITLE I	General provisions applicable to contracts and design contests
CHAPTER I	Basic terms
Article 1	Definitions (paragraphs 2, 7, 9, 11, 12, 13)
CHAPTER II	Definition of the activities and entities covered
Section 1	Entities
Article 2	Contracting entities
Section 2	Activities
Article 3	Gas, heat and electricity
Article 4	Water
Article 5	Transport services
Article 6	Postal services
Article 7	Exploration for, or extraction of, oil, gas, coal or other solid fuels, as well as ports and airports
Article 9	Contracts covering several activities
CHAPTER III	General principles
Article 10	Principles of awarding contracts
TITLE II	Rules applicable to contracts
CHAPTER I	General provisions
Article 11	Economic operators
Article 13	Confidentiality
CHAPTER II	Thresholds and exclusion provisions
Section 1	Thresholds
Article 16	Contract thresholds
Article 17	Methods of calculating the estimated value of contracts, framework agreements and dynamic purchasing systems
Section 2	Contracts and concessions and contracts subject to special arrangements
Subsection 2	Exclusions applicable to all contracting entities and to all types of contract
Article 19	Contracts awarded for purposes of resale or lease to third parties
Article 20	Contracts awarded for purposes other than the pursuit of an activity covered or for the pursuit of such an activity in a third country: paragraph 1

Article 21	Contracts which are secret or require special security measures
Article 22	Contracts awarded pursuant to international rules
Article 23	Contracts awarded to an affiliated undertaking, to a joint venture or to a contracting entity forming part of a joint venture
Subsection 3	Exclusions applicable to all contracting entities, but to service contracts only
Article 24	Contracts relating to certain services excluded from the scope of this Directive
Article 25	Service contracts awarded on the basis of an exclusive right
Subsection 4	Exclusions applicable to certain contracting entities only
Article 26	Contracts awarded by certain contracting entities for the purchase of water and for the supply of energy or of fuels for the production of energy
CHAPTER III	Rules applicable to service contracts
Article 31	Service contracts listed in Annex XVII A
Article 32	Service contracts listed in Annex XVII B
Article 33	Mixed service contracts including services listed in Annex XVII A and services listed in Annex XVII B
CHAPTER IV	Specific rules governing specifications and contract documents
Article 34	Technical specifications
Article 35	Communication of technical specifications
Article 36	Variants
Article 37	Subcontracting
Article 39	Obligations relating to taxes, environmental protection, employment protection provisions and working conditions
CHAPTER V	Procedures
Article 40	(except paragraph 3 (i) and (l)) Use of open, restricted and negotiated procedures
CHAPTER VI	Rules on publication and transparency
Section 1	Publication of notices
Article 41	Periodic indicative notices and notices on the existence of a system of qualification
Article 42	Notices used as a means of calling for competition paragraphs 1 and 3
Article 43	Contract award notices (except for the second and third subparagraph of paragraph 1)
Article 44	Form and manner of publication of notices (except for the first subparagraph of paragraph 2 and paragraphs 4, 5, 7)
Section 2	Time limits
Article 45	Time limits for the receipt of requests to participate and for the receipt of tenders
Article 46	Open procedures: specifications, additional documents and information

Article 47	Invitations to submit a tender or to negotiate
Section 3	Communication and information
Article 48	Rules applicable to communication
Article 49	Information to applicants for qualification, candidates and tenderers
CHAPTER VII	Conduct of the procedure
Article 51	General provisions
Section 1	Qualification and qualitative selection
Article 52	Mutual recognition concerning administrative, technical or financial conditions, and certificates, tests and evidence
Article 54	Criteria for qualitative selection
Section 2	Award of the contract
Article 55	Contract award criteria
Article 57	Abnormally low tenders
Annex XIII	Information to be included in contract notices: A. Open procedures B. Restricted procedures C. Negotiated procedures
Annex XIV	Information to be included in the notice on the existence of a system of qualification
Annex XV A	Information to be included in the periodic indicative notice
Annex XV B	Information to be included in notices of publication of a periodic notice on a buyer profile not used as a means of calling for competition
Annex XVI	Information to be included in the contract award notice
Annex XVII A	Services within the meaning of Article 31
Annex XVII B	Services within the meaning of Article 32
Annex XX	Features concerning publication
Annex XXI	Definition of certain technical specifications
Annex XXIII	International labour law provisions within the meaning of Article 59(4)
Annex XXIV	Requirements relating to equipment for the electronic receipt of tenders, requests to participate, applications for qualification as well as plans and projects

ANNEX XXIX-F

BASIC ELEMENTS OF COUNCIL DIRECTIVE 92/13/EEC

of 25 February 1992 coordinating the laws, regulations and administrative provisions relating to the application of Community rules on the procurement procedures of entities operating in the water, energy, transport and telecommunications sectors as amended by Directive 2007/66/EC

(Phase 3)

Article 1	Scope and availability of review procedures
Article 2	Requirements for review procedures
Article 2a	Standstill period
Article 2b	Derogations from the standstill period Point (b) of the first paragraph of Article 2b
Article 2c	Time limits for applying for review
Article 2d	Ineffectiveness Paragraph 1 (b) Paragraphs 2 and 3
Article 2e	Infringements of this Directive and alternative penalties
Article 2f	Time limits

ANNEX XXIX-G

OTHER NON-MANDATORY ELEMENTS OF DIRECTIVE 2004/18/EC

(Phase 4)

The elements of Directive 2004/18/EC set out in this Annex are not mandatory but recommended for approximation. The Republic of Moldova may approximate these elements within the time-frame set in Annex XXIX-B to this Agreement.

TITLE I	Definitions and general principles
Article 1	Definitions (paragraphs 5, 6, 7, 10, and 11(c))
TITLE II	Rules on public contracts
CHAPTER II	Scope
Section 2	Specific situations
Article 11	Public contracts and framework agreements awarded by central purchasing bodies
Section 4	Special arrangement
Article 19	Reserved contracts
CHAPTER V	Procedures
Article 29	Competitive dialogue
Article 32	Framework agreements
Article 33	Dynamic purchasing systems
Article 34	Public works contracts: particular rules on subsidised housing schemes
CHAPTER VI	Rules on advertising and transparency
Section 1	Publication of notices
Article 35	Notices: paragraph 3, and subparagraphs 2 and 3 of paragraph 4
CHAPTER VII	Conduct of the procedure
Section 2	Criteria for qualitative selection
Article 52	Official lists of approved economic operators and certification by bodies established under public or private law
Section 3	Award of the contract
Article 54	Use of electronic auctions

ANNEX XXIX-H

OTHER MANDATORY ELEMENTS OF DIRECTIVE 2004/18/EC

(Phase 4)

TITLE I	Definitions and general principles
Article 1	Definitions (paragraphs 3, 4, and 11(e))
TITLE II	Rules on public contracts
CHAPTER II	Scope
Section 3	Excluded contracts
Article 17	Service concessions
TITLE III	Rules on public works concessions
CHAPTER I	Rules governing public works concessions
Article 56	Scope
Article 57	Exclusions from the scope (except the last paragraph)
Article 58	Publication of the notice concerning public works concessions
Article 59	Time limit
Article 60	Subcontracting
Article 61	Awarding of additional works to the concessionaire
CHAPTER II	Rules on contracts awarded by concessionaires which are contracting authorities
Article 62	Applicable rules
CHAPTER III	Rules applicable to contracts awarded by concessionaires which are not contracting authorities
Article 63	Advertising rules: threshold and exceptions
Article 64	Publication of the notice
Article 65	Time limit for the receipt of requests to participate and receipt of tenders
TITLE IV	Rules governing design contests
Article 66	General provisions
Article 67	Scope
Article 68	Exclusions from the scope
Article 69	Notices
Article 70	Form and manner of publication of notices of contests
Article 71	Means of communication
Article 72	Selection of competitors

Article 73	Composition of the jury
Article 74	Decisions of the jury
Annex VII B	Information which must appear in public works concession notices
Annex VII C	Information which must appear in works contracts notices of concessionaires who are not contracting authorities
Annex VII D	Information which must appear in design contest notices

ANNEX XXIX-I

OTHER ELEMENTS OF DIRECTIVE 89/665/EEC

as amended by Directive 2007/66/EC

(Phase 4)

Article 2b	Derogations from the standstill period Point (c) of the first paragraph of Article 2b
Article 2d	Ineffectiveness Point (c) of Article 2d(1) Paragraph 5

ANNEX XXIX-J

OTHER NON-MANDATORY ELEMENTS OF DIRECTIVE 2004/17/EC

(Phase 5)

The elements of Directive 2004/17/EC set out in this Annex are not mandatory but recommended for approximation. The Republic of Moldova may approximate these elements within the timeframe set in Annex XXIX-B to this Agreement.

TITLE I	General provisions applicable to contracts and design contests
CHAPTER I	Basic terms
Article 1	Definitions (paragraphs 4, 5, 6, 8)
TITLE II	Rules applicable to contracts
CHAPTER I	General provisions
Article 14	Framework agreements
Article 15	Dynamic purchasing systems
Section 2	Contracts and concessions and contracts subject to special arrangements
Subsection 5	Contracts subject to special arrangements, provisions concerning central purchasing bodies and the general procedure in case of direct exposure to competition
Article 28	Reserved contracts
Article 29	Contracts and framework agreements awarded by central purchasing bodies
CHAPTER V	Procedures
Article 40(3)(i) and (l)	
CHAPTER VI	Rules on publication and transparency
Section 1	Publication of notices
Article 42	Notices used as a means of calling for competition: paragraph 2
Article 43	Contract award notices (only for the second and the third subparagraphs of paragraph 1)
CHAPTER VII	Conduct of the procedure
Section 2	Award of the contract
Article 56	Use of electronic auctions
Annex XIII	Information to be included in contract notices: D. Simplified contract notice for use in a dynamic purchasing system

ANNEX XXIX-K

OTHER ELEMENTS OF DIRECTIVE 92/13/EEC

as amended by Directive 2007/66/EC

(Phase 5)

Article 2b	Derogations from the standstill period Point (c) of the first paragraph of Article 2b
Article 2d	Ineffectiveness Point (c) of Article 2d(1) Paragraph 5

ANNEX XXIX-L

PROVISIONS OF DIRECTIVE 2004/18/EC OUTSIDE THE SCOPE OF APPROXIMATION

The elements listed in this Annex are not subject to the process of approximation.

TITLE II	Rules on public contracts
CHAPTER I	General provisions
Article 5	Conditions relating to agreements concluded within the World Trade Organisation
CHAPTER VI	Rules on advertising and transparency
Section 1	Publication of notices
Article 36	Form and manner of publication of notices: paragraphs 2, 3, 4, 5, 6, 8
Article 37	Non-mandatory publication
Section 5	Reports
Article 43	Content of reports
TITLE V	Statistical obligations, executory powers and final provisions
Article 75	Statistical obligations
Article 76	Content of statistical report
Article 77	Advisory Committee
Article 78	Revision of the thresholds
Article 79	Amendments
Article 80	Implementation
Article 81	Monitoring mechanisms
Article 82	Repeals
Article 83	Entry into force
Article 84	Addressees
ANNEXES	
Annex III	List of bodies and categories of bodies governed by public law referred to in the second sub-paragraph of Article 1(9)
Annex IV	Central Government authorities
Annex VIII	Features concerning publication
Annex IX	Registers
Annex IX A	Public works contracts
Annex IX B	Public supply contracts
Annex IX C	Public service contracts
Annex XI	Deadlines for transposition and application (Article 80)
Annex XII	Correlation table

ANNEX XXIX-M

PROVISIONS OF DIRECTIVE 2004/17/EC OUTSIDE THE SCOPE OF APPROXIMATION

The elements listed in this Annex are not subject to the process of approximation.

TITLE I	General provisions applicable to contracts and design contests
CHAPTER II	Definition of the activities and entities covered
Section 2	Activities
Article 8	Lists of contracting entities
TITLE II	Rules applicable to contracts
CHAPTER I	General provisions
Article 12	Conditions relating to Agreements concluded within the World Trade Organisation
Section 2	Contracts and concessions and contracts subject to special arrangements
Subsection 1	
Article 18	Works and service concessions
Subsection 2	Exclusions applicable to all contracting entities and to all types of contract
Article 20	Contracts awarded for purposes other than the pursuit of an activity covered or for the pursuit of such an activity in a third country: paragraph 2
Subsection 5	Contracts subject to special arrangements, provisions concerning central purchasing bodies and the general procedure in case of direct exposure to competition
Article 27	Contracts subject to special arrangements
Article 30	Procedure for establishing whether a given activity is directly exposed to competition
CHAPTER IV	Specific rules governing specifications and contract documents
Article 38	Conditions for performance of contracts
CHAPTER VI	Rules on publication and transparency
Section 1	Publication of notices
Article 44	Form and manner of publication of notices (only for the first subparagraph of paragraph 2, and for paragraphs 4, 5 and 7)
Section 3	Communication and information
Article 50	Information to be stored concerning awards
CHAPTER VII	Conduct of the procedure
Section 3	Tenders comprising products originating in third countries and relations with those countries
Article 58	Tenders comprising products originating in third countries
Article 59	Relations with third countries as regards works, supplies and service contracts

TITLE IV	Statistical obligations, executory powers and final provisions
Article 67	Statistical obligations
Article 68	Advisory Committee
Article 69	Revision of the thresholds
Article 70	Amendments
Article 71	Implementation of the Directive
Article 72	Monitoring mechanisms
Article 73	Repeal
Article 74	Entry into force
Article 75	Addressees
ANNEXES	
Annex I	Contracting entities in the sectors of transport or distribution of gas or heat
Annex II	Contracting entities in the sectors of production, transport or distribution of electricity
Annex III	Contracting entities in the sectors of production, transport or distribution of drinking water
Annex IV	Contracting entities in the field of rail services
Annex V	Contracting entities in the field of urban railway, tramway, trolleybus or bus services
Annex VI	Contracting entities in the postal services sector
Annex VII	Contracting entities in the sectors of exploration for and extraction of oil or gas
Annex VIII	Contracting entities in the sectors of exploration for and extraction of coal and other solid fuels
Annex IX	Contracting entities in the field of maritime or inland port or other terminal facilities
Annex X	Contracting entities in the field of airport installations
Annex XI	List of legislation referred to in Article 30(3)
Annex XII	List of professional activities as set out in point b of Article 1(2)
Annex XXII	Summary table of the time limits laid down in Article 45
Annex XXV	Time limits for transposition and implementation
Annex XXVI	Correlation table

ANNEX XXIX-N

PROVISIONS OF DIRECTIVE 89/665/EEC AS AMENDED BY DIRECTIVE 2007/66/EC OUTSIDE THE SCOPE OF APPROXIMATION

The elements listed in this Annex are not subject to the process of approximation.

Article 2b	Derogations from the standstill period Point (a) of the first paragraph of Article 2b
Article 2d	Ineffectiveness Point (a) of Article 2d(1) Paragraph 4
Article 3	Corrective Mechanisms
Article 3a	Content of the notice for voluntary *ex ante* transparency
Article 3b	Committee Procedure
Article 4	Implementation
Article 4a	Review

ANNEX XXIX-O

PROVISIONS OF DIRECTIVE 92/13/EEC AS AMENDED BY DIRECTIVE 2007/66/EC OUTSIDE THE SCOPE OF APPROXIMATION

The elements listed in this Annex are not subject to the process of approximation.

Article 2b	Derogations from the standstill period Point (a) of the first paragraph of Article 2b
Article 2d	Ineffectiveness Point (a) of Article 2d(1) Paragraph 1
Article 3a	Content of the notice for voluntary *ex ante* transparency
Article 3b	Committee Procedure
Article 8	Corrective Mechanisms
Article 12	Implementation
Article 12a	Review

ANNEX XXIX-P

THE REPUBLIC OF MOLDOVA: INDICATIVE LIST OF ISSUES FOR COOPERATION

1. Training, in the Union and in the Republic of Moldova, of officials of the Republic of Moldova from government bodies engaged in public procurement.
2. Training of suppliers interested participating in public procurement.
3. Exchange of information and experience on best practice and regulatory rules in the sphere of public procurement.
4. Enhancement of the functionality of the public procurement website and establishment of a system of public procurement monitoring.
5. Consultations and methodological assistance from the Union in application of modern electronic technologies in the sphere of public procurement.
6. Strengthening the bodies charged with guaranteeing a coherent policy in all areas related to public procurement and the independent and impartial consideration (review) of contracting authorities' decisions. (Cf. Article 270 of this Agreement).

ANNEX XXX

GEOGRAPHICAL INDICATIONS

ANNEX XXX-A

ELEMENTS FOR REGISTRATION AND CONTROL OF GEOGRAPHICAL INDICATIONS AS REFERRED TO IN ARTICLE 297(1) AND (2)

PART A

Legislation referred to in Article 297(1)

Law on the Protection of Geographical Indications, Designations of Origin and Traditional Specialties Guaranteed, No 66-XVI of 27.03.2008 and its implementing rules, for the procedure of filing, examination and registration of geographical indications, designations of origin and traditional specialties guaranteed in the Republic of Moldova.

PART B

Legislation referred to in Article 297(2)

1. Regulation (EU) No 1151/2012 of the European Parliament and of the Council of 21 November 2012 on quality schemes for agricultural products and foodstuffs
2. Part II, Title II, Chapter I, Section 1a of Council Regulation (EC) No 1234/2007 of 22 October 2007 establishing a common organisation of agricultural markets and on specific provisions for certain agricultural products (Single CMO Regulation), with its implementing rules
3. Regulation (EC) No 110/2008 of the European Parliament and of the Council of 15 January 2008 on the definition, description, presentation, labelling and the protection of geographical indications of spirit drinks, with its implementing rules
4. Council Regulation (EEC) No 1601/91 of 10 June 1991 laying down general rules on the definition, description and presentation of aromatized wines, aromatized wine-based drinks and aromatized wine-product cocktails, with its implementing rules

PART C

Elements for registration and control of geographical indications referred to in Article 297(1) and 297(2)

1. A register listing geographical indications protected in the territory.
2. An administrative process verifying that geographical indications identify a good as originating in a territory, region or locality of one or more states, where a given quality, reputation or other characteristic of the good is essentially attributable to its geographical origin.
3. A requirement that a registered name shall correspond to a specific product or products for which a product specification is laid down, which can only be amended by due administrative process.
4. Control provisions applying to production.
5. An objection procedure that allows the legitimate interests of prior users of names, whether those names are protected as a form of intellectual property or not, to be taken into account.
6. A rule that protected names may not become generic.
7. Provisions concerning the registration, which may include refusal of registration, of terms homonymous or partly homonymous with registered terms, terms customary in common language as the common name for goods, terms comprising or including the names of plant varieties and animal breeds. Such provisions shall take into account the legitimate interests of all parties concerned.

ANNEX XXX-B

CRITERIA TO BE INCLUDED IN THE OBJECTION PROCEDURE FOR PRODUCTS REFERRED TO IN ARTICLE 297(3) AND 297(4)

1. List of name(s) with, where applicable, the corresponding transcription into Latin characters.
2. Information about the product class.
3. Invitation to any Member State, in the case of the EU, or third country or any natural or legal persons having a legitimate interest, established or resident in a Member State, in the case of the EU, in the Republic of Moldova or in a third country, to submit objections to such protection by lodging a duly substantiated statement.
4. Statements of objection must reach the European Commission or the Government of the Republic of Moldova within 2 months from the date of the publication of the information notice.
5. Statements of objection shall be admissible only if they are received within the time-limit set out in point 4 and if they show that the protection of the name proposed would:
   - conflict with the name of a plant variety, including a wine grape variety or an animal breed, and as a result would be likely to mislead the consumer as to the true origin of the product;
   - conflict with a homonymous name which would mislead the consumer into believing that products come from another territory;
   - in the light of a trade mark's reputation and renown and the length of time it has been used, be liable to mislead the consumer as to the true identity of the product;
   - jeopardise the existence of an entirely or partly identical name or of a trade mark or the existence of products which have been legally on the market for at least five years preceding the date of the publication of the information notice;
   - conflict with a name that is considered generic.
6. The criteria referred to in point 5 shall be evaluated in relation to the territory of the EU, which in the case of intellectual property rights refers only to the territory or territories where the rights are protected, or the territory of the Republic of Moldova.

ANNEX XXX-C

GEOGRAPHICAL INDICATIONS OF PRODUCTS AS REFERRED TO IN ARTICLE 297(3) AND 297(4)

Agricultural products and foodstuffs others than wines, spirits and aromatised wines of the EU to be protected in the Republic of Moldova

Member State	Name to be protected	Type of product	Latin Equivalent
AT	Gailtaler Speck	Meat products (cooked, salted, smoked, etc.)	
AT	Tiroler Speck	Meat products (cooked, salted, smoked, etc.)	
AT	Gailtaler Almkäse	Cheeses	
AT	Tiroler Almkäse; Tiroler Alpkäse	Cheeses	
AT	Tiroler Bergkäse	Cheeses	
AT	Tiroler Graukäse	Cheeses	
AT	Vorarlberger Alpkäse	Cheeses	
AT	Vorarlberger Bergkäse	Cheeses	
AT	Steirisches Kübiskernöl	Oils and fats (butter, margarine, oil, etc.)	
AT	Marchfeldspargel	Fruit, vegetables, cereales, fresh or processed	
AT	Steirischer Kren	Fruit, vegetables, cereales, fresh or processed	
AT	Wachauer Marille	Fruit, vegetables, cereales, fresh or processed	
AT	Waldviertler Graumohn	Fruit, vegetables, cereales, fresh or processed	
BE	Jambon d'Ardenne	Meat products (cooked, salted, smoked, etc.)	
BE	Fromage de Herve	Cheeses	
BE	Beurre d'Ardenne	Oils and fats (butter, margarine, oil, etc.)	
BE	Brussels grondwitloof	Fruit, vegetables, cereales, fresh or processed	
BE	Vlaams-Brabantse Tafeldruif	Fruit, vegetables, cereales, fresh or processed	
BE	Pâté gaumais	Other products of Annex I to the Treaty (spices, etc.)	
BE	Geraardsbergse Mattentaart	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
BE	Gentse azalea	Flowers and ornamental plants	

Member State	Name to be protected	Type of product	Latin Equivalent
CY	Λουκούμι Γεροσκήπου	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	Loukoumi Geroskipou
CZ	Nošovické kysané zelí	Fruit, vegetables, cereales, fresh or processed	
CZ	Všestarská cibule	Fruit, vegetables, cereales, fresh or processed	
CZ	Pohořelický kapr	Fresh fish, molluscs, and crustaceans and products derived from them	
CZ	Třeboňský kapr	Fresh fish, molluscs, and crustaceans and products derived from them	
CZ	Český kmín	Other products of Annex I to the Treaty (spices, etc.)	
CZ	Chamomilla bohemica	Other products of Annex I to the Treaty (spices, etc.)	
CZ	Žatecký chmel	Other products of Annex I to the Treaty (spices, etc.)	
CZ	Brněnské pivo; Starobrněnské pivo	Beers	
CZ	Březnický ležák	Beers	
CZ	Budějovické pivo	Beers	
CZ	Budějovický měšťanský var	Beers	
CZ	České pivo	Beers	
CZ	Černá Hora	Beers	
CZ	Českobudějovické pivo	Beers	
CZ	Chodské pivo	Beers	
CZ	Znojemské pivo	Beers	
CZ	Hořické trubičky	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
CZ	Karlovarský suchar	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
CZ	Lomnické suchary	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
CZ	Mariánskolázeňské oplatky	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	

Member State	Name to be protected	Type of product	Latin Equivalent
CZ	Pardubický perník	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
CZ	Štramberské uši	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
CZ	Jihočeská Niva	Cheeses	
CZ	Jihočeská Zlatá Niva	Cheeses	
DE	Diepholzer Moorschnucke	Fresh meat (and offal)	
DE	Lüneburger Heidschnucke	Fresh meat (and offal)	
DE	Schwäbisch-Hällisches Qualitätsschweinefleisch	Fresh meat (and offal)	
DE	Ammerländer Dielenrauchschinken; Ammerländer Katenschinken	Meat products (cooked, salted, smoked, etc.)	
DE	Ammerländer Schinken; Ammerländer Knochenschinken	Meat products (cooked, salted, smoked, etc.)	
DE	Greußener Salami	Meat products (cooked, salted, smoked, etc.)	
DE	Nürnberger Bratwürste; Nürnberger Rostbratwürste	Meat products (cooked, salted, smoked, etc.)	
DE	Schwarzwälder Schinken	Meat products (cooked, salted, smoked, etc.)	
DE	Thüringer Leberwurst	Meat products (cooked, salted, smoked, etc.)	
DE	Thüringer Rostbratwurst	Meat products (cooked, salted, smoked, etc.)	
DE	Thüringer Rotwurst	Meat products (cooked, salted, smoked, etc.)	
DE	Allgäuer Bergkäse	Cheeses	
DE	Allgäuer Emmentaler	Cheeses	
DE	Altenburger Ziegenkäse	Cheeses	
DE	Odenwälder Frühstückskäse	Cheeses	
DE	Lausitzer Leinöl	Oils and fats (butter, margarine, oil, etc.)	
DE	Bayerischer Meerrettich; Bayerischer Kren	Fruit, vegetables, cereales, fresh or processed	

Member State	Name to be protected	Type of product	Latin Equivalent
DE	Feldsalate von der Insel Reichenau	Fruit, vegetables, cereales, fresh or processed	
DE	Gurken von der Insel Reichenau	Fruit, vegetables, cereales, fresh or processed	
DE	Salate von der Insel Reichenau	Fruit, vegetables, cereales, fresh or processed	
DE	Spreewälder Gurken	Fruit, vegetables, cereales, fresh or processed	
DE	Spreewälder Meerrettich	Fruit, vegetables, cereales, fresh or processed	
DE	Tomaten von der Insel Reichenau	Fruit, vegetables, cereales, fresh or processed	
DE	Holsteiner Karpfen	Fresh fish, molluscs, and crustaceans and products derived from them	
DE	Oberpfälzer Karpfen	Fresh fish, molluscs, and crustaceans and products derived from them	
DE	Schwarzwaldforelle	Fresh fish, molluscs, and crustaceans and products derived from them	
DE	Bayerisches Bier	Beers	
DE	Bremer Bier	Beers	
DE	Dortmunder Bier	Beers	
DE	Hofer Bier	Beers	
DE	Kölsch	Beers	
DE	Kulmbacher Bier	Beers	
DE	Mainfranken Bier	Beers	
DE	Münchener Bier	Beers	
DE	Reuther Bier	Beers	
DE	Wernesgrüner Bier	Beers	
DE	Aachener Printen	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
DE	Lübecker Marzipan	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
DE	Meißner Fummel	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	

Member State	Name to be protected	Type of product	Latin Equivalent
DE	Nürnberger Lebkuchen	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
DE	Schwäbische Maultaschen; Schwäbische Suppenmaultaschen	Pasta	
DE	Hopfen aus der Hallertau	Other products of Annex I to the Treaty (spices, etc.)	
DK	Danablu	Cheeses	
DK	Esrom	Cheeses	
DK	Lammefjordsgulerod	Fruit, vegetables, cereales, fresh or processed	
EL	Ανεβατό	Cheeses	Anevato
EL	Γαλοτύρι	Cheeses	Galotyri
EL	Γραβιέρα Αγράφων	Cheeses	Graviera Agrafon
EL	Γραβιέρα Κρήτης	Cheeses	Graviera Kritis
EL	Γραβιέρα Νάξου	Cheeses	Graviera Naxou
EL	Καλαθάκι Λήμνου	Cheeses	Kalathaki Limnou
EL	Κασέρι	Cheeses	Kasseri
EL	Κατίκι Δομοκού	Cheeses	Katiki Domokou
EL	Κεφαλογραβιέρα	Cheeses	Kefalograviera
EL	Κοπανιστή	Cheeses	Kopanisti
EL	Λαδοτύρι Μυτιλήνης	Cheeses	Ladotyri Mytilinis
EL	Μανούρι	Cheeses	Manouri
EL	Μετσοβόνε	Cheeses	Metsovone
EL	Μπάτζος	Cheeses	Batzos
EL	Ξυνομυζήθρα Κρήτης	Cheeses	Xynomyzithra Kritis
EL	Πηχτόγαλο Χανίων	Cheeses	Pichtogalo Chanion
EL	Σαν Μιχάλη	Cheeses	San Michali
EL	Σφέλα	Cheeses	Sfela

Member State	Name to be protected	Type of product	Latin Equivalent
EL	Φέτα	Cheeses	Feta
EL	Φορμαέλλα Αράχωβας Παρνασσού	Cheeses	Formaella Arachovas Parnassou
EL	Άγιος Ματθαίος Κέρκυρας	Oils and fats (butter, margarine, oil, etc.)	Agios Mattheos Kerkyras
EL	Αποκορώνας Χανίων Κρήτης	Oils and fats (butter, margarine, oil, etc.)	Apokoronas Chanion Kritis
EL	Αρχάνες Ηρακλείου Κρήτης	Oils and fats (butter, margarine, oil, etc.)	Arxanes Irakliou Kritis
EL	Βιάννος Ηρακλείου Κρήτης	Oils and fats (butter, margarine, oil, etc.)	Viannos Irakliou Kritis
EL	Βόρειος Μυλοπόταμος Ρεθύμνης Κρήτης	Oils and fats (butter, margarine, oil, etc.)	Vorios Mylopotamos Rethymnis Kritis
EL	Εξαιρετικό παρθένο ελαιόλαδο 'Τροιζηνία'	Oils and fats (butter, margarine, oil, etc.)	Exeretiko partheno eleolado 'Trizinia'
EL	Εξαιρετικό παρθένο ελαιόλαδο Θραψανό	Oils and fats (butter, margarine, oil, etc.)	Exeretiko partheno eleolado Thrapsano
EL	Ζάκυνθος	Oils and fats (butter, margarine, oil, etc.)	Zakynthos
EL	Θάσος	Oils and fats (butter, margarine, oil, etc.)	Thassos
EL	Καλαμάτα	Oils and fats (butter, margarine, oil, etc.)	Kalamata
EL	Κεφαλονιά	Oils and fats (butter, margarine, oil, etc.)	Kefalonia
EL	Κολυμβάρι Χανίων Κρήτης	Oils and fats (butter, margarine, oil, etc.)	Kolymvari Chanion Kritis
EL	Κρανίδι Αργολίδας	Oils and fats (butter, margarine, oil, etc.)	Kranidi Argolidas
EL	Κροκεές Λακωνίας	Oils and fats (butter, margarine, oil, etc.)	Krokees Lakonias
EL	Λακωνία	Oils and fats (butter, margarine, oil, etc.)	Lakonia
EL	Λέσβος; Μυτιλήνη	Oils and fats (butter, margarine, oil, etc.)	Lesvos; Mytilini
EL	Λυγουριό Ασκληπιείου	Oils and fats (butter, margarine, oil, etc.)	Lygourio Asklipiiou
EL	Ολυμπία	Oils and fats (butter, margarine, oil, etc.)	Olympia
EL	Πεζά Ηρακλείου Κρήτης	Oils and fats (butter, margarine, oil, etc.)	Peza Irakliou Kritis
EL	Πέτρινα Λακωνίας	Oils and fats (butter, margarine, oil, etc.)	Petrina Lakonias
EL	Πρέβεζα	Oils and fats (butter, margarine, oil, etc.)	Preveza

Member State	Name to be protected	Type of product	Latin Equivalent
EL	Ρόδος	Oils and fats (butter, margarine, oil, etc.)	Rodos
EL	Σάμος	Oils and fats (butter, margarine, oil, etc.)	Samos
EL	Σητεία Λασιθίου Κρήτης	Oils and fats (butter, margarine, oil, etc.)	Sitia Lasithiou Kritis
EL	Φοινίκι Λακωνίας	Oils and fats (butter, margarine, oil, etc.)	Finiki Lakonias
EL	Χανιά Κρήτης	Oils and fats (butter, margarine, oil, etc.)	Chania Kritis
EL	Ακτινίδιο Πιερίας	Fruit, vegetables, cereales, fresh or processed	Aktinidio Pierias
EL	Ακτινίδιο Σπερχειού	Fruit, vegetables, cereales, fresh or processed	Aktinidio Sperchiou
EL	Ελιά Καλαμάτας	Fruit, vegetables, cereales, fresh or processed	Elia Kalamatas
EL	Θρούμπα Αμπαδιάς Ρεθύμνης Κρήτης	Fruit, vegetables, cereales, fresh or processed	Throumpa Ampadias Rethymnis Kritis
EL	Θρούμπα Θάσου	Fruit, vegetables, cereales, fresh or processed	Throumpa Thassou
EL	Θρούμπα Χίου	Fruit, vegetables, cereales, fresh or processed	Throumpa Chiou
EL	Κελυφωτό φυστίκι Φθιώτιδας	Fruit, vegetables, cereales, fresh or processed	Kelifoto fystiki Fthiotidas
EL	Κεράσια τραγανά Ροδοχωρίου	Fruit, vegetables, cereales, fresh or processed	Kerassia Tragana Rodo-choriou
EL	Κονσερβολιά Αμφίσσης	Fruit, vegetables, cereales, fresh or processed	Konservolia Amfissis
EL	Κονσερβολιά Άρτας	Fruit, vegetables, cereales, fresh or processed	Konservolia Artas
EL	Κονσερβολιά Αταλάντης	Fruit, vegetables, cereales, fresh or processed	Konservolia Atalantis
EL	Κονσερβολιά Πηλίου Βόλου	Fruit, vegetables, cereales, fresh or processed	Konservolia Piliou Volou
EL	Κονσερβολιά Ροβίων	Fruit, vegetables, cereales, fresh or processed	Konservolia Rovion
EL	Κονσερβολιά Στυλίδας	Fruit, vegetables, cereales, fresh or processed	Konservolia Stylidas
EL	Κορινθιακή Σταφίδα Βοστίτσα	Fruit, vegetables, cereales, fresh or processed	Korinthiaki Stafida Vostitsa
EL	Κουμ Κουάτ Κέρκυρας	Fruit, vegetables, cereales, fresh or processed	Koum kouat Kerkyras
EL	Μήλα Ζαγοράς Πηλίου	Fruit, vegetables, cereales, fresh or processed	Mila Zagoras Piliou

Member State	Name to be protected	Type of product	Latin Equivalent
EL	Μήλα Ντελίσιους Πιλαφά Τριπόλεως	Fruit, vegetables, cereales, fresh or processed	Mila Delicious Pilafa Tripoleos
EL	Μήλο Καστοριάς	Fruit, vegetables, cereales, fresh or processed	Milo Kastorias
EL	Ξερά σύκα Κύμης	Fruit, vegetables, cereales, fresh or processed	Xera syka Kymis
EL	Πατάτα Κάτω Νευροκοπίου	Fruit, vegetables, cereales, fresh or processed	Patata Kato Nevrokopiou
EL	Πορτοκάλια Μάλεμε Χανίων Κρήτης	Fruit, vegetables, cereales, fresh or processed	Portokalia Maleme Chanion Kritis
EL	Ροδάκινα Νάουσας	Fruit, vegetables, cereales, fresh or processed	Rodakina Naoussas
EL	Σταφίδα Ζακύνθου	Fruit, vegetables, cereales, fresh or processed	Stafida Zakynthou
EL	Σύκα Βραβρώνας Μαρκοπούλου Μεσογείων	Fruit, vegetables, cereales, fresh or processed	Syka Vavronas Markopoulou Messongion
EL	Τσακώνικη μελιτζάνα Λεωνιδίου	Fruit, vegetables, cereales, fresh or processed	Tsakoniki Melitzana Leonidiou
EL	Φασόλια (Γίγαντες Ελέφαντες) Πρεσπών Φλώρινας	Fruit, vegetables, cereales, fresh or processed	Fassolia Gigantes Elefantes Prespon Florinas
EL	Φασόλια (πλακέ μεγαλόσπερμα) Πρεσπών Φλώρινας	Fruit, vegetables, cereales, fresh or processed	Fassolia (plake megalosperma) Prespon Florinas
EL	Φασόλια γίγαντες — ελέφαντες Καστοριάς	Fruit, vegetables, cereales, fresh or processed	Fassolia Gigantes-Elefantes Kastorias
EL	Φασόλια γίγαντες ελέφαντες Κάτω Νευροκοπίου	Fruit, vegetables, cereales, fresh or processed	Fassolia Gigantes Elefantes Kato Nevrokopiou
EL	Φασόλια κοινά μεσόσπερμα Κάτω Νευροκοπίου	Fruit, vegetables, cereales, fresh or processed	Fassolia kina Messosperma Kato Nevrokopiou
EL	Φυστίκι Αίγινας	Fruit, vegetables, cereales, fresh or processed	Fystiki Eginas
EL	Φυστίκι Μεγάρων	Fruit, vegetables, cereales, fresh or processed	Fystiki Megaron
EL	Αυγοτάραχο Μεσολογγίου	Fresh fish, molluscs, and crustaceans and products derived from them	Avgotaracho Messolongiou
EL	Κρόκος Κοζάνης	Other products of Annex I to the Treaty (spices, etc.)	Krokos Kozanis
EL	Μέλι Ελάτης Μαινάλου Βανίλια	Other products of Annex I to the Treaty (spices, etc.)	Meli Elatis Menalou Vanilia
EL	Κρητικό παξιμάδι	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	Kritiko paximadi

Member State	Name to be protected	Type of product	Latin Equivalent
EL	Μαστίχα Χίου	Natural gums and resines	Masticha Chiou
EL	Τσίχλα Χίου	Natural gums and resines	Tsikla Chiou
EL	Μαστιχέλαιο Χίου	Essential oils	Mastichelaio Chiou
ES	Arzùa-Ulloa	Cheeses	
ES	Carne de Ávila	Fresh meat (and offal)	
ES	Carne de Cantabria	Fresh meat (and offal)	
ES	Carne de la Sierra de Guadarrama	Fresh meat (and offal)	
ES	Carne de Morucha de Salamanca	Fresh meat (and offal)	
ES	Carne de Vacuno del País Vasco; Euskal Okela	Fresh meat (and offal)	
ES	Cordero de Navarra; Nafarroako Arkumea	Fresh meat (and offal)	
ES	Cordero Manchego	Fresh meat (and offal)	
ES	Lacón Gallego	Fresh meat (and offal)	
ES	Lechazo de Castilla y León	Fresh meat (and offal)	
ES	Pollo y Capón del Prat	Fresh meat (and offal)	
ES	Ternasco de Aragón	Fresh meat (and offal)	
ES	Ternera Asturiana	Fresh meat (and offal)	
ES	Ternera de Extremadura	Fresh meat (and offal)	
ES	Ternera de Navarra; Nafarroako Aratxea	Fresh meat (and offal)	
ES	Ternera Gallega	Fresh meat (and offal)	
ES	Botillo del Bierzo	Meat products (cooked, salted, smoked, etc.)	
ES	Cecina de León	Meat products (cooked, salted, smoked, etc.)	
ES	Chorizo Riojano	Meat products (cooked, salted, smoked, etc.)	
ES	Dehesa de Extremadura	Meat products (cooked, salted, smoked, etc.)	
ES	Guijuelo	Meat products (cooked, salted, smoked, etc.)	

Member State	Name to be protected	Type of product	Latin Equivalent
ES	Jamón de Huelva	Meat products (cooked, salted, smoked, etc.)	
ES	Jamón de Teruel	Meat products (cooked, salted, smoked, etc.)	
ES	Jamón de Trevélez	Meat products (cooked, salted, smoked, etc.)	
ES	Salchichón de Vic; Llonganissa de Vic	Meat products (cooked, salted, smoked, etc.)	
ES	Sobrasada de Mallorca	Meat products (cooked, salted, smoked, etc.)	
ES	Afuega'l Pitu	Cheeses	
ES	Cabrales	Cheeses	
ES	Cebreiro	Cheeses	
ES	Gamoneu; Gamonedo	Cheeses	
ES	Idiazábal	Cheeses	
ES	Mahón-Menorca	Cheeses	
ES	Picón Bejes-Tresviso	Cheeses	
ES	Queso de La Serena	Cheeses	
ES	Queso de l'Alt Urgell y la Cerdanya	Cheeses	
ES	Queso de Murcia	Cheeses	
ES	Queso de Murcia al vino	Cheeses	
ES	Queso de Valdeón	Cheeses	
ES	Queso Ibores	Cheeses	
ES	Queso Majorero	Cheeses	
ES	Queso Manchego	Cheeses	
ES	Queso Nata de Cantabria	Cheeses	
ES	Queso Palmero; Queso de la Palma	Cheeses	
ES	Queso Tetilla	Cheeses	

Member State	Name to be protected	Type of product	Latin Equivalent
ES	Queso Zamorano	Cheeses	
ES	Quesucos de Liébana	Cheeses	
ES	Roncal	Cheeses	
ES	San Simón da Costa	Cheeses	
ES	Torta del Casar	Cheeses	
ES	Miel de Galicia; Mel de Galicia	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
ES	Miel de Granada	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
ES	Miel de La Alcarria	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
ES	Aceite de La Alcarria	Oils and fats (butter, margarine, oil, etc.)	
ES	Aceite de la Rioja	Oils and fats (butter, margarine, oil, etc.)	
ES	Aceite de Mallorca; Aceite mallorquín; Oli de Mallorca; Oli mallorquí	Oils and fats (butter, margarine, oil, etc.)	
ES	Aceite de Terra Alta; Oli de Terra Alta	Oils and fats (butter, margarine, oil, etc.)	
ES	Aceite del Baix Ebre-Montsià; Oli del Baix Ebre-Montsià	Oils and fats (butter, margarine, oil, etc.)	
ES	Aceite del Bajo Aragón	Oils and fats (butter, margarine, oil, etc.)	
ES	Aceite Monterrubio	Oils and fats (butter, margarine, oil, etc.)	
ES	Antequera	Oils and fats (butter, margarine, oil, etc.)	
ES	Baena	Oils and fats (butter, margarine, oil, etc.)	
ES	Gata-Hurdes	Oils and fats (butter, margarine, oil, etc.)	
ES	Les Garrigues	Oils and fats (butter, margarine, oil, etc.)	
ES	Mantequilla de l'Alt Urgell y la Cerdanya; Mantega de l'Alt Urgell i la Cerdanya	Oils and fats (butter, margarine, oil, etc.)	

Member State	Name to be protected	Type of product	Latin Equivalent
ES	Mantequilla de Soria	Oils and fats (butter, margarine, oil, etc.)	
ES	Montes de Granada	Oils and fats (butter, margarine, oil, etc.)	
ES	Montes de Toledo	Oils and fats (butter, margarine, oil, etc.)	
ES	Poniente de Granada	Oils and fats (butter, margarine, oil, etc.)	
ES	Priego de Córdoba	Oils and fats (butter, margarine, oil, etc.)	
ES	Sierra de Cadiz	Oils and fats (butter, margarine, oil, etc.)	
ES	Sierra de Cazorla	Oils and fats (butter, margarine, oil, etc.)	
ES	Sierra de Segura	Oils and fats (butter, margarine, oil, etc.)	
ES	Sierra Mágina	Oils and fats (butter, margarine, oil, etc.)	
ES	Siurana	Oils and fats (butter, margarine, oil, etc.)	
ES	Ajo Morado de las Pedroñeras	Fruit, vegetables, cereales, fresh or processed	
ES	Alcachofa de Benicarló; Carxofa de Benicarló	Fruit, vegetables, cereales, fresh or processed	
ES	Alcachofa de Tudela	Fruit, vegetables, cereales, fresh or processed	
ES	Alubia de La Bañeza-León	Fruit, vegetables, cereales, fresh or processed	
ES	Arroz de Valencia; Arròs de València	Fruit, vegetables, cereales, fresh or processed	
ES	Arroz del Delta del Ebro; Arròs del Delta de l'Ebre	Fruit, vegetables, cereales, fresh or processed	
ES	Avellana de Reus	Fruit, vegetables, cereales, fresh or processed	
ES	Berenjena de Almagro	Fruit, vegetables, cereales, fresh or processed	
ES	Calasparra	Fruit, vegetables, cereales, fresh or processed	
ES	Calçot de Valls	Fruit, vegetables, cereales, fresh or processed	
ES	Cereza del Jerte	Fruit, vegetables, cereales, fresh or processed	
ES	Cerezas de la Montaña de Alicante	Fruit, vegetables, cereales, fresh or processed	

Member State	Name to be protected	Type of product	Latin Equivalent
ES	Chirimoya de la Costa tropical de Granada-Málaga	Fruit, vegetables, cereales, fresh or processed	
ES	Cítricos Valencianos; Cítrics Valencians	Fruit, vegetables, cereales, fresh or processed	
ES	Clementinas de las Tierras del Ebro; Clementines de les Terres de l'Ebre	Fruit, vegetables, cereales, fresh or processed	
ES	Coliflor de Calahorra	Fruit, vegetables, cereales, fresh or processed	
ES	Espárrago de Huétor-Tájar	Fruit, vegetables, cereales, fresh or processed	
ES	Espárrago de Navarra	Fruit, vegetables, cereales, fresh or processed	
ES	Faba Asturiana	Fruit, vegetables, cereales, fresh or processed	
ES	Faba de Lourenzá	Fruit, vegetables, cereales, fresh or processed	
ES	Garbanzo de Fuentesaúco	Fruit, vegetables, cereales, fresh or processed	
ES	Judías de El Barco de Ávila	Fruit, vegetables, cereales, fresh or processed	
ES	Kaki Ribera del Xúquer	Fruit, vegetables, cereales, fresh or processed	
ES	Lenteja de La Armuña	Fruit, vegetables, cereales, fresh or processed	
ES	Lenteja Pardina de Tierra de Campos	Fruit, vegetables, cereales, fresh or processed	
ES	Manzana de Girona; Poma de Girona	Fruit, vegetables, cereales, fresh or processed	
ES	Manzana Reineta del Bierzo	Fruit, vegetables, cereales, fresh or processed	
ES	Melocotón de Calanda	Fruit, vegetables, cereales, fresh or processed	
ES	Nísperos Callosa d'En Sarriá	Fruit, vegetables, cereales, fresh or processed	
ES	Pataca de Galicia; Patata de Galicia	Fruit, vegetables, cereales, fresh or processed	
ES	Patatas de Prades; Patates de Prades	Fruit, vegetables, cereales, fresh or processed	
ES	Pera de Jumilla	Fruit, vegetables, cereales, fresh or processed	
ES	Peras de Rincón de Soto	Fruit, vegetables, cereales, fresh or processed	

Member State	Name to be protected	Type of product	Latin Equivalent
ES	Pimiento Asado del Bierzo	Fruit, vegetables, cereales, fresh or processed	
ES	Pimiento Riojano	Fruit, vegetables, cereales, fresh or processed	
ES	Pimientos del Piquillo de Lodosa	Fruit, vegetables, cereales, fresh or processed	
ES	Uva de mesa embolsada 'Vinalopó'	Fruit, vegetables, cereales, fresh or processed	
ES	Caballa de Andalucia	Fresh fish, molluscs, and crustaceans and products derived from them	
ES	Mejillón de Galicia; Mexillón de Galicia	Fresh fish, molluscs, and crustaceans and products derived from them	
ES	Melva de Andalucia	Fresh fish, molluscs, and crustaceans and products derived from them	
ES	Azafrán de la Mancha	Other products of Annex I to the Treaty (spices, etc.)	
ES	Chufa de Valencia	Other products of Annex I to the Treaty (spices, etc.)	
ES	Pimentón de la Vera	Other products of Annex I to the Treaty (spices, etc.)	
ES	Pimentón de Murcia	Other products of Annex I to the Treaty (spices, etc.)	
ES	Pemento do Couto	Other products of Annex I to the Treaty (spices, etc.)	
ES	Sidra de Asturias; Sidra d'Asturies	Other products of Annex I to the Treaty (spices, etc.)	
ES	Alfajor de Medina Sidonia	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
ES	Ensaimada de Mallorca; Ensaimada mallorquina	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
ES	Jijona	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
ES	Mantecadas de Astorga	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
ES	Mazapán de Toledo	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
ES	Pan de Cea	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	

Member State	Name to be protected	Type of product	Latin Equivalent
ES	Pan de Cruz de Ciudad Real	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
ES	Tarta de Santiago	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
ES	Turrón de Agramunt; Torró d'Agramunt	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
ES	Turrón de Alicante	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
FI	Lapin Poron liha	Fresh meat (and offal)	
FI	Lapin Puikula	Fruit, vegetables, cereales, fresh or processed	
FI	Kainuun rönttönen	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
FR	Agneau de l'Aveyron	Fresh meat (and offal)	
FR	Agneau de Lozère	Fresh meat (and offal)	
FR	Agneau de Pauillac	Fresh meat (and offal)	
FR	Agneau de Sisteron	Fresh meat (and offal)	
FR	Agneau du Bourbonnais	Fresh meat (and offal)	
FR	Agneau du Limousin	Fresh meat (and offal)	
FR	Agneau du Poitou-Charentes	Fresh meat (and offal)	
FR	Agneau du Quercy	Fresh meat (and offal)	
FR	Barèges-Gavarnie	Fresh meat (and offal)	
FR	Bœuf charolais du Bourbonnais	Fresh meat (and offal)	
FR	Boeuf de Bazas	Fresh meat (and offal)	
FR	Bœuf de Chalosse	Fresh meat (and offal)	
FR	Bœuf du Maine	Fresh meat (and offal)	
FR	Dinde de Bresse	Fresh meat (and offal)	
FR	Pintadeau de la Drome	Fresh meat (and offal)	
FR	Porc de la Sarthe	Fresh meat (and offal)	

Member State	Name to be protected	Type of product	Latin Equivalent
FR	Porc de Normandie	Fresh meat (and offal)	
FR	Porc de Vendée	Fresh meat (and offal)	
FR	Porc du Limousin	Fresh meat (and offal)	
FR	Taureau de Camargue	Fresh meat (and offal)	
FR	Veau de l'Aveyron et du Ségala	Fresh meat (and offal)	
FR	Veau du Limousin	Fresh meat (and offal)	
FR	Volailles d'Alsace	Fresh meat (and offal)	
FR	Volailles d'Ancenis	Fresh meat (and offal)	
FR	Volailles d'Auvergne	Fresh meat (and offal)	
FR	Volailles de Bourgogne	Fresh meat (and offal)	
FR	Volailles de Bresse	Fresh meat (and offal)	
FR	Volailles de Bretagne	Fresh meat (and offal)	
FR	Volailles de Challans	Fresh meat (and offal)	
FR	Volailles de Cholet	Fresh meat (and offal)	
FR	Volailles de Gascogne	Fresh meat (and offal)	
FR	Volailles de Houdan	Fresh meat (and offal)	
FR	Volailles de Janzé	Fresh meat (and offal)	
FR	Volailles de la Champagne	Fresh meat (and offal)	
FR	Volailles de la Drôme	Fresh meat (and offal)	
FR	Volailles de l'Ain	Fresh meat (and offal)	
FR	Volailles de Licques	Fresh meat (and offal)	
FR	Volailles de l'Orléanais	Fresh meat (and offal)	
FR	Volailles de Loué	Fresh meat (and offal)	
FR	Volailles de Normandie	Fresh meat (and offal)	
FR	Volailles de Vendée	Fresh meat (and offal)	
FR	Volailles des Landes	Fresh meat (and offal)	

Member State	Name to be protected	Type of product	Latin Equivalent
FR	Volailles du Béarn	Fresh meat (and offal)	
FR	Volailles du Berry	Fresh meat (and offal)	
FR	Volailles du Charolais	Fresh meat (and offal)	
FR	Volailles du Forez	Fresh meat (and offal)	
FR	Volailles du Gatinais	Fresh meat (and offal)	
FR	Volailles du Gers	Fresh meat (and offal)	
FR	Volailles du Languedoc	Fresh meat (and offal)	
FR	Volailles du Lauragais	Fresh meat (and offal)	
FR	Volailles du Maine	Fresh meat (and offal)	
FR	Volailles du plateau de Langres	Fresh meat (and offal)	
FR	Volailles du Val de Sèvres	Fresh meat (and offal)	
FR	Volailles du Velay	Fresh meat (and offal)	
FR	Boudin blanc de Rethel	Meat products (cooked, salted, smoked, etc.)	
FR	Canard à foie gras du Sud-Ouest (Chalosse, Gascogne, Gers, Landes, Périgord, Quercy)	Meat products (cooked, salted, smoked, etc.)	
FR	Jambon de Bayonne	Meat products (cooked, salted, smoked, etc.)	
FR	Jambon sec et noix de jambon sec des Ardennes	Meat products (cooked, salted, smoked, etc.)	
FR	Abondance	Cheeses	
FR	Banon	Cheeses	
FR	Beaufort	Cheeses	
FR	Bleu d'Auvergne	Cheeses	
FR	Bleu de Gex Haut-Jura; Bleu de Septmoncel	Cheeses	
FR	Bleu des Causses	Cheeses	
FR	Bleu du Vercors-Sassenage	Cheeses	
FR	Brie de Meaux	Cheeses	

Member State	Name to be protected	Type of product	Latin Equivalent
FR	Brie de Melun	Cheeses	
FR	Brocciu Corse; Brocciu	Cheeses	
FR	Camembert de Normandie	Cheeses	
FR	Cantal; Fourme de Cantal; Cantalet	Cheeses	
FR	Chabichou du Poitou	Cheeses	
FR	Chaource	Cheeses	
FR	Chevrotin	Cheeses	
FR	Comté	Cheeses	
FR	Crottin de Chavignol; Chavignol	Cheeses	
FR	Emmental de Savoie	Cheeses	
FR	Emmental français est-central	Cheeses	
FR	Époisses	Cheeses	
FR	Fourme d'Ambert; Fourme de Montbrison	Cheeses	
FR	Laguiole	Cheeses	
FR	Langres	Cheeses	
FR	Livarot	Cheeses	
FR	Maroilles; Marolles	Cheeses	
FR	Mont d'or; Vacherin du Haut-Doubs	Cheeses	
FR	Morbier	Cheeses	
FR	Munster; Munster-Géromé	Cheeses	
FR	Neufchâtel	Cheeses	
FR	Ossau-Iraty	Cheeses	
FR	Pélardon	Cheeses	
FR	Picodon de l'Ardèche; Picodon de la Drôme	Cheeses	

Member State	Name to be protected	Type of product	Latin Equivalent
FR	Pont-l'Évêque	Cheeses	
FR	Pouligny-Saint-Pierre	Cheeses	
FR	Reblochon; Reblochon de Savoie	Cheeses	
FR	Rocamadour	Cheeses	
FR	Roquefort	Cheeses	
FR	Sainte-Maure de Touraine	Cheeses	
FR	Saint-Nectaire	Cheeses	
FR	Salers	Cheeses	
FR	Selles-sur-Cher	Cheeses	
FR	Tome des Bauges	Cheeses	
FR	Tomme de Savoie	Cheeses	
FR	Tomme des Pyrénées	Cheeses	
FR	Valençay	Cheeses	
FR	Crème d'Isigny	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
FR	Crème fraîche fluide d'Alsace	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
FR	Miel d'Alsace	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
FR	Miel de Corse; Mele di Corsica	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
FR	Miel de Provence	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
FR	Miel de sapin des Vosges	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	

Member State	Name to be protected	Type of product	Latin Equivalent
FR	Œufs de Loué	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
FR	Beurre Charentes-Poitou; Beurre des Charentes; Beurre des Deux-Sèvres	Oils and fats (butter, margarine, oil, etc.)	
FR	Beurre d'Isigny	Oils and fats (butter, margarine, oil, etc.)	
FR	Huile d'olive d'Aix-en-Provence	Oils and fats (butter, margarine, oil, etc.)	
FR	Huile d'olive de Corse; Huile d'olive de Corse-Oliu di Corsica	Oils and fats (butter, margarine, oil, etc.)	
FR	Huile d'olive de Haute-Provence	Oils and fats (butter, margarine, oil, etc.)	
FR	Huile d'olive de la Vallée des Baux-de-Provence	Oils and fats (butter, margarine, oil, etc.)	
FR	Huile d'olive de Nice	Oils and fats (butter, margarine, oil, etc.)	
FR	Huile d'olive de Nîmes	Oils and fats (butter, margarine, oil, etc.)	
FR	Huile d'olive de Nyons	Oils and fats (butter, margarine, oil, etc.)	
FR	Huile essentielle de lavande de Haute-Provence	Oils and fats (butter, margarine, oil, etc.)	
FR	Ail blanc de Lomagne	Fruit, vegetables, cereales, fresh or processed	
FR	Ail de la Drôme	Fruit, vegetables, cereales, fresh or processed	
FR	Ail rose de Lautrec	Fruit, vegetables, cereales, fresh or processed	
FR	Asperge des sables des Landes	Fruit, vegetables, cereales, fresh or processed	
FR	Chasselas de Moissac	Fruit, vegetables, cereales, fresh or processed	
FR	Clémentine de Corse	Fruit, vegetables, cereales, fresh or processed	
FR	Coco de Paimpol	Fruit, vegetables, cereales, fresh or processed	
FR	Fraise du Périgord	Fruit, vegetables, cereales, fresh or processed	
FR	Haricot tarbais	Fruit, vegetables, cereales, fresh or processed	
FR	Kiwi de l'Adour	Fruit, vegetables, cereales, fresh or processed	

Member State	Name to be protected	Type of product	Latin Equivalent
FR	Lentille vert du Puy	Fruit, vegetables, cereales, fresh or processed	
FR	Lentilles vertes du Berry	Fruit, vegetables, cereales, fresh or processed	
FR	Lingot du Nord	Fruit, vegetables, cereales, fresh or processed	
FR	Mâche nantaise	Fruit, vegetables, cereales, fresh or processed	
FR	Melon du Haut-Poitou	Fruit, vegetables, cereales, fresh or processed	
FR	Melon du Quercy	Fruit, vegetables, cereales, fresh or processed	
FR	Mirabelles de Lorraine	Fruit, vegetables, cereales, fresh or processed	
FR	Muscat du Ventoux	Fruit, vegetables, cereales, fresh or processed	
FR	Noix de Grenoble	Fruit, vegetables, cereales, fresh or processed	
FR	Noix du Périgord	Fruit, vegetables, cereales, fresh or processed	
FR	Oignon doux des Cévennes	Fruit, vegetables, cereales, fresh or processed	
FR	Olive de Nice	Fruit, vegetables, cereales, fresh or processed	
FR	Olives cassées de la Vallée des Baux-de-Provence	Fruit, vegetables, cereales, fresh or processed	
FR	Olives noires de la Vallée des Baux de Provence	Fruit, vegetables, cereales, fresh or processed	
FR	Olives noires de Nyons	Fruit, vegetables, cereales, fresh or processed	
FR	Petit Epeautre de Haute Provence	Fruit, vegetables, cereales, fresh or processed	
FR	Poireaux de Créances	Fruit, vegetables, cereales, fresh or processed	
FR	Pomme de terre de l'Île de Ré	Fruit, vegetables, cereales, fresh or processed	
FR	Pomme du Limousin	Fruit, vegetables, cereales, fresh or processed	
FR	Pommes de terre de Merville	Fruit, vegetables, cereales, fresh or processed	
FR	Pommes et poires de Savoie	Fruit, vegetables, cereales, fresh or processed	
FR	Pommes des Alpes de Haute Durance	Fruit, vegetables, cereales, fresh or processed	

Member State	Name to be protected	Type of product	Latin Equivalent
FR	Pruneaux d'Agen; Pruneaux d'Agen mi-cuits	Fruit, vegetables, cereales, fresh or processed	
FR	Riz de Camargue	Fruit, vegetables, cereales, fresh or processed	
FR	Anchois de Collioure	Fresh fish, molluscs, and crustaceans and products derived from them	
FR	Coquille Saint-Jacques des Côtes d'Armor	Fresh fish, molluscs, and crustaceans and products derived from them	
FR	Cidre de Bretagne; Cidre Breton	Other products of Annex I to the Treaty (spices, etc.)	
FR	Cidre de Normandie; Cidre Normand	Other products of Annex I to the Treaty (spices, etc.)	
FR	Cornouaille	Other products of Annex I to the Treaty (spices, etc.)	
FR	Domfront	Other products of Annex I to the Treaty (spices, etc.)	
FR	Farine de Petit Épeautre de Haute Provence	Other products of Annex I to the Treaty (spices, etc.)	
FR	Huîtres Marennes Oléron	Other products of Annex I to the Treaty (spices, etc.)	
FR	Pays d'Auge; Pays d'Auge-Cambremer	Other products of Annex I to the Treaty (spices, etc.)	
FR	Piment d'Espelette; Piment d'Espelette — Ezpeletako Biperra	Other products of Annex I to the Treaty (spices, etc.)	
FR	Bergamote(s) de Nancy	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
FR	Brioche vendéenne	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
FR	Pâtes d'Alsace	Pasta	
FR	Raviole du Dauphiné	Pasta	
FR	Foin de Crau	Hay	
HU	Budapesti téliszalámi	Meat products (cooked, salted, smoked, etc.)	
HU	Szegedi szalámi; Szegedi téliszalámi	Meat products (cooked, salted, smoked, etc.)	
HU	Hajdúsági torma	Fruit, vegetables and cereals fresh or processed	

Member State	Name to be protected	Type of product	Latin Equivalent
IE	Connemara Hill lamb; Uain Sléibhe Chonamara	Fresh meat (and offal)	
IE	Timoleague Brown Pudding	Meat products (cooked, salted, smoked, etc.)	
IE	Imokilly Regato	Cheeses	
IE	Clare Island Salmon	Fresh fish, molluscs, and crustaceans and products derived from them	
IT	Abbacchio Romano	Fresh meat (and offal)	
IT	Agnello di Sardegna	Fresh meat (and offal)	
IT	Mortadella Bologna	Fresh meat (and offal)	
IT	Prosciutto di S. Daniele	Fresh meat (and offal)	
IT	Vitellone bianco dell'Appennino Centrale	Fresh meat (and offal)	
IT	Bresaola della Valtellina	Meat products (cooked, salted, smoked, etc.)	
IT	Capocollo di Calabria	Meat products (cooked, salted, smoked, etc.)	
IT	Ciauscolo	Meat products (cooked, salted, smoked, etc.)	
IT	Coppa Piacentina	Meat products (cooked, salted, smoked, etc.)	
IT	Cotechino Modena	Meat products (cooked, salted, smoked, etc.)	
IT	Culatello di Zibello	Meat products (cooked, salted, smoked, etc.)	
IT	Lardo di Colonnata	Meat products (cooked, salted, smoked, etc.)	
IT	Pancetta di Calabria	Meat products (cooked, salted, smoked, etc.)	
IT	Pancetta Piacentina	Meat products (cooked, salted, smoked, etc.)	
IT	Prosciutto di Carpegna	Meat products (cooked, salted, smoked, etc.)	
IT	Prosciutto di Modena	Meat products (cooked, salted, smoked, etc.)	
IT	Prosciutto di Norcia	Meat products (cooked, salted, smoked, etc.)	
IT	Prosciutto di Parma	Meat products (cooked, salted, smoked, etc.)	
IT	Prosciutto Toscano	Meat products (cooked, salted, smoked, etc.)	
IT	Prosciutto Veneto Berico-Euganeo	Meat products (cooked, salted, smoked, etc.)	

Member State	Name to be protected	Type of product	Latin Equivalent
IT	Prosciutto di Sauris	Meat products (cooked, salted, smoked, etc.)	
IT	Salame Brianza	Meat products (cooked, salted, smoked, etc.)	
IT	Salame Cremona	Meat products (cooked, salted, smoked, etc.)	
IT	Salame di Varzi	Meat products (cooked, salted, smoked, etc.)	
IT	Salame d'oca di Mortara	Meat products (cooked, salted, smoked, etc.)	
IT	Salame Piacentino	Meat products (cooked, salted, smoked, etc.)	
IT	Salame S. Angelo	Meat products (cooked, salted, smoked, etc.)	
IT	Salamini italiani alla cacciatora	Meat products (cooked, salted, smoked, etc.)	
IT	Salsiccia di Calabria	Meat products (cooked, salted, smoked, etc.)	
IT	Soppressata di Calabria	Meat products (cooked, salted, smoked, etc.)	
IT	Soprèssa Vicentina	Meat products (cooked, salted, smoked, etc.)	
IT	Speck dell'Alto Adige; Südtiroler Markenspeck; Südtiroler Speck	Meat products (cooked, salted, smoked, etc.)	
IT	Valle d'Aosta Jambon de Bosses	Meat products (cooked, salted, smoked, etc.)	
IT	Valle d'Aosta Lard d'Arnad	Meat products (cooked, salted, smoked, etc.)	
IT	Zampone Modena	Meat products (cooked, salted, smoked, etc.)	
IT	Asiago	Cheeses	
IT	Bitto	Cheeses	
IT	Bra	Cheeses	
IT	Caciocavallo Silano	Cheeses	
IT	Canestrato Pugliese	Cheeses	
IT	Casatella Trevigiana	Cheeses	
IT	Casciotta d'Urbino	Cheeses	
IT	Castelmagno	Cheeses	
IT	Fiore Sardo	Cheeses	

Member State	Name to be protected	Type of product	Latin Equivalent
IT	Fontina	Cheeses	
IT	Formai de Mut dell'Alta Valle Brembana	Cheeses	
IT	Gorgonzola	Cheeses	
IT	Grana Padano	Cheeses	
IT	Montasio	Cheeses	
IT	Monte Veronese	Cheeses	
IT	Mozzarella di Bufala Campana	Cheeses	
IT	Murazzano	Cheeses	
IT	Parmigiano Reggiano	Cheeses	
IT	Pecorino di Filiano	Cheeses	
IT	Pecorino Romano	Cheeses	
IT	Pecorino Sardo	Cheeses	
IT	Pecorino Siciliano	Cheeses	
IT	Pecorino Toscano	Cheeses	
IT	Provolone Valpadana	Cheeses	
IT	Provolone del Monaco	Cheeses	
IT	Quartirolo Lombardo	Cheeses	
IT	Ragusano	Cheeses	
IT	Raschera	Cheeses	
IT	Ricotta Romana	Cheeses	
IT	Robiola di Roccaverano	Cheeses	
IT	Spressa delle Giudicarie	Cheeses	
IT	Stelvio; Stilfser	Cheeses	
IT	Taleggio	Cheeses	
IT	Toma Piemontese	Cheeses	

Member State	Name to be protected	Type of product	Latin Equivalent
IT	Valle d'Aosta Fromadzo	Cheeses	
IT	Valtellina Casera	Cheeses	
IT	Miele della Lunigiana	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
IT	Alto Crotonese	Oils and fats (butter, margarine, oil, etc.)	
IT	Aprutino Pescarese	Oils and fats (butter, margarine, oil, etc.)	
IT	Brisighella	Oils and fats (butter, margarine, oil, etc.)	
IT	Bruzio	Oils and fats (butter, margarine, oil, etc.)	
IT	Canino	Oils and fats (butter, margarine, oil, etc.)	
IT	Cartoceto	Oils and fats (butter, margarine, oil, etc.)	
IT	Chianti Classico	Oils and fats (butter, margarine, oil, etc.)	
IT	Cilento	Oils and fats (butter, margarine, oil, etc.)	
IT	Collina di Brindisi	Oils and fats (butter, margarine, oil, etc.)	
IT	Colline di Romagna	Oils and fats (butter, margarine, oil, etc.)	
IT	Colline Salernitane	Oils and fats (butter, margarine, oil, etc.)	
IT	Colline Teatine	Oils and fats (butter, margarine, oil, etc.)	
IT	Colline Pontine	Oils and fats (butter, margarine, oil, etc.)	
IT	Dauno	Oils and fats (butter, margarine, oil, etc.)	
IT	Garda	Oils and fats (butter, margarine, oil, etc.)	
IT	Irpinia — Colline dell'Ufita	Oils and fats (butter, margarine, oil, etc.)	
IT	Laghi Lombardi	Oils and fats (butter, margarine, oil, etc.)	
IT	Lametia	Oils and fats (butter, margarine, oil, etc.)	
IT	Lucca	Oils and fats (butter, margarine, oil, etc.)	
IT	Molise	Oils and fats (butter, margarine, oil, etc.)	

Member State	Name to be protected	Type of product	Latin Equivalent
IT	Monte Etna	Oils and fats (butter, margarine, oil, etc.)	
IT	Monti Iblei	Oils and fats (butter, margarine, oil, etc.)	
IT	Penisola Sorrentina	Oils and fats (butter, margarine, oil, etc.)	
IT	Pretuziano delle Colline Teramane	Oils and fats (butter, margarine, oil, etc.)	
IT	Riviera Ligure	Oils and fats (butter, margarine, oil, etc.)	
IT	Sabina	Oils and fats (butter, margarine, oil, etc.)	
IT	Sardegna	Oils and fats (butter, margarine, oil, etc.)	
IT	Tergeste	Oils and fats (butter, margarine, oil, etc.)	
IT	Terra di Bari	Oils and fats (butter, margarine, oil, etc.)	
IT	Terra d'Otranto	Oils and fats (butter, margarine, oil, etc.)	
IT	Terre di Siena	Oils and fats (butter, margarine, oil, etc.)	
IT	Terre Tarentine	Oils and fats (butter, margarine, oil, etc.)	
IT	Toscano	Oils and fats (butter, margarine, oil, etc.)	
IT	Tuscia	Oils and fats (butter, margarine, oil, etc.)	
IT	Umbria	Oils and fats (butter, margarine, oil, etc.)	
IT	Val di Mazara	Oils and fats (butter, margarine, oil, etc.)	
IT	Valdemone	Oils and fats (butter, margarine, oil, etc.)	
IT	Valle del Belice	Oils and fats (butter, margarine, oil, etc.)	
IT	Valli Trapanesi	Oils and fats (butter, margarine, oil, etc.)	
IT	Veneto Valpolicella, Veneto Euganei e Berici, Veneto del Grappa	Oils and fats (butter, margarine, oil, etc.)	
IT	Arancia del Gargano	Fruit, vegetables, cereales, fresh or processed	
IT	Arancia Rossa di Sicilia	Fruit, vegetables, cereales, fresh or processed	

Member State	Name to be protected	Type of product	Latin Equivalent
IT	Asparago Bianco di Bassano	Fruit, vegetables, cereales, fresh or processed	
IT	Asparago bianco di Cimadolmo	Fruit, vegetables, cereales, fresh or processed	
IT	Asparago verde di Altedo	Fruit, vegetables, cereales, fresh or processed	
IT	Basilico Genovese	Fruit, vegetables, cereales, fresh or processed	
IT	Cappero di Pantelleria	Fruit, vegetables, cereales, fresh or processed	
IT	Carciofo di Paestum	Fruit, vegetables, cereales, fresh or processed	
IT	Carciofo Romanesco del Lazio	Fruit, vegetables, cereales, fresh or processed	
IT	Carota dell'Altopiano del Fucino	Fruit, vegetables, cereales, fresh or processed	
IT	Castagna Cuneo	Fruit, vegetables, cereales, fresh or processed	
IT	Castagna del Monte Amiata	Fruit, vegetables, cereales, fresh or processed	
IT	Castagna di Montella	Fruit, vegetables, cereales, fresh or processed	
IT	Castagna di Vallerano	Fruit, vegetables, cereales, fresh or processed	
IT	Ciliegia di Marostica	Fruit, vegetables, cereales, fresh or processed	
IT	Cipolla Rossa di Tropea Calabria	Fruit, vegetables, cereales, fresh or processed	
IT	Cipollotto Nocerino	Fruit, vegetables, cereales, fresh or processed	
IT	Clementine del Golfo di Taranto	Fruit, vegetables, cereales, fresh or processed	
IT	Clementine di Calabria	Fruit, vegetables, cereales, fresh or processed	
IT	Crudo di Cuneo	Fruit, vegetables, cereales, fresh or processed	
IT	Fagiolo di Lamon della Vallata Bellunese	Fruit, vegetables, cereales, fresh or processed	
IT	Fagiolo di Sarconi	Fruit, vegetables, cereales, fresh or processed	
IT	Fagiolo di Sorana	Fruit, vegetables, cereales, fresh or processed	
IT	Farina di Neccio della Garfagnana	Fruit, vegetables, cereales, fresh or processed	

Member State	Name to be protected	Type of product	Latin Equivalent
IT	Farro della Garfagnana	Fruit, vegetables, cereales, fresh or processed	
IT	Fico Bianco del Cilento	Fruit, vegetables, cereales, fresh or processed	
IT	Ficodindia dell'Etna	Fruit, vegetables, cereales, fresh or processed	
IT	Fungo di Borgotaro	Fruit, vegetables, cereales, fresh or processed	
IT	Kiwi Latina	Fruit, vegetables, cereales, fresh or processed	
IT	La Bella della Daunia	Fruit, vegetables, cereales, fresh or processed	
IT	Lenticchia di Castelluccio di Norcia	Fruit, vegetables, cereales, fresh or processed	
IT	Limone Costa d'Amalfi	Fruit, vegetables, cereales, fresh or processed	
IT	Limone di Sorrento	Fruit, vegetables, cereales, fresh or processed	
IT	Limone Femminello del Gargano	Fruit, vegetables, cereales, fresh or processed	
IT	Marrone del Mugello	Fruit, vegetables, cereales, fresh or processed	
IT	Marrone di Castel del Rio	Fruit, vegetables, cereales, fresh or processed	
IT	Marrone di Roccadaspide	Fruit, vegetables, cereales, fresh or processed	
IT	Marrone di San Zeno	Fruit, vegetables, cereales, fresh or processed	
IT	Marrone di Caprese Michelangelo	Fruit, vegetables, cereales, fresh or processed	
IT	Mela Alto Adige; Südtiroler Apfel	Fruit, vegetables, cereales, fresh or processed	
IT	Mela Val di Non	Fruit, vegetables, cereales, fresh or processed	
IT	Mela di Valtellina	Fruit, vegetables, cereales, fresh or processed	
IT	Melannurca Campana	Fruit, vegetables, cereales, fresh or processed	
IT	Nocciola Romana	Fruit, vegetables, cereales, fresh or processed	
IT	Nocciola del Piemonte; Nocciola Piemonte	Fruit, vegetables, cereales, fresh or processed	
IT	Nocciola di Giffoni	Fruit, vegetables, cereales, fresh or processed	

Member State	Name to be protected	Type of product	Latin Equivalent
IT	Nocellara del Belice	Fruit, vegetables, cereales, fresh or processed	
IT	Oliva Ascolana del Piceno	Fruit, vegetables, cereales, fresh or processed	
IT	Patata di Bologna	Fruit, vegetables, cereales, fresh or processed	
IT	Peperone di Senise	Fruit, vegetables, cereales, fresh or processed	
IT	Pera dell'Emilia Romagna	Fruit, vegetables, cereales, fresh or processed	
IT	Pera mantovana	Fruit, vegetables, cereales, fresh or processed	
IT	PESCA di Verona	Fruit, vegetables, cereales, fresh or processed	
IT	PESCA e nettarina di Romagna	Fruit, vegetables, cereales, fresh or processed	
IT	Pistacchio Verde di Bronte	Fruit, vegetables, cereales, fresh or processed	
IT	Pomodorino del Piennolo del Vesuvio	Fruit, vegetables, cereales, fresh or processed	
IT	Pomodoro di Pachino	Fruit, vegetables, cereales, fresh or processed	
IT	Pomodoro S. Marzano dell'Agro Sarnese-Nocerino	Fruit, vegetables, cereales, fresh or processed	
IT	Radicchio di Chioggia	Fruit, vegetables, cereales, fresh or processed	
IT	Radicchio di Verona	Fruit, vegetables, cereales, fresh or processed	
IT	Radicchio Rosso di Treviso	Fruit, vegetables, cereales, fresh or processed	
IT	Radicchio Variegato di Castel-franco	Fruit, vegetables, cereales, fresh or processed	
IT	Riso di Baraggia Biellese e Vercellese	Fruit, vegetables, cereales, fresh or processed	
IT	Riso Nano Vialone Veronese	Fruit, vegetables, cereales, fresh or processed	
IT	Scalogno di Romagna	Fruit, vegetables, cereales, fresh or processed	
IT	Sedano Bianco di Sperlonga	Fruit, vegetables, cereales, fresh or processed	
IT	Uva da tavola di Canicattì	Fruit, vegetables, cereales, fresh or processed	
IT	Uva da tavola di Mazzarrone	Fruit, vegetables, cereales, fresh or processed	

Member State	Name to be protected	Type of product	Latin Equivalent
IT	Acciughe Sotto Sale del Mar Ligure	Fresh fish, molluscs, and crustaceans and products derived from them	
IT	Tinca Gobba Dorata del Pianalto di Poirino	Fresh fish, molluscs, and crustaceans and products derived from them	
IT	Zafferano di Sardegna	Other products of Annex I to the Treaty (spices, etc.)	
IT	Aceto Balsamico di Modena	Other products of Annex I to the Treaty (spices, etc.)	
IT	Aceto balsamico tradizionale di Modena	Other products of Annex I to the Treaty (spices, etc.)	
IT	Aceto balsamico tradizionale di Reggio Emilia	Other products of Annex I to the Treaty (spices, etc.)	
IT	Zafferano dell'Aquila	Other products of Annex I to the Treaty (spices, etc.)	
IT	Zafferano di San Gimignano	Other products of Annex I to the Treaty (spices, etc.)	
IT	Coppia Ferrarese	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
IT	Pagnotta del Dittaino	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
IT	Pane casareccio di Genzano	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
IT	Pane di Altamura	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
IT	Pane di Matera	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
IT	Ricciarelli di Siena	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
IT	Bergamotto di Reggio Calabria — Olio essenziale	Essential oils	
LU	Viande de porc, marque nationale grand-duché de Luxembourg	Fresh meat (and offal)	
LU	Salaisons fumées, marque nationale grand-duché de Luxembourg	Meat products (cooked, salted, smoked, etc.)	
LU	Miel — Marque nationale du Grand-Duché de Luxembourg	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
LU	Beurre rose — Marque Nationale du Grand-Duché de Luxembourg	Oils and fats (butter, margarine, oil, etc.)	
NL	Boeren-Leidse met sleutels	Cheeses	

Member State	Name to be protected	Type of product	Latin Equivalent
NL	Kanterkaas; Kanternagelkaas; Kanterkomijnekaas	Cheeses	
NL	Noord-Hollandse Edammer	Cheeses	
NL	Noord-Hollandse Gouda	Cheeses	
NL	Opperdoezer Ronde	Fruit, vegetables, cereales, fresh or processed	
NL	Westlandse druif	Fruit, vegetables, cereales, fresh or processed	
PL	Bryndza Podhalańska	Cheeses	
PL	Oscypek	Cheeses	
PL	Wielkopolski ser smażony	Cheeses	
PL	Miód wrzosowy z Borów Dolnośląskich	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PL	Andruty kaliskie	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
PL	Rogal świętomarciński	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
PL	Wiśnia nadwiślanka	Fruit, vegetables, cereales, fresh or processed	
PT	Borrego da Beira	Fresh meat (and offal)	
PT	Borrego de Montemor-o-Novo	Fresh meat (and offal)	
PT	Borrego do Baixo Alentejo	Fresh meat (and offal)	
PT	Borrego do Nordeste Alentejano	Fresh meat (and offal)	
PT	Borrego Serra da Estrela	Fresh meat (and offal)	
PT	Borrego Terrincho	Fresh meat (and offal)	
PT	Cabrito da Beira	Fresh meat (and offal)	
PT	Cabrito da Gralheira	Fresh meat (and offal)	
PT	Cabrito das Terras Altas do Minho	Fresh meat (and offal)	
PT	Cabrito de Barroso	Fresh meat (and offal)	
PT	Cabrito Transmontano	Fresh meat (and offal)	
PT	Carnalentejana	Fresh meat (and offal)	

Member State	Name to be protected	Type of product	Latin Equivalent
PT	Carne Arouquesa	Fresh meat (and offal)	
PT	Carne Barrosã	Fresh meat (and offal)	
PT	Carne Cachena da Peneda	Fresh meat (and offal)	
PT	Carne da Charneca	Fresh meat (and offal)	
PT	Carne de Bísaro Transmontano; Carne de Porco Transmontano	Fresh meat (and offal)	
PT	Carne de Bovino Cruzado dos Lameiros do Barroso	Fresh meat (and offal)	
PT	Carne de Porco Alentejano	Fresh meat (and offal)	
PT	Carne dos Açores	Fresh meat (and offal)	
PT	Carne Marinhoa	Fresh meat (and offal)	
PT	Carne Maronesa	Fresh meat (and offal)	
PT	Carne Mertolenga	Fresh meat (and offal)	
PT	Carne Mirandesa	Fresh meat (and offal)	
PT	Cordeiro Bragançano	Fresh meat (and offal)	
PT	Cordeiro de Barroso; Anho de Barroso; Cordeiro de leite de Barroso	Fresh meat (and offal)	
PT	Vitela de Lafões	Fresh meat (and offal)	
PT	Alheira de Barroso-Montalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Alheira de Vinhais	Meat products (cooked, salted, smoked, etc.)	
PT	Butelo de Vinhais; Bucho de Vinhais; Chouriço de Ossos de Vinhais	Meat products (cooked, salted, smoked, etc.)	
PT	Cacholeira Branca de Portalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Chouriça de carne de Barroso-Montalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Chouriça de Carne de Vinhais; Linguiça de Vinhais	Meat products (cooked, salted, smoked, etc.)	

Member State	Name to be protected	Type of product	Latin Equivalent
PT	Chouriça doce de Vinhais	Meat products (cooked, salted, smoked, etc.)	
PT	Chouriço azedo de Vinhais; Azedo de Vinhais; Chouriço de Pão de Vinhais	Meat products (cooked, salted, smoked, etc.)	
PT	Chouriço de Abóbora de Barroso-Montalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Chouriço de Carne de Estremoz e Borba	Meat products (cooked, salted, smoked, etc.)	
PT	Chouriço de Portalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Chouriço grosso de Estremoz e Borba	Meat products (cooked, salted, smoked, etc.)	
PT	Chouriço Mouro de Portalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Farinheira de Estremoz e Borba	Meat products (cooked, salted, smoked, etc.)	
PT	Farinheira de Portalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Linguiça de Portalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Linguíça do Baixo Alentejo; Chouriço de carne do Baixo Alentejo	Meat products (cooked, salted, smoked, etc.)	
PT	Lombo Branco de Portalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Lombo Enguitado de Portalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Morcela de Assar de Portalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Morcela de Cozer de Portalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Morcela de Estremoz e Borba	Meat products (cooked, salted, smoked, etc.)	
PT	Paia de Estremoz e Borba	Meat products (cooked, salted, smoked, etc.)	
PT	Paia de Lombo de Estremoz e Borba	Meat products (cooked, salted, smoked, etc.)	
PT	Paia de Toucinho de Estremoz e Borba	Meat products (cooked, salted, smoked, etc.)	
PT	Painho de Portalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Paio de Beja	Meat products (cooked, salted, smoked, etc.)	

Member State	Name to be protected	Type of product	Latin Equivalent
PT	Presunto de Barrancos	Meat products (cooked, salted, smoked, etc.)	
PT	Presunto de Barroso	Meat products (cooked, salted, smoked, etc.)	
PT	Presunto de Camp Maior e Elvas; Paleta de Campo Maior e Elvas	Meat products (cooked, salted, smoked, etc.)	
PT	Presunto de Santana da Serra; Paleta de Santana da Serra	Meat products (cooked, salted, smoked, etc.)	
PT	Presunto de Vinhais/Presunto Bísaro de Vinhais	Meat products (cooked, salted, smoked, etc.)	
PT	Presunto do Alentejo; Paleta do Alentejo	Meat products (cooked, salted, smoked, etc.)	
PT	Salpicão de Barroso-Montalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Salpicão de Vinhais	Meat products (cooked, salted, smoked, etc.)	
PT	Sangueira de Barroso-Montalegre	Meat products (cooked, salted, smoked, etc.)	
PT	Queijo de Azeitão	Cheeses	
PT	Queijo de cabra Transmontano	Cheeses	
PT	Queijo de Nisa	Cheeses	
PT	Queijo do Pico	Cheeses	
PT	Queijo mestiço de Tolosa	Cheeses	
PT	Queijo Rabaçal	Cheeses	
PT	Queijo S. Jorge	Cheeses	
PT	Queijo Serpa	Cheeses	
PT	Queijo Serra da Estrela	Cheeses	
PT	Queijo Terrincho	Cheeses	
PT	Queijos da Beira Baixa (Queijo de Castelo Branco, Queijo Amarelo da Beira Baixa, Queijo Picante da Beira Baixa)	Cheeses	

Member State	Name to be protected	Type of product	Latin Equivalent
PT	Azeite do Alentejo Interior	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PT	Mel da Serra da Lousã	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PT	Mel da Serra de Monchique	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PT	Mel da Terra Quente	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PT	Mel das Terras Altas do Minho	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PT	Mel de Barroso	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PT	Mel do Alentejo	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PT	Mel do Parque de Montezinho	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PT	Mel do Ribatejo Norte (Serra d'Aire, Albufeira de Castelo de Bode, Bairro, Alto Nabão	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PT	Mel dos Açores	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PT	Requeijão Serra da Estrela	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
PT	Azeite de Moura	Oils and fats (butter, margarine, oil, etc.)	
PT	Azeite de Trás-os-Montes	Oils and fats (butter, margarine, oil, etc.)	
PT	Azeites da Beira Interior (Azeite da Beira Alta, Azeite da Beira Baixa)	Oils and fats (butter, margarine, oil, etc.)	
PT	Azeites do Norte Alentejano	Oils and fats (butter, margarine, oil, etc.)	
PT	Azeites do Ribatejo	Oils and fats (butter, margarine, oil, etc.)	
PT	Queijo de Évora	Oils and fats (butter, margarine, oil, etc.)	

Member State	Name to be protected	Type of product	Latin Equivalent
PT	Ameixa d'Elvas	Fruit, vegetables, cereales, fresh or processed	
PT	Amêndoa Douro	Fruit, vegetables, cereales, fresh or processed	
PT	Ananás dos Açores/São Miguel	Fruit, vegetables, cereales, fresh or processed	
PT	Anona da Madeira	Fruit, vegetables, cereales, fresh or processed	
PT	Arroz Carolino Lezírias Ribatejanas	Fruit, vegetables, cereales, fresh or processed	
PT	Azeitona de conserva Negrinha de Freixo	Fruit, vegetables, cereales, fresh or processed	
PT	Azeitonas de Conserva de Elvas e Campo Maior	Fruit, vegetables, cereales, fresh or processed	
PT	Batata Doce de Aljezur	Fruit, vegetables, cereales, fresh or processed	
PT	Batata de Trás-os-montes	Fruit, vegetables, cereales, fresh or processed	
PT	Castanha da Terra Fria	Fruit, vegetables, cereales, fresh or processed	
PT	Castanha de Padrela	Fruit, vegetables, cereales, fresh or processed	
PT	Castanha dos Soutos da Lapa	Fruit, vegetables, cereales, fresh or processed	
PT	Castanha Marvão-Portalegre	Fruit, vegetables, cereales, fresh or processed	
PT	Cereja da Cova da Beira	Fruit, vegetables, cereales, fresh or processed	
PT	Cereja de São Julião-Portalegre	Fruit, vegetables, cereales, fresh or processed	
PT	Citrinos do Algarve	Fruit, vegetables, cereales, fresh or processed	
PT	Maçã Bravo de Esmolfe	Fruit, vegetables, cereales, fresh or processed	
PT	Maçã da Beira Alta	Fruit, vegetables, cereales, fresh or processed	
PT	Maçã da Cova da Beira	Fruit, vegetables, cereales, fresh or processed	
PT	Maçã de Alcobaça	Fruit, vegetables, cereales, fresh or processed	
PT	Maçã de Portalegre	Fruit, vegetables, cereales, fresh or processed	
PT	Maracujá dos Açores/S. Miguel	Fruit, vegetables, cereales, fresh or processed	

Member State	Name to be protected	Type of product	Latin Equivalent
PT	Pêra Rocha do Oeste	Fruit, vegetables, cereales, fresh or processed	
PT	Pêssego da Cova da Beira	Fruit, vegetables, cereales, fresh or processed	
PT	Ovos moles de Aveiro	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
SE	Svecia	Cheeses	
SE	Skånsk spettkaka	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
SI	Ekstra deviško oljčno olje Slovenske Istre	Oils and fats (butter, margarine, oil, etc.)	
SK	Slovenská bryndza	Cheeses	
SK	Slovenská parenica	Cheeses	
SK	Slovenský oštiepok	Cheeses	
SK	Skalický trdelník	Bread, pastry, cakes, confectionnery, biscuits and other bakers wares	
UK	Isle of Man Manx Loaghtan Lamb	Fresh meat (and offal)	
UK	Orkney beef	Fresh meat (and offal)	
UK	Orkney lamb	Fresh meat (and offal)	
UK	Scotch Beef	Fresh meat (and offal)	
UK	Scotch Lamb	Fresh meat (and offal)	
UK	Shetland Lamb	Fresh meat (and offal)	
UK	Welsh Beef	Fresh meat (and offal)	
UK	Welsh lamb	Fresh meat (and offal)	
UK	Beacon Fell traditional Lancashire cheese	Cheeses	
UK	Bonchester cheese	Cheeses	
UK	Buxton blue	Cheeses	
UK	Dorset Blue Cheese	Cheeses	
UK	Dovedale cheese	Cheeses	

Member State	Name to be protected	Type of product	Latin Equivalent
UK	Exmoor Blue Cheese	Cheeses	
UK	Single Gloucester	Cheeses	
UK	Staffordshire Cheese	Cheeses	
UK	Swaledale cheese; Swaledale ewes' cheese	Cheeses	
UK	Teviotdale Cheese	Cheeses	
UK	West Country farmhouse Cheddar cheese	Cheeses	
UK	White Stilton cheese; Blue Stilton cheese	Cheeses	
UK	Melton Mowbray Pork Pie	Meat products (cooked, salted, smoked, etc.)	
UK	Cornish Clotted Cream	Other products of animal origin (eggs, honey, various dairy products except butter, etc.)	
UK	Yorkshire Forced Rhubarb	Fruit, vegetables, cereales, fresh or processed	
UK	Jersey Royal potatoes	Fruit, vegetables, cereales, fresh or processed	
UK	Arbroath Smokies	Fresh fish, molluscs, and crustaceans and products derived from them	
UK	Scottish Farmed Salmon	Fresh fish, molluscs, and crustaceans and products derived from them	
UK	Whitstable oysters	Fresh fish, molluscs, and crustaceans and products derived from them	
UK	Gloucestershire cider/perry	Other products of Annex I to the Treaty (spices, etc.)	
UK	Herefordshire cider/perry	Other products of Annex I to the Treaty (spices, etc.)	
UK	Worcestershire cider/perry	Other products of Annex I to the Treaty (spices, etc.)	
UK	Kentish ale and Kentish strong ale	Beers	
UK	Rutland Bitter	Beers	

Agricultural products and foodstuffs others than wines, spirits and aromatised wines of the Republic of Moldova to be protected in the EU

[…]

ANNEX XXX-D

GEOGRAPHICAL INDICATIONS OF PRODUCTS AS REFERRED TO IN ARTICLE 297(3) AND 297(4)

PART A

Wines of the EU to be protected in the Republic of Moldova

Member State	Name to be protected	
BE	Côtes de Sambre et Meuse	Wine with a protected designation of origin (PDO)
BE	Hagelandse wijn	Wine with a protected designation of origin (PDO)
BE	Haspengouwse Wijn	Wine with a protected designation of origin (PDO)
BE	Heuvellandse Wijn	Wine with a protected designation of origin (PDO)
BE	Vlaamse mousserende kwaliteitswijn	Wine with a protected designation of origin (PDO)
BE	Cremant de Wallonie	Wine with a protected designation of origin (PDO)
BE	Vin mousseux de qualite de Wallonie	Wine with a protected designation of origin (PDO)
BE	Vin de pays des Jardins de Wallonie	Wine with a protected geographical indication (PGI)
BE	Vlaamse landwijn	Wine with a protected geographical indication (PGI)
BG	Асеновград *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Asenovgrad	Wine with a protected designation of origin (PDO)
BG	Болярово *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Bolyarovo	Wine with a protected designation of origin (PDO)
BG	Брестник *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Brestnik	Wine with a protected designation of origin (PDO)
BG	Варна *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Varna	Wine with a protected designation of origin (PDO)
BG	Велики Преслав *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Veliki Preslav	Wine with a protected designation of origin (PDO)
BG	Видин *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Vidin	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
BG	Враца *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Vratsa	Wine with a protected designation of origin (PDO)
BG	Върбица *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Varbitsa	Wine with a protected designation of origin (PDO)
BG	Долината на Струма *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Struma valley	Wine with a protected designation of origin (PDO)
BG	Драгоево *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Dragoevo	Wine with a protected designation of origin (PDO)
BG	Евксиноград *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Evksinograd	Wine with a protected designation of origin (PDO)
BG	Ивайловград *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Ivaylovgrad	Wine with a protected designation of origin (PDO)
BG	Карлово *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Karlovo	Wine with a protected designation of origin (PDO)
BG	Карнобат *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Karnobat	Wine with a protected designation of origin (PDO)
BG	Ловеч *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Lovech	Wine with a protected designation of origin (PDO)
BG	Лозица *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Lozitsa	Wine with a protected designation of origin (PDO)
BG	Лом *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Lom	Wine with a protected designation of origin (PDO)
BG	Любимец *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Lyubimets	Wine with a protected designation of origin (PDO)
BG	Лясковец *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Lyaskovets	Wine with a protected designation of origin (PDO)
BG	Мелник *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Melnik	Wine with a protected designation of origin (PDO)
BG	Монтана *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Montana	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
BG	Нова Загора *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Nova Zagora	Wine with a protected designation of origin (PDO)
BG	Нови Пазар *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Novi Pazar	Wine with a protected designation of origin (PDO)
BG	Ново село *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Novo Selo	Wine with a protected designation of origin (PDO)
BG	Оряховица *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Oryahovitsa	Wine with a protected designation of origin (PDO)
BG	Павликени *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Pavlikeni	Wine with a protected designation of origin (PDO)
BG	Пазарджик *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Pazardjik	Wine with a protected designation of origin (PDO)
BG	Перущица *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Perushtitsa	Wine with a protected designation of origin (PDO)
BG	Плевен *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Pleven	Wine with a protected designation of origin (PDO)
BG	Пловдив *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Plovdiv	Wine with a protected designation of origin (PDO)
BG	Поморие *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Pomorie	Wine with a protected designation of origin (PDO)
BG	Русе *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Ruse	Wine with a protected designation of origin (PDO)
BG	Сакар *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Sakar	Wine with a protected designation of origin (PDO)
BG	Сандански *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Sandanski	Wine with a protected designation of origin (PDO)
BG	Свищов *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Svishtov	Wine with a protected designation of origin (PDO)
BG	Септември *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Septemvri	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
BG	Славянци *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Slavyantsi	Wine with a protected designation of origin (PDO)
BG	Сливен *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Sliven	Wine with a protected designation of origin (PDO)
BG	Стамболово *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Stambolovo	Wine with a protected designation of origin (PDO)
BG	Стара Загора *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Stara Zagora	Wine with a protected designation of origin (PDO)
BG	Сунгурларе *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Sungurlare	Wine with a protected designation of origin (PDO)
BG	Сухиндол *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Suhindol	Wine with a protected designation of origin (PDO)
BG	Търговище *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Targovishte	Wine with a protected designation of origin (PDO)
BG	Хан Крум *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Han Krum	Wine with a protected designation of origin (PDO)
BG	Хасково *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Haskovo	Wine with a protected designation of origin (PDO)
BG	Хисаря *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Hisarya	Wine with a protected designation of origin (PDO)
BG	Хърсово *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Harsovo	Wine with a protected designation of origin (PDO)
BG	Черноморски *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Black Sea	Wine with a protected designation of origin (PDO)
BG	Шивачево *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Shivachevo	Wine with a protected designation of origin (PDO)
BG	Шумен *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Shumen	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
BG	Ямбол *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Yambol	Wine with a protected designation of origin (PDO)
BG	Южно Черноморие *followed or not by sub-region and/or smaller geographical unit* *Equivalent term*: Southern Black Sea Coast	Wine with a protected designation of origin (PDO)
BG	Дунавска равнина *Equivalent term*: Danube Plain	Wine with a protected geographical indication (PGI)
BG	Тракийска низина *Equivalent term*: Thracian Lowlands	Wine with a protected geographical indication (PGI)
CZ	Čechy *whether or not followed by* Litoměřická	Wine with a protected designation of origin (PDO)
CZ	Čechy *whether or not followed by* Mělnická	Wine with a protected designation of origin (PDO)
CZ	Morava *whether or not followed by* Mikulovská	Wine with a protected designation of origin (PDO)
CZ	Morava *whether or not followed by* Slovácká	Wine with a protected designation of origin (PDO)
CZ	Morava *whether or not followed by* Velkopavlovická	Wine with a protected designation of origin (PDO)
CZ	Morava *whether or not followed by* Znojemská	Wine with a protected designation of origin (PDO)
CZ	České	Wine with a protected geographical indication (PGI)
CZ	Moravské	Wine with a protected geographical indication (PGI)
DE	Ahr *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
DE	Baden *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
DE	Franken *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
DE	Hessische Bergstraße *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
DE	Mittelrhein *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
DE	Mosel-Saar-Ruwer *whether or not followed by the name of a smaller geographical unit* *Equivalent term*: Mosel	Wine with a protected designation of origin (PDO)
DE	Nahe *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
DE	Pfalz *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
DE	Rheingau *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
DE	Rheinhessen *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
DE	Saale-Unstrut *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
DE	Sachsen *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
DE	Württemberg *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
DE	Ahrtaler	Wine with a protected geographical indication (PGI)
DE	Badischer	Wine with a protected geographical indication (PGI)
DE	Bayerischer Bodensee	Wine with a protected geographical indication (PGI)
DE	Mosel	Wine with a protected geographical indication (PGI)
DE	Ruwer	Wine with a protected geographical indication (PGI)
DE	Saar	Wine with a protected geographical indication (PGI)
DE	Main	Wine with a protected geographical indication (PGI)
DE	Mecklenburger	Wine with a protected geographical indication (PGI)
DE	Mitteldeutscher	Wine with a protected geographical indication (PGI)
DE	Nahegauer	Wine with a protected geographical indication (PGI)
DE	Pfälzer	Wine with a protected geographical indication (PGI)
DE	Regensburger	Wine with a protected geographical indication (PGI)
DE	Rheinburgen	Wine with a protected geographical indication (PGI)
DE	Rheingauer	Wine with a protected geographical indication (PGI)
DE	Rheinischer	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
DE	Saarländischer	Wine with a protected geographical indication (PGI)
DE	Sächsischer	Wine with a protected geographical indication (PGI)
DE	Schwäbischer	Wine with a protected geographical indication (PGI)
DE	Starkenburger	Wine with a protected geographical indication (PGI)
DE	Taubertäler	Wine with a protected geographical indication (PGI)
DE	Brandenburger	Wine with a protected geographical indication (PGI)
DE	Neckar	Wine with a protected geographical indication (PGI)
DE	Oberrhein	Wine with a protected geographical indication (PGI)
DE	Rhein	Wine with a protected geographical indication (PGI)
DE	Rhein-Neckar	Wine with a protected geographical indication (PGI)
DE	Schleswig-Holsteinischer	Wine with a protected geographical indication (PGI)
EL	Αγχίαλος *Equivalent term*: Anchialos	Wine with a protected designation of origin (PDO)
EL	Αμύνταιο *Equivalent term*: Amynteo	Wine with a protected designation of origin (PDO)
EL	Αρχάνες *Equivalent term*: Archanes	Wine with a protected designation of origin (PDO)
EL	Γουμένισσα *Equivalent term*: Goumenissa	Wine with a protected designation of origin (PDO)
EL	Δαφνές *Equivalent term*: Dafnes	Wine with a protected designation of origin (PDO)
EL	Ζίτσα *Equivalent term*: Zitsa	Wine with a protected designation of origin (PDO)
EL	Λήμνος *Equivalent term*: Lemnos	Wine with a protected designation of origin (PDO)
EL	Μαντινεία *Equivalent term*: Mantinia	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
EL	Μαυροδάφνη Κεφαλληνίας *Equivalent term*: Mavrodaphne of Cephalonia	Wine with a protected designation of origin (PDO)
EL	Μαυροδάφνη Πατρών *Equivalent term*: Mavrodaphne of Patras	Wine with a protected designation of origin (PDO)
EL	Μεσενικόλα *Equivalent term*: Messenikola	Wine with a protected designation of origin (PDO)
EL	Μοσχάτος Κεφαλληνίας *Equivalent term*: Cephalonia Muscatel	Wine with a protected designation of origin (PDO)
EL	Μοσχάτος Λήμνου *Equivalent term*: Lemnos Muscatel	Wine with a protected designation of origin (PDO)
EL	Μοσχάτος Πατρών *Equivalent term*: Patras Muscatel	Wine with a protected designation of origin (PDO)
EL	Μοσχάτος Ρίου Πατρών *Equivalent term*: Muscat of Rio Patras	Wine with a protected designation of origin (PDO)
EL	Μοσχάτος Ρόδου *Equivalent term*: Rhodes Muscatel	Wine with a protected designation of origin (PDO)
EL	Νάουσα *Equivalent term*: Naoussa	Wine with a protected designation of origin (PDO)
EL	Νεμέα *Equivalent term*: Nemea	Wine with a protected designation of origin (PDO)
EL	Πάρος *Equivalent term*: Paros	Wine with a protected designation of origin (PDO)
EL	Πάτρα *Equivalent term*: Patras	Wine with a protected designation of origin (PDO)
EL	Πεζά *Equivalent term*: Peza	Wine with a protected designation of origin (PDO)
EL	Πλαγιές Μελίτωνα *Equivalent term*: Cotes de Meliton	Wine with a protected designation of origin (PDO)
EL	Ραψάνη *Equivalent term*: Rapsani	Wine with a protected designation of origin (PDO)
EL	Ρόδος *Equivalent term*: Rhodes	Wine with a protected designation of origin (PDO)
EL	Ρομπόλα Κεφαλληνίας *Equivalent term*: Robola of Cephalonia	Wine with a protected designation of origin (PDO)
EL	Σάμος *Equivalent term*: Samos	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
EL	Σαντορίνη *Equivalent term*: Santorini	Wine with a protected designation of origin (PDO)
EL	Σητεία *Equivalent term*: Sitia	Wine with a protected designation of origin (PDO)
EL	Άβδηρα *Equivalent term*: Avdira	Wine with a protected geographical indication (PGI)
EL	Άγιο Όρος *Equivalent term*: Mount Athos/Holy Mountain	Wine with a protected geographical indication (PGI)
EL	Ήπειρος *Equivalent term*: Epirus	Wine with a protected geographical indication (PGI)
EL	Ίλιον *Equivalent term*: Ilion	Wine with a protected geographical indication (PGI)
EL	Ίσμαρος *Equivalent term*: Ismaros	Wine with a protected geographical indication (PGI)
EL	Αγορά *Equivalent term*: Agora	Wine with a protected geographical indication (PGI)
EL	Αδριανή *Equivalent term*: Adriani	Wine with a protected geographical indication (PGI)
EL	Αιγαίο Πέλαγος *Equivalent term*: Aegean Sea	Wine with a protected geographical indication (PGI)
EL	Ανάβυσσος *Equivalent term*: Anavyssos	Wine with a protected geographical indication (PGI)
EL	Αργολίδα *Equivalent term*: Argolida	Wine with a protected geographical indication (PGI)
EL	Αρκαδία *Equivalent term*: Arkadia	Wine with a protected geographical indication (PGI)
EL	Αταλάντη *Equivalent term*: Atalanti	Wine with a protected geographical indication (PGI)
EL	Αττική *Equivalent term*: Attiki	Wine with a protected geographical indication (PGI)
EL	Αχαΐα *Equivalent term*: Achaia	Wine with a protected geographical indication (PGI)
EL	Βίλιτσα *Equivalent term*: Vilitsa	Wine with a protected geographical indication (PGI)
EL	Βελβεντός *Equivalent term*: Velventos	Wine with a protected geographical indication (PGI)
EL	Βερντέα Ονομασία κατά παράδοση Ζακύνθου *Equivalent term*: Verdea Onomasia kata paradosi Zakinthou	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
EL	Γεράνεια *Equivalent term*: Gerania	Wine with a protected geographical indication (PGI)
EL	Γρεβενά *Equivalent term*: Grevena	Wine with a protected geographical indication (PGI)
EL	Δράμα *Equivalent term*: Drama	Wine with a protected geographical indication (PGI)
EL	Δωδεκάνησος *Equivalent term*: Dodekanese	Wine with a protected geographical indication (PGI)
EL	Επανομή *Equivalent term*: Epanomi	Wine with a protected geographical indication (PGI)
EL	Εύβοια *Equivalent term*: Evia	Wine with a protected geographical indication (PGI)
EL	Ηλεία *Equivalent term*: Ilia	Wine with a protected geographical indication (PGI)
EL	Ημαθία *Equivalent term*: Imathia	Wine with a protected geographical indication (PGI)
EL	Ηράκλειο *Equivalent term*: Heraklion	Wine with a protected geographical indication (PGI)
EL	Θήβα *Equivalent term*: Thebes	Wine with a protected geographical indication (PGI)
EL	Θαψανά *Equivalent term*: Thapsana	Wine with a protected geographical indication (PGI)
EL	Θεσσαλία *Equivalent term*: Thessalia	Wine with a protected geographical indication (PGI)
EL	Θεσσαλονίκη *Equivalent term*: Thessaloniki	Wine with a protected geographical indication (PGI)
EL	Θράκη *Equivalent term*: Thrace	Wine with a protected geographical indication (PGI)
EL	Ικαρία *Equivalent term*: Ikaria	Wine with a protected geographical indication (PGI)
EL	Ιωάννινα *Equivalent term*: Ioannina	Wine with a protected geographical indication (PGI)
EL	Κάρυστος *Equivalent term*: Karystos	Wine with a protected geographical indication (PGI)
EL	Κέρκυρα *Equivalent term*: Corfu	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
EL	Κίσαμος *Equivalent term*: Kissamos	Wine with a protected geographical indication (PGI)
EL	Καρδίτσα *Equivalent term*: Karditsa	Wine with a protected geographical indication (PGI)
EL	Καστοριά *Equivalent term*: Kastoria	Wine with a protected geographical indication (PGI)
EL	Κιθαιρώνας *Equivalent term*: Kitherona	Wine with a protected geographical indication (PGI)
EL	Κλημέντι *Equivalent term*: Klimenti	Wine with a protected geographical indication (PGI)
EL	Κνημίδα *Equivalent term*: Knimida	Wine with a protected geographical indication (PGI)
EL	Κοζάνη *Equivalent term*: Kozani	Wine with a protected geographical indication (PGI)
EL	Κορωπί *Equivalent term*: Koropi	Wine with a protected geographical indication (PGI)
EL	Κρήτη *Equivalent term*: Crete	Wine with a protected geographical indication (PGI)
EL	Κρανιά *Equivalent term*: Krania	Wine with a protected geographical indication (PGI)
EL	Κραννώνα *Equivalent term*: Krannona	Wine with a protected geographical indication (PGI)
EL	Κυκλάδες *Equivalent term*: Cyclades	Wine with a protected geographical indication (PGI)
EL	Κω *Equivalent term*: Kos	Wine with a protected geographical indication (PGI)
EL	Κόρινθος *Equivalent term*: Korinthos	Wine with a protected geographical indication (PGI)
EL	Λακωνία *Equivalent term*: Lakonia	Wine with a protected geographical indication (PGI)
EL	Λασίθι *Equivalent term*: Lasithi	Wine with a protected geographical indication (PGI)
EL	Λετρίνα *Equivalent term*: Letrines	Wine with a protected geographical indication (PGI)
EL	Λευκάδας *Equivalent term*: Lefkada	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
EL	Ληλάντιο Πεδίο *Equivalent term*: Lilantio Pedio	Wine with a protected geographical indication (PGI)
EL	Μέτσοβο *Equivalent term*: Metsovo	Wine with a protected geographical indication (PGI)
EL	Μαγνησία *Equivalent term*: Magnissia	Wine with a protected geographical indication (PGI)
EL	Μακεδονία *Equivalent term*: Macedonia	Wine with a protected geographical indication (PGI)
EL	Μαντζαβινάτα *Equivalent term*: Mantzavinata	Wine with a protected geographical indication (PGI)
EL	Μαρκόπουλο *Equivalent term*: Markopoulo	Wine with a protected geographical indication (PGI)
EL	Μαρτίνο *Equivalent term*: Martino	Wine with a protected geographical indication (PGI)
EL	Μεσσηνία *Equivalent term*: Messinia	Wine with a protected geographical indication (PGI)
EL	Μετέωρα *Equivalent term*: Meteora	Wine with a protected geographical indication (PGI)
EL	Μεταξάτα *Equivalent term*: Metaxata	Wine with a protected geographical indication (PGI)
EL	Μονεμβασία *Equivalent term*: Monemvasia	Wine with a protected geographical indication (PGI)
EL	Νέα Μεσήμβρια *Equivalent term*: Nea Messimvria	Wine with a protected geographical indication (PGI)
EL	Οπούντια Λοκρίδος *Equivalent term*: Opountia Lokridos	Wine with a protected geographical indication (PGI)
EL	Πέλλα *Equivalent term*: Pella	Wine with a protected geographical indication (PGI)
EL	Παγγαίο *Equivalent term*: Pangeon	Wine with a protected geographical indication (PGI)
EL	Παιανία *Equivalent term*: Peanea	Wine with a protected geographical indication (PGI)
EL	Παλλήνη *Equivalent term*: Pallini	Wine with a protected geographical indication (PGI)
EL	Παρνασσός *Equivalent term*: Parnasos	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
EL	Πελοπόννησος *Equivalent term*: Peloponnese	Wine with a protected geographical indication (PGI)
EL	Πιερία *Equivalent term*: Pieria	Wine with a protected geographical indication (PGI)
EL	Πισάτιδα *Equivalent term*: Pisatis	Wine with a protected geographical indication (PGI)
EL	Πλαγίες Αιγιαλείας *Equivalent term*: Slopes of Egialia	Wine with a protected geographical indication (PGI)
EL	Πλαγίες Πάικου *Equivalent term*: Slopes of Paiko	Wine with a protected geographical indication (PGI)
EL	Πλαγιές Αμπέλου *Equivalent term*: Slopes of Ambelos	Wine with a protected geographical indication (PGI)
EL	Πλαγιές Βερτίσκου *Equivalent term*: Slopes of Vertiskos	Wine with a protected geographical indication (PGI)
EL	Πλαγιές Πάρνηθας *Equivalent term*: Slopes of Parnitha	Wine with a protected geographical indication (PGI)
EL	Πλαγιές Πεντελικού *Equivalent term*: Slopes of Pendeliko	Wine with a protected geographical indication (PGI)
EL	Πλαγιές Πετρωτού *Equivalent term*: Slopes of Petroto	Wine with a protected geographical indication (PGI)
EL	Πλαγιές του Αίνου *Equivalent term*: Slopes of Enos	Wine with a protected geographical indication (PGI)
EL	Πυλία *Equivalent term*: Pylia	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Αττικής *may be accompanied by the name of a smaller geographical unit* *Equivalent term*: Retsina of Attiki	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Βοιωτίας *may be accompanied by the name of a smaller geographical unit* *Equivalent term*: Retsina of Viotia	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Γιάλτρων *whether or not accompanied by Εύβοια* *Equivalent term*: Retsina of Gialtra (Evvia)	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Ευβοίας *may be accompanied by the name of a smaller geographical unit* *Equivalent term*: Retsina of Evvia	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Θηβών *whether or not accompanied by Βοιωτία* *Equivalent term*: Retsina of Thebes (Viotia)	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Καρύστου *whether or not accompanied by* Εύβοια *Equivalent term*: Retsina of Karystos (Evvia)	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
EL	Ρετσίνα Κρωπίας *or* Ρετσίνα Κορωπίου *whether or not accompanied by* Αττική *Equivalent term*: Retsina of Kropia or Retsina of Koropi (Attika)	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Μαρκοπούλου *whether or not accompanied by* Αττική *Equivalent term*: Retsina of Markopoulo (Attika)	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Μεγάρων *whether or not accompanied by* Αττική *Equivalent term*: Retsina of Megara (Attika)	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Μεσογείων *whether or not accompanied by* Αττική *Equivalent term*: Retsina of Mesogia (Attika)	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Παιανίας *or* Ρετσίνα Λιοπεσίου *whether or not accompanied by* Αττική *Equivalent term*: Retsina of Peania or Retsina of Liopesi (Attika)	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Παλλήνης *whether or not accompanied by* Αττική *Equivalent term*: Retsina of Pallini (Attika)	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Πικερμίου *whether or not accompanied by* Αττική *Equivalent term*: Retsina of Pikermi (Attika)	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Σπάτων *whether or not accompanied by* Αττική *Equivalent term*: Retsina of Spata (Attika)	Wine with a protected geographical indication (PGI)
EL	Ρετσίνα Χαλκίδας *whether or not accompanied by* Εύβοια *Equivalent term*: Retsina of Halkida (Evvia)	Wine with a protected geographical indication (PGI)
EL	Ριτσώνα *Equivalent term*: Ritsona	Wine with a protected geographical indication (PGI)
EL	Σέρρες *Equivalent term*: Serres	Wine with a protected geographical indication (PGI)
EL	Σιάτιστα *Equivalent term*: Siatista	Wine with a protected geographical indication (PGI)
EL	Σιθωνία *Equivalent term*: Sithonia	Wine with a protected geographical indication (PGI)
EL	Σπάτα *Equivalent term*: Spata	Wine with a protected geographical indication (PGI)
EL	Στερεά Ελλάδα *Equivalent term*: Sterea Ellada	Wine with a protected geographical indication (PGI)
EL	Σύρος *Equivalent term*: Syros	Wine with a protected geographical indication (PGI)
EL	Τεγέα *Equivalent term*: Tegea	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
EL	Τριφυλία *Equivalent term*: Trifilia	Wine with a protected geographical indication (PGI)
EL	Τύρναβος *Equivalent term*: Tyrnavos	Wine with a protected geographical indication (PGI)
EL	Φλώρινα *Equivalent term*: Florina	Wine with a protected geographical indication (PGI)
EL	Χαλικούνα *Equivalent term*: Halikouna	Wine with a protected geographical indication (PGI)
EL	Χαλκιδική *Equivalent term*: Halkidiki	Wine with a protected geographical indication (PGI)
FR	Ajaccio	Wine with a protected designation of origin (PDO)
FR	Aloxe-Corton	Wine with a protected designation of origin (PDO)
FR	Alsace *whether or not followed by a name of a vine variety and/or by the name of a smaller geographical unit* *Equivalent term*: Vin d'Alsace	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Altenberg de Bergbieten	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Altenberg de Bergheim	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Altenberg de Wolxheim	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Brand	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Bruderthal	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Eichberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Engelberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Florimont	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Frankstein	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Froehn	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Furstentum	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Alsace Grand Cru *followed by* Geisberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Gloeckelberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Goldert	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Hatschbourg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Hengst	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Kanzlerberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Kastelberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Kessler	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Kirchberg de Barr	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Kirchberg de Ribeauvillé	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Kitterlé	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Mambourg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Mandelberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Marckrain	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Moenchberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Muenchberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Ollwiller	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Osterberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Pfersigberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Pfingstberg	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Alsace Grand Cru *followed by* Praelatenberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Rangen	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Saering	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Schlossberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Schoenenbourg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Sommerberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Sonnenglanz	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Spiegel	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Sporen	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Steinen	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Steingrubler	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Steinklotz	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Vorbourg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Wiebelsberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Wineck-Schlossberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Winzenberg	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Zinnkoepflé	Wine with a protected designation of origin (PDO)
FR	Alsace Grand Cru *followed by* Zotzenberg	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Alsace Grand Cru *preceded by* Rosacker	Wine with a protected designation of origin (PDO)
FR	Anjou *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Anjou Coteaux de la Loire *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Anjou Villages *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Anjou-Villages Brissac *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Arbois *whether or not followed by Pupillin whether or not followed by* 'mousseux'	Wine with a protected designation of origin (PDO)
FR	Auxey-Duresses *whether or not followed by* 'Côte de Beaune' *or* 'Côte de Beaune-Villages'	Wine with a protected designation of origin (PDO)
FR	Bandol *Equivalent term*: Vin de Bandol	Wine with a protected designation of origin (PDO)
FR	Banyuls *whether or not followed by* 'Grand Cru' *and/or* 'Rancio'	Wine with a protected designation of origin (PDO)
FR	Barsac	Wine with a protected designation of origin (PDO)
FR	Bâtard-Montrachet	Wine with a protected designation of origin (PDO)
FR	Béarn *whether or not followed by* Bellocq	Wine with a protected designation of origin (PDO)
FR	Beaujolais *whether or not followed by the name of a smaller geographical unit whether or not followed by* 'Villages' *whether or not followed by* 'Supérieur'	Wine with a protected designation of origin (PDO)
FR	Beaune	Wine with a protected designation of origin (PDO)
FR	Bellet *Equivalent term*: Vin de Bellet	Wine with a protected designation of origin (PDO)
FR	Bergerac *whether or not followed by* 'sec'	Wine with a protected designation of origin (PDO)
FR	Bienvenues-Bâtard-Montrachet	Wine with a protected designation of origin (PDO)
FR	Blagny *whether or not followed by* Côte de Beaune/Côte de Beaune-Villages	Wine with a protected designation of origin (PDO)
FR	Blanquette de Limoux	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Blanquette méthode ancestrale	Wine with a protected designation of origin (PDO)
FR	Blaye	Wine with a protected designation of origin (PDO)
FR	Bonnes-mares	Wine with a protected designation of origin (PDO)
FR	Bonnezeaux *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Bordeaux *whether or not followed by* 'Clairet', 'Rosé', 'Mousseux' *or* 'supérieur'	Wine with a protected designation of origin (PDO)
FR	Bordeaux Côtes de Francs	Wine with a protected designation of origin (PDO)
FR	Bordeaux Haut-Benauge	Wine with a protected designation of origin (PDO)
FR	Bourg *Equivalent term*: Côtes de Bourg/Bourgeais	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Chitry	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Côte Chalonnaise	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Côte Saint-Jacques	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Côtes d'Auxerre	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Côtes du Couchois	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Coulanges-la-Vineuse	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Épineuil	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Hautes Côtes de Beaune	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Hautes Côtes de Nuits	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* La Chapelle Notre-Dame	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Le Chapitre	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Montrecul/Montre-cul/En Montre-Cul	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé' *or by the name of a smaller geographical unit* Vézelay	Wine with a protected designation of origin (PDO)
FR	Bourgogne *whether or not followed by* 'Clairet', 'Rosé', 'ordinaire' *or* 'grand ordinaire'	Wine with a protected designation of origin (PDO)
FR	Bourgogne aligoté	Wine with a protected designation of origin (PDO)
FR	Bourgogne passe-tout-grains	Wine with a protected designation of origin (PDO)
FR	Bourgueil	Wine with a protected designation of origin (PDO)
FR	Bouzeron	Wine with a protected designation of origin (PDO)
FR	Brouilly	Wine with a protected designation of origin (PDO)
FR	Bugey *whether or not followed by* Cerdon *whether or not preceded by* 'Vins du', 'Mousseux du', 'Pétillant' *or* 'Roussette du' *or followed by* 'Mousseux' *or* 'Pétillant' *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
FR	Buzet	Wine with a protected designation of origin (PDO)
FR	Cabardès	Wine with a protected designation of origin (PDO)
FR	Cabernet d'Anjou *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Cabernet de Saumur *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Cadillac	Wine with a protected designation of origin (PDO)
FR	Cahors	Wine with a protected designation of origin (PDO)
FR	Cassis	Wine with a protected designation of origin (PDO)
FR	Cérons	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Beauroy *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Chablis *whether or not followed by* Berdiot *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Beugnons	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Butteaux *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Chapelot *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Chatains *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Chaume de Talvat *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Côte de Bréchain *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Côte de Cuissy	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Côte de Fontenay *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Côte de Jouan *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Côte de Léchet *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Côte de Savant *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Côte de Vaubarousse *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Côte des Prés Girots *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Forêts *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Fourchaume *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* L'Homme mort *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Les Beauregards *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Chablis *whether or not followed by* Les Épinottes *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Les Fourneaux *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Les Lys *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Mélinots *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Mont de Milieu *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Montée de Tonnerre	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Montmains *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Morein *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Pied d'Aloup *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Roncières *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Sécher *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Troesmes *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Vaillons *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Vau de Vey *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Vau Ligneau *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Vaucoupin *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Vaugiraut *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Vaulorent *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Chablis *whether or not followed by* Vaupulent *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Vaux-Ragons *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis *whether or not followed by* Vosgros *whether or not followed by* 'premier cru'	Wine with a protected designation of origin (PDO)
FR	Chablis	Wine with a protected designation of origin (PDO)
FR	Chablis grand cru *whether or not followed by* Blanchot	Wine with a protected designation of origin (PDO)
FR	Chablis grand cru *whether or not followed by* Bougros	Wine with a protected designation of origin (PDO)
FR	Chablis grand cru *whether or not followed by* Grenouilles	Wine with a protected designation of origin (PDO)
FR	Chablis grand cru *whether or not followed by* Les Clos	Wine with a protected designation of origin (PDO)
FR	Chablis grand cru *whether or not followed by* Preuses	Wine with a protected designation of origin (PDO)
FR	Chablis grand cru *whether or not followed by* Valmur	Wine with a protected designation of origin (PDO)
FR	Chablis grand cru *whether or not followed by* Vaudésir	Wine with a protected designation of origin (PDO)
FR	Chambertin	Wine with a protected designation of origin (PDO)
FR	Chambertin-Clos-de-Bèze	Wine with a protected designation of origin (PDO)
FR	Chambolle-Musigny	Wine with a protected designation of origin (PDO)
FR	Champagne	Wine with a protected designation of origin (PDO)
FR	Chapelle-Chambertin	Wine with a protected designation of origin (PDO)
FR	Charlemagne	Wine with a protected designation of origin (PDO)
FR	Charmes-Chambertin	Wine with a protected designation of origin (PDO)
FR	Chassagne-Montrachet *whether or not followed by* Côte de Beaune/Côtes de Beaune-Villages	Wine with a protected designation of origin (PDO)
FR	Château Grillet	Wine with a protected designation of origin (PDO)
FR	Château-Chalon	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Châteaumeillant	Wine with a protected designation of origin (PDO)
FR	Châteauneuf-du-Pape	Wine with a protected designation of origin (PDO)
FR	Châtillon-en-Diois	Wine with a protected designation of origin (PDO)
FR	Chaume — Premier Cru des coteaux du Layon	Wine with a protected designation of origin (PDO)
FR	Chenas	Wine with a protected designation of origin (PDO)
FR	Chevalier-Montrachet	Wine with a protected designation of origin (PDO)
FR	Cheverny	Wine with a protected designation of origin (PDO)
FR	Chinon	Wine with a protected designation of origin (PDO)
FR	Chiroubles	Wine with a protected designation of origin (PDO)
FR	Chorey-les-Beaune *whether or not followed by* Côte de Beaune/ Côte de Beaune-Villages	Wine with a protected designation of origin (PDO)
FR	Clairette de Bellegarde	Wine with a protected designation of origin (PDO)
FR	Clairette de Die	Wine with a protected designation of origin (PDO)
FR	Clairette de Languedoc *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
FR	Clos de la Roche	Wine with a protected designation of origin (PDO)
FR	Clos de Tart	Wine with a protected designation of origin (PDO)
FR	Clos de Vougeot	Wine with a protected designation of origin (PDO)
FR	Clos des Lambrays	Wine with a protected designation of origin (PDO)
FR	Clos Saint-Denis	Wine with a protected designation of origin (PDO)
FR	Collioure	Wine with a protected designation of origin (PDO)
FR	Condrieu	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Corbières	Wine with a protected designation of origin (PDO)
FR	Cornas	Wine with a protected designation of origin (PDO)
FR	Corse *whether or not followed by* Calvi *whether or not preceded by* 'Vin de'	Wine with a protected designation of origin (PDO)
FR	Corse *whether or not followed by* Coteaux du Cap Corse *whether or not preceded by* 'Vin de'	Wine with a protected designation of origin (PDO)
FR	Corse *whether or not followed by* Figari *whether or not preceded by* 'Vin de'	Wine with a protected designation of origin (PDO)
FR	Corse *whether or not followed by* Porto-Vecchio *whether or not preceded by* 'Vin de'	Wine with a protected designation of origin (PDO)
FR	Corse *whether or not followed by* Sartène *whether or not preceded by* 'Vin de'	Wine with a protected designation of origin (PDO)
FR	Corse *whether or not preceded by* 'Vin de'	Wine with a protected designation of origin (PDO)
FR	Corton	Wine with a protected designation of origin (PDO)
FR	Corton-Charlemagne	Wine with a protected designation of origin (PDO)
FR	Costières de Nîmes	Wine with a protected designation of origin (PDO)
FR	Côte de Beaune *preceded by the name of a smaller geographic unit*	Wine with a protected designation of origin (PDO)
FR	Côte de Beaune-Villages	Wine with a protected designation of origin (PDO)
FR	Côte de Brouilly	Wine with a protected designation of origin (PDO)
FR	Côte de Nuits-villages	Wine with a protected designation of origin (PDO)
FR	Côte roannaise	Wine with a protected designation of origin (PDO)
FR	Côte Rôtie	Wine with a protected designation of origin (PDO)
FR	Coteaux champenois *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
FR	Coteaux d'Aix-en-Provence	Wine with a protected designation of origin (PDO)
FR	Coteaux d'Ancenis *followed by the name of the vine variety*	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Coteaux de Die	Wine with a protected designation of origin (PDO)
FR	Coteaux de l'Aubance *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Coteaux de Pierrevert	Wine with a protected designation of origin (PDO)
FR	Coteaux de Saumur *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Coteaux du Giennois	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Cabrières	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Coteaux de la Méjanelle/La Méjanelle	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Coteaux de Saint-Christol/Saint-Christol	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Coteaux de Vérargues/Vérargues	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Grès de Montpellier	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* La Clape	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Montpeyroux	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Pic-Saint-Loup	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Quatourze	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Saint-Drézéry	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Saint-Georges-d'Orques	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Saint-Saturnin	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
FR	Coteaux du Languedoc *whether or not followed by* Picpoul-de-Pinet	Wine with a protected designation of origin (PDO)
FR	Coteaux du Layon *whether or not followed by* Val de Loire *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Coteaux du Layon Chaume *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Coteaux du Loir *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Coteaux du Lyonnais	Wine with a protected designation of origin (PDO)
FR	Coteaux du Quercy	Wine with a protected designation of origin (PDO)
FR	Coteaux du Tricastin	Wine with a protected designation of origin (PDO)
FR	Coteaux du Vendômois *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Coteaux varois	Wine with a protected designation of origin (PDO)
FR	Côtes Canon Fronsac *Equivalent term*: Canon Fronsac	Wine with a protected designation of origin (PDO)
FR	Côtes d'Auvergne *whether or not followed by* Boudes	Wine with a protected designation of origin (PDO)
FR	Côtes d'Auvergne *whether or not followed by* Chanturgue	Wine with a protected designation of origin (PDO)
FR	Côtes d'Auvergne *whether or not followed by* Châteaugay	Wine with a protected designation of origin (PDO)
FR	Côtes d'Auvergne *whether or not followed by* Corent	Wine with a protected designation of origin (PDO)
FR	Côtes d'Auvergne *whether or not followed by* Madargue	Wine with a protected designation of origin (PDO)
FR	Côtes de Bergerac	Wine with a protected designation of origin (PDO)
FR	Côtes de Blaye	Wine with a protected designation of origin (PDO)
FR	Côtes de Bordeaux Saint-Macaire	Wine with a protected designation of origin (PDO)
FR	Côtes de Castillon	Wine with a protected designation of origin (PDO)
FR	Côtes de Duras	Wine with a protected designation of origin (PDO)
FR	Côtes de Millau	Wine with a protected designation of origin (PDO)
FR	Côtes de Montravel	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Côtes de Provence	Wine with a protected designation of origin (PDO)
FR	Côtes de Saint-Mont	Wine with a protected designation of origin (PDO)
FR	Côtes de Toul	Wine with a protected designation of origin (PDO)
FR	Côtes du Brulhois	Wine with a protected designation of origin (PDO)
FR	Côtes du Forez	Wine with a protected designation of origin (PDO)
FR	Côtes du Jura *whether or not followed by* 'mousseux'	Wine with a protected designation of origin (PDO)
FR	Côtes du Lubéron	Wine with a protected designation of origin (PDO)
FR	Côtes du Marmandais	Wine with a protected designation of origin (PDO)
FR	Côtes du Rhône	Wine with a protected designation of origin (PDO)
FR	Côtes du Roussillon	Wine with a protected designation of origin (PDO)
FR	Côtes du Roussillon Villages *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
FR	Côtes du Ventoux	Wine with a protected designation of origin (PDO)
FR	Côtes du Vivarais	Wine with a protected designation of origin (PDO)
FR	Cour-Cheverny *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Crémant d'Alsace	Wine with a protected designation of origin (PDO)
FR	Crémant de Bordeaux	Wine with a protected designation of origin (PDO)
FR	Crémant de Bourgogne	Wine with a protected designation of origin (PDO)
FR	Crémant de Die	Wine with a protected designation of origin (PDO)
FR	Crémant de Limoux	Wine with a protected designation of origin (PDO)
FR	Crémant de Loire	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Crémant du Jura	Wine with a protected designation of origin (PDO)
FR	Crépy	Wine with a protected designation of origin (PDO)
FR	Criots-Bâtard-Montrachet	Wine with a protected designation of origin (PDO)
FR	Crozes-Hermitage *Equivalent term*: Crozes-Ermitage	Wine with a protected designation of origin (PDO)
FR	Échezeaux	Wine with a protected designation of origin (PDO)
FR	Entre-Deux-Mers	Wine with a protected designation of origin (PDO)
FR	Entre-Deux-Mers-Haut-Benauge	Wine with a protected designation of origin (PDO)
FR	Faugères	Wine with a protected designation of origin (PDO)
FR	Fiefs Vendéens *whether or not followed by* Brem	Wine with a protected designation of origin (PDO)
FR	Fiefs Vendéens *whether or not followed by* Mareuil	Wine with a protected designation of origin (PDO)
FR	Fiefs Vendéens *whether or not followed by* Pissotte	Wine with a protected designation of origin (PDO)
FR	Fiefs Vendéens *whether or not followed by* Vix	Wine with a protected designation of origin (PDO)
FR	Fitou	Wine with a protected designation of origin (PDO)
FR	Fixin	Wine with a protected designation of origin (PDO)
FR	Fleurie	Wine with a protected designation of origin (PDO)
FR	Floc de Gascogne	Wine with a protected designation of origin (PDO)
FR	Fronsac	Wine with a protected designation of origin (PDO)
FR	Frontignan *whether or not preceded by* 'Muscat d' *or* 'Vin de'	Wine with a protected designation of origin (PDO)
FR	Fronton	Wine with a protected designation of origin (PDO)
FR	Gaillac *whether or not followed by* 'mousseux'	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Gaillac premières côtes	Wine with a protected designation of origin (PDO)
FR	Gevrey-Chambertin	Wine with a protected designation of origin (PDO)
FR	Gigondas	Wine with a protected designation of origin (PDO)
FR	Givry	Wine with a protected designation of origin (PDO)
FR	Grand Roussillon *whether or not followed by* 'Rancio'	Wine with a protected designation of origin (PDO)
FR	Grand-Échezeaux	Wine with a protected designation of origin (PDO)
FR	Graves *whether or not followed by* 'supérieures'	Wine with a protected designation of origin (PDO)
FR	Graves de Vayres	Wine with a protected designation of origin (PDO)
FR	Griotte-Chambertin	Wine with a protected designation of origin (PDO)
FR	Gros plant du Pays nantais	Wine with a protected designation of origin (PDO)
FR	Haut-Médoc	Wine with a protected designation of origin (PDO)
FR	Haut-Montravel	Wine with a protected designation of origin (PDO)
FR	Haut-Poitou	Wine with a protected designation of origin (PDO)
FR	Hermitage *Equivalent term*: l'Hermitage/Ermitage/l'Ermitage	Wine with a protected designation of origin (PDO)
FR	Irancy	Wine with a protected designation of origin (PDO)
FR	Irouléguy	Wine with a protected designation of origin (PDO)
FR	Jasnières *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Juliénas	Wine with a protected designation of origin (PDO)
FR	Jurançon *whether or not followed by* 'sec'	Wine with a protected designation of origin (PDO)
FR	L'Étoile *whether or not followed by* 'mousseux'	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	La Grande Rue	Wine with a protected designation of origin (PDO)
FR	Ladoix *whether or not followed by* 'Côte de Beaune' *or* 'Côte de Beaune-Villages'	Wine with a protected designation of origin (PDO)
FR	Lalande de Pomerol	Wine with a protected designation of origin (PDO)
FR	Latricières-Chambertin	Wine with a protected designation of origin (PDO)
FR	Les Baux de Provence	Wine with a protected designation of origin (PDO)
FR	Limoux	Wine with a protected designation of origin (PDO)
FR	Lirac	Wine with a protected designation of origin (PDO)
FR	Listrac-Médoc	Wine with a protected designation of origin (PDO)
FR	Loupiac	Wine with a protected designation of origin (PDO)
FR	Lussac-Saint-Émilion	Wine with a protected designation of origin (PDO)
FR	Mâcon *whether or not followed by the name of a smaller geographical unit whether or not followed by* 'Supérieur' *or* 'Villages' *Equivalent term*: Pinot-Chardonnay-Mâcon	Wine with a protected designation of origin (PDO)
FR	Macvin du Jura	Wine with a protected designation of origin (PDO)
FR	Madiran	Wine with a protected designation of origin (PDO)
FR	Malepère	Wine with a protected designation of origin (PDO)
FR	Maranges *whether or not followed by* Clos de la Boutière	Wine with a protected designation of origin (PDO)
FR	Maranges *whether or not followed by* La Croix Moines	Wine with a protected designation of origin (PDO)
FR	Maranges *whether or not followed by* La Fussière	Wine with a protected designation of origin (PDO)
FR	Maranges *whether or not followed by* Le Clos des Loyères	Wine with a protected designation of origin (PDO)
FR	Maranges *whether or not followed by* Le Clos des Rois	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Maranges *whether or not followed by* Les Clos Roussots	Wine with a protected designation of origin (PDO)
FR	Maranges *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
FR	Maranges *whether or not followed by* 'Côte de Beaune' *or* 'Côte de Beaune-Villages'	Wine with a protected designation of origin (PDO)
FR	Marcillac	Wine with a protected designation of origin (PDO)
FR	Margaux	Wine with a protected designation of origin (PDO)
FR	Marsannay *whether or not followed by* 'rosé'	Wine with a protected designation of origin (PDO)
FR	Maury *whether or not followed by* 'Rancio'	Wine with a protected designation of origin (PDO)
FR	Mazis-Chambertin	Wine with a protected designation of origin (PDO)
FR	Mazoyères-Chambertin	Wine with a protected designation of origin (PDO)
FR	Médoc	Wine with a protected designation of origin (PDO)
FR	Menetou-Salon *whether or not followed by the name of a smaller geographical unit whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Mercurey	Wine with a protected designation of origin (PDO)
FR	Meursault *whether or not followed by* 'Côte de Beaune' *or* 'Côte de Beaune-Villages'	Wine with a protected designation of origin (PDO)
FR	Minervois	Wine with a protected designation of origin (PDO)
FR	Minervois-La-Livinière	Wine with a protected designation of origin (PDO)
FR	Monbazillac	Wine with a protected designation of origin (PDO)
FR	Montagne Saint-Émilion	Wine with a protected designation of origin (PDO)
FR	Montagny	Wine with a protected designation of origin (PDO)
FR	Monthélie *whether or not followed by* 'Côte de Beaune' *or* 'Côte de Beaune-Villages'	Wine with a protected designation of origin (PDO)
FR	Montlouis-sur-Loire *whether or not followed by* Val de Loire *whether or not followed by* 'mousseux' *or* 'pétillant'	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Montrachet	Wine with a protected designation of origin (PDO)
FR	Montravel	Wine with a protected designation of origin (PDO)
FR	Morey-Saint-Denis	Wine with a protected designation of origin (PDO)
FR	Morgon	Wine with a protected designation of origin (PDO)
FR	Moselle	Wine with a protected designation of origin (PDO)
FR	Moulin-à-Vent	Wine with a protected designation of origin (PDO)
FR	Moulis *Equivalent term*: Moulis-en-Médoc	Wine with a protected designation of origin (PDO)
FR	Muscadet *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Muscadet-Coteaux de la Loire *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Muscadet-Côtes de Grandlieu *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Muscadet-Sèvre et Maine *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Muscat de Beaumes-de-Venise	Wine with a protected designation of origin (PDO)
FR	Muscat de Lunel	Wine with a protected designation of origin (PDO)
FR	Muscat de Mireval	Wine with a protected designation of origin (PDO)
FR	Muscat de Saint-Jean-de-Minvervois	Wine with a protected designation of origin (PDO)
FR	Muscat du Cap Corse	Wine with a protected designation of origin (PDO)
FR	Musigny	Wine with a protected designation of origin (PDO)
FR	Néac	Wine with a protected designation of origin (PDO)
FR	Nuits *Equivalent term*: Nuits-Saint-Georges	Wine with a protected designation of origin (PDO)
FR	Orléans *whether or not followed by* Cléry	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Pacherenc du Vic-Bilh *whether or not followed by* 'sec'	Wine with a protected designation of origin (PDO)
FR	Palette	Wine with a protected designation of origin (PDO)
FR	Patrimonio	Wine with a protected designation of origin (PDO)
FR	Pauillac	Wine with a protected designation of origin (PDO)
FR	Pécharmant	Wine with a protected designation of origin (PDO)
FR	Pernand-Vergelesses *whether or not followed by* 'Côte de Beaune' *or* 'Côte de Beaune-Villages'	Wine with a protected designation of origin (PDO)
FR	Pessac-Léognan	Wine with a protected designation of origin (PDO)
FR	Petit Chablis *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
FR	Pineau des Charentes *Equivalent term*: Pineau Charentais	Wine with a protected designation of origin (PDO)
FR	Pomerol	Wine with a protected designation of origin (PDO)
FR	Pommard	Wine with a protected designation of origin (PDO)
FR	Pouilly-Fuissé	Wine with a protected designation of origin (PDO)
FR	Pouilly-Loché	Wine with a protected designation of origin (PDO)
FR	Pouilly-sur-Loire *whether or not followed by* Val de Loire *Equivalent term*: Blanc Fumé de Pouilly/Pouilly-Fumé	Wine with a protected designation of origin (PDO)
FR	Pouilly-Vinzelles	Wine with a protected designation of origin (PDO)
FR	Premières Côtes de Blaye	Wine with a protected designation of origin (PDO)
FR	Premières Côtes de Bordeaux *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
FR	Puisseguin-Saint-Emilion	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Puligny-Montrachet *whether or not followed by* 'Côte de Beaune' *or* 'Côte de Beaune-Villages'	Wine with a protected designation of origin (PDO)
FR	Quarts de Chaume *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Quincy *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Rasteau *whether or not followed by* 'Rancio'	Wine with a protected designation of origin (PDO)
FR	Régnié	Wine with a protected designation of origin (PDO)
FR	Reuilly *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Richebourg	Wine with a protected designation of origin (PDO)
FR	Rivesaltes *whether or not followed by* 'Rancio' *whether or not preceded by* 'Muscat'	Wine with a protected designation of origin (PDO)
FR	Romanée (La)	Wine with a protected designation of origin (PDO)
FR	Romanée Contie	Wine with a protected designation of origin (PDO)
FR	Romanée Saint-Vivant	Wine with a protected designation of origin (PDO)
FR	Rosé de Loire *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Rosé des Riceys	Wine with a protected designation of origin (PDO)
FR	Rosette	Wine with a protected designation of origin (PDO)
FR	Rosé d'Anjou	Wine with a protected designation of origin (PDO)
FR	Roussette de Savoie *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
FR	Ruchottes-Chambertin	Wine with a protected designation of origin (PDO)
FR	Rully	Wine with a protected designation of origin (PDO)
FR	Saint-Sardos	Wine with a protected designation of origin (PDO)
FR	Saint-Amour	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Saint-Aubin *whether or not followed by* 'Côte de Beaune' *or* 'Côte de Beaune-Villages'	Wine with a protected designation of origin (PDO)
FR	Saint-Bris	Wine with a protected designation of origin (PDO)
FR	Saint-Chinian	Wine with a protected designation of origin (PDO)
FR	Saint-Émilion	Wine with a protected designation of origin (PDO)
FR	Saint-Émilion Grand Cru	Wine with a protected designation of origin (PDO)
FR	Saint-Estèphe	Wine with a protected designation of origin (PDO)
FR	Saint-Georges-Saint-Émilion	Wine with a protected designation of origin (PDO)
FR	Saint-Joseph	Wine with a protected designation of origin (PDO)
FR	Saint-Julien	Wine with a protected designation of origin (PDO)
FR	Saint Mont	Wine with a protected designation of origin (PDO)
FR	Saint-Nicolas-de-Bourgueil *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Saint-Péray *whether or not followed by* 'mousseux'	Wine with a protected designation of origin (PDO)
FR	Saint-Pourçain	Wine with a protected designation of origin (PDO)
FR	Saint-Romain *whether or not followed by* 'Côte de Beaune' *or* 'Côte de Beaune-Villages'	Wine with a protected designation of origin (PDO)
FR	Saint-Véran	Wine with a protected designation of origin (PDO)
FR	Sainte-Croix du Mont	Wine with a protected designation of origin (PDO)
FR	Sainte-Foy Bordeaux	Wine with a protected designation of origin (PDO)
FR	Sancerre	Wine with a protected designation of origin (PDO)
FR	Santenay *whether or not followed by* 'Côte de Beaune' *or* 'Côte de Beaune-Villages'	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Saumur *whether or not followed by* Val de Loire *whether or not followed by* 'mousseux' *or* 'pétillant'	Wine with a protected designation of origin (PDO)
FR	Saumur-Champigny *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Saussignac	Wine with a protected designation of origin (PDO)
FR	Sauternes	Wine with a protected designation of origin (PDO)
FR	Savennières *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Savennières-Coulée de Serrant *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Savennières-Roche-aux-Moines *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Savigny-les-Beaune *whether or not followed by* 'Côte de Beaune' *or* 'Côte de Beaune-Villages' *Equivalent term*: Savigny	Wine with a protected designation of origin (PDO)
FR	Seyssel *whether or not followed by* 'mousseux'	Wine with a protected designation of origin (PDO)
FR	Tâche (La)	Wine with a protected designation of origin (PDO)
FR	Tavel	Wine with a protected designation of origin (PDO)
FR	Touraine *whether or not followed by* Val de Loire *whether or not followed by* 'mousseux' *or* 'pétillant'	Wine with a protected designation of origin (PDO)
FR	Touraine Amboise *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Touraine Azay-le-Rideau *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Touraine Mestand *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Touraine Noble Joué *whether or not followed by* Val de Loire	Wine with a protected designation of origin (PDO)
FR	Tursan	Wine with a protected designation of origin (PDO)
FR	Vacqueyras	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
FR	Valençay	Wine with a protected designation of origin (PDO)
FR	Vin d'Entraygues et du Fel	Wine with a protected designation of origin (PDO)
FR	Vin d'Estaing	Wine with a protected designation of origin (PDO)
FR	Vin de Lavilledieu	Wine with a protected designation of origin (PDO)
FR	Vin de Savoie *whether or not followed by the name of a smaller geographical unit whether or not followed by* 'mousseux' *or* 'pétillant'	Wine with a protected designation of origin (PDO)
FR	Vins du Thouarsais	Wine with a protected designation of origin (PDO)
FR	Vins Fins de la Côte de Nuits	Wine with a protected designation of origin (PDO)
FR	Viré-Clessé	Wine with a protected designation of origin (PDO)
FR	Volnay	Wine with a protected designation of origin (PDO)
FR	Volnay Santenots	Wine with a protected designation of origin (PDO)
FR	Vosnes Romanée	Wine with a protected designation of origin (PDO)
FR	Vougeot	Wine with a protected designation of origin (PDO)
FR	Vouvray *whether or not followed by* Val de Loire *whether or not followed by* 'mousseux' *or* 'pétillant'	Wine with a protected designation of origin (PDO)
FR	Agenais	Wine with a protected geographical indication (PGI)
FR	Aigues	Wine with a protected geographical indication (PGI)
FR	Ain	Wine with a protected geographical indication (PGI)
FR	Allier	Wine with a protected geographical indication (PGI)
FR	Allobrogie	Wine with a protected geographical indication (PGI)
FR	Alpes de Haute Provence	Wine with a protected geographical indication (PGI)
FR	Alpes Maritimes	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
FR	Alpilles	Wine with a protected geographical indication (PGI)
FR	Ardèche	Wine with a protected geographical indication (PGI)
FR	Argens	Wine with a protected geographical indication (PGI)
FR	Ariège	Wine with a protected geographical indication (PGI)
FR	Aude	Wine with a protected geographical indication (PGI)
FR	Aveyron	Wine with a protected geographical indication (PGI)
FR	Balmes Dauphinoises	Wine with a protected geographical indication (PGI)
FR	Bénovie	Wine with a protected geographical indication (PGI)
FR	Bérange	Wine with a protected geographical indication (PGI)
FR	Bessan	Wine with a protected geographical indication (PGI)
FR	Bigorre	Wine with a protected geographical indication (PGI)
FR	Bouches du Rhône	Wine with a protected geographical indication (PGI)
FR	Bourbonnais	Wine with a protected geographical indication (PGI)
FR	Calvados	Wine with a protected geographical indication (PGI)
FR	Cassan	Wine with a protected geographical indication (PGI)
FR	Cathare	Wine with a protected geographical indication (PGI)
FR	Caux	Wine with a protected geographical indication (PGI)
FR	Cessenon	Wine with a protected geographical indication (PGI)
FR	Cévennes *whether or not followed by* Mont Bouquet	Wine with a protected geographical indication (PGI)
FR	Charentais *whether or not followed by* Ile d'Oléron	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
FR	Charentais *whether or not followed by* Ile de Ré	Wine with a protected geographical indication (PGI)
FR	Charentais *whether or not followed by* Saint Sornin	Wine with a protected geographical indication (PGI)
FR	Charente	Wine with a protected geographical indication (PGI)
FR	Charentes Maritimes	Wine with a protected geographical indication (PGI)
FR	Cher	Wine with a protected geographical indication (PGI)
FR	Cité de Carcassonne	Wine with a protected geographical indication (PGI)
FR	Collines de la Moure	Wine with a protected geographical indication (PGI)
FR	Collines Rhodaniennes	Wine with a protected geographical indication (PGI)
FR	Comté de Grignan	Wine with a protected geographical indication (PGI)
FR	Comté Tolosan	Wine with a protected geographical indication (PGI)
FR	Comtés Rhodaniens	Wine with a protected geographical indication (PGI)
FR	Corrèze	Wine with a protected geographical indication (PGI)
FR	Côte Vermeille	Wine with a protected geographical indication (PGI)
FR	Coteaux Charitois	Wine with a protected geographical indication (PGI)
FR	Coteaux de Bessilles	Wine with a protected geographical indication (PGI)
FR	Coteaux de Cèze	Wine with a protected geographical indication (PGI)
FR	Coteaux de Coiffy	Wine with a protected geographical indication (PGI)
FR	Coteaux de Fontcaude	Wine with a protected geographical indication (PGI)
FR	Coteaux de Glanes	Wine with a protected geographical indication (PGI)
FR	Coteaux de l'Ardèche	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
FR	Coteaux de la Cabrerisse	Wine with a protected geographical indication (PGI)
FR	Coteaux de Laurens	Wine with a protected geographical indication (PGI)
FR	Coteaux de l'Auxois	Wine with a protected geographical indication (PGI)
FR	Coteaux de Miramont	Wine with a protected geographical indication (PGI)
FR	Coteaux de Montélimar	Wine with a protected geographical indication (PGI)
FR	Coteaux de Murviel	Wine with a protected geographical indication (PGI)
FR	Coteaux de Narbonne	Wine with a protected geographical indication (PGI)
FR	Coteaux de Peyriac	Wine with a protected geographical indication (PGI)
FR	Coteaux de Tannay	Wine with a protected geographical indication (PGI)
FR	Coteaux des Baronnies	Wine with a protected geographical indication (PGI)
FR	Coteaux du Cher et de l'Arnon	Wine with a protected geographical indication (PGI)
FR	Coteaux du Grésivaudan	Wine with a protected geographical indication (PGI)
FR	Coteaux du Libron	Wine with a protected geographical indication (PGI)
FR	Coteaux du Littoral Audois	Wine with a protected geographical indication (PGI)
FR	Coteaux du Pont du Gard	Wine with a protected geographical indication (PGI)
FR	Coteaux du Salagou	Wine with a protected geographical indication (PGI)
FR	Coteaux du Verdon	Wine with a protected geographical indication (PGI)
FR	Coteaux d'Enserune	Wine with a protected geographical indication (PGI)
FR	Coteaux et Terrasses de Montauban	Wine with a protected geographical indication (PGI)
FR	Coteaux Flaviens	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
FR	Côtes Catalanes	Wine with a protected geographical indication (PGI)
FR	Côtes de Ceressou	Wine with a protected geographical indication (PGI)
FR	Côtes de Gascogne	Wine with a protected geographical indication (PGI)
FR	Côtes de Lastours	Wine with a protected geographical indication (PGI)
FR	Côtes de Meuse	Wine with a protected geographical indication (PGI)
FR	Côtes de Montestruc	Wine with a protected geographical indication (PGI)
FR	Côtes de Pérignan	Wine with a protected geographical indication (PGI)
FR	Côtes de Prouilhe	Wine with a protected geographical indication (PGI)
FR	Côtes de Thau	Wine with a protected geographical indication (PGI)
FR	Côtes de Thongue	Wine with a protected geographical indication (PGI)
FR	Côtes du Brian	Wine with a protected geographical indication (PGI)
FR	Côtes du Condomois	Wine with a protected geographical indication (PGI)
FR	Côtes du Tarn	Wine with a protected geographical indication (PGI)
FR	Côtes du Vidourle	Wine with a protected geographical indication (PGI)
FR	Creuse	Wine with a protected geographical indication (PGI)
FR	Cucugnan	Wine with a protected geographical indication (PGI)
FR	Deux-Sèvres	Wine with a protected geographical indication (PGI)
FR	Dordogne	Wine with a protected geographical indication (PGI)
FR	Doubs	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
FR	Drôme	Wine with a protected geographical indication (PGI)
FR	Duché d'Uzès	Wine with a protected geographical indication (PGI)
FR	Franche-Comté *whether or not followed by* Coteaux de Champlitte	Wine with a protected geographical indication (PGI)
FR	Gard	Wine with a protected geographical indication (PGI)
FR	Gers	Wine with a protected geographical indication (PGI)
FR	Haute Vallée de l'Orb	Wine with a protected geographical indication (PGI)
FR	Haute Vallée de l'Aude	Wine with a protected geographical indication (PGI)
FR	Haute-Garonne	Wine with a protected geographical indication (PGI)
FR	Haute-Marne	Wine with a protected geographical indication (PGI)
FR	Haute-Saône	Wine with a protected geographical indication (PGI)
FR	Haute-Vienne	Wine with a protected geographical indication (PGI)
FR	Hauterive *whether or not followed by* Coteaux du Termenès	Wine with a protected geographical indication (PGI)
FR	Hauterive *whether or not followed by* Côtes de Lézignan	Wine with a protected geographical indication (PGI)
FR	Hauterive *whether or not followed by* Val d'Orbieu	Wine with a protected geographical indication (PGI)
FR	Hautes-Alpes	Wine with a protected geographical indication (PGI)
FR	Hautes-Pyrénées	Wine with a protected geographical indication (PGI)
FR	Hauts de Badens	Wine with a protected geographical indication (PGI)
FR	Hérault	Wine with a protected geographical indication (PGI)
FR	Île de Beauté	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
FR	Indre	Wine with a protected geographical indication (PGI)
FR	Indre et Loire	Wine with a protected geographical indication (PGI)
FR	Isère	Wine with a protected geographical indication (PGI)
FR	Landes	Wine with a protected geographical indication (PGI)
FR	Loir et Cher	Wine with a protected geographical indication (PGI)
FR	Loire-Atlantique	Wine with a protected geographical indication (PGI)
FR	Loiret	Wine with a protected geographical indication (PGI)
FR	Lot	Wine with a protected geographical indication (PGI)
FR	Lot et Garonne	Wine with a protected geographical indication (PGI)
FR	Maine et Loire	Wine with a protected geographical indication (PGI)
FR	Maures	Wine with a protected geographical indication (PGI)
FR	Méditerranée	Wine with a protected geographical indication (PGI)
FR	Meuse	Wine with a protected geographical indication (PGI)
FR	Mont Baudile	Wine with a protected geographical indication (PGI)
FR	Mont-Caume	Wine with a protected geographical indication (PGI)
FR	Monts de la Grage	Wine with a protected geographical indication (PGI)
FR	Nièvre	Wine with a protected geographical indication (PGI)
FR	Oc	Wine with a protected geographical indication (PGI)
FR	Périgord *whether or not followed by* Vin de Domme	Wine with a protected geographical indication (PGI)
FR	Petite Crau	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
FR	Principauté d'Orange	Wine with a protected geographical indication (PGI)
FR	Puy de Dôme	Wine with a protected geographical indication (PGI)
FR	Pyrénées Orientales	Wine with a protected geographical indication (PGI)
FR	Pyrénées-Atlantiques	Wine with a protected geographical indication (PGI)
FR	Sables du Golfe du Lion	Wine with a protected geographical indication (PGI)
FR	Saint-Guilhem-le-Désert	Wine with a protected geographical indication (PGI)
FR	Sainte Baume	Wine with a protected geographical indication (PGI)
FR	Sainte Marie la Blanche	Wine with a protected geographical indication (PGI)
FR	Saône et Loire	Wine with a protected geographical indication (PGI)
FR	Sarthe	Wine with a protected geographical indication (PGI)
FR	Seine et Marne	Wine with a protected geographical indication (PGI)
FR	Tarn	Wine with a protected geographical indication (PGI)
FR	Tarn et Garonne	Wine with a protected geographical indication (PGI)
FR	Terroirs Landais *whether or not followed by* Coteaux de Chalosse	Wine with a protected geographical indication (PGI)
FR	Terroirs Landais *whether or not followed by* Côtes de L'Adour	Wine with a protected geographical indication (PGI)
FR	Terroirs Landais *whether or not followed by* Sables de l'Océan	Wine with a protected geographical indication (PGI)
FR	Terroirs Landais *whether or not followed by* Sables Fauves	Wine with a protected geographical indication (PGI)
FR	Thézac-Perricard	Wine with a protected geographical indication (PGI)
FR	Torgan	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
FR	Urfé	Wine with a protected geographical indication (PGI)
FR	Val de Cesse	Wine with a protected geographical indication (PGI)
FR	Val de Dagne	Wine with a protected geographical indication (PGI)
FR	Val de Loire	Wine with a protected geographical indication (PGI)
FR	Val de Montferrand	Wine with a protected geographical indication (PGI)
FR	Vallée du Paradis	Wine with a protected geographical indication (PGI)
FR	Var	Wine with a protected geographical indication (PGI)
FR	Vaucluse	Wine with a protected geographical indication (PGI)
FR	Vaunage	Wine with a protected geographical indication (PGI)
FR	Vendée	Wine with a protected geographical indication (PGI)
FR	Vicomté d'Aumelas	Wine with a protected geographical indication (PGI)
FR	Vienne	Wine with a protected geographical indication (PGI)
FR	Vistrenque	Wine with a protected geographical indication (PGI)
FR	Yonne	Wine with a protected geographical indication (PGI)
IT	Aglianico del Taburno *Equivalent term*: Taburno	Wine with a protected designation of origin (PDO)
IT	Aglianico del Vulture	Wine with a protected designation of origin (PDO)
IT	Albana di Romagna	Wine with a protected designation of origin (PDO)
IT	Albugnano	Wine with a protected designation of origin (PDO)
IT	Alcamo	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Aleatico di Gradoli	Wine with a protected designation of origin (PDO)
IT	Aleatico di Puglia	Wine with a protected designation of origin (PDO)
IT	Alezio	Wine with a protected designation of origin (PDO)
IT	Alghero	Wine with a protected designation of origin (PDO)
IT	Alta Langa	Wine with a protected designation of origin (PDO)
IT	Alto Adige *followed by* Colli di Bolzano *Equivalent term*: Südtiroler Bozner Leiten	Wine with a protected designation of origin (PDO)
IT	Alto Adige *followed by* Meranese di collina *Equivalent term*: Alto Adige Meranese/Südtirol Meraner Hügel/ Südtirol Meraner	Wine with a protected designation of origin (PDO)
IT	Alto Adige *followed by* Santa Maddalena *Equivalent term*: Südtiroler St.Magdalener	Wine with a protected designation of origin (PDO)
IT	Alto Adige *followed by* Terlano *Equivalent term*: Südtirol Terlaner	Wine with a protected designation of origin (PDO)
IT	Alto Adige *followed by* Valle Isarco *Equivalent term*: Südtiroler Eisacktal/Eisacktaler	Wine with a protected designation of origin (PDO)
IT	Alto Adige *followed by* Valle Venosta *Equivalent term*: Südtirol Vinschgau	Wine with a protected designation of origin (PDO)
IT	Alto Adige *Equivalent term*: dell'Alto Adige/Südtirol/Südtiroler	Wine with a protected designation of origin (PDO)
IT	Alto Adige *or* dell'Alto Adige *whether or not followed by* Bressanone *Equivalent term*: dell'Alto Adige Südtirol or Südtiroler Brixner	Wine with a protected designation of origin (PDO)
IT	Alto Adige *or* dell'Alto Adige *whether or not followed by* Burgraviato *Equivalent term*: dell'Alto Adige Südtirol or Südtiroler Buggrafler	Wine with a protected designation of origin (PDO)
IT	Ansonica Costa dell'Argentario	Wine with a protected designation of origin (PDO)
IT	Aprilia	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Arborea	Wine with a protected designation of origin (PDO)
IT	Arcole	Wine with a protected designation of origin (PDO)
IT	Assisi	Wine with a protected designation of origin (PDO)
IT	Asti *whether or not followed by* 'spumante' *or preceded by* 'Moscato d"	Wine with a protected designation of origin (PDO)
IT	Atina	Wine with a protected designation of origin (PDO)
IT	Aversa	Wine with a protected designation of origin (PDO)
IT	Bagnoli di Sopra *Equivalent term*: Bagnoli	Wine with a protected designation of origin (PDO)
IT	Barbaresco	Wine with a protected designation of origin (PDO)
IT	Barbera d'Alba	Wine with a protected designation of origin (PDO)
IT	Barbera d'Asti *whether or not followed by* Colli Astiani o Astiano	Wine with a protected designation of origin (PDO)
IT	Barbera d'Asti *whether or not followed by* Nizza	Wine with a protected designation of origin (PDO)
IT	Barbera d'Asti *whether or not followed by* Tinella	Wine with a protected designation of origin (PDO)
IT	Barbera del Monferrato	Wine with a protected designation of origin (PDO)
IT	Barbera del Monferrato Superiore	Wine with a protected designation of origin (PDO)
IT	Barco Reale di Carmignano *Equivalent term*: Rosato di Carmignano/Vin santo di Carmignano/Vin Santo di Carmignano occhio di pernice	Wine with a protected designation of origin (PDO)
IT	Bardolino	Wine with a protected designation of origin (PDO)
IT	Bardolino Superiore	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Barolo	Wine with a protected designation of origin (PDO)
IT	Bianchello del Metauro	Wine with a protected designation of origin (PDO)
IT	Bianco Capena	Wine with a protected designation of origin (PDO)
IT	Bianco dell'Empolese	Wine with a protected designation of origin (PDO)
IT	Bianco della Valdinievole	Wine with a protected designation of origin (PDO)
IT	Bianco di Custoza *Equivalent term*: Custoza	Wine with a protected designation of origin (PDO)
IT	Bianco di Pitigliano	Wine with a protected designation of origin (PDO)
IT	Bianco Pisano di San Torpè	Wine with a protected designation of origin (PDO)
IT	Biferno	Wine with a protected designation of origin (PDO)
IT	Bivongi	Wine with a protected designation of origin (PDO)
IT	Boca	Wine with a protected designation of origin (PDO)
IT	Bolgheri *whether or not followed by* Sassicaia	Wine with a protected designation of origin (PDO)
IT	Bosco Eliceo	Wine with a protected designation of origin (PDO)
IT	Botticino	Wine with a protected designation of origin (PDO)
IT	Brachetto d'Acqui *Equivalent term*: Acqui	Wine with a protected designation of origin (PDO)
IT	Bramaterra	Wine with a protected designation of origin (PDO)
IT	Breganze	Wine with a protected designation of origin (PDO)
IT	Brindisi	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Brunello di Montalcino	Wine with a protected designation of origin (PDO)
IT	Cacc'e' mmitte di Lucera	Wine with a protected designation of origin (PDO)
IT	Cagnina di Romagna	Wine with a protected designation of origin (PDO)
IT	Campi Flegrei	Wine with a protected designation of origin (PDO)
IT	Campidano di Terralba *Equivalent term*: Terralba	Wine with a protected designation of origin (PDO)
IT	Canavese	Wine with a protected designation of origin (PDO)
IT	Candia dei Colli Apuani	Wine with a protected designation of origin (PDO)
IT	Cannonau di Sardegna *whether or not followed by* Capo Ferrato	Wine with a protected designation of origin (PDO)
IT	Cannonau di Sardegna *whether or not followed by* Jerzu	Wine with a protected designation of origin (PDO)
IT	Cannonau di Sardegna *whether or not followed by* Oliena/ Nepente di Oliena	Wine with a protected designation of origin (PDO)
IT	Capalbio	Wine with a protected designation of origin (PDO)
IT	Capri	Wine with a protected designation of origin (PDO)
IT	Capriano del Colle	Wine with a protected designation of origin (PDO)
IT	Carema	Wine with a protected designation of origin (PDO)
IT	Carignano del Sulcis	Wine with a protected designation of origin (PDO)
IT	Carmignano	Wine with a protected designation of origin (PDO)
IT	Carso	Wine with a protected designation of origin (PDO)
IT	Castel del Monte	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Castel San Lorenzo	Wine with a protected designation of origin (PDO)
IT	Casteller	Wine with a protected designation of origin (PDO)
IT	Castelli Romani	Wine with a protected designation of origin (PDO)
IT	Cellatica	Wine with a protected designation of origin (PDO)
IT	Cerasuolo di Vittoria	Wine with a protected designation of origin (PDO)
IT	Cerveteri	Wine with a protected designation of origin (PDO)
IT	Cesanese del Piglio *Equivalent term*: Piglio	Wine with a protected designation of origin (PDO)
IT	Cesanese di Affile *Equivalent term*: Affile	Wine with a protected designation of origin (PDO)
IT	Cesanese di Olevano Romano *Equivalent term*: Olevano Romano	Wine with a protected designation of origin (PDO)
IT	Chianti *whether or not followed by* Colli Aretini	Wine with a protected designation of origin (PDO)
IT	Chianti *whether or not followed by* Colli Fiorentini	Wine with a protected designation of origin (PDO)
IT	Chianti *whether or not followed by* Colli Senesi	Wine with a protected designation of origin (PDO)
IT	Chianti *whether or not followed by* Colline Pisane	Wine with a protected designation of origin (PDO)
IT	Chianti *whether or not followed by* Montalbano	Wine with a protected designation of origin (PDO)
IT	Chianti *whether or not followed by* Montespertoli	Wine with a protected designation of origin (PDO)
IT	Chianti *whether or not followed by* Rufina	Wine with a protected designation of origin (PDO)
IT	Chianti Classico	Wine with a protected designation of origin (PDO)
IT	Cilento	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Cinque Terre *whether or not followed by* Costa da Posa *Equivalent term*: Cinque Terre Sciacchetrà	Wine with a protected designation of origin (PDO)
IT	Cinque Terre *whether or not followed by* Costa de Campu *Equivalent term*: Cinque Terre Sciacchetrà	Wine with a protected designation of origin (PDO)
IT	Cinque Terre *whether or not followed by* Costa de Sera *Equivalent term*: Cinque Terre Sciacchetrà	Wine with a protected designation of origin (PDO)
IT	Circeo	Wine with a protected designation of origin (PDO)
IT	Cirò	Wine with a protected designation of origin (PDO)
IT	Cisterna d'Asti	Wine with a protected designation of origin (PDO)
IT	Colli Albani	Wine with a protected designation of origin (PDO)
IT	Colli Altotiberini	Wine with a protected designation of origin (PDO)
IT	Colli Amerini	Wine with a protected designation of origin (PDO)
IT	Colli Asolani — Prosecco *Equivalent term*: Asolo- Prosecco	Wine with a protected designation of origin (PDO)
IT	Colli Berici	Wine with a protected designation of origin (PDO)
IT	Colli Bolognesi *whether or not followed by* Colline di Oliveto	Wine with a protected designation of origin (PDO)
IT	Colli Bolognesi *whether or not followed by* Colline di Riosto	Wine with a protected designation of origin (PDO)
IT	Colli Bolognesi *whether or not followed by* Colline Marconiane	Wine with a protected designation of origin (PDO)
IT	Colli Bolognesi *whether or not followed by* Monte San Pietro	Wine with a protected designation of origin (PDO)
IT	Colli Bolognesi *whether or not followed by* Serravalle	Wine with a protected designation of origin (PDO)
IT	Colli Bolognesi *whether or not followed by* Terre di Montebudello	Wine with a protected designation of origin (PDO)
IT	Colli Bolognesi *whether or not followed by* Zola Predosa	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Colli Bolognesi *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
IT	Colli Bolognesi Classico — Pignoletto	Wine with a protected designation of origin (PDO)
IT	Colli d'Imola	Wine with a protected designation of origin (PDO)
IT	Colli del Trasimeno *Equivalent term*: Trasimeno	Wine with a protected designation of origin (PDO)
IT	Colli dell'Etruria Centrale	Wine with a protected designation of origin (PDO)
IT	Colli della Sabina	Wine with a protected designation of origin (PDO)
IT	Colli di Conegliano *whether or not followed by* Fregona	Wine with a protected designation of origin (PDO)
IT	Colli di Conegliano *whether or not followed by* Refrontolo	Wine with a protected designation of origin (PDO)
IT	Colli di Faenza	Wine with a protected designation of origin (PDO)
IT	Colli di Luni	Wine with a protected designation of origin (PDO)
IT	Colli di Parma	Wine with a protected designation of origin (PDO)
IT	Colli di Rimini	Wine with a protected designation of origin (PDO)
IT	Colli di Scandiano e di Canossa	Wine with a protected designation of origin (PDO)
IT	Colli Etruschi Viterbesi	Wine with a protected designation of origin (PDO)
IT	Colli Euganei	Wine with a protected designation of origin (PDO)
IT	Colli Lanuvini	Wine with a protected designation of origin (PDO)
IT	Colli Maceratesi	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Colli Martani	Wine with a protected designation of origin (PDO)
IT	Colli Orientali del Friuli *whether or not followed by* Cialla	Wine with a protected designation of origin (PDO)
IT	Colli Orientali del Friuli *whether or not followed by* Rosazzo	Wine with a protected designation of origin (PDO)
IT	Colli Orientali del Friuli *whether or not followed by* Schiopettino di Prepotto	Wine with a protected designation of origin (PDO)
IT	Colli Orientali del Friuli Picolit *whether or not followed by* Cialla	Wine with a protected designation of origin (PDO)
IT	Colli Perugini	Wine with a protected designation of origin (PDO)
IT	Colli Pesaresi *whether or not followed by* Focara	Wine with a protected designation of origin (PDO)
IT	Colli Pesaresi *whether or not followed by* Roncaglia	Wine with a protected designation of origin (PDO)
IT	Colli Piacentini *whether or not followed by* Gutturnio	Wine with a protected designation of origin (PDO)
IT	Colli Piacentini *whether or not followed by* Monterosso Val d'Arda	Wine with a protected designation of origin (PDO)
IT	Colli Piacentini *whether or not followed by* Val Trebbia	Wine with a protected designation of origin (PDO)
IT	Colli Piacentini *whether or not followed by* Valnure	Wine with a protected designation of origin (PDO)
IT	Colli Piacentini *whether or not followed by* Vigoleno	Wine with a protected designation of origin (PDO)
IT	Colli Romagna centrale	Wine with a protected designation of origin (PDO)
IT	Colli Tortonesi	Wine with a protected designation of origin (PDO)
IT	Collina Torinese	Wine with a protected designation of origin (PDO)
IT	Colline di Levanto	Wine with a protected designation of origin (PDO)
IT	Colline Joniche Tarantine	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Colline Lucchesi	Wine with a protected designation of origin (PDO)
IT	Colline Novaresi	Wine with a protected designation of origin (PDO)
IT	Colline Saluzzesi	Wine with a protected designation of origin (PDO)
IT	Collio Goriziano *Equivalent term*: Collio	Wine with a protected designation of origin (PDO)
IT	Conegliano — Valdobbiadene *whether or not followed by* Cartizze *Equivalent term*: Conegliano or Valdobbiadene	Wine with a protected designation of origin (PDO)
IT	Cònero	Wine with a protected designation of origin (PDO)
IT	Contea di Sclafani	Wine with a protected designation of origin (PDO)
IT	Contessa Entellina	Wine with a protected designation of origin (PDO)
IT	Controguerra	Wine with a protected designation of origin (PDO)
IT	Copertino	Wine with a protected designation of origin (PDO)
IT	Cori	Wine with a protected designation of origin (PDO)
IT	Cortese dell'Alto Monferrato	Wine with a protected designation of origin (PDO)
IT	Corti Benedettine del Padovano	Wine with a protected designation of origin (PDO)
IT	Cortona	Wine with a protected designation of origin (PDO)
IT	Costa d'Amalfi *whether or not followed by* Furore	Wine with a protected designation of origin (PDO)
IT	Costa d'Amalfi *whether or not followed by* Ravello	Wine with a protected designation of origin (PDO)
IT	Costa d'Amalfi *whether or not followed by* Tramonti	Wine with a protected designation of origin (PDO)
IT	Coste della Sesia	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Curtefranca	Wine with a protected designation of origin (PDO)
IT	Delia Nivolelli	Wine with a protected designation of origin (PDO)
IT	Dolcetto d'Acqui	Wine with a protected designation of origin (PDO)
IT	Dolcetto d'Alba	Wine with a protected designation of origin (PDO)
IT	Dolcetto d'Asti	Wine with a protected designation of origin (PDO)
IT	Dolcetto delle Langhe Monregalesi	Wine with a protected designation of origin (PDO)
IT	Dolcetto di Diano d'Alba *Equivalent term*: Diano d'Alba	Wine with a protected designation of origin (PDO)
IT	Dolcetto di Dogliani	Wine with a protected designation of origin (PDO)
IT	Dolcetto di Dogliani Superiore *Equivalent term*: Dogliani	Wine with a protected designation of origin (PDO)
IT	Dolcetto di Ovada *Equivalent term*: Dolcetto d'Ovada	Wine with a protected designation of origin (PDO)
IT	Dolcetto di Ovada Superiore or Ovada	Wine with a protected designation of origin (PDO)
IT	Donnici	Wine with a protected designation of origin (PDO)
IT	Elba	Wine with a protected designation of origin (PDO)
IT	Eloro *whether or not followed by* Pachino	Wine with a protected designation of origin (PDO)
IT	Erbaluce di Caluso *Equivalent term*: Caluso	Wine with a protected designation of origin (PDO)
IT	Erice	Wine with a protected designation of origin (PDO)
IT	Esino	Wine with a protected designation of origin (PDO)
IT	Est!Est!!Est!!! di Montefiascone	Wine with a protected designation of origin (PDO)
IT	Etna	Wine with a protected designation of origin (PDO)
IT	Falerio dei Colli Ascolani *Equivalent term*: Falerio	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Falerno del Massico	Wine with a protected designation of origin (PDO)
IT	Fara	Wine with a protected designation of origin (PDO)
IT	Faro	Wine with a protected designation of origin (PDO)
IT	Fiano di Avellino	Wine with a protected designation of origin (PDO)
IT	Franciacorta	Wine with a protected designation of origin (PDO)
IT	Frascati	Wine with a protected designation of origin (PDO)
IT	Freisa d'Asti	Wine with a protected designation of origin (PDO)
IT	Freisa di Chieri	Wine with a protected designation of origin (PDO)
IT	Friuli Annia	Wine with a protected designation of origin (PDO)
IT	Friuli Aquileia	Wine with a protected designation of origin (PDO)
IT	Friuli Grave	Wine with a protected designation of origin (PDO)
IT	Friuli Isonzo *Equivalent term*: Isonzo del Friuli	Wine with a protected designation of origin (PDO)
IT	Friuli Latisana	Wine with a protected designation of origin (PDO)
IT	Gabiano	Wine with a protected designation of origin (PDO)
IT	Galatina	Wine with a protected designation of origin (PDO)
IT	Galluccio	Wine with a protected designation of origin (PDO)
IT	Gambellara	Wine with a protected designation of origin (PDO)
IT	Garda	Wine with a protected designation of origin (PDO)
IT	Garda Colli Mantovani	Wine with a protected designation of origin (PDO)
IT	Gattinara	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Gavi *Equivalent term*: Cortese di Gavi	Wine with a protected designation of origin (PDO)
IT	Genazzano	Wine with a protected designation of origin (PDO)
IT	Ghemme	Wine with a protected designation of origin (PDO)
IT	Gioia del Colle	Wine with a protected designation of origin (PDO)
IT	Girò di Cagliari	Wine with a protected designation of origin (PDO)
IT	Golfo del Tigullio	Wine with a protected designation of origin (PDO)
IT	Gravina	Wine with a protected designation of origin (PDO)
IT	Greco di Bianco	Wine with a protected designation of origin (PDO)
IT	Greco di Tufo	Wine with a protected designation of origin (PDO)
IT	Grignolino d'Asti	Wine with a protected designation of origin (PDO)
IT	Grignolino del Monferrato Casalese	Wine with a protected designation of origin (PDO)
IT	Guardia Sanframondi *Equivalent term*: Guardiolo	Wine with a protected designation of origin (PDO)
IT	I Terreni di San Severino	Wine with a protected designation of origin (PDO)
IT	Irpinia *whether or not followed by* Campi Taurasini	Wine with a protected designation of origin (PDO)
IT	Ischia	Wine with a protected designation of origin (PDO)
IT	Lacrima di Morro *Equivalent term*: Lacrima di Morro d'Alba	Wine with a protected designation of origin (PDO)
IT	Lago di Caldaro *Equivalent term*: Caldaro/Kalterer/Kalterersee	Wine with a protected designation of origin (PDO)
IT	Lago di Corbara	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Lambrusco di Sorbara	Wine with a protected designation of origin (PDO)
IT	Lambrusco Grasparossa di Castelvetro	Wine with a protected designation of origin (PDO)
IT	Lambrusco Mantovano *whether or not followed by* Oltre Po Mantovano	Wine with a protected designation of origin (PDO)
IT	Lambrusco Mantovano *whether or not followed by* Viadanese-Sabbionetano	Wine with a protected designation of origin (PDO)
IT	Lambrusco Salamino di Santa Croce	Wine with a protected designation of origin (PDO)
IT	Lamezia	Wine with a protected designation of origin (PDO)
IT	Langhe	Wine with a protected designation of origin (PDO)
IT	Lessona	Wine with a protected designation of origin (PDO)
IT	Leverano	Wine with a protected designation of origin (PDO)
IT	Lison-Pramaggiore	Wine with a protected designation of origin (PDO)
IT	Lizzano	Wine with a protected designation of origin (PDO)
IT	Loazzolo	Wine with a protected designation of origin (PDO)
IT	Locorotondo	Wine with a protected designation of origin (PDO)
IT	Lugana	Wine with a protected designation of origin (PDO)
IT	Malvasia delle Lipari	Wine with a protected designation of origin (PDO)
IT	Malvasia di Bosa	Wine with a protected designation of origin (PDO)
IT	Malvasia di Cagliari	Wine with a protected designation of origin (PDO)
IT	Malvasia di Casorzo d'Asti *Equivalent term*: Cosorzo/Malvasia di Cosorzo	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Malvasia di Castelnuovo Don Bosco	Wine with a protected designation of origin (PDO)
IT	Mamertino di Milazzo *Equivalent term*: Mamertino	Wine with a protected designation of origin (PDO)
IT	Mandrolisai	Wine with a protected designation of origin (PDO)
IT	Marino	Wine with a protected designation of origin (PDO)
IT	Marsala	Wine with a protected designation of origin (PDO)
IT	Martina *Equivalent term*: Martina Franca	Wine with a protected designation of origin (PDO)
IT	Matino	Wine with a protected designation of origin (PDO)
IT	Melissa	Wine with a protected designation of origin (PDO)
IT	Menfi *whether or not followed by* Bonera	Wine with a protected designation of origin (PDO)
IT	Menfi *whether or not followed by* Feudo dei Fiori	Wine with a protected designation of origin (PDO)
IT	Merlara	Wine with a protected designation of origin (PDO)
IT	Molise *Equivalent term*: del Molise	Wine with a protected designation of origin (PDO)
IT	Monferrato *whether or not followed by* Casalese	Wine with a protected designation of origin (PDO)
IT	Monica di Cagliari	Wine with a protected designation of origin (PDO)
IT	Monica di Sardegna	Wine with a protected designation of origin (PDO)
IT	Monreale	Wine with a protected designation of origin (PDO)
IT	Montecarlo	Wine with a protected designation of origin (PDO)
IT	Montecompatri-Colonna *Equivalent term*: Montecompatri/Colonna	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Montecucco	Wine with a protected designation of origin (PDO)
IT	Montefalco	Wine with a protected designation of origin (PDO)
IT	Montefalco Sagrantino	Wine with a protected designation of origin (PDO)
IT	Montello e Colli Asolani	Wine with a protected designation of origin (PDO)
IT	Montepulciano d'Abruzzo *whether or not accompanied by* Casauria/Terre di Casauria	Wine with a protected designation of origin (PDO)
IT	Montepulciano d'Abruzzo *whether or not accompanied by* Terre dei Vestini	Wine with a protected designation of origin (PDO)
IT	Montepulciano d'Abruzzo *whether or not followed by* Colline Teramane	Wine with a protected designation of origin (PDO)
IT	Monteregio di Massa Marittima	Wine with a protected designation of origin (PDO)
IT	Montescudaio	Wine with a protected designation of origin (PDO)
IT	Monti Lessini *Equivalent term*: Lessini	Wine with a protected designation of origin (PDO)
IT	Morellino di Scansano	Wine with a protected designation of origin (PDO)
IT	Moscadello di Montalcino	Wine with a protected designation of origin (PDO)
IT	Moscato di Cagliari	Wine with a protected designation of origin (PDO)
IT	Moscato di Pantelleria *Equivalent term*: Passito di Pantelleria/Pantelleria	Wine with a protected designation of origin (PDO)
IT	Moscato di Sardegna *whether or not followed by* Gallura	Wine with a protected designation of origin (PDO)
IT	Moscato di Sardegna *whether or not followed by* Tempio Pausania	Wine with a protected designation of origin (PDO)
IT	Moscato di Sardegna *whether or not followed by* Tempo	Wine with a protected designation of origin (PDO)
IT	Moscato di Siracusa	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Moscato di Sorso-Sennori *Equivalent term*: Moscato di Sorso/Moscato di Sennori	Wine with a protected designation of origin (PDO)
IT	Moscato di Trani	Wine with a protected designation of origin (PDO)
IT	Nardò	Wine with a protected designation of origin (PDO)
IT	Nasco di Cagliari	Wine with a protected designation of origin (PDO)
IT	Nebbiolo d'Alba	Wine with a protected designation of origin (PDO)
IT	Nettuno	Wine with a protected designation of origin (PDO)
IT	Noto	Wine with a protected designation of origin (PDO)
IT	Nuragus di Cagliari	Wine with a protected designation of origin (PDO)
IT	Offida	Wine with a protected designation of origin (PDO)
IT	Oltrepò Pavese	Wine with a protected designation of origin (PDO)
IT	Orcia	Wine with a protected designation of origin (PDO)
IT	Orta Nova	Wine with a protected designation of origin (PDO)
IT	Orvieto	Wine with a protected designation of origin (PDO)
IT	Ostuni	Wine with a protected designation of origin (PDO)
IT	Pagadebit di Romagna *whether or not followed by* Bertinoro	Wine with a protected designation of origin (PDO)
IT	Parrina	Wine with a protected designation of origin (PDO)
IT	Penisola Sorrentina *whether or not followed by* Gragnano	Wine with a protected designation of origin (PDO)
IT	Penisola Sorrentina *whether or not followed by* Lettere	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Penisola Sorrentina *whether or not followed by* Sorrento	Wine with a protected designation of origin (PDO)
IT	Pentro di Isernia *Equivalent term*: Pentro	Wine with a protected designation of origin (PDO)
IT	Pergola	Wine with a protected designation of origin (PDO)
IT	Piemonte	Wine with a protected designation of origin (PDO)
IT	Pietraviva	Wine with a protected designation of origin (PDO)
IT	Pinerolese	Wine with a protected designation of origin (PDO)
IT	Pollino	Wine with a protected designation of origin (PDO)
IT	Pomino	Wine with a protected designation of origin (PDO)
IT	Pornassio *Equivalent term*: Ormeasco di Pornassio	Wine with a protected designation of origin (PDO)
IT	Primitivo di Manduria	Wine with a protected designation of origin (PDO)
IT	Prosecco	Wine with a protected designation of origin (PDO)
IT	Ramandolo	Wine with a protected designation of origin (PDO)
IT	Recioto di Gambellara	Wine with a protected designation of origin (PDO)
IT	Recioto di Soave	Wine with a protected designation of origin (PDO)
IT	Reggiano	Wine with a protected designation of origin (PDO)
IT	Reno	Wine with a protected designation of origin (PDO)
IT	Riesi	Wine with a protected designation of origin (PDO)
IT	Riviera del Brenta	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Riviera del Garda Bresciano *Equivalent term*: Garda Bresciano	Wine with a protected designation of origin (PDO)
IT	Riviera ligure di ponente *whether or not followed by* Albenga/Albengalese	Wine with a protected designation of origin (PDO)
IT	Riviera ligure di ponente *whether or not followed by* Finale/Finalese	Wine with a protected designation of origin (PDO)
IT	Riviera ligure di ponente *whether or not followed by* Riviera dei Fiori	Wine with a protected designation of origin (PDO)
IT	Roero	Wine with a protected designation of origin (PDO)
IT	Romagna Albana spumante	Wine with a protected designation of origin (PDO)
IT	Rossese di Dolceacqua *Equivalent term*: Dolceacqua	Wine with a protected designation of origin (PDO)
IT	Rosso Barletta	Wine with a protected designation of origin (PDO)
IT	Rosso Canosa *whether or not followed by* Canusium	Wine with a protected designation of origin (PDO)
IT	Rosso Conero	Wine with a protected designation of origin (PDO)
IT	Rosso di Cerignola	Wine with a protected designation of origin (PDO)
IT	Rosso di Montalcino	Wine with a protected designation of origin (PDO)
IT	Rosso di Montepulciano	Wine with a protected designation of origin (PDO)
IT	Rosso Orvietano *Equivalent term*: Orvietano Rosso	Wine with a protected designation of origin (PDO)
IT	Rosso Piceno	Wine with a protected designation of origin (PDO)
IT	Rubino di Cantavenna	Wine with a protected designation of origin (PDO)
IT	Ruchè di Castagnole Monferrato	Wine with a protected designation of origin (PDO)
IT	Salaparuta	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Salice Salentino	Wine with a protected designation of origin (PDO)
IT	Sambuca di Sicilia	Wine with a protected designation of origin (PDO)
IT	San Colombano al Lambro *Equivalent term*: San Colombano	Wine with a protected designation of origin (PDO)
IT	San Gimignano	Wine with a protected designation of origin (PDO)
IT	San Ginesio	Wine with a protected designation of origin (PDO)
IT	San Martino della Battaglia	Wine with a protected designation of origin (PDO)
IT	San Severo	Wine with a protected designation of origin (PDO)
IT	San Vito di Luzzi	Wine with a protected designation of origin (PDO)
IT	Sangiovese di Romagna	Wine with a protected designation of origin (PDO)
IT	Sannio	Wine with a protected designation of origin (PDO)
IT	Sant'Agata dei Goti *Equivalent term*: Sant'Agata dei Goti	Wine with a protected designation of origin (PDO)
IT	Sant'Anna di Isola Capo Rizzuto	Wine with a protected designation of origin (PDO)
IT	Sant'Antimo	Wine with a protected designation of origin (PDO)
IT	Santa Margherita di Belice	Wine with a protected designation of origin (PDO)
IT	Sardegna Semidano *whether or not followed by* Mogoro	Wine with a protected designation of origin (PDO)
IT	Savuto	Wine with a protected designation of origin (PDO)
IT	Scanzo *Equivalent term*: Moscato di Scanzo	Wine with a protected designation of origin (PDO)
IT	Scavigna	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Sciacca	Wine with a protected designation of origin (PDO)
IT	Serrapetrona	Wine with a protected designation of origin (PDO)
IT	Sforzato di Valtellina *Equivalent term*: Sfursat di Valtellina	Wine with a protected designation of origin (PDO)
IT	Sizzano	Wine with a protected designation of origin (PDO)
IT	Soave *whether or not followed by* Colli Scaligeri	Wine with a protected designation of origin (PDO)
IT	Soave Superiore	Wine with a protected designation of origin (PDO)
IT	Solopaca	Wine with a protected designation of origin (PDO)
IT	Sovana	Wine with a protected designation of origin (PDO)
IT	Squinzano	Wine with a protected designation of origin (PDO)
IT	Strevi	Wine with a protected designation of origin (PDO)
IT	Tarquinia	Wine with a protected designation of origin (PDO)
IT	Taurasi	Wine with a protected designation of origin (PDO)
IT	Teroldego Rotaliano	Wine with a protected designation of origin (PDO)
IT	Terracina *Equivalent term*: Moscato di Terracina	Wine with a protected designation of origin (PDO)
IT	Terratico di Bibbona *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
IT	Terre dell'Alta Val d'Agri	Wine with a protected designation of origin (PDO)
IT	Terre di Casole	Wine with a protected designation of origin (PDO)
IT	Terre Tollesi *Equivalent term*: Tullum	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Torgiano	Wine with a protected designation of origin (PDO)
IT	Torgiano rosso riserva	Wine with a protected designation of origin (PDO)
IT	Trebbiano d'Abruzzo	Wine with a protected designation of origin (PDO)
IT	Trebbiano di Romagna	Wine with a protected designation of origin (PDO)
IT	Trentino *whether or not followed by* Isera/d'Isera	Wine with a protected designation of origin (PDO)
IT	Trentino *whether or not followed by* Sorni	Wine with a protected designation of origin (PDO)
IT	Trentino *whether or not followed by* Ziresi/dei Ziresi	Wine with a protected designation of origin (PDO)
IT	Trento	Wine with a protected designation of origin (PDO)
IT	Val d'Arbia	Wine with a protected designation of origin (PDO)
IT	Val di Cornia *whether or not followed by* Suvereto	Wine with a protected designation of origin (PDO)
IT	Val Polcèvera *whether or not followed by* Coronata	Wine with a protected designation of origin (PDO)
IT	Valcalepio	Wine with a protected designation of origin (PDO)
IT	Valdadige *whether or not followed by* Terra dei Forti *Equivalent term*: Etschtaler	Wine with a protected designation of origin (PDO)
IT	Valdadige Terradeiforti *Equivalent term*: Terradeiforti Valdadige	Wine with a protected designation of origin (PDO)
IT	Valdichiana	Wine with a protected designation of origin (PDO)
IT	Valle d'Aosta *whether or not followed by* Arnad-Montjovet *Equivalent term*: Vallée d'Aoste	Wine with a protected designation of origin (PDO)
IT	Valle d'Aosta *whether or not followed by* Blanc de Morgex et de la Salle *Equivalent term*: Vallée d'Aoste	Wine with a protected designation of origin (PDO)
IT	Valle d'Aosta *whether or not followed by* Chambave *Equivalent term*: Vallée d'Aoste	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Valle d'Aosta *whether or not followed by* Donnas *Equivalent term*: Vallée d'Aoste	Wine with a protected designation of origin (PDO)
IT	Valle d'Aosta *whether or not followed by* Enfer d'Arvier *Equivalent term*: Vallée d'Aoste	Wine with a protected designation of origin (PDO)
IT	Valle d'Aosta *whether or not followed by* Nus *Equivalent term*: Vallée d'Aoste	Wine with a protected designation of origin (PDO)
IT	Valle d'Aosta *whether or not followed by* Torrette *Equivalent term*: Vallée d'Aoste	Wine with a protected designation of origin (PDO)
IT	Valpolicella *whether or not accompanied by* Valpantena	Wine with a protected designation of origin (PDO)
IT	Valsusa	Wine with a protected designation of origin (PDO)
IT	Valtellina Superiore *whether or not followed by* Grumello	Wine with a protected designation of origin (PDO)
IT	Valtellina Superiore *whether or not followed by* Inferno	Wine with a protected designation of origin (PDO)
IT	Valtellina Superiore *whether or not followed by* Maroggia	Wine with a protected designation of origin (PDO)
IT	Valtellina Superiore *whether or not followed by* Sassella	Wine with a protected designation of origin (PDO)
IT	Valtellina Superiore *whether or not followed by* Valgella	Wine with a protected designation of origin (PDO)
IT	Velletri	Wine with a protected designation of origin (PDO)
IT	Verbicaro	Wine with a protected designation of origin (PDO)
IT	Verdicchio dei Castelli di Jesi	Wine with a protected designation of origin (PDO)
IT	Verdicchio di Matelica	Wine with a protected designation of origin (PDO)
IT	Verduno Pelaverga *Equivalent term*: Verduno	Wine with a protected designation of origin (PDO)
IT	Vermentino di Gallura	Wine with a protected designation of origin (PDO)
IT	Vermentino di Sardegna	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
IT	Vernaccia di Oristano	Wine with a protected designation of origin (PDO)
IT	Vernaccia di San Gimignano	Wine with a protected designation of origin (PDO)
IT	Vernaccia di Serrapetrona	Wine with a protected designation of origin (PDO)
IT	Vesuvio	Wine with a protected designation of origin (PDO)
IT	Vicenza	Wine with a protected designation of origin (PDO)
IT	Vignanello	Wine with a protected designation of origin (PDO)
IT	Vin Santo del Chianti	Wine with a protected designation of origin (PDO)
IT	Vin Santo del Chianti Classico	Wine with a protected designation of origin (PDO)
IT	Vin Santo di Montepulciano	Wine with a protected designation of origin (PDO)
IT	Vini del Piave *Equivalent term*: Piave	Wine with a protected designation of origin (PDO)
IT	Vino Nobile di Montepulciano	Wine with a protected designation of origin (PDO)
IT	Vittoria	Wine with a protected designation of origin (PDO)
IT	Zagarolo	Wine with a protected designation of origin (PDO)
IT	Allerona	Wine with a protected geographical indication (PGI)
IT	Alta Valle della Greve	Wine with a protected geographical indication (PGI)
IT	Alto Livenza	Wine with a protected geographical indication (PGI)
IT	Alto Mincio	Wine with a protected geographical indication (PGI)
IT	Alto Tirino	Wine with a protected geographical indication (PGI)
IT	Arghillà	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
IT	Barbagia	Wine with a protected geographical indication (PGI)
IT	Basilicata	Wine with a protected geographical indication (PGI)
IT	Benaco bresciano	Wine with a protected geographical indication (PGI)
IT	Beneventano	Wine with a protected geographical indication (PGI)
IT	Bergamasca	Wine with a protected geographical indication (PGI)
IT	Bettona	Wine with a protected geographical indication (PGI)
IT	Bianco del Sillaro *Equivalent term*: Sillaro	Wine with a protected geographical indication (PGI)
IT	Bianco di Castelfranco Emilia	Wine with a protected geographical indication (PGI)
IT	Calabria	Wine with a protected geographical indication (PGI)
IT	Camarro	Wine with a protected geographical indication (PGI)
IT	Campania	Wine with a protected geographical indication (PGI)
IT	Cannara	Wine with a protected geographical indication (PGI)
IT	Civitella d'Agliano	Wine with a protected geographical indication (PGI)
IT	Colli Aprutini	Wine with a protected geographical indication (PGI)
IT	Colli Cimini	Wine with a protected geographical indication (PGI)
IT	Colli del Limbara	Wine with a protected geographical indication (PGI)
IT	Colli del Sangro	Wine with a protected geographical indication (PGI)
IT	Colli della Toscana centrale	Wine with a protected geographical indication (PGI)
IT	Colli di Salerno	Wine with a protected geographical indication (PGI)
IT	Colli Trevigiani	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
IT	Collina del Milanese	Wine with a protected geographical indication (PGI)
IT	Colline di Genovesato	Wine with a protected geographical indication (PGI)
IT	Colline Frentane	Wine with a protected geographical indication (PGI)
IT	Colline Pescaresi	Wine with a protected geographical indication (PGI)
IT	Colline Savonesi	Wine with a protected geographical indication (PGI)
IT	Colline Teatine	Wine with a protected geographical indication (PGI)
IT	Condoleo	Wine with a protected geographical indication (PGI)
IT	Conselvano	Wine with a protected geographical indication (PGI)
IT	Costa Viola	Wine with a protected geographical indication (PGI)
IT	Daunia	Wine with a protected geographical indication (PGI)
IT	Del Vastese *Equivalent term*: Histonium	Wine with a protected geographical indication (PGI)
IT	Delle Venezie	Wine with a protected geographical indication (PGI)
IT	Dugenta	Wine with a protected geographical indication (PGI)
IT	Emilia *Equivalent term*: Dell'Emilia	Wine with a protected geographical indication (PGI)
IT	Epomeo	Wine with a protected geographical indication (PGI)
IT	Esaro	Wine with a protected geographical indication (PGI)
IT	Fontanarossa di Cerda	Wine with a protected geographical indication (PGI)
IT	Forlì	Wine with a protected geographical indication (PGI)
IT	Fortana del Taro	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
IT	Frusinate *Equivalent term*: del Frusinate	Wine with a protected geographical indication (PGI)
IT	Golfo dei Poeti La Spezia *Equivalent term*: Golfo dei Poeti	Wine with a protected geographical indication (PGI)
IT	Grottino di Roccanova	Wine with a protected geographical indication (PGI)
IT	Isola dei Nuraghi	Wine with a protected geographical indication (PGI)
IT	Lazio	Wine with a protected geographical indication (PGI)
IT	Lipuda	Wine with a protected geographical indication (PGI)
IT	Locride	Wine with a protected geographical indication (PGI)
IT	Marca Trevigiana	Wine with a protected geographical indication (PGI)
IT	Marche	Wine with a protected geographical indication (PGI)
IT	Maremma Toscana	Wine with a protected geographical indication (PGI)
IT	Marmilla	Wine with a protected geographical indication (PGI)
IT	Mitterberg tra Cauria e Tel. *Equivalent term*: Mitterberg/Mitterberg zwischen Gfrill und Toll	Wine with a protected geographical indication (PGI)
IT	Modena *Equivalent term*: Provincia di Modena/di Modena	Wine with a protected geographical indication (PGI)
IT	Montecastelli	Wine with a protected geographical indication (PGI)
IT	Montenetto di Brescia	Wine with a protected geographical indication (PGI)
IT	Murgia	Wine with a protected geographical indication (PGI)
IT	Narni	Wine with a protected geographical indication (PGI)
IT	Nurra	Wine with a protected geographical indication (PGI)
IT	Ogliastra	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
IT	Osco *Equivalent term*: Terre degli Osci	Wine with a protected geographical indication (PGI)
IT	Paestum	Wine with a protected geographical indication (PGI)
IT	Palizzi	Wine with a protected geographical indication (PGI)
IT	Parteolla	Wine with a protected geographical indication (PGI)
IT	Pellaro	Wine with a protected geographical indication (PGI)
IT	Planargia	Wine with a protected geographical indication (PGI)
IT	Pompeiano	Wine with a protected geographical indication (PGI)
IT	Provincia di Mantova	Wine with a protected geographical indication (PGI)
IT	Provincia di Nuoro	Wine with a protected geographical indication (PGI)
IT	Provincia di Pavia	Wine with a protected geographical indication (PGI)
IT	Provincia di Verona *Equivalent term*: Veronese	Wine with a protected geographical indication (PGI)
IT	Puglia	Wine with a protected geographical indication (PGI)
IT	Quistello	Wine with a protected geographical indication (PGI)
IT	Ravenna	Wine with a protected geographical indication (PGI)
IT	Roccamonfina	Wine with a protected geographical indication (PGI)
IT	Romangia	Wine with a protected geographical indication (PGI)
IT	Ronchi di Brescia	Wine with a protected geographical indication (PGI)
IT	Ronchi Varesini	Wine with a protected geographical indication (PGI)
IT	Rotae	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
IT	Rubicone	Wine with a protected geographical indication (PGI)
IT	Sabbioneta	Wine with a protected geographical indication (PGI)
IT	Salemi	Wine with a protected geographical indication (PGI)
IT	Salento	Wine with a protected geographical indication (PGI)
IT	Salina	Wine with a protected geographical indication (PGI)
IT	Scilla	Wine with a protected geographical indication (PGI)
IT	Sebino	Wine with a protected geographical indication (PGI)
IT	Sibiola	Wine with a protected geographical indication (PGI)
IT	Sicilia	Wine with a protected geographical indication (PGI)
IT	Spello	Wine with a protected geographical indication (PGI)
IT	Tarantino	Wine with a protected geographical indication (PGI)
IT	Terrazze Retiche di Sondrio	Wine with a protected geographical indication (PGI)
IT	Terre Aquilane *Equivalent term*: Terre dell'Aquila	Wine with a protected geographical indication (PGI)
IT	Terre del Volturno	Wine with a protected geographical indication (PGI)
IT	Terre di Chieti	Wine with a protected geographical indication (PGI)
IT	Terre di Veleja	Wine with a protected geographical indication (PGI)
IT	Terre Lariane	Wine with a protected geographical indication (PGI)
IT	Tharros	Wine with a protected geographical indication (PGI)
IT	Toscano *Equivalent term*: Toscana	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
IT	Trexenta	Wine with a protected geographical indication (PGI)
IT	Umbria	Wine with a protected geographical indication (PGI)
IT	Val di Magra	Wine with a protected geographical indication (PGI)
IT	Val di Neto	Wine with a protected geographical indication (PGI)
IT	Val Tidone	Wine with a protected geographical indication (PGI)
IT	Valcamonica	Wine with a protected geographical indication (PGI)
IT	Valdamato	Wine with a protected geographical indication (PGI)
IT	Vallagarina	Wine with a protected geographical indication (PGI)
IT	Valle Belice	Wine with a protected geographical indication (PGI)
IT	Valle d'Itria	Wine with a protected geographical indication (PGI)
IT	Valle del Crati	Wine with a protected geographical indication (PGI)
IT	Valle del Tirso	Wine with a protected geographical indication (PGI)
IT	Valle Peligna	Wine with a protected geographical indication (PGI)
IT	Valli di Porto Pino	Wine with a protected geographical indication (PGI)
IT	Veneto	Wine with a protected geographical indication (PGI)
IT	Veneto Orientale	Wine with a protected geographical indication (PGI)
IT	Venezia Giulia	Wine with a protected geographical indication (PGI)
IT	Vigneti delle Dolomiti *Equivalent term*: Weinberg Dolomiten	Wine with a protected geographical indication (PGI)
CY	Βουνί Παναγιάς — Αμπελίτη *Equivalent term*: Vouni Panayia — Ampelitis	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
CY	Κουμανδαρία *Equivalent term*: Commandaria	Wine with a protected designation of origin (PDO)
CY	Κρασοχώρια Λεμεσού *whether or not followed by* Αφάμης *Equivalent term*: Krasohoria Lemesou — Afames	Wine with a protected designation of origin (PDO)
CY	Κρασοχώρια Λεμεσού *whether or not followed by* Λαόνα *Equivalent term*: Krasohoria Lemesou — Laona	Wine with a protected designation of origin (PDO)
CY	Λαόνα Ακάμα *Equivalent term*: Laona Akama	Wine with a protected designation of origin (PDO)
CY	Πιτσιλιά *Equivalent term*: Pitsilia	Wine with a protected designation of origin (PDO)
CY	Λάρνακα *Equivalent term*: Larnaka	Wine with a protected geographical indication (PGI)
CY	Λεμεσός *Equivalent term*: Lemesos	Wine with a protected geographical indication (PGI)
CY	Λευκωσία *Equivalent term*: Lefkosia	Wine with a protected geographical indication (PGI)
CY	Πάφος *Equivalent term*: Pafos	Wine with a protected geographical indication (PGI)
LU	Crémant du Luxembourg	Wine with a protected designation of origin (PDO)
LU	Moselle luxembourgeoise *followed by* Ahn/Assel/Bech-Kleinmacher/Born/Bous/Bumerange/Canach/Ehnen/Ellingen/Elvange/Erpeldingen/Gostingen/Greveldingen/Grevenmacher *followed by* Appellation contrôlée	Wine with a protected designation of origin (PDO)
LU	Moselle luxembourgeoise *followed by* Lenningen/Machtum/Mechtert/Moersdorf/Mondorf/Niederdonven/Oberdonven/Oberwormelding/Remich/Rolling/Rosport/Stadtbredimus *followed by* Appellation contrôlée	Wine with a protected designation of origin (PDO)
LU	Moselle luxembourgeoise *followed by* Remerschen/Remich/Schengen/Schwebsingen/Stadtbredimus/Trintingen/Wasserbilig/Wellenstein/Wintringen or Wormeldingen *followed by* Appellation contrôlée	Wine with a protected designation of origin (PDO)
LU	Moselle luxembourgeoise *followed by the name of the vine variety followed by* Appellation contrôlée	Wine with a protected designation of origin (PDO)
HU	Ászár-Neszmélyi borvidék *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
HU	Badacsonyi *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Balaton	Wine with a protected designation of origin (PDO)
HU	Balaton-felvidéki *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Balatonboglári *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Balatonfüred-Csopaki borvidék *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Balatoni	Wine with a protected designation of origin (PDO)
HU	Bükk *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Csongrád *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Debrői Hárslevelű	Wine with a protected designation of origin (PDO)
HU	Duna	Wine with a protected designation of origin (PDO)
HU	Egri Bikavér	Wine with a protected designation of origin (PDO)
HU	Egri Bikavér Superior	Wine with a protected designation of origin (PDO)
HU	Egr *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Etyek-Buda *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Hajós-Baja *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Izsáki Arany Sárfehér	Wine with a protected designation of origin (PDO)
HU	Kunság *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
HU	Mátra *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Mór *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Nagy-Somló *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Pannonhalma *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Pécs *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Somlói	Wine with a protected designation of origin (PDO)
HU	Somlói Arany	Wine with a protected designation of origin (PDO)
HU	Somlói Nászéjszakák Bora	Wine with a protected designation of origin (PDO)
HU	Sopron *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Szekszárd *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Tokaj *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Tolna *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Villány *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Villányi védett eredetű classicus	Wine with a protected designation of origin (PDO)
HU	Zala *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Egerszóláti Olaszrizling	Wine with a protected designation of origin (PDO)
HU	Káli	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
HU	Neszmély *whether or not followed by the name of the sub-region, the municipality or the site*	Wine with a protected designation of origin (PDO)
HU	Pannon	Wine with a protected designation of origin (PDO)
HU	Tihany	Wine with a protected designation of origin (PDO)
HU	Alföldi *whether or not followed by the name of a smaller geographical unit*	Wine with a protected geographical indication (PGI)
HU	Balatonmelléki *whether or not followed by the name of a smaller geographical unit*	Wine with a protected geographical indication (PGI)
HU	Dél-alföldi	Wine with a protected geographical indication (PGI)
HU	Dél-dunántúli	Wine with a protected geographical indication (PGI)
HU	Duna melléki	Wine with a protected geographical indication (PGI)
HU	Duna-Tisza közi	Wine with a protected geographical indication (PGI)
HU	Dunántúli	Wine with a protected geographical indication (PGI)
HU	Észak-dunántúli	Wine with a protected geographical indication (PGI)
HU	Felső-magyarországi	Wine with a protected geographical indication (PGI)
HU	Nyugat-dunántúli	Wine with a protected geographical indication (PGI)
HU	Tisza melléki	Wine with a protected geographical indication (PGI)
HU	Tisza völgyi	Wine with a protected geographical indication (PGI)
HU	Zempléni	Wine with a protected geographical indication (PGI)
MT	Gozo	Wine with a protected designation of origin (PDO)
MT	Malta	Wine with a protected designation of origin (PDO)
MT	Maltese Islands	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
NL	Drenthe	Wine with a protected geographical indication (PGI)
NL	Flevoland	Wine with a protected geographical indication (PGI)
NL	Friesland	Wine with a protected geographical indication (PGI)
NL	Gelderland	Wine with a protected geographical indication (PGI)
NL	Groningen	Wine with a protected geographical indication (PGI)
NL	Limburg	Wine with a protected geographical indication (PGI)
NL	Noord Brabant	Wine with a protected geographical indication (PGI)
NL	Noord Holland	Wine with a protected geographical indication (PGI)
NL	Overijssel	Wine with a protected geographical indication (PGI)
NL	Utrecht	Wine with a protected geographical indication (PGI)
NL	Zeeland	Wine with a protected geographical indication (PGI)
NL	Zuid Holland	Wine with a protected geographical indication (PGI)
AT	Burgenland *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Carnuntum *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Donauland *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Kamptal *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Kärnten *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Kremstal *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Leithaberg *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
AT	Mittelburgenland *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Neusiedlersee *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Neusiedlersee-Hügelland *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Niederösterreich *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Oberösterreich *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Salzburg *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Steiermark *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Süd-Oststeiermark *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Südburgenland *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Südsteiermark *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Thermenregion *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Tirol *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Traisental *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Vorarlberg *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Wachau *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Wagram *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Weinviertel *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
AT	Weststeiermark *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Wien *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
AT	Bergland	Wine with a protected geographical indication (PGI)
AT	Steierland	Wine with a protected geographical indication (PGI)
AT	Weinland	Wine with a protected geographical indication (PGI)
AT	Wien	Wine with a protected geographical indication (PGI)
PT	Alenquer	Wine with a protected designation of origin (PDO)
PT	Alentejo *whether or not followed by* Borba	Wine with a protected designation of origin (PDO)
PT	Alentejo *whether or not followed by* Évora	Wine with a protected designation of origin (PDO)
PT	Alentejo *whether or not followed by* Granja-Amareleja	Wine with a protected designation of origin (PDO)
PT	Alentejo *whether or not followed by* Moura	Wine with a protected designation of origin (PDO)
PT	Alentejo *whether or not followed by* Portalegre	Wine with a protected designation of origin (PDO)
PT	Alentejo *whether or not followed by* Redondo	Wine with a protected designation of origin (PDO)
PT	Alentejo *whether or not followed by* Reguengos	Wine with a protected designation of origin (PDO)
PT	Alentejo *whether or not followed by* Vidigueira	Wine with a protected designation of origin (PDO)
PT	Arruda	Wine with a protected designation of origin (PDO)
PT	Bairrada	Wine with a protected designation of origin (PDO)
PT	Beira Interior *whether or not followed by* Castelo Rodrigo	Wine with a protected designation of origin (PDO)
PT	Beira Interior *whether or not followed by* Cova da Beira	Wine with a protected designation of origin (PDO)
PT	Beira Interior *whether or not followed by* Pinhel	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
PT	Biscoitos	Wine with a protected designation of origin (PDO)
PT	Bucelas	Wine with a protected designation of origin (PDO)
PT	Carcavelos	Wine with a protected designation of origin (PDO)
PT	Colares	Wine with a protected designation of origin (PDO)
PT	Dão *whether or not followed by* Alva	Wine with a protected designation of origin (PDO)
PT	Dão *whether or not followed by* Besteiros	Wine with a protected designation of origin (PDO)
PT	Dão *whether or not followed by* Castendo	Wine with a protected designation of origin (PDO)
PT	Dão *whether or not followed by* Serra da Estrela	Wine with a protected designation of origin (PDO)
PT	Dão *whether or not followed by* Silgueiros	Wine with a protected designation of origin (PDO)
PT	Dão *whether or not followed by* Terras de Azurara	Wine with a protected designation of origin (PDO)
PT	Dão *whether or not followed by* Terras de Senhorim	Wine with a protected designation of origin (PDO)
PT	Dão Nobre	Wine with a protected designation of origin (PDO)
PT	Douro *whether or not followed by* Baixo Corgo *Equivalent term*: Vinho do Douro	Wine with a protected designation of origin (PDO)
PT	Douro *whether or not followed by* Cima Corgo *Equivalent term*: Vinho do Douro	Wine with a protected designation of origin (PDO)
PT	Douro *whether or not followed by* Douro Superior *Equivalent term*: Vinho do Douro	Wine with a protected designation of origin (PDO)
PT	Encostas d'Aire *whether or not followed by* Alcobaça	Wine with a protected designation of origin (PDO)
PT	Encostas d'Aire *whether or not followed by* Ourém	Wine with a protected designation of origin (PDO)
PT	Graciosa	Wine with a protected designation of origin (PDO)
PT	Lafões	Wine with a protected designation of origin (PDO)
PT	Lagoa	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
PT	Lagos	Wine with a protected designation of origin (PDO)
PT	Madeirense	Wine with a protected designation of origin (PDO)
PT	Madeira *Equivalent term*: Madera/Vinho da Madeira/Madeira Weine/Madeira Wine/Vin de Madère/Vino di Madera/Madeira Wijn	Wine with a protected designation of origin (PDO)
PT	Moscatel de Setúbal	Wine with a protected designation of origin (PDO)
PT	Moscatel do Douro	Wine with a protected designation of origin (PDO)
PT	Óbidos	Wine with a protected designation of origin (PDO)
PT	Porto *Equivalent term*: Oporto/Vinho do Porto/Vin de Porto/Port/Port Wine/Portwein/Portvin/Portwijn	Wine with a protected designation of origin (PDO)
PT	Palmela	Wine with a protected designation of origin (PDO)
PT	Pico	Wine with a protected designation of origin (PDO)
PT	Portimão	Wine with a protected designation of origin (PDO)
PT	Ribatejo *whether or not followed by* Almeirim	Wine with a protected designation of origin (PDO)
PT	Ribatejo *whether or not followed by* Cartaxo	Wine with a protected designation of origin (PDO)
PT	Ribatejo *whether or not followed by* Chamusca	Wine with a protected designation of origin (PDO)
PT	Ribatejo *whether or not followed by* Coruche	Wine with a protected designation of origin (PDO)
PT	Ribatejo *whether or not followed by* Santarém	Wine with a protected designation of origin (PDO)
PT	Ribatejo *whether or not followed by* Tomar	Wine with a protected designation of origin (PDO)
PT	Setúbal	Wine with a protected designation of origin (PDO)
PT	Setúbal Roxo	Wine with a protected designation of origin (PDO)
PT	Tavira	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
PT	Távora-Varosa	Wine with a protected designation of origin (PDO)
PT	Torres Vedras	Wine with a protected designation of origin (PDO)
PT	Trás-os-Montes *whether or not followed by* Chaves	Wine with a protected designation of origin (PDO)
PT	Trás-os-Montes *whether or not followed by* Planalto Mirandês	Wine with a protected designation of origin (PDO)
PT	Trás-os-Montes *whether or not followed by* Valpaços	Wine with a protected designation of origin (PDO)
PT	Vinho do Douro *whether or not followed by* Baixo Corgo *Equivalent term*: Douro	Wine with a protected designation of origin (PDO)
PT	Vinho do Douro *whether or not followed by* Cima Corgo *Equivalent term*: Douro	Wine with a protected designation of origin (PDO)
PT	Vinho do Douro *whether or not followed by* Douro Superior *Equivalent term*: Douro	Wine with a protected designation of origin (PDO)
PT	Vinho Verde *whether or not followed by* Amarante	Wine with a protected designation of origin (PDO)
PT	Vinho Verde *whether or not followed by* Ave	Wine with a protected designation of origin (PDO)
PT	Vinho Verde *whether or not followed by* Baião	Wine with a protected designation of origin (PDO)
PT	Vinho Verde *whether or not followed by* Basto	Wine with a protected designation of origin (PDO)
PT	Vinho Verde *whether or not followed by* Cávado	Wine with a protected designation of origin (PDO)
PT	Vinho Verde *whether or not followed by* Lima	Wine with a protected designation of origin (PDO)
PT	Vinho Verde *whether or not followed by* Monção e Melgaço	Wine with a protected designation of origin (PDO)
PT	Vinho Verde *whether or not followed by* Paiva	Wine with a protected designation of origin (PDO)
PT	Vinho Verde *whether or not followed by* Sousa	Wine with a protected designation of origin (PDO)
PT	Vinho Verde Alvarinho	Wine with a protected designation of origin (PDO)
PT	Vinho Verde Alvarinho Espumante	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
PT	Lisboa *whether or not followed by* Alta Estremadura	Wine with a protected geographical indication (PGI)
PT	Lisboa *whether or not followed by* Estremadura	Wine with a protected geographical indication (PGI)
PT	Península de Setúbal	Wine with a protected geographical indication (PGI)
PT	Tejo	Wine with a protected geographical indication (PGI)
PT	Vinho Espumante Beiras *whether or not followed by* Beira Alta	Wine with a protected geographical indication (PGI)
PT	Vinho Espumante Beiras *whether or not followed by* Beira Litoral	Wine with a protected geographical indication (PGI)
PT	Vinho Espumante Beiras *whether or not followed by* Terras de Sicó	Wine with a protected geographical indication (PGI)
PT	Vinho Licoroso Algarve	Wine with a protected geographical indication (PGI)
PT	Vinho Regional Açores	Wine with a protected geographical indication (PGI)
PT	Vinho Regional Alentejano	Wine with a protected geographical indication (PGI)
PT	Vinho Regional Algarve	Wine with a protected geographical indication (PGI)
PT	Vinho Regional Beiras *whether or not followed by* Beira Alta	Wine with a protected geographical indication (PGI)
PT	Vinho Regional Beiras *whether or not followed by* Beira Litoral	Wine with a protected geographical indication (PGI)
PT	Vinho Regional Beiras *whether or not followed by* Terras de Sicó	Wine with a protected geographical indication (PGI)
PT	Vinho Regional Duriense	Wine with a protected geographical indication (PGI)
PT	Vinho Regional Minho	Wine with a protected geographical indication (PGI)
PT	Vinho Regional Terras do Sado	Wine with a protected geographical indication (PGI)
PT	Vinho Regional Terras Madeirenses	Wine with a protected geographical indication (PGI)
PT	Vinho Regional Transmontano	Wine with a protected geographical indication (PGI)
RO	Aiud *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
RO	Alba Iulia *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Babadag *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Banat *whether or not followed by* Dealurile Tirolului	Wine with a protected designation of origin (PDO)
RO	Banat *whether or not followed by* Moldova Nouă	Wine with a protected designation of origin (PDO)
RO	Banat *whether or not followed by* Silagiu	Wine with a protected designation of origin (PDO)
RO	Banu Mărăcine *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Bohotin *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Cernăteşti — Podgoria *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Coteşti *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Cotnari	Wine with a protected designation of origin (PDO)
RO	Crişana *whether or not followed by* Biharia	Wine with a protected designation of origin (PDO)
RO	Crişana *whether or not followed by* Diosig	Wine with a protected designation of origin (PDO)
RO	Crişana *whether or not followed by* Şimleu Silvaniei	Wine with a protected designation of origin (PDO)
RO	Dealu Bujorului *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Dealu Mare *whether or not followed by* Boldeşti	Wine with a protected designation of origin (PDO)
RO	Dealu Mare *whether or not followed by* Breaza	Wine with a protected designation of origin (PDO)
RO	Dealu Mare *whether or not followed by* Ceptura	Wine with a protected designation of origin (PDO)
RO	Dealu Mare *whether or not followed by* Merei	Wine with a protected designation of origin (PDO)
RO	Dealu Mare *whether or not followed by* Tohani	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
RO	Dealu Mare *whether or not followed by* Urlați	Wine with a protected designation of origin (PDO)
RO	Dealu Mare *whether or not followed by* Valea Călugărească	Wine with a protected designation of origin (PDO)
RO	Dealu Mare *whether or not followed by* Zoreşti	Wine with a protected designation of origin (PDO)
RO	Drăgăşani *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Huşi *whether or not followed by* Vutcani	Wine with a protected designation of origin (PDO)
RO	Iana *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Iaşi *whether or not followed by* Bucium	Wine with a protected designation of origin (PDO)
RO	Iaşi *whether or not followed by* Copou	Wine with a protected designation of origin (PDO)
RO	Iaşi *whether or not followed by* Uricani	Wine with a protected designation of origin (PDO)
RO	Lechința *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Mehedinți *whether or not followed by* Corcova	Wine with a protected designation of origin (PDO)
RO	Mehedinți *whether or not followed by* Golul Drâncei	Wine with a protected designation of origin (PDO)
RO	Mehedinți *whether or not followed by* Orevița	Wine with a protected designation of origin (PDO)
RO	Mehedinți *whether or not followed by* Severin	Wine with a protected designation of origin (PDO)
RO	Mehedinți *whether or not followed by* Vânju Mare	Wine with a protected designation of origin (PDO)
RO	Miniş *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Murfatlar *whether or not followed by* Cernavodă	Wine with a protected designation of origin (PDO)
RO	Murfatlar *whether or not followed by* Medgidia	Wine with a protected designation of origin (PDO)
RO	Nicoreşti *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
RO	Odobeşti *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Oltina *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Panciu *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Pietroasa *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Recaş *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Sâmbureşti *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Sarica Niculiţel *whether or not followed by* Tulcea	Wine with a protected designation of origin (PDO)
RO	Sebeş — Apold *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Segarcea *whether or not followed by the name of the sub-region*	Wine with a protected designation of origin (PDO)
RO	Ştefăneşti *whether or not followed by* Costeşti	Wine with a protected designation of origin (PDO)
RO	Târnave *whether or not followed by* Blaj	Wine with a protected designation of origin (PDO)
RO	Târnave *whether or not followed by* Jidvei	Wine with a protected designation of origin (PDO)
RO	Târnave *whether or not followed by* Mediaş	Wine with a protected designation of origin (PDO)
RO	Colinele Dobrogei *whether or not followed by the name of the sub-region*	Wine with a protected geographical indication (PGI)
RO	Dealurile Crişanei *whether or not followed by the name of the sub-region*	Wine with a protected geographical indication (PGI)
RO	Dealurile Moldovei *or, according to the case* Dealurile Covurluiului	Wine with a protected geographical indication (PGI)
RO	Dealurile Moldovei *or, according to the case* Dealurile Hârlăului	Wine with a protected geographical indication (PGI)
RO	Dealurile Moldovei *or, according to the case* Dealurile Huşilor	Wine with a protected geographical indication (PGI)
RO	Dealurile Moldovei *or, according to the case* Dealurile Iaşilor	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
RO	Dealurile Moldovei *or, according to the case* Dealurile Tutovei	Wine with a protected geographical indication (PGI)
RO	Dealurile Moldovei *or, according to the case* Terasele Siretului	Wine with a protected geographical indication (PGI)
RO	Dealurile Moldovei	Wine with a protected geographical indication (PGI)
RO	Dealurile Munteniei	Wine with a protected geographical indication (PGI)
RO	Dealurile Olteniei	Wine with a protected geographical indication (PGI)
RO	Dealurile Sătmarului	Wine with a protected geographical indication (PGI)
RO	Dealurile Transilvaniei	Wine with a protected geographical indication (PGI)
RO	Dealurile Vrancei	Wine with a protected geographical indication (PGI)
RO	Dealurile Zarandului	Wine with a protected geographical indication (PGI)
RO	Terasele Dunării	Wine with a protected geographical indication (PGI)
RO	Viile Caraşului	Wine with a protected geographical indication (PGI)
RO	Viile Timişului	Wine with a protected geographical indication (PGI)
SI	Bela krajina *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate*	Wine with a protected designation of origin (PDO)
SI	Belokranjec *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate*	Wine with a protected designation of origin (PDO)
SI	Bizeljsko-Sremič *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate* *Equivalent term*: Sremič-Bizeljsko	Wine with a protected designation of origin (PDO)
SI	Bizeljčan *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate*	Wine with a protected designation of origin (PDO)
SI	Cviček, Dolenjska *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate*	Wine with a protected designation of origin (PDO)
SI	Dolenjska *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate*	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
SI	Goriška Brda *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate* *Equivalent term*: Brda	Wine with a protected designation of origin (PDO)
SI	Kras *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate*	Wine with a protected designation of origin (PDO)
SI	Metliška črnina *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate*	Wine with a protected designation of origin (PDO)
SI	Prekmurje *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate* *Equivalent term*: Prekmurčan	Wine with a protected designation of origin (PDO)
SI	Slovenska Istra *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate*	Wine with a protected designation of origin (PDO)
SI	Štajerska Slovenija *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate*	Wine with a protected designation of origin (PDO)
SI	Teran, Kras *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate*	Wine with a protected designation of origin (PDO)
SI	Vipavska dolina *whether or not followed by the name of a smaller geographic unit and/or the name of a vineyard estate* *Equivalent term*: Vipava, Vipavec, Vipavčan	Wine with a protected designation of origin (PDO)
SI	Podravje *may be followed by the expression* 'mlado vino' *the names can also be used in adjective form*	Wine with a protected geographical indication (PGI)
SI	Posavje *may be followed by the expression* 'mlado vino' *the names can also be used in adjective form*	Wine with a protected geographical indication (PGI)
SI	Primorska *may be followed by the expression* 'mlado vino' *the names can also be used in adjective form*	Wine with a protected geographical indication (PGI)
SK	Južnoslovenská vinohradnícka oblasť *whether or not followed by* Dunajskostredský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Južnoslovenská vinohradnícka oblasť *whether or not followed by* Hurbanovský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Južnoslovenská vinohradnícka oblasť *whether or not followed by* Komárňanský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Južnoslovenská vinohradnícka oblasť *whether or not followed by* Palárikovský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Južnoslovenská vinohradnícka oblasť *whether or not followed by* Štúrovský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Južnoslovenská vinohradnícka oblasť *whether or not followed by* Šamorínsky vinohradnícky rajón	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
SK	Južnoslovenská vinohradnícka oblasť *followed or not by sub-region and/or smaller geographical unit*	Wine with a protected designation of origin (PDO)
SK	Južnoslovenská vinohradnícka oblasť *whether or not followed by* Strekovský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Južnoslovenská vinohradnícka oblasť *whether or not followed by* Galantský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Vrbovský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Trnavský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Skalický vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Orešanský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Hlohovecký vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Doľanský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *followed or not by sub-region and/or smaller geographical unit*	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Senecký vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Stupavský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Modranský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Bratislavský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Pezinský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Malokarpatská vinohradnícka oblasť *whether or not followed by* Záhorský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Nitrianska vinohradnícka oblasť *whether or not followed by* Pukanecký vinohradnícky rajón	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
SK	Nitrianska vinohradnícka oblasť *whether or not followed by* Žitavský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Nitrianska vinohradnícka oblasť *whether or not followed by* Želiezovský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Nitrianska vinohradnícka oblasť *followed or not by sub-region and/or smaller geographical unit*	Wine with a protected designation of origin (PDO)
SK	Nitrianska vinohradnícka oblasť *whether or not followed by* Nitriansky vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Nitrianska vinohradnícka oblasť *whether or not followed by* Vrábeľský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Nitrianska vinohradnícka oblasť *whether or not followed by* Tekovský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Nitrianska vinohradnícka oblasť *whether or not followed by* Zlatomoravecký vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Nitrianska vinohradnícka oblasť *whether or not followed by* Šintavský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Nitrianska vinohradnícka oblasť *whether or not followed by* Radošinský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Stredoslovenská vinohradnícka oblasť *followed or not by sub-region and/or smaller geographical unit*	Wine with a protected designation of origin (PDO)
SK	Stredoslovenská vinohradnícka oblasť *whether or not followed by* Fil'akovský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Stredoslovenská vinohradnícka oblasť *whether or not followed by* Gemerský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Stredoslovenská vinohradnícka oblasť *whether or not followed by* Hontiansky vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Stredoslovenská vinohradnícka oblasť *whether or not followed by* Ipeľský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Stredoslovenská vinohradnícka oblasť *whether or not followed by* Vinický vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Stredoslovenská vinohradnícka oblasť *whether or not followed by* Tornaľský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Stredoslovenská vinohradnícka oblasť *whether or not followed by* Modrokamenčký vinohradnícky rajón	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
SK	Vinohradnícka oblasť Tokajoblasť *whether or not followed by* Viničky	Wine with a protected designation of origin (PDO)
SK	Vinohradnícka oblasť Tokaj *whether or not followed by the name of a smaller geographical unit*	Wine with a protected designation of origin (PDO)
SK	Vinohradnícka oblasť Tokaj *whether or not followed by* Veľká Tŕňa	Wine with a protected designation of origin (PDO)
SK	Vinohradnícka oblasť Tokaj *whether or not followed by* Malá Tŕňa	Wine with a protected designation of origin (PDO)
SK	Vinohradnícka oblasť Tokaj *whether or not followed by* Čerhov	Wine with a protected designation of origin (PDO)
SK	Vinohradnícka oblasť Tokaj *whether or not followed by* Slovenské Nové Mesto	Wine with a protected designation of origin (PDO)
SK	Vinohradnícka oblasť Tokaj *whether or not followed by* Černochov	Wine with a protected designation of origin (PDO)
SK	Vinohradnícka oblasť Tokaj *whether or not followed by* Bara	Wine with a protected designation of origin (PDO)
SK	Východoslovenská vinohradnícka oblasť *whether or not followed by* Michalovský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Východoslovenská vinohradnícka oblasť *followed or not by sub-region and/or smaller geographical unit*	Wine with a protected designation of origin (PDO)
SK	Východoslovenská vinohradnícka oblasť *whether or not followed by* Kráľovskochlmecký vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Východoslovenská vinohradnícka oblasť *whether or not followed by* Moldavský vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Východoslovenská vinohradnícka oblasť *whether or not followed by* Sobranecký vinohradnícky rajón	Wine with a protected designation of origin (PDO)
SK	Južnoslovenská vinohradnícka oblasť *may be accompanied by the term* 'oblastné víno'	Wine with a protected geographical indication (PGI)
SK	Malokarpatská vinohradnícka oblasť *may be accompanied by the term* 'oblastné víno'	Wine with a protected geographical indication (PGI)
SK	Nitrianska vinohradnícka oblasť *may be accompanied by the term* 'oblastné víno'	Wine with a protected geographical indication (PGI)
SK	Stredoslovenská vinohradnícka oblasť *may be accompanied by the term* 'oblastné víno'	Wine with a protected geographical indication (PGI)
SK	Východoslovenská vinohradnícka oblasť *may be accompanied by the term* 'oblastné víno'	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
ES	Abona	Wine with a protected designation of origin (PDO)
ES	Alella	Wine with a protected designation of origin (PDO)
ES	Alicante *whether or not followed by* Marina Alta	Wine with a protected designation of origin (PDO)
ES	Almansa	Wine with a protected designation of origin (PDO)
ES	Ampurdán-Costa Brava	Wine with a protected designation of origin (PDO)
ES	Arabako Txakolina *Equivalent term*: Txakolí de Álava	Wine with a protected designation of origin (PDO)
ES	Arlanza	Wine with a protected designation of origin (PDO)
ES	Arribes	Wine with a protected designation of origin (PDO)
ES	Bierzo	Wine with a protected designation of origin (PDO)
ES	Binissalem	Wine with a protected designation of origin (PDO)
ES	Bizkaiko Txakolina *Equivalent term*: Chacolí de Bizkaia	Wine with a protected designation of origin (PDO)
ES	Bullas	Wine with a protected designation of origin (PDO)
ES	Calatayud	Wine with a protected designation of origin (PDO)
ES	Campo de Borja	Wine with a protected designation of origin (PDO)
ES	Campo de la Guardia	Wine with a protected designation of origin (PDO)
ES	Cangas	Wine with a protected designation of origin (PDO)
ES	Cariñena	Wine with a protected designation of origin (PDO)
ES	Cataluña	Wine with a protected designation of origin (PDO)
ES	Cava	Wine with a protected designation of origin (PDO)
ES	Chacolí de Bizkaia *Equivalent term*: Bizkaiko Txakolina	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
ES	Chacolí de Getaria *Equivalent term*: Getariako Txakolina	Wine with a protected designation of origin (PDO)
ES	Cigales	Wine with a protected designation of origin (PDO)
ES	Conca de Barberá	Wine with a protected designation of origin (PDO)
ES	Condado de Huelva	Wine with a protected designation of origin (PDO)
ES	Costers del Segre *whether or not followed by* Artesa	Wine with a protected designation of origin (PDO)
ES	Costers del Segre *whether or not followed by* Les Garrigues	Wine with a protected designation of origin (PDO)
ES	Costers del Segre *whether or not followed by* Raimat	Wine with a protected designation of origin (PDO)
ES	Costers del Segre *whether or not followed by* Valls de Riu Corb	Wine with a protected designation of origin (PDO)
ES	Dehesa del Carrizal	Wine with a protected designation of origin (PDO)
ES	Dominio de Valdepusa	Wine with a protected designation of origin (PDO)
ES	El Hierro	Wine with a protected designation of origin (PDO)
ES	Empordá	Wine with a protected designation of origin (PDO)
ES	Finca Élez	Wine with a protected designation of origin (PDO)
ES	Getariako Txakolina *Equivalent term*: Chacolí de Getaria	Wine with a protected designation of origin (PDO)
ES	Gran Canaria	Wine with a protected designation of origin (PDO)
ES	Granada	Wine with a protected designation of origin (PDO)
ES	Guijoso	Wine with a protected designation of origin (PDO)
ES	Jerez/Xérès/Sherry	Wine with a protected designation of origin (PDO)
ES	Jumilla	Wine with a protected designation of origin (PDO)
ES	La Gomera	Wine with a protected designation of origin (PDO)
ES	La Mancha	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
ES	La Palma *whether or not followed by* Fuencaliente	Wine with a protected designation of origin (PDO)
ES	La Palma *whether or not followed by* Hoyo de Mazo	Wine with a protected designation of origin (PDO)
ES	La Palma *whether or not followed by* Norte de la Palma	Wine with a protected designation of origin (PDO)
ES	Lanzarote	Wine with a protected designation of origin (PDO)
ES	Lebrija	Wine with a protected designation of origin (PDO)
ES	Málaga	Wine with a protected designation of origin (PDO)
ES	Manchuela	Wine with a protected designation of origin (PDO)
ES	Manzanilla Sanlúcar de Barrameda	Wine with a protected designation of origin (PDO)
ES	Méntrida	Wine with a protected designation of origin (PDO)
ES	Mondéjar	Wine with a protected designation of origin (PDO)
ES	Monterrei *whether or not followed by* Ladera de Monterrei	Wine with a protected designation of origin (PDO)
ES	Monterrei *whether or not followed by* Val de Monterrei	Wine with a protected designation of origin (PDO)
ES	Montilla-Moriles	Wine with a protected designation of origin (PDO)
ES	Montsant	Wine with a protected designation of origin (PDO)
ES	Navarra *whether or not followed by* Baja Montaña	Wine with a protected designation of origin (PDO)
ES	Navarra *whether or not followed by* Ribera Alta	Wine with a protected designation of origin (PDO)
ES	Navarra *whether or not followed by* Ribera Baja	Wine with a protected designation of origin (PDO)
ES	Navarra *whether or not followed by* Tierra Estella	Wine with a protected designation of origin (PDO)
ES	Navarra *whether or not followed by* Valdizarbe	Wine with a protected designation of origin (PDO)
ES	Pago Florentino	Wine with a protected designation of origin (PDO)
ES	Pago de Arínzano *Equivalent term*: Vino de pago de Arinzano	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
ES	Pago de Otazu	Wine with a protected designation of origin (PDO)
ES	Penedés	Wine with a protected designation of origin (PDO)
ES	Pla de Bages	Wine with a protected designation of origin (PDO)
ES	Pla i Llevant	Wine with a protected designation of origin (PDO)
ES	Prado de Irache	Wine with a protected designation of origin (PDO)
ES	Priorat	Wine with a protected designation of origin (PDO)
ES	Rías Baixas *whether or not followed by* Condado do Tea	Wine with a protected designation of origin (PDO)
ES	Rías Baixas *whether or not followed by* O Rosal	Wine with a protected designation of origin (PDO)
ES	Rías Baixas *whether or not followed by* Ribeira do Ulla	Wine with a protected designation of origin (PDO)
ES	Rías Baixas *whether or not followed by* Soutomaior	Wine with a protected designation of origin (PDO)
ES	Rías Baixas *whether or not followed by* Val do Salnés	Wine with a protected designation of origin (PDO)
ES	Ribeira Sacra *whether or not followed by* Amandi	Wine with a protected designation of origin (PDO)
ES	Ribeira Sacra *whether or not followed by* Chantada	Wine with a protected designation of origin (PDO)
ES	Ribeira Sacra *whether or not followed by* Quiroga-Bibei	Wine with a protected designation of origin (PDO)
ES	Ribeira Sacra *whether or not followed by* Ribeiras do Miño	Wine with a protected designation of origin (PDO)
ES	Ribeira Sacra *whether or not followed by* Ribeiras do Sil	Wine with a protected designation of origin (PDO)
ES	Ribeiro	Wine with a protected designation of origin (PDO)
ES	Ribera del Duero	Wine with a protected designation of origin (PDO)
ES	Ribera del Guadiana *whether or not followed by* Cañamero	Wine with a protected designation of origin (PDO)
ES	Ribera del Guadiana *whether or not followed by* Matanegra	Wine with a protected designation of origin (PDO)
ES	Ribera del Guadiana *whether or not followed by* Montánchez	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
ES	Ribera del Guadiana *whether or not followed by* Ribera Alta	Wine with a protected designation of origin (PDO)
ES	Ribera del Guadiana *whether or not followed by* Ribera Baja	Wine with a protected designation of origin (PDO)
ES	Ribera del Guadiana *whether or not followed by* Tierra de Barros	Wine with a protected designation of origin (PDO)
ES	Ribera del Júcar	Wine with a protected designation of origin (PDO)
ES	Rioja *whether or not followed by* Rioja Alavesa	Wine with a protected designation of origin (PDO)
ES	Rioja *whether or not followed by* Rioja Alta	Wine with a protected designation of origin (PDO)
ES	Rioja *whether or not followed by* Rioja Baja	Wine with a protected designation of origin (PDO)
ES	Rueda	Wine with a protected designation of origin (PDO)
ES	Sierras de Málaga *whether or not followed by* Serranía de Ronda	Wine with a protected designation of origin (PDO)
ES	Somontano	Wine with a protected designation of origin (PDO)
ES	Tacoronte-Acentejo *whether or not followed by* Anaga	Wine with a protected designation of origin (PDO)
ES	Tarragona	Wine with a protected designation of origin (PDO)
ES	Terra Alta	Wine with a protected designation of origin (PDO)
ES	Tierra de León	Wine with a protected designation of origin (PDO)
ES	Tierra del Vino de Zamora	Wine with a protected designation of origin (PDO)
ES	Toro	Wine with a protected designation of origin (PDO)
ES	Txakolí de Álava *Equivalent term*: Arabako Txakolina	Wine with a protected designation of origin (PDO)
ES	Uclés	Wine with a protected designation of origin (PDO)
ES	Utiel-Requena	Wine with a protected designation of origin (PDO)
ES	Valdeorras	Wine with a protected designation of origin (PDO)

Member State	Name to be protected	
ES	Valdepeñas	Wine with a protected designation of origin (PDO)
ES	Valencia *whether or not followed by* Alto Turia	Wine with a protected designation of origin (PDO)
ES	Valencia *whether or not followed by* Clariano	Wine with a protected designation of origin (PDO)
ES	Valencia *whether or not followed by* Moscatel de Valencia	Wine with a protected designation of origin (PDO)
ES	Valencia *whether or not followed by* Valentino	Wine with a protected designation of origin (PDO)
ES	Valle de Güímar	Wine with a protected designation of origin (PDO)
ES	Valle de la Orotava	Wine with a protected designation of origin (PDO)
ES	Valles de Benavente	Wine with a protected designation of origin (PDO)
ES	Vino de Calidad de Valtiendas	Wine with a protected designation of origin (PDO)
ES	Vinos de Madrid *whether or not followed by* Arganda	Wine with a protected designation of origin (PDO)
ES	Vinos de Madrid *whether or not followed by* Navalcarnero	Wine with a protected designation of origin (PDO)
ES	Vinos de Madrid *whether or not followed by* San Martín de Valdeiglesias	Wine with a protected designation of origin (PDO)
ES	Ycoden-Daute-Isora	Wine with a protected designation of origin (PDO)
ES	Yecla	Wine with a protected designation of origin (PDO)
ES	3 Riberas	Wine with a protected geographical indication (PGI)
ES	Abanilla	Wine with a protected geographical indication (PGI)
ES	Altiplano de Sierra nevada	Wine with a protected geographical indication (PGI)
ES	Bajo Aragón	Wine with a protected geographical indication (PGI)
ES	Ribera del Gállego-Cinco Villas	Wine with a protected geographical indication (PGI)
ES	Ribera del Jiloca	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
ES	Valdejalón	Wine with a protected geographical indication (PGI)
ES	Valle del Cinca	Wine with a protected geographical indication (PGI)
ES	Bailén	Wine with a protected geographical indication (PGI)
ES	Barbanza e Iria	Wine with a protected geographical indication (PGI)
ES	Betanzos	Wine with a protected geographical indication (PGI)
ES	Cádiz	Wine with a protected geographical indication (PGI)
ES	Campo de Cartagena	Wine with a protected geographical indication (PGI)
ES	Cangas	Wine with a protected geographical indication (PGI)
ES	Castelló	Wine with a protected geographical indication (PGI)
ES	Castilla	Wine with a protected geographical indication (PGI)
ES	Castilla y León	Wine with a protected geographical indication (PGI)
ES	Contraviesa-Alpujarra	Wine with a protected geographical indication (PGI)
ES	Córdoba	Wine with a protected geographical indication (PGI)
ES	Costa de Cantabria	Wine with a protected geographical indication (PGI)
ES	Cumbres de Guadalfeo	Wine with a protected geographical indication (PGI)
ES	Desierto de Almería	Wine with a protected geographical indication (PGI)
ES	El Terrerazo	Wine with a protected geographical indication (PGI)
ES	Extremadura	Wine with a protected geographical indication (PGI)
ES	Formentera	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
ES	Gálvez	Wine with a protected geographical indication (PGI)
ES	Granada Sur-Oeste	Wine with a protected geographical indication (PGI)
ES	Ibiza	Wine with a protected geographical indication (PGI)
ES	Illes Balears	Wine with a protected geographical indication (PGI)
ES	Isla de Menorca	Wine with a protected geographical indication (PGI)
ES	Laujar-Alpujarra	Wine with a protected geographical indication (PGI)
ES	Lederas del Genil	Wine with a protected geographical indication (PGI)
ES	Liébana	Wine with a protected geographical indication (PGI)
ES	Los Palacios	Wine with a protected geographical indication (PGI)
ES	Mallorca	Wine with a protected geographical indication (PGI)
ES	Murcia	Wine with a protected geographical indication (PGI)
ES	Norte de Almería	Wine with a protected geographical indication (PGI)
ES	Norte de Granada	Wine with a protected geographical indication (PGI)
ES	Pozohondo	Wine with a protected geographical indication (PGI)
ES	Ribera del Andarax	Wine with a protected geographical indication (PGI)
ES	Ribera del Queiles	Wine with a protected geographical indication (PGI)
ES	Serra de Tramuntana-Costa Nord	Wine with a protected geographical indication (PGI)
ES	Sierra de Las Estancias y Los Filabres	Wine with a protected geographical indication (PGI)
ES	Sierra Norte de Sevilla	Wine with a protected geographical indication (PGI)
ES	Sierra Sur de Jaén	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
ES	Torreperogil	Wine with a protected geographical indication (PGI)
ES	Valle del Miño-Ourense	Wine with a protected geographical indication (PGI)
ES	Valles de Sadacia	Wine with a protected geographical indication (PGI)
ES	Villaviciosa de Córdoba	Wine with a protected geographical indication (PGI)
UK	English Vineyards	Wine with a protected geographical indication (PGI)
UK	Welsh Vineyards	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Berkshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Buckinghamshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Cheshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Cornwall	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Derbyshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Devon	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Dorset	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* East Anglia	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Gloucestershire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Hampshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Herefordshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Isle of Wight	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Isles of Scilly	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Kent	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
UK	England *whether or not substituted by* Lancashire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Leicestershire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Lincolnshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Northamptonshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Nottinghamshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Oxfordshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Rutland	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Shropshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Somerset	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Staffordshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Surrey	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Sussex	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Warwickshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* West Midlands	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Wiltshire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Worcestershire	Wine with a protected geographical indication (PGI)
UK	England *whether or not substituted by* Yorkshire	Wine with a protected geographical indication (PGI)
UK	Wales *whether or not substituted by* Cardiff	Wine with a protected geographical indication (PGI)
UK	Wales *whether or not substituted by* Cardiganshire	Wine with a protected geographical indication (PGI)
UK	Wales *whether or not substituted by* Carmarthenshire	Wine with a protected geographical indication (PGI)

Member State	Name to be protected	
UK	Wales *whether or not substituted by* Denbighshire	Wine with a protected geographical indication (PGI)
UK	Wales *whether or not substituted by* Gwynedd	Wine with a protected geographical indication (PGI)
UK	Wales *whether or not substituted by* Monmouthshire	Wine with a protected geographical indication (PGI)
UK	Wales *whether or not substituted by* Newport	Wine with a protected geographical indication (PGI)
UK	Wales *whether or not substituted by* Pembrokeshire	Wine with a protected geographical indication (PGI)
UK	Wales *whether or not substituted by* Rhondda Cynon Taf	Wine with a protected geographical indication (PGI)
UK	Wales *whether or not substituted by* Swansea	Wine with a protected geographical indication (PGI)
UK	Wales *whether or not substituted by* The Vale of Glamorgan	Wine with a protected geographical indication (PGI)
UK	Wales *whether or not substituted by* Wrexham	Wine with a protected geographical indication (PGI)

Wines of the Republic of Moldova to be protected in the EU

Ciumai/Чумай

Românești

PART B

Spirit drinks of the EU to be protected in the Republic of Moldova

Member State	Name to be protected	Product Type
FR	Rhum de la Martinique	Rum
FR	Rhum de la Guadeloupe	Rum
FR	Rhum de la Réunion	Rum
FR	Rhum de la Guyane	Rum
FR	Rhum de sucrerie de la Baie du Galion	Rum

Member State	Name to be protected	Product Type
FR	Rhum des Antilles françaises	Rum
FR	Rhum des départements français d'outre-mer	Rum
ES	Ron de Málaga	Rum
ES	Ron de Granada	Rum
PT	Rum da Madeira	Rum
UK (Scotland)	Scotch Whisky	Whiskey/Whisky
IE	Irish Whiskey/Uisce Beatha Eireannach/Irish Whisky	Whiskey/Whisky
ES	Whisky español	Whiskey/Whisky
FR	Whisky breton/Whisky de Bretagne	Whiskey/Whisky
FR	Whisky alsacien/Whisky d'Alsace	Whiskey/Whisky
LU	Eau-de-vie de seigle de marque nationale luxembourgeoise	Grain Spirit
DE, AT, BE (German-speaking Community)	Korn/Kornbrand	Grain Spirit
DE	Münsterländer Korn/Kornbrand	Grain Spirit
DE	Sendenhorster Korn/Kornbrand	Grain Spirit
DE	Bergischer Korn/Kornbrand	Grain Spirit
DE	Emsländer Korn/Kornbrand	Grain Spirit
DE	Haselünner Korn/Kornbrand	Grain Spirit
DE	Hasetaler Korn/Kornbrand	Grain Spirit
LT	Samanė	Grain Spirit
FR	Eau-de-vie de Cognac	Wine Spirit
FR	Eau-de-vie des Charentes	Wine Spirit
FR	Eau-de-vie de Jura	Wine Spirit

Member State	Name to be protected	Product Type
FR	Cognac (The denomination 'Cognac' may be supplemented by the following terms: — Fine — Grande Fine Champagne — Grande Champagne — Petite Fine Champagne — Petite Champagne — Fine Champagne — Borderies — Fins Bois — Bons Bois)	Wine Spirit
FR	Fine Bordeaux	Wine Spirit
FR	Fine de Bourgogne	Wine Spirit
FR	Armagnac	Wine Spirit
FR	Bas-Armagnac	Wine Spirit
FR	Haut-Armagnac	Wine Spirit
FR	Armagnac-Ténarèze	Wine Spirit
FR	Blanche Armagnac	Wine Spirit
FR	Eau-de-vie de vin de la Marne	Wine Spirit
FR	Eau-de-vie de vin originaire d'Aquitaine	Wine Spirit
FR	Eau-de-vie de vin de Bourgogne	Wine Spirit
FR	Eau-de-vie de vin originaire du Centre-Est	Wine Spirit
FR	Eau-de-vie de vin originaire de Franche-Comté	Wine Spirit
FR	Eau-de-vie de vin originaire du Bugey	Wine Spirit
FR	Eau-de-vie de vin de Savoie	Wine Spirit
FR	Eau-de-vie de vin originaire des Coteaux de la Loire	Wine Spirit
FR	Eau-de-vie de vin des Côtes-du-Rhône	Wine Spirit
FR	Eau-de-vie de vin originaire de Provence	Wine Spirit
FR	Eau-de-vie de Faugères/Faugères	Wine Spirit

Member State	Name to be protected	Product Type
FR	Eau-de-vie de vin originaire du Languedoc	Wine Spirit
PT	Aguardente de Vinho Douro	Wine Spirit
PT	Aguardente de Vinho Ribatejo	Wine Spirit
PT	Aguardente de Vinho Alentejo	Wine Spirit
PT	Aguardente de Vinho da Região dos Vinhos Verdes	Wine Spirit
PT	Aguardente de Vinho da Região dos Vinhos Verdes de Alvarinho	Wine Spirit
PT	Aguardente de Vinho Lourinhã	Wine Spirit
BG	Сунгурларска гроздова ракия/Гроздова ракия от Сунгурларе/Sungurlarska grozdova rakya/Grozdova rakya from Sungurlare	Wine Spirit
BG	Сливенска перла (Сливенска гроздова ракия/Гроздова ракия от Сливен)/Slivenska perla (Slivenska grozdova rakya/Grozdova rakya from Sliven)	Wine Spirit
BG	Стралджанска Мускатова ракия/Мускатова ракия от Стралджа/Straldjanska Muscatova rakya/Muscatova rakya from Straldja	Wine Spirit
BG	Поморийска гроздова ракия/Гроздова ракия от Поморие/Pomoriyska grozdova rakya/Grozdova rakya from Pomorie	Wine Spirit
BG	Русенска бисерна гроздова ракия/Бисерна гроздова ракия от Русе/Russenska biserna grozdova rakya/Biserna grozdova rakya from Russe	Wine Spirit
BG	Бургаска Мускатова ракия/Мускатова ракия от Бургас/Bourgaska Muscatova rakya/Muscatova rakya from Bourgas	Wine Spirit
BG	Добруджанска мускатова ракия/Мускатова ракия от Добруджа/Dobrudjanska muscatova rakya/muscatova rakya from Dobrudja	Wine Spirit
BG	Сухиндолска гроздова ракия/Гроздова ракия от Сухиндол/Suhindolska grozdova rakya/Grozdova rakya from Suhindol	Wine Spirit
BG	Карловска гроздова ракия/Гроздова Ракия от Карлово/Karlovska grozdova rakya/Grozdova Rakya from Karlovo	Wine Spirit

Member State	Name to be protected	Product Type
RO	Vinars Târnave	Wine Spirit
RO	Vinars Vaslui	Wine Spirit
RO	Vinars Murfatlar	Wine Spirit
RO	Vinars Vrancea	Wine Spirit
RO	Vinars Segarcea	Wine Spirit
ES	Brandy de Jerez	Brandy/Weinbrand
ES	Brandy del Penedés	Brandy/Weinbrand
IT	Brandy italiano	Brandy/Weinbrand
EL	Brandy Αττικής/Brandy of Attica	Brandy/Weinbrand
EL	Brandy Πελοποννήσου/Brandy of the Peloponnese	Brandy/Weinbrand
EL	Brandy Κεντρικής Ελλάδας/Brandy of central Greece	Brandy/Weinbrand
DE	Deutscher Weinbrand	Brandy/Weinbrand
AT	Wachauer Weinbrand	Brandy/Weinbrand
AT	Weinbrand Dürnstein	Brandy/Weinbrand
DE	Pfälzer Weinbrand	Brandy/Weinbrand
SK	Karpatské brandy špeciál	Brandy/Weinbrand
FR	Brandy français/Brandy de France	Brandy/Weinbrand
FR	Marc de Champagne/Eau-de-vie de marc de Champagne	Grape Marc Spirit
FR	Marc d'Aquitaine/Eau-de-vie de marc originaire d'Aquitaine	Grape Marc Spirit
FR	Marc de Bourgogne/Eau-de-vie de marc de Bourgogne	Grape Marc Spirit
FR	Marc du Centre-Est/Eau-de-vie de marc originaire du Centre-Est	Grape Marc Spirit
FR	Marc de Franche-Comté/Eau-de-vie de marc originaire de Franche-Comté	Grape Marc Spirit
FR	Marc du Bugey/Eau-de-vie de marc originaire de Bugey	Grape Marc Spirit

Member State	Name to be protected	Product Type
FR	Marc de Savoie/Eau-de-vie de marc originaire de Savoie	Grape Marc Spirit
FR	Marc des Côteaux de la Loire/Eau-de-vie de marc originaire des Coteaux de la Loire	Grape Marc Spirit
FR	Marc des Côtes-du-Rhône/Eau-de-vie de marc des Côtes du Rhône	Grape Marc Spirit
FR	Marc de Provence/Eau-de-vie de marc originaire de Provence	Grape Marc Spirit
FR	Marc du Languedoc/Eau-de-vie de marc originaire du Languedoc	Grape Marc Spirit
FR	Marc d'Alsace Gewürztraminer	Grape Marc Spirit
FR	Marc de Lorraine	Grape Marc Spirit
FR	Marc d'Auvergne	Grape Marc Spirit
FR	Marc du Jura	Grape Marc Spirit
PT	Aguardente Bagaceira Bairrada	Grape Marc Spirit
PT	Aguardente Bagaceira Alentejo	Grape Marc Spirit
PT	Aguardente Bagaceira da Região dos Vinhos Verdes	Grape Marc Spirit
PT	Aguardente Bagaceira da Região dos Vinhos Verdes de Alvarinho	Grape Marc Spirit
ES	Orujo de Galicia	Grape Marc Spirit
IT	Grappa	Grape Marc Spirit
IT	Grappa di Barolo	Grape Marc Spirit
IT	Grappa piemontese/Grappa del Piemonte	Grape Marc Spirit
IT	Grappa lombarda/Grappa di Lombardia	Grape Marc Spirit
IT	Grappa trentina/Grappa del Trentino	Grape Marc Spirit
IT	Grappa friulana/Grappa del Friuli	Grape Marc Spirit
IT	Grappa veneta/Grappa del Veneto	Grape Marc Spirit
IT	Südtiroler Grappa/Grappa dell'Alto Adige	Grape Marc Spirit

Member State	Name to be protected	Product Type
IT	Grappa Siciliana/Grappa di Sicilia	Grape Marc Spirit
IT	Grappa di Marsala	Grape Marc Spirit
EL	Τσικουδιά/Tsikoudia	Grape Marc Spirit
EL	Τσικουδιά Κρήτης/Tsikoudia of Crete	Grape Marc Spirit
EL	Τσίπουρο/Tsipouro	Grape Marc Spirit
EL	Τσίπουρο Μακεδονίας/Tsipouro of Macedonia	Grape Marc Spirit
EL	Τσίπουρο Θεσσαλίας/Tsipouro of Thessaly	Grape Marc Spirit
EL	Τσίπουρο Τυρνάβου/Tsipouro of Tyrnavos	Grape Marc Spirit
LU	Eau-de-vie de marc de marque nationale luxembourgeoise	Grape Marc Spirit
CY	Ζιβανία/Τζιβανία/Ζιβάνα/Zivania	Grape Marc Spirit
HU	Törkölypálinka	Grape Marc Spirit
DE	Schwarzwälder Kirschwasser	Fruit Spirit
DE	Schwarzwälder Mirabellenwasser	Fruit Spirit
DE	Schwarzwälder Williamsbirne	Fruit Spirit
DE	Schwarzwälder Zwetschgenwasser	Fruit Spirit
DE	Fränkisches Zwetschgenwasser	Fruit Spirit
DE	Fränkisches Kirschwasser	Fruit Spirit
DE	Fränkischer Obstler	Fruit Spirit
FR	Mirabelle de Lorraine	Fruit Spirit
FR	Kirsch d'Alsace	Fruit Spirit
FR	Quetsch d'Alsace	Fruit Spirit
FR	Framboise d'Alsace	Fruit Spirit
FR	Mirabelle d'Alsace	Fruit Spirit

Member State	Name to be protected	Product Type
FR	Kirsch de Fougerolles	Fruit Spirit
FR	Williams d'Orléans	Fruit Spirit
IT	Südtiroler Williams/Williams dell'Alto Adige	Fruit Spirit
IT	Südtiroler Aprikot/Aprikot dell'Alto Adige	Fruit Spirit
IT	Südtiroler Marille/Marille dell'Alto Adige	Fruit Spirit
IT	Südtiroler Kirsch/Kirsch dell'Alto Adige	Fruit Spirit
IT	Südtiroler Zwetschgeler/Zwetschgeler dell'Alto Adige	Fruit Spirit
IT	Südtiroler Obstler/Obstler dell'Alto Adige	Fruit Spirit
IT	Südtiroler Gravensteiner/Gravensteiner dell'Alto Adige	Fruit Spirit
IT	Südtiroler Golden Delicious/Golden Delicious dell'Alto Adige	Fruit Spirit
IT	Williams friulano/Williams del Friuli	Fruit Spirit
IT	Sliwovitz del Veneto	Fruit Spirit
IT	Sliwovitz del Friuli-Venezia Giulia	Fruit Spirit
IT	Sliwovitz del Trentino-Alto Adige	Fruit Spirit
IT	Distillato di mele trentino/Distillato di mele del Trentino	Fruit Spirit
IT	Williams trentino/Williams del Trentino	Fruit Spirit
IT	Sliwovitz trentino/Sliwovitz del Trentino	Fruit Spirit
IT	Aprikot trentino/Aprikot del Trentino	Fruit Spirit
PT	Medronho do Algarve	Fruit Spirit
PT	Medronho do Buçaco	Fruit Spirit
IT	Kirsch Friulano/Kirschwasser Friulano	Fruit Spirit
IT	Kirsch Trentino/Kirschwasser Trentino	Fruit Spirit
IT	Kirsch Veneto/Kirschwasser Veneto	Fruit Spirit

Member State	Name to be protected	Product Type
PT	Aguardente de pêra da Lousã	Fruit Spirit
LU	Eau-de-vie de pommes de marque nationale luxembourgeoise	Fruit Spirit
LU	Eau-de-vie de poires de marque nationale luxembourgeoise	Fruit Spirit
LU	Eau-de-vie de kirsch de marque nationale luxembourgeoise	Fruit Spirit
LU	Eau-de-vie de quetsch de marque nationale luxembourgeoise	Fruit Spirit
LU	Eau-de-vie de mirabelle de marque nationale luxembourgeoise	Fruit Spirit
LU	Eau-de-vie de prunelles de marque nationale luxembourgeoise	Fruit Spirit
AT	Wachauer Marillenbrand	Fruit Spirit
HU	Szatmári Szilvapálinka	Fruit Spirit
HU	Kecskeméti Barackpálinka	Fruit Spirit
HU	Békési Szilvapálinka	Fruit Spirit
HU	Szabolcsi Almapálinka	Fruit Spirit
HU	Gönci Barackpálinka	Fruit Spirit
HU, AT (for apricot spirits solely produced in the Länder of: Niederösterreich, Burgenland, Steiermark, Wien)	Pálinka	Fruit Spirit
SK	Bošácka slivovica	Fruit Spirit
SI	Brinjevec	Fruit Spirit
SI	Dolenjski sadjevec	Fruit Spirit
BG	Троянска сливова ракия/Сливова ракия от Троян/ Troyanska slivova rakya/Slivova rakya from Troyan	Fruit Spirit
BG	Силистренска кайсиева ракия/Кайсиева ракия от Силистра/Silistrenska kaysieva rakya/Kaysieva rakya from Silistra	Fruit Spirit
BG	Тервелска кайсиева ракия/Кайсиева ракия от Тервел/Tervelska kaysieva rakya/Kaysieva rakya from Tervel	Fruit Spirit
BG	Ловешка сливова ракия/Сливова ракия от Ловеч/ Loveshka slivova rakya/Slivova rakya from Lovech	Fruit Spirit

Member State	Name to be protected	Product Type
RO	Pălincă	Fruit Spirit
RO	Țuică Zetea de Medieşu Aurit	Fruit Spirit
RO	Țuică de Valea Milcovului	Fruit Spirit
RO	Țuică de Buzău	Fruit Spirit
RO	Țuică de Argeş	Fruit Spirit
RO	Țuică de Zalău	Fruit Spirit
RO	Țuică Ardelenească de Bistrița	Fruit Spirit
RO	Horincă de Maramureş	Fruit Spirit
RO	Horincă de Cămârzana	Fruit Spirit
RO	Horincă de Seini	Fruit Spirit
RO	Horincă de Chioar	Fruit Spirit
RO	Horincă de Lăpuş	Fruit Spirit
RO	Turț de Oaş	Fruit Spirit
RO	Turț de Maramureş	Fruit Spirit
FR	Calvados	Cider Spirits & Perry Spirits
FR	Calvados Pays d'Auge	Cider Spirits & Perry Spirits
FR	Calvados Domfrontais	Cider Spirits & Perry Spirits
FR	Eau-de-vie de cidre de Bretagne	Cider Spirits & Perry Spirits
FR	Eau-de-vie de poiré de Bretagne	Cider Spirits & Perry Spirits
FR	Eau-de-vie de cidre de Normandie	Cider Spirits & Perry Spirits
FR	Eau-de-vie de poiré de Normandie	Cider Spirits & Perry Spirits
FR	Eau-de-vie de cidre du Maine	Cider Spirits & Perry Spirits

Member State	Name to be protected	Product Type
ES	Aguardiente de sidra de Asturias	Cider Spirits & Perry Spirits
FR	Eau-de-vie de poiré du Maine	Cider Spirits & Perry Spirits
SE	Svensk Vodka/Swedish Vodka	Vodka
FI	Suomalainen Vodka/Finsk Vodka/Vodka of Finland	Vodka
PL	Polska Wódka/Polish Vodka	Vodka
SK	Laugarício vodka	Vodka
LT	Originali lietuviška degtinė/Original Lithuanian vodka	Vodka
PL	Herbal vodka from the North Podlasie Lowland aromatised with an extract of bison grass/Wódka ziołowa z Niziny Północnopodlaskiej aromatyzowana ekstraktem z trawy żubrowej	Vodka
LV	Latvijas Dzidrais	Vodka
LV	Rīgas Degvīns	Vodka
EE	Estonian vodka	Vodka
DE	Schwarzwälder Himbeergeist	Geist
DE	Bayerischer Gebirgsenzian	Gentian
IT	Südtiroler Enzian/Genziana dell'Alto Adige	Gentian
IT	Genziana trentina/Genziana del Trentino	Gentian
BE, NL, FR (Départements Nord (59) and Pas-de-Calais (62)), DE (German Bundesländer Nordrhein-Westfalen and Niedersachsen)	Genièvre/Jenever/Genever	Juniper-Flavoured Spirit Drinks
BE, NL, FR (Départements Nord (59) and Pas-de-Calais (62))	Genièvre de grains, Graanjenever, Graangenever	Juniper-Flavoured Spirit Drinks
BE, NL	Jonge jenever, jonge genever	Juniper-Flavoured Spirit Drinks
BE, NL	Oude jenever, oude genever	Juniper-Flavoured Spirit Drinks
BE (Hasselt, Zonhoven, Diepenbeek)	Hasseltse jenever/Hasselt	Juniper-Flavoured Spirit Drinks
BE (Balegem)	Balegemse jenever	Juniper-Flavoured Spirit Drinks
BE (Oost-Vlaanderen)	O' de Flander-Oost-Vlaamse Graanjenever	Juniper-Flavoured Spirit Drinks
BE (Région wallonne)	Peket-Pékêt/Peket-Pékêt de Wallonie	Juniper-Flavoured Spirit Drinks

Member State	Name to be protected	Product Type
FR (Départements Nord (59) and Pas-de-Calais (62))	Genièvre Flandres Artois	Juniper-Flavoured Spirit Drinks
DE	Ostfriesischer Korngenever	Juniper-Flavoured Spirit Drinks
DE	Steinhäger	Juniper-Flavoured Spirit Drinks
UK	Plymouth Gin	Juniper-Flavoured Spirit Drinks
ES	Gin de Mahón	Juniper-Flavoured Spirit Drinks
LT	Vilniaus džinas/Vilnius Gin	Juniper-Flavoured Spirit Drinks
SK	Spišská borovička	Juniper-Flavoured Spirit Drinks
SK	Slovenská borovička Juniperus	Juniper-Flavoured Spirit Drinks
SK	Slovenská borovička	Juniper-Flavoured Spirit Drinks
SK	Inovecká borovička	Juniper-Flavoured Spirit Drinks
SK	Liptovská borovička	Juniper-Flavoured Spirit Drinks
DK	Dansk Akvavit/Dansk Aquavit	Akvavit/Aquavit
SE	Svensk Aquavit/Svensk Akvavit/Swedish Aquavit	Akvavit/Aquavit
ES	Anis español	Aniseed-Flavoured Spirit Drinks
ES	Anís Paloma Monforte del Cid	Aniseed-Flavoured Spirit Drinks
ES	Hierbas de Mallorca	Aniseed-Flavoured Spirit Drinks
ES	Hierbas Ibicencas	Aniseed-Flavoured Spirit Drinks
PT	Évora anisada	Aniseed-Flavoured Spirit Drinks
ES	Cazalla	Aniseed-Flavoured Spirit Drinks
ES	Chinchón	Aniseed-Flavoured Spirit Drinks
ES	Ojén	Aniseed-Flavoured Spirit Drinks
ES	Rute	Aniseed-Flavoured Spirit Drinks
SI	Janeževec	Aniseed-Flavoured Spirit Drinks
CY, EL	Ouzo/Ούζο	Distilled Anis

Member State	Name to be protected	Product Type
EL	Ούζο Μυτιλήνης/Ouzo of Mitilene	Distilled Anis
EL	Ούζο Πλωμαρίου/Ouzo of Plomari	Distilled Anis
EL	Ούζο Καλαμάτας/Ouzo of Kalamata	Distilled Anis
EL	Ούζο Θράκης/Ouzo of Thrace	Distilled Anis
EL	Ούζο Μακεδονίας/Ouzo of Macedonia	Distilled Anis
SK	Demänovka bylinná horká	Bitter tasting Spirit Drinks/Bitter
DE	Rheinberger Kräuter	Bitter tasting Spirit Drinks/Bitter
LT	Trejos devynerios	Bitter tasting Spirit Drinks/Bitter
SI	Slovenska travarica	Bitter tasting Spirit Drinks/Bitter
DE	Berliner Kümmel	Liqueur
DE	Hamburger Kümmel	Liqueur
DE	Münchener Kümmel	Liqueur
DE	Chiemseer Klosterlikör	Liqueur
DE	Bayerischer Kräuterlikör	Liqueur
IE	Irish Cream	Liqueur
ES	Palo de Mallorca	Liqueur
PT	Ginjinha portuguesa	Liqueur
PT	Licor de Singeverga	Liqueur
IT	Mirto di Sardegna	Liqueur
IT	Liquore di limone di Sorrento	Liqueur
IT	Liquore di limone della Costa d'Amalfi	Liqueur
IT	Genepì del Piemonte	Liqueur
IT	Genepì della Valle d'Aosta	Liqueur
DE	Benediktbeurer Klosterlikör	Liqueur
DE	Ettaler Klosterlikör	Liqueur
FR	Ratafia de Champagne	Liqueur
ES	Ratafia catalana	Liqueur

Member State	Name to be protected	Product Type
PT	Anis português	Liqueur
FI	Suomalainen Marjalikööri/Suomalainen Hedelmälikööri/Finsk Bärlikör/Finsk Fruktlikör/Finnish berry liqueur/Finnish fruit liqueur	Liqueur
AT	Grossglockner Alpenbitter	Liqueur
AT	Mariazeller Magenlikör	Liqueur
AT	Mariazeller Jagasaftl	Liqueur
AT	Puchheimer Bitter	Liqueur
AT	Steinfelder Magenbitter	Liqueur
AT	Wachauer Marillenlikör	Liqueur
AT	Jägertee/Jagertee/Jagatee	Liqueur
DE	Hüttentee	Liqueur
LV	Allažu Ķimelis	Liqueur
LT	Čepkelių	Liqueur
SK	Demänovka bylinný likér	Liqueur
PL	Polish Cherry	Liqueur
CZ	Karlovarská Hořká	Liqueur
SI	Pelinkovec	Liqueur
DE	Blutwurz	Liqueur
ES	Cantueso Alicantino	Liqueur
ES	Licor café de Galicia	Liqueur
ES	Licor de hierbas de Galicia	Liqueur
FR, IT	Génépi des Alpes/Genepì degli Alpi	Liqueur
EL	Μαστίχα Χίου/Masticha of Chios	Liqueur
EL	Κίτρο Νάξου/Kitro of Naxos	Liqueur
EL	Κουμκουάτ Κέρκυρας/Koum Kouat of Corfu	Liqueur
EL	Τεντούρα/Tentoura	Liqueur
PT	Poncha da Madeira	Liqueur

Member State	Name to be protected	Product Type
FR	Cassis de Bourgogne	Crème de Cassis
FR	Cassis de Dijon	Crème de Cassis
FR	Cassis de Saintonge	Crème de Cassis
FR	Cassis du Dauphiné	Crème de Cassis
LU	Cassis de Beaufort	Crème de Cassis
IT	Nocino di Modena	Nocino
SI	Orehovec	Nocino
FR	Pommeau de Bretagne	Other Spirit Drinks
FR	Pommeau du Maine	Other Spirit Drinks
FR	Pommeau de Normandie	Other Spirit Drinks
SE	Svensk Punsch/Swedish Punch	Other Spirit Drinks
ES	Pacharán navarro	Other Spirit Drinks
ES	Pacharán	Other Spirit Drinks
AT	Inländerrum	Other Spirit Drinks
DE	Bärwurz	Other Spirit Drinks
ES	Aguardiente de hierbas de Galicia	Other Spirit Drinks
ES	Aperitivo Café de Alcoy	Other Spirit Drinks
ES	Herbero de la Sierra de Mariola	Other Spirit Drinks
DE	Königsberger Bärenfang	Other Spirit Drinks
DE	Ostpreußischer Bärenfang	Other Spirit Drinks
ES	Ronmiel	Other Spirit Drinks
ES	Ronmiel de Canarias	Other Spirit Drinks
BE, NL, FR (Départements Nord (59) and Pas-de-Calais (62)), DE (German Bundesländer Nordrhein-Westfalen and Niedersachsen)	Genièvre aux fruits/Vruchtenjenever/Jenever met vruchten/Fruchtgenever	Other Spirit Drinks
SI	Domači rum	Other Spirit Drinks

Member State	Name to be protected	Product Type
IE	Irish Poteen/Irish Póitín	Other Spirit Drinks
LT	Trauktinė	Other Spirit Drinks
LT	Trauktinė Palanga	Other Spirit Drinks
LT	Trauktinė Dainava	Other Spirit Drinks

Spirits drinks of the Republic of Moldova to be protected in the EU

[…]

PART C

Aromatised wines of the EU to be protected in the Republic of Moldova

Member State	Name to be protected
IT	Vermouth di Torino
FR	Vermouth de Chambéry
DE	Nürnberger Glühwein
DE	Thüringer Glühwein

Aromatised wines of the Republic of Moldova to be protected in the EU

[…]

ANNEX XXXI

EARLY WARNING MECHANISM

1. The Union and the Republic of Moldova hereby establish an Early Warning Mechanism with the objective of setting out practical measures aimed at preventing and rapidly reacting to an emergency situation or to a threat thereof. It foresees an early evaluation of potential risks and problems related to the supply and demand of natural gas, oil or electricity and the prevention and rapid reaction in case of an emergency situation or a threat thereof.

2. For the purposes of this Annex, an emergency situation is a situation causing a significant disruption or a physical interruption of supply of natural gas, oil or electricity between the Union and the Republic of Moldova.

3. For the purposes of this Annex, the Coordinators are the Minister of the Republic of Moldova in charge of Energy and the Member of the European Commission in charge of Energy.

4. Regular evaluations of potential risks and problems related to the supply and demand of energy materials and products should be undertaken jointly by the Parties and reported to the Coordinators.

5. Should one of the Parties become aware of an emergency situation or of a situation which, in its opinion, could lead to an emergency situation, that Party shall inform the other Party without delay.

6. Under the circumstances set out in paragraph 5, the Coordinators shall notify each other, within the shortest possible time, of the necessity to initiate the Early Warning Mechanism. The notification shall indicate, inter alia, designated persons that are authorised by the Coordinators to maintain permanent contact with each other.

7. Upon notification in accordance with paragraph 6, each Party shall provide the other Party with its own assessment. Such an assessment shall include an estimate of the timeframe within which the emergency situation or the threat thereof could be eliminated. The Parties shall react promptly to the assessment provided by the other Party and complement it with available additional information.

8. If one Party is unable to adequately assess or accept the other Party's assessment of the situation, or the estimated timeframe within which an emergency situation or a threat thereof may be eliminated, the corresponding Coordinator may request consultations, which are to commence within a time period not exceeding 3 days from the moment of forwarding the notification provided for in paragraph 6. Such consultations shall take place through an Experts Group consisting of representatives authorised by the Coordinators. The consultations shall aim at:

   (a) elaborating a common evaluation of the situation and of possible further developments;

   (b) elaborating recommendations to overcome the emergency situation or to eliminate the threat thereof;

   (c) elaborating recommendations on a joint action plan in order to minimise the impact of an emergency situation and, if possible, to overcome the emergency situation, including the possibility of establishing a Special Monitoring Group.

9. The consultations, common evaluations and proposed recommendations shall be based on the principles of transparency, non-discrimination and proportionality.

10. The Coordinators, within their competencies, shall work to overcome the emergency situation or to eliminate the threat thereof taking into account the recommendations that have been elaborated as the result of the consultations.

11. The Experts Group referred to in paragraph 8 shall report on its activities to the Coordinators promptly after the implementation of any agreed plan of action.

12. If an emergency situation occurs, the Coordinators may establish a Special Monitoring Group with the task of examining the ongoing circumstances and development of events and keeping an objective record of them. The Special Monitoring Group shall consist of:

   (a) representatives of both Parties;

   (b) representatives of energy companies of the Parties;

(c) representatives of international energy organisations, proposed and mutually approved by the Parties;

(d) independent experts proposed and mutually approved by the Parties.

13. The Special Monitoring Group shall start its work without delay and shall operate, as necessary, until the emergency situation has been solved. A decision on the termination of the work of the Special Monitoring Group shall be taken jointly by the Coordinators.

14. From the time at which a Party informs the other Party of the circumstances described in paragraph 5, and until the completion of the procedures set out in this Annex and the resolution of the emergency situation or the elimination of the threat thereof, the Parties will do their utmost to minimise negative consequences for the other Party. The Parties shall cooperate with the aim to reach an immediate solution in a spirit of transparency. The Parties shall refrain from any actions unrelated to the ongoing emergency situation that could create or deepen the negative consequences for the supply of natural gas, oil or electricity between the Union and the Republic of Moldova.

15. Each Party independently carries the costs relating to the actions in the framework of this Annex.

16. The Parties shall maintain in confidence all information exchanged between them that is designated as being of a confidential nature. The Parties shall take any necessary measures to protect confidential information on the basis of the relevant legal and normative acts of the Republic of Moldova, or the Union and/or its Member States, as applicable, as well as in accordance with applicable international agreements and conventions.

17. The Parties may invite, by mutual agreement, representatives of third parties to take part in the consultations or monitoring referred to in paragraphs 8 and 12.

18. The Parties may agree to adapt the provisions of this Annex in view of establishing an Early Warning Mechanism between them and other Parties.

19. A violation of the Early Warning Mechanism cannot serve as a basis for dispute settlement procedures under Title V (Trade and Trade-related Matters) of this Agreement. Moreover, a Party shall not rely on, or introduce as evidence in such dispute settlement procedures:

(a) positions taken or proposals made by the other Party in the course of the procedure set out in this Annex; or

(b) the fact that the other Party has indicated its willingness to accept a solution to the emergency situation subject to the Early Warning Mechanism.

ANNEX XXXII

MEDIATION MECHANISM

Article 1

Objective

The objective of this Annex is to facilitate a mutually agreed solution through a comprehensive and expeditious procedure with the assistance of a mediator.

Section 1

Procedure under the Mediation Mechanism

Article 2

Request for information

1. Before the initiation of the mediation procedure, a Party may request, at any time, in writing, information regarding a measure adversely affecting trade or investment between the Parties. The Party to which such request is made shall provide, within 20 days, a written response containing its comments on the information contained in the request.

2. Where the responding Party considers that a response within 20 days is not practicable, it shall inform the requesting Party of the reasons for the delay, together with an estimate of the shortest period within which it will be able to provide its response.

Article 3

Initiation of the procedure

1. A Party may request, at any time, that the Parties enter into a mediation procedure. Such request shall be addressed to the other Party in writing. The request shall be sufficiently detailed in order to clearly present the concerns of the requesting Party and shall:

(a) identify the specific measure at issue;

(b) provide a statement of the alleged adverse effects that the requesting Party believes the measure has, or will have, on trade or investment between the Parties; and

(c) explain how the requesting Party considers that those effects are linked to the measure.

2. The mediation procedure may only be initiated by mutual agreement of the Parties. The Party to which a request pursuant to paragraph 1 is addressed shall give sympathetic consideration to the request and reply by accepting or rejecting it in writing within 10 days of its receipt.

Article 4

Selection of the mediator

1. Upon the launch of the mediation procedure, the Parties shall endeavour to agree on a mediator no later than 15 days after the receipt of the reply to the request referred to in Article 3 of this Annex.

2. In the event that the Parties are unable to agree on the mediator within the time frame laid down in paragraph 1 of this Article, either Party may request the chair or co-chairs of the Association Committee in Trade configuration as set out in Article 438(4) of this Agreement, or their delegates, to select the mediator, by drawing lots, from the list established under Article 404(1) of this Agreement. Representatives of both Parties shall be invited, with sufficient advance notice, to be present when the lots are drawn. In any event, the drawing of lots shall be carried out with the Party/Parties that is/are present.

3. The chair or co-chairs of the Association Committee in Trade configuration as set out in Article 438(4) of this Agreement, or their delegates, shall select the mediator within five working days of the request made under paragraph 2 of this Article by either Party.

4. Should the list referred to in Article 404(1) of this Agreement not be established at the time a request is made pursuant to Article 3 of this Annex, the mediator shall be selected, by drawing lots, from the individuals which have been formally proposed by one or both of the Parties.

5. A mediator shall not be a citizen of either Party, unless the Parties agree otherwise.

6. The mediator shall assist, in an impartial and transparent manner, the Parties in bringing clarity to the measure and its possible trade effects, and in reaching a mutually agreed solution. The Code of Conduct for Arbitrators and Mediators set out in Annex XXXIV to this Agreement shall apply to mediators, *mutatis mutandis*. Rules 3 to 7 (Notifications) and 41 to 45 (Translation and interpretation) of the Rules of Procedure of Annex XXXIII to this Agreement shall also apply, *mutatis mutandis*.

Article 5

Rules of the mediation procedure

1. Within 10 days after the appointment of the mediator, the Party having invoked the mediation procedure shall present, in writing, a detailed description of the problem to the mediator and to the other Party, in particular of the operation of the measure at issue and its trade effects. Within 20 days after the date of delivery of this description, the other Party may provide, in writing, its comments on the description of the problem. Either Party may include in its description or comments any information that it deems relevant.

2. The mediator may decide on the most appropriate way of bringing clarity to the measure concerned and its possible trade effects. In particular, the mediator may organise meetings between the Parties, consult the Parties jointly or individually, seek the assistance of, or consult with, relevant experts and stakeholders and provide any additional support requested by the Parties. However, before seeking the assistance of, or consulting with, relevant experts and stakeholders, the mediator shall consult with the Parties.

3. The mediator may offer advice and propose a solution for the consideration of the Parties. The Parties may accept or reject the proposed solution or agree on a different solution. However, the mediator shall not advise or give comments on the consistency of the measure at issue with this Agreement.

4. The mediation procedure shall take place in the territory of the Party to which the request was addressed, or by mutual agreement in any other location or by any other means.

5. The Parties shall endeavour to reach a mutually agreed solution within 60 days from the appointment of the mediator. Pending a final agreement, the Parties may consider possible interim solutions, especially if the measure relates to perishable goods.

6. The solution may be adopted by means of a decision of the Association Committee in Trade configuration as set out in Article 438(4) of this Agreement. Either Party may make such a solution subject to the completion of any necessary internal procedures. Mutually agreed solutions shall be made publicly available. The version disclosed to the public may not contain any information that a Party has designated as confidential.

7. On request of the Parties, the mediator shall issue to the Parties, in writing, a draft factual report, providing a brief summary of the measure at issue in these procedures, the procedures followed, and any mutually agreed solution reached as the final outcome of these procedures, including possible interim solutions. The mediator shall allow the Parties 15 days to comment on the draft report. After considering the comments of the Parties submitted within that period, the mediator shall submit, in writing, a final factual report to the Parties within 15 days. The factual report shall not include any interpretation of this Agreement.

8. The procedure shall be terminated:

(a) by the adoption of a mutually agreed solution by the Parties, on the date of its adoption;

(b) by mutual agreement of the Parties at any stage of the procedure, on the date of that agreement;

(c) by a written declaration of the mediator, after consultation with the Parties, that further efforts at mediation would be to no avail, on the date of that declaration; or

(d) by a written declaration of a Party after exploring mutually agreed solutions under the mediation procedure and after having considered any advice and proposed solutions by the mediator, on the date of that declaration.

Section 2

Implementation

Article 6

Implementation of a mutually agreed solution

1. Where the Parties have reached agreement on a solution, each Party shall take the measures necessary to implement the mutually agreed solution within the agreed timeframe.

2. The implementing Party shall inform the other Party in writing of any steps or measures taken to implement the mutually agreed solution.

Section 3

General Provisions

Article 7

Confidentiality and relationship to dispute settlement

1. Unless the Parties agree otherwise, and without prejudice to Article 5(6) of this Annex, all steps of the procedure, including any advice or proposed solution, are confidential. However, any Party may disclose to the public the fact that mediation is taking place.

2. The mediation procedure is without prejudice to the Parties' rights and obligations under the provisions on Dispute Settlement of Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement or any other agreement.

3. Consultations under Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement are not required before initiating the mediation procedure. However, a Party should normally avail itself of the other co-operation or consultation provisions provided for in this Agreement before initiating the mediation procedure.

4. A Party shall not rely on or introduce as evidence in other dispute settlement procedures under this Agreement or any other agreement, nor shall a panel take into consideration:

(a) positions taken by the other Party in the course of the mediation procedure or information gathered under Articles 5(1) and 5(2) of this Annex;

(b) the fact that the other Party has indicated its willingness to accept a solution to the measure subject to mediation; or

(c) advice given or proposals made by the mediator.

5. A mediator may not serve as member of a panel in a dispute settlement proceeding under this Agreement or under the WTO Agreement involving the same matter for which he/she has been a mediator.

Article 8

Time limits

Any time limit referred to in this Annex may be modified by mutual agreement between the Parties involved in the mediation procedures.

Article 9

Costs

1. Each Party shall bear its own expenses derived from its participation in the mediation procedure.

2. The Parties shall share jointly and equally the expenses derived from organisational matters, including the remuneration and expenses of the mediator. The remuneration of the mediator shall be in accordance with that foreseen for the chairperson of an arbitration panel in accordance with rule 8(e) of the Rules of Procedure.

ANNEX XXXIII

RULES OF PROCEDURE FOR DISPUTE SETTLEMENT

General provisions

1. In Chapter 14 (Dispute settlement) of Title V (Trade and Trade-related Matters) of this Agreement and under these Rules:

   (a) 'adviser' means a person retained by a Party to the dispute to advise or assist that Party in connection with the arbitration panel proceeding;

   (b) 'arbitrator' means a member of an arbitration panel established under Article 385 of this Agreement;

   (c) 'arbitration panel' means a panel established under Article 385 of this Agreement;

   (d) 'assistant' means a person who, under the terms of appointment of an arbitrator, conducts research or provides assistance to that arbitrator;

   (e) 'complaining Party' means any Party that requests the establishment of an arbitration panel under Article 384 of this Agreement;

   (f) 'day' means a calendar day;

   (g) 'party complained against' means the Party that is alleged to be in violation of the provisions referred to in Article 381 of this Agreement;

   (h) 'representative of a Party' means an employee or any person appointed by a government department or agency or any other public entity of a Party who represents the Party for the purposes of a dispute under this Agreement.

2. The Party complained against shall be in charge of the logistical administration of the dispute settlement proceedings, in particular the organisation of hearings, unless otherwise agreed. The Parties shall share the expenses derived from organisational matters, including the remuneration and expenses of the arbitrators.

Notifications

3. Each Party to the dispute and the arbitration panel shall transmit any request, notice, written submission or other document by e-mail to the other Party and, as regards written submissions and requests in the context of arbitration, to each of the arbitrators. The arbitration panel shall circulate documents to the Parties also by e-mail. Unless proven otherwise, an e-mail message shall be deemed to be received on the date of its sending. If any of the supporting documents are above ten megabytes, they shall be provided in another electronic format to the other Party and, where relevant, to each of the arbitrators within two days from the sending of the e-mail.

4. A copy of the documents transmitted in accordance with rule 3 shall be submitted to the other Party and, where relevant, to each of the arbitrators on the day of sending the e-mail by facsimile transmission, registered post, courier, or delivery against receipt or any other means of telecommunication that provides a record of the sending thereof.

5. All notifications shall be addressed to the Ministry of Economy of the Republic of Moldova and to the Directorate-General for Trade of the European Commission, respectively.

6. Minor errors of a clerical nature in any request, notice, written submission or other document related to the arbitration panel proceeding may be corrected by delivery of a new document clearly indicating the changes.

7. If the last day for delivery of a document falls on an official holiday of the Union or of the Republic of Moldova, the document shall be deemed delivered within the deadline on the next business day.

Commencing the arbitration

8. (a) If, pursuant to Article 385 of this Agreement or to rule 20 of these Rules, an arbitrator is selected by drawing lots, the drawing of lots shall be carried out at a time and place decided by the complaining Party to be promptly communicated to the Party complained against. The Party complained against may, if it so chooses, be present during the drawing of lots. In any event, the drawing of lots shall be carried out with the Party/Parties that is/are present.

(b) If, pursuant to Article 385 of this Agreement or to rule 20 of these Rules, an arbitrator is selected by drawing lots and there are two chairs of the Association Committee in Trade configuration as set out in Article 438(4) of this Agreement, both chairs, or their delegates, or one chair alone in cases where the other chair or his delegate does not accept to participate in the drawing of lots, shall perform the selection.

(c) The Parties shall notify the selected arbitrators of their appointment.

(d) An arbitrator who has been appointed according to the procedure established in Article 385 of this Agreement shall confirm his/her availability to serve as an arbitrator to the Association Committee in Trade configuration as set out in Article 438(4) of this Agreement within five days of the date in which he/she was informed of his/her appointment. If a candidate declines the appointment for a justified reason, a new arbitrator shall be selected following the same procedure used for the selection of the unavailable candidate.

(e) Unless the Parties to the dispute agree otherwise, they shall meet the arbitration panel within seven days of its establishment in order to determine such matters as the Parties or the arbitration panel deem appropriate, including the remuneration and expenses to be paid to the arbitrators, which shall be in accordance with WTO standards. The remuneration for each arbitrator's assistant shall not exceed 50 % of the remuneration of that arbitrator. Arbitrators and representatives of the Parties to the dispute may take part in this meeting via telephone or video conference.

9. (a) Unless the Parties agree otherwise within five days from the date of selection of the arbitrators, the terms of reference of the arbitration panel shall be 'to examine, in the light of the relevant provisions of the Agreement invoked by the parties to the dispute, the matter referred to in the request for establishment of the arbitration panel, to rule on the compatibility of the measure in question with the provisions referred to in Article 381 of this Agreement and to make a ruling in accordance with Articles 387 and 402 of this Agreement'.

(b) The Parties shall notify the agreed terms of reference to the arbitration panel within three days of their agreement.

Initial submissions

10. The complaining Party shall deliver its initial written submission no later than 20 days after the date of establishment of the arbitration panel. The Party complained against shall deliver its written counter-submission no later than 20 days after the date of receipt of the initial written submission.

Working of arbitration panels

11. The chairperson of the arbitration panel shall preside over all its meetings. An arbitration panel may delegate to the chairperson the authority to make administrative and procedural decisions.

12. Unless otherwise provided in Chapter 14 (Dispute settlement) of Title V (Trade and Trade-related Matters) of this Agreement, the arbitration panel may conduct its activities by any means, including telephone, facsimile transmissions or computer links.

13. Only arbitrators may take part in the deliberations of the arbitration panel, but the arbitration panel may permit its assistants to be present at its deliberations.

14. The drafting of any ruling shall remain the exclusive responsibility of the arbitration panel and shall not be delegated.

15. Where a procedural question arises that is not addressed by the provisions of Chapter 14 (Dispute settlement) of Title V (Trade and Trade-related Matters) of this Agreement and Annexes XXXII, XXXIII and XXXIV to this Agreement, the arbitration panel, after consulting the Parties, may adopt an appropriate procedure that is compatible with those provisions.

16. When the arbitration panel considers that there is a need to modify any of the time limits for its proceedings other than the time limits set out in Chapter 14 (Dispute settlement) of Title V (Trade and Trade-related Matters) of this Agreement or to make any other procedural or administrative adjustment, it shall inform the Parties to the dispute in writing of the reasons for the change or adjustment and of the period of time or adjustment needed.

Replacement

17. If an arbitrator is unable to participate in an arbitration panel proceeding, withdraws from it, or must be replaced because he/she does not comply with the requirements of the Code of Conduct, as set out in Annex XXXIV to this Agreement, a replacement shall be selected in accordance with Article 385 of this Agreement and rule 8 of these Rules.

18. Where a Party to the dispute considers that an arbitrator does not comply with the requirements of the Code of Conduct and for this reason should be replaced, this Party shall notify the other Party to the dispute within 15 days from the time at which it obtained evidence of the circumstances underlying the arbitrator's material violation of the Code of Conduct.

19. Where a Party to the dispute considers that an arbitrator other than the chairperson does not comply with the requirements of the Code of Conduct, the Parties to the dispute shall consult and, if they so agree, select a new arbitrator in accordance with Article 385 of this Agreement and rule 8 of these Rules.

    If the Parties to the dispute fail to agree on the need to replace an arbitrator, any Party to the dispute may request that such matter be referred to the chairperson of the arbitration panel, whose decision shall be final.

    If, pursuant to such a request, the chairperson finds that an arbitrator does not comply with the requirements of the Code of Conduct, the new arbitrator shall be selected in accordance with Article 385 of this Agreement and rule 8 of these Rules.

20. Where a Party considers that the chairperson of the arbitration panel does not comply with the requirements of the Code of Conduct, the Parties shall consult and, if they so agree, select a new chairperson in accordance with Article 385 of this Agreement and rule 8 of these Rules.

    If the Parties fail to agree on the need to replace the chairperson, any Party may request that such matter be referred to one of the remaining members of the pool of individuals from the sub-list of chairpersons referred to in Article 404(1) of this Agreement. His/her name shall be drawn by lot by the chair of the Association Committee in Trade configuration as set out in Article 438(4) of this Agreement, or the chair's delegate within five days from the request. The decision by the so selected person on the need to replace the chairperson shall be final.

    If the so selected person decides that the original chairperson does not comply with the requirements of the Code of Conduct, he/she shall select a new chairperson by lot among the remaining pool of individuals from the sub-list of chairpersons referred to in Article 404(1) of this Agreement. The selection of the new chairperson shall be carried out within five days of the date of the decision referred to in this paragraph.

21. The arbitration panel proceedings shall be suspended for the period taken to carry out the procedures provided for in rules 18, 19 and 20 of these Rules.

Hearings

22. The chairperson of the arbitration panel shall fix the date and time of the hearing in consultation with the Parties to the dispute and the other arbitrators, and shall confirm this in writing to the Parties to the dispute. This information shall also be made publicly available by the Party in charge of the logistical administration of the proceedings, unless the hearing is closed to the public. Unless a Party disagrees, the arbitration panel may decide not to convene a hearing.

23. Unless the Parties agree otherwise, the hearing shall be held in Brussels if the complaining Party is the Republic of Moldova, and in Chisinau if the complaining Party is the Union.

24. The arbitration panel may convene additional hearings, if the Parties so agree.

25. All arbitrators shall be present during the entirety of any hearings.

26. The following persons may attend the hearing, irrespective of whether the proceedings are open to the public or not:

    (a) representatives of the Parties to the dispute;

    (b) advisers to the Parties to the dispute;

    (c) administrative staff, interpreters, translators and court reporters; and

    (d) arbitrators' assistants.

    Only the representatives and advisers of the Parties to the dispute may address the arbitration panel.

27. No later than five days before the date of a hearing, each Party to the dispute shall deliver to the arbitration panel a list of the names of individuals who will make oral arguments or presentations at the hearing on behalf of that Party and of other representatives or advisers attending the hearing.

28. The arbitration panel shall conduct the hearing in the following manner, ensuring that the complaining Party and the Party complained against are afforded equal time:

    Argument

    (a) argument of the complaining Party;

    (b) counter-argument of the Party complained against;

    Rebuttal Argument

    (a) argument of the complaining Party;

    (b) counter-argument of the Party complained against.

29. The arbitration panel may direct questions to either Party to the dispute at any time during the hearing.

30. The arbitration panel shall arrange for a transcript of each hearing to be prepared and delivered as soon as possible to the Parties to the dispute. The Parties to the dispute may comment on the transcript, and the arbitration panel may consider those comments.

31. Each Party to the dispute may deliver a supplementary written submission concerning any matter that arose during the hearing within 10 days of the date of the hearing.

Questions in writing

32. The arbitration panel may at any time during the proceedings address questions in writing to one or both Parties to the dispute. Each Party to the dispute shall receive a copy of any questions put by the arbitration panel.

33. A Party to the dispute shall also provide a copy of its written response to the arbitration panel's questions to the other Party to the dispute. Each Party to the dispute shall be given the opportunity to provide written comments on the other Party's reply within five days of the date of receipt of such reply.

Confidentiality

34. Each Party to the dispute and its advisers shall treat as confidential any information submitted by the other Party to the dispute to the arbitration panel which that Party has designated as confidential. Where a Party to the dispute submits a confidential version of its written submissions to the arbitration panel, it shall also, upon request of the other Party, provide a non-confidential summary of the information contained in its submissions that could be disclosed to the public no later than 15 days after the date of either the request or the submission, whichever is later, and an explanation as to why the non-disclosed information is confidential. Nothing in these Rules shall preclude a Party to the dispute from disclosing statements of its own positions to the public to the extent that, when making reference to information submitted by the other Party, it does not disclose any information designated by the other Party as confidential. The arbitration panel shall meet in closed session when the submission and the arguments of a Party contain confidential information. The Parties to the dispute and their advisers shall maintain the confidentiality of the arbitration panel hearings where the hearings are held in closed session.

***Ex parte* contacts**

35. The arbitration panel shall not meet or communicate with a Party in the absence of the other Party.

36. No arbitrator may discuss any aspect of the subject matter of the proceedings with either Party or both Parties to the dispute in the absence of the other arbitrators.

***Amicus curiae* submissions**

37. Unless the Parties agree otherwise within three days of the date of the establishment of the arbitration panel, the arbitration panel may receive unsolicited written submissions from natural or legal persons established in the territory of a Party to the dispute who are independent from the governments of the Parties to the dispute, provided that they are made within 10 days of the date of the establishment of the arbitration panel, that they are concise and in no case longer than 15 pages typed at double space and that they are directly relevant to a factual or a legal issue under consideration by the arbitration panel.

38. The submission shall contain a description of the person making the submission, whether natural or legal, including its nationality or place of establishment, the nature of its activities, its legal status, general objectives and the source of its financing, and specify the nature of the interest that the person has in the arbitration panel proceeding. It shall be drafted in the languages chosen by the Parties to the dispute in accordance with rules 41 and 42 of these Rules.

39. The arbitration panel shall list in its ruling all the submissions it has received that conform to rules 37 and 38 of these Rules. The arbitration panel shall not be obliged to address in its ruling the arguments made in such submissions. Any such submission shall be notified by the arbitration panel to the Parties to the dispute for their comments. The comments of the Parties to the dispute shall be submitted within 10 days, and any such comments shall be taken into consideration by the arbitration panel.

Urgent cases

40. In the cases of urgency referred to in Chapter 11 (Trade-related Energy) of Title V (Trade and Trade-related Matters) of this Agreement, the arbitration panel, after consulting the Parties to the dispute, shall adjust the time limits referred to in these Rules, as appropriate, and shall notify the Parties of such adjustments.

Translation and interpretation

41. During the consultations referred to in Article 382 of this Agreement and no later than the meeting referred to in rule 8(e) of these Rules, the Parties to the dispute shall endeavour to agree on a common working language for the proceedings before the arbitration panel.

42. If the Parties to the dispute are unable to agree on a common working language, each Party shall make its written submissions in its chosen language. In such case, that Party shall provide at the same time a translation in the language chosen by the other Party, unless its submissions are written in one of the working languages of the WTO. The Party complained against shall arrange for the interpretation of oral submissions into the languages chosen by the Parties to the dispute.

43. Arbitration panel rulings shall be notified in the language or languages chosen by the Parties to the dispute.

44. Any Party to the dispute may provide comments on the accuracy of the translation of any translated version of a document drawn up in accordance with these Rules.

45. Each Party shall bear the costs of the translation of its written submissions. Any costs incurred for translation of an arbitration ruling shall be borne equally by the Parties to the dispute.

Other procedures

46. These Rules of Procedure are also applicable to procedures established under Article 382, Article 391(2), Article 392(2), Article 393(2) and Article 395(2) of Chapter 14 (Dispute settlement) of Title V (Trade and Trade-related Matters) of this Agreement. However, the time limits laid down in these Rules of Procedure shall be adjusted by the arbitration panel in line with the special time limits provided for the adoption of a ruling by the arbitration panel in those other procedures.

ANNEX XXXIV

CODE OF CONDUCT FOR ARBITRATORS AND MEDIATORS

Definitions

1. In this Code of Conduct:

   (a) 'arbitrator' means a member of an arbitration panel established under Article 385 of this Agreement;

   (b) 'assistant' means a person who, under the terms of appointment of an arbitrator, conducts, researches or provides assistance to the arbitrator;

   (c) 'candidate' means an individual whose name is on the list of arbitrators referred to in Article 404(1) of this Agreement and who is under consideration for selection as an arbitrator under Article 385 of this Agreement;

   (d) 'mediator' means a person who conducts a mediation procedure in accordance with Annex XXXII (Mediation Mechanism) to this Agreement;

   (e) 'proceeding', unless otherwise specified, means an arbitration panel proceeding under Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement;

   (f) 'staff', in respect of an arbitrator, means persons under the direction and control of an arbitrator, other than assistants.

Responsibilities to the process

2. Throughout the proceedings, every candidate and arbitrator shall avoid impropriety and the appearance of impropriety, shall be independent and impartial, shall avoid direct and indirect conflicts of interest and shall observe high standards of conduct so that the integrity and impartiality of the dispute settlement mechanism is preserved. Former arbitrators must comply with the obligations established in rules 15, 16, 17 and 18 of this Code of Conduct.

Disclosure obligations

3. Prior to confirmation of his/her selection as an arbitrator under Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement, a candidate shall disclose any interest, relationship or matter that is likely to affect his/her independence or impartiality or that might reasonably create an appearance of impropriety or bias in the proceeding. To this end, a candidate shall make all reasonable efforts to become aware of any such interests, relationships and matters.

4. A candidate or an arbitrator shall communicate matters concerning actual or potential violations of this Code of Conduct only to the Association Committee in Trade configuration, as set out in Article 438(4) of this Agreement, for consideration by the Parties.

5. Once selected, an arbitrator shall continue to make all reasonable efforts to become aware of any interests, relationships or matters referred to in rule 3 of this Code of Conduct and shall disclose them. The disclosure obligation is a continuing duty which requires an arbitrator to disclose any such interests, relationships or matters that may arise during any stage of the proceeding. The arbitrator shall disclose such interests, relationships or matters by informing the Association Committee in Trade configuration, in writing, for consideration by the Parties.

Duties of arbitrators

6. An arbitrator included in the lists of arbitrators provided for in Article 404(1) of this Agreement may decline the appointment as an arbitrator only for justified reasons such as, for example, disease, participation in other court or panel proceedings or conflict of interest. Upon confirmation of his/her selection, an arbitrator shall be available to perform and shall perform his/her duties thoroughly and expeditiously throughout the proceeding, and with fairness and diligence.

7. An arbitrator shall consider only those issues raised in the proceeding and necessary for a ruling and shall not delegate this duty to any other person.

8. An arbitrator shall take all appropriate steps to ensure that his/her assistant and staff are aware of, and comply with, rules 2, 3, 4, 5, 16, 17 and 18 of this Code of Conduct.

9. An arbitrator shall not engage in *ex parte* contacts concerning the proceeding.

Independence and impartiality of arbitrators

10. An arbitrator shall be independent and impartial, avoid creating an appearance of impropriety or bias, and shall not be influenced by self-interest, outside pressure, political considerations, public clamour, loyalty to a Party or fear of criticism.

11. An arbitrator shall not, directly or indirectly, incur any obligation or accept any benefit that would in any way interfere, or appear to interfere, with the proper performance of his/her duties.

12. An arbitrator shall not use his/her position on the arbitration panel to advance any personal or private interests. An arbitrator shall avoid actions that may create the impression that others are in a special position to influence him/her.

13. An arbitrator shall not allow financial, business, professional, personal, or social relationships or responsibilities to influence his/her conduct or judgement.

14. An arbitrator shall avoid entering into any relationship or acquiring any financial interest that is likely to affect his/her impartiality or that might reasonably create an appearance of impropriety or bias.

Obligations of former arbitrators

15. All former arbitrators shall avoid actions that may create the appearance that they were biased in carrying out their duties or derived advantage from the decision or ruling of the arbitration panel.

Confidentiality

16. No arbitrator or former arbitrator shall at any time disclose or use any non-public information concerning a proceeding or acquired during a proceeding except for the purposes of that proceeding and shall not, in any case, disclose or use any such information to gain personal advantage or advantage for others or to adversely affect the interests of others.

17. An arbitrator shall not disclose an arbitration panel ruling or parts thereof prior to its publication in accordance with Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement.

18. An arbitrator or a former arbitrator shall not disclose the deliberations of an arbitration panel, or any arbitrator's view at any time.

Expenses

19. Each arbitrator shall keep a record and render a final account of the time devoted to the procedure and of his/her expenses, as well as the time and expenses of his/assistant and staff.

Mediators

20. The disciplines described in this Code of Conduct as applying to arbitrators or former arbitrators shall apply, *mutatis mutandis*, to mediators.

ANNEX XXXV

CHAPTER 2 (ANTI-FRAUD AND CONTROL PROVISIONS) OF TITLE VI

The Republic of Moldova undertakes to gradually approximate its legislation to the following EU legislation and international instruments within the stipulated timeframes.

Convention of 26 July 1995, drawn up on the basis of Article K.3 of the Treaty on European Union, on the protection of the European Communities' financial interests

The following provisions of that Convention shall apply:

— Article 1 — General provisions, definitions

— Article 2(1) — The Republic of Moldova shall take the necessary measures to ensure that the conduct referred to in Article 1, and participating in, instigating, or attempting the conduct referred to in Article 1(1), are punishable by effective, proportionate and dissuasive criminal penalties.

— Article 3 — Criminal liability of heads of businesses

Timetable: those provisions of that Convention shall be implemented within 3 years of the entry into force of this Agreement.

Protocol drawn up on the basis of Article K.3 of the Treaty on European Union to the Convention on the protection of the European Communities' financial interests

The following provisions of that Protocol shall apply:

— Article 1(1)(c) and Article 1(2) — Relevant definitions

— Article 2 — Passive corruption

— Article 3 — Active corruption

— Article 5(1) — The Republic of Moldova shall take the necessary measures to ensure that the conduct referred to in Articles 2 and 3, and participating in and instigating the conduct in question, are punishable by effective, proportionate and dissuasive criminal penalties.

— Article 7 insofar as it refers to Article 3 of the Convention

Timetable: those provisions of that Protocol shall be implemented within 3 years of the entry into force of this Agreement.

Second Protocol, drawn up on the basis of Article K.3 of the Treaty on European Union, to the Convention on the protection of the European Communities' financial interests

The following provisions of that Protocol shall apply:

— Article 1 — Definition

— Article 2 — Money laundering

— Article 3 — Liability of legal persons

— Article 4 — Sanctions for legal persons

— Article 12 insofar as it refers to Article 3 of the Convention

Timetable: those provisions of that Protocol shall be implemented within 3 years of the entry into force of this Agreement.

PROTOCOL I

ON A FRAMEWORK AGREEMENT BETWEEN THE EUROPEAN UNION AND THE REPUBLIC OF MOLDOVA ON THE GENERAL PRINCIPLES FOR THE PARTICIPATION OF THE REPUBLIC OF MOLDOVA IN UNION PROGRAMMES

Article 1

The Republic of Moldova shall be allowed to participate in all current and future programmes of the Union open to the participation of the Republic of Moldova in accordance with the relevant provisions adopting those programmes.

Article 2

The Republic of Moldova shall contribute financially to the general budget of the EU corresponding to the specific programmes in which the Republic of Moldova participates.

Article 3

The Republic of Moldova's representatives shall be allowed to take part, as observers and for the points which concern the Republic of Moldova, in the management committees responsible for monitoring the programmes to which the Republic of Moldova contributes financially.

Article 4

Projects and initiatives submitted by participants from the Republic of Moldova shall, as far as possible, be subject to the same conditions, rules and procedures pertaining to the programmes concerned as those which apply to Member States.

Article 5

The specific terms and conditions regarding the participation of the Republic of Moldova in each particular programme, in particular the financial contribution payable and the reporting and evaluation procedures, shall be determined in a Memorandum of Understanding between the European Commission and the competent authorities of the Republic of Moldova on the basis of the criteria established by the programmes concerned.

If the Republic of Moldova applies for external assistance of the Union to participate in a given Union programme pursuant to Article 3 of Regulation (EC) No 1638/2006 of the European Parliament and of the Council of 24 October 2006 laying down general provisions establishing a European Neighbourhood and Partnership Instrument or pursuant to any similar legislative act of the Union providing for external assistance of the Union to the Republic of Moldova that may be adopted in the future, the conditions governing the use by the Republic of Moldova of external assistance of the Union shall be determined in a financing agreement, complying in particular with Article 20 of Regulation (EC) No 1638/2006.

Article 6

In accordance with Council Regulation (EC, Euratom) No 1605/2002 of 25 June 2002 on the Financial Regulation applicable to the general budget of the European Communities, each Memorandum of Understanding concluded pursuant to Article 5 of this Protocol shall stipulate that financial control or audits or other verifications, including administrative investigations, shall be carried out by, or under the authority of, the European Commission, the European Court of Auditors and the European Anti-Fraud Office.

Detailed provisions shall be made on financial control and auditing, administrative measures, penalties and recovery enabling the European Commission, the European Court of Auditors and the European Anti-Fraud Office to be granted powers equivalent to their powers with regard to beneficiaries or contractors established in the Union.

Article 7

This Protocol shall apply while this Agreement is applicable.

Either Party may denounce this Protocol by written notification to the other Party. This Protocol shall terminate six months after the date of such notification.

Termination of the Protocol following denunciation by either Party shall have no influence on the checks and controls to be carried out in accordance with the provisions laid down in Articles 5 and 6, where appropriate.

Article 8

No later than three years after the date of entry into force of this Protocol, and every three years thereafter, both Parties may review the implementation of this Protocol on the basis of the actual participation of the Republic of Moldova in Union programmes.

PROTOCOL II

CONCERNING THE DEFINITION OF THE CONCEPT OF 'ORIGINATING PRODUCTS' AND METHODS OF ADMINISTRATIVE COOPERATION

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TITLE I

GENERAL PROVISIONS

Article 1

Definitions

For the purposes of this Protocol:

(a) 'manufacture' means any kind of working or processing including assembly or specific operations;

(b) 'material' means any ingredient, raw material, component or part etc., used in the manufacture of a product;

(c) 'product' means a product being manufactured, even if it is intended for later use in another manufacturing operation;

(d) 'goods' means both materials and products;

(e) 'customs value' means the value as determined in accordance with the Agreement on Implementation of Article VII of the General Agreement on Tariffs and Trade 1994;

(f) 'ex-works price' means the price paid for the product ex works to the manufacturer in the Party in whose undertaking the last working or processing is carried out, provided the price includes the value of all the materials used, minus any internal taxes which are, or may be, repaid when the product obtained is exported;

(g) 'value of materials' means the customs value at the time of importation of the non-originating materials used, or, if this is not known and cannot be ascertained, the first ascertainable price paid for the materials in the exporting Party;

(h) 'value of originating materials' means the value of such materials as defined in point (g) applied *mutatis mutandis*;

(i) 'value added' means the ex-works price minus the customs value of each of the materials incorporated which originate in the other Parties with which cumulation is applicable or, where the customs value is not known or cannot be ascertained, the first ascertainable price paid for the materials in the exporting Party;

(j) 'chapters' and 'headings' mean the chapters and the headings (four-digit codes) used in the nomenclature which makes up the Harmonised Commodity Description and Coding System, referred to in this Protocol as 'the Harmonised System' or 'HS';

(k) 'classified' refers to the classification of a product or material under a particular heading;

(l) 'consignment' means products which are either sent simultaneously from one exporter to one consignee or covered by a single transport document covering their shipment from the exporter to the consignee or, in the absence of such a document, by a single invoice;

(m) 'territories' includes territorial waters;

(n) 'Party' means one, several or all of the Member States of the European Union, the European Union or the Republic of Moldova;

(o) 'customs authorities of the Party' for the European Union means any of the customs authorities of the Member States of the European Union.

TITLE II

DEFINITION OF THE CONCEPT OF 'ORIGINATING PRODUCTS'

Article 2

General requirements

For the purposes of implementing this Agreement, the following products shall be considered as originating in a Party:

(a) products wholly obtained in a Party, within the meaning of Article 4;

(b) products obtained in a Party incorporating materials which have not been wholly obtained there, provided that such materials have undergone sufficient working or processing in the Party concerned within the meaning of Article 5.

Article 3

Cumulation of origin

Notwithstanding Article 2, products shall be considered as originating in a Party if such products are obtained there by incorporating materials originating in the other Party, provided that the working or processing carried out goes beyond the operations referred to in Article 6 while it shall not be necessary that the materials of the other Party have undergone sufficient working or processing.

Article 4

Wholly obtained products

1. The following shall be considered as wholly obtained in a Party:

(a) mineral products extracted from its soil or from its seabed;

(b) vegetable products harvested there;

(c) live animals born and raised there;

(d) products from live animals raised there;

(e) products obtained by hunting or fishing conducted there;

(f) products of sea fishing and other products taken from the sea outside the territorial waters of the exporting Party by its vessels;

(g) products made aboard its factory ships exclusively from products referred to in point (f);

(h) used articles collected there fit only for the recovery of raw materials, including used tyres fit only for retreading or for use as waste;

(i) waste and scrap resulting from manufacturing operations conducted there;

(j) products extracted from marine soil or subsoil outside its territorial waters provided that it has sole rights to work that soil or subsoil;

(k) goods produced there exclusively from the products specified in points (a) to (j).

2. The terms 'its vessels' and 'its factory ships' in paragraph 1(f) and (g) shall apply only to vessels and factory ships:

(a) which are registered or recorded in a Member State of the European Union or in the Republic of Moldova;

(b) which sail under the flag of a Member State of the European Union or of the Republic of Moldova;

(c) which are owned to an extent of at least 50 % by nationals of a Member State of the European Union or of the Republic of Moldova, or by a company with its head office in a Member State of the European Union or in the Republic of Moldova, of which the manager or managers, Chairman of the Board of Directors or the Supervisory Board, and the majority of the members of such boards are nationals of a Member State of the European Union or of the Republic of Moldova and, in addition to that, of which, in the case of partnerships or limited companies, at least half the capital belongs to a Member State of the European Union or to the Republic of Moldova or to public bodies or nationals of the said Party;

(d) of which the master and officers are nationals of a Member State of the European Union or of the Republic of Moldova; and

(e) of which at least 75 % of the crew are nationals of a Member State of the European Union or of the Republic of Moldova.

Article 5

Sufficiently worked or processed products

1. For the purposes of Article 2, products which are not wholly obtained shall be considered to be sufficiently worked or processed when the conditions set out in the list in Annex II to this Protocol are fulfilled.

Those conditions indicate the working or processing which must be carried out on non-originating materials used in manufacturing and apply only in relation to such materials. It follows that if a product which has acquired originating status by fulfilling the conditions set out in the list is used in the manufacture of another product, the conditions applicable to the product in which it is incorporated do not apply to it, and no account shall be taken of the non-originating materials which may have been used in its manufacture.

2. Notwithstanding paragraph 1, non-originating materials which, according to the conditions set out in the list in Annex II to this Protocol, should not be used in the manufacture of a product may nevertheless be used, provided that:

(a) their total value does not exceed 10 % of the ex-works price of the product;

(b) any of the percentages given in the list for the maximum value of non-originating materials are not exceeded by virtue of this paragraph.

This paragraph shall not apply to products falling within Chapters 50 to 63 of the Harmonised System.

3. Paragraphs 1 and 2 of this Article shall apply subject to the provisions of Article 6.

Article 6

Insufficient working or processing

1. Without prejudice to paragraph 2 of this Article, the following operations shall be considered as insufficient working or processing to confer the status of originating products, whether or not the requirements of Article 5 are satisfied:

(a) preserving operations to ensure that the products remain in good condition during transport and storage;

(b) breaking-up and assembly of packages;

(c) washing, cleaning; removal of dust, oxide, oil, paint or other coverings;

(d) ironing or pressing of textiles;

(e) simple painting and polishing operations;

(f) husking, partial or total bleaching, polishing, and glazing of cereals and rice;

(g) operations to colour sugar or form sugar lumps;

(h) peeling, stoning and shelling, of fruits, nuts and vegetables;

(i) sharpening, simple grinding or simple cutting;

(j) sifting, screening, sorting, classifying, grading, matching (including the making-up of sets of articles);

(k) simple placing in bottles, cans, flasks, bags, cases, boxes, fixing on cards or boards and all other simple packaging operations;

(l) affixing or printing marks, labels, logos and other like distinguishing signs on products or their packaging;

(m) simple mixing of products, whether or not of different kinds;

(n) mixing of sugar with any material;

(o) simple assembly of parts of articles to constitute a complete article or disassembly of products into parts;

(p) a combination of two or more operations specified in points (a) to (o);

(q) slaughter of animals.

2. All operations carried out in a Party on a given product shall be considered together when determining whether the working or processing undergone by that product is to be regarded as insufficient within the meaning of paragraph 1.

Article 7

Unit of qualification

1. The unit of qualification for the application of the provisions of this Protocol shall be the particular product which is considered as the basic unit when determining classification using the nomenclature of the Harmonised System.

It follows that:

(a) when a product composed of a group or assembly of articles is classified under the terms of the Harmonised System in a single heading, the whole constitutes the unit of qualification;

(b) when a consignment consists of a number of identical products classified under the same heading of the Harmonised System, each product must be taken individually when applying the provisions of this Protocol.

2. Where, under General Rule 5 of the Harmonised System, packaging is included with the product for classification purposes, it shall be included for the purposes of determining origin.

Article 8

Accessories, spare parts and tools

Accessories, spare parts and tools dispatched with a piece of equipment, machine, apparatus or vehicle, which are part of the normal equipment and included in the price thereof or which are not separately invoiced, shall be regarded as one with the piece of equipment, machine, apparatus or vehicle in question.

Article 9

Sets

Sets, as defined in General Rule 3 of the Harmonised System, shall be regarded as originating when all component products are originating. Nevertheless, when a set is composed of originating and non-originating products, the set as a whole shall be regarded as originating, provided that the value of the non-originating products does not exceed 15 % of the ex-works price of the set.

Article 10

Neutral elements

In order to determine whether a product is an originating product, it shall not be necessary to determine the origin of the following which might be used in its manufacture:

(a) energy and fuel;

(b) plant and equipment;

(c) machines and tools;

(d) goods which neither enter into the final composition of the product nor are intended to do so.

TITLE III

TERRITORIAL REQUIREMENTS

Article 11

Principle of territoriality

1. Except as provided for in Article 3 and in paragraph 3 of this Article, the conditions for acquiring originating status set out in Title II shall be fulfilled without interruption in a Party.

2. Except as provided for in Article 3, where originating goods exported from a Party to another country return, they shall be considered as non-originating, unless it can be demonstrated to the satisfaction of the customs authorities that:

(a) the returning goods are the same as those exported; and

(b) the returning goods have not undergone any operation beyond that necessary to preserve them in good condition while in that country or while being exported.

3. The acquisition of originating status in accordance with the conditions set out in Title II shall not be affected by working or processing done outside a Party on materials exported from the Party and subsequently reimported there, provided that:

(a) the said materials are wholly obtained in the Party or have undergone working or processing beyond the operations referred to in Article 6 prior to being exported;

and

(b) it can be demonstrated to the satisfaction of the customs authorities that:

(i) the re-imported goods have been obtained by working or processing the exported materials;

and

ii) the total added value acquired outside the Party by applying the provisions of this Article does not exceed 10 % of the ex-works price of the end-product for which originating status is claimed.

4. For the purposes of paragraph 3, the conditions for acquiring originating status set out in Title II shall not apply to working or processing done outside a Party. But where, in the list in Annex II to this Protocol, a rule setting a maximum value for all the non-originating materials incorporated is applied in determining the originating status of the end-product, the total value of the non-originating materials incorporated in the territory of the party concerned, taken together with the total added value acquired outside the Party by applying the provisions of this Article, shall not exceed the stated percentage.

5. For the purposes of applying the provisions of paragraphs 3 and 4, 'total added value' shall be taken to mean all costs arising outside a Party, including the value of the materials incorporated there.

6. The provisions of paragraphs 3 and 4 shall not apply to products which do not fulfil the conditions set out in the list in Annex II to this Protocol or which can be considered sufficiently worked or processed only if the general tolerance fixed in Article 5(2) is applied.

7. The provisions of paragraphs 3 and 4 of this Article shall not apply to products of Chapters 50 to 63 of the Harmonised System.

8. Any working or processing of the kind covered by the provisions of this Article and done outside a Party shall be done under the outward processing arrangements, or similar arrangements.

Article 12

Direct transport

1. The preferential treatment provided for under this Agreement shall apply only to products satisfying the requirements of this Protocol which are transported directly between the Parties. However, products constituting one single consignment may be transported through other territories with, should the occasion arise, trans-shipment or temporary warehousing in such territories, provided that they remain under the surveillance of the customs authorities in the country of transit or warehousing and do not undergo operations other than unloading, reloading or any operation designed to preserve them in good condition.

Originating products may be transported by pipeline across territory other than that of the Parties acting as exporting and importing parties.

2. Evidence that the conditions set out in paragraph 1 have been fulfilled shall be supplied to the customs authorities of the importing Party by the production of:

(a) a single transport document covering the passage from the exporting Party through the country of transit; or

(b) a certificate issued by the customs authorities of the country of transit:

(i) giving an exact description of the products;

(ii) stating the dates of unloading and reloading of the products and, where applicable, the names of the ships, or the other means of transport used; and

(iii) certifying the conditions under which the products remained in the transit country; or

(c) failing these, any substantiating documents.

Article 13

Exhibitions

1. Originating products, sent for exhibition in a country other than a Party and sold after the exhibition for importation in a Party, shall benefit on importation from the provisions of his Agreement provided it is shown to the satisfaction of the customs authorities that:

(a) an exporter has consigned these products from a Party to the country in which the exhibition is held and has exhibited them there;

(b) the products have been sold or otherwise disposed of by that exporter to a person in a Party;

(c) the products have been consigned during the exhibition or immediately thereafter in the state in which they were sent for exhibition; and

(d) the products have not, since they were consigned for exhibition, been used for any purpose other than demonstration at the exhibition.

2. A proof of origin shall be issued or made out in accordance with the provisions of Title V and submitted to the customs authorities of the importing Party in the normal manner. The name and address of the exhibition shall be indicated thereon. Where necessary, additional documentary evidence of the conditions under which they have been exhibited may be required.

3. Paragraph 1 shall apply to any trade, industrial, agricultural or crafts exhibition, fair or similar public show or display which is not organised for private purposes in shops or business premises with a view to the sale of foreign products, and during which the products remain under customs control.

TITLE IV

DRAWBACK OR EXEMPTION

Article 14

Prohibition of drawback of, or exemption from, customs duties

1. Non-originating materials used in the manufacture of products originating in a Party for which a proof of origin is issued or made out in accordance with the provisions of Title V shall not be subject in the Party to drawback of, or exemption from, customs duties of whatever kind.

2. The prohibition in paragraph 1 shall apply to any arrangement for refund, remission or non-payment, partial or complete, of customs duties or charges having an equivalent effect, applicable in a Party to materials used in the manufacture, where such refund, remission or non-payment applies, expressly or in effect, when products obtained from the said materials are exported and not when they are retained for home use there.

3. The exporter of products covered by a proof of origin shall be prepared to submit at any time, upon request from the customs authorities, all appropriate documents proving that no drawback has been obtained in respect of the non-originating materials used in the manufacture of the products concerned and that all customs duties or charges having equivalent effect applicable to such materials have actually been paid.

4. The provisions of paragraphs 1, 2 and 3 of this Article shall also apply in respect of packaging within the meaning of Article 7(2), accessories, spare parts and tools within the meaning of Article 8 and products in a set within the meaning of Article 9 when such items are non-originating.

5. The provisions of paragraphs 1 to 4 shall apply only in respect of materials which are of the kind to which this Protocol applies.

TITLE V

PROOF OF ORIGIN

Article 15

General requirements

1. Products originating in a Party shall, on importation into the other Party, benefit from the provisions of this Agreement upon submission of one of the following proofs of origin:

(a) a movement certificate EUR.1, a specimen of which appears in Annex III to this Protocol;

(b) in the cases specified in Article 21(1), a declaration (hereinafter referred to as the 'origin declaration') given by the exporter on an invoice, a delivery note or any other commercial document which describes the products concerned in sufficient detail to enable them to be identified. The text of the origin declaration appears in Annex IV to this Protocol.

2. Notwithstanding paragraph 1 of this Article, originating products within the meaning of this Protocol shall, in the cases specified in Article 26, benefit from the provisions of this Agreement without it being necessary to submit any of the proofs of origin referred to in paragraph 1 of this Article.

Article 16

Procedure for the issue of a movement certificate EUR.1

1. A movement certificate EUR.1 shall be issued by the customs authorities of the exporting Party on application having been made in writing by the exporter or, under the exporter's responsibility, by his authorised representative.

2. For this purpose, the exporter or his authorised representative shall fill in both the movement certificate EUR.1 and the application form, specimens of which appear in Annex III to this Protocol. These forms shall be completed in one of the languages in which this Agreement is drawn up and in accordance with the provisions of the national law of the exporting country. If the completion of the forms is done in handwriting, they shall be completed in ink, in printed characters. The description of the products shall be given in the box reserved for this purpose without leaving any blank lines. Where the box is not completely filled, a horizontal line shall be drawn below the last line of the description, the empty space being crossed through.

3. The exporter applying for the issue of a movement certificate EUR.1 shall be prepared to submit at any time, at the request of the customs authorities of the exporting Party where the movement certificate EUR.1 is issued, all appropriate documents proving the originating status of the products concerned as well as the fulfilment of the other requirements of this Protocol.

4. Without prejudice to paragraph 5, a movement certificate EUR.1 shall be issued by the customs authorities of a Member State of the European Union or of the Republic of Moldova if the products concerned can be considered as products originating in the European Union or in the Republic of Moldova and fulfil the other requirements of this Protocol.

5. The customs authorities issuing movement certificates EUR.1 shall take any steps necessary to verify the originating status of the products and the fulfilment of the other requirements of this Protocol. For this purpose, they shall have the right to call for any evidence and to carry out any inspection of the exporter's accounts or any other check considered appropriate. They shall also ensure that the forms referred to in paragraph 2 are duly completed. In particular, they shall check whether the space reserved for the description of the products has been completed in such a manner as to exclude all possibility of fraudulent additions.

6. The date of issue of the movement certificate EUR.1 shall be indicated in Box 11 of the certificate.

7. A movement certificate EUR.1 shall be issued by the customs authorities and made available to the exporter as soon as actual exportation has been effected or ensured.

Article 17

Movement certificates EUR.1 issued retrospectively

1. Notwithstanding Article 16(7), a movement certificate EUR.1 may exceptionally be issued after exportation of the products to which it relates if:

(a) it was not issued at the time of exportation because of errors or involuntary omissions or special circumstances; or

(b) it is demonstrated to the satisfaction of the customs authorities that a movement certificate EUR.1 was issued but was not accepted at importation for technical reasons.

2. For the implementation of paragraph 1, the exporter shall indicate in his application the place and date of exportation of the products to which the movement certificate EUR.1 relates, and state the reasons for his request.

3. The customs authorities may issue a movement certificate EUR.1 retrospectively only after verifying that the information supplied in the exporter's application complies with that in the corresponding file.

4. Movement certificates EUR.1 issued retrospectively shall be endorsed with the following phrase in English:

'ISSUED RETROSPECTIVELY'.

5. The endorsement referred to in paragraph 4 shall be inserted in Box 7 of the movement certificate EUR.1.

Article 18

Issue of a duplicate movement certificate EUR.1

1. In the event of theft, loss or destruction of a movement certificate EUR.1, the exporter may apply to the customs authorities which issued it for a duplicate made out on the basis of the export documents in their possession.

2. The duplicate issued in this way shall be endorsed with the following word in English:

'DUPLICATE'.

3. The endorsement referred to in paragraph 2 shall be inserted in Box 7 of the duplicate movement certificate EUR.1.

4. The duplicate, which shall bear the date of issue of the original movement certificate EUR.1, shall take effect as from that date.

Article 19

Issue of movement certificates EUR.1 on the basis of a proof of origin issued or made out previously

When originating products are placed under the control of a customs office in a Party, it shall be possible to replace the original proof of origin by one or more movement certificates EUR.1 for the purpose of sending all or some of these products elsewhere within that Party. The replacement movement certificate(s) EUR.1 shall be issued by the customs office under whose control the products are placed.

Article 20

Accounting segregation

1. Where considerable cost or material difficulties arise in keeping separate stocks of originating and non-originating materials which are identical and interchangeable, the customs authorities may, at the written request of those concerned, authorise the so-called 'accounting segregation' method (hereinafter referred to as the 'method') to be used for managing such stocks.

2. The method shall ensure that, for a specific reference period, the number of products obtained which could be considered as 'originating' is the same as that which would have been obtained had there been physical segregation of the stocks.

3. The customs authorities may make the grant of authorisation referred to in paragraph 1 subject to any conditions deemed appropriate.

4. The method shall be applied and the application thereof shall be recorded on the basis of the general accounting principles applicable in the country where the product was manufactured.

5. The beneficiary of the method may make out or apply for proofs of origin, as the case may be, for the quantity of products which may be considered as originating. At the request of the customs authorities, the beneficiary shall provide a statement of how the quantities have been managed.

6. The customs authorities shall monitor the use made of the authorisation and may withdraw it whenever the beneficiary makes improper use of the authorisation in any manner whatsoever or fails to fulfil any of the other conditions laid down in this Protocol.

Article 21

Conditions for making out an origin declaration

1. An origin declaration as referred to in Article 15(1)(b) may be made out:

(a) by an approved exporter within the meaning of Article 22; or

(b) by any exporter for any consignment consisting of one or more packages containing originating products the total value of which does not exceed EUR 6 000.

2. Without prejudice to paragraph 3, an origin declaration may be made out if the products concerned can be considered as products originating in the European Union or in the Republic of Moldova and fulfil the other requirements of this Protocol.

3. The exporter making out an origin declaration shall be prepared to submit at any time, at the request of the customs authorities of the exporting Party, all appropriate documents proving the originating status of the products concerned as well as the fulfilment of the other requirements of this Protocol.

4. An origin declaration shall be made out by the exporter by typing, stamping or printing on the invoice, the delivery note or another commercial document, the declaration, the text of which appears in Annex IV to this Protocol, using one of the linguistic versions set out in that Annex and in accordance with the provisions of the national law of the exporting country. If the declaration is handwritten, it shall be written in ink, in printed characters.

5. Origin declarations shall bear the original signature of the exporter in manuscript. However, an approved exporter within the meaning of Article 22 shall not be required to sign such declarations provided that he gives the customs authorities of the exporting Party a written undertaking that he accepts full responsibility for any origin declaration which identifies him as if it had been signed in manuscript by him.

6. An origin declaration may be made out by the exporter when the products to which it relates are exported, or after exportation on condition that it is presented in the importing country at the latest two years after the importation of the products to which it relates.

Article 22

Approved exporter

1. The customs authorities of the exporting Party may authorise any exporter (hereinafter referred to as 'approved exporter'), who makes frequent shipments of products in accordance with the provisions of this Protocol, to make out origin declarations irrespective of the value of the products concerned. An exporter seeking such authorisation shall offer to the satisfaction of the customs authorities all guarantees necessary to verify the originating status of the products as well as the fulfilment of the other requirements of this Protocol.

2. The customs authorities may grant the status of approved exporter subject to any conditions which they consider appropriate.

3. The customs authorities shall grant to the approved exporter a customs authorisation number which shall appear on the origin declaration.

4. The customs authorities shall monitor the use of the authorisation by the approved exporter.

5. The customs authorities may withdraw the authorisation at any time. They shall do so where the approved exporter no longer offers the guarantees referred to in paragraph 1, no longer fulfils the conditions referred to in paragraph 2 or otherwise makes incorrect use of the authorisation.

Article 23

Validity of proof of origin

1. A proof of origin shall be valid for four months from the date of issue in the exporting Party, and shall be submitted within that period to the customs authorities of the importing Party.

2. Proofs of origin which are submitted to the customs authorities of the importing Party after the final date for presentation specified in paragraph 1 may be accepted for the purpose of applying preferential treatment, where the failure to submit these documents by the final date set is due to exceptional circumstances.

3. In other cases of belated presentation, the customs authorities of the importing Party may accept the proofs of origin where the products have been submitted before the said final date.

Article 24

Submission of proof of origin

Proofs of origin shall be submitted to the customs authorities of the importing Party in accordance with the procedures applicable in that country. The said authorities may require a translation of a proof of origin and may also require the import declaration to be accompanied by a statement from the importer to the effect that the products meet the conditions required for the implementation of this Agreement.

Article 25

Importation by instalments

Where, at the request of the importer and subject to the conditions laid down by the customs authorities of the importing Party, dismantled or non-assembled products within the meaning of General Rule 2(a) of the Harmonised System falling within Sections XVI and XVII or headings 7308 and 9406 of the Harmonised System are imported by instalments, a single proof of origin for such products shall be submitted to the customs authorities upon importation of the first instalment.

Article 26

Exemptions from proof of origin

1. Products sent as small packages from private persons to private persons or forming part of travellers' personal luggage shall be admitted as originating products without requiring the submission of a proof of origin, provided that such products are not imported by way of trade and have been declared as meeting the requirements of this Protocol, and where there is no doubt as to the veracity of such a declaration. In the case of products sent by post, that declaration may be made on the customs declaration CN22/CN23 or on a sheet of paper annexed to that document.

2. Imports which are occasional and consist solely of products for the personal use of the recipients or travellers or their families shall not be considered as imports by way of trade if it is evident from the nature and quantity of the products that no commercial purpose is in view.

3. Furthermore, the total value of these products shall not exceed EUR 500 in the case of small packages or EUR 1 200 in the case of products forming part of travellers' personal luggage.

Article 27

Supporting documents

The documents referred to in Articles 16(3) and 21(3) used for the purpose of proving that products covered by a movement certificate EUR.1 or an origin declaration may be considered as products originating in a Party and fulfil the other requirements of this Protocol may consist, inter alia, of the following:

(a) direct evidence of the processes carried out by the exporter or supplier to obtain the goods concerned, contained for example in his accounts or internal bookkeeping;

(b) documents proving the originating status of materials used, issued or made out in the relevant Party where these documents are used in accordance with national law;

(c) documents proving the working or processing of materials in the relevant Party, issued or made out in the relevant Party, where these documents are used in accordance with national law;

(d) movement certificates EUR.1 or origin declarations proving the originating status of materials used, issued or made out in the relevant Party in accordance with this Protocol;

(e) appropriate evidence concerning working or processing undergone outside the relevant Party by application of Article 11, proving that the requirements of that Article have been satisfied.

Article 28

Preservation of proof of origin and supporting documents

1. The exporter applying for the issue of a movement certificate EUR.1 shall keep for at least three years the documents referred to in Article 16(3).

2. The exporter making out an origin declaration shall keep for at least three years a copy of this origin declaration as well as the documents referred to in Article 21(3).

3. The customs authorities of the exporting Party issuing a movement certificate EUR.1 shall keep for at least three years the application form referred to in Article 16(2).

4. The customs authorities of the importing Party shall keep for at least three years the movement certificates EUR.1 and the origin declarations submitted to them.

Article 29

Discrepancies and formal errors

1. The discovery of slight discrepancies between the statements made in the proof of origin and those made in the document submitted to the customs office for the purpose of carrying out the formalities for importing the products shall not, ipso facto, render the proof of origin null and void if it is duly established that this document does correspond to the products submitted.

2. Obvious formal errors such as typing errors on a proof of origin shall not cause this document to be rejected if these errors are not such as to create doubts concerning the correctness of the statements made in this document.

Article 30

Amounts expressed in euro

1. For the application of the provisions of Article 21(1)(b) and Article 26(3) in cases where products are invoiced in a currency other than euro, amounts in the national currencies of the Parties equivalent to the amounts expressed in euro shall be fixed annually by each of the countries concerned.

2. A consignment shall benefit from the provisions of Article 21(1)(b) or Article 26(3) by reference to the currency in which the invoice is drawn up, according to the amount fixed by the country concerned.

3. The amounts to be used in any given national currency shall be the equivalent in that currency of the amounts expressed in euro as at the first working day of October. The amounts shall be communicated to the European Commission by 15 October and shall apply from 1 January the following year. The European Commission shall notify all countries concerned of the relevant amounts.

4. A country may round up or down the amount resulting from the conversion into its national currency of an amount expressed in euro. The rounded-off amount may not differ from the amount resulting from the conversion by more than 5 %. A country may retain unchanged its national currency equivalent of an amount expressed in euro if, at the time of the annual adjustment provided for in paragraph 3, the conversion of that amount, prior to any rounding off, results in an increase of less than 15 % in the national currency equivalent. The national currency equivalent may be retained unchanged if the conversion were to result in a decrease in that equivalent value.

5. The amounts expressed in euro shall be reviewed by the Customs Sub-Committee at the request of any Party. When carrying out this review, the Customs Sub-Committee shall consider the desirability of preserving the effects of the limits concerned in real terms. For this purpose, it may decide to modify the amounts expressed in euro.

TITLE VI

ARRANGEMENTS FOR ADMINISTRATIVE COOPERATION

Article 31

Administrative cooperation

1. The customs authorities of the Parties shall provide each other, through the European Commission, with specimen impressions of stamps used in their customs offices for the issue of movement certificates EUR.1, and with the addresses of the customs authorities responsible for verifying those certificates and origin declarations.

2. In order to ensure the proper application of this Protocol, the Parties shall assist each other, through the competent customs administrations, in checking the authenticity of the movement certificates EUR.1, the origin declarations and the correctness of the information given in these documents.

Article 32

Verification of proofs of origin

1. Subsequent verifications of proofs of origin shall be carried out at random or whenever the customs authorities of the importing Party have reasonable doubts as to the authenticity of such documents, the originating status of the products concerned or the fulfilment of the other requirements of this Protocol.

2. For the purposes of implementing the provisions of paragraph 1, the customs authorities of the importing Party shall return the movement certificate EUR.1 and the invoice, if it has been submitted, the origin declaration, or a copy of these documents, to the customs authorities of the exporting Party giving, where appropriate, the reasons for the request for verification. Any documents and information obtained suggesting that the information given on the proof of origin is incorrect shall be forwarded in support of the request for verification.

3. The verification shall be carried out by the customs authorities of the exporting Party. For this purpose, they shall have the right to call for any evidence and to carry out any inspection of the exporter's accounts or any other check considered appropriate.

4. If the customs authorities of the importing Party decide to suspend the granting of preferential treatment to the products concerned while awaiting the results of the verification, release of the products shall be offered to the importer subject to any precautionary measures judged necessary.

5. The customs authorities requesting the verification shall be informed of the results thereof as soon as possible. These results shall indicate clearly whether the documents are authentic and whether the products concerned may be considered as products originating in a Party and fulfil the other requirements of this Protocol.

6. If, in cases of reasonable doubt, there is no reply within ten months of the date of the verification request or if the reply does not contain sufficient information to determine the authenticity of the document in question or the real origin of the products, the requesting customs authorities shall, except in exceptional circumstances, refuse entitlement to the preferences.

Article 33

Dispute settlement

1. Where disputes arise in relation to the verification procedures provided for in Article 32 of this Protocol which cannot be settled between the customs authorities requesting a verification and the customs authorities responsible for carrying out this verification, those disputes shall be submitted to the Association Committee in Trade configuration as set out in Article 438(4) of this Agreement. Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement shall not apply.

2. Where disputes other than those related to the verification procedures provided for in Article 32 of this Protocol arise in relation to the interpretation of this Protocol, those disputes shall be submitted to the Customs Sub-Committee. A dispute settlement proceeding under Chapter 14 (Dispute Settlement) of Title V (Trade and Trade-related Matters) of this Agreement may only be initiated, if the Customs Sub-Committee has failed to resolve the dispute within six months from the date on which the dispute was submitted to the Customs Sub-Committee.

3. In all cases the settlement of disputes between the importer and the customs authorities of the importing Party shall take place under the legislation of that Party.

Article 34

Penalties

Penalties shall be imposed on any person who draws up, or causes to be drawn up, a document which contains incorrect information for the purpose of obtaining a preferential treatment for products.

Article 35

Free zones

1. The Parties shall take all necessary steps to ensure that products traded under cover of a proof of origin, which in the course of transport use a free zone situated in their territory, are not substituted by other goods and do not undergo handling other than normal operations designed to prevent their deterioration.

2. By way of derogation from paragraph 1, when products originating in a Party are imported into a free zone under cover of a proof of origin and undergo treatment or processing, the authorities concerned shall issue a new movement certificate EUR.1 at the exporter's request, if the treatment or processing undergone complies with this Protocol.

TITLE VII

CEUTA AND MELILLA

Article 36

Application of this Protocol

1. The term 'European Union' does not cover Ceuta and Melilla.

2. Products originating in the Republic of Moldova, when imported into Ceuta or Melilla, shall enjoy in all respects the same customs regime as that which is applied to products originating in the customs territory of the European Union under Protocol 2 to the Act of Accession of Spain and Portugal to the European Communities. The Republic of Moldova shall grant to imports of products covered by this Agreement and originating in Ceuta and Melilla the same customs regime as that which is granted to products imported from and originating in the European Union.

3. For the purpose of the application of paragraph 2 of this Article with regard to products originating in Ceuta and Melilla, this Protocol shall apply *mutatis mutandis* subject to the special conditions set out in Article 37.

Article 37

Special conditions

1. Provided that they have been transported directly in accordance with the provisions of Article 12, the following shall be considered as:

(1) products originating in Ceuta and Melilla:

(a) products wholly obtained in Ceuta and Melilla;

(b) products obtained in Ceuta and Melilla, in the manufacture of which products other than those referred to in point (a) are used, provided that:

(i) those products have undergone sufficient working or processing within the meaning of Article 5;

or that

(ii) those products originated in a Party, provided that they have been submitted to working or processing which goes beyond the operations referred to in Article 6;

(2) products originating in the Republic of Moldova:

(a) products wholly obtained in the Republic of Moldova;

(b) products obtained in the Republic of Moldova, in the manufacture of which products other than those referred to in point (a) are used, provided that:

(i) the said products have undergone sufficient working or processing within the meaning of Article 5;

or that

(ii) those products originated in Ceuta and Melilla or in the European Union, provided that they have been submitted to working or processing which goes beyond the operations referred to in Article 6.

2. Ceuta and Melilla shall be considered as a single territory.

3. The exporter or his authorised representative shall enter 'Republic of Moldova' and 'Ceuta and Melilla' in Box 2 of movement certificates EUR.1 or on origin declarations. In addition, in the case of products originating in Ceuta and Melilla, this shall be indicated in Box 4 of movement certificates EUR.1 or on origin declarations.

4. The Spanish customs authorities shall be responsible for the application of this Protocol in Ceuta and Melilla.

TITLE VIII

FINAL PROVISIONS

Article 38

Amendments to this Protocol

The Customs Sub-Committee may decide to amend the provisions of this Protocol.

Article 39

Transitional provisions for goods in transit or storage

The provisions of this Agreement may be applied to goods which comply with the provisions of this Protocol and which on the date of entry into force of this Agreement are either in transit, in the Parties, in temporary storage in customs warehouses or in free zones, subject to the submission to the customs authorities of the importing Party, within four months of that date, of a proof of origin made out retrospectively together with the documents showing that the goods have been transported directly in accordance with Article 12.

ANNEX I TO PROTOCOL II

INTRODUCTORY NOTES TO THE LIST IN ANNEX II TO PROTOCOL II

Note 1:

The list sets out the conditions required for all products to be considered as sufficiently worked or processed within the meaning of Article 5 of this Protocol.

Note 2:

2.1. The first two columns in the list describe the product obtained. The first column gives the heading number or chapter number used in the Harmonised System and the second column gives the description of goods used in that system for that heading or chapter. For each entry in the first two columns, a rule is specified in column 3 or 4. Where, in some cases, the entry in the first column is preceded by an 'ex', this signifies that the rules in column 3 or 4 apply only to the part of that heading as described in column 2.

2.2. Where several heading numbers are grouped together in column 1 or a chapter number is given and the description of products in column 2 is therefore given in general terms, the adjacent rules in column 3 or 4 apply to all products which, under the Harmonised System, are classified in headings of the chapter or in any of the headings grouped together in column 1.

2.3. Where there are different rules in the list applying to different products within a heading, each indent contains the description of that part of the heading covered by the adjacent rules in column 3 or 4.

2.4. Where, for an entry in the first two columns, a rule is specified in both columns 3 and 4, the exporter may opt to apply either the rule set out in column 3 or that set out in column 4. If no origin rule is given in column 4, the rule set out in column 3 is to be applied.

Note 3:

3.1. The provisions of Article 5 of this Protocol, concerning products having acquired originating status which are used in the manufacture of other products, shall apply regardless of whether this status has been acquired inside the factory where these products are used or in another factory in a Party.

Example:

An engine of heading 8407, for which the rule states that the value of the non-originating materials which may be incorporated may not exceed 40 % of the ex-works price, is made from 'other alloy steel roughly shaped by forging' of heading ex 7224.

If this forging has been forged in the European Union from a non-originating ingot, it has already acquired originating status by virtue of the rule for heading ex 7224 in the list. The forging can then count as originating in the value-calculation for the engine, regardless of whether it was produced in the same factory or in another factory in the European Union. The value of the non-originating ingot is thus not taken into account when adding up the value of the non-originating materials used.

3.2. The rule in the list represents the minimum amount of working or processing required, and the carrying-out of more working or processing also confers originating status; conversely, the carrying-out of less working or processing cannot confer originating status. Thus, if a rule provides that non-originating material, at a certain level of manufacture, may be used, the use of such material at an earlier stage of manufacture is allowed, and the use of such material at a later stage is not.

3.3. Without prejudice to Note 3.2, where a rule uses the expression 'Manufacture from materials of any heading', then materials of any heading(s) (even materials of the same description and heading as the product) may be used, subject, however, to any specific limitations which may also be contained in the rule.

However, the expression 'Manufacture from materials of any heading, including other materials of heading …' or 'Manufacture from materials of any heading, including other materials of the same heading as the product' means that materials of any heading(s) may be used, except those of the same description as the product as given in column 2 of the list.

3.4. When a rule in the list specifies that a product may be manufactured from more than one material, this means that one or more materials may be used. It does not require that all be used.

Example:

The rule for fabrics of headings 5208 to 5212 provides that natural fibres may be used and that chemical materials, among other materials, may also be used. This does not mean that both have to be used; it is possible to use one or the other, or both.

3.5. Where a rule in the list specifies that a product must be manufactured from a particular material, the condition does not prevent the use of other materials which, because of their inherent nature, cannot satisfy the rule. (See also Note 6.2 below in relation to textiles).

Example:

The rule for prepared foods of heading 1904, which specifically excludes the use of cereals and their derivatives, does not prevent the use of mineral salts, chemicals and other additives which are not products from cereals.

However, this does not apply to products which, although they cannot be manufactured from the particular materials specified in the list, can be produced from a material of the same nature at an earlier stage of manufacture.

Example:

In the case of an article of apparel of ex Chapter 62 made from non-woven materials, if the use of only non-originating yarn is allowed for this class of article, it is not possible to start from non-woven cloth — even if non-woven cloths cannot normally be made from yarn. In such cases, the starting material would normally be at the stage before yarn — that is, the fibre stage.

3.6. Where, in a rule in the list, two percentages are given for the maximum value of non-originating materials that can be used, then these percentages may not be added together. In other words, the maximum value of all the non-originating materials used may never exceed the higher of the percentages given. Furthermore, the individual percentages must not be exceeded, in relation to the particular materials to which they apply.

Note 4:

4.1. The term 'natural fibres' is used in the list to refer to fibres other than artificial or synthetic fibres. It is restricted to the stages before spinning takes place, including waste, and, unless otherwise specified, includes fibres which have been carded, combed or otherwise processed, but not spun.

4.2. The term 'natural fibres' includes horsehair of heading 0511, silk of headings 5002 and 5003, as well as wool fibres and fine or coarse animal hair of headings 5101 to 5105, cotton fibres of headings 5201 to 5203, and other vegetable fibres of headings 5301 to 5305.

4.3. The terms 'textile pulp', 'chemical materials' and 'paper-making materials' are used in the list to describe the materials, not classified in Chapters 50 to 63, which can be used to manufacture artificial, synthetic or paper fibres or yarns.

4.4. The term 'man-made staple fibres' is used in the list to refer to synthetic or artificial filament tow, staple fibres or waste, of headings 5501 to 5507.

Note 5:

5.1. Where, for a given product in the list, reference is made to this Note, the conditions set out in column 3 shall not be applied to any basic textile materials used in the manufacture of this product and which, taken together, represent 10 % or less of the total weight of all the basic textile materials used. (See also Notes 5.3 and 5.4).

5.2. However, the tolerance mentioned in Note 5.1 may be applied only to mixed products which have been made from two or more basic textile materials.

The following are the basic textile materials:

— silk,

— wool,

— coarse animal hair,

— fine animal hair,

— horsehair,

— cotton,

— paper-making materials and paper,

— flax,

— true hemp,

— jute and other textile bast fibres,

— sisal and other textile fibres of the genus Agave,

— coconut, abaca, ramie and other vegetable textile fibres,

— synthetic man-made filaments,

— artificial man-made filaments,

— current-conducting filaments,

— synthetic man-made staple fibres of polypropylene,

— synthetic man-made staple fibres of polyester,

— synthetic man-made staple fibres of polyamide,

— synthetic man-made staple fibres of polyacrylonitrile,

— synthetic man-made staple fibres of polyimide,

— synthetic man-made staple fibres of polytetrafluoroethylene,

— synthetic man-made staple fibres of poly(phenylene sulphide),

— synthetic man-made staple fibres of poly(vinyl chloride),

— other synthetic man-made staple fibres,

— artificial man-made staple fibres of viscose,

— other artificial man-made staple fibres,

— yarn made of polyurethane segmented with flexible segments of polyether, whether or not gimped,

— yarn made of polyurethane segmented with flexible segments of polyester, whether or not gimped,

— products of heading 5605 (metallised yarn) incorporating strip consisting of a core of aluminium foil or of a core of plastic film whether or not coated with aluminium powder, of a width not exceeding 5 mm, sandwiched by means of a transparent or coloured adhesive between two layers of plastic film,

— other products of heading 5605.

Example:

A yarn, of heading 5205, made from cotton fibres of heading 5203 and synthetic staple fibres of heading 5506, is a mixed yarn. Therefore, non-originating synthetic staple fibres which do not satisfy the origin-rules (which require manufacture from chemical materials or textile pulp) may be used, provided that their total weight does not exceed 10 % of the weight of the yarn.

Example:

A woollen fabric, of heading 5112, made from woollen yarn of heading 5107 and synthetic yarn of staple fibres of heading 5509, is a mixed fabric. Therefore, synthetic yarn which does not satisfy the origin-rules (which require manufacture from chemical materials or textile pulp), or woollen yarn which does not satisfy the origin-rules (which require manufacture from natural fibres, not carded or combed or otherwise prepared for spinning), or a combination of the two, may be used, provided that their total weight does not exceed 10 % of the weight of the fabric.

Example:

Tufted textile fabric, of heading 5802, made from cotton yarn of heading 5205 and cotton fabric of heading 5210, is a only mixed product if the cotton fabric is itself a mixed fabric made from yarns classified in two separate headings, or if the cotton yarns used are themselves mixtures.

Example:

If the tufted textile fabric concerned had been made from cotton yarn of heading 5205 and synthetic fabric of heading 5407, then, obviously, the yarns used are two separate basic textile materials and the tufted textile fabric is, accordingly, a mixed product.

5.3. In the case of products incorporating 'yarn made of polyurethane segmented with flexible segments of polyether, whether or not gimped', this tolerance is 20 % in respect of this yarn.

5.4. In the case of products incorporating 'strip consisting of a core of aluminium foil or of a core of plastic film whether or not coated with aluminium powder, of a width not exceeding 5 mm, sandwiched by means of a transparent or coloured adhesive between two layers of plastic film', this tolerance is 30 % in respect of this strip.

Note 6:

6.1. Where, in the list, reference is made to this Note, textile materials (with the exception of linings and interlinings), which do not satisfy the rule set out in the list in column 3 for the made-up product concerned, may be used, provided that they are classified in a heading other than that of the product and that their value does not exceed 8 % of the ex-works price of the product.

6.2. Without prejudice to Note 6.3, materials, which are not classified within Chapters 50 to 63, may be used freely in the manufacture of textile products, whether or not they contain textiles.

Example:

If a rule in the list provides that, for a particular textile item (such as trousers), yarn must be used, this does not prevent the use of metal items, such as buttons, because buttons are not classified within Chapters 50 to 63. For the same reason, it does not prevent the use of slide-fasteners, even though slide-fasteners normally contain textiles.

6.3. Where a percentage rule applies, the value of materials which are not classified within Chapters 50 to 63 must be taken into account when calculating the value of the non-originating materials incorporated.

Note 7:

7.1. For the purposes of headings ex 2707, 2713 to 2715, ex 2901, ex 2902 and ex 3403, the 'specific processes' are the following:

(a) vacuum-distillation;

(b) redistillation by a very thorough fractionation process;

(c) cracking;

(d) reforming;

(e) extraction by means of selective solvents;

(f) the process comprising all of the following operations: processing with concentrated sulphuric acid, oleum or sulphuric anhydride; neutralisation with alkaline agents; decolourisation and purification with naturally active earth, activated earth, activated charcoal or bauxite;

(g) polymerisation;

(h) alkylation;

(i) isomerisation.

7.2. For the purposes of headings 2710, 2711 and 2712, the 'specific processes' are the following:

(a) vacuum-distillation;

(b) redistillation by a very thorough fractionation process;

(c) cracking;

(d) reforming;

(e) extraction by means of selective solvents;

(f) the process comprising all of the following operations: processing with concentrated sulphuric acid, oleum or sulphuric anhydride; neutralisation with alkaline agents; decolourisation and purification with naturally active earth, activated earth, activated charcoal or bauxite;

(g) polymerisation;

(h) alkylation;

(i) isomerisation;

(j) in respect of heavy oils of heading ex 2710 only, desulphurisation with hydrogen, resulting in a reduction of at least 85 % of the sulphur content of the products processed (ASTM D 1266-59 T method);

(k) in respect of products of heading 2710 only, deparaffining by a process other than filtering;

(l) in respect of heavy oils of heading ex 2710 only, treatment with hydrogen, at a pressure of more than 20 bar and a temperature of more than 250 °C, with the use of a catalyst, other than to effect desulphurisation, when the hydrogen constitutes an active element in a chemical reaction. The further treatment, with hydrogen, of lubricating oils of heading ex 2710 (e.g. hydrofinishing or decolourisation), in order, more especially, to improve colour or stability shall not, however, be deemed to be a specific process;

(m) in respect of fuel oils of heading ex 2710 only, atmospheric distillation, on condition that less than 30 % of these products distils, by volume, including losses, at 300 °C, by the ASTM D 86 method;

(n) in respect of heavy oils other than gas oils and fuel oils of heading ex 2710 only, treatment by means of a high-frequency electrical brush discharge;

(o) in respect of crude products (other than petroleum jelly, ozokerite, lignite wax or peat wax, paraffin wax containing by weight less than 0,75 % of oil) of heading ex 2712 only, de-oiling by fractional crystallisation.

7.3. For the purposes of headings ex 2707, 2713 to 2715, ex 2901, ex 2902 and ex 3403, simple operations, such as cleaning, decanting, desalting, water separation, filtering, colouring, marking, obtaining a sulphur content as a result of mixing products with different sulphur contents, or any combination of these operations or like operations, do not confer origin.

ANNEX II TO PROTOCOL II

LIST OF WORKING OR PROCESSING REQUIRED TO BE CARRIED OUT ON NON-ORIGINATING MATERIALS IN ORDER FOR THE PRODUCT MANUFACTURED TO OBTAIN ORIGINATING STATUS

The products mentioned in the list may not be all covered by this Agreement. It is, therefore, necessary to consult the other parts of this Agreement.

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
Chapter 1	Live animals	All the animals of Chapter 1 shall be wholly obtained	
Chapter 2	Meat and edible meat offal	Manufacture in which all the materials of Chapters 1 and 2 used are wholly obtained	
Chapter 3	Fish and crustaceans, molluscs and other aquatic invertebrates	Manufacture in which all the materials of Chapter 3 used are wholly obtained	
ex Chapter 4	Dairy produce; birds' eggs; natural honey; edible products of animal origin, not elsewhere specified or included; except for:	Manufacture in which all the materials of Chapter 4 used are wholly obtained	
0403	Buttermilk, curdled milk and cream, yoghurt, kephir and other fermented or acidified milk and cream, whether or not concentrated or containing added sugar or other sweetening matter or flavoured or containing added fruit, nuts or cocoa	Manufacture in which: — all the materials of Chapter 4 used are wholly obtained, — all the fruit juice (except that of pineapple, lime or grapefruit) of heading 2009 used is originating, and — the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	
ex Chapter 5	Products of animal origin, not elsewhere specified or included; except for:	Manufacture in which all the materials of Chapter 5 used are wholly obtained	
ex 0502	Prepared pigs', hogs' or boars' bristles and hair	Cleaning, disinfecting, sorting and straightening of bristles and hair	
Chapter 6	Live trees and other plants; bulbs, roots and the like; cut flowers and ornamental foliage	Manufacture in which: — all the materials of Chapter 6 used are wholly obtained, and — the value of all the materials used does not exceed 50 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
Chapter 7	Edible vegetables and certain roots and tubers	Manufacture in which all the materials of Chapter 7 used are wholly obtained	
Chapter 8	Edible fruit and nuts; peel of citrus fruits or melons	Manufacture in which: — all the fruit and nuts used are wholly obtained, and — the value of all the materials of Chapter 17 used does not exceed 30 % of the value of the ex-works price of the product	
ex Chapter 9	Coffee, tea, maté and spices; except for:	Manufacture in which all the materials of Chapter 9 used are wholly obtained	
0901	Coffee, whether or not roasted or decaffeinated; coffee husks and skins; coffee substitutes containing coffee in any proportion	Manufacture from materials of any heading	
0902	Tea, whether or not flavoured	Manufacture from materials of any heading	
ex 0910	Mixtures of spices	Manufacture from materials of any heading	
Chapter 10	Cereals	Manufacture in which all the materials of Chapter 10 used are wholly obtained	
ex Chapter 11	Products of the milling industry; malt; starches; inulin; wheat gluten; except for:	Manufacture in which all the cereals, edible vegetables, roots and tubers of heading 0714 or fruit used are wholly obtained	
ex 1106	Flour, meal and powder of the dried, shelled leguminous vegetables of heading 0713	Drying and milling of leguminous vegetables of heading 0708	
Chapter 12	Oil seeds and oleaginous fruits; miscellaneous grains, seeds and fruit; industrial or medicinal plants; straw and fodder	Manufacture in which all the materials of Chapter 12 used are wholly obtained	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
1301	Lac; natural gums, resins, gum-resins and oleoresins (for example, balsams)	Manufacture in which the value of all the materials of heading 1301 used does not exceed 50 % of the ex-works price of the product	
1302	Vegetable saps and extracts; pectic substances, pectinates and pectates; agar-agar and other mucilages and thickeners, whether or not modified, derived from vegetable products:		
	— Mucilages and thickeners, modified, derived from vegetable products	Manufacture from non-modified mucilages and thickeners	
	— Other	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
Chapter 14	Vegetable plaiting materials; vegetable products not elsewhere specified or included	Manufacture in which all the materials of Chapter 14 used are wholly obtained	
ex Chapter 15	Animal or vegetable fats and oils and their cleavage products; prepared edible fats; animal or vegetable waxes; except for:	Manufacture from materials of any heading, except that of the product	
1501	Pig fat (including lard) and poultry fat, other than that of heading 0209 or 1503:		
	— Fats from bones or waste	Manufacture from materials of any heading, except those of heading 0203, 0206 or 0207 or bones of heading 0506	
	— Other	Manufacture from meat or edible offal of swine of heading 0203 or 0206 or of meat and edible offal of poultry of heading 0207	
1502	Fats of bovine animals, sheep or goats, other than those of heading 1503		
	— Fats from bones or waste	Manufacture from materials of any heading, except those of heading 0201, 0202, 0204 or 0206 or bones of heading 0506	
	— Other	Manufacture in which all the materials of Chapter 2 used are wholly obtained	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
1504	Fats and oils and their fractions, of fish or marine mammals, whether or not refined, but not chemically modified:		
	— Solid fractions	Manufacture from materials of any heading, including other materials of heading 1504	
	— Other	Manufacture in which all the materials of Chapters 2 and 3 used are wholly obtained	
ex 1505	Refined lanolin	Manufacture from crude wool grease of heading 1505	
1506	Other animal fats and oils and their fractions, whether or not refined, but not chemically modified:		
	— Solid fractions	Manufacture from materials of any heading, including other materials of heading 1506	
	— Other	Manufacture in which all the materials of Chapter 2 used are wholly obtained	
1507 to 1515	Vegetable oils and their fractions:		
	— Soya, ground nut, palm, copra, palm kernel, babassu, tung and oiticica oil, myrtle wax and Japan wax, fractions of jojoba oil and oils for technical or industrial uses other than the manufacture of foodstuffs for human consumption	Manufacture from materials of any heading, except that of the product	
	— Solid fractions, except for that of jojoba oil	Manufacture from other materials of headings 1507 to 1515	
	— Other	Manufacture in which all the vegetable materials used are wholly obtained	
1516	Animal or vegetable fats and oils and their fractions, partly or wholly hydrogenated, inter-esterified, re-esterified or elaidinised, whether or not refined, but not further prepared	Manufacture in which: — all the materials of Chapter 2 used are wholly obtained, and — all the vegetable materials used are wholly obtained. However, materials of headings 1507, 1508, 1511 and 1513 may be used	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
1517	Margarine; edible mixtures or preparations of animal or vegetable fats or oils or of fractions of different fats or oils of this Chapter, other than edible fats or oils or their fractions of heading 1516	Manufacture in which: — all the materials of Chapters 2 and 4 used are wholly obtained, and — all the vegetable materials used are wholly obtained. However, materials of headings 1507, 1508, 1511 and 1513 may be used	
Chapter 16	Preparations of meat, of fish or of crustaceans, molluscs or other aquatic invertebrates	Manufacture: — from animals of Chapter 1, and/or — in which all the materials of Chapter 3 used are wholly obtained	
ex Chapter 17	Sugars and sugar confectionery; except for:	Manufacture from materials of any heading, except that of the product	
ex 1701	Cane or beet sugar and chemically pure sucrose, in solid form, containing added flavouring or colouring matter	Manufacture in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	
1702	Other sugars, including chemically pure lactose, maltose, glucose and fructose, in solid form; sugar syrups not containing added flavouring or colouring matter; artificial honey, whether or not mixed with natural honey; caramel:		
	— Chemically-pure maltose and fructose	Manufacture from materials of any heading, including other materials of heading 1702	
	— Other sugars in solid form, containing added flavouring or colouring matter	Manufacture in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	
	— Other	Manufacture in which all the materials used are originating	
ex 1703	Molasses resulting from the extraction or refining of sugar, containing added flavouring or colouring matter	Manufacture in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
1704	Sugar confectionery (including white chocolate), not containing cocoa	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	
Chapter 18	Cocoa and cocoa preparations	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	
1901	Malt extract; food preparations of flour, groats, meal, starch or malt extract, not containing cocoa or containing less than 40 % by weight of cocoa calculated on a totally defatted basis, not elsewhere specified or included; food preparations of goods of headings 0401 to 0404, not containing cocoa or containing less than 5 % by weight of cocoa calculated on a totally defatted basis, not elsewhere specified or included:		
	— Malt extract	Manufacture from cereals of Chapter 10	
	— Other	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	
1902	Pasta, whether or not cooked or stuffed (with meat or other substances) or otherwise prepared, such as spaghetti, macaroni, noodles, lasagne, gnocchi, ravioli, cannelloni; couscous, whether or not prepared:		
	— Containing 20 % or less by weight of meat, meat offal, fish, crustaceans or molluscs	Manufacture in which all the cereals and derivatives (except durum wheat and its derivatives) used are wholly obtained	
	— Containing more than 20 % by weight of meat, meat offal, fish, crustaceans or molluscs	Manufacture in which: — all the cereals and their derivatives (except durum wheat and its derivatives) used are wholly obtained, and — all the materials of Chapters 2 and 3 used are wholly obtained	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
1903	Tapioca and substitutes therefore prepared from starch, in the form of flakes, grains, pearls, siftings or similar forms	Manufacture from materials of any heading, except potato starch of heading 1108	
1904	Prepared foods obtained by the swelling or roasting of cereals or cereal products (for example, corn flakes); cereals (other than maize (corn)) in grain form or in the form of flakes or other worked grains (except flour, groats and meal), pre-cooked or otherwise prepared, not elsewhere specified or included	Manufacture: — from materials of any heading, except those of heading 1806, — in which all the cereals and flour (except durum wheat and Zea indurata maize, and their derivatives) used are wholly obtained, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	
1905	Bread, pastry, cakes, biscuits and other bakers' wares, whether or not containing cocoa; communion wafers, empty cachets of a kind suitable for pharmaceutical use, sealing wafers, rice paper and similar products	Manufacture from materials of any heading, except those of Chapter 11	
ex Chapter 20	Preparations of vegetables, fruit, nuts or other parts of plants; except for:	Manufacture in which all the fruit, nuts or vegetables used are wholly obtained	
ex 2001	Yams, sweet potatoes and similar edible parts of plants containing 5 % or more by weight of starch, prepared or preserved by vinegar or acetic acid	Manufacture from materials of any heading, except that of the product	
ex 2004 and ex 2005	Potatoes in the form of flour, meal or flakes, prepared or preserved otherwise than by vinegar or acetic acid	Manufacture from materials of any heading, except that of the product	
2006	Vegetables, fruit, nuts, fruit-peel and other parts of plants, preserved by sugar (drained, glacé or crystallized)	Manufacture in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	
2007	Jams, fruit jellies, marmalades, fruit or nut purée and fruit or nut pastes, obtained by cooking, whether or not containing added sugar or other sweetening matter	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 2008	— Nuts, not containing added sugar or spirits	Manufacture in which the value of all the originating nuts and oil seeds of headings 0801, 0802 and 1202 to 1207 used exceeds 60 % of the ex-works price of the product	
	— Peanut butter; mixtures based on cereals; palm hearts; maize (corn)	Manufacture from materials of any heading, except that of the product	
	— Other except for fruit and nuts cooked otherwise than by steaming or boiling in water, not containing added sugar, frozen	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	
2009	Fruit juices (including grape must) and vegetable juices, unfermented and not containing added spirit, whether or not containing added sugar or other sweetening matter	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	
ex Chapter 21	Miscellaneous edible preparations; except for:	Manufacture from materials of any heading, except that of the product	
2101	Extracts, essences and concentrates, of coffee, tea or maté and preparations with a basis of these products or with a basis of coffee, tea or maté; roasted chicory and other roasted coffee substitutes, and extracts, essences and concentrates thereof	Manufacture: — from materials of any heading, except that of the product, and — in which all the chicory used is wholly obtained	
2103	Sauces and preparations therefor; mixed condiments and mixed seasonings; mustard flour and meal and prepared mustard:		
	— Sauces and preparations therefor; mixed condiments and mixed seasonings	Manufacture from materials of any heading, except that of the product. However, mustard flour or meal or prepared mustard may be used	
	— Mustard flour and meal and prepared mustard	Manufacture from materials of any heading	
ex 2104	Soups and broths and preparations therefor	Manufacture from materials of any heading, except prepared or preserved vegetables of headings 2002 to 2005	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
2106	Food preparations not elsewhere specified or included	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product	
ex Chapter 22	Beverages, spirits and vinegar; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which all the grapes or materials derived from grapes used are wholly obtained	
2202	Waters, including mineral waters and aerated waters, containing added sugar or other sweetening matter or flavoured, and other non-alcoholic beverages, not including fruit or vegetable juices of heading 2009	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product, and — in which all the fruit juice used (except that of pineapple, lime or grapefruit) is originating	
2207	Undenatured ethyl alcohol of an alcoholic strength by volume of 80 % vol or higher; ethyl alcohol and other spirits, denatured, of any strength	Manufacture: — from materials of any heading, except heading 2207 or 2208, and — in which all the grapes or materials derived from grapes used are wholly obtained or, if all the other materials used are already originating, arrack may be used up to a limit of 5 % by volume	
2208	Undenatured ethyl alcohol of an alcoholic strength by volume of less than 80 % vol; spirits, liqueurs and other spirituous beverages	Manufacture: — from materials of any heading, except heading 2207 or 2208, and — in which all the grapes or materials derived from grapes used are wholly obtained or, if all the other materials used are already originating, arrack may be used up to a limit of 5 % by volume	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex Chapter 23	Residues and waste from the food industries; prepared animal fodder; except for:	Manufacture from materials of any heading, except that of the product	
ex 2301	Whale meal; flours, meals and pellets of fish or of crustaceans, molluscs or other aquatic invertebrates, unfit for human consumption	Manufacture in which all the materials of Chapters 2 and 3 used are wholly obtained	
ex 2303	Residues from the manufacture of starch from maize (excluding concentrated steeping liquors), of a protein content, calculated on the dry product, exceeding 40 % by weight	Manufacture in which all the maize used is wholly obtained	
ex 2306	Oil cake and other solid residues resulting from the extraction of olive oil, containing more than 3 % of olive oil	Manufacture in which all the olives used are wholly obtained	
2309	Preparations of a kind used in animal feeding	Manufacture in which: — all the cereals, sugar or molasses, meat or milk used are originating, and — all the materials of Chapter 3 used are wholly obtained	
ex Chapter 24	Tobacco and manufactured tobacco substitutes; except for:	Manufacture in which all the materials of Chapter 24 used are wholly obtained	
2402	Cigars, cheroots, cigarillos and cigarettes, of tobacco or of tobacco substitutes	Manufacture in which at least 70 % by weight of the unmanufactured tobacco or tobacco refuse of heading 2401 used is originating	
ex 2403	Smoking tobacco	Manufacture in which at least 70 % by weight of the unmanufactured tobacco or tobacco refuse of heading 2401 used is originating	
ex Chapter 25	Salt; sulphur; earths and stone; plastering materials, lime and cement; except for:	Manufacture from materials of any heading, except that of the product	
ex 2504	Natural crystalline graphite, with enriched carbon content, purified and ground	Enriching of the carbon content, purifying and grinding of crude crystalline graphite	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 2515	Marble, merely cut, by sawing or otherwise, into blocks or slabs of a rectangular (including square) shape, of a thickness not exceeding 25 cm	Cutting, by sawing or otherwise, of marble (even if already sawn) of a thickness exceeding 25 cm	
ex 2516	Granite, porphyry, basalt, sandstone and other monumental or building stone, merely cut, by sawing or otherwise, into blocks or slabs of a rectangular (including square) shape, of a thickness not exceeding 25 cm	Cutting, by sawing or otherwise, of stone (even if already sawn) of a thickness exceeding 25 cm	
ex 2518	Calcined dolomite	Calcination of dolomite not calcined	
ex 2519	Crushed natural magnesium carbonate (magnesite), in hermetically-sealed containers, and magnesium oxide, whether or not pure, other than fused magnesia or dead-burned (sintered) magnesia	Manufacture from materials of any heading, except that of the product. However, natural magnesium carbonate (magnesite) may be used	
ex 2520	Plasters specially prepared for dentistry	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex 2524	Natural asbestos fibres	Manufacture from asbestos concentrate	
ex 2525	Mica powder	Grinding of mica or mica waste	
ex 2530	Earth colours, calcined or powdered	Calcination or grinding of earth colours	
Chapter 26	Ores, slag and ash	Manufacture from materials of any heading, except that of the product	
ex Chapter 27	Mineral fuels, mineral oils and products of their distillation; bituminous substances; mineral waxes; except for:	Manufacture from materials of any heading, except that of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 2707	Oils in which the weight of the aromatic constituents exceeds that of the non-aromatic constituents, being oils similar to mineral oils obtained by distillation of high temperature coal tar, of which more than 65 % by volume distils at a temperature of up to 250 °C (including mixtures of petroleum spirit and benzole), for use as power or heating fuels	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product	
ex 2709	Crude oils obtained from bituminous minerals	Destructive distillation of bituminous materials	
2710	Petroleum oils and oils obtained from bituminous materials, other than crude; preparations not elsewhere specified or included, containing by weight 70 % or more of petroleum oils or of oils obtained from bituminous materials, these oils being the basic constituents of the preparations; waste oils	Operations of refining and/or one or more specific process(es) (2) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product	
2711	Petroleum gases and other gaseous hydrocarbons	Operations of refining and/or one or more specific process(es) (2) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product	
2712	Petroleum jelly; paraffin wax, microcrystalline petroleum wax, slack wax, ozokerite, lignite wax, peat wax, other mineral waxes, and similar products obtained by synthesis or by other processes, whether or not coloured	Operations of refining and/or one or more specific process(es) (2) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
2713	Petroleum coke, petroleum bitumen and other residues of petroleum oils or of oils obtained from bituminous materials	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product	
2714	Bitumen and asphalt, natural; bituminous or oil shale and tar sands; asphaltites and asphaltic rocks	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product	
2715	Bituminous mixtures based on natural asphalt, on natural bitumen, on petroleum bitumen, on mineral tar or on mineral tar pitch (for example, bituminous mastics, cut-backs)	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product	
ex Chapter 28	Inorganic chemicals; organic or inorganic compounds of precious metals, of rare-earth metals, of radioactive elements or of isotopes; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 2805	'Mischmetall'	Manufacture by electrolytic or thermal treatment in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex 2811	Sulphur trioxide	Manufacture from sulphur dioxide	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 2833	Aluminium sulphate	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex 2840	Sodium perborate	Manufacture from disodium tetraborate pentahydrate	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 2852	Mercury compounds of internal ethers and their halogenated, sulphonated, nitrated or nitrosated derivatives	Manufacture from materials of any heading. However, the value of all the materials of heading 2909 used shall not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	Mercury compounds of nucleic acids and their salts, whether or not chemically defined; other heterocyclic compounds	Manufacture from materials of any heading. However, the value of all the materials of headings 2852, 2932, 2933 and 2934 used shall not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex Chapter 29	Organic chemicals; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 2901	Acyclic hydrocarbons for use as power or heating fuels	Operations of refining and/or one or more specific process(es) [1] or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 2902	Cyclanes and cyclenes (other than azulenes), benzene, toluene, xylenes, for use as power or heating fuels	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product	
ex 2905	Metal alcoholates of alcohols of this heading and of ethanol	Manufacture from materials of any heading, including other materials of heading 2905. However, metal alcoholates of this heading may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
2915	Saturated acyclic monocarboxylic acids and their anhydrides, halides, peroxides and peroxyacids; their halogenated, sulphonated, nitrated or nitrosated derivatives	Manufacture from materials of any heading. However, the value of all the materials of headings 2915 and 2916 used shall not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 2932	— Internal ethers and their halogenated, sulphonated, nitrated or nitrosated derivatives	Manufacture from materials of any heading. However, the value of all the materials of heading 2909 used shall not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	— Cyclic acetals and internal hemiacetals and their halogenated, sulphonated, nitrated or nitrosated derivatives	Manufacture from materials of any heading	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
2933	Heterocyclic compounds with nitrogen hetero-atom(s) only	Manufacture from materials of any heading. However, the value of all the materials of headings 2932 and 2933 used shall not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
2934	Nucleic acids and their salts, whether or not chemically defined; other heterocyclic compounds	Manufacture from materials of any heading. However, the value of all the materials of headings 2932, 2933 and 2934 used shall not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 2939	Concentrates of poppy straw containing not less than 50 % by weight of alkaloids	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex Chapter 30	Pharmaceutical products; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	
3002	Human blood; animal blood prepared for therapeutic, prophylactic or diagnostic uses; antisera and other blood fractions and modified immunological products, whether or not obtained by means of biotechnological processes; vaccines, toxins, cultures of micro-organisms (excluding yeasts) and similar products:		
	— Products consisting of two or more constituents which have been mixed together for therapeutic or prophylactic uses or unmixed products for these uses, put up in measured doses or in forms or packings for retail sale	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	
	— Other		
	— Human blood	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	
	— Animal blood prepared for therapeutic or prophylactic uses	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— Blood fractions other than antisera, haemoglobin, blood globulins and serum globulins	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	
	— Haemoglobin, blood globulins and serum globulins	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	
	— Other	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	
3003 and 3004	Medicaments (excluding goods of heading 3002, 3005 or 3006):		
	— Obtained from amikacin of heading 2941	Manufacture from materials of any heading, except that of the product. However, materials of headings 3003 and 3004 may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	
	— Other	Manufacture: — from materials of any heading, except that of the product. However, materials of headings 3003 and 3004 may be used, provided that their total value does not exceed 20 % of the ex-works price of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex 3006	— Waste pharmaceuticals specified in note 4(k) to this Chapter	The origin of the product in its original classification shall be retained	
	— Sterile surgical or dental adhesion barriers, whether or not absorbable:		

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— made of plastics	Manufacture in which the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product (5)	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	— made of fabrics	Manufacture from (7): — natural fibres — man-made staple fibres, not carded or combed or otherwise processed for spinning,or — chemical materials or textile pulp	
	— Appliances identifiable for ostomy use	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex Chapter 31	Fertilizers; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3105	Mineral or chemical fertilizers containing two or three of the fertilizing elements nitrogen, phosphorous and potassium; other fertilizers; goods of this chapter, in tablets or similar forms or in packages of a gross weight not exceeding 10 kg, except for: — sodium nitrate — calcium cyanamide — potassium sulphate — magnesium potassium sulphate	Manufacture: — from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex Chapter 32	Tanning or dyeing extracts; tannins and their derivatives; dyes, pigments and other colouring matter; paints and varnishes; putty and other mastics; inks; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 3201	Tannins and their salts, ethers, esters and other derivatives	Manufacture from tanning extracts of vegetable origin	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3205	Colour lakes; preparations as specified in note 3 to this chapter based on colour lakes (3)	Manufacture from materials of any heading, except headings 3203, 3204 and 3205. However, materials of heading 3205 may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex Chapter 33	Essential oils and resinoids; perfumery, cosmetic or toilet preparations; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3301	Essential oils (terpeneless or not), including concretes and absolutes; resinoids; extracted oleoresins; concentrates of essential oils in fats, in fixed oils, in waxes or the like, obtained by enfleurage or maceration; terpenic by-products of the deterpenation of essential oils; aqueous distillates and aqueous solutions of essential oils	Manufacture from materials of any heading, including materials of a different 'group' (4) in this heading. However, materials of the same group as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex Chapter 34	Soap, organic surface-active agents, washing preparations, lubricating preparations, artificial waxes, prepared waxes, polishing or scouring preparations, candles and similar articles, modelling pastes, 'dental waxes' and dental preparations with a basis of plaster; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3403	Lubricating preparations containing less than 70 % by weight of petroleum oils or oils obtained from bituminous minerals	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
3404	Artificial waxes and prepared waxes:		
	— With a basis of paraffin, petroleum waxes, waxes obtained from bituminous minerals, slack wax or scale wax	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product	
	— Other	Manufacture from materials of any heading, except: — hydrogenated oils having the character of waxes of heading 1516,	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
		— fatty acids not chemically defined or industrial fatty alcohols having the character of waxes of heading 3823, and	
		— materials of heading 3404	
		However, these materials may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	
ex Chapter 35	Albuminoidal substances; modified starches; glues; enzymes; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3505	Dextrins and other modified starches (for example, pregelatinised or esterified starches); glues based on starches, or on dextrins or other modified starches:		
	— Starch ethers and esters	Manufacture from materials of any heading, including other materials of heading 3505	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— Other	Manufacture from materials of any heading, except those of heading 1108	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3507	Prepared enzymes not elsewhere specified or included	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
Chapter 36	Explosives; pyrotechnic products; matches; pyrophoric alloys; certain combustible preparations	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex Chapter 37	Photographic or cinematographic goods; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3701	Photographic plates and film in the flat, sensitised, unexposed, of any material other than paper, paperboard or textiles; instant print film in the flat, sensitised, unexposed, whether or not in packs:		
	— Instant print film for colour photography, in packs	Manufacture from materials of any heading, except those of headings 3701 and 3702. However, materials of heading 3702 may be used, provided that their total value does not exceed 30 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	— Other	Manufacture from materials of any heading, except those of headings 3701 and 3702. However, materials of headings 3701 and 3702 may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
3702	Photographic film in rolls, sensitised, unexposed, of any material other than paper, paperboard or textiles; instant print film in rolls, sensitised, unexposed	Manufacture from materials of any heading, except those of headings 3701 and 3702	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3704	Photographic plates, film paper, paperboard and textiles, exposed but not developed	Manufacture from materials of any heading, except those of headings 3701 to 3704	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex Chapter 38	Miscellaneous chemical products; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3801	— Colloidal graphite in suspension in oil and semi-colloidal graphite; carbonaceous pastes for electrodes	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
	— Graphite in paste form, being a mixture of more than 30 % by weight of graphite with mineral oils	Manufacture in which the value of all the materials of heading 3403 used does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3803	Refined tall oil	Refining of crude tall oil	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3805	Spirits of sulphate turpentine, purified	Purification by distillation or refining of raw spirits of sulphate turpentine	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 3806	Ester gums	Manufacture from resin acids	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3807	Wood pitch (wood tar pitch)	Distillation of wood tar	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3808	Insecticides, rodenticides, fungicides, herbicides, anti-sprouting products and plant-growth regulators, disinfectants and similar products, put up in forms or packings for retail sale or as preparations or articles (for example, sulphur-treated bands, wicks and candles, and fly-papers)	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the products	
3809	Finishing agents, dye carriers to accelerate the dyeing or fixing of dyestuffs and other products and preparations (for example, dressings and mordants), of a kind used in the textile, paper, leather or like industries, not elsewhere specified or included	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the products	
3810	Pickling preparations for metal surfaces; fluxes and other auxiliary preparations for soldering, brazing or welding; soldering, brazing or welding powders and pastes consisting of metal and other materials; preparations of a kind used as cores or coatings for welding electrodes or rods	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the products	
3811	Anti-knock preparations, oxidation inhibitors, gum inhibitors, viscosity improvers, anti-corrosive preparations and other prepared additives, for mineral oils (including gasoline) or for other liquids used for the same purposes as mineral oils:		
	— Prepared additives for lubricating oil, containing petroleum oils or oils obtained from bituminous minerals	Manufacture in which the value of all the materials of heading 3811 used does not exceed 50 % of the ex-works price of the product	
	— Other	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
3812	Prepared rubber accelerators; compound plasticisers for rubber or plastics, not elsewhere specified or included; anti-oxidizing preparations and other compound stabilizers for rubber or plastics	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
3813	Preparations and charges for fire-extinguishers; charged fire-extinguishing grenades	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
3814	Organic composite solvents and thinners, not elsewhere specified or included; prepared paint or varnish removers	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
3818	Chemical elements doped for use in electronics, in the form of discs, wafers or similar forms; chemical compounds doped for use in electronics	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
3819	Hydraulic brake fluids and other prepared liquids for hydraulic transmission, not containing or containing less than 70 % by weight of petroleum oils or oils obtained from bituminous minerals	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
3820	Anti-freezing preparations and prepared de-icing fluids	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex 3821	Prepared culture media for the development or maintenance of micro-organisms (including viruses and the like) or of plant, human or animal cells	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
3822	Diagnostic or laboratory reagents on a backing, prepared diagnostic or laboratory reagents whether or not on a backing, other than those of heading 3002 or 3006; certified reference materials	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
3823	Industrial monocarboxylic fatty acids; acid oils from refining; industrial fatty alcohols:		
	— Industrial monocarboxylic fatty acids, acid oils from refining	Manufacture from materials of any heading, except that of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— Industrial fatty alcohols	Manufacture from materials of any heading, including other materials of heading 3823	
3824	Prepared binders for foundry moulds or cores; chemical products and preparations of the chemical or allied industries (including those consisting of mixtures of natural products), not elsewhere specified or included:		
	— The following of this heading: — Prepared binders for foundry moulds or cores based on natural resinous products — Naphthenic acids, their water-insoluble salts and their esters — Sorbitol other than that of heading 2905	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	— Petroleum sulphonates, excluding petroleum sulphonates of alkali metals, of ammonium or of ethanolamines; thiophenated sulphonic acids of oils obtained from bituminous minerals, and their salts — Ion exchangers — Getters for vacuum tubes		
	— Alkaline iron oxide for the purification of gas — Ammoniacal gas liquors and spent oxide produced in coal gas purification — Sulphonaphthenic acids, their water-insoluble salts and their esters — Fusel oil and Dippel's oil — Mixtures of salts having different anions — Copying pastes with a basis of gelatin, whether or not on a paper or textile backing		

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— Other	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
3901 to 3915	Plastics in primary forms, waste, parings and scrap, of plastic; except for headings ex 3907 and 3912 for which the rules are set out below:		
	— Addition homopolymerisation products in which a single monomer contributes more than 99 % by weight to the total polymer content	Manufacture in which: — the value of all the materials used does not exceed 50 % of the ex-works price of the product, and — within the above limit, the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product (5)	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	— Other	Manufacture in which the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product (5)	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 3907	— Copolymer, made from polycarbonate and acrylonitrile-butadiene-styrene copolymer (ABS)	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product (5)	
	— Polyester	Manufacture in which the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product and/or manufacture from polycarbonate of tetrabromo-(bisphenol A)	
3912	Cellulose and its chemical derivatives, not elsewhere specified or included, in primary forms	Manufacture in which the value of all the materials of the same heading as the product used does not exceed 20 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
3916 to 3921	Semi-manufactures and articles of plastics; except for headings ex 3916, ex 3917, ex 3920 and ex 3921, for which the rules are set out below:		
	— Flat products, further worked than only surface-worked or cut into forms other than rectangular (including square); other products, further worked than only surface-worked	Manufacture in which the value of all the materials of Chapter 39 used does not exceed 50 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	— Other:		
	— Addition homopolymerisation products in which a single monomer contributes more than 99 % by weight to the total polymer content	Manufacture in which: — the value of all the materials used does not exceed 50 % of the ex-works price of the product, and — within the above limit, the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product (5)	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	— Other	Manufacture in which the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product (5)	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 3916 and ex 3917	Profile shapes and tubes	Manufacture in which: — the value of all the materials used does not exceed 50 % of the ex-works price of the product, and — within the above limit, the value of all the materials of the same heading as the product used does not exceed 20 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 3920	— Ionomer sheet or film	Manufacture from a thermoplastic partial salt which is a copolymer of ethylene and metacrylic acid partly neutralised with metal ions, mainly zinc and sodium	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— Sheets of regenerated cellulose, polyamides or polyethylene	Manufacture in which the value of all the materials of the same heading as the product used does not exceed 20 % of the ex-works price of the product	
ex 3921	Foils of plastic, metallised	Manufacture from highly-transparent polyester-foils with a thickness of less than 23 micron (6)	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
3922 to 3926	Articles of plastics	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex Chapter 40	Rubber and articles thereof; except for:	Manufacture from materials of any heading, except that of the product	
ex 4001	Laminated slabs of crepe rubber for shoes	Lamination of sheets of natural rubber	
4005	Compounded rubber, unvulcanised, in primary forms or in plates, sheets or strip	Manufacture in which the value of all the materials used, except natural rubber, does not exceed 50 % of the ex-works price of the product	
4012	Retreaded or used pneumatic tyres of rubber; solid or cushion tyres, tyre treads and tyre flaps, of rubber:		
	— Retreaded pneumatic, solid or cushion tyres, of rubber	Retreading of used tyres	
	— Other	Manufacture from materials of any heading, except those of headings 4011 and 4012	
ex 4017	Articles of hard rubber	Manufacture from hard rubber	
ex Chapter 41	Raw hides and skins (other than furskins) and leather; except for:	Manufacture from materials of any heading, except that of the product	
ex 4102	Raw skins of sheep or lambs, without wool on	Removal of wool from sheep or lamb skins, with wool on	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
4104 to 4106	Tanned or crust hides and skins, without wool or hair on, whether or not split, but not further prepared	Retanning of tanned leather Or Manufacture from materials of any heading, except that of the product	
4107, 4112 and 4113	Leather further prepared after tanning or crusting, including parchment-dressed leather, without wool or hair on, whether or not split, other than leather of heading 4114	Manufacture from materials of any heading, except headings 4104 to 4113	
ex 4114	Patent leather and patent laminated leather; metallised leather	Manufacture from materials of headings 4104 to 4106, 4107, 4112 or 4113, provided that their total value does not exceed 50 % of the ex-works price of the product	
Chapter 42	Articles of leather; saddlery and harness; travel goods, handbags and similar containers; articles of animal gut (other than silk worm gut)	Manufacture from materials of any heading, except that of the product	
ex Chapter 43	Furskins and artificial fur; manufactures thereof; except for:	Manufacture from materials of any heading, except that of the product	
ex 4302	Tanned or dressed furskins, assembled:		
	— Plates, crosses and similar forms	Bleaching or dyeing, in addition to cutting and assembly of non-assembled tanned or dressed furskins	
	— Other	Manufacture from non-assembled, tanned or dressed furskins	
4303	Articles of apparel, clothing accessories and other articles of furskin	Manufacture from non-assembled tanned or dressed furskins of heading 4302	
ex Chapter 44	Wood and articles of wood; wood charcoal; except for:	Manufacture from materials of any heading, except that of the product	
ex 4403	Wood roughly squared	Manufacture from wood in the rough, whether or not stripped of its bark or merely roughed down	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 4407	Wood sawn or chipped lengthwise, sliced or peeled, of a thickness exceeding 6 mm, planed, sanded or end-jointed	Planing, sanding or end-jointing	
ex 4408	Sheets for veneering (including those obtained by slicing laminated wood) and for plywood, of a thickness not exceeding 6 mm, spliced, and other wood sawn lengthwise, sliced or peeled of a thickness not exceeding 6 mm, planed, sanded or end-jointed	Splicing, planing, sanding or end-jointing	
ex 4409	Wood continuously shaped along any of its edges, ends or faces, whether or not planed, sanded or end-jointed:		
	— Sanded or end-jointed	Sanding or end-jointing	
	— Beadings and mouldings	Beading or moulding	
ex 4410 to ex 4413	Beadings and mouldings, including moulded skirting and other moulded boards	Beading or moulding	
ex 4415	Packing cases, boxes, crates, drums and similar packings, of wood	Manufacture from boards not cut to size	
ex 4416	Casks, barrels, vats, tubs and other coopers' products and parts thereof, of wood	Manufacture from riven staves, not further worked than sawn on the two principal surfaces	
ex 4418	— Builders' joinery and carpentry of wood	Manufacture from materials of any heading, except that of the product. However, cellular wood panels, shingles and shakes may be used	
	— Beadings and mouldings	Beading or moulding	
ex 4421	Match splints; wooden pegs or pins for footwear	Manufacture from wood of any heading, except drawn wood of heading 4409	
ex Chapter 45	Cork and articles of cork; except for:	Manufacture from materials of any heading, except that of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
4503	Articles of natural cork	Manufacture from cork of heading 4501	
Chapter 46	Manufactures of straw, of esparto or of other plaiting materials; basketware and wickerwork	Manufacture from materials of any heading, except that of the product	
Chapter 47	Pulp of wood or of other fibrous cellulosic material; recovered (waste and scrap) paper or paperboard	Manufacture from materials of any heading, except that of the product	
ex Chapter 48	Paper and paperboard; articles of paper pulp, of paper or of paperboard; except for:	Manufacture from materials of any heading, except that of the product	
ex 4811	Paper and paperboard, ruled, lined or squared only	Manufacture from paper-making materials of Chapter 47	
4816	Carbon paper, self-copy paper and other copying or transfer papers (other than those of heading 4809), duplicator stencils and offset plates, of paper, whether or not put up in boxes	Manufacture from paper-making materials of Chapter 47	
4817	Envelopes, letter cards, plain postcards and correspondence cards, of paper or paperboard; boxes, pouches, wallets and writing compendiums, of paper or paperboard, containing an assortment of paper stationery	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex 4818	Toilet paper	Manufacture from paper-making materials of Chapter 47	
ex 4819	Cartons, boxes, cases, bags and other packing containers, of paper, paperboard, cellulose wadding or webs of cellulose fibres	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex 4820	Letter pads	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex 4823	Other paper, paperboard, cellulose wadding and webs of cellulose fibres, cut to size or shape	Manufacture from paper-making materials of Chapter 47	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex Chapter 49	Printed books, newspapers, pictures and other products of the printing industry; manuscripts, typescripts and plans; except for:	Manufacture from materials of any heading, except that of the product	
4909	Printed or illustrated postcards; printed cards bearing personal greetings, messages or announcements, whether or not illustrated, with or without envelopes or trimmings	Manufacture from materials of any heading, except those of headings 4909 and 4911	
4910	Calendars of any kind, printed, including calendar blocks:		
	— Calendars of the 'perpetual' type or with replaceable blocks mounted on bases other than paper or paperboard	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
	— Other	Manufacture from materials of any heading, except those of headings 4909 and 4911	
ex Chapter 50	Silk; except for:	Manufacture from materials of any heading, except that of the product	
ex 5003	Silk waste (including cocoons unsuitable for reeling, yarn waste and garnetted stock), carded or combed	Carding or combing of silk waste	
5004 to ex 5006	Silk yarn and yarn spun from silk waste	Manufacture from (7): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — other natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials	
5007	Woven fabrics of silk or of silk waste:		
	— Incorporating rubber thread	Manufacture from single yarn (7)	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— Other	Manufacture from (7):	
		— coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paperor	
		Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product	
ex Chapter 51	Wool, fine or coarse animal hair; horsehair yarn and woven fabric; except for:	Manufacture from materials of any heading, except that of the product	
5106 to 5110	Yarn of wool, of fine or coarse animal hair or of horsehair	Manufacture from (7): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials	
5111 to 5113	Woven fabrics of wool, of fine or coarse animal hair or of horsehair:		
	— Incorporating rubber thread	Manufacture from single yarn (7)	
	— Other	Manufacture from (7):	
		— coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paperor	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
		Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product	
ex Chapter 52	Cotton; except for:	Manufacture from materials of any heading, except that of the product	
5204 to 5207	Yarn and thread of cotton	Manufacture from ([7]): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials	
5208 to 5212	Woven fabrics of cotton:		
	— Incorporating rubber thread	Manufacture from single yarn ([7])	
	— Other	Manufacture from ([7]):	
		— coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paperor	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
		Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product	
ex Chapter 53	Other vegetable textile fibres; paper yarn and woven fabrics of paper yarn; except for:	Manufacture from materials of any heading, except that of the product	
5306 to 5308	Yarn of other vegetable textile fibres; paper yarn	Manufacture from ([7]): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials	
5309 to 5311	Woven fabrics of other vegetable textile fibres; woven fabrics of paper yarn:		
	— Incorporating rubber thread	Manufacture from single yarn ([7])	
	— Other	Manufacture from ([7]): — coir yarn, — jute yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paperor	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
		Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product	
5401 to 5406	Yarn, monofilament and thread of man-made filaments	Manufacture from ([7]): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials	
5407 and 5408	Woven fabrics of man-made filament yarn:		
	— Incorporating rubber thread	Manufacture from single yarn ([7])	
	— Other	Manufacture from ([7]):	
		— coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paperor	
		Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
5501 to 5507	Man-made staple fibres	Manufacture from chemical materials or textile pulp	
5508 to 5511	Yarn and sewing thread of man-made staple fibres	Manufacture from (7): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials	
5512 to 5516	Woven fabrics of man-made staple fibres:		
	— Incorporating rubber thread	Manufacture from single yarn (7)	
	— Other	Manufacture from (7): — coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paperor	
		Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product	
ex Chapter 56	Wadding, felt and non-wovens; special yarns; twine, cordage, ropes and cables and articles thereof; except for:	Manufacture from (7): — coir yarn, — natural fibres, — chemical materials or textile pulp, or — paper-making materials	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
5602	Felt, whether or not impregnated, coated, covered or laminated:		
	— Needleloom felt	Manufacture from (7): — natural fibres, or — chemical materials or textile pulpHowever:	
		— polypropylene filament of heading 5402, — polypropylene fibres of heading 5503 or 5506, or — polypropylene filament tow of heading 5501,of which the denomination in all cases of a single filament or fibre is less than 9 decitex, may be used, provided that their total value does not exceed 40 % of the ex-works price of the product	
	— Other	Manufacture from (7): — natural fibres, — man-made staple fibres made from casein, or — chemical materials or textile pulp	
5604	Rubber thread and cord, textile covered; textile yarn, and strip and the like of heading 5404 or 5405, impregnated, coated, covered or sheathed with rubber or plastics:		
	— Rubber thread and cord, textile covered	Manufacture from rubber thread or cord, not textile covered	
	— Other	Manufacture from (7): — natural fibres, not carded or combed or otherwise processed for spinning, — chemical materials or textile pulp, or — paper-making materials	
5605	Metallised yarn, whether or not gimped, being textile yarn, or strip or the like of heading 5404 or 5405, combined with metal in the form of thread, strip or powder or covered with metal	Manufacture from (7): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, — chemical materials or textile pulp, or — paper-making materials	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
5606	Gimped yarn, and strip and the like of heading 5404 or 5405, gimped (other than those of heading 5605 and gimped horsehair yarn); chenille yarn (including flock chenille yarn); loop wale-yarn	Manufacture from (7): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, — chemical materials or textile pulp, or — paper-making materials	
Chapter 57	Carpets and other textile floor coverings:		
	— Of needleloom felt	Manufacture from (7): — natural fibres, or — chemical materials or textile pulpHowever:	
		— polypropylene filament of heading 5402, — polypropylene fibres of heading 5503 or 5506, or — polypropylene filament tow of heading 5501,of which the denomination in all cases of a single filament or fibre is less than 9 decitex, may be used, provided that their total value does not exceed 40 % of the ex-works price of the product Jute fabric may be used as a backing	
	— Of other felt	Manufacture from (7): — natural fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp	
	— Other	Manufacture from (7): — coir yarn or jute yarn, — synthetic or artificial filament yarn, — natural fibres, or — man-made staple fibres, not carded or combed or otherwise processed for spinningJute fabric may be used as a backing	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex Chapter 58	Special woven fabrics; tufted textile fabrics; lace; tapestries; trimmings; embroidery; except for:		
	— Combined with rubber thread	Manufacture from single yarn (7)	
	— Other	Manufacture from (7):	
		— natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulpor	
		Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product	
5805	Hand-woven tapestries of the types Gobelins, Flanders, Aubusson, Beauvais and the like, and needle-worked tapestries (for example, petit point, cross stitch), whether or not made up	Manufacture from materials of any heading, except that of the product	
5810	Embroidery in the piece, in strips or in motifs	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
5901	Textile fabrics coated with gum or amylaceous substances, of a kind used for the outer covers of books or the like; tracing cloth; prepared painting canvas; buckram and similar stiffened textile fabrics of a kind used for hat foundations	Manufacture from yarn	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
5902	Tyre cord fabric of high tenacity yarn of nylon or other polyamides, polyesters or viscose rayon:		
	— Containing not more than 90 % by weight of textile materials	Manufacture from yarn	
	— Other	Manufacture from chemical materials or textile pulp	
5903	Textile fabrics impregnated, coated, covered or laminated with plastics, other than those of heading 5902	Manufacture from yarn or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, rasing, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product	
5904	Linoleum, whether or not cut to shape; floor coverings consisting of a coating or covering applied on a textile backing, whether or not cut to shape	Manufacture from yarn (7)	
5905	Textile wall coverings:		
	— Impregnated, coated, covered or laminated with rubber, plastics or other materials	Manufacture from yarn	
	— Other	Manufacture from (7):	
		— coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulpor	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
		Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product	
5906	Rubberised textile fabrics, other than those of heading 5902:		
	— Knitted or crocheted fabrics	Manufacture from ([7]): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp	
	— Other fabrics made of synthetic filament yarn, containing more than 90 % by weight of textile materials	Manufacture from chemical materials	
	— Other	Manufacture from yarn	
5907	Textile fabrics otherwise impregnated, coated or covered; painted canvas being theatrical scenery, studio back-cloths or the like	Manufacture from yarn or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, rasing, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product	
5908	Textile wicks, woven, plaited or knitted, for lamps, stoves, lighters, candles or the like; incandescent gas mantles and tubular knitted gas mantle fabric therefor, whether or not impregnated:		
	— Incandescent gas mantles, impregnated	Manufacture from tubular knitted gas-mantle fabric	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— Other	Manufacture from materials of any heading, except that of the product	
5909 to 5911	Textile articles of a kind suitable for industrial use:		
	— Polishing discs or rings other than of felt of heading 5911	Manufacture from yarn or waste fabrics or rags of heading 6310	
	— Woven fabrics, of a kind commonly used in papermaking or other technical uses, felted or not, whether or not impregnated or coated, tubular or endless with single or multiple warp and/or weft, or flat woven with multiple warp and/or weft of heading 5911	Manufacture from ([7]): — coir yarn, — the following materials: — yarn of polytetrafluoroethylene ([8]), — yarn, multiple, of polyamide, coated impregnated or covered with a phenolic resin, — yarn of synthetic textile fibres of aromatic polyamides, obtained by polycondensation of m-phenylenediamine and isophthalic acid,	
		— monofil of polytetrafluoroethylene ([8]), — yarn of synthetic textile fibres of poly(p-phenylene terephthalamide), — glass fibre yarn, coated with phenol resin and gimped with acrylic yarn ([8]),	
		— copolyester monofilaments of a polyester and a resin of terephthalic acid and 1,4-cyclohexanediethanol and isophthalic acid, — natural fibres, — man-made staple fibres not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— Other	Manufacture from (7): — coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp	
Chapter 60	Knitted or crocheted fabrics	Manufacture from (7): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp	
Chapter 61	Articles of apparel and clothing accessories, knitted or crocheted:		
	— Obtained by sewing together or otherwise assembling, two or more pieces of knitted or crocheted fabric which have been either cut to form or obtained directly to form	Manufacture from yarn (7) (9)	
	— Other	Manufacture from (7): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp	
ex Chapter 62	Articles of apparel and clothing accessories, not knitted or crocheted; except for:	Manufacture from yarn (7) (9)	
ex 6202, ex 6204, ex 6206, ex 6209 and ex 6211	Women's, girls' and babies' clothing and clothing accessories for babies, embroidered	Manufacture from yarn (9) or Manufacture from unembroidered fabric, provided that the value of the unembroidered fabric used does not exceed 40 % of the ex-works price of the product (9)	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 6210 and ex 6216	Fire-resistant equipment of fabric covered with foil of aluminised polyester	Manufacture from yarn (9) or Manufacture from uncoated fabric, provided that the value of the uncoated fabric used does not exceed 40 % of the ex-works price of the product (9)	
6213 and 6214	Handkerchiefs, shawls, scarves, mufflers, mantillas, veils and the like:		
	— Embroidered	Manufacture from unbleached single yarn (7) (9) or Manufacture from unembroidered fabric, provided that the value of the unembroidered fabric used does not exceed 40 % of the ex-works price of the product (9)	
	— Other	Manufacture from unbleached single yarn (7) (9) or	
		Making up, followed by printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of all the unprinted goods of headings 6213 and 6214 used does not exceed 47,5 % of the ex-works price of the product	
6217	Other made up clothing accessories; parts of garments or of clothing accessories, other than those of heading 6212:		
	— Embroidered	Manufacture from yarn (9) or Manufacture from unembroidered fabric, provided that the value of the unembroidered fabric used does not exceed 40 % of the ex-works price of the product (9)	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— Fire-resistant equipment of fabric covered with foil of aluminised polyester	Manufacture from yarn (9) or Manufacture from uncoated fabric, provided that the value of the uncoated fabric used does not exceed 40 % of the ex-works price of the product (9)	
	— Interlinings for collars and cuffs, cut out	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
	— Other	Manufacture from yarn (9)	
ex Chapter 63	Other made-up textile articles; sets; worn clothing and worn textile articles; rags; except for:	Manufacture from materials of any heading, except that of the product	
6301 to 6304	Blankets, travelling rugs, bed linen etc.; curtains etc.; other furnishing articles:		
	— Of felt, of nonwovens	Manufacture from (7): — natural fibres, or — chemical materials or textile pulp	
	— Other:		
	— Embroidered	Manufacture from unbleached single yarn (9) (10) or Manufacture from unembroidered fabric (other than knitted or crocheted), provided that the value of the unembroidered fabric used does not exceed 40 % of the ex-works price of the product	
	— Other	Manufacture from unbleached single yarn (9) (10)	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
6305	Sacks and bags, of a kind used for the packing of goods	Manufacture from [7]: — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp	
6306	Tarpaulins, awnings and sun blinds; tents; sails for boats, sail-boards or landcraft; camping goods:		
	— Of nonwovens	Manufacture from [7] [9]: — natural fibres, or — chemical materials or textile pulp	
	— Other	Manufacture from unbleached single yarn [7] [9]	
6307	Other made-up articles, including dress patterns	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
6308	Sets consisting of woven fabric and yarn, whether or not with accessories, for making up into rugs, tapestries, embroidered table cloths or serviettes, or similar textile articles, put up in packings for retail sale	Each item in the set must satisfy the rule which would apply to it if it were not included in the set. However, non-originating articles may be incorporated, provided that their total value does not exceed 15 % of the ex-works price of the set	
ex Chapter 64	Footwear, gaiters and the like; parts of such articles; except for:	Manufacture from materials of any heading, except from assemblies of uppers affixed to inner soles or to other sole components of heading 6406	
6406	Parts of footwear (including uppers whether or not attached to soles other than outer soles); removable in-soles, heel cushions and similar articles; gaiters, leggings and similar articles, and parts thereof	Manufacture from materials of any heading, except that of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex Chapter 65	Headgear and parts thereof; except for:	Manufacture from materials of any heading, except that of the product	
6505	Hats and other headgear, knitted or crocheted, or made up from lace, felt or other textile fabric, in the piece (but not in strips), whether or not lined or trimmed; hair-nets of any material, whether or not lined or trimmed	Manufacture from yarn or textile fibres (9)	
ex Chapter 66	Umbrellas, sun umbrellas, walking-sticks, seat-sticks, whips, riding-crops, and parts thereof; except for:	Manufacture from materials of any heading, except that of the product	
6601	Umbrellas and sun umbrellas (including walking-stick umbrellas, garden umbrellas and similar umbrellas)	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
Chapter 67	Prepared feathers and down and articles made of feathers or of down; artificial flowers; articles of human hair	Manufacture from materials of any heading, except that of the product	
ex Chapter 68	Articles of stone, plaster, cement, asbestos, mica or similar materials; except for:	Manufacture from materials of any heading, except that of the product	
ex 6803	Articles of slate or of agglomerated slate	Manufacture from worked slate	
ex 6812	Articles of asbestos; articles of mixtures with a basis of asbestos or of mixtures with a basis of asbestos and magnesium carbonate	Manufacture from materials of any heading	
ex 6814	Articles of mica, including agglomerated or reconstituted mica, on a support of paper, paperboard or other materials	Manufacture from worked mica (including agglomerated or reconstituted mica)	
Chapter 69	Ceramic products	Manufacture from materials of any heading, except that of the product	
ex Chapter 70	Glass and glassware; except for:	Manufacture from materials of any heading, except that of the product	
ex 7003, ex 7004 and ex 7005	Glass with a non-reflecting layer	Manufacture from materials of heading 7001	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
7006	Glass of heading 7003, 7004 or 7005, bent, edge-worked, engraved, drilled, enamelled or otherwise worked, but not framed or fitted with other materials:		
	— Glass-plate substrates, coated with a dielectric thin film, and of a semiconductor grade in accordance with SEMI-standards (11)	Manufacture from non-coated glass-plate substrate of heading 7006	
	— Other	Manufacture from materials of heading 7001	
7007	Safety glass, consisting of toughened (tempered) or laminated glass	Manufacture from materials of heading 7001	
7008	Multiple-walled insulating units of glass	Manufacture from materials of heading 7001	
7009	Glass mirrors, whether or not framed, including rear-view mirrors	Manufacture from materials of heading 7001	
7010	Carboys, bottles, flasks, jars, pots, phials, ampoules and other containers, of glass, of a kind used for the conveyance or packing of goods; preserving jars of glass; stoppers, lids and other closures, of glass	Manufacture from materials of any heading, except that of the product or Cutting of glassware, provided that the total value of the uncut glassware used does not exceed 50 % of the ex-works price of the product	
7013	Glassware of a kind used for table, kitchen, toilet, office, indoor decoration or similar purposes (other than that of heading 7010 or 7018)	Manufacture from materials of any heading, except that of the product or Cutting of glassware, provided that the total value of the uncut glassware used does not exceed 50 % of the ex-works price of the product or Hand-decoration (except silk-screen printing) of hand-blown glassware, provided that the total value of the hand-blown glassware used does not exceed 50 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 7019	Articles (other than yarn) of glass fibres	Manufacture from: — uncoloured slivers, rovings, yarn or chopped strands, or — glass wool	
ex Chapter 71	Natural or cultured pearls, precious or semi-precious stones, precious metals, metals clad with precious metal, and articles thereof; imitation jewellery; coin; except for:	Manufacture from materials of any heading, except that of the product	
ex 7101	Natural or cultured pearls, graded and temporarily strung for convenience of transport	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex 7102, ex 7103 and ex 7104	Worked precious or semi-precious stones (natural, synthetic or reconstructed)	Manufacture from unworked precious or semi-precious stones	
7106, 7108 and 7110	Precious metals:		
	— Unwrought	Manufacture from materials of any heading, except those of headings 7106, 7108 and 7110 or Electrolytic, thermal or chemical separation of precious metals of heading 7106, 7108 or 7110 or Alloying of precious metals of heading 7106, 7108 or 7110 with each other or with base metals	
	— Semi-manufactured or in powder form	Manufacture from unwrought precious metals	
ex 7107, ex 7109 and ex 7111	Metals clad with precious metals, semi-manufactured	Manufacture from metals clad with precious metals, unwrought	
7116	Articles of natural or cultured pearls, precious or semi-precious stones (natural, synthetic or reconstructed)	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
7117	Imitation jewellery	Manufacture from materials of any heading, except that of the product or	
		Manufacture from base metal parts, not plated or covered with precious metals, provided that the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex Chapter 72	Iron and steel; except for:	Manufacture from materials of any heading, except that of the product	
7207	Semi-finished products of iron or non-alloy steel	Manufacture from materials of heading 7201, 7202, 7203, 7204 or 7205	
7208 to 7216	Flat-rolled products, bars and rods, angles, shapes and sections of iron or non-alloy steel	Manufacture from ingots or other primary forms of heading 7206	
7217	Wire of iron or non-alloy steel	Manufacture from semi-finished materials of heading 7207	
ex 7218, 7219 to 7222	Semi-finished products, flat-rolled products, bars and rods, angles, shapes and sections of stainless steel	Manufacture from ingots or other primary forms of heading 7218	
7223	Wire of stainless steel	Manufacture from semi-finished materials of heading 7218	
ex 7224, 7225 to 7228	Semi-finished products, flat-rolled products, hot-rolled bars and rods, in irregularly wound coils; angles, shapes and sections, of other alloy steel; hollow drill bars and rods, of alloy or non-alloy steel	Manufacture from ingots or other primary forms of heading 7206, 7218 or 7224	
7229	Wire of other alloy steel	Manufacture from semi-finished materials of heading 7224	
ex Chapter 73	Articles of iron or steel; except for:	Manufacture from materials of any heading, except that of the product	
ex 7301	Sheet piling	Manufacture from materials of heading 7206	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
7302	Railway or tramway track construction material of iron or steel, the following: rails, check-rails and rack rails, switch blades, crossing frogs, point rods and other crossing pieces, sleepers (cross-ties), fish-plates, chairs, chair wedges, sole pates (base plates), rail clips, bedplates, ties and other material specialised for jointing or fixing rails	Manufacture from materials of heading 7206	
7304, 7305 and 7306	Tubes, pipes and hollow profiles, of iron (other than cast iron) or steel	Manufacture from materials of heading 7206, 7207, 7218 or 7224	
ex 7307	Tube or pipe fittings of stainless steel (ISO No X5CrNiMo 1712), consisting of several parts	Turning, drilling, reaming, threading, deburring and sandblasting of forged blanks, provided that the total value of the forged blanks used does not exceed 35 % of the ex-works price of the product	
7308	Structures (excluding prefabricated buildings of heading 9406) and parts of structures (for example, bridges and bridge-sections, lock-gates, towers, lattice masts, roofs, roofing frameworks, doors and windows and their frames and thresholds for doors, shutters, balustrades, pillars and columns), of iron or steel; plates, rods, angles, shapes, sections, tubes and the like, prepared for use in structures, of iron or steel	Manufacture from materials of any heading, except that of the product. However, welded angles, shapes and sections of heading 7301 may not be used	
ex 7315	Skid chain	Manufacture in which the value of all the materials of heading 7315 used does not exceed 50 % of the ex-works price of the product	
ex Chapter 74	Copper and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
7401	Copper mattes; cement copper (precipitated copper)	Manufacture from materials of any heading, except that of the product	
7402	Unrefined copper; copper anodes for electrolytic refining	Manufacture from materials of any heading, except that of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
7403	Refined copper and copper alloys, unwrought:		
	— Refined copper	Manufacture from materials of any heading, except that of the product	
	— Copper alloys and refined copper containing other elements	Manufacture from refined copper, unwrought, or waste and scrap of copper	
7404	Copper waste and scrap	Manufacture from materials of any heading, except that of the product	
7405	Master alloys of copper	Manufacture from materials of any heading, except that of the product	
ex Chapter 75	Nickel and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
7501 to 7503	Nickel mattes, nickel oxide sinters and other intermediate products of nickel metallurgy; unwrought nickel; nickel waste and scrap	Manufacture from materials of any heading, except that of the product	
ex Chapter 76	Aluminium and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
7601	Unwrought aluminium	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the productor Manufacture by thermal or electrolytic treatment from unalloyed aluminium or waste and scrap of aluminium	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
7602	Aluminium waste or scrap	Manufacture from materials of any heading, except that of the product	
ex 7616	Aluminium articles other than gauze, cloth, grill, netting, fencing, reinforcing fabric and similar materials (including endless bands) of aluminium wire, and expanded metal of aluminium	Manufacture: — from materials of any heading, except that of the product. However, gauze, cloth, grill, netting, fencing, reinforcing fabric and similar materials (including endless bands) of aluminium wire, or expanded metal of aluminium may be used; and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
Chapter 77	Reserved for possible future use in the HS		
ex Chapter 78	Lead and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
7801	Unwrought lead:		
	— Refined lead	Manufacture from 'bullion' or 'work' lead	
	— Other	Manufacture from materials of any heading, except that of the product. However, waste and scrap of heading 7802 may not be used	
7802	Lead waste and scrap	Manufacture from materials of any heading, except that of the product	
ex Chapter 79	Zinc and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
7901	Unwrought zinc	Manufacture from materials of any heading, except that of the product. However, waste and scrap of heading 7902 may not be used	
7902	Zinc waste and scrap	Manufacture from materials of any heading, except that of the product	
ex Chapter 80	Tin and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
8001	Unwrought tin	Manufacture from materials of any heading, except that of the product. However, waste and scrap of heading 8002 may not be used	
8002 and 8007	Tin waste and scrap; other articles of tin	Manufacture from materials of any heading, except that of the product	
Chapter 81	Other base metals; cermets; articles thereof:		
	— Other base metals, wrought; articles thereof	Manufacture in which the value of all the materials of the same heading as the product used does not exceed 50 % of the ex-works price of the product	
	— Other	Manufacture from materials of any heading, except that of the product	
ex Chapter 82	Tools, implements, cutlery, spoons and forks, of base metal; parts thereof of base metal; except for:	Manufacture from materials of any heading, except that of the product	
8206	Tools of two or more of the headings 8202 to 8205, put up in sets for retail sale	Manufacture from materials of any heading, except those of headings 8202 to 8205. However, tools of headings 8202 to 8205 may be incorporated into the set, provided that their total value does not exceed 15 % of the ex-works price of the set	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
8207	Interchangeable tools for hand tools, whether or not power-operated, or for machine-tools (for example, for pressing, stamping, punching, tapping, threading, drilling, boring, broaching, milling, turning, or screw driving), including dies for drawing or extruding metal, and rock drilling or earth boring tools	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8208	Knives and cutting blades, for machines or for mechanical appliances	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
ex 8211	Knives with cutting blades, serrated or not (including pruning knives), other than knives of heading 8208	Manufacture from materials of any heading, except that of the product. However, knife blades and handles of base metal may be used	
8214	Other articles of cutlery (for example, hair clippers, butchers' or kitchen cleavers, choppers and mincing knives, paper knives); manicure or pedicure sets and instruments (including nail files)	Manufacture from materials of any heading, except that of the product. However, handles of base metal may be used	
8215	Spoons, forks, ladles, skimmers, cake-servers, fish-knives, butter-knives, sugar tongs and similar kitchen or tableware	Manufacture from materials of any heading, except that of the product. However, handles of base metal may be used	
ex Chapter 83	Miscellaneous articles of base metal; except for:	Manufacture from materials of any heading, except that of the product	
ex 8302	Other mountings, fittings and similar articles suitable for buildings, and automatic door closers	Manufacture from materials of any heading, except that of the product. However, other materials of heading 8302 may be used, provided that their total value does not exceed 20 % of the ex-works price of the product	
ex 8306	Statuettes and other ornaments, of base metal	Manufacture from materials of any heading, except that of the product. However, other materials of heading 8306 may be used, provided that their total value does not exceed 30 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex Chapter 84	Nuclear reactors, boilers, machinery and mechanical appliances; parts thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8401	Nuclear fuel elements	Manufacture from materials of any heading, except that of the product (12)	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8402	Steam or other vapour generating boilers (other than central heating hot water boilers capable also of producing low pressure steam); super-heated water boilers	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8403 and ex 8404	Central heating boilers other than those of heading 8402 and auxiliary plant for central heating boilers	Manufacture from materials of any heading, except those of headings 8403 and 8404	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
8406	Steam turbines and other vapour turbines	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8407	Spark-ignition reciprocating or rotary internal combustion piston engines	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8408	Compression-ignition internal combustion piston engines (diesel or semi-diesel engines)	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8409	Parts suitable for use solely or principally with the engines of heading 8407 or 8408	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
8411	Turbo-jets, turbo-propellers and other gas turbines	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8412	Other engines and motors	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
ex 8413	Rotary positive displacement pumps	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 8414	Industrial fans, blowers and the like	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8415	Air conditioning machines, comprising a motor-driven fan and elements for changing the temperature and humidity, including those machines in which the humidity cannot be separately regulated	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8418	Refrigerators, freezers and other refrigerating or freezing equipment, electric or other; heat pumps other than air conditioning machines of heading 8415	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — in which the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 8419	Machines for wood, paper pulp, paper and paperboard industries	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of the same heading as the product used does not exceed 25 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8420	Calendering or other rolling machines, other than for metals or glass, and cylinders therefore	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of the same heading as the product used does not exceed 25 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8423	Weighing machinery (excluding balances of a sensitivity of 5 cg or better), including weight operated counting or checking machines; weighing machine weights of all kinds	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8425 to 8428	Lifting, handling, loading or unloading machinery	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8431 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8429	Self-propelled bulldozers, angledozers, graders, levellers, scrapers, mechanical shovels, excavators, shovel loaders, tamping machines and road rollers:		
	— Road rollers	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— Other	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8431 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8430	Other moving, grading, levelling, scraping, excavating, tamping, compacting, extracting or boring machinery, for earth, minerals or ores; pile-drivers and pile-extractors; snow-ploughs and snow-blowers	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8431 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8431	Parts suitable for use solely or principally with road rollers	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8439	Machinery for making pulp of fibrous cellulosic material or for making or finishing paper or paperboard	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of the same heading as the product used does not exceed 25 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8441	Other machinery for making up paper pulp, paper or paperboard, including cutting machines of all kinds	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of the same heading as the product used does not exceed 25 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8443	Printers, for office machines (for example automatic data processing machines, word-processing machines, etc.)	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8444 to 8447	Machines of these headings for use in the textile industry	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 8448	Auxiliary machinery for use with machines of headings 8444 and 8445	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8452	Sewing machines, other than book-sewing machines of heading 8440; furniture, bases and covers specially designed for sewing machines; sewing machine needles:		
	— Sewing machines (lock stitch only) with heads of a weight not exceeding 16 kg without motor or 17 kg with motor	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, — the value of all the non-originating materials used in assembling the head (without motor) does not exceed the value of all the originating materials used, and — the thread-tension, crochet and zigzag mechanisms used are originating	
	— Other	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8456 to 8466	Machine-tools and machines and their parts and accessories of headings 8456 to 8466	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8469 to 8472	Office machines (for example, typewriters, calculating machines, automatic data processing machines, duplicating machines, stapling machines)	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8480	Moulding boxes for metal foundry; mould bases; moulding patterns; moulds for metal (other than ingot moulds), metal carbides, glass, mineral materials, rubber or plastics	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
8482	Ball or roller bearings	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
8484	Gaskets and similar joints of metal sheeting combined with other material or of two or more layers of metal; sets or assortments of gaskets and similar joints, dissimilar in composition, put up in pouches, envelopes or similar packings; mechanical seals	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
ex 8486	— Machine tools for working any material by removal of material, by laser or other light or photon beam, ultrasonic, electrodischarge, electrochemical, electron beam, ionic-beam or plasma arc processes and parts and accessories thereof — machine tools (including presses) for working metal by bending, folding, straightening, flattening, and parts and accessories thereof — machine tools for working stone, ceramics, concrete, asbestos-cement or like mineral materials or for cold working glass and parts and accessories thereof — marking-out instruments which are pattern generating apparatus of a kind used for producing masks or reticles from photoresist coated substrates; parts and accessories thereof	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
	— moulds, injection or compression types	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
	— lifting, handing, loading or unloading machinery	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8431 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8487	Machinery parts, not containing electrical connectors, insulators, coils, contacts or other electrical features, not specified or included elsewhere in this Chapter	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex Chapter 85	Electrical machinery and equipment and parts thereof; sound recorders and reproducers, television image and sound recorders and reproducers, and parts and accessories of such articles; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8501	Electric motors and generators (excluding generating sets)	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8503 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8502	Electric generating sets and rotary converters	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of headings 8501 and 8503 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8504	Power supply units for automatic data-processing machines	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
ex 8517	Other apparatus for the transmission or reception of voice, images or other data, including apparatus for communication in a wireless network (such as a local or wide area network), other than transmission or reception apparatus of headings 8443, 8525, 8527 or 8528	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 8518	Microphones and stands therefore; loudspeakers, whether or not mounted in their enclosures; audio-frequency electric amplifiers; electric sound amplifier sets	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
8519	Sound recording and sound reproducing apparatus	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8521	Video recording or reproducing apparatus, whether or not incorporating a video tuner	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8522	Parts and accessories suitable for use solely or principally with the apparatus of headings 8519 to 8521	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8523	— Unrecorded discs, tapes, solid-state non-volatile storage devices and other media for the recording of sound or of other phenomena, but excluding products of Chapter 37;	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
	— recorded discs, tapes solid-state non-volatile storage devices and other media for the recording of sound or of other phenomena, but excluding products of Chapter 37	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8523 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
	— matrices and masters for the production of discs, but excluding products of Chapter 37;	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8523 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
	— proximity cards and 'smart cards' with two or more electronic integrated circuits	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
	— 'smart cards' with one electronic integrated circuit	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of headings 8541 and 8542 used does not exceed 10 % of the ex-works price of the productor The operation of diffusion, in which integrated circuits are formed on a semi-conductor substrate by the selective introduction of an appropriate dopant, whether or not assembled and/or tested in a country other than those specified in Articles 3 and 4	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8525	Transmission apparatus for radio-broadcasting or television, whether or not incorporating reception apparatus or sound recording or reproducing apparatus; television cameras, digital cameras and video camera recorders	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8526	Radar apparatus, radio navigational aid apparatus and radio remote control apparatus	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8527	Reception apparatus for radio-broadcasting, whether or not combined, in the same housing, with sound recording or reproducing apparatus or a clock	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
8528	— monitors and projectors, not incorporating television reception apparatus, of a kind solely or principally used in an automatic data-processing system of heading 8471	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
	— other monitors and projectors, not incorporating television reception apparatus; Reception apparatus for television –, whether or not incorporating radio broadcast receivers or sound or video recording or reproducing apparatus;	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8529	Parts suitable for use solely or principally with the apparatus of headings 8525 to 8528:		
	— Suitable for use solely or principally with video recording or reproducing apparatus	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
	— Suitable for use solely or principally with monitors and projectors, not incorporating television reception apparatus, of a kind solely or principally used in an automatic data-processing system of heading 8471	Manufacture: — from materials of any heading, except that of the product, and — -in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
	— Other	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8535	Electrical apparatus for switching or protecting electrical circuits, or for making connections to or in electrical circuits for a voltage exceeding 1 000 V	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8538 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
8536	— Electrical apparatus for switching or protecting electrical circuits, or for making connections to or in electrical circuits for a voltage not exceeding 1 000 V	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8538 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
	— connectors for optical fibres, optical fibre bundles or cables		
	— of plastics	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
	— of ceramics	Manufacture from materials of any heading, except that of the product	
	— of copper	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
8537	Boards, panels, consoles, desks, cabinets and other bases, equipped with two or more apparatus of heading 8535 or 8536, for electric control or the distribution of electricity, including those incorporating instruments or apparatus of Chapter 90, and numerical control apparatus, other than switching apparatus of heading 8517	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8538 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8541	Diodes, transistors and similar semi-conductor devices, except wafers not yet cut into chips	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
ex 8542	Electronic integrated circuits		
	— Monolithic integrated circuits	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of headings 8541 and 8542 used does not exceed 10 % of the ex-works price of the productor The operation of diffusion, in which integrated circuits are formed on a semi-conductor substrate by the selective introduction of an appropriate dopant, whether or not assembled and/or tested in a country other than those specified in Articles 3 and 4	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	— multichips which are parts of machinery or apparatus, not specified or included elsewhere in this Chapter	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
	— others	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of headings 8541 and 8542 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8544	Insulated (including enamelled or anodised) wire, cable (including coaxial cable) and other insulated electric conductors, whether or not fitted with connectors; optical fibre cables, made up of individually sheathed fibres, whether or not assembled with electric conductors or fitted with connectors	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8545	Carbon electrodes, carbon brushes, lamp carbons, battery carbons and other articles of graphite or other carbon, with or without metal, of a kind used for electrical purposes	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8546	Electrical insulators of any material	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
8547	Insulating fittings for electrical machines, appliances or equipment, being fittings wholly of insulating materials apart from any minor components of metal (for example, threaded sockets) incorporated during moulding solely for purposes of assembly, other than insulators of heading 8546; electrical conduit tubing and joints therefor, of base metal lined with insulating material	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8548	— Waste and scrap of primary cells, primary batteries and electric accumulators; spent primary cells, spent primary batteries and spent electric accumulators; electrical parts of machinery or apparatus, not specified or included elsewhere in this Chapter	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
ex Chapter 86	Railway or tramway locomotives, rolling-stock and parts thereof; railway or tramway track fixtures and fittings and parts thereof; mechanical (including electro-mechanical) traffic signalling equipment of all kinds; except for:	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8608	Railway or tramway track fixtures and fittings; mechanical (including electromechanical) signalling, safety or traffic control equipment for railways, tramways, roads, inland waterways, parking facilities, port installations or airfields; parts of the foregoing	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex Chapter 87	Vehicles other than railway or tramway rolling-stock, and parts and accessories thereof; except for:	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
8709	Works trucks, self-propelled, not fitted with lifting or handling equipment, of the type used in factories, warehouses, dock areas or airports for short distance transport of goods; tractors of the type used on railway station platforms; parts of the foregoing vehicles	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
8710	Tanks and other armoured fighting vehicles, motorized, whether or not fitted with weapons, and parts of such vehicles	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8711	Motorcycles (including mopeds) and cycles fitted with an auxiliary motor, with or without side-cars; side-cars:		
	— With reciprocating internal combustion piston engine of a cylinder capacity:		
	— Not exceeding 50 cm^3	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 20 % of the ex-works price of the product
	— Exceeding 50 cm^3	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	— Other	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8712	Bicycles without ball bearings	Manufacture from materials of any heading, except those of heading 8714	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
8715	Baby carriages and parts thereof	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8716	Trailers and semi-trailers; other vehicles, not mechanically propelled; parts thereof	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex Chapter 88	Aircraft, spacecraft, and parts thereof; except for:	Manufacture from materials of any heading, except that of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 8804	Rotochutes	Manufacture from materials of any heading, including other materials of heading 8804	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
8805	Aircraft launching gear; deck-arrestor or similar gear; ground flying trainers; parts of the foregoing articles	Manufacture from materials of any heading, except that of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
Chapter 89	Ships, boats and floating structures	Manufacture from materials of any heading, except that of the product. However, hulls of heading 8906 may not be used	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex Chapter 90	Optical, photographic, cinematographic, measuring, checking, precision, medical or surgical instruments and apparatus; parts and accessories thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
9001	Optical fibres and optical fibre bundles; optical fibre cables other than those of heading 8544; sheets and plates of polarizing material; lenses (including contact lenses), prisms, mirrors and other optical elements, of any material, unmounted, other than such elements of glass not optically worked	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9002	Lenses, prisms, mirrors and other optical elements, of any material, mounted, being parts of or fittings for instruments or apparatus, other than such elements of glass not optically worked	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9004	Spectacles, goggles and the like, corrective, protective or other	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
ex 9005	Binoculars, monoculars, other optical telescopes, and mountings therefor, except for astronomical refracting telescopes and mountings therefor	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product; and — in which the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 9006	Photographic (other than cinematographic) cameras; photographic flashlight apparatus and flashbulbs other than electrically ignited flashbulbs	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — in which the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
9007	Cinematographic cameras and projectors, whether or not incorporating sound recording or reproducing apparatus	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — in which the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9011	Compound optical microscopes, including those for photomicrography, cinephotomicrography or microprojection	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — in which the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 9014	Other navigational instruments and appliances	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9015	Surveying (including photogrammetrical surveying), hydrographic, oceanographic, hydrological, meteorological or geophysical instruments and appliances, excluding compasses; rangefinders	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9016	Balances of a sensitivity of 5 cg or better, with or without weights	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9017	Drawing, marking-out or mathematical calculating instruments (for example, drafting machines, pantographs, protractors, drawing sets, slide rules, disc calculators); instruments for measuring length, for use in the hand (for example, measuring rods and tapes, micrometers, callipers), not specified or included elsewhere in this chapter	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
9018	Instruments and appliances used in medical, surgical, dental or veterinary sciences, including scintigraphic apparatus, other electro-medical apparatus and sight-testing instruments:		
	— Dentists' chairs incorporating dental appliances or dentists' spittoons	Manufacture from materials of any heading, including other materials of heading 9018	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	— Other	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
9019	Mechano-therapy appliances; massage apparatus; psychological aptitude-testing apparatus; ozone therapy, oxygen therapy, aerosol therapy, artificial respiration or other therapeutic respiration apparatus	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
9020	Other breathing appliances and gas masks, excluding protective masks having neither mechanical parts nor replaceable filters	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
9024	Machines and appliances for testing the hardness, strength, compressibility, elasticity or other mechanical properties of materials (for example, metals, wood, textiles, paper, plastics)	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9025	Hydrometers and similar floating instruments, thermometers, pyrometers, barometers, hygrometers and psychrometers, recording or not, and any combination of these instruments	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
9026	Instruments and apparatus for measuring or checking the flow, level, pressure or other variables of liquids or gases (for example, flow meters, level gauges, manometers, heat meters), excluding instruments and apparatus of heading 9014, 9015, 9028 or 9032	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9027	Instruments and apparatus for physical or chemical analysis (for example, polarimeters, refractometers, spectrometers, gas or smoke analysis apparatus); instruments and apparatus for measuring or checking viscosity, porosity, expansion, surface tension or the like; instruments and apparatus for measuring or checking quantities of heat, sound or light (including exposure meters); microtomes	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9028	Gas, liquid or electricity supply or production meters, including calibrating meters therefor:		
	— Parts and accessories	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
	— Other	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9029	Revolution counters, production counters, taximeters, mileometers, pedometers and the like; speed indicators and tachometers, other than those of heading 9014 or 9015; stroboscopes	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9030	Oscilloscopes, spectrum analysers and other instruments and apparatus for measuring or checking electrical quantities, excluding meters of heading 9028; instruments and apparatus for measuring or detecting alpha, beta, gamma, X-ray, cosmic or other ionizing radiations	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
9031	Measuring or checking instruments, appliances and machines, not specified or included elsewhere in this chapter; profile projectors	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9032	Automatic regulating or controlling instruments and apparatus	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9033	Parts and accessories (not specified or included elsewhere in this chapter) for machines, appliances, instruments or apparatus of Chapter 90	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
ex Chapter 91	Clocks and watches and parts thereof; except for:	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
9105	Other clocks	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9109	Clock movements, complete and assembled	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9110	Complete watch or clock movements, unassembled or partly assembled (movement sets); incomplete watch or clock movements, assembled; rough watch or clock movements	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 9114 used does not exceed 10 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9111	Watch cases and parts thereof	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
9112	Clock cases and cases of a similar type for other goods of this chapter, and parts thereof	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9113	Watch straps, watch bands and watch bracelets, and parts thereof:		
	— Of base metal, whether or not gold- or silver-plated, or of metal clad with precious metal	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
	— Other	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
Chapter 92	Musical instruments; parts and accessories of such articles	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product	
Chapter 93	Arms and ammunition; parts and accessories thereof	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex Chapter 94	Furniture; bedding, mattresses, mattress supports, cushions and similar stuffed furnishings; lamps and lighting fittings, not elsewhere specified or included; illuminated signs, illuminated nameplates and the like; prefabricated buildings; except for:	Manufacture from materials of any heading, except that of the product	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 9401 and ex 9403	Base metal furniture, incorporating unstuffed cotton cloth of a weight of 300 g/m² or less	Manufacture from materials of any heading, except that of the product or Manufacture from cotton cloth already made up in a form ready for use with materials of heading 9401 or 9403, provided that:	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
		— the value of the cloth does not exceed 25 % of the ex-works price of the product, and — all the other materials used are originating and are classified in a heading other than heading 9401 or 9403	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
9405	Lamps and lighting fittings including searchlights and spotlights and parts thereof, not elsewhere specified or included; illuminated signs, illuminated name-plates and the like, having a permanently fixed light source, and parts thereof not elsewhere specified or included	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
9406	Prefabricated buildings	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex Chapter 95	Toys, games and sports requisites; parts and accessories thereof; except for:	Manufacture from materials of any heading, except that of the product	
ex 9503	Other toys; reduced-size ('scale') models and similar recreational models, working or not; puzzles of all kinds	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex 9506	Golf clubs and parts thereof	Manufacture from materials of any heading, except that of the product. However, roughly-shaped blocks for making golf-club heads may be used	
ex Chapter 96	Miscellaneous manufactured articles; except for:	Manufacture from materials of any heading, except that of the product	
ex 9601 and ex 9602	Articles of animal, vegetable or mineral carving materials	Manufacture from 'worked' carving materials of the same heading as the product	
ex 9603	Brooms and brushes (except for besoms and the like and brushes made from marten or squirrel hair), hand-operated mechanical floor sweepers, not motorized, paint pads and rollers, squeegees and mops	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
9605	Travel sets for personal toilet, sewing or shoe or clothes cleaning	Each item in the set must satisfy the rule which would apply to it if it were not included in the set. However, non-originating articles may be incorporated, provided that their total value does not exceed 15 % of the ex-works price of the set	

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status	
(1)	(2)	(3) or (4)	
9606	Buttons, press-fasteners, snap-fasteners and press-studs, button moulds and other parts of these articles; button blanks	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
9608	Ball-point pens; felt-tipped and other porous-tipped pens and markers; fountain pens, stylograph pens and other pens; duplicating stylos; propelling or sliding pencils; pen-holders, pencil-holders and similar holders; parts (including caps and clips) of the foregoing articles, other than those of heading 9609	Manufacture from materials of any heading, except that of the product. However, nibs or nib-points of the same heading as the product may be used	
9612	Typewriter or similar ribbons, inked or otherwise prepared for giving impressions, whether or not on spools or in cartridges; ink-pads, whether or not inked, with or without boxes	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product	
ex 9613	Lighters with piezo-igniter	Manufacture in which the value of all the materials of heading 9613 used does not exceed 30 % of the ex-works price of the product	
ex 9614	Smoking pipes and pipe bowls	Manufacture from roughly-shaped blocks	
Chapter 97	Works of art, collectors' pieces and antiques	Manufacture from materials of any heading, except that of the product	

(1) For the special conditions relating to 'specific processes', see Introductory Notes 7.1 and 7.3.
(2) For the special conditions relating to 'specific processes', see Introductory Note 7.2.
(3) Note 3 to Chapter 32 says that these preparations are those of a kind used for colouring any material or used as ingredients in the manufacture of colouring preparations, provided that they are not classified in another heading in Chapter 32.
(4) A 'group' is regarded as any part of the heading separated from the rest by a semicolon.
(5) In the case of the products composed of materials classified within both headings 3901 to 3906, on the one hand, and within heading 3907 to 3911, on the other hand, this restriction only applies to that group of materials which predominates by weight in the product.
(6) The following foils shall be considered as highly transparent: foils, the optical dimming of which, measured according to ASTM-D 1003-16 by Gardner Hazemeter (i.e. Hazefactor), is less than 2 %.
(7) For special conditions relating to products made of a mixture of textile materials, see Introductory Note 5.
(8) The use of this material is restricted to the manufacture of woven fabrics of a kind used in paper-making machinery.
(9) See Introductory Note 6.
(10) For knitted or crocheted articles, not elastic or rubberised, obtained by sewing or assembling pieces of knitted or crocheted fabrics (cut out or knitted directly to shape), see Introductory Note 6.
(11) SEMI — Semiconductor Equipment and Materials Institute Incorporated.
(12) This rule shall apply until 31.12.2005.

ANNEX III TO PROTOCOL II

SPECIMENS OF MOVEMENT CERTIFICATE EUR.1 AND APPLICATION FOR A MOVEMENT CERTIFICATE EUR.1

Printing instructions

1. Each form shall measure 210 × 297 mm; a tolerance of up to minus 5 mm or plus 8 mm in the length may be allowed. The paper used must be white, sized for writing, not containing mechanical pulp and weighing not less than 25 g/m^2. It shall have a printed green guilloche pattern background making any falsification by mechanical or chemical means apparent to the eye.

2. The competent authorities of the Parties may reserve the right to print the forms themselves or may have them printed by approved printers. In the latter case, each form shall include a reference to such approval. Each form shall bear the name and address of the printer or a mark by which the printer can be identified. It shall also bear a serial number, either printed or not, by which it can be identified.

MOVEMENT CERTIFICATE

<table>
<tr><td colspan="2">1. Exporter (Name, full address, country)</td><td colspan="3">EUR.1 No A 000.000</td></tr>
<tr><td colspan="2" rowspan="2"></td><td colspan="3">See notes overleaf before completing this form.</td></tr>
<tr><td colspan="3">2. Certificate used in preferential trade between
.....
and
.....
(Insert appropriate countries, groups of countries or territories)</td></tr>
<tr><td colspan="2">3. Consignee (Name, full address, country) (Optional)</td><td colspan="2">4. Country, group of countries or territory in which the products are considered as originating</td><td>5. Country, group of countries or territory of destination</td></tr>
<tr><td colspan="2">6. Transport details (Optional)</td><td colspan="3">7. Remarks</td></tr>
<tr><td colspan="3">8. Item number; Marks and numbers; Number and kind of packages ([1]); Description of goods</td><td>9. Gross mass (kg) or other measure (litres, m^3, etc.)</td><td>10. Invoices (Optional)</td></tr>
<tr><td colspan="2">11. CUSTOMS ENDORSMENT

Declaration certified
Export document ([2])
Form ..... No .....
Of .....
Customs office .....
Issuing country of territory .....
.....
.....
(Place and date)
.....
(Signature)</td><td>Stamp</td><td colspan="3">12. DECLARATION BY THE EXPORTER

I, the undersigned, declare that the goods described above meet the conditions required for the issues of this certificate

.....
(Place and date)
.....
(Signature)</td></tr>
</table>

([1]) If goods are not packed, indicate number of articles or state 'in bulk' as appropriate.
([2]) Complete only where the regulations of the exporting country or territory require.

13. **REQUEST FOR VERIFICATION**, to	14. **RESULT OF VERIFICATION**
	Verification carried out shows that this certificate ([1]) ☐ was issued by the customs offices indicated and that the information contained therein is accurate. ☐ does not meet the requirements as to authenticity and accuracy (see remarks appended).
Verification of the authenticity and accuracy of this certificate is requested ..... *(Place and date)* ..... *(Signature)* Stamp	..... *(Place and date)* ..... *(Signature)* Stamp

([1]) Insert X in the appropriate box.

NOTES

1. Certificate must not contain erasures of words written over one another. Any alterations must be made by deleting the incorrect particulars and adding any necessary corrections. Any such alteration must be initialled by the person who completed the certificate and endorsed by the Customs authorities of the issuing country or territory.
2. No spaces must be left between the items entered on the certificate and each item must be preceeded by an item number. A horizontal line must be drawn immediately below the last item. Any unused space must be struck through in such a manner as to make any later additions impossible.
3. Goods must be described in accordance with commercial practice and with sufficient detail to enable them to be identified.

APPLICATION FOR A MOVEMENT CERTIFICATE

<table>
<tr><td colspan="2">1. Exporter (Name, full address, country)</td><td colspan="3">EUR.1 No A 000.000</td></tr>
<tr><td colspan="2" rowspan="2"></td><td colspan="3">See notes overleaf before completing this form.</td></tr>
<tr><td colspan="3">2. Certificate used in preferential trade between
.....
and
.....
(Insert appropriate countries or groups of countries or territories)</td></tr>
<tr><td colspan="2">3. Consignee (Name, full address, country) (Optional)</td><td>4. Country, group of countries or territory in which the products are considered as originating</td><td colspan="2">5. Country, group of countries or territory of destination</td></tr>
<tr><td colspan="2">6. Transport details (Optional)</td><td colspan="3">7. Remarks</td></tr>
<tr><td colspan="2">8. Item number; Marks and numbers; Number and kind of packages ([1]); Description of goods</td><td>9. Gross mass (kg) or other measure (litres, m^3, etc.)</td><td colspan="2">10. Invoices (Optional)</td></tr>
<tr><td colspan="5">([1]) If goods are not packed, indicate number of articles or state ‘in bulk’ as appropriate.</td></tr>
</table>

DECLARATION BY THE EXPORTER

I, the undersigned, exporter of the goods described overleaf,

DECLARE that the goods meet the conditions required for the issue of the attached certificate;

SPECIFY as follows the circumstances which have enabled these goods to meet the above conditions:

.....
.....
.....
.....

SUBMIT the following supporting documents ([1]):

.....
.....
.....
.....

UNDERTAKE to submit, at the request of the appropriate authorities, any supporting evidence which these authorities may require for the purpose of issuing the attached certificate, and undertake, if required, to agree to any inspection of my accounts and to any check on the processes of manufacture of the above goods, carried out by the said authorities;

REQUEST the issue of the attached certificate for these goods.

(Place and date)

.....

(Signature)

.....

([1]) For example: import documents, movement certificates, invoices, manufacturer's declarations, etc., referring to the products used in manufacture or to the goods re-exported in the same state.

ANNEX IV TO PROTOCOL II

TEXT OF THE ORIGIN DECLARATION

The origin declaration, the text of which is given below, must be made out in accordance with the footnotes. However, the footnotes do not have to be reproduced.

Bulgarian version

Износителят на продуктите, обхванати от този документ (митническо разрешение № … ([1])) декларира, че освен където ясно е отбелязано друго, тези продукти са с … преференциален произход ([2]).

Spanish version

El exportador de los productos incluidos en el presente documento (autorización aduanera nº … ([1])) declara que, salvo indicación en sentido contrario, estos productos gozan de un origen preferencial … ([2]).

Czech version

Vývozce výrobků uvedených v tomto dokumentu (číslo povolení … ([1])) prohlašuje, že kromě zřetelně označených mají tyto výrobky preferenční původ v … ([2]).

Danish version

Eksportøren af varer, der er omfattet af nærværende dokument, (toldmyndighedernes tilladelse nr. … ([1])), erklærer, at varerne, medmindre andet tydeligt er angivet, har præferenceoprindelse i … ([2]).

German version

Der Ausführer (Ermächtigter Ausführer; Bewilligungs-Nr. … ([1])) der Waren, auf die sich dieses Handelspapier bezieht, erklärt, dass diese Waren, soweit nicht anderes angegeben, präferenzbegünstigte … ([2]) Ursprungswaren sind.

Estonian version

Käesoleva dokumendiga hõlmatud toodete eksportija (tolli kinnitus nr. … ([1])) deklareerib, et need tooted on … ([2]) sooduspäritoluga, välja arvatud juhul, kui on selgelt näidatud teisiti.

Greek version

Ο εξαγωγέας των προϊόντων που καλύπτονται από το παρόν έγγραφο (άδεια τελωνείου υπ'αριθ. … ([1])) δηλώνει ότι, εκτός εάν δηλώνεται σαφώς άλλως, τα προϊόντα αυτά είναι προτιμησιακής καταγωγής … ([2]).

French version

L'exportateur des produits couverts par le présent document (autorisation douanière nº … ([1])) déclare que, sauf indication claire du contraire, ces produits ont l'origine préférentielle … ([2]).

Croatian version

Izvoznik proizvoda obuhvaćenih ovom ispravom (carinsko ovlaštenje br … ([1])) izjavljuje da su, osim ako je drukčije izričito navedeno, ovi proizvodi … ([2]) preferencijalnog podrijetla.

Italian version

L'esportatore delle merci contemplate nel presente documento (autorizzazione doganale n. … ([1])) dichiara che, salvo indicazione contraria, le merci sono di origine preferenziale … ([2]).

Latvian version

To produktu eksportētājs, kuri ietverti šajā dokumentā (muitas atļauja Nr. … ([1])), deklarē, ka, izņemot tur, kur ir citādi skaidri noteikts, šiem produktiem ir preferenciāla izcelsme … ([2]).

Lithuanian version

Šiame dokumente išvardytų produktų eksportuotojas (muitinės liudijimo Nr. … ([1])) deklaruoja, kad, jeigu kitaip nenurodyta, tai yra … ([2]) preferencinės kilmės produktai.

Hungarian version

A jelen okmányban szereplő áruk exportőre (vámfelhatalmazási szám: … ([1])) kijelentem, hogy eltérő egyértelmű jelzés hiányában az áruk preferenciális … ([2]) származásúak.

Maltese version

L-esportatur tal-prodotti koperti b'dan id-dokument (awtorizzazzjoni tad-dwana nru. … ([1])) jiddikjara li, ħlief fejn indikat b'mod ċar li mhux hekk, dawn il-prodotti huma ta' oriġini preferenzjali … ([2]).

Dutch version

De exporteur van de goederen waarop dit document van toepassing is (douanevergunning nr. … ([1])), verklaart dat, behoudens uitdrukkelijke andersluidende vermelding, deze goederen van preferentiële … oorsprong zijn ([2]).

Polish version

Eksporter produktów objętych tym dokumentem (upoważnienie władz celnych nr … ([1])) deklaruje, że z wyjątkiem gdzie jest to wyraźnie określone, produkty te mają … ([2]) preferencyjne pochodzenie.

Portuguese version

O abaixo-assinado, exportador dos produtos abrangidos pelo presente documento (autorização aduaneira n.º … ([1])), declara que, salvo indicação expressa em contrário, estes produtos são de origem preferencial … ([2]).

Romanian version

Exportatorul produselor ce fac obiectul acestui document (autorizația vamală nr. … ([1])) declară că, exceptând cazul în care în mod expres este indicat altfel, aceste produse sunt de origine preferențială … ([2]).

Slovenian version

Izvoznik blaga, zajetega s tem dokumentom (pooblastilo carinskih organov št … ([1])) izjavlja, da, razen če ni drugače jasno navedeno, ima to blago preferencialno … ([2]) poreklo.

Slovak version

Vývozca výrobkov uvedených v tomto dokumente (číslo povolenia … ([1])) vyhlasuje, že okrem zreteľne označených, majú tieto výrobky preferenčný pôvod v … ([2]).

Finnish version

Tässä asiakirjassa mainittujen tuotteiden viejä (tullin lupa n:o … ([1])) ilmoittaa, että nämä tuotteet ovat, ellei toisin ole selvästi merkitty, etuuskohteluun oikeutettuja … alkuperätuotteita ([2]).

Swedish version

Exportören av de varor som omfattas av detta dokument (tullmyndighetens tillstånd nr. … ([1])) försäkrar att dessa varor, om inte annat tydligt markerats, har förmånsberättigande … ursprung ([2]).

English version

The exporter of the products covered by this document (customs authorization No … ([1])) declares that, except where otherwise clearly indicated, these products are of … ([2]) preferential origin.

Republic of Moldova version

Exportatorul produselor ce fac obiectul acestui document (autorizația vamală nr. … ([1])) declară că, exceptând cazul în care în mod expres este indicat altfel, aceste produse sunt de origine preferențială … ([2]).

…… ([3])

(Place and date)

…… ([4])

(Signature of the exporter, in addition the name of the person signing the declaration has to be indicated in clear script)

([1]) When the origin declaration is made out by an approved exporter, the authorization number of the approved exporter must be enter in this space. When the origin declaration is not made out by an approved exporter, the words in brackets shall be omitted or the space left blank.

([2]) Origin of products to be indicated. When the origin declaration relates in whole or in part, to products originating in Ceuta and Melilla, the exporter must clearly indicate them in the document on which the declaration is made out by means of the symbol 'CM'.

([3]) These indications may be omitted if the information is contained on the document itself.

([4]) In cases where the exporter is not required to sign, the exemption of signature also implies the exemption of the name of the signatory.

JOINT DECLARATION

CONCERNING THE PRINCIPALITY OF ANDORRA

1. Products originating in the Principality of Andorra falling within Chapters 25 to 97 of the Harmonised System shall be accepted by the Republic of Moldova as originating in the European Union within the meaning of this Agreement.
2. Protocol II concerning the definition of the concept of 'originating products' and methods of administrative co-operation shall apply *mutatis mutandis* for the purpose of defining the originating status of the products referred to in paragraph 1.

JOINT DECLARATION

CONCERNING THE REPUBLIC OF SAN MARINO

1. Products originating in the Republic of San Marino shall be accepted by the Republic of Moldova as originating in the European Union within the meaning of this Agreement.
2. Protocol II concerning the definition of the concept of 'originating products' and methods of administrative co-operation shall apply *mutatis mutandis* for the purpose of defining the originating status of the products referred to in paragraph 1.

JOINT DECLARATION

CONCERNING THE REVISION OF THE RULES OF ORIGIN CONTAINED IN PROTOCOL II CONCERNING THE DEFINITION OF THE CONCEPT OF 'ORIGINATING PRODUCTS' AND METHODS OF ADMINISTRATIVE COOPERATION

1. The Parties agree to review the rules of origin contained in Protocol II concerning the definition of the concept of 'originating products' and methods of administrative cooperation and discuss the necessary amendments upon request of either Party. In such discussions, the Parties shall take into account the development of technologies, production processes, price fluctuations and all other factors which might justify the changes to the rules.
2. Annex II to Protocol II concerning the definition of the concept of 'originating products' and methods of administrative cooperation will be adapted in accordance with the periodical changes to the Harmonised System.

PROTOCOL III

ON MUTUAL ADMINISTRATIVE ASSISTANCE IN CUSTOMS MATTERS

Article 1

Definitions

For the purposes of this Protocol:

(a) 'customs legislation' means any legal or regulatory provision applicable in the territories of the Parties, governing the import, export and transit of goods and their placing under any other customs regime or procedure, including measures on prohibition, restriction and control thereof;

(b) 'applicant authority' means a competent administrative authority which makes a request for assistance on the basis of this Protocol and which has been designated by a Party for that purpose;

(c) 'requested authority' means a competent administrative authority which receives a request for assistance on the basis of this Protocol and which has been designated by a Party for that purpose;

(d) 'personal data' means all information relating to an identified or identifiable individual;

(e) 'operation in breach of customs legislation' means any violation or attempted violation of customs legislation.

Article 2

Scope

1. The Parties shall assist each other, in the areas of their competence, in the manner and under the conditions laid down in this Protocol, to ensure the correct application of their customs legislation, in particular by preventing, investigating and combating operations in breach of that legislation.

2. The assistance in customs matters, as provided for in this Protocol, shall apply to any administrative authority of the Parties which is competent for the application of this Protocol. It shall not prejudice the rules governing mutual assistance in criminal matters. Nor shall it cover exchange of information obtained under powers exercised at the request of a judicial authority, except where the communication of such information is authorised by that authority.

3. The assistance to recover duties, taxes or fines is not covered by this Protocol.

Article 3

Assistance on request

1. At the request of the applicant authority, the requested authority shall provide the applicant authority with all relevant information which may enable it to ensure that customs legislation is correctly applied, including information regarding noted or planned activities which are or could be operations in breach of customs legislation.

2. At the request of the applicant authority, the requested authority shall inform the former of the following:

(a) whether goods exported from the territory of one of the Parties have been properly imported into the territory of the other Party, specifying, where appropriate, the customs procedure applied to the goods;

(b) whether goods imported into the territory of one of the Parties have been properly exported from the territory of the other Party, specifying, where appropriate, the customs procedure applied to the goods.

3. At the request of the applicant authority, the requested authority shall, within the framework of its legal or regulatory provisions, take the necessary steps to ensure special surveillance of:

(a) natural or legal persons in respect of whom there are reasonable grounds for believing that they are or have been involved in operations in breach of customs legislation;

(b) places where stocks of goods have been or may be assembled in such a way that there are reasonable grounds for believing that these goods are intended to be used in operations in breach of customs legislation;

(c) goods that are or may be transported in such a way that there are reasonable grounds for believing that they are intended to be used in operations in breach of customs legislation;

(d) means of transport that are or may be used in such a way that there are reasonable grounds for believing that they are intended to be used in operations in breach of customs legislation.

Article 4

Spontaneous assistance

The Parties shall assist each other, on their own initiative and in accordance with their legal or regulatory provisions, if they consider that to be necessary for the correct application of customs legislation, in particular by providing information pertaining to:

(a) activities which are or appear to be operations in breach of customs legislation and which may be of interest to the other Party;

(b) new means or methods employed in carrying out operations in breach of customs legislation;

(c) goods known to be subject to operations in breach of customs legislation;

(d) natural or legal persons in respect of whom there are reasonable grounds for believing that they are or have been involved in operations in breach of customs legislation;

(e) means of transport in respect of which there are reasonable grounds for believing that they have been, are, or may be used in operations in breach of customs legislation.

Article 5

Delivery and notification

1. At the request of the applicant authority, the requested authority shall, in accordance with legal or regulatory provisions applicable to that authority, take all necessary measures in order to deliver any documents or to notify any decisions originating from the applicant authority and falling within the scope of this Protocol, to an addressee residing or established in the territory of the requested authority.

2. Requests for delivery of documents or notification of decisions shall be made in writing in an official language of the requested authority or in a language acceptable to that authority.

Article 6

Form and substance of requests for assistance

1. Requests pursuant to this Protocol shall be made in writing. They shall be accompanied by the documents necessary to enable compliance with the request. When required because of the urgency of the situation, oral requests may be accepted, but must be confirmed in writing immediately.

2. Requests pursuant to paragraph 1 shall include the following information:

(a) the applicant authority;

(b) the requested measure;

(c) the object of and the reason for the request;

(d) the legal or regulatory provisions and other legal elements involved;

(e) indications, as exact and comprehensive as possible, regarding the natural or legal persons who are the target of the investigations;

(f) a summary of the relevant facts and of the enquiries already carried out.

3. Requests shall be submitted in an official language of the requested authority or in a language acceptable to that authority. This requirement shall not apply to any documents that accompany a request under paragraph 1.

4. If a request does not meet the formal requirements set out in this Article, its correction or completion may be requested and precautionary measures may be ordered in the meantime.

Article 7

Execution of requests

1. In order to comply with a request for assistance, the requested authority shall proceed, within the limits of its competence and available resources, as though it were acting on its own account or at the request of other authorities of that same Party, by supplying information already in the requested authority's possession, by carrying out appropriate enquiries or by arranging for them to be carried out. This provision shall also apply to any other authority to which the request has been addressed by the requested authority when the latter cannot act on its own.

2. Requests for assistance shall be executed without delay in accordance with the legal or regulatory provisions of the requested Party.

3. Duly authorised officials of a Party may, with the agreement of the other Party involved and subject to the conditions laid down by the latter, be present in the offices of the requested authority, or any other concerned authority in accordance with paragraph 1, to obtain information relating to activities that are or may be operations in breach of customs legislation which the applicant authority needs for the purposes of this Protocol.

4. Duly authorised officials of a Party may, with the agreement of the other Party and subject to the conditions laid down by the latter, be present at enquiries carried out in the latter's territory.

Article 8

Form in which information is to be communicated

1. The requested authority shall communicate the results of enquiries to the applicant authority in writing together with relevant documents, certified copies or other items.

2. That information may be in a computerised form.

3. Original documents shall be transmitted only upon request in cases where certified copies would be insufficient. Those originals shall be returned at the earliest opportunity.

Article 9

Exceptions to the obligation to provide assistance

1. Assistance may be refused or may be subject to the satisfaction of certain conditions or requirements, in cases where a Party is of the opinion that assistance under this Protocol would:

(a) be likely to prejudice the sovereignty of the Republic of Moldova or that of a Member State which has been requested to provide assistance under this Protocol;

(b) be likely to prejudice public policy, security or other essential interests, in particular in the cases referred to under Article 10(2) of this Protocol; or

(c) violate an industrial, commercial or professional secret.

2. Assistance may be postponed by the requested authority on the ground that it will interfere with an on-going investigation, prosecution or proceeding. In such a case, the requested authority shall consult with the applicant authority to determine if assistance can be given subject to such terms or conditions as the requested authority may require.

3. Where the applicant authority seeks assistance which it would itself be unable to provide if so requested, it shall draw attention to that fact in its request. It shall then be for the requested authority to decide how to respond to such a request.

4. For the cases referred to in paragraphs 1 and 2, the decision of the requested authority and the reasons therefor must be communicated to the applicant authority without delay.

Article 10

Information exchange and confidentiality

1. Any information communicated in whatsoever form pursuant to this Protocol shall be of a confidential or restricted nature, depending on the rules applicable in each of the Parties. It shall be covered by the obligation of official secrecy and shall enjoy the protection extended to similar information under the relevant laws of the Party that received it and the corresponding provisions applying to the institutions of the Union.

2. Personal data may be exchanged only where the Party which may receive it undertakes to protect such data in a manner that is considered adequate by the Party that may supply them.

3. The use, in administrative or judicial proceedings instituted in respect of operations in breach of customs legislation, of information obtained under this Protocol shall be considered to be for the purposes of this Protocol. Therefore, the Parties may, in their records of evidence, reports and testimonies and in proceedings and charges brought before the courts, use as evidence information obtained and documents consulted in accordance with the provisions of this Protocol. The competent authority which supplied that information or gave access to those documents shall be notified of such use.

4. The information obtained under this Protocol shall be used solely for the purposes of this Protocol. Where one of the Parties wishes to use such information for other purposes, it shall obtain the prior written consent of the authority which provided the information. Such use shall then be subject to any restrictions laid down by that authority.

Article 11

Experts and witnesses

An official of a requested authority may be authorised to appear, within the limitations of the authorisation granted, as an expert or a witness in administrative or judicial proceedings regarding the matters covered by this Protocol, and may produce such objects, documents or certified copies thereof, as may be needed for the proceedings. The request to the official is made by the applicant authority and must indicate specifically before which administrative or judicial authority the official will have to appear, on which matters and in which capacity (title or qualification).

Article 12

Assistance expenses

The Parties shall waive all claims against each other for the reimbursement of expenses incurred pursuant to this Protocol, except, as appropriate, for expenses related to experts and witnesses, and those related to interpreters and translators who are not public service employees.

Article 13

Implementation

1. The implementation of this Protocol shall be entrusted on the one hand to the customs authorities of the Republic of Moldova, and on the other hand to the competent services of the European Commission and the customs authorities of the Member States, as appropriate. They shall decide on all practical measures and arrangements necessary for its application, taking into consideration the rules in force, in particular in the field of data protection.

2. The Parties shall consult each other and subsequently keep each other informed of the detailed rules of implementation which are adopted in accordance with the provisions of this Protocol.

Article 14

Other agreements

1. Taking into account the respective competences of the Union and the Member States, the provisions of this Protocol shall:

(a) not affect the obligations of the Parties under any other international agreement or convention;

(b) be deemed complementary to agreements on mutual assistance which have been or may be concluded between individual Member States and the Republic of Moldova; and

(c) not affect the Union's provisions governing the communication between the competent services of the European Commission and the customs authorities of the Member States of any information obtained under this Protocol which could be of interest to the Union.

2. Notwithstanding the provisions of paragraph 1, the provisions of this Protocol shall take precedence over the provisions of any bilateral agreement on mutual assistance which has been or may be concluded between individual Member States of the EU and the Republic of Moldova in so far as the provisions of such a bilateral agreement are incompatible with those of this Protocol.

Article 15

Consultations

In respect of questions relating to the applicability of this Protocol, the Parties shall consult each other to resolve the matter in the framework of the Customs Sub-Committee set up under Article 200 of this Agreement.

PROTOCOL IV

DEFINITIONS

For the purposes of this Agreement:

1. '*Irregularity*' means any infringement of a provision of EU law, of this Agreement or ensuing agreements and contracts, resulting from an act or omission by an economic operator, which has, or would have, the effect of prejudicing the general budget of the EU or budgets managed by it, either by reducing or losing revenue accruing from own resources collected directly on behalf of the EU, or by an unjustified item of expenditure.
2. '*Fraud*' means
   (a) in respect of expenditure, any intentional act or omission relating to:
      — the use or presentation of false, incorrect or incomplete statements or documents, which has as its effect the misappropriation or wrongful retention of funds from the general budget of the EU or budgets managed by, or on behalf of, the EU;
      — the non-disclosure of information in violation of a specific obligation, with the same effect as described in the first indent of this point;
      — the misapplication of funds referred to in the first indent of this point for purposes other than those for which they were originally granted;
   (b) in respect of revenue, any intentional act or omission relating to:
      — the use or presentation of false, incorrect or incomplete statements or documents, which has as its effect the illegal diminution of the resources of the general budget of the EU or budgets managed by, or on behalf of, the EU;
      — the non-disclosure of information in violation of a specific obligation, with the same effect as described in the first indent of this point;
      — the misapplication of a legally obtained benefit, with the same effect as described in the first indent of this point.
3. '*Active corruption*' means the deliberate action of whosoever promises or gives, directly or through an intermediary, an advantage of any kind whatsoever to an official, for himself or for a third party, for him to act or refrain from acting in accordance with his duty or, in the exercise of his functions, in breach of his official duties in a way which damages or is likely to damage the financial interests of the EU.
4. '*Passive corruption*' means the deliberate action of an official who, directly or through an intermediary, requests or receives advantages of any kind whatsoever, for himself or for a third party, or accepts a promise of such an advantage, to act or refrain from acting in accordance with his duty or, in the exercise of his functions, in breach of his official duties in a way which damages or is likely to damage the financial interests of the EU.
5. '*Conflict of interest*' means any situation that could cast doubt on the ability of staff to act in an impartial and objective manner for reasons involving family, emotional life, political or national affinity, economic interest or any other shared interest with a tenderer, applicant or beneficiary, or that could reasonably appear to do so in the eyes of an external third party.
6. '*Unduly paid*' means paid in breach of the rules governing EU funds.
7. '*European Anti-Fraud Office (OLAF)*' means the European Commission's specialised anti-fraud department. OLAF has operational independence and is responsible for carrying out administrative investigations intended to combat fraud, corruption and any other illegal activity adversely affecting the financial interests of the EU, as provided for in Commission Decision 1999/352/EC, ECSC, Euratom of 28 April 1999 establishing the European Anti-fraud Office (OLAF), Regulation (EC) No 1073/1999 of the European Parliament and of the Council of 25 May 1999 concerning investigations by the European Anti-Fraud Office (OLAF) and Council Regulation (Euratom, EC) No 2185/96 of 11 November 1996 concerning on-the-spot checks and inspections carried out by the Commission in order to protect the European Communities' financial interests against fraud and other irregularities.